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Agro Industries Ltd v Attorney-General
[1990–1994] 1 EA 1 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	23 April 1993
Case Number:	34/90
Before:	Makame, Ramadhani and Mfalila JJA
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[1] Administrative law – Legality of delegation of statutory powers – Right to be heard before decision is made.

[2] Civil procedure – Matters not pleaded in the pleadings but addressed in Court – Whether such issues obiter – Effect of such – Powers of the Court to decide and adjudicate on unpleaded issues.

[3] Land – Rights of occupancy – Revocation of rights of occupancy – Power to grant rights of occupancy – Public interest in granting rights of occupancy – Definition of public rights.

Editor's Summary

Mr Akberali Abdulrahamn Dharamsi mortgaged his two farms in Msowero Village, Kilosa District of Morogoro Region, (Farms number 6 and 7), to the National Development Credit Agency for a loan of TShs45 000 in 1968. However, the debtor absconded and the chargor was therefore inclined to sell the farms. The appellant paid TShs98 880 as the purchase price for the farms and obtained the deeds of title and a consent letter from the Development director of Morogoro Region.

However, another company, Darbrew Limited, had also applied, through the Mowero Village Government, and obtained use of the farms which they immediately took possession of and started cultivating. Darbrew Limited was a public institution.

Darbrew later petitioned the President over the fact that both companies claimed rights to the same land and the President referred it to the Prime Minister. The Prime Minister then convened a meeting that recommended that the appellant's rights over the parcels of land be revoked and that new rights be granted to Darbrew Limited.

The President thus gave this consent in 1985. The appellant argued in its suit that it had not been given notice of the President's intention to revoke their rights over the parcels of land, that it was not given an opportunity to be heard, that the Minister for Lands usurped the powers of the President and that the President had not delegated his powers to the Minister.

Held – A Court may base its decision on an unpleaded issue if it appears from the course of the trial that the issue has been left to the Court for a decision. *Odd Jobs v Mubia* [1970] EA 476 applied.

So long as a Court allows the counsel to address it on certain issues, then the judge has to conclusively decide them. The decisions on the three issues were not therefore obiter and could be proper subjects of appeal.

The whole purpose of a notice is to afford a party an opportunity to be heard. Since the appellant knew or ought to have known the consequences of an adverse decision, that is, revocation of their rights over the two farms, they had adequate notice.

Section 2 of the Presidential Affairs Act does not empower a minister to exercise power or perform a duty or a function on behalf of the President. In this case the Minister, by signing the executive orders, merely signified the exercise of that power by the President since the President had already agreed with the recommendations of the Prime Minister. There was thus no delegation or usurpation of the powers of the President.

The Kilosa District Authority did not have any powers to grant any rights over the two farms to Darbrew Limited or anybody else. *Associated Provincial Picture Houses Limited v Wednesbury Corporation* [1947] 2 All ER 68 and *Padfield v Minister of Agriculture* [1968] 1 All ER 690 followed.

A matter in the public interest may even comprise the individual or individuals concerned, and it matters not whether the public is aware of it or not. *R v Sussex Confirming Authority ex parte Tamplin and Sons Brewery (Brighton) Limited* [1937] 4 All ER 106 followed; *Mawabai Franjee Punishment Petit v Secretary of State for India* [1915] 39 Bom 279 and *BP Bhatt and another v Habib Rajani* [1958] EA 536 distinguished.

The public interest requires that legal property rights should be protected against trespassers. A revocation that is done in favour of a trespasser and against a lawful owner can never be in the public interest. The revocation is therefore null and void. However, the appellant should compensate Darbrew Limited for the unexhausted improvements on the land.

Appeal is allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

BP Bhatt and another v Habib Rajani [1958] EA 536 – **D**

Odd Jobs v Mubia [1970] EA 476 – **AP**

Patman Garments Industries Ltd v Tanzania Manufacturers [1981] TLR 303

Vidyarthi v Ram Rakha [1957] EA 527

United Kingdom

Associated Provincial Picture Houses Limited v Wednesbury Corporation [1947] 2 All ER 68 – **F**

Mawabai Franjee Punishment Petit v Secretary of State for India [1915] 39 Bom 279 – **D**

Padfield v Minister of Agriculture [1968] 1 All ER 690 – **F**

R v Sussex Confirming Authority ex parte Tamplin and Sons Brewer (Brighton) Limited [1937] 4 All ER 106 – **F**

Judgment

Makame, Ramadhani and Mfalila JJA: This is an appeal by Agro Industries Limited, the appellant, against the ruling of Mapigano J, who upheld the revocation by the President of the United Republic of Tanzania of the rights of occupancy which were granted to the appellant and refused the prayer to quash the revocation order.

Two farms, conveniently known as farms number 6 and number 7, are situated in Msowero Village, Kilosa District of Morogoro Region. These belonged to one Akberali Abdulrasul Dharamsi who mortgaged them for a loan of TShs45 000 from the National Development Credit Agency, the predecessor of the Tanzania Rural Development Bank (hereinafter referred to as the Bank). That was in 1968. Until 1983 the debt had not been liquidated and the mortgager had absconded. So the Bank was, naturally, keen to sell the farms.

Two firms had their eyes on the farms. The appellant company was quick to pursue the legal channels. As early as February 1983 the appellant company approached the Bank for a sale. The Regional Development Director of Morogoro Region gave his consent on 30 July 1983 vide his letter C 30/16/65. The appellant company paid a total of TShs98 880 being the land rent, the debt and interest thereon, and capital gains tax. That was on 6 October 1983 and the deeds of title were given on 8 July 1985.

The other firm was Darbrew Limited. This applied through the Msowero Village Government on 1 November 1983 and were granted the use of the farms on 19 November 1983 vide the letter reference number KL/1322/172. Darbrew immediately took possession and went into cultivation.

Obviously a dispute brew up and Darbrew Limited, petitioned the President on 13 June 1985. The President referred the matter to the Prime Minister on 6 August 1988. The Prime Minister convened a meeting on 29 August 1988 which resulted in the recommendations of 2 September 1985 that the rights of occupancy granted to the appellant company be revoked and new ones be granted to Darbrew Limited. The President gave this consent on 5 September 1985.

The appellant company was advocated for by Mr *Marandu*, learned counsel. He prayed for and we granted him leave to adduce additional evidence. The effect of that evidence was to prove that farm number 7 too met the same fate. The revocation order for this farm was produced as exhibit CAI.

Mr *Marandu* filed a memorandum of appeal containing seven grounds of appeal. As for the first ground he attacked the learned trial Judge for having failed to take into account issues which were not pleaded. These issues were three. Firstly, there was the question that the appellant was not given notice of the President's intention to revoke the rights of occupancy. Second, that the appellant was not given an opportunity to be heard. Lastly, whether the Minister for Lands usurped the powers of the President or whether the President had delegated his powers to the Minister.

Mr *Marandu* pointed out that the learned trial Judge dealt with those issues, but as obiter because "it is now established that evidence and arguments in legal proceedings should be confined to the pleadings". The learned trial Judge cited *Vidyarthi v Ram Rakha* [1957] EA 527.

Mr *Marandu* submitted that the learned trial Judge had erred not to decide on those issues since both parties adduced evidence and made submissions on them and the Court allowed that to be done.

On behalf of the respondent was Mrs *Ndosi*, learned State Attorney. She did not actually address whether or not the learned trial Judge should have decided those unpleaded issues. Instead she dealt with the merits of the issues themselves which form the content of the other grounds of appeal.

Admittedly, the three matters were not pleaded and so contravened the decision of the East African Court of Appeal in *Vidyarthi v Ram Rakha* (*supra*). However, as properly pointed out by Mr *Marandu*, both sides dealt with those issues and so, as correctly submitted by Mr *Marandu* again, the decision of the same Court of Appeal in *Odd Jobs v Mubia* [1970] EA 476 is pertinent. It was decided therein that a Court may base its decision on an unpleaded issue if it appears from the course followed at the trial that the issue has been left to the Court for decision.

We are of the opinion that those three issues were left to the Court for its decision. The learned trial Judge, however, did not dismiss those issues with a wave of the hand. He discussed them at length and rejected them thus signifying his findings.

Admittedly, after making those three determinations the learned Judge went on to remark that: “all that I have stated above are essentially in obiter . . .”.

The reason he gave for saying so was that those were unpleaded issues. With respect we think the learned Judge was wrong to have regarded his decision on the three issues as obiter. So long as he had allowed both counsel to address him on them, then, under the authority of *Odd Jobs v Mubia* (*supra*) he had to conclusively decided them. Therefore those decisions on the three issues were not obiter and can properly be subjects of this appeal.

As for his second ground of appeal, Mr *Marandu* said that Mapigano J erred in holding that the meeting in the Prime Minister’s Office (hereinafter referred to as PMO) amounted to prior notice of the intention of the President to revoke the appellant’s right of occupancy. Mr *Marandu* submitted that at the time of the meeting at PMO, the President had not made up his mind whether to revoke or not to revoke. The learned advocate pointed out that even the minutes of that meeting indicate that. So, he argued, the appellant’s Managing Director, Mr Kimoi, “could not be expected to anticipate or forestall the President’s future state of mind or intentions”. Mr *Marandu* argued further that as the decision to revoke the rights of occupancy was made after that meeting then the President was duty-bound to give the appellant company a notice of his intention. The learned counsel referred us to *Patman Garments Industries Ltd v Tanzania Manufacturers* [1981] TLR 303 at 309.

In reply Mrs *Ndosi* said that the Director of Land Development Services, Mr Mtetewaunga (PW2), had written a letter on 5 July 1984 to the Regional Land Officer, Morogoro, suggesting revocation. That letter, Mrs *Ndosi* pointed out, does not show that it was copied to the appellant company but nevertheless the appellant responded to it on 4 August 1984 and so, she argued, they must have had notice of it.

What Mrs *Ndosi* submitted is true. There was the letter, exhibit A7, from PW2 suggesting revocation and that was contested by the appellant company vide exhibit A8. However, the same PW2, almost a year later, on 27 May 1985

to be precise, wrote another letter (exhibit A9), saying that the Minister had ruled that the farms remain with the appellant company and that Darbrew to be given adequate land to suit their requirement. So even if there was notice of revocation then that notice was waived so to speak. What we are then left with is the meeting of 29 August 1985.

It is true, as Mr *Marandu* said, that that meeting was "basically and merely called to discuss a long outstanding dispute between the appellant company and Darbrew Limited". But then we ask, after the discussion what next? Was the discussion an end in itself or was it a means to arriving at a solution to the dispute? It is obvious to us that the Principle Secretary of PMC would not involve himself in an academic exercise. In fact the minutes are in black and white, that Mr Kimoi, for the appellant company, was asked whether they would be prepared to compensate Darbrew if it were decided that the farms continued to be of the appellant company. The same question was put to Darbrew. These two questions clearly showed that there was a possibility of revocation. The minutes (exhibit A12) go further to record that the stand of the appellant company was that "*hawatakubali shamba lingine badala ya hilo walilokwishapewa* title deed". We are left in no shade of doubt that the issue of revocation was made transparent to the appellant. In our opinion the whole purpose of notice is to afford a party an opportunity to put a case. The appellant had that.

We agree with the learned Judge, therefore, that:

> "The applicant thus knew, or ought to have known, the consequence which might follow an adverse decision by the authority, namely the revocation of their rights over the two farms."

As for the case cited, with respect we find it not relevant to the point at issue but we shall discuss it at the appropriate juncture.

So the second ground of appeal fails.

The third ground of appeal avers that there is no revocation in fact, and that the President merely wrote "*nakubali*" to the minute sent to him from PMO. Mr *Marandu* argued that that was a mere expression of the mind of the President and that he had to actually sign the revocation order to show that he had revoked. Mrs *Ndosi* said that when the President wrote "*nakubali*" to the letter from PMO he signified his decision to revoke the title.

We cannot resist the thought that this is semantics. PMO was instructed by the President to investigate the dispute and they (PMO) wrote to him recommending revocation of the title for two reasons, which are not necessary, divulge for the time being. Then the President wrote "*nakubali*" that is he agreed that the title be revoked. Now we fail to see what Mr *Marandu* is up to. As far as we are concerned the manifestation of the mind of the President can take other forms than just personally appending his signature. The endorsement of "*nakubali*" that is "I agree" is one of those other forms. This ground too fails.

Had the President to sign the revocation order personally? Mr *Marandu* said yes. That was his fourth ground. To him, since the letter from PMO did not suggest to the President that he should direct the Minister for Land to revoke, then the word "*nakubali*" cannot be taken to signify the delegation of the Presidential powers to revoke to the Minister. We understand Mr *Marandu* to be saying that there was no delegation specifically for this revocation order in question.

Mr *Marandu* did not stop there; he also argued that there could not be a general delegation of those powers either. He submitted that the powers under section 10(1) of the Land Ordinance are quasi-judicial and discretionary and so in the absence of express statutory provision there can be no delegation. He referred us to *Halsbury's Laws of England* for the proposition of law. Mr *Marandu* contended, therefore, that the order of revocation signed by the Minister is *ultra vires*.

Mrs *Ndosi* conceded that there is no instrument delegating the powers of the President to revoke rights of occupancy. However, she submitted that section 2 of the Presidential Affairs Act (Chapter 502) Laws of Tanzania permits delegation of presidential powers provided there is no contrary intention appearing in the specific statute, which gives the President the powers, in question. The learned State Attorney submitted that the Land Ordinance provided no such contrary intention and so, she contended the power to revoke is capable of delegation.

To that contention Mr *Marandu* responded that the provisions of section 2 of the Presidential Affairs Act are circumscribed by the clause in section 10(2) of the Land Ordinance which say ". . . if in the opinion of the President . . ."

It appears to us that Mrs *Ndosi* agreed with Mr *Marandu* that there is no delegation of statutory powers without express statutory provisions and that is why she came up with the Presidential Affairs Act. Paragraph 1341 of the *Halsbury's Laws of England* (3ed) provides:

> "Without statutory authority to do so, statutory powers cannot be assigned. Although such powers may, in general, be exercised by the hands of servants, agents or contractors and in the case of corporate bodies, must be so exercised, the question on the proper construction of the enactment conferring the powers and in particular, whether that enactment specifically authorises delegation."

Now there is no provision for delegation in the Land Ordinance and according to Mrs *Ndosi* there is no instrument of delegation that has been given. Does section 2 of the Presidential Affairs Act provide for a general delegation of the functions of the President to Ministers? We think not. That section provides:

> "2. Where by or under any written law, other than the Constitution . . ., any power, duty or function is conferred or imposed on, or is vested in, the President, *the exercise of such power or the performance of such duty or function by the President may, unless a contrary intention appears, be signified under the hand of a Minister*, a junior Minister or a permanent secretary." (emphasis added)

This section merely empowers a Minister to signify "the exercise of such power of the performance of such duty or function by the President". The section does not authorise a Minister to exercise power or perform a duty or a function on behalf of the President.

However, in the present situation the Minister for Lands merely signified the exercise of the powers of revocation of the rights of occupancy by the President as it provided by the above quoted section. We have already said that we are satisfied that the President actually made up his mind to revoke when he minuted "*nakubali*". All that the Minister did was to signify the revocation. In fact just above the signature of the Minister there are three words typed in capital letters: "by Command of The President".

For the sake of completeness and not that it is essential to this judgment, we wish to comment on the distinction which Mr *Marandu* made that the revocation powers of

the President are quasi-judicial and not executive. That distinction is no longer relevant. We have decided so, in *Patman Garments Industries Limited* (*supra*) at 307 and 308.

This ground also fails. There was no delegation or usurpation of the powers of the President. The Minister signed the revocation order merely signifying the exercise of that power by the President.

The fifth ground of appeal was that Mapigano J erred when he held that the Kilosa District Authorities allocated the farms in dispute to Darbrew. The learned counsel pointed out that PW2, Mtetewaunga, who was then the Director for Land Development Services, was not aware of such grants. Mr *Marandu* went further to submit that even assuming that Darbrew were so granted, that allocation was null and void since the District Authority had no such capacity.

He referred us to *Associated Provincial Picture Houses Limited v Wednesbury Corporation* [1947] 2 All ER 68 and *Padfield v Minister of Agriculture* [1968] 1 All ER 690.

Mrs *Ndosi* agreed with Mr *Marandu* and we think there is much weight in that submission. Section 3 of the Land Ordinance has declared the whole of the lands of Tanzania Mainland to be public lands. Then section 4 goes on to vest in the President all public lands and rights over them and that "no title to the occupation and use of any such lands shall be valid without the consent of the President". Section 9(2) provides further that a certificate of a right of occupancy is valid if signed by the Land Officer on behalf of the President. The Kilosa District Authority did not have such powers to grant any right over the two farms to Darbrew or anybody.

This ground therefore succeeds.

The sixth ground of appeal is that the learned trial Judge erred to have found that the revocation of the rights of occupancy granted to the appellant company was in the public interest. Mr *Marandi* stated that the recommendations sent to the President were that as Darbrew is a public enterprise then it is in public interest to protect it.

Mr *Marandu* argued that that reasoning is faulty because first no proof had been adduced to show that Darbew was a public enterprise and secondly there was abundant evidence that Darbrew was a trespasser.

Mrs *Ndosi* replied that Darbrew is a parastatal organisation since the National Development Corporation (NDC) which is owned by the Government had 55% majority shares. She reiterated that the revocation was in the public interest as the revocation order said so.

We feel that we should not be detained by whether or not Darbrew is a public enterprise. Mr *Marandu* conceded that GN 55/80 transferred shares in Darbrew from Lonrho to Tanzania Breweries Limited, a subsidiary of the NDC. We are satisfied that Darbrew is a public enterprise.

Let us come to the real issue: was the revocation in public interest? Maybe before we address ourselves to that question we have first and foremost to determine what public interest is. Unfortunately both learned counsel did not assist us in this regard. So we have to depend on our own research and we have to admit there is not all that much.

The phrase "public interest" was discussed by Law J of the High Court of Tanganyika in *BP Bhatt and another v Habib versi Rajani* [1958] EA 536 where

he held, according to the head note, that to be "in the public interest . . . it is not sufficient that public interest may benefit indirectly or incidentally, if the primary purpose of the application is to benefit the landlord's interest and not that of the public".

The learned Judge relied on *Mawabai Franjee Punishment Petit v Secretary of State for India* [1915] 39 Bom 279 which dealt with the phrase "public purpose" which to the learned Judge means the same as "purpose in the public interest". In the Indian case it was said:

> ". . . The phrase, whatever else it may mean, must include a purpose, that is to say an aim or object, in which the general interest of the community, as opposed to the particular interest of individuals, is directly and vitally concerned."

Yet in *R v Sussex Confirming Authority ex parte Tamplin and Sons Brewer (Brighton) Limited* [1937] 4 All ER 106 at 112 it was said:

> "It is fallacious to say that a condition is not in the public interest, or may not be in the public interest, if it is the case that a great many of those persons who constitute the public are not directly affected by it; and it is equally fallacious to say that a condition cannot be in the public interest if a great many members of the public neither know nor care anything about it."

So what do we understand by an action being in the public interest? We think it is so when looked at objectively with impartial eyes the section is primarily and not incidentally in the interest of the public, which, depending on the matter at issue, may even comprise the individual or individuals concerned, and it matters not whether the public is aware of it or not.

With that understanding in mind, let us see what exactly the President decided by saying "*nakubali*". We have no option but to start at the beginning and that is the letter from PMO.

On 26 June 1986 the Principal Secretary to the President wrote to the appellant company (exhibit A15) saying:

> "*Tarehe* 2 September 1985 *Waziri Mkuu aliwasilisha swala hili kawa Raisi akishauri* Darbrew *wamiliki mashamba hayo kwa sababu zifuatazo:*
>
> (*a*) Darbrew *tayari wanayamiliki mashamba hayo, walikwisha kuvuna msimu mmoja mwaka jana na hivi sasa wanavuna msimu wa pili, wakati Agro Industries hawajafanya kazi yoyote pale. Walikuwa wanasubiri kwanza wapate hati ya kumiliki ardhi ili waende Benki kuomba mkopo.*
>
> (*b*) Darbrew *ni shirika la umma, kwa hivyo katika mashindano ya kumiliki ardhi baina yao na kampuni ya watu binafsi ya Agro Industries, shirika la umma linastahili kupata ushindi.*
>
> *Ukiridhika hivyo, iliyobaki ni kufuta hati ya* Agro Industries *ya kumiliki ardhi hiyo. Uwezo huo Serekali inao kisheria, na nashauri utumike.*"

Then the President wrote "*nakubali*". Thus the President decide to revoke the rights of occupancy of the appellant company because: one, Darbrew was already in possession of the farms and was cultivating them; and two, Darbrew is a parastatal and that in a bid to the ownership of land a parastatal should be favoured against a private firm.

But how did Darbrew come into possession? Admittedly they were allowed to occupy the farms by the village government on 1 November 1983 because there was a big bush which provided refuge for destructive animals. Darbrew then applied for title on 9 May 1984. So they were cognisant of the legal position that the village government could not give title. Five days later, on 14 May 1984, the general manager of Darbrew rang the land development

officer of Morogoro saying that the Bank had rescinded its contract to sell the two farms to the appellant company and that the Bank was going to sell them to Darbrew, (exhibit A3). A copy of that letter from the land development officer to the bank was sent to Darbrew who did not protest their innocence. That was an unabashed lie, which only meant that Darbrew was well aware that the farms were already sold to the appellant who in fact had paid for them as far back as 6 October 1983.

Admittedly since the consent of the Commissioner of Lands had not been obtained the transaction between the appellant company and the bank was an inoperative agreement. But then the title remained with the Bank, the mortgagee, it had not passed to the Village Government. So Darbrew were trespassers and we are satisfied that they knew their status to be so. In the eyes of the law a trespasser is a trespasser be it a public enterprise or a private enterprise or an individual.

So the crucial question is what action is in the public interest: to protect one with a legal title or to protect a trespasser? What is at stake in the sanctity of a legal right, and particularly right to property, against the use of naked force. Which of the two should be protected in the public interest?

We are satisfied that public interest, as we have stated to understand it, requires that legal property rights should be protested against trespassers. Except for these two farms in question, it is also in the interest of Darbrew themselves that legal property rights should be respected and protected.

So the revocation which was done in favour of a trespasser and against a lawful owner can never be in the public interest. So the revocation is null and void because section 10(2) of the Land Ordinance provides:

> "Notwithstanding the provisions of subsection (1) the President may revoke a right of occupancy if, in his opinion, it is in the public interest so to do."

This, we are satisfied, was not done in the public interest.

Admittedly that subsection provides a subjective test that is: in the opinion of the President. In this case that opinion was based on the recommendations of PMO, which did not describe Darbrew in its true colours that it was a trespasser. In fact the President was misled by "Darbrew *tayari wanayamiliki mashamba hayo* . . .". If the President was seized of the full and correct situation he would not, in our opinion, have used his name to protect a trespasser albeit a public enterprise. He would have been of the opinion that that was not in the public interest.

Lastly there is the issue of compensation. This is straightforward. As already said at the meeting called by PMO both the appellant and Darbrew had agreed to pay compensation to the other party should it be so decided. Admittedly the revocation order did not say anything about compensation but that does not mean that it was denied. So the appellant should compensate Darbrew for unexhausted improvements.

This appeal is allowed with costs. The revocation order is quashed. The appellant company still has rights of occupancy over farms 6 and 7 and it shall compensate Darbrew for unexhausted improvements. It is so ordered.

For the appellant:
Mr Marandu

For the respondent:
Mrs Ndosi, State Attorney

American Express International Banking Corporation v Atul

[1990–1994] 1 EA 10 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	27 February 1991
Case Number:	5/85
Before:	Manyindo DCJ, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Notice of motion as pleadings – Effect of failure to sign – Whether such irregularity curable by amendment.

[2] Conflict of laws – Stay of proceedings – Exercise of discretion – Factors to consider.

[3] Jurisdiction of court – Conflict of laws – Concurrent jurisdiction by foreign courts.

Editor's Summary

The appellant, a foreign company that had most of its operations in Singapore, advanced a loan to Scornfloat (Singapore) PTE Limited, a company resident in Singapore. This was secured by the respondent's unlimited guarantee. The respondent was a director of the debtor and also resident in Singapore.

The debtor and guarantor defaulted in the repayment of the loan and the appellant filed suit in Uganda, where the respondent guarantor was resident at the time of suit.

The respondent, in his defence, claimed that Singapore was the proper forum for the suit. The respondent then successfully filed an application to stay the suit and the appellant appealed.

Held – In order for a Court to exercise its jurisdiction to grant or refuse a stay of proceedings on the basis that the matter falls under the concurrent jurisdiction of a foreign court, it will consider the following:

1. The need for the applicant for a stay to satisfy the Court that continuance of the action against him would work injustice because it would be oppressive or vexatious to him no, longer applies;
2. The defendant must satisfy the Court, that there is another forum to whose jurisdiction he is amenable in which justice can be done between the parties at substantially less inconvenience or expense; and
3. The stay must not deprive the plaintiff of a legitimate, personal or juridical advantage which would be available to him if he invoked the jurisdiction of a Ugandan court.

The decision whether to allow or refuse an application for stay of an action is a discretionary one, even though the Court has jurisdiction to try and determine it.

An appellate Judge can only interfere with the exercise of discretion by the judge of first instance:

1. Where the Judge has misdirected himself with regard to the principles in accordance with which his discretion had to be exercised;

2. Where the Judge has taken into account matters which he ought not to have done or has failed to take into account matters which he ought to have done; or

3. Where his decision is plainly wrong. *The Abidin Daver* [1984] 1 All ER 470 followed.

A notice of motion is part of a pleading as defined by section 2 of the Civil Procedure Act. Failure to sign a notice of motion by the applicant or his advocate is an irregularity that can be cured by amendment when no prejudice has been occasioned. *Casteline v Rodrigues* [1972] EA 223 followed.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Castelino v Rodrigues [1972] EA 233 – **F**

SC Baxi v The Bank of India Limited [1966] EA 130

United Kingdom

Abidin Daver [1984] 1 All ER 470 – **F**

Adhiguna Meranti [1986] LRC (comm) 138

Atlantic Star [1973] 2 All ER 175

Logan v Bank of Scotland (2) [1906] 1 KB 140

Macshannon v Rockware Glass Limited [1978] 1 All ER 625

McHenry v Lewis [1882] 22 ChD 397

Peruvian Guano Company v Bockwoldt [1883] 23 ChD

St Pierre v South American Stores (Gath and Chaves) Limited [1936] 1 KB 382

Union Re Carbide Corporation Gos Plant Desaster at Bhopal India December 1984 (UR)

Judgment

Oder JSC: This is an appeal against the order of the High Court of Uganda dated 21 February 1985, allowing a stay of the suit which the appellant had brought against the respondent. The order stayed the suit pursuant to the Court's inherent powers and Order VI, rule 29 of the Civil Procedure Rules on the grounds that it was vexatious and an abuse of the process of the Court.

The appellants are a banking corporation incorporated in the United States of America and carries on business at diverse branches and, in particular, at a branch in Singapore. In 1978 it gave advances and credit to a firm, Scornfloat (Singapore) Pte Limited, carrying on business in Singapore (hereinafter referred to as "the debtors"). Repayment of the advances and credit was secured by a contract of personal unlimited guarantee made between the appellants and the respondent by which the respondent was the guarantor. The respondent was a director of the debtors and was resident in Singapore at the material time.

By 20 April 1983, the debtors owed the appellants UShs302 688 470 (the equivalent of Singapore Dollars 2 270 263-55 at the applicable rate of exchange at the time). Letters from the appellants to the respondent and the debtors demanding payment did not yield results and the indebtedness remained unpaid. Consequently on 3 May 1983, the appellants sued the respondent in Uganda for an alleged breach of the contract of guarantee, claiming repayment of monies owed them by the debtors, together with interest and costs. By then the respondent was resident and allegedly working for them again in Uganda. The respondent filed a written statement of defence to the suit, in effect, enumerating many grounds for his contention that Singapore, not Uganda, was the proper forum for the suit. Some of the grounds were that the cause of action arose in Singapore where the contract of guarantee was to be performed; all the witnesses the respondent would call in support of his case were in Singapore and so it would be impossible to procure their attendance, and expenses for keeping them in Uganda during the trial would be enormous and exorbitant; the dispute between the appellants and the respondent arising out of the contract was governed solely and exclusively by the laws of Singapore which was foreign in Uganda and would require proof; and that the inconvenience of a trial in Uganda would be such as to work a serious and gross injustice upon the respondent amounting to a virtual denial and miscarriage of justice. The written statement of defence also, in the alternative, cited what appeared to be substantive defences to the suit other than those relating to forum; for example, that due to his differences with other directors of the debtors the respondent in December 1979 left Singapore for good; that the debtors, as a company, was restructured and a new managing director appointed with the full knowledge and approval of the appellant; and that it was agreed expressly and/or by necessary implication by the new shareholders and directors of the debtors that the respondent would no longer be liable under the personal guarantee given by him to the appellants in his (the respondent's) capacity as the managing director of the debtors and was released therefrom and discharged from the guarantee; etc etc.

The appellants filed a reply to the written statement of defence joining many issues with the respondent.

After the pleadings had closed, the respondent filed an interlocutory application by notice of motion under the inherent powers of the Court (section 101 of the Civil Procedure Act) and Order VI, rule 29, seeking an order to stay or dismiss the suit for allegedly being vexatious and an abuse of the process of the Court. The application was supported by an affidavit of the respondent in which he stated many of his defences I have already referred to as the reasons and grounds for the application. Kantinti J (now deceased) heard and allowed the application and ordered for a stay of the suit. Hence this appeal.

The memorandum of appeal sets out seven grounds as follows:

1. The trial judge erred in allowing the respondent's application to strike out the suit or stay the proceedings as the application was fundamentally defective and did not conform to the rules of practice and procedure of the trial Court.

2. The trial judge failed to realise that Uganda, where the respondent was residing, working and/or carrying on business and holding an appointment with the Bank of Uganda was the best forum where to file the suit against the respondent.

3. The trial judge failed to realise that Singapore, a country which the respondent, in his own admission in the pleadings, had left for good and had severed all connections with and did not have assets therein was not in any circumstances a suitable forum for anyone to file a suit against him.

4. The trial judge erred in failing to find that the suit against the respondent was mainly governed by the contract of guarantee and other correspondence demanding payment which were already on the Court's record and therefore further erred in accepting the respondent's argument that numerous witnesses and documents not before the Court would have to be obtained from Singapore.

5. The trial judge erred in holding that the law to be applied is the Law of Singapore since the suit against the respondent centred mainly on the contract of guarantee executed between the appellant and the respondent which was governed by the general principles of common law which are applicable both in Uganda and Singapore, and not exclusively by the Law of Singapore.

6. The trial judge misdirected himself on the law governing enforcement of judgments and decrees obtained outside Uganda. Had he not so misdirected himself he would have found that had the suit against the respondent been filed in Singapore, such a suit could not be entered by the Courts of Singapore and judgment obtained in that country could not be enforced against the respondent in Uganda.

7. The trial judge exercised his discretion wrongly when he ordered the suit to be stayed without directing any of the parties on the steps to be taken to resolve the dispute and his decision constituted a miscarriage of justice to the appellant.

I think that ground one should be considered alone and the other grounds together.

The respondent's notice of motion to strike out or stay the suit was not signed by his counsel or himself. At the hearing of the motion, the appellant's counsel took a preliminary objection on the grounds that as the application was not signed, it was fundamentally defective. The learned trial Judge overruled the objection and proceeded to hear the motion. Mr *Mugerwa*, the learned counsel for the appellant, submitted that the learned trial Judge's decision was wrong as being contrary to Order 6, rule 26 of the Civil Procedure Rules. This rule requires that every "pleading" shall be signed by an advocate or by the party if he sues or defends in person.

I agree with the learned counsel, that the definition of the word "pleading" in section 2 of the Civil Procedure Act is not exhaustive and that a notice of motion appears to be a "pleading" under that section. As required by rule 25 of Order 6 it would appear, therefore, that a notice of motion should be signed by the advocate or the applicant. Though, according to the wording of that rule, the requirement is a mandatory one, it is one in which, I think, an irregularity arising therefrom can be cured by an amendment when no prejudice has been occasioned.

As the Court of Appeal for East Africa said in *Castelino v Rodrigues* [1972] EA 233:

> "That rules are made to be observed, but irregularities of form may be ignored, or cured by amendment when they have occasioned no prejudice. In these matters of form, Courts are much less strict than formerly."

In the instant case, the irregularity was one of form. Admittedly the motion was not signed by the respondent or his advocate, but it was clearly stated at the bottom that:

> "This notice of motion was taken out, drawn and filed by M/S Singh and Treon, Advocates PO Box 6305, Kampala."

It was, therefore, clear on the notice of motion, so far as the suit was concerned, that the application was drawn and filed by a firm of advocates though they did not sign it. It was not stated that the firm of Singh and Treon were the advocates for the respondent in the matter, but that fact, I think, could be inferred from a reading of the notice of motion as a whole and from the fact that the notice of motion, as stated on its face, was supported by the respondent's affidavit, apparently filed together with the notice of motion. I think that the appellants, the Court or any other who might be interested, were left in no doubt as to the identity of the applicant or of his advocates regarding the application under consideration. In the circumstance, I think that one of the objectives of Order 6, rule 26 which appears to be that the identity of the authors of pleadings should be known for purposes of service of process and accountability for such pleadings was fulfilled. Moreover in the instant case, no prejudice appears to have been occasioned to the appellants by the notice of motion not having been signed by the respondent or his advocate. In the result I think that ground one of the appeal should fail.

The combined effect of Mr *Mugerwa*'s argument regarding grounds two to seven, as I understand it, was an attack on the learned Judge's application of certain tests on which he based his decision that the suit should be stayed. These were tests which the House of Lords in its majority decision laid down in the important case of the *Atlantic Star* [1973] 2 All ER 175. After citing the headnote in the report of that case the learned trial Judge concluded as follows:

> "Applying these principles to the present application, I find as was submitted by Mr Guntama, counsel for the applicant/defendant, the plaintiff has a right to bring the action in Uganda because the defendant is here. The Court in exercising discretion has to bear in mind two factors namely:
>
> 1. Has the plaintiff any real advantage in insisting that the suit be heard in that particular court? and
> 2. Would it work an injustice upon the defendant if he was compelled to defend himself in the Court where he was sued and whether it is unjust to the defendant to suffer undue inconvenience and expense.
>
> I also find from the submissions, that apart from the physical presence of the defendant in Uganda all the witnesses, documents and exhibits are in Singapore. The entire cause of action arose in Singapore. The plaintiff company has a branch in Singapore. The borrower was in Singapore. Whatever dealings there were in that country, the law to be applied is Singapore law. The transaction took place in Singapore. I find that the disadvantage to the defendant in having the suit heard in Uganda far out-weigh the advantage to the plaintiff."

As far as I am aware, the principles on which our courts may stay or dismiss suits under the inherent jurisdiction, or Order 6, rule 29 of the Civil Procedure Rules on application by a defendant in a case where a foreign court has a concurrent jurisdiction, appear to have been considered so far only in the case of *SC Baxi v The Bank of India Limited* [1966] EA 130. In that case the appellant maintained a bank account with the respondent's branch in Bombay. When he was in Bombay in 1962, he issued a cheque on his current account. The cheque was dishonoured in the mistaken belief that the appellant's account was a "Foreign Non-Resident's Account". Because the cheque was dishonoured the appellant failed to complete the purchase of a house. Subsequently, on his

return to Uganda, he filed a suit against the Bank of India and served the plaint on its Kampala Branch, claiming damages for loss and expenses incurred by reasons of the respondent's failure to pay the said cheque. The respondent applied by notice of motion under Order 6, rule 29 and under the Court's inherent power for the suit to be dismissed as being vexatious and an abuse of the process of the Court. The application was supported by an affidavit from the respondent's Kampala branch manager. The trial Judge found that the inconvenience which would result in trying the suit in Kampala, would be vexatious and, relying on matters raised in the Manager's affidavit, and not on the pleadings, dismissed the suit pursuant to Order 6, rule 29. The appellant thereupon appealed on the grounds, *inter alia,* that the trial Judge had failed to consider that the appellant was resident in Uganda and could only proceed to India for the purpose of litigation at considerable inconvenience and expense. The Court of Appeal for East Africa, applying the observations of Sir Gorrel Barnes P, in *Logan v Bank of Scotland (2)* [1906] 1 KB 140, dismissed the appeal, holding that to have allowed the suit to proceed in Uganda would have worked serious injustice upon the respondent out of proportion to the inconvenience which the appellant would have suffered if he had brought his action in Bombay.

Since the *SC Baxi* case (*supra*), there have been certain important decisions carrying forward the development of the law in this regard in some common-law jurisdictions which, in view of the scarcity of relevant authorities in our own jurisdiction are, I think, of persuasive value regarding principles which should apply when defendants such as in the instant case, seek for a stay or dismissal of suits on grounds of concurrent jurisdictions by foreign courts over the same subject matter as are being litigated in Uganda. One such decision is *The Atlantic Star* (*supra*) a case which, though decided on a majority basis by the House of Lords, is regarded as a landmark in the overall landscape of the development of the law in this regard. In that decision the House of Lords rejected the application in England of the Scottish doctrine of *forum non-conveniens* which, at the time, would have meant a radical departure from the relevant law and rules developed in England for over a century, culminating in the famous statement of Scott LJ, in *St Pierre v South American Stores (Gath and Chaves) Limited* [1936] 1 KB 382 at 414. Scott LJ had said:

> "The rule about a stay . . . so far as relevant to this case may, I think, be stated thus; (1) A mere balance of convenience is not a sufficient ground for depriving a plaintiff of the advantage of prosecuting his action in an English court if it is otherwise brought. The right of access to the King's court must not be lightly refused. In order to justify a stay, two conditions must be satisfied, one positive and the other negative, (*a*) the defendant must satisfy the Court that the continuance of the action would work an injustice because it would be oppressive or vexatious to him or would be an abuse of the process of the Court in some other way; and (*b*) the stay must not cause an injustice to the plaintiff. On both the burden of proof is on the defendant. These propositions are, I think, consistent with and supported by the following cases: *McHenry v Lewis* [1882] 22 ChD 397; *Peruvian Guano Company v Bockwoldt* [1883] 23 ChD; *Hymanas Helm*; *Thorton v Thorton*; and *Logan v Bank of Scotland* (2) [1906] 1 KB 140."

In the *Atlantic Star* (*supra*) Lord Wilberforce thought that the statement of Scott LJ, I have referred to should not be too closely and rigidly applied as doing so might defeat the spirit which lay behind it. Particularly the words "oppressive"

and "vexatious" should be considered as pointers rather than boundary marks, and interpreted more liberally. The learned Lord then went on to say:

> "In my opinion, the passage cited embodies the following principles – all of which have been discussed in earlier authorities.
>
> First, a plaintiff should not lightly be denied the right to sue in an English Court, if jurisdiction is properly founded. The right is not absolute. The courts are open, even to actions between foreigners relating to foreign matters. But they retain a residual power to stay their proceedings . . .
>
> Secondly, in considering whether a stay should be granted the Court must take into account (i) any advantage to the plaintiff; (ii) any disadvantage to the defendant; this is the critical equation, and in some cases it will be a difficult one to establish. Generally this is done by an instructive process that is what discretion, in its essence, is. But there are perhaps some elements which it is possible to disengage and make explicit. In the first place, I do not think it would be right to say that any advantage to the plaintiff is sufficient to prevent a defendant from obtaining a stay. The cases say that the advantage must not be "fanciful" – that a "substantial advantage" is enough. I do not even think that one can say that the advantage must be substantive (that is in the existence in English Law of some more favourable substantive rules that would apply elsewhere) rather than adjectival, though more weight might be given to the former. An example given by Lord Denning MR illustrates this; a motor collision in Italy between two Italian citizens one of whom catches the other here and sues him. Lord Denning MR says that his would be purely Italian and so (inferentially) should be stayed. But if this is right, it must follow that advantage to a plaintiff is not in itself decisive for the suit may well have been brought because our courts give higher damages, or damages under broader heads; so if a stay is to be granted it must consider the nature of the case and the disadvantage to the defendant. A *bona fide* advantage to a plaintiff is a solid weight in the scale, often a decisive weight, but not always so.
>
> Then the disadvantage to the defendant, to be taken into account at all this must be serious, more than the mere disadvantage of multiple suits; to prevail against the plaintiff's advantage, still more substantial – how much more depending how great the latter may be. The words "oppressive" or "vexatious" point this out as indicative of the degree and character of the prejudice that must be shown. I think too that there must be a relative element in assessing both advantage and disadvantage – relative to the individual circumstances of the plaintiff and defendant."

The next significant development of the law in this regard was indicated in *Macshannon v Rockware Glass Limited* [1978] 1 All ER 625. This was a case in which the plaintiff, a Scottsman living in Scotland, was injured in a Scottish factory of the defendants – a company registered in England. The defendants applied for the action to be stayed, leaving the plaintiff at liberty to commence proceedings in Scotland. They contended, *inter alia*, that the plaintiff had failed to offer any reasonable justification for bringing his action in England rather than in Scotland, which was the natural forum; and that if the defendants had to contest the action in England they would suffer substantial extra inconvenience through their work being unduly interrupted by witnesses in their employment in Scotland attending the trial and substantial additional expenses in respect of their witnesses' transport and accommodation. But the defendant's application for a stay was dismissed by the trial Court. They appealed to the Court of Appeal which by a majority affirmed its decision. On appeal, the House of Lords unanimously held that in order to obtain a stay of proceedings the defendant had to show that there was another forum in which justice would be done between the parties and that to refuse a stay would produce prejudice. He was under no duty to show that the institution of proceedings in England was

vexatious or oppressive. Where England was not the natural forum and the plaintiff offered no reasonable justification for his choice of forum in the shape of some personal or juridical advantage which could be objectively demonstrated, the Court could grant a stay if the defendant merely established that he would be involved in substantial inconvenience and unnecessary expense if the proceedings were allowed to continue in England.

Where England was not the natural forum and the plaintiff established some real advantage to him in bringing the action in England, the Court would grant a stay only where it was satisfied that on balance, the advantages to the defendant of continuing the proceedings in England outweighed the advantage to the plaintiff and it would be unjust to refuse a stay.

The *McShannon* case (*supra*) effectively laid to rest the distinction which previously existed between the English law on the one hand and the Scottish doctrine of *forum non-conveniens* on the other, thus bringing English Law in this regard nearer to Scottish Law, and what obtains in some American Jurisdictions, an example of which is to be found in the decision in the recent case of *Re Union Carbide Corporation Gos Plant Disaster at Bhopal* India December 1984 (UR). In that case court actions in the state of New York by victims of a gas explosion which had occurred at the Bhopal Plant in India of an American multinational company were dismissed by a US District Court on the grounds of *forum non-conveniens*.

The *Macshannon* case (*supra*) also reduced to significance the requirement of "vexation" or "oppression" as conditions which must be proved by a defendant seeking a stay.

Next, I shall refer to the case of *The Abidin Daver* [1984] 1 All ER 470 firstly for the tests to be applied in deciding an application for stay of the nature under consideration in the instant case; and secondly, for the principles upon which an appellate Court may interfere with the exercise by a Court of first instance of its discretion to grant such a stay. The *Abidin Daver* (*supra*) like *The Atlantic Star* (*supra*) was a case arising out of a collision at Sea between two ships. The collision had occurred in the Bosphorus in Turkey between the Cuban plaintiffs' vessel and the Turkish defendants' vessel.

Consequently, the defendants commenced proceedings in Turkey for damages against the plaintiffs. Subsequently, the plaintiffs served a writ on a sister ship of the defendants' vessel in England and brought an action *in rem* in the admiralty Court against the defendants in respect of the collision. The defendants applied for a stay of the proceedings in the admiralty court. The judge stayed the proceedings on the grounds that there were in existence other proceedings in the Turkish Court; that the litigation between the parties could be more conveniently tried in the Turkish Court; and that the plaintiffs could not be deprived of any juridical advantage if the proceedings in the English court were stayed, since an undertaking had been offered by the defendants to provide security for any cross-claim that the plaintiffs might decide to make in the Turkish Court. The plaintiffs' appealed to the Court of Appeal, which allowed the appeal and removed the stay on the grounds that mere balance of convenience was not a sufficient ground for depriving the plaintiffs of the advantage of pursuing their action in the English Courts and the fact that there was a claim by the defendants against the plaintiffs pending in Turkey was not of itself a bar to the plaintiffs bringing their claim in England. On appeal by the

defendants to the House of Lords, it was unanimously held that where a plaintiff wished to pursue his claim in the English Courts despite the fact that there was already an action between the plaintiff and the defendants pending in a foreign jurisdiction, which was a natural and appropriate forum for the resolution of the dispute between the parties, the Court ought to exercise its discretion to stay the English action unless the plaintiff established objectively by cogent evidence that even-handed justice might not be accorded to him in the foreign jurisdiction or that there was some personal or judicial advantage only available to him in the English action and of such importance that it would be unjust to deprive him of that advantage. Although the mere balance of convenience or the mere disadvantage of a multiplicity of suits could not, of themselves, be decisive in tilting the scales, a strong or an overwhelming balance of convenience of a multiplicity of suits involving serious consequences with regard to expenses and other matters might easily, and most probably would, tilt the scales. On the balance of convenience, there was an overwhelming case of the English proceedings to be stayed, since Turkey was the country with which the matter litigated had the closest connection and was also the natural and appropriate forum from the point of view of convenience and expense.

Finally, I need refer to only one other case in another common-law jurisdiction as an example of a decision influenced by the principles contained in the decisions I have already referred to. This is the *Adhiguna Meranti* [1986] LRC (comm) 138. In that case the owners of cargo lost on a vessel grounded in the territorial waters of Taiwan sued the shipowners in the Court of Hong Kong for damages for negligence. The shipowners applied that the proceedings be stayed on the ground that the Court of Jakarta, Indonesia, was the most natural and convenient forum for resolutions of the disputes between the parties. It was held that though the defendant had established that Indonesia was the natural and appropriate forum and that justice would be done between the parties at substantially less inconvenience in Indonesia because, in the main, most of those who would have to give evidence were in Indonesia and trial there would involve much less use for translation of evidence, the Court still had to consider where the balance of convenience lay, and in particular, whether the plaintiffs would be deprived of a legitimate personal or juridical advantage available to him in Hong Kong if the stay were granted.

The court, having concluded that a trial in Indonesia would deprive the plaintiffs of the benefit of the ship’s limit applicable under the Merchant Shipping Acts (applicable in Hong Kong); the entitlement to have the costs assessed at the conclusion of trial by the taxing master of the Court of hearing; and the entitlement to have the rate of interest to be applied to damages fixed at a rate determined by the trial Judge in the light of prevailing Hong Kong rates during the relevant period, the stay sought was refused.

In my view, the combined result of the cases I have referred to so far as the principles governing the exercise by a Court in this country of its jurisdiction to grant or refuse a stay for the reasons under consideration are concerned would be as follows:

First, the need for an applicant for a stay to satisfy the Court that the continuance of the action against him would be to him an injustice because it would be oppressive or vexatious to him, no longer exists. In the *Atlantic Star* (*supra*) it was said that the words “oppressive” and “vexatious” were not terms

of art and must be given a much broader and much less rigid sense than had been given in the past. In *MacShannon v Rockware Glass Limited* (*supra*) the process in the development of the law which had began in the *Altantic Star* was carried a long step further; it was said that it would be better for the future, in order to avoid confusion, to get rid altogether, in the formulation of the relevant principles of the words "oppressive" and "vexatious, and with them of the approbrious concepts which their ordinary and natural meaning necessarily evoked. In the instant case the application for a stay was founded on grounds of the suit allegedly being "vexatious" and "abuse of the process of the Court". I think that the latter expression, like the former, should be given a liberal interpretation in the consideration by our courts of applications for stay such as the present one.

Second, in order to justify a stay two conditions must be satisfied, one positive and the other negative:

(*a*) The defendant must satisfy the Court that there is another forum to whose jurisdiction he is amenable in which justice can be done between the parties at substantially less inconvenience or expense, and

(*b*) The stay must not deprive the plaintiff of a legitimate, personal or juridical advantage which would be available to him if he invoked the jurisdiction of a Uganda Court.

Third, the exercise of the Court's discretion in any particular case necessarily involves the balancing of all the relevant factors on either side, those favouring the grant of a stay on the one hand, and those militating against it on the other.

Such balancing may be a difficult process and some cases may be very near the line. The decision whether to allow or refuse an application for a stay of an action, even though the Court has jurisdiction to try and determine it, is a discretionary decision for the Judge of first instance to whom the application is made. It follows that, where the trial Judge has exercised his discretion in one way or the other, the grounds on which an appellate Court is entitled to interfere with the decision which he has made are of a limited character. It cannot interfere simply because its members consider that they would, if themselves sitting at first instance, have reached a different conclusion. It can only interfere in three cases:

(1) Where the Judge has misdirected himself with regard to the principles in accordance with which his discretion had to be exercised;

(2) Where the Judge, in exercising his discretion, has taken into account matters which he ought not to have done or has failed to take into account matters which he ought to have done; or

(3) Where his decision is plainly wrong. See *The Abidin Daver* (*supra*).

I now turn to consider the application of the above principles to the instant case and how, in the circumstances, the learned trial Judge exercised his discretion by granting a stay of the proceedings before him. First, it is evident that the dispute giving rise to the action could be litigated in both jurisdictions, namely Singapore and Uganda. Singapore, in my view, was the natural forum, being the forum with which the action had the most real and substantial connection. It was where:

(*a*) the contract of guarantee was made, and was to be performed; the cause of action arose;

(*b*) the debtors (as the principal debtors under the contract of guarantee) had a registered office and carried on business;

(*c*) the advances were to be repaid; the collateral securities including the charge upon the trade goods against which the advances were made were provided and realisable;

(*d*) the respondent as the guarantor under the contract and the managing director of the debtors was resident at the material time;

(*e*) many witnesses for both parties would have come from in the event of the action reaching a trial;

(*f*) and was the jurisdiction whose law governed the contract – the contract having been made there and being silent on what law applied.

It was thus the appropriate forum from the point of view of convenience and expenses for both the parties. All these and other factors are what the learned trial Judge, rightly in my view, regarded as jurisdiction for Singapore as the forum in which the action ought to have been brought.

However, by virtue of certain statutory provisions the dispute was also actionable in Uganda due to the respondent being resident and employed for gain in this country at the time the suit was commenced. Section 3 of the Judicature Act of 1967 confers unlimited Civil and Criminal Jurisdiction on the High Court of Uganda over all persons in this country; and under section 15 of the Civil Procedure Act (Chapter 65) an action may be brought against a defendant if he actually and voluntarily resides or carries on business or personally works for gain in Uganda.

Many of the factors I have referred to as pointing to Singapore as the natural forum for the action would also work injustice upon the respondent if he were compelled to defend it in Uganda. The relevant part of is affidavit in support of the application for a stay states as follows:

> "11. All the witnesses I will have to call in support of my case are in Singapore and it will be impossible to procure their attendances and keeping them in Uganda during the trial which is bound to be long and protracted and in any event expenses involved will be enormous and exorbitant.
>
> 12. The present dispute between the parties is governed solely and exclusively by the laws applicable in Singapore, and not Uganda and further more the laws of Singapore is foreign law in Uganda and will require proof.
>
> 13. The inconvenience of a trial before this Court will be such as to work a serious and gross injustice amounting to virtual miscarriage of justice."

In the circumstances, I think that the respondent satisfied the condition that there was another forum, namely, Singapore, other than Uganda, to whose jurisdiction he was amenable and in which justice could be done between the parties at substantially less inconvenience or expense. However, that was not the end of the matter, since the decision of whether or not to grant a stay involves the balancing of all relevant factors on either side. The interests of the appellants, therefore, had to be balanced on the scale of the Court's discretion as much as those of the respondent. It follows, therefore, that the respondent had to satisfy a second condition before a stay could be granted that is he had to show that a stay would not deprive the appellant of some legitimate, personal, or juridical advantage which would be available to him if he invoked the jurisdiction of the Courts in Uganda. This, in my view, the respondent failed to do.

Now, what is that advantage of which the appellant would be deprived by a stay being granted? It is the appellants' juridical right to enforce a judgment in their action against the respondent. This is a crucial advantage and the only objective of the action.

If they are unable to enforce such a judgment, then the Court action will have been in vain. As it is, the stay granted has had the effect of depriving them of that advantage. This is because, while a judgment of the Court in Uganda is enforceable against the respondent due to his residence and gainful employment here, a judgment of the Singaporean Court is not enforceable against him for the following reasons:

Firstly, as stated in his own written statement of defence and the affidavit in support of the application for a stay, the respondent has left Singapore for good. It is the appellants' contention that he has no assets in that country which could be realised to satisfy a decree passed by a Singaporean Court – contention which, on the facts and circumstances of this case, appears to be justified.

The second impediment to the appellant's ability to enforce a Singaporean Court decision against the respondent in Uganda is a legal one. There appear to be three statutory obstacles in this regard. The first one concerns the issue of proof of foreign judgments in the Courts of Uganda. Mr *Kateera*, learned counsel for the respondent, submitted that at common law the appellants could found a suit against the respondent in the Courts of Uganda on a judgment obtained in Singapore. According to the learned counsel all that the appellant would need to do is to attach a copy of the Singaporean judgment to the plaint in the suit in Uganda, whose court would then simply enter judgment in favour of the appellant without having to investigate into the merit of the Singaporean judgment. With respect the position, I think, does not appear to be that simple, because the scenario as painted by the learned counsel would be subject to the provisions of section 9 of the Civil Procedure Act (Chapter 65), as judgment of a Singaporean Court would be a foreign judgment for the purposes of that Act. Section 9 states as follows:

> "A foreign judgment shall be conclusive as to any matter there by directly adjudicated upon between the same parties or between parties under whom they are any of them claim, litigating under the same title except:
>
> (*a*) Where it has not been pronounced by a Court of competent jurisdiction;
>
> (*b*) Where it has not been given on the merits of the case;
>
> (*c*) Where it appears on the face of the proceedings to be founded on an incorrect view of international law or refusal to recognise the law of Uganda in cases in which such law is applicable;
>
> (*d*) Where the proceedings in which the judgment was obtained are opposed to natural justice;
>
> (*e*) Where it has been obtained by fraud;
>
> (*f*) Where it sustains a claim founded on a breach of any law in force in Uganda."

In the light of the provisions of section 9(*b*) only a Singaporean judgment given on merit would be accepted as conclusive in Uganda. Applied to the instant case it would mean that even assuming that all the other parts in the section were passed by a judgment obtained against the respondent in Singapore, such a judgment would be accepted as conclusive without further proof by Courts of Uganda only if it had issued from a trial of the case on merit. A judgment given in default of appearance or defence, for instance, would not do. Such an outcome depended entirely on the voluntary conduct of the appellant. He would not be compelled to defend or admit the appellants' claims in such a suit, especially as he was outside the jurisdiction of the Singaporean Courts.

The second legal impediment is to be found in the statutes which govern the enforcement of foreign judgments in Uganda, namely, the Reciprocal Enforcement of Judgments Act (Chapter 47) and the Foreign Judgments

(Reciprocal Enforcement) Act (Chapter 48). The first of these statutes was intended to facilitate the enforcement in Uganda of judgments made in commonwealth countries. But under section 6 thereof it applies only to those Commonwealth countries to which, due to reciprocal arrangements with Uganda, the Minister by statutory order has extended the Act. Only one statutory order appears to have been made so far, namely Statutory Instruments 47–2, which lists seven states to which the application of the Act has been extended. Singapore is not one of them.

The second of these statues provides for enforcement in Uganda of judgments given in foreign countries (including Commonwealth countries, in view of the provisions of section 9 thereof) which accord reciprocal treatment to judgments given in Uganda. The application of the Act is limited only to those foreign and Commonwealth countries to which the Minister has by statutory order extended the Act under the provisions of sections 3 and 9 thereof. No such statutory order for extension of the Act has yet been made. Consequently the three statutes I have referred to would not assist the appellants to enforce in Uganda a successful judgment obtained against the respondent in Singapore in this regard. On the contrary they would bar them from doing so.

In his order granting the respondent's application for a stay the learned trial Judge failed to consider the juridical advantage of which the respondent would be deprived by such a stay, which I have discussed above. Consequently he granted a stay without taking into account all the matters which he ought to have done. Had he done so he would have come to a different conclusion. This, in my view, was a fatal error, for which this appeal must succeed.

The order staying the suit is set aside. It is ordered that the case be remitted to the High Court for trial. The appellant shall have the costs of the appeal. The costs of the lower Court shall abide the trial.

Manyindo DCJ and Platt JSC concurred in the judgment of Oder JSC.

For the appellant:
Mugerwa

For the respondent:
Katera

Amolo v Republic
[1990–1994] 1 EA 22 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 June 1991
Case Number:	31/91
Before:	Hancox CJ, Masime JA and Omolo AJA
Sourced by:	LawAfrica

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[1] Criminal law – Dock identification – Attempted robbery with violence – Accused fleeing from scene of crime with home-made gun – Value of dock identifications – Principles restricting dock identifications – Whether other evidence sufficient to justify conviction – Sentence – Whether Court of

Appeal can restore sentence erroneously reduced on first appeal – Section 297(1) and (2) – Penal Code (Chapter 63) – Section 361 – Criminal Procedure Code (Chapter 75) – Section 4 – Firearms Act (Chapter 114).

Editor's Summary

The complainant and her sister had returned with their children from a fair to their pick-up vehicle which they had left at the edge of the fairground. The time was shortly after midday. As they were entering the pick-up a man approached and demanded the keys of the vehicle, pulling a home-made gun from his jacket and pointing it at the complainant as he did so. In the course of a struggle between them the gun fell on the ground and went off. The man ran towards a nearby hotel, still brandishing the gun, and was intercepted by two police officers, one of whom shot him in his hand. Both police witnesses identified him as the appellant.

A polythene paper containing the gun, a spent cartridge and a live bullet in the gun which was found in the appellant's pocket, was duly submitted for examination but the ballistics evidence was inconclusive, save that the items were a firearm and ammunition respectively. The appellant was charged in three counts with attempted robbery with violence and with possession of a firearm and of ammunition without licence. At the police station and in Court both the complainant and her sister identified the appellant in the dock as their assailant. The trial Magistrate accepted the identifications, found that the case was overwhelming against the appellant, convicted him on all three counts and sentenced him to 13 years' imprisonment for attempted robbery and six years on each of the other two charges, to run concurrently. On first appeal the Judge held that the eye-witnesses had had ample time on broad daylight to see and recognise the appellant. He dismissed the appeal, but reduced the sentence on count one from 13 to 7 years. On second appeal, the appellant, *inter alia*, challenged the dock identifications by the complainant and her sister, adding that during the incident they would have been in a state of fear and therefore could be mistaken, and that no identification parade was held.

Held – Following *Gabriel Njoroge v Republic* [1987] 1 KAR 1134 visual identification must be treated with the greatest care and ordinarily a dock identification alone should not be accepted unless the witness has in advance; given a description of the assailant, identified the suspect on a properly conducted parade and, in the instant case, though there were concurrent findings of fact neither the judge nor the magistrate had dealt with the issue of dock identification.

However, the sequence of the events followed so swiftly upon another that it was clear beyond reasonable doubt that the attacker was the same person who was intercepted by the two police brandishing a firearm and possessing one live round of ammunition, and the conviction was therefore safe.

The Judge erred in reducing the sentence because he felt inclined to do so. An appellate Court may only vary a sentence if the trial Judge has acted on wrong principles, which was not the case here. Accordingly, notwithstanding the provisions of section 361(1)(*a*) of the Criminal Procedure Code. The trial Court's sentence would be restored.

Appeal dismissed.

Cases referred to in judgment

("**A**" means *adopted*; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**"

means *disapproved*; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Gabriel Njoroge v Republic [1987] 1 KAR 1134 – **F**

Joseph Ngumbao v Republic [1991] 2 KAR 212

United Kingdom

Republic v Turnbull [1976] 3 All ER 549

Judgment

Hancox CJ, Masime JA and Omolo AJA: The appellant was charged with one other person, who was acquitted by the trial Magistrate, with attempting robbery with violence contrary to section 279(2) of the Penal Code. He was also charged separately with being in possession of a firearm and ammunition under section 4(2)(*a*) and (3) of the Firearms Act (Chapter 114). These offences formed counts two and three of the original charge sheet.

The facts giving rise to this second appeal are that on 26 March 1989, shortly after midday, two ladies took a group of children to the funfair, which was taking place at the Kenyatta Sports Ground in Kisumu, near the Casino and the Imperial Hotel. They parked their pick-up, a Peugeot 504 (KXY 493), presumably in a parking lot, near the fair ground and locked it. It belonged to the husband of the first lady, Connie Adhiambo, who was the complainant on the first count.

Some two hours later they returned to the pick-up with the children and had just settled them in, three in the driver's cab and four in the rear or open part of the vehicle, when a man whom they identified as the appellant approached the driver's side and asked for a lift to Muhoroni. When this was declined he demanded the keys to the pick-up and then pulled out of his jacket a home-made pistol, which was the subject of count two, and pointed it at Connie Adhiambo. On the pretext of complying with the demand she came out of the pick-up, grappled with the man and succeeding in making him drop the gun on the ground. In the course of the further ensuing struggle the gun went off and the appellant then ran in the direction of the Imperial Hotel, pursued by a section of the crowd at the sports ground. The second lady, Pascalia Achieng, the sister of the first, gave an account which agreed in all material respects with that of the complainant, remembering that she was seated in the passenger's seat in the cab of the pick-up and observing these events from the other side of the vehicle.

Meanwhile, the two police officers, Senior Sergeant Mwangi Macharia and PC Joseph Maiyo, who were sitting on the Mvuli terrace of the Casino, were attracted by the sound of the disturbance and shouts of "*mwizi*" by the pursuing crowd. They moved to intercept a man running along a murram path between the buildings. The sergeant drew his own gun and ordered the man to stop, at which he levelled the home-made gun at the sergeant who shot him in the right arm, that is the one holding the gun. After a few steps the man fell and was arrested and the gun retrieved. This, an empty cartridge in the home-made gun, and another bullet wrapped in polythene which was found in the appellant's pocket, were duly submitted to the ballistics expert, Donald Mugo, who

testified as to his technical experience totalling 19 years in the handling of firearms and ammunition. He test-fired the live bullet found in the appellant's pocket, but the markings thereon were insufficient for him to say positively that it matched the home-made gun. He was in no doubt however that the gun and the live round were respectively a firearm and ammunition within the meaning of the Firearms Act. That conclusion was never challenged and the case for the appellant proceeded on the issue of identification only.

The appellant denied the charges before the magistrate, and these denials were rejected. In his memorandum of appeal, both to the High Court and to this Court, and in his additional memorandum handed in during the hearing of the appeal, the appellant has attacked the evidence of his identification as the assailant, pointing out, *inter alia*, that the identifications were all "dock identifications", that the witnesses who did so were "under fright" at the time, that no identification parades were held, and that there was no finger-print or other independent evidence to connect him with the crime.

The narrative of the evidence-in-chief of each of the first four witnesses at this point was respectively as follows:

> "PW1 'it was that first accused' (Identified)
>
> PW2 '. . . (It) is that man' (first accused identified)
>
> PW3 'That man the very one whom I shot when he aimed to shoot me' (accused number 1 identified)
>
> PW4 'He is that first accused person' (first accused identified)."

There can be very little doubt that the first two of these constituted dock identifications, as understood in many decisions, both here and in the United Kingdom, in the past two decades. By themselves they would probably not satisfy the guidelines laid down in *Republic v Turnbull* [1976] 3 All ER 549 and applied in Kenya both in the High Court and, quite recently, by this Court in *Joseph Ngumbao Nzaro v Republic* [1991] 2 KAR 212. In the earlier case of *Gabriel Njoroge v Republic* [1987] 1 KAR 1134, Platt JA, delivering the judgment of the Court, said that the evidence of identification cannot, as it should, be tested with the greatest care unless the witness or witnesses had given a description of the accused in advance, and his or their ability to identify was tested on a properly conducted identification parade.

The reason for the Courts' reluctance to accept a dock identification is part of the wider concept, or principle, of law that it is not permissible for a party to suggest answers to his own witness, or as it is sometimes put, to lead his witness. Taking this a stage further, the reason for the rule against leading a witness is that to do so would clearly detract from the veracity of the evidence given and reduce its value. For it is manifest that in all criminal cases, save perhaps a few company, by-law or minor traffic prosecutions, the accused person stands in the dock of the Court. Consequently, it is self-evident to the witness that the person standing in the dock is the one whom the prosecution desires to be identified. If, however the procedure outlined in *Njoroge*'s case (*supra*) is followed, that danger is eliminated, or at least, much reduced.

Neither the magistrate nor the learned first appellate Judge referred to this aspect of the appellant's identification despite his having raised in his memorandum of appeal to the High Court the issue of mistaken identity (ground three) and the failure of the police to conduct an identification parade (ground four).

Accordingly, while Mr *Bwonwonga*, for the Republic, has submitted that we should not disturb the concurrent findings of fact of both the lower Courts, when those concurrent findings of fact are analysed it transpires that they are based, in part at least, on the dock identifications.

It remains for us to ascertain whether there is sufficient evidence to support the identifications. As the learned Judge remarked, and as the appellant mentioned in the last of his supplementary grounds of appeal filed before us in Court, no independent witness was called from the crowd which chased the appellant from the fair ground. However, the circumstances favouring identifications were good, it being broad daylight and the complainant and her sister had ample opportunity to see the appellant. After the first shot was fired from the ground almost, as it were, into the arms of the waiting policemen, who did not know the reason for the appellant's flight until he was inside the police station where the sisters identified him as the assailant. This, coupled with the appellant's possession of the home-made gun, with one empty cartridge in it and the live round in his trouser pocket, plus their description of the dark jacket worn by the appellant (exhibit 1) which tallied with the description given by the two sisters, in our view constituted a swift sequence of circumstantial events from which it can safely be concluded beyond reasonable doubt (despite the dock identifications) that the appellant was indeed the man who held up and threatened the two sisters with the home-made gun in the fair-ground in the early afternoon of 26 March 1989. He did not, of course, obtain the vehicle because he was overtaken by the events to which we have just referred, and for this reasons the charge of attempted robbery was correctly laid.

It is not clear to us why the magistrate convicted the appellant under the capital subsection, subsection (2), of section 297, as laid, and yet did not impose the death penalty. The learned Judge recognised this and corrected the error in the only way possible at that stage, namely by reducing the conviction from subsection (2) to subsection (1) of that section. However for some reason which is equally inexplicable to us he then reduced the sentence on count one from thirteen to sevenyears.

In our view this reduction was not only unjustified but also legally wrong. The learned Judge said he "felt inclined" to reduce the sentence. That is not a reason valid in law. An appellate Court is not entitled to alter a sentence on appeal unless convinced that the trial Court erred in principle in imposing sentence: that the sentence was so manifestly harsh or excessive that it was evident that the trial Court did so err. Short of that a sentence should be maintained. The Judge may not reduce it simply because he would have felt differently, or substitute a sentence which he would have passed.

In any event we consider the original sentence on count one was well merited. Firing a gun, even a home-made one, in a crowded area, even more particularly when there are children around, is an offence of the utmost gravity. Indeed the appellant was fortunate to escape the death penalty and yet received a bonus by the reduction of his sentence by the High Court.

As a matter of law we have, as learned Principal State counsel submitted, jurisdiction to restore a sentence with has been altered on wrong principles which, we are satisfied, occurred in this case. To do so does not, we think, infringe the principles set out in section 361(1)(*a*) of the Criminal Procedure

Code, which otherwise takes away our powers to reduce a sentence which is manifestly too severe.

Accordingly, for the foregoing reasons we dismiss the second appeal against the conviction on count one, and also on counts two and three, since there can be no doubt of the appellant's guilt on those charges also, as they depended on the same evidence as count one.

We do, however, also for the reasons given, order that the original sentence on count one of thirteen years be restored and that those on counts two and three remain the same. In the result the appellant will serve thirteen years on count one, and six years concurrently on counts two and three, from the date of his original conviction, namely 7 August 1989.

For the appellant:
Information not available

For the Republic:
Bwonwonga

Athumani and others v Republic
[1990–1994] 1 EA 27 (CAT)

Division:	Court of Appeal of Tanzania at Dar-ES-Salaam
Date of judgment:	30 April 1993
Case Number:	14/93
Before:	Nyalali CJ, Kisanga and Ramadhani JJA
Sourced by:	LawAfrica

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[1] Criminal law – Effect of a retracted confession – Notice and particulars of alibi to be provided in Court.

Editor's Summary

The appeal was against the conviction of murder and sentence of death passed by the trial Court against the appellants.

Held – The appellants had made a confession to a justice of peace of their involvement in the murder and though they later tried to repudiate the confessions, the same were found to be true and vindicated by later events. *Tuwamoi v Uganda* [1967] EA 91 followed.

There was ample motive demonstrated for the appellants to kill the deceased. Since the appellants did not give any notice or particulars of their alibis at the trial in terms of section 194(4) and (5) of the Criminal Procedure Act, no weight could be attached to the said alibis.

Appeals are dismissed in their entirety.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means

considered; “**D**” means distinguished; “**DA**” means disapproved; “**DT**” means doubted; “**E**” means explained; “**F**” means followed; “**O**” means overruled)

Tumwamoi v Uganda [1967] EA 91 – **F**

Judgment

Kisanga JA: The three appellants were jointly charged with and convicted of murder contrary to section 196 of the Penal Code and were each sentenced to death by Mr Mrema PRM (exercising extended jurisdiction) sitting at Tanga. They have now appealed against both conviction and sentence. In this Court they were represented by Mr *Mramba*, learned advocate, while the respondent Republic was represented by Miss *Chinguwile*, learned State Attorney.

Essentially the case for the prosecution was that the three appellants jointly planned and killed the deceased. The third appellant Noti Mtachi, is the wife of the deceased, the first appellant Hamisi Athumani is her lover and the second appellant Wambua Mdhami is her cousin. It was alleged that the motive for the killing was to save the appellant Noti from matrimonial harassment by the deceased who had constantly complained of her adulterous association with the appellant Hamisi. Thus in execution of their joint criminal venture, while the deceased was sleeping in his hut on the material night, the third appellant who shared, the hut with him opened the door for the first and second, appellants, and the three of them jointly killed the deceased apparently by strangling him. The third, appellant then supplied a gunny bag in which the dead body was put after which the first and second appellants took it away and buried it in the bush.

During investigation of the case the third appellant made a disclosure of the incident which led to the arrest of the first and second appellants who in turn showed the place where they buried the deceased.

The appellants in their defences at the trial vehemently denied the charge. The third appellant claimed that on the day of the alleged killing her husband took leave of her in the morning saying that he was going to Kenya to sell some precious stones. He stated to her that he would return after some time but he did not, and she did not know what happened to him. The first and second appellants equally denied the charge adding that on the material day they were each in different places away from the village of the deceased

In convicting the appellants, the learned principal resident Magistrate relied, on the evidence of Monica (PW3), the third appellant's daughter, who testified to have seen the three appellants in the hut of the deceased on the material night only shortly after the deceased had called out saying that he was being killed. The learned principal resident Magistrate also relied on the retracted or repudiated confessions of the three appellants, and also on a finding of motive behind the killing, namely, the elimination of the deceased who had resisted the adulterous association between the first and third appellants. He rejected the third appellant's assertion that the confession attributed to her was concocted by the prosecution. He equally rejected the first and second appellants' defences of *alibi* and their claim that the confessions attributed to them were not voluntary.

In this appeal Mr *Mramba* filed a total of seven grounds of complaint mainly criticising the principal resident magistrate for admitting in evidence the alleged confessions of the appellants, and for accepting and acting on the evidence PW3 to convict the appellants. We propose to deal with the confessions first starting with those of the first and second appellants.

These two appellants had claimed that the police tortured them by beating and starving them, and threatened to continue to torture, and even to injure them, if they did not admit killing the deceased. Under those circumstances, therefore, they made statements to the police, falsely admitting to the killing, along the lines that the police had wanted. They repeated the same stories in their respective extra-judicial statements to the justice of the peace (PW2) for fear of more torture upon their return to the police. They denied having led the police to the place in the bush where the deceased had been buried and alleged that it was the police who were directing them, as they marched along through the bush, until they came to the place of burial.

The learned principal resident Magistrate having held. a trial within a trial and, upon believing the evidence of the police officer (PW6) and that of the justice of the peace (PW2) who testified that the appellants made their statements voluntarily, accordingly admitted the confessions in evidence. We are unable to say that he erred either on the procedure he followed or in arriving at his decision to admit the confessions in evidence.

Mr *Mramba* contended that the justice of the peace in recording the extra-judicial statements of the appellant failed to comply with some important requirement or requirements as set out in the "Guide for Justices of the Peace" when recording the statement of an accused person. It is pertinent to point out that at the time Mr *Mramba* was making this submission he did not have a copy of the said Guide for Justices of the Peace and none was available for our reference at the Tanga Registry. However, upon our return to Dar-es-Salaam we have since secured one, and on perusing it we are satisfied that there was substantial compliance with the requirements thereof by the Justice of the Peace when recording the extra-judicial statements of the first and second appellants. Again in view of the evidence of PW1, PW3 and PW6 the Principal Resident Magistrate was quite entitled to reject the appellants claim that it is the police who were directing them as they walked through the bush to the place where the deceased was buried.

Turning for the moment to the third appellant, she completely denied having made any statement to the police or to the Justice of the Peace (PW2). According to her, after the deceased had gone missing from their home the villagers mounted a search for him. In the course of doing so they consulted a local witchdoctor who announced at a meeting of the villagers that the deceased had been killed by the three appellants following which she (third appellant) was arrested and taken to the police. She added that the person who handed her over to the police repeated to the police what the witchdoctor had told the villagers. She claimed that the confession attributed to her must have been a fabrication originating from the witchdoctor's allegations as announced at the meeting of the villagers. That is to say, following such announcement the villager who took her to the police told the police that she and her co-appellants were responsible and the police in turn passed on this information to the Justice of the Peace who accordingly took it down and attributed it to her.

Following a trial within a trial on the issue, the Principal Resident Magistrate rejected the appellant's story. He found that it is the third appellant herself, not the alleged witchdoctor, who made a disclosure of her involvement, and indeed that of her co-appellants, in the killing of the deceased. He accepted the evidence of the Justice of the Peace who testified that the third appellant made a

confessional statement before him and that she did so voluntarily. The Principal Resident Magistrate ruled that the extra-judicial statement of this appellant was admissible in evidence and we can see no ground for faulting him. For, to say the least, we could find no conceivable reason why the justice of the peace would go all the way to fabricate a confession implicating this woman.

Upon his evaluation of the evidence before him the Principal Resident Magistrate held that the appellants' confessions were true, and we think that he was amply justified to so hold. For one thing the appellants' confessions were confirmed in some material particular by subsequent events. Thus the confession of the third appellant implicating herself to the arrest of the latter, was confirmed by the confessions of the first and second appellants who not only implicated themselves and the third appellant but also led the police to the place where they had buried the dead body of the deceased. Furthermore, the first and second appellants in their confessions stated that after the deceased was jointly killed by the three of them, his dead body was put in a gunny bag which they tied with a rubber band and then took it away for burial. Indeed this was confirmed when upon exhuming the dead body of the deceased, it was found to be placed in a gunny bag which was tied with a rubber band. In the gunny bag also was found the trousers of the deceased which confirms the confession of the second appellant that they also put the clothes of the deceased in the gunny bag before taking it away for burial.

Thus the Principal Resident Magistrate took the view that although the appellants in their defences at the trial repudiated or retracted their confessions, once he had found those confessions to be true he was entitled to base conviction on them, citing as his authority the case of *Tumwamoi v Uganda* [1967] EA at 91. There can be no doubt that he properly directed himself in the matter.

The other piece of evidence relied upon to convict the appellants was the evidence of PW3, and as intimated before, Mr *Mramba* criticised the Principal Resident Magistrate for accepting and acting on it, the thrust of his submission being that PW3 was an unreliable witness. The principal resident magistrate reviewed the evidence of PW3 at great length, and duly considered the various criticisms levelled by Mr *Mramba* both at the trial and before in respect of that evidence. At the end of the day he came to the conclusion that PW3 was a credible witness. He went further and said that although the defence doubted the credibility of PW3, her evidence was sufficiently corroborated by the repudiated or retracted confessions of the appellants which he found to be true. We can find no fault in all these. Indeed on the issue of corroboration we might go further and say that even if the evidence of PW3 were to be disregarded, which of course it should not, conviction could still be safely based on the repudiated or retracted confessions of the appellants which were found to be true.

The learned Principal Resident Magistrate also found the existence of motive behind the killing and there was abundant evidence to support such finding. The first and third appellants were lovers, and the deceased had all along resisted and complained about it. Indeed following one such complaint the first appellant was adjudged by village elders to pay the deceased TShs2 000 compensation in respect of the adultery. In our view that provided the basis for a grudge against the deceased by the first appellant, and ample motive for the first and third appellants to eliminate the deceased for being an obstruction or

obstacle in their love affairs. The second appellant, as stated in his own extra-judicial statement, participated in the criminal venture out of sympathy for the third appellant, his cousin, who had appealed to him for help to kill the deceased who was torturing her.

In the light of all this incriminating evidence the learned principal resident magistrate, rightly in our view, rejected the defence of each appellant consisting of a denial of the charge. He further rejected the defences of *alibi* put forward by the first and second appellants in the light of their own confessions and that of the third appellant, and also on the strength of the evidence of PW3 who testified to seeing the appellants at the home of the deceased on the material night. It is noted that the appellants did not give any notice or particulars of their *alibis* at the trial in terms of section 194(4) and (5) of the Criminal Procedure Act; that would provide an additional ground for the decision to attach no weight on the said *alibis*.

After a careful study of the record we are of the view that the appellants' convictions were well founded and we could find no reason to interfere. In the result the appeals of all the appellants fail and are accordingly dismissed in their entirety.

For the appellant:
Mr Mramba

For the Republic:
Miss Chinguwile, State Attorney

Atogo v Agricultural Finance Corporation and another
[1990–1994] 1 EA 31 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	27 September 1991
Case Number:	165/89
Before:	Hancox CJ, Masime JA and Omolo AJA
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[1] Conversion – Wrongful seizure of plaintiff's pick-up under loan agreement – Agreement made with a third party – Default by the third party – Whether analogous to wrongful attachment in execution of court decree – Whether actionable without malice – Necessity to plead and prove special damages with particularity – Nature of special damages – Section 6 – Judicature Act (Chapter 8) – Section 19 – Agricultural Finance Corporation Act (Chapter 323).

Editor's Summary

Acting purportedly under a power contained in a loan agreement with one Hawala, the first respondent, the AFC, caused the second respondent, who were auctioneers and court brokers, to enter Hawala's premises and seize the appellant's pick-up, KLR 903. Two months earlier they had sent their loans officer to inspect the loose assets on the farm and report to them.

The report clearly showed that Hawala, and not the appellant, was the borrower who had defaulted. The appellant sued both the AFC and the brokers for damages for conversion of the vehicle and appropriate declarations, *inter alia*, that the seizure was wrongful and unlawful.

In the defence and in the proceedings prior to the trial the AFC maintained that it was justified in realising its security as it held a first charge on the appellant's assets, and that he had defaulted in payment on his "vide loan account number 013896". In fact, by documentary evidence produced at the hearing, it was established that all the loans were unsecured and that the account in question belonged to Hawala, who was in arrears.

The second respondent maintained throughout that in seizing the vehicle it was only executing the lawful instructions of its principal, the AFC.

At the hearing, the appellant claimed that he had bought the pick-up from one Kiptum Kipchumba David and produced an agreement to that effect. However, David's name did not appear in the log book as a prior owner and due to this and other discrepancies in the appellant's case the Judge rejected the claim. He held that the appellant and Hawala had cited in collusion, that they both knew that the AFC intended to attach the loose assets on Hawala's firm, and they intended to deprive the AFC of its security. On appeal.

Held – The AFC had pleaded and conducted its case right until the hearing on the footing that the appellant was their "loanee", that they were entitled to realise the security which they held over the appellant's movable assets, and were fully justified in law in so doing.

The case for the AFC had proceeded to a wholly false premise, contradicted by their own evidence, and despite the Judge's suspicion as to collusion between the appellant and Hawala, he was not entitled to dismiss the suit on that ground.

It is now settled law in Kenya that it is an actionable trespass wrongfully to set the law in motion so that the wrong person's goods are attached or the wrong person is arrested. *Blassio Simiyu v Vincent Simino* [1984] 1 KAR 630, *Aroni Sure v Gesare Nyamaiko* [1984] 1 KAR 1145 followed.

Even though the seizure of the pick-up was purportedly under a power contained in a loan agreement and not in obedience to the Court warrant in execution of a decree or order, liability would still attach to the person who set in motion the wrongful seizure.

The AFC were not entitled to attach the appellant's pick-up for Hawala's debt. He was therefore entitled to the declarations he sought and they were liable for damages for the tort of conversion.

Regent Auctioneers were also liable jointly and severally, for the wrongful attachments as they had not exercised ordinary prudence and care in ascertaining the true identity and ownership of the property to be seized, without the necessity for proof of express malice.

The appellant was not entitled to special damages for the loss of the hire of the vehicle as no special damages had been claimed in the plaint and it was now also settled law that special damages had to be pleaded and proved with particularity. (Observations by Hancox CJ on the nature of special damages).

The appellant was, however, entitled to nominal general damages which would be assessed at KShs 2 000 but there would be no order as to costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Aroni Sure v Gesare Nyamaiko [1984] 1 KAR 1145 – ***F***

Blassio Simiyu v Vincent Simino [1984] 1 KAR 630 – **F**

Idi Ayub Omar Shabani v Nairobi City Council [1985] 1 KAR 681

Kenya Bus Services v Mayende [1991] 2 KAR 232

Zablon Mariga v Morris Musila [1984] 1 KAR 507

Judgment

Hancox CJ: On 15 October 1987, Regent Auctioneers, who are official court brokers, seized a Datsun pick-up vehicle number KLR 903 belonging to the appellant, who was the plaintiff in the High Court. They did so on the instructions of the Agricultural Finance Corporation (the AFC) who are the first respondents to the appeal. They are a statutory corporation with a separate corporate existence established under the Agricultural Finance Corporation Act (Chapter 323). By section 19 of the Act, the AFC is empowered to make loans to farmers, subject to section 14(3) (which is not material here) upon such terms, *inter alia*, as to security or otherwise, as the board shall think fit.

According to their only witness, David Kirwa Murei, who was the branch manager at Turbo, one Ojwang Atogo Hawala, said to be the step-brother of the plaintiff, was their "loanee" (meaning the "borrower" in ordinary parlance) who had defaulted on his loans, so he sent their loans officer, a Mr Obot to go and inspect the stock on the farm in question, where the appellant's car happened to be on that day. Mr Obot completed an "arrears follow-up report", which purported to show the various debit balances on the borrower's accounts with the AFC, and identified certain assets, including that which was described as "one farm pick-up KLR 903" which the appellant had said was so profitably employed by him as to produce a return of KShs 90 000 per month in hire income. The list of assets is headed by the remark, "All loans unsecured", and yet, in his evidence the manager said that AFC had registered a chattels mortgage over the loose assets, including this pick-up. This was one of many inconsistencies in the respondent's case to which Mr *Onyinkwa*, appearing on behalf of the appellant, pointed to in the course of his submissions.

Mr *Njuguna*, on behalf of the respondents' equally drew attention to several differences in the other side's case, notably that under cross-examination the plaintiff said first that he had received the log book from Nairobi two weeks after he had sent the transfer documents, namely 25 May 1987, and yet in the next breath said that it was delivered to him in 1988. Moreover, said Mr *Njuguna*, how could it be that this agreement of sale (exhibit 3) dated 25 May 1987, showed the vehicle was purchased from one Kiptum Kipchumba David, who did not otherwise feature in the proceedings and whose name does not appear anywhere on the log book, which had been provided by the appellant himself?

Again, Mr *Njuguna* asked, why did the insurance renewal note (exhibit 6) not mention the pick-up and even if it did, why did the premium cover to which it referred must have related to the year 1989/1990? And why was there no indication as to the insurance cover for it for the intervening period? Finally it was a surprising coincidence that the vehicle happened to be on the loanee's farm at the time of the attachment.

All these matters Mr *Njuguna* argued, led the Judge to the justifiable suspicion that both Hawala and the appellant knew that there was an impending attachment against Hawala and had concocted the arrangement that the pick-up nominally belonged to the appellant so as to frustrate it, and to conclude that there had been collusion between the two. A further suspicious circumstance was that the vehicle was initially insured in Hawala's name, for which the appellant had given a palpably false explanation.

This might have been all very well if the case for the defence had been pleaded or put forward in this way. But from the outset the AFC maintained that the plaintiff – that is, the appellant – was its "loanee", that the appellant was in default and that the AFC was fully justified in seizing the pick-up, and (in the notice of objection to the injunction application of 24 November 1987) that the AFC was justified:

> "Both in equity and at law to seize the assets of [the appellant] as [the AFC] holds a first charge on the assets of [the appellant] who has defaulted in payment of [AFC's] loan, vide account number 013896."

It is manifest that this statement must have been wholly wrong, because the details of all the account numbers commencing 013896 in exhibit D1 relate to Hawala and not to the appellant. Even superficial checking would surely have revealed that fact before the defence was filed. Thus, the case for the AFC proceeded on a wholly false premise, one which, indeed, was belied by their own evidence. Neither was it ever put to the appellant in cross-examination that he and Hawala had acted in collusion so as to deprive the AFC of its security.

While, therefore, the Judge, who saw and heard the witnesses, may, on his own evaluation of the evidence, have formed certain suspicions that the appellant and Hawala had so organised their affairs that the vehicle could be passed from the one to the other as it suited them, I do not think, with respect, that on the pleading and evidence as they stood, he was entitled to non-suit the appellant on this ground. Up to the very last moment, the AFC was maintaining that it was entitled to attach the appellant's car as he was the defaulting loanee, when the evidence in their possession, showed that this was not so.

In those circumstances I would hold, so far as the AFC is concerned, that they were not entitled in law to attach the appellant's vehicle for Hawala's debt and that they wrongfully instructed the brokers to do so. It follows that in my Judgment the appellant should have the declaration claimed in paragraphs 8 and 9 of the plaint and in prayers (*a*) and (*b*) thereof respectively. I respectfully disagree with the learned Judge that the appellant had failed, in effect, to get to first base, and was thereby disentitled to the reliefs he claimed.

What are the legal consequences of that finding? There can be no doubt that a wrongful taking of another person's goods constitutes the tort of conversion. It is analogous to the series of cases, which occur with disturbing frequency and with which the Court is becoming increasingly concerned, where the wrong

person's goods are attached on execution of a Court warrant. It may now be taken as settled law, laid down by this Court, that it is an actionable trespass wrongfully to set the law in motion so that the wrong goods are seized, or the wrong person is arrested, see *Blassio Simiyu v Vincent Simino* [1984] 1 KAR 630 and *Aroni Sure v Gesare Nyamaiko* [1986] 1 KAR 1145 at 1151. The only difference (on this aspect) between the two cases was that in the former malice was stated to be an ingredient of the action, whereas in the latter wrongfulness was sufficient. In the instant case, Mr *Onyinkwa* has submitted that negligence, in the sense that the instigator or the broker failed to check up and take ordinary precautions to ensure that the item attached was that of the debtor or loanee is sufficient for the tort to be committed. He referred to certain portions of his cross-examination of the manager which, he said, showed, despite being misled by the loanee, that Obot was not careless and acted in good faith.

As this Court said in *Zablon Mariga v Morris Musila* [1984] 1 KAR 507 at 512, Kenya is developing its own common law, independently of other jurisdictions, and its rules will be made, and developed according to the circumstances and the interests of its inhabitants. For my part I consider that it is actionable to set in motion a process of attachment (even though it is seizure under the provisions of a loan agreement and not under an execution warrant issued as a result of an order or a decree of the Court) without observing rules of ordinary prudence by ascertaining the true identity and ownership of the property to be seized, without the necessity for proof of express malice.

In my judgment, in the instant case there was extreme and actionable negligence exhibited by the AFC in ordering the seizure of the vehicle KLR 903, which did not belong to its loanee. Under the Traffic Act (Chapter 403) a log book is evidence of ownership unless the contrary is proved, and ordinary prudence would dictate that the log book should at least be inspected, a fact admitted by Murei in cross-examination.

What, then of the second respondents, Regent Auctioneers? Ought they to be condemned in the same way, since it can be said on their behalf, as indeed it was, in paragraphs 6 and 7 of the joint defence, that they were only obeying instructions, that they are bound to carry out those instructions and that the vehicle was indicated to them by the loanee as his property.

The answer is, I think, that they, too, did not check up on the ownership of the vehicle and accepted the word of Hawala (if that hearsay evidence is to be accepted) at face value. They are not protected as they would be if they were executing court process by virtue of section 6 of the Judicature Act (Chapter 8). The reason of that degree of protection is that the sheriff or bailiff is bound to execute a Court order. He has no option but to do so. Therefore, he has to have protection. But that does not apply, in my judgment, to the same extent where the attachment is, if I may so call it, a voluntary one. I say this despite the wrong indication in the proclamation (exhibit 4), which would mislead the reader into thinking that there had, indeed, been an order of the Court. In such a case the duty to take ordinary care and to exercise ordinary prudence applies and if the brokers attach the wrong goods they do so at their peril: the act of the agent is, in this sense, that act of the master and vice versa. I would therefore also hold that the second respondents are liable for wrongful attachment.

But for what are the respondents, the AFC and Regent Auctioneers liable? There is a claim for special damages as well as general damages. The appellant in

evidence gave the grotesque figure of KShs 1 500 to KShs 3 000 per day that he had lost as a result of not being able to hire out the vehicle for seven months. That comes to between KShs 45 000 and KShs 90 000 per month. There was nothing in the plaint to suggest that these were the kind of special damages envisaged. If there had been perhaps the respondents would have been more careful in their defence.

This Court has said again and again that special damages must be pleaded and proved with particularity. See *Idi Ayub Omar Shabani v Nairobi City Council* [1985] 1 KAR 681. Special damages are those ascertainable and quantifiable at the date of the action. Despite the line of authority, notably the recent case of *Kenya Bus Services v Mayende* [1991] 2 KAR 232, Mr *Onyinkwa* insisted that the item for the loss of hire which the appellant claimed fell into the category of general damages. I say unhesitatingly that he was wrong in his submission. Apart from anything else it is unlikely that a farm pick-up, as it is described in the arrears report, could have such a colossal earning capacity.

In these circumstances I would hold that the appellant has failed to prove anything in the nature of special damages. He is in judgment entitled to damages by way of general damages only. As I am not persuaded that in this case he should receive substantial damages, I think he should be entitled to nominal damages only. Nominal damages used to be assessed at around KShs 40.

I think that is unrealistic today. I would award him KShs 2000 by way of general damages jointly and severally against both respondents.

I would make no order for costs.

Omolo AJA concurred in the judgment of Hancox CJ.

Masime JA: I have had the advantage of reading in draft the judgment of the Chief Justice and agree that this appeal ought to be allowed with costs.

The learned trial Judge clearly misapprehended various aspects of the evidence before him and consequently made wrong findings thereon. There was no evidence to support the judge's findings that:

(1) The loanee included the vehicle KLR 903 as security for loans he had taken from the defendant AFC;

(2) The Log book contains [*sic*] that the vehicle belongs to Thomas Okwany Atogo and only have issued after Hawala the impending attachment and I am satisfied previous to this attachment this vehicle was owned by the said Hawala;

(3) The vehicle was not in his (plaintiff's) name prior to the institution of the suit;

(4) There has been a collusion between the loanee and his brother the plaintiff to deprive the AFC the security properly given to it by the loanee.

On the contrary there was evidence:

(1) That the appellant was registered as owner of the vehicle with effect from 27 April 1987, long before the attachment thereof on 15 October 1987;

(2) That the AFC loan had been given to a third party as an unsecured loan and that the first time the motor vehicle featured was when the AFC loans officer, Mr Obot, went to the loanee's farm on 25 August 1987 to take stock of the loanee's assets;

(3) That the suit was instituted in November 1987, long after the vehicle had been registered in the appellant's name in April 1987.

Further, there was no allegation whatsoever and no evidence adduced about any collusion between the appellant and the loanee to deprive the AFC of the vehicle.

The AFC in its defence contended that the appellant was its loanee and that the loan was secured by a charge over all the moveable assets of the plaintiff. This was not borne out by the evidence adduced at the trial. There was therefore no way the AFC could justify its alleged right in equity and at law to realise the non-existent security. The AFC's line of defence was abandoned during the trial when its witness acknowledged failure to verify ownership of the vehicle, that the vehicle was registered in the name of the appellant at the time it was attached and that the AFC was misled by their loanee.

It is for the above reasons and those stated by the Chief Justice that I am of the view that the learned Judge's findings must be faulted and the appeal be allowed. I would also agree that on that material available nominal damages only can be awarded to the appellant and I would concur in the award of the sum of KShs 2 000.

For the appellant:
Mr Onyinkwa

For the respondent:
Mr CK Njuguna

Banax Ltd v Gold Trust Bank Ltd
[1990–1994] 1 EA 37 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	14 April 1994
Case Number:	29/93
Before:	Odoki, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Advocates – Duty to conduct matter in a straightforward manner

[2] Banking law – Duty of bank to operate account according to client's instructions – Breach of contract – General damages – Remoteness of damages – Permanent injunction.

Editor's Summary

The respondent bank closed the appellant's bank account when a dispute arose between the company and one of its directors who had been required to relinquish his post.

The company then sued the bank for general damages for breach of contract and loss of business, for specific performance directing the bank to operate the account and for a permanent injunction restraining any such future breaches of contract.

The main question for determination was whether the bank had acted correctly in freezing the company's account.

Held – Once the resolution to change directors was registered by the Registrar of Companies, the

Bank was under an obligation to accept it. (*Royal British Bank v Turguard* [1836] 6E and B 327 applied).

The matter of irregularities in change of directors was an internal matter and the Bank could not be affected by any such irregularities. The duty of a banker is to act in accordance with the lawful requests of his customer in the normal operation of the customer's account. The bank was therefore in breach of its contract with the company for period of time that it suspended its account.

Unless the Bank knew the trading pattern of the appellant and that the loss of the account would jeopardise a contract with a third party, any damage to the company would be too remote. (*Hadley v Baxendale* [1854] 9 Exch 341 applied).

No decree of specific performance is necessary since the bank stated that it was ready and willing to obey the company's instructions.

Similarly, a permanent injunction cannot be granted since the Court cannot order the Bank to continue serving the company. The court can only order that the frozen amount be put at the disposal of the company, either with a view to operating the account in accordance with the company's mandate or with a view to closing the account.

In obiter – The Bar should undertake trials in a more straightforward manner, especially with regard to damages to avoid controversy arising with clients. *Kibimba Rice Company Ltd v Umar Salim* civil appeal number 7 of 1988] followed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Kibamba Rice Company Limited v Umar Salim civil appeal number 7 of 1988 – **F**

Waiguru v Bank of Kenya [1974] EA 339

United Kingdom

Gibbons v West Minister Bank [1939] 2 KB 882

Hadley v Baxendale [1854] 9 Exch 341 – **AP**

Houchton and Company Nothard Lowe and Wills Limited [1927] 1 KB 246

Howard v Patent Ivory Manufacturing Company [1888] 38 Ch 156

Mohany v East Holyford Mining Company [1875] LR 7 HL 869

Royal British Bank v Turquand [1836] 6E and B 327 – **AP**

Judgment

Platt JSC: This appeal raises the interesting and somewhat rare instance of a bank freezing its customer's account. The bank did so, being either dissatisfied with, or uncertain of, a re-organisation in the Company, its customer. Since a director had been required to relinquish his post, the Bank required agreement with him to be reached before the Company's account could be used. The learned Judge concluded that the Bank had acted properly, and dismissed the customer's claim. Hence this appeal.

It follows that the main question to be decided is whether the Bank did act correctly in the circumstances of the case, and if the Bank was wrong to freeze the account, the second main question arises, whether substantial damages are appropriate. The other remedies claimed were of a doubtful nature.

The facts found were that at the end of 1985, or beginning of 1986, the Company Banax Limited, opened a current account with Gold Trust Bank Limited. The Company operated the account apparently to the satisfaction of the Bank: at any rate no complaint was put in evidence, and the account stood at UShs148 000 to the Company credit. The signatories of this account were Mr Magumba (PW1) the Managing Director of the Company, and a certain Mr Mulika, who did not give evidence. Some sort of problem arose in the running of the Company, as a result of which, Mr Magumba asked Mr Mulika to call a company meeting. This not having been done a meeting was held in the office of the Registrar of Companies on 17 September 1987, and Mr Mulika ceased to be director. A new director Mrs Magumba was elected, and it was proposed that she should be a new signatory. When the Bank was informed of this change, the manager Mr Konde, refused to accept the appointment of the new Director, or indeed as a new signatory of the Company's account. Mr Konde stated that the Company must obtain Mr Mulika's approval of the changes first, before the Bank would accept the mandate of the new organisation in the Company. Consequently the Company could not operate its account.

The company consulted *Messrs Owiny-Dolle, Tibaijuka and Company* and Mr *Tibaijuka* returned with Mr Magumba on 1 October 1987 to reason with Mr Konde. But the latter was adamant that Mr Mulika must be consulted. Mr Konde apparently would not accept the resolution filed with the Registrar, nor the notice of change of directors. Mr Magumba could not obtain the normal specimen card from the Bank, and made one himself, complete with photograph of the new director and providing specimen signatures. These steps were rejected.

The company's lawyers protested in writing and on 15 October Katende Sempebwa and Company Advocates answered on behalf of the Bank, confirm the banks stand and threatening to sue the Company. But no suit has ever materialised. The letter of 15 October was never actually produced as an exhibit.

Consequently, on 16 November 1987, the Company Banax Limited sued the Gold Trust Bank Limited for breach of contract, because the Bank maintained the Company's account but refused to allow it to be operated. The Company complained in its plaint that it has suffered the inconvenience of not having funds at its disposal in addition to loss of business. It therefore claimed general damages for breach of contract and loss of business; specific performance directing the Bank to operate the account; a permanent injunction to restrain the Bank from similar future breaches of contract, interest and costs.

The Bank replied that the re-organisation of the Company on 17 September 1987 was surrounded with irregularity. Moreover, is asserted that wherever there is a controversy surrounding a customer's instructions, it is prudent banking practice to suspend the operation of the account until such controversy is removed. It contended that when the controversy was resolved, it was "ready and willing to obey and serve the plaintiff's wish".

Further, if a specimen card had been refused, which was denied, that was also done with due prudence and caution in an attempt to avoid any future liability to the Bank arising out of the disputed re-organisation of the Company, and in the best interests of the Company. In the end if there had been any loss, damage, or inconvenience, Mr Magumba and the Registrar were to blame.

When the trial commenced, Mr Magumba testified as to the assertion facts concerning the breach of contract alleged. But as we shall see presently, the damage done by the breach was inadequately explained. On the other hand, for the defence neither Mr Konde nor Mr Mulika appeared. The situation seems to have been that Mr Konde had resigned from his post. The succeeding Manager Mr Gwawashingham did his best on such notes as had been left behind in the files in the Bank. His conclusions were that in the case of two signatories to an account (called "operators" of the account) falling into a dispute, the normal banking practice is to suspend the account pending a settlement of the disputed. An attempt was made to explain the Bank's position on the ground that only one director had signed the resolution. But then at the end of the cross-examination the witnesses confessed as follows:

> "The resolution was certified by the Registrar of Companies. The Bank was not satisfied with it the matter about irregularities were internal to the Company. As a bank we would not have been affected by these irregularities. I cannot say that the bank was given wrong advise.
>
> The bank was trying to protect itself. The bank was acting on instinct. Since 1987 the Company has never had access to its account".

The learned Judge construed this evidence in an unusual way. Having advised herself on the leading authorities, *Royal British Bank v Turquand* [1836] 6E and B 327; and *Mohany v East Holyford Mining Company* [1875] LR 7 HL 869; as against *Howard v Patent Ivory Manufacuring Company* [1888] 38 CH 156, and *Houchton and Company Nothard Lowe and Wills Limited* [1927] 1 KB 246, the learned Judge noted that Mr Mulika and his advocates claimed that the re-organisation was irregular. It was unfortunate that the learned Judge set out the advocate's letter of 15 October 1987, because it was not produced in evidence by those who wrote it. However the learned Judge realised that this initiative came to nothing. She then turned her attention to the conflict between Mr Magumba and Mr Mulika. She observed that there was a conflict between the operators of the account which had been resolved one way or the other before the Company could operate its account. She concluded:

> "It would be quite correct to say that the bank was supposed to operate the account if everything was apparently regular, but everything was not regular here since there was a conflict which had been brought to its notice. No prudent banker would have ignored it in my view."

The Company has of course appealed, and in ground one has tackled the point that in the evidence there was not such a conflict, which could lead the judge to conclude that the Bank was justified in stopping the operations of the Company's account. The correct position had been stated by Mr Gwawasingham. The matter of the irregularities if any was an internal matter as far as the Company was concerned. As a Bank, the respondent/defendant Bank, could not have been affected by the irregularities.

That position was partly confirmed by Mr *Mutaawe* (counsel for the Bank) on this appeal. He stated that the Bank had no fault to find with the resolution of 17 September 1987. As it was registered by the Registrar of Companies, I would hold that the Bank could accept that position without fear, since that was the official position, and no further enquiries were needed. If this were not the situation, no re-organisation could ever be undertaken without difficulty from the Bank, since parties in disagreement will rarely give their blessing to a move against them. Indeed, Mr Mulika has manufactured a great mischief to

the Company, without any pain to himself, through Mr Konde's action. Mr Mulika has skillfully avoided a suit, which might have been problematic and certainly expensive, and caused the Company to be jeopardised, at the Bank's expense. For a minority shareholder, one who could not pay for his shares fully in cash, that is a remarkable achievement.

But to answer the exact point, there was certainly some sort of disagreement between Mr Magumba and Mr Mulika. Whether or not it would be judged as favourable to Mr Magumba or Mr Mulika. There was no evidence from either side what the nature of the dispute was Mr Katende and Sempewa's letter was not evidence and what exactly Mr Konde knew by the time he had confirmed his decision on 1 October 1987 (before the letter of 15 October 1987 had arrived) is not in evidence. On the evidence on record, therefore the learned Judge could not have judged what the nature of the dispute was, and what risk there was to the Bank. It was an internal problem, served by the Company according to articles and the change was registered by the Registrar of Companies.

The Bank should have accepted this resolution on the basis of *Turquand*'s case (*supra*). Merely because there is a change of management, one director being excluded for no known reason without anything more in evidence, cannot put the Bank on notice of something irregular. If of course, it were true that Mr Konde, (as stated in the plaint but not proved in evidence) was shielding Mr Mulika, then Mr Konde was wrong and endangering his Bank, perhaps, in what has been called his "instinctive decision. He might have treated the Directors as partners.

Mr *Mutaawe* pleaded that there were special circumstances surrounding the Company's re-organisation. The original and later share holdings of the disputants is not relevant. Whether there were originally two families and one family merely lost out, is irrelevant. Whether a suit based on minority rights would be successful is irrelevant in this case. There were no apparent irregularities, and the dispute relied on was a purely internal matter of management. No fraud or *mala fides* has been suggested.

The duty of a banker is to act in accordance with the lawful requests of his customer in the normal operation of the customers account. The defendant Bank refused to carry out a lawful request and wrongly suspended the account from 1 October 1987, until the High Court gave judgment. It was in breach of its contract with the count of all this time.

In these circumstances it is not necessary to deal with ground two which deals with aspects of the Companies Act, and I pass on to ground three. It is there complained that the learned Judge held that there was no evidence to show actual damage suffered by the appellant thereby coming to the wrong conclusion that she would only have awarded nominal damages of UShs1 million.

Two things can be said at once. The learned Judge was right to state that there was little or no evidence upon which to base general damages for breach of contract or loss of business. On the other hand UShs100 000 is hardly nominal damages.

Mr Magumba's evidence is very poor on this aspect of the case, which is surprising in view of the plaint, where it was asserted that the Company had suffered inconvenience in addition to loss of business.

Mr Magumba testified that the business of the Company was “to buy food and supply food to Makerere”. Payment was twice a month, after two weeks, allowing a payment to provide funds to buy the next consignment. The net profit would normally work out at 10%–15% of the sale price. But Mr Magumba did not have the books of account with him to show the performance of the Company neither before nor after the breach of contract. Nor did he show how the closure of the account had actually affected the business, or caused inconvenience. No loss of business was actually referred to.

Mr *Tibaijuka* relied on *Gibbons v West Minister Bank* [1939] 2 KB 882; considered in *Waiguru v Bank of Kenya* [1974] EA 339 with approval but some doubt, as it was only a first instance decision. These cases depended on breach of contract by a Bank concerning a wrongly dishonoured cheque. The view taken was that damage must be proved, unless the account was that of a trader, in which case damages would be assessed on the decision of loss of prestige by the trader. That was not the situation here, as Mr *Mutaawe* pointed out.

The breach of the contract in this case led to the Company being unable to utilise its assets. It did not by itself involve a third party as would be the case of a dishonoured cheque. The natural consequence of this breach would be that if the Company needed to draw or deposit money, it could not. That would also mean that the money in the account would be tied up. If the Company were unable to use its money, it may not have been able to purchase goods or debts in the normal pattern of its trade, with the result that its trade may have been adversely affected. This might be called inconvenience. Secondly, the money tied up in current account might not gain interest and might lose in value.

Mr *Tibaijuka* seems to have sought to get round the lack of evidence on these matters by mathematical abstractions. He calculated that given the money on the account, the total monthly turned over would be UShs384 000 800. At 15% net profit, the profit would be UShs57 720 per month or UShs692 640 per annum. By the time of the trial five years had passed. Hence at the end of that time the loss would be rounded out to UShs4 million. What is unfortunate about this abstraction is that the cash in the bank was not proved to relate to the monthly turn over figure. Nothing appears in the short bank statement (exhibit P6) to suggest any possible support for such a result. Mr Magumba did not bring his account to support such a profitable adventure either. There was no possibility of the abstraction being accepted without evidence to support it.

Looking at the description of the trading pattern for a moment, it does not necessarily follow that this bank account was in daily use. So long as Makerere paid for the food and goods supplied, the money so earned funded the purchase of the goods for the ensuing delivery. It may be that out of the profit earned, some outgoings could have been funded. On the other hand, it is not known whether payment was always timeous, or indeed whether the contract for the supply of goods was maintained.

Even so, the loss of the use of an account must have caused inconvenience. What cannot be said for sure, is how much.

There are two further results from the loss of the use of the account. As a natural consequence of the cash in hand being frozen, it could not generate interest in a current account nor would it necessarily maintain its value. There was no evidence, that the sum frozen earned interest, or what a relatively small

sum such as this would earn in deposit even at the Post Office. On the other hand, it is generally agreed that the Uganda Shilling has lost value. What I would not be able to do is to take judicial notice of how much it had lost since 1987. Mr *Tibaijuka* says that it is clear, and that the loss is about UShs2 886 004. I am unable to say that that sum can be ascertained or is relevant by noticing the Uganda shilling - US Dollar rate. For one thing, the Company was not trading in US Dollars but in Uganda Shillings. The depreciation should therefore be judged between what the Uganda Shilling purchased in 1987 and what it purchases today. There is no evidence on that point. Once again there was a probable loss.

The result then is that there must have been inconvenience, and there was no doubt some loss in the value of the UShs148 000. The full amount of the damage was not proved. I would leave the learned Judge's estimate at UShs100 000 as damages for breach of contract, on what can be ascertained.

On the claim for loss of business, as I have mentioned above, there was no evidence whether or not the Makerere contract continued or was cancelled, or whether any other contract was cancelled. It is not clear whether, even if the Makerere contract continued, the work decreased in value. On the other hand, there is the difficulty whether or not any such damage, if proved, would be too remote. *Hadley v Baxendale* [1854] 9 Exch 341. Unless the Bank knew the trading pattern of the Company and that the loss of the account would jeopardise a contract with a third party, such damage would be too remote. No claim can be made out on this kind of damage.

Consequently, it remains to deal with the other reliefs claimed.

No decree of specific performance is necessary since the Bank has stated that it is ready and willing to obey the Company's instruction, once the issue surrounding the account is resolved. That has now been resolved by finding that the Bank was wrong to meddle in the Company's affairs, and in particular, in the dispute between Mr Magumba and Mr Mulika. The Bank should forthwith unblock the account which was wrongfully suspended.

The Company sought a permanent injunction to restrain the Bank from committing similar breaches of contract. That relief cannot be granted. The Court cannot order the Bank to continue to serve the Company, in any event. The Court can order that the amount frozen be put at the disposal of the Company, either with a view to operating the account in accordance with the Company's mandate, or with a view to closing the account. As the Bank has offered to continue the account, so be it.

I would allow the appeal, set aside the judgment and decree of the High Court, and substitute therefore, judgment for the plaintiff Company Banax Limited, in the sum of UShs100 000 with interest at court rates, and the costs of the suit. I would award the costs of the appeal to the appellant.

I would like to appeal to the Bar once more to undertake trials in a more straightforward manner, especially with regard to damages to avoid controversy arising with clients. A clear lead was given in *Kibimba Rice Company Limited v Umar Salim* civil appeal number 7 of 1988.

Oder and Odoki JJSC concurred in the judgment of Platt JSC.

For the appellant:
Mr Tibaijuka instructed *by Owiny-Dolle, Tibaijuka and Co*

For the respondent:
Mr Mutaawe

Bandali v Wills
[1990–1994] 1 EA 44 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	26 July 1991
Case Number:	12/91
Before:	Hancox CJ, Gachuhi and Cockar JJA
Sourced by:	LawAfrica

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[1] Practice and procedure – Dismissal of suit for want of prosecution – Whether jurisdiction exists to set the dismissal aside – Whether leave to appeal against setting aside should be given – Order XVI, rule 6 – Civil Procedure Rules.

Editor's Summary

In 1979 the respondent and other plaintiffs sued for specific performance of separate agreements to sell them subdivided plots in Mombasa North, for which they had paid deposits. It had been agreed that these plaintiffs would await the decision in another case, in which a third party was claiming ownership of the same land which had been subdivided and sold by the appellant to the plaintiffs. In March 1985 the respondents and other actions were dismissed for want of prosecution under Order 16, rule 6 of the Civil Procedure Rules. In 1990 the respondent applied to have the 1985 dismissal set aside and Shields J, following the decision in *Rawal v Mombasa Hardware* [1968] EA 385, held that he had jurisdiction to do so under the inherent powers contained in section 3A of the Civil Procedure Act. He accordingly set the dismissal of the suit aside and refused leave to appeal against his order. The appellant applied to the Court of Appeal for leave to appeal against Shields J's order.

Held – In those cases where an appeal did not lie as of right, leave to appeal would not be granted automatically, but would depend on whether the applicants could show that they had grounds of appeal which merited serious consideration.

Where the matter had lain in the discretion of the judge, a stronger case would be required to show that his discretion had been exercised wrongly or unjudicially.

Order XVI, rule 6 did not provide for the party affected by the dismissal to have notice of that which was to be done.

Accordingly, it was proper to invoke the inherent power of the Court in order to correct injustice and the judge had in this case exercised his discretion correctly.

Per curiam – It could not be said that the appellants would not have an opportunity of being heard for they would do so in the High Court when the restored case came in for hearing.

Application for leave to appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Gurbachan Singh Kalsi v Yowani Ekori [1958] EA 450

Rawal v Mombasa Hardware Limited [1968] EA 392 – **F**

Sango Bay Estates Limited v Dresdner Bank AG [1971] EA 17

Judgment

Hancox CJ: This is an application before us for leave to appeal against the judgment of Shields J dated 31 August 1990, in High Court civil case (Mombasa) 934 of 1979.

The application then before Shields J was that an order dismissing a suit for want of prosecution under Order XVI, rule 6 of the Civil Procedure Rules should be set aside so that the action could be restrained for hearing.

It so happened that Shields J decided another case, High Court civil case 4 of 1980, between the same defendant and one Abdullah Ramzan at about the same time, and he accordingly gave the decision in this case in the same way as he had in High Court civil case 4 of 1980.

After setting aside the order dismissing the suit an application for leave to appeal was made, presumably under Order XLII, rule 1(2). This was refused by the judge, as Mr *Juma*, for the applicants, complained without any reasons being given. Indeed that was the main plank in Mr *Juma*'s application before this Court.

We asked Mr *Juma* to elect before us on which application to proceed, namely civil application Nairobi 12 or Nairobi 13 of 1991, because only one application was listed before us. He elected to proceed in this case, civil application Nai 12, in which Mrs Wills was the original plaintiff.

The application for leave to appeal against Shields J's decision was opposed by Mr CB *Gor*, the advocate for the respondent and original plaintiff.

Mr *Juma* referred us to *Sango Bay Estates Limited v Dresdner Bank AG* [1971] EA 17 at 20 in which Spry VP said:

> "I turn to the application itself which can, I think, be disposed of very briefly. As I understand it, leave to appeal from an order in civil proceedings will normally be granted where prima facie it appears that there are grounds of appeal which merit serious judicial considerations but where, as in the present case, the order from which it is sought to appeal was made in the exercise of a judicial discretion, a rather stronger case will have to be made out."

The reason which motivated Spry VP to give ruling was the wording of the corresponding section 77(1) of the Uganda Civil Procedure Act. This differs in one respect from our section 75(1) because the words "and from no other orders" do no appear in our section and the Vice President felt that that negative provision (although paragraph (*h*) was identified to the Kenya paragraph (*h*)) had the effect that the earlier case of *Gurbachan Singh Kalsi v Yowani Ekori* [1958] EA 450 was wrongly decided, because in the earlier case it had been assumed that leave to appeal would be granted automatically.

The quotation above shows us that this is not so and that the applicants must show that there are grounds of appeal which merit serious consideration; if it is a matter of discretion, a stronger case is required.

In the instant case, Shields J said that there was no special provision in the Civil Procedure Rules allowing the Court to set aside the order of dismissal under Order XVI, rule 6. He accordingly exercised his discretion under section 3A in the Civil Procedure Act.

In doing this, Shields J followed *Rawal v Mombasa Hardware* [1968] EA 392 where Law JA said (at 392):

> "Mr Doshi, who appeared to the appellant relies in great measure on an unreported decision of the High Court in *Kanti and Company v British Traders Insurance Company Limited* (civil case 314 of 1962) in which a very similar position was considered by Rudd J. A suit, or several suits, had been dismissed under Order XVI, rule (1) without notice to the parties, who the applied for the suit to be restored; and the learned Judge decided that although Order 16, rule 6 provided a remedy he was nevertheless satisfied that there remained an inherent power to set aside the dismissal if the requirements of justice so demand the exercise of that power, as for instance if limitation rendered the prescribed remedy futile.
>
> Mr Inamdar, with his usual clarity of expression and persuasiveness, has cited various Indian cases in support of his proposition that where in a rule the procedure to be adopted for a remedy is provided for, the invocation of inherent power to provide an alternative remedy is excluded, except in relation to the procedure laid down in the rule; in other words, the Court has no jurisdiction to use its inherent powers to override the express provisions of the law.
>
> I have no reason to doubt that those cases were correctly decided in relation to the provisions of the Indian Code and Rules which they were concerned. But the provision with which were concerned that is, Order XVI, rule 6, is a very special provision which finds no counterpart in India. Mr Inamdar has referred us to other instances, for instance under Order IX, in which the remedies open to a party whose suit has been dismissed are laid down. In all those cases the party affected had notice of what was done: in the case now under consideration he had no such notice and that is why Order XVI, rule 6, stands in a very special position."

It follows from this quotation that there is an inherent power to restore a case for hearing after it has been dismissed under Order 16, rule 6.

In his reply, Mr *Gor* touched on the history of all these old cases, which related to some plots of land in North Mombasa. Briefly Mrs Wills and the then plaintiffs had slept on their rights because they were awaiting the decision in High Court civil case 815 (OS) of 1979 between one Peter Salai and the present applicants. That case had been dismissed under the same rule without any notice to the respondent.

In our opinion, Mr *Gor*'s firm was unwise in not following up the position with regard to High Court civil case 815. They were also at fault in failing to oppose Mr *Juma*'s application for leave to appeal Shields J in the instant case.

Nevertheless, having considered Mr *Juma*'s argument, and particularly grounds five and six of the proposed memorandum of appeal which state:

> "It was wrong in principle to have set aside the dismissal when a fresh action was already barred by limitation, and the policy of the Courts, being to strike out the original suit and not to allow it to proceed (and a *fortiori* to be reopened) after limitation has expired.

> After such inordinate delay the appellant was entitled to assume, the revival of suit (not attempted before expiry of limitation) had been abandoned and to regulate his affair of suit or to develop the same."

We consider that the judge exercised his discretion correctly. The position is covered by the second part of the quotation from Spry VP. The judge gives reasons for exercising it unjudicially, or, indeed, that he was wrong.

We take account of Mr *Juma*'s point that his clients will not have an opportunity of being heard in the appeal if leave is refused. But they will be heard in the High Court when the restored case comes on for hearing and, no doubt, in any subsequent appeal.

For these reasons we would refuse the leave to appeal sought in the applicant's notice of motion filed in this Court on 13 September 1990. We souls make no order as to the costs of this application.

Gachuhi and Cockar JJA concurred in the judgment of Hancox CJ.

For the applicant:
Mr JV Juma

For the respondent:
Mr CB Gor

Bor v Oduu and others
[1990–1994] 1 EA 47 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	27 February 1992
Case Number:	17/90
Before:	Hancox CJ, Kwach and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Quantum of damages – Deceased killed after fall from bus – Whether negligence or assault – Action by widow on behalf of herself and children – Whether quantum of damages awarded manifestly so low as to be erroneous – Extent of dependency of family – Whether a question of fact or law – Principles on which appeal court will interfere – Fatal Accidents Act (Chapter 32) – Section 47A – Evidence Act (Chapter 80).

Editor's Summary

The deceased, who was aged 35, boarded a bus in which he had been permitted to ride for KShs 20, but an altercation developed between him and the turnboy, after which the latter pushed the deceased off the bus. He fell into a drain containing waste water and drowned. The turnboy was convicted of manslaughter, and in the subsequent civil suit negligence was alleged against him (the first respondent) against the second respondent, as co-driver of the bus, and, vicariously, against he third respondent as owners of the bus (KXG 056). It was further alleged that the turnboy, in throwing the deceased off the bus had acted on the instructions of the second respondent. As liability was conceded

by the respondents the case proceeded on quantum of damages only.

After considering written submissions the judge found that the deceased was earning KShs 2 331 net per month at the time of his death, that he would have retired at the age of 55, and that the dependency rate of his family, consisting of

his widow and three children, was one-fifth. He therefore awarded KShs 11 888 by way of damages under the Fatal Accidents Act, KShs 60 000 for loss of expectation of life and KShs 5 100 for funeral expenses. The widow appealed contending that the pattern of all the decisions showed that two-thirds was the correct dependency rate to be applied for a married man with children. The figures of KShs 60 000 and KShs 5 100 were not challenged on appeal.

Held – While the decisions cited showed, in the High Court at least, that Judges had taken two-thirds as the rate of dependency in the case of a deceased who left a widow and children, this represented in each that which the judge had assessed as the pecuniary loss to the family, but there was no rule of law to that effect.

The assessment of the dependency rate that is to say the extent to which the family was being supported by the deceased, was a question of fact in each case.

Following *Butt v Khan* [1978] 1 KAR 1 the Judge's estimate of the extent of the family's dependency in this case was manifestly too low, and would be increased to one-half of his net earnings with the same multiplier.

Per curiam – It was erroneous for the case to have been pleaded in negligence. The evidence showed the tort of assault and battery had been committed for which the respondents were nevertheless responsible in view of the consent as to liability before the High Court.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Butt v Khan [1978] 1 KAR 1 – **F**

Florence W Kiarie v Attorney-General High Court civil case number 1930 of 1985

Hayes v CJ Patel [1961] EA 129

Kassam v Kampala Aerated Water Company Limited [1965] EA 587

Khemaney v Murlidhar [1958] EA 268

Rispa Anyango Odhiambo v Dr A Banzinger High Court civil case number 3538 of 1985

SA Muka v Vibharan Ramji Halai High Court civil case number 1870 of 1984

Sheikh Mushtaq Hassan v Nathan Mwangi Kamau Transporters [1986] 1 KAR 946

United Kingdom

Davis v Powell Duffryn Associated Collieries Limited [1942] 1 All ER 657

Judgment

Hancox CJ: The facts giving rise to this appeal are that the deceased, Joseph Kiplenja Cheruiyot boarded a bus (KXG 056) belonging to the third defendant in the High Court (now the third respondent) on 22 October 1986, at a petrol station on the Nandi Road going towards Cheptiret

Centre. Although the bus

was not taking short-distance passengers, the conductor (the first respondent) allowed him on for KShs 20. Unfortunately, an argument developed between the conductor and the deceased and he was asked to leave the bus. When he refused to do so, the turnboy, the first respondent, pushed him out of the bus. By misfortune the bus was at that time crossing a bridge over a gully which carried waste water, and he drowned therein.

As the turnboy (or conductor) was convicted of manslaughter by Mrs Walekhwa, Senior Resident Magistrate, Eldoret (as she then was) this was conclusive evidence that he was guilty of that offence by virtue of section 47A of the Evidence Act (Chapter 80).

What did those facts amount to? It was not gross negligence, as pleaded in the plaint, but the tort of assault. Assault, in as much as while the turnboy may have been entitled to evict passengers, he was not entitled to use more than reasonable force to achieve his purpose. Pushing a person from a moving vehicle is an inherently dangerous procedure, only justified if the passenger was using force against his co-passengers or was so obstreperous as to endanger the safety of the bus and its occupants, which is not suggested in the instant case. All that was suggested is that the deceased was "drunk but not staggering". I do not think it can be gainsaid, therefore, that the turnboy's act in pushing the deceased from the bus was an unlawful assault and battery, and if death resulted, as it did, from the act, then he was guilty of manslaughter.

It was therefore wholly erroneous to plead the case on the basis of negligence, which is an involuntary act or omission involving a breach of a duty of care, when all the evidence showed that this turnboy's act was deliberate and purposeful. This much was conceded, by Mr *Onyinkwa* on behalf of the appellant, the former plaintiff and the widow of the deceased. Had this argument been raised in the appeal, I might have felt constrained to allow it on that ground, but no such point was taken, and as it is not a jurisdictional point, there is no compulsion on us to decide it. I may therefore count myself fortunate in being able to proceed to the main issue in the appeal, which is quantum of damages.

Aganyanya J, in his admirably clear and succinct judgment, in contrast to those with which, as well as submissions, we are often wearied in this Court, held in essence:

(i) That the deceased, at 35, would have an expectation of working life of a further 20 years.

(ii) That he was earning KShs 2 331 per month net at the time of his death.

(iii) That the "dependency rate" under the Fatal Accidents Act (Chapter 32) should be one-fifth. (As I understood him Mr *Onyinkwa* did not challenge the award of KShs 60 000 for loss of expectation of life, or the KShs 5 100 for funeral expenses).

The basis of the appeal is of course that the learned Judge made an award of damages which was so inordinately low as to represent an entirely erroneous estimate, and that he thus acted on wrong principles – see *Butt v Khan* [1978] 1 KAR 1 at 4 per Law JA. This rule, which has been followed by the Kenya Court of Appeal ever since, is a reflection of English common-law principles regarding the duty of the appellate Court in relation to matters of fact (and dependancy is largely a question of fact), as is shown by the following passage from *Davies v Powell Durffrun Associated Collieries Limited* [1942] 1 All ER 657 at 664,

which was cited in the only authority to which we were referred by Mr *Machio*, appearing on behalf of the respondent to this appeal, namely *Kassam v Kampala Aerated Water Company Limited* [1965] EA 587 at 589:

> "In effect the Court, before it interferes with an award of damages, should be satisfied that the judge has acted on a wrong principle of law, or has misapprehended the facts, or has for these or other reasons made a wholly erroneous estimate of the damage suffered. It is not enough that there is a balance of opinion or preference. The scale must go down heavily against the figure attacked if the appellate court is to interfere, whether on the ground of excess or insufficiency."

That was a decision by the Privy Council on appeal from this Court's predecessor.

The aspect of the judgment of Aganyanya J which is said to be erroneous is that he assessed the dependency rate for the widow and three children of the deceased at one-fifth, whereas, according to Mr *Onyinkwa*, the authorities which he cited to us showed that the rate of dependency should be two-thirds.

I now proceed to examine those authorities. In the first cited, *Hayes v CJ Patel* [1961] EA 129, Sir Kenneth O'Connor CJ set out (at 133 the principles of assessment of damages for the dependants of a deceased father under the Act. Those principles were not only expressly approved by the Court of Appeal in the second case cited to us, *Khemaney v Murlidhar* [1958] EA 268 at 269 affirmed on other grounds by the judicial committee (see [1960] EA 1), but also in the case in question, which itself went to appeal [1957] EA at 749).

Having set out those principles, which, as I have said, were expressly approved twice by the Court of Appeal, the learned Chief Justice estimated the annual income of the deceased, and then allocated one-third for the deceased's expenses and two-thirds for those of his surviving family. Thus the dependency rate of two-thirds was arrived at.

The next case was that of the unfortunate student, Stella, who was hit by a falling shutter from a high-rise building. She was, however, a spinster, and the extent of any notional dependency on her by her father (the plaintiff) would be noticeably less than that of a man with a family. Apaloo J (as he then was) decided that the multiplicand for the purpose of assessing the lost years was one-third of her monthly income. The claim under the Fatal Accidents Act in that case was not pursued. See *SA Muka v Halai* High Court civil case 1870 of 1984. In *Florence Kiarie v Attorney-General* High Court civil case 1930 of 1985 Porter J assessed the degree of dependency at two-thirds, (though he took a lower multiplier, namely 14, than the admittedly generous figure of 20, which the learned Judge took here) and in *Rispa Anyango Odhiambo v Dr A Banzinger* High Court civil case 3538 of 1985 Mrs Aluoch J applied that which she called the "two-thirds dependency rule" in the case of a family man.

The only other Court of Appeal case was *Sheikh Mushtaq Hassan v Kamau Transporters* [1986] 1 KAR 946, in which an award by the High Court of KShs 320 000 by way of general damages was increased to KShs 380 000. That was a bachelor son aged 17 who was intending to study and qualify as an architect, and, as in *Stella*'s case (*supra*) the Court held he would have been left with one third of his income after his living and other expenses. Also, as in *Stella*'s case the claim under Fatal Accidents Act was withdrawn.

The one thing that emerges from all these decisions is that there is no two-thirds rule as Mrs Aluoch J supposed in *Rispa*'s case (*supra*). It was made perfectly clear in the Privy Council decision of *Kassam v Kampala Aerated Water Co*, which was binding on the Court of Appeal for East Africa, that dependency is a question of fact. Kneller JA took the same view *in Hassan*'s case (*supra*) when he said (at 949):

> "the sum to be awarded is never a conventional one but compensation for a pecuniary loss."

I think this has to be right. The fact that in many of these cases the trial Judge thought that the dependancy rate should be two-thirds in the case of a married man with children, means simply that was his or her assessment of the pecuniary loss suffered by the dependants because of their father's death, and not that there was any rule to that effect.

The definition in the Oxford Shorter English Dictionary of "dependency", or "dependency", is: "The relation of a person to that by which (he) is supported".

The extent to which the family is being supported must depend on the circumstances of each case. To ascertain it the Judge will analyse the available evidence as to how much the deceased earned and how much he spent on his wife and family. There can be no rule or principle of law in such a situation. To this extent I agree with Mr *Machio*.

However, having said that I am also impressed with Mr *Onyikwa*'s submission that for people with smaller incomes, certain expenses are constant. He instanced food, school fees and the like. Therefore, the realistic rate of dependency would be greater in proportion to the total family income than would be so in the case of highly paid person.

With all these matters in mind I now address myself to the matter of the one-fifth dependency rate found by the learned Judge. Having done so I am satisfied that one-fifth was far too low, even though its effect was mitigated by a generous multiplier, and that is represented a wholly erroneous estimate. Doing the best I can, and it is always a very difficult task in damages cases, my view is that a just figure for dependency here would be one-half.

Kwach and Cockar JJA concurred in the judgment of Hancox CJ.

For the appellants:
Mr IJ Onyinkwa

For the respondent:
Mr SW Machio

Bwana v Salim and others
[1990–1994] 1 EA 52 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	24 July 1991
Case Number:	65/90
Before:	Hancox CJ, Cockar JA and Omolo AJA
Sourced by:	LawAfrica

*[1] Adverse possession – Transfer of land into appellant's name – Whether house standing thereon and on adjoining plot wholly included in transfer so as to pass ownership in the adjoining plot – Suit begun by plaint – Claim during proceedings that the overlapped portion of land accrued to the appellant by adverse possession – Whether plaint or originating summons appropriate – Whether power exists to order continuance by originating summons – Whether any evidence of alleged customary law advanced – Section 38 – Limitation of Actions Act (Chapter 22) – Sections 3, 30(*l*) and (*g*) – Registered Land Act (Chapter 300) – Order XXXVI, rules 3D and 10 – Civil Procedure Rules.*

Editor's Summary

In 1923 the dispute area of land in the Seyidie District of Mombasa was granted in fee simple to one Khadija from whom it devolved into the ownership of Fatuma, the grandmother of the respondents.

At some stage in its history the land was divided into two plots, number 160 and 161, Block XXX, Mainland North Mombasa, but the house which had been built thereon and which stood on both the plots, remained as one property and registered as number J123 with the Municipality of Mombasa.

In 1968 Fatuma sold plot 160 to two brothers, who sold it to the appellant in 1972. In each case the transfer was under the Registered Land Act, but no mention was made in either document of anything relating to plot 161 or of the house. For some years the existing tenants remained in the house until they either vacated it or were evicted. Until then the appellant collected the rents without objection or hindrance from the respondents and thereafter he was then sole occupant of the whole of the house.

Without apparent warning, in July 1988, the respondents affixed to the house a proclamation of the sale of plot 161 and of the four rooms and conveniences that stood on it. The appellant sued for an injunction, in effect, to restrain the sale, a declaration that he was the owner of the whole of the house and damages. He simultaneously applied for a temporary injunction in similar terms submitting, *inter alia*, that he was entitled by way of prescriptive right to that portion of the house which stood on plot 161. The judge, after setting out the principles laid down, *inter alia*, in *Giella v Cassman Brown and Company Ltd* [1973] EA 358, dismissing the application, and observed that the claim by way of adverse possession was not admissible because it was specifically provided in the rules that such an action should be commenced by originating summons and not by plaint; and that had the appellant wished to rely on adverse possession the facts giving rise to it should have been clearly pleaded. The appellant appealed and the judge, acting on the principles of *Erinford Properties v Cheshire County Council* [1974] 2 All ER 448 granted an interim injunction pending the appeal, notwithstanding that he had refused the substantive application.

Held – The judge did not err or act on any wrong principles in refusing the substantive temporary injunction sought.

If the appellant had wished to base his claim on adverse possession he should have brought it by way of originating summons and not by plaint.
While there existed jurisdiction under Order 36, rule 10 of the Civil Procedure Rules to continue, proceedings begun by originating summons as if they had been commenced by a plaint in an appropriate case, there did not exist any jurisdiction for the reverse procedure, that is to say, to continue, proceedings begun by plaint as though they were commenced by an originating summons, even assuming such a course was appropriate in the instance case.

The judge was correct, perfectly consistently with his refusal of the temporary injunction sought, in effect until the trial of the action, to grant an injunction in the nature of a stay pending the determination of the appeal.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Giella v Cassman Brown and Company Limited [1973] EA 358

Kibutiri v Kibutiri [1983] 1 KAR 60

Public Trustee v Kamau Wanduru [1984] 1 KAR 498

Salim v Boyd [1971] EA 550

Sisto Wambugu v Kamau Njuguna [1983] 1 KAR 217

Wakf Commissioners v Mohamed Bin Umeya [1984] 2 KAR 12

Wanjohi, Elizabeth Wambui v Official Receiver civil application number 140 of 1988

United Kingdom

Erinford Properties v Cheshire CC [1974] 2 All ER 448

Re Giles (2) [1890] 43 ChD 391

Judgment

Hancox CJ: The area of land in the Seyidie district of Mombasa which has given rise to the dispute and which has resulted in this appeal comprised 0.204 of an acre, and was granted in fee simple to one Khadija on 21 August 1923, under the then Land Titles Ordinance 1908. At some time subsequent thereto it devolved into the ownership of Fatuma Bin Ali Issa Elmewdry who was the grandmother of the three respondents. She died in 1979.

At some stage in its history the original area was divided into two parts in Block XXX, which are correctly registered in the names of the present respective owners as number 160 and 161. On 3 October 1968, Fatuma sold plot 160 to Aisha Omar Athman and Zubeidah Omar Athman for KShs 17 000, and they in turn sold it to the appellant for KShs 23 000 on 11 July 1972. I assume that the increase of KShs 6 000 in the value of the plot between those two dates was in accordance with the general gradual rise in property values in Kenya after independence, a rise which took a steep upward turn in the late 1970's and early 1980's. Fatuma died in 1979 and plot 161 devolved to the

respondent’s mother and thence to the respondents.

The respective acreages of the two plots was not stated in the transfer deeds (both of which were under the Registered Land Act (now chapter 300)), but it would appear from the two copy plans comprising exhibit MMSS3 to the affidavit of Munira, the third respondent dated 3 August 1988 and included in the supplementary record of appeal filed on 21 February 1991, as a result of this Court's order during the last session in Mombasa, on 1 February 1991, that plot 160 is appreciably larger than plot 161, which Fatuma had retained.

What does not appear in the respective certificates of title and transfer documents included in our record is that there was a house, or structure, which overlapped over both plots and therein lies the subject matter of the present litigation.

Without any apparent warning the respondent instructed Jeneby's Auctioneers to sell the portion of the building on plot 161 which consisted of four rooms, a jiko and a WC, on 23 July 1988, a sale which was by agreement postponed for one week on payment of the auctioneers' charges.

Within this short extension of time the appellant consulted advocates and filed suit on 27 July 1988, setting out substantially the history as I have related it above, claiming an injunction restraining the respondent from interfering with his lawful rights over the property, an appropriate declaration and special and general damages. In support of his contention that while the house belonged to him the appellant stated that he had been collecting rents from the existing sitting tenants in the portion of the house on plot number 161 without objection from the respondents, and had occupied the whole structure after the tenants vacated it in 1977, again without objection. This is not strictly correct, since according to Mr *Abdullah*'s submissions in the High Court his client took proceedings for eviction against the siting tenants, and, as a result, then occupied the whole house.

The respondents generally traversed the allegations in the plaint and disputed the entitlement of the appellant to collect the rents. Moreover, Mr *Gikandi*, appearing for the respondent, emphasised in his submissions before the Court that he had drawn paragraph 3 of his defence so as not only to deny the corresponding allegation in the plaint, but also to aver that no portion of the appellant's house rested on plot XXX 161, which belonged absolutely to the respondent. Furthermore, he said there was counterclaim for the rents unlawfully collected, upon which issue had never been properly joined. In this connection I observe that under Order XIII, rule 10 it is permissible, though not mandatory, to file a reply and defence to the counterclaim.

However, that does not concern us on this appeal which is against the refusal of Githinji J to grant a temporary injunction sought by the appellant by a concurrent chamber summons in similar though not identical terms to the permanent injunction claimed in the plaint. This had in fact been granted *ex parte* by Bosire J on 28 July 1988. Since, subsequent to his ruling, Githinji J on the authority of *Erinford Properties Limited v Cheshire County Council* [1974] 2 All ER 448, ordered that there should be a temporary injunction in favour of the appellant instead of the stay of execution sought, plot number 161 and the portion of the house standing on it has not yet been sold.

Neither counsel was able to give us a satisfactory account of just how this house is distributed between the two plots of land. Mr *Gikandi* said that there were two large rooms, a toilet and jiko resting on plot number 160, that there were separate entrances on each plot but no communicating door or other form of direct access between the two portions.

Mr *Abdullah*, on behalf of the appellant, nevertheless submitted that the house itself is one and indivisible, and has always been treated as a single entity by the Municipality of Mombasa, which has numbered it as house J123. If it comprised two units, Mr *Abdullah* said, then nothing would have been easier than for the municipality so to have indicated. Moreover, it was alleged in the plaint and repeated in the appellant's affidavit in support of the chamber summons that "a substantial portion" of the house rested on plot 160 and "only a "minor portion" on plot number 161. Mr *Abdullah* said that this had never been satisfactorily denied, either in the defence or in the grounds of opposition filed by the respondent on 3 August 1988. By pleading the matter in the way they had, inasmuch as they merely denied that the appellant had any proprietory interest in plot number 161 or that part of the house which stood thereon, the respondent had not effectively challenged the relevant part of the plaintiff's case.

Finally, Mr *Abdullah* repeated the contents of paragraph 5 of his memorandum of appeal, which is to the effect that the judgment had failed to take any account of the very special feature pertaining to properties at the coast, whereby if a house overlapped into two plots but was not divisible, custom required that the portion of the land in the adjoining plot which was covered by the house should pass to the owner of the house coterminously with the house itself.

I may say that there was not a shred of evidence led by the appellant that such a custom existed, nor as to the extent of its observance. I would also state that neither of the plans forming MSS3 give any real idea of how much of the house rests on each plot, though it is just possible to discern from the second plan in the supplementary record that the shaded area which occupies both plots is such that there is a narrow rectangular strip between the shaded area and the boundary formed by the marker beacons at the four corners of the combined plots.

As Githinji J observed in the course of his ruling on the injunction application, the suit was not brought on the basis of a claim of entitlement to the land in Plot number 161, on which the house stands, by way of adverse possession under the Limitation of Actions Act (Chapter 22). If it had the appropriate procedure would have been by an originating summons as directed by Order XXXVI, rule 3D of the Civil Procedure Rules. As the Court laid down in *Sisto Wambugu v Kamau Njuguna* [1983] 1 KAR 217 and in *Public Trustee v Kamau Wanduru* [1984] 1 KAR 498 for a claim based on adverse possession to succeed it must be shown that the possession was truly adverse, in the sense that the real owner could have taken steps to evict the possessor but did not, and that that state of affairs had existed for the full 12-year period. Paragraph 6 of the plaint appears to suggest a basis for a prescriptive claim but the document then goes on to claim an injunction and a declaration of rights. By no stretch of the imagination can it be said that the claim with which we are dealing in this case is a claim based on adverse possession of the portion of plot 161 upon which the house stands.

If follows that the claim rests on the document of transfer dated 11 July 1972 whereby plot 160, and not any part of 161, was transferred to the appellant. This reflected exactly the same situation as in the 1968 transfer when Fatuma sold it to the Athmans. This is how the action is pleaded in paragraphs 3 and 4

of the plaint. It was not possible in my judgment to correct the situation by converting the action into a claim by way of an originating summons (even if an application had been made) as there is no provision in the Civil Procedure Rules – though under Order XXXVI, rule 10, there is jurisdiction to convert a case which has been incorrectly brought by an originating summons to be continued as a normal suit. That would occur when, for example, it turned out that that which had commenced as a dispute raising issues of pure law involved complicated and controversial issues as to the facts. This is shown very clearly by the following two quotations from the judgment of Sir Eric Law JA in *Kibutiri v Kibutiri* [1983] 1 KAR 60 at 61.

The procedure by way of originating summons is intended:

> "To enable simple matters to be settled by the Court without the expense of bringing an action in the usual way, not to enable the Court to determine matters which involve a serious question."

This was said in *Re Giles (2)* [1890] 43 ChD 391, a decision cited with approval by this Court's predecessor in *Kulsumbhai v Abdulhussein* [1957] EA 699:

> "When it becomes obvious that the issues raise complex and contentious questions of fact and law, a judge should dismiss the summons and leave the parties to pursue their claims by ordinary suit. The instant summons is very much in point; it occupied seven full hearing days, spread over three years, many witnesses were called and exhibits produced, and the hearing was followed by a long 'judgment' (which should have been a ruling) and a 'decree' (which should have been an order) the effect of which was to dissolve the partnership entirely (which was not a relief claimed in the summons) and the partition the land on which the firm carried on its farming activities amongst the two plaintiffs and the defendant."

In the case of *Wakf Commissioners v Mohamed Bin Umeya* [1984] civil appeal 83 of 1983, this Court upheld an objection by the appellant that a complicated dispute as to the execution of a Wakf by the trustees, with bitter allegations made by the members of the Mosque of Mwijabi of maladministration, excessive management charges and failure to distribute the proceeds of certain investments, was appropriate for a Court action in the usual way, and could not be resolved on an originating summons.

As I said, there appears to be no authority or provision for the reverse procedure, that is to say for an action begun by plaint to be continued as an originating summons. But, even if that could be done, there was no application on that behalf made in the High Court and the appellant is faced with the difficulty that, under Order XXXVI, rule 3D, a claim based on adverse possession under the Limitation Act must mandatorily be commenced by an originating summons. As this course was not adopted, I take the view that Githinji J was perfectly right in the decision he gave and in his reasons for it. Before leaving this case, however, I would like to deal briefly with the two authorities cited by Mr *Abdullah* and the point regarding the Law of Contract Act (Chapter 23), and its applicability to these proceedings, taken by Mr *Gikandi* on behalf of the respondents.

Taking the second case first, in *Elizabeth Wambui Wanjohi v Official Receiver* [1988] civil application Nai 140 two widows of the original chargors of the property (and registered owners) sought to preserve their continued occupation of the property charged as against the finance company as overriding interests under rule 30(*g*) of the Registered Land Act (Chapter 300) which include:

> "The rights of a person in possession or actual occupation of land to which he is entitled in right only of such possession or occupation, save where inquiry is made of such person and the rights are not disclosed."

The two widows based their claim on customary law, and this authority is therefore in reality against Mr *Abdullah*, so far as his submissions were based on custom, for in that case the Court said:

> "These are said in argument to be customary rights. In so far as the applications based their right to defeat a registered charge on customary law, they are precluded by judicial authority from doing so. In *Esiroyo v Esiroyo* [1973] EA 388 Mr Justice Kneller (as he then was) held that rights in land under customary law are extinguished upon registration under the Registration of Land Act. In *Kiana v Ndia Mathunga* decided by this Court on 26 January 1981, both Law and Potter JJA specifically concurred in that view of the law. We respectfully agree and hold that the fact that applicants are widows of the chargors and may well have customary right to occupation of land, such right is not an overriding interest within the true meaning and intendment of section 30(*g*) of the Act."

It follows from this passage that once the person claiming occupation under customary law becomes a registered proprietor then any customary law claim is extinguished.

The other case was *Salim v Boyd* [1971] EA 550, which, as I understood him, Mr *Abdullah* advanced in support of his submission that we should grant the injunction which Githinji J refused, so that his client can file a declaratory suit to maintain his claim to the relevant part of plot 161. With respect I do not see that his authority is of any assistance to the appellant. I have already said that if the claim rests upon adverse possession, then the law states that it shall be begun by originating summons and not by plaint. All that Kneller J (as he then was) decided in *Salim v Boyd* (*supra*) was that it was necessary for the applicant to show he had been in continuous possession, adverse to the registered owners, for over 12 years, that on the evidence he had shown on the balance of probabilities that he had been in possession for over 20 years, and that he had followed the correct procedure by commencing the case by an originating motion. Of course, that was before the amendment to the Civil Procedure Rules by legal notice 119 of 1975, which specifies an originating summons as the vehicle by which such a claim is to be brought. The case does not in any sense support Mr *Abdullah*'s submission that we should now grant the injunction. Before this can be done he must show either:

(*a*) That the judge took into account some matter or evidence that he should not have taken into account, or

(*b*) That he failed to take into account, or overlooked, some matter or evidence which he should have taken into account, or

(*c*) Otherwise that his decision was plainly wrong.

I do not consider that the appellant has shown any of these things. Indeed, as I said, I think the judge was plainly right.

There remains, then, the matter of the Law of Contract Act mentioned by Mr *Gikandi*. He said that under section 3(3) of the Act no suit may be brought for the disposition of an interest in land unless the agreement was in writing or these is some memorandum or thereof signed by the other party or his agent. This is the old Statute of Frauds provision. Accordingly if the relevant part of plot 161 was transferred to the appellant in 1972 then there should be some such agreement, note or memorandum. For my part I doubt whether this, if it existed, would affect the case one way or the other, for one if the objects of land registration is to ensure that the whole of the transaction and the property or interest transferred is enshrined in the entry in the land register. If this is not so, then, except as regards the overriding interests stated in section 30 (of which

a right acquired by adverse possession is one) it renders purposeless the whole of the sanctity and protection which is conferred by land registration. Moreover, as Mr *Gikandi* pointed out, in the definition section "land" includes the building thereon. Therefore the land conveyed in 1972 was plot 160 only and that portion of the house thereon, and not any party of it which rests on plot 161. As if this were not enough to decide this appeal, there is in addition the finding of the learned Judge, with which I agree, that if the appellant was interested to ask the Court to admit parol evidence to disprove the registered transfer by showing that a part of plot 161 also was transferred he is caught by section 97 of the Evidence Act (Chapter 80) which excludes such evidence specifically when the disposition has been reduced into a document, as it has in the transfer dated 11 July 1972. Finally I would agree with the learned Judge that despite his refusal of the substantive application for a temporary injunction he was correct in granting one in the nature of a stay of execution pending the appeal, since it was the defendants and not the plaintiff, who had succeeded.

For these reasons I would hold that the appellant has not succeeded on any of the grounds he advanced in his memorandum of appeal or in Court. In doing so I would like to pay tribute to Mr *Abdullah* for his very careful (if unsuccessful) presentation of the appeal, and in particular for his meticulous compilation of his list of authorities. I move that the appeal should be dismissed with costs.

As Cockar JA and Omolo AJA agree that is the order of the Court.

Omolo AJA: I agree that this appeal should be dismissed. Like the learned Judge whose decision is the subject of the appeal before us, I also take the view that this suit not having been brought by way of an originating summons as is mandatorily required by Order XXXVI, rule 3D of the Civil Procedure Rules, its eventual success is doubtful. It is agreed that the respondents are the registered owners of the plot known as title number Mombasa/Block XXX/161 on which, to quote from the plaint herein, "a minor portion" of the house claimed by the appellant lies. There is nothing on record to show the size of that "minor portion". The respondents being the registered owners, the appellant could only claim from them that "minor portion" of their plot by adverse possession. An order for adverse possession could only be made in his favour if he complied with Order XXXVI, rule 3D. I agree with the Chief Justice that this appeal should be dismissed in the terms proposed by him.

Cockar JA concurred in the judgments of Hancox CJ and Omolo AJA

For the appellant:
Mr SE Abdullah

For the respondents:
Mr N Gikandi

Byabalema and others v Uganda Transport Co [1975] Ltd
[1990–1994] 1 EA 59 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	8 November 1993
Case Number:	10/93
Before:	Manyindo DCJ, Odoki and Oder JJSC
Sourced by:	LawAfrica

[1] Appeal – Against award of damages – Applicable principles – Award inordinately high or low – Necessity of recent court decisions.

[2] Damages – Quantum of damages – Amputated limb – Distinction between amputation below or above the knee.

[3] Negligence – Liability – Admission of liability – Whether Judge can reverse the admission for liability.

Editor's Summary

The appellants were passengers in the respondent's bus when it was involved in a collision with army lorry. The appellants sustained personal injuries from the accident and sued an for the recovery of general and special damages. The respondent admitted 80% responsibility for the accident and the matter was set down for assessment of damages.

The trial Judge awarded UShs4 million to the first appellant and UShs600 000 to the second appellant. The third appellant's claim was dismissed. The appellants preferred an appeal from the decision on three grounds, namely; the award to the second appellant was inordinately low, the award to the first appellant was inordinately low and the trial Judge misdirected himself when he dismissed the third appellant's suit.

Held – It is now well settled principle that an appellate Court may only interfere with an award of damages when it is so inordinately high or low as to represent an entry erroneous estimate. It must be shown that the judge proceeded on a wrong principle or that he misapprehended the evidence in some material respect, and so arrived at a figure which was either inordinately high or low. *Ilanga v Manyoka* [1961] EA 705 followed.

When considering the leg injuries where amputation has been effected, it is important to bear in mind the distinction between an injury which involves an amputation below the knee and one which involves an amputation above the knee. As a rule, there is greater disability where amputation takes place in the thigh and larger sums are awarded in those circumstances.

In order to decide whether an award is inordinately low as to amount to a wrong estimate of damages, it is necessary to consider the recent cases which have been decided by the Court. Once liability is admitted, it is not proper for the trial Judge to reverse that admission unless there are valid grounds for doing so.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**"

means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Associated Architects v Christine Nazziwa civil appeal number 5 of 1981 (UR)

Byarugaba v Kilembe Mines [1972] EA 341

Kiggundu and another v Uganda Transport Company [1975] *Limited* civil appeal number 7 of 1993

Musamali v UEB High Court civil suit number 8 of 1990

Katerega v UEB High Court civil suit number 93(*b*) of 1989

Ilanga v Manyoka [1961] EA 705 – **F**

Kyambadde v Uganda Electricity Board High Court civil suit number 1 of 1990

Wamala v Kabuzi High Court civil suit number 981 of 1989

United Kingdom

Davies v Powell Duffyrun Associated Colleries Limited [1842] AC 601

Flint v Lovel [1935] 1 KB 354

Nance v British Columbia Electric Railway Company Limited [1951] AC 601

Judgment

Odoki JSC: The appellants were passengers, in the respondent's bus when it was involved in a collision with an army lorry on the Kampala – Masaka Road, on 8 August 1988. The appellants sustained personal injuries as a result of the accident and sued the respondent for recovery of general and special damages. When the suit came up for hearing, the respondent admitted only 80% responsibility for the accident. The balance of liability was attributed to the army lorry but the Attorney-General was not joined as a defendant. The parties could not agree on the quantum of damages. The matter was therefore set down for assessment of damages.

The learned trial Judge awarded the first appellant UShs4 million and the second appellant UShs600 000 as general damages for the injuries they sustained. The claim of the third appellant was dismissed. It is against this decision that the appellants now appeal to this Court.

There are three grounds of appeal. The first is that the learned trial Judge awarded the second appellant Sam Kafayi, inordinately low damages. The second ground is that the learned trial Judge awarded the first appellant Matiya Byabalema inordinately low damages. The third ground is that the learned trial Judge misdirected himself when he dismissed the third appellant's suit and failed to assess the quantum of damages due to him if he had been successful.

Both counsel submitted their written arguments in accordance with rule 97 of the Supreme Court Rules and did not wish to be heard in Court.

It is convenient to deal first with the second ground of appeal which relates to the award of damages in respect of the first appellant. Mr *Mugabi* submitted that the award of UShs4 million was inordinately low and the trial Judge erred in his assessment of damages by not considering the element of loss of future earnings. According to counsel the first appellant who was a mason and painter had been earning UShs2 000 per day or approximately UShs50 000 per month. The appellant was aged forty years and could therefore have continued to work

for another twenty years. Taking a multiplier of 13 the first appellant could have earned only 3 000 which amounts to UShs7 800 000. But now the appellant was earning only UShs3 000 per month as cobbler.

The second error complained of was that the trial Judge grossly undervalued the appellant's loss of bodily integrity. The appellant had sustained an amputation of his leg with a permanent disability of 60%. It was submitted that the trial Judge misdirected himself when he held that as far as he was concerned the difference was the same. Whether the amputation was below or above the knee, whereas an amputation above knee attracts a higher award.

Thirdly, counsel submitted that the trial Judge erred in basing his award on 1980 cases when Uganda shillings were equivalent to $1. He suggested that the judge should have had recourse to the pre-1981 floating Uganda currency Court decisions as the most realistic guide. Finally counsel submitted that the learned trial Judge misdirected himself when he awarded a sum of UShs4 million to the first appellant.

Mr *Mugenyi* for the respondent submitted that there was no complaint that a wrong principle was applied but merely that the quantum of damages awarded was inordinately low. He contended that what is inordinately low or high is a very subjective matter and that judges have widely differing perceptions of what is inordinately low or high. He conceded that recent cases show that awards have been going up in step with the devaluation of the currency. He also conceded that the award to the first appellant was the lowest on record thus reversing the upward trend, but he defended the award on the ground that the judge was exercising his discretion against the evidence he had before him and using his personal perceptions of the present social and economic conditions in the country.

It is now a well settled principle that an appellate Court may only interfere with an award of damages when it is so ordinately high or low as to represent an entirely erroneous estimate. It must be shown that the judge proceeded on a wrong principle or that he misapprehended the evidence in some material respect, and so arrived at a figure, which was either inordinately high or low. This principle was stated by the Court of Appeal for Eastern African in *Ilanga v Manyoka* [1961] EA 705 where the Court quoted with approval the decision of the Privy Council in *Nance v British Columbia Electric Railway Company Limited* [1951] AC 601 at 613 to this effect:

> "The principles which apply under this head are not in doubt. Whether the assessment of damages be done by a judge or jury, the appellate court is not justified in substituting a figure of its own for that awarded below simply because it would have awarded a different figure if it had tried the case at first instance. Even if the tribunal of first instance was a judge sitting alone, then before the appellate court can properly intervene, it must be satisfied either that the judge in assessing the damages applied a wrong principle of law (as by taking into account some irrelevant factor or leaving out of account, some relevant one) or short of this that the amount awarded is so inordinately low or so inordinately high that it must be a wholly erroneous estimate of the damage: *Flint v Lovel* [1935] 1 KB 354 approved by the House of Lords in *Davies v Powell Duffyrun Associated Colleries Limited* [1842] AC 601".

These principles were re-affirmed by the predecessor to this Court in the case of *Associated Architects v Christine Nazziwa* civil appeal number 5 of 1981 (UR).

In the present case, counsel for the appellant had already raised matters which indicate that the learned trial Judge applied wrong principles in assessing the damages to be awarded and also that the quantum of damages was inordinately

low. The complaint that the trial Judge did not take into consideration the loss of future earnings of the first appellant cannot be sustained in view of the approach taken by trial Judge that it was necessary finally to award a composite general sum because of the many intangibles involved. In my view, the trial Judge must have taken the item of loss of future earnings in determining the amount of damages he awarded.

However, the learned trial Judge erred on a matter principle when he said:

> "In this present case there was an above knee amputation of whatever leg was amputated. In the cases I have cited, there was below the knee amputations. In my view the difference is the same as what is material is the incapacity."

As it was said in the case of *Byarugaba v Kilembe Mines* Limited [1972] EA 341, when considering the leg injuries where amputation has been effected, it is important to bear in mind the distinction between an injury which involves an amputation below the knee and one which involves amputation above the knee. As a rule, there is greater disability where amputation takes place in the thigh and cases show that larger sums are awarded in those circumstances.

It was submitted that the learned trial Judge erred in basing his award of damages on the cases decided in 1980 when the value of the Uganda shillings was different from today. The learned trial Judge discounted the cases referred to by learned counsel for the appellant because they had been decided in 1970's. His reason was that "the cases cited by counsel for the plaintiff are of little if any relevancy to cases of today since the economic situation then cannot be comparable with today's economic situation". He considered the 1980 awards more recent than those of 1970's.

In my view the learned Judge was right in basing his award on more recent cases. However, considering the drastic devaluations that the Uganda shilling has suffered since 1980, the awards made ten years ago are of little guidance in assessing the amount of damages. I do not think that mere conversion of the amounts awarded in 1970's or 1980's into United States dollars using the exchange rate at the time, and then multiplying the amount in dollars by the current exchange rate can offer a realistic guide to the appropriate award today. I am inclined to the view that courts ought to assess the amount of damages taking into account the current value of money in terms of what goods and services it can purchase at present. The most recent decisions of the Courts in Uganda provide the best guide and ensure conformity in the level of awards which should be maintained.

In order to decide whether the award in favour of the first appellant was inordinately low as to amount to a wrong estimate of damages it is necessary to consider the recent cases which were cited by counsel as well as those which have been decided by the Court. In *Kyambadde v Uganda Electricity Board* High Court civil suit number 1 of 1990, the plaintiff, a minor aged ten years, was electrocuted and burnt on the left arm and armpit with resulting ugly hypertrophic scars and reduced shoulder movements. He also sustained injuries on the left thigh, with a total disability of 35%. He was awarded UShs9 million as general damages. In *Katerega v UEB* High Court civil suit number 93(*b*) of 1989, the plaintiff who was working with the defendant Board as a technician was electrocuted and suffered head injury, injury to urethra which severely limited his sexual life and fracture of the pelvis which had united. He had a permanent disability of 30%, and was awarded UShs15 million as general damages. The injuries in these two cases are not quite similar to those sustained by the first plaintiff.

Two cases cited by counsel for the respondent which have similar injuries to the present are *Wamala v Kabuzi* High Court civil suit number 981 of 1989 where, according to counsel, UShs6 million was awarded for amputation above the knee. The other case is *Musamali v UEB* High Court civil suit number 8 of 1990 where counsel stated that UShs20 million was awarded for amputation above the knee. Unfortunately these authorities were not available for me to peruse in order to appreciate the extent of the injuries and the factors which influenced the awards.

In a recent decision of this Court, *Kiggundu and another v Uganda Transport Company* [1975] *Limited* civil appeal number 7 of 1993, the first appellant was awarded UShs10 million as general damages for an amputation above the knee with permanent disability of 60%. The High Court award of Ushs 5.5 million was considered inordinately low.

In the present case the first appellant who was a builder and painter aged forty years sustained a crush injury on the right ankle and right foot as a result of which an above-knee amputation of the leg was carried out. His permanent disability was assessed at 60%. The injuries in this case are similar to those in the case of *Kiggundu v Uganda Transport Company*. In view of this I think that the award of UShs4 million for the first appellant was so inordinately low as to justify interference. Taking into account all the circumstances of the case the fact that the respondents liability was only 80%. I would substitute the award of UShs4 million with that of UShs9 million as general damages.

The first ground of appeal is in respect of the award of damages for the second appellant. He was a carpenter aged thirty two years. He sustained a compound fracture of the left femur. The fracture had united with a shortening of the lower third of the leg by one inch, with stiffness of the left knee joint. Permanent disability was estimated at 25%. The learned trial Judge awarded him UShs600 000 as general damages.

The learned Judge relied on the case of *Marion Akankwasa v Attorney-General* [1982] HCB 69 where an award of Ushs 70 000 was made for similar injuries. It is not clear how this decision guided the judge in arriving at a figure of Ushs 600 000. Moreover, this figure was below that of Ushs 800 000 suggested by counsel for the respondent.

In my view, the amount of Ushs 600 000 is so inordinately low as to amount to a wrong estimate. Taking into account the relevant circumstances, I would substitute an award of Ushs 1.5 million as general damages.

As regards the third ground of appeal Mr *Mugabi* submitted that the trial Judge was wrong in dismissing the third appellant's claim when the respondent had admitted 80% liability and the case was merely for assessment of damages. I think Mr *Mugabi* must be correct. Once liability is admitted it is not proper for the trial Judge to reverse that admission unless there are valid grounds for doing so.

The main ground upon which the trial Judge based his decision was the apparent contradiction between the evidence of the third appellant when she testified that she sustained a dislocation of her right hip, but Dr Sekabunga who examined her stated that she had sustained a fracture of the right hip which was reduced by thirty degrees. The learned Judge then concluded:

> "Fracture and dislocation are different injuries. From the evidence it is difficult to ascertain which injury is proved by the scanty confused evidence, upon which assessment of damages can be based."

With respect to the learned Judge, there was no material contradiction between the evidence of the third appellant and that of the doctor examined him. To a lay person a fracture and dislocation may mean the same thing. It is only a doctor who may give an authoritative description or classification of an injury. The doctor's evidence should have been believed on this aspect of the case. In my view this apparent contradiction in the description of the injury sustained by the third appellant was minor and did not justify the dismissal of her claim. On the contrary, there was sufficient evidence to prove the injuries she sustained. The judge erred in not assessing the damages he would have awarded had the appellant been successful in her claim.

From the evidence it is clear that she sustained a fracture of her right hip which was reduced by thirty degrees, and remained painful. Permanent disability was assessed by 30%. She was aged thirty two years and was previously a tailor at Nsangi SSS, but was now selling fried cassava. Mr *Mugabi* submitted that hip/pelvis injuries are more serious for women because of the burden of child bearing. However, I think that the figure of UShs6 million suggested by counsel is too high. I would award the third appellant UShs2 million as general damages.

In the result I would uphold the three grounds of appeal and allow the appeal with costs to the appellants. I would set aside the awards and order of the trial Court. I would substitute an award of UShs9 million for the first appellant, UShs1.5 million for the second appellant and would award the third appellant UShs2 million, as general damages.

Manyindo DCJ and Oder JSC concurred in the judgment of Odoki JSC.

For the appellants:
Mr Mugabi

For the respondent:
Mr Mugenyi

COTU (K) v Nzioka and others
[1990–1994] 1 EA 64 (CAK)

Division:	COURT OF APPEAL OF KENYA AT NAIROBI
Date of judgment:	3 November 1993
Case Number:	249/93
Before:	APALOO CJ, GICHERU AND TUNOI JJA
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[1] Equity – Equity does not act in vain – Application seeking stay of already concluded proceedings – Whether order of stay may be granted.

[2] Judicial review – Natural justice – Audi alteram partem *– Counsel opting to travel abroad instead of appearing in Court – Application for adjournment on his behalf denied – Whether rules of natural justice breached in his not being given an opportunity to be heard.*

Editor's Summary

The respondents had brought judicial review proceedings in the High Court seeking to have the decision of the Registrar of Trade Unions to register new

office bearers for the Central Organisation of Trade Unions (COTU) to be quashed. COTU appeared in the proceedings as an interested party. When the matter came for hearing on 4 October 1993 before the High Court, Dr *Gachuki* and Miss *Weru* appeared as counsel for COTU. The matter was adjourned to 18 October 1993 to which Dr *Gachuki* intimated to the Court that the date was unsuitable for him as he would be out of the country. On 18 October 1993 Miss *Weru* unsuccessfully applied for adjournment on grounds that senior counsel Dr *Gachuki* was not available to conduct the trial. On refusal of the application, Miss *Weru* participated in the trial and made submissions. The matter was subsequently adjourned to other dates.

COTU made an application to the Court of Appeal seeking stay of the High Court proceedings for failure by the judge to grant an adjournment on 18 October 1993. It was contended that the judge's failure to grant the adjournment was a contravention of the rules of natural justice as Dr *Gachuki* was denied an opportunity to be heard. This application was canvassed in Court a day after the proceedings at the High Court had been concluded.

Held – The rule of natural justice obliges a judge or an adjudicator faced with the task of making a choice between two opposing stories to listen to both sides. He should not base his decision only on hearing one side. He should give equal opportunities to both parties to present their cases or divergent view points. But he is not obliged to hear them if one party though given the opportunity either declines or by conduct chose not to be heard.

Dr *Gachuki* by electing to travel abroad and not make submissions before the judge, could not be heard to say that any principle of natural justice had been breached because the judge in exercise of his judicial discretion declined to accede to the application for adjournment.

A court of equity will not grant a relief which serves no practical purpose as equity does not act in vain. Since the proceedings had been concluded and only ruling was pending, an order of stay of proceedings could not be given by the Court.

Application dismissed.

No cases referred to in ruling

Ruling

Apaloo CJ, Gicheru and Tunoi JJA: In view of the events which occurred since this application was filed on the 19 October 1993, the learned argument addressed to us in support of the application on the 28 October, last, was largely academic. We will give our reasons a non for forming this view.

However, both counsel argued this application in great earnestness and we owe it to them to state the facts briefly and the view we formed of the submission pressed on us. On the 2 July 1993, the respondents who were holders of important offices in the Central Organisation of Trade Union (hereinafter called COTU) attempted with others to assemble at a premises called Solidarity Building to hold a duly summoned meeting of COTU. The agenda of that meeting was stated in advance to the persons who were entitled to attend that meeting but is irrelevant for present purposes.

The projected meeting at Solidarity House did not take place. Instead, another meeting of persons who held themselves out, as members of COTU took place. It was said that the meeting was also duly advertised. The reason why the Solidarity House meeting did not take place was the subject of dispute but this fact has no bearing on the present application. The rival meeting took place in the well-known Kenyatta International Conference Centre. It was claimed that at the meeting, the six respondents who held prominent offices in COTU, were voted out of office and new persons were elected in their places. This change in the membership of the governing council was widely reported in the media.

The control of trade unions is regulated by statute, namely, the Trade Unions Act. Speaking broadly, the office charged with the task of supervising the operation of the Act, is known as the Registrar of Trade Unions. Among his duties, is the reception and a designated form "N" of a "notice of all changes of offices or their titles" etc. On the 5 July 1993, the Registrar was provided with form "N" notifying him of the change of membership of offices in the applicant's Union purportedly made in compliance with section 38(2) of the Act. This form notified him of the change of officers brought about by the KICC meeting of the 2 July 1993. The respondents made objections to the Registrar and apparently disputed the legality of the purported changes. The Registrar decided that the objections lacked substance. He proceeded to put on the register, the names of the persons allegedly elected to the various offices mentioned in the notice. He informed the respondents of this the next day.

It may, perhaps be thought that the Registrar acted on the application somewhat precipitately. It is, however, a reasonable inference that as – Trade Union action may be injurious to the security of the State, he thought he should act with dispatch. The result of the registration of the new offices was that the respondents' names disappeared from the register. They therefore sought the aid of the High Court to put right, what they conceived the Registrar had done wrong by judicial review. This application was lodged on the 20 August 1993. It was served on Central Organisation of Trade Union on the 25 August and was scheduled for hearing on 4 October 1993. On that day, the application was listed before Shields J. The record shows that apart from Mr Muthoga, who appeared with Mr Moses Gitao for the applicants, Mr *Oyalo* appeared for the Registrar of Trade Unions and Dr *Gachuki* and Miss *Weru* appeared for Central Organisation of Trade Unions.

The record shows that before hearing commenced, Mr *Oyalo* applied for adjourn on the ground that the Registrar was served only on the 25 August. This was opposed by Mr Muthoga. The judge refused the application for adjournment. Dr *Gachuki* then pointed out to the judge, that the new officers registered on the 5 July, in place of the applicants, were persons interested within the meaning of Order LIII, rule 3(2) of the Civil Procedure Rules and ought to be served with the application. The judge agreed and ordered that service on these persons should be made by publishing these proceedings in "3 daily English language newspapers". The judge then adjourned the matter to the 18 October ie two weeks.

Dr *Gachuki* then seems to have informed the judge that that date was unsuitable for him as he would be out of the country. The judge refused to budge. So when the Court reassembled on the 18 October, Miss *Weru* alone appeared for

COTU who were then described as interested persons. After a number of preliminary matters, she reminded the judge that Dr *Gachuki* was out of the country and seems to have repeated Central Organisation of Trade Union's plea for adjournment. The judge again refused and said in substance, that the Doctor had to choose between his duty to his client and his travelling arrangement. He then ordered hearing to proceed. It did.

Mr *Oyalo* raised a preliminary objection which Mr Muthoga replied to. The judge dismissed that objection and ruled that hearing of the application on its merits should proceed. Mr Muthoga then commenced agreement and the Court took a recess at 12:35pm He adjourned further hearing to 2:30pm of that day. Mr *Oyalo* for the Registrar then made a few remarks. Miss *Weru* for Central Organisation of Trade Union then took her turn and addressed the Court at some length. Mr Muthoga replied to this. Further hearing was postponed to the next day, namely, the 19 October. On that day, Miss *Weru* seemed to have raised some issues which are unclear from the record and appeared to have repeated her application for adjournment. The judge again refused to adjourn. Miss *Weru* then sought leave to withdraw. Such leave was given and she withdrew.

It was then the turn of Mr *Oyalo* to address the Court. He did as at great length. He concluded his submission in the afternoon of that day. Then a Mr Maosa, who told the Court that he was instructed by the Registrar of Trade Unions, was then permitted to address the Court. It is to be noted that it was the Registrar's action in registering the new office's that was big contested by the present respondents. Miss *Weru* who sought and was permitted to withdraw, reappeared that afternoon and again made further submissions on behalf of Central Organisation of Trade Union. The Court then adjoined at 4:30pm to the 21 October. On that day Miss *Weru* reappeared and informed the Court that she had filed a notice of appeal with a simultaneous application for stay of proceedings. She then informed the Court that she required certified copies of proceedings. The Court informed her that all the proceedings she required would be made available to her during the lunch break. Miss *Weru* next told the Court:

> "I apply for leave to appeal against the refusal of the adjournment of 18 October 1993".

It seems plain the judge's patience had run out and he refused leave to appeal and remarked that "this is a rather cheap attempt to disrupt the trial". Miss *Weru* who appeared to have been undaunted, then resumed and concluded her submissions on the merits. Nothing seems to have been heard of her after this. But the affidavit evidence placed before us shows that her presence or not, the Court heard further submission on the 23, 26 and 27 October. On that day, hearing was concluded and ruling was reserved to be delivered on notice to the parties.

When Miss *Weru* resurfaced, it was before us, not to contest the Court's ruling, as it is yet to be delivered, but the learned Judges's refusal to grant an adjournment on the 18 October 1993.

The argument urged on us in support of the application to stay further proceedings in the High Court, was that in refusing to accede to the application for adjournment on the 18 October 1993, the judge was in breach of the rules of natural justice. It was contended that this breach invalidated the proceedings

and rendered it a nullity. This submission comes strangely from the mouth of counsel who was permitted to argue and who advanced full argument to show that the Registrar of Trade Unions was right in taking the action complained of.

But counsel's complaint of failure of natural justice was not that the judge did not allow Central Organisation of Trade Union or herself to be heard, but that by refusing the adjournment, her senior counsel and leader, Dr *Gachuki*, was disabled from presenting argument on behalf of his clients. But the evidence shows that Dr *Gachuki* was left in no doubt that the Court would not countenance a further adjournment. He was not obliged to address the judge. He was perfectly free to travel abroad and conduct whatever business had there, or he could if he so wished have postponed or abandoned his projected trip and made full submissions on behalf of his clients. The choice was entirely his and he had to balance one need against the other. That is the type of balancing of priorities that inheres in any decision-making where there is a choice of one or more alternatives. He elected to travel and in our opinion, neither he, nor his clients can be heard to say, any principle of natural justice had been breached, because the judge, in the exercise of his judicial discretion, declined to accede to the application for adjournment.

In any event, we think, on the facts of this case, the contention based on a breach of the rule of natural justice was misplaced. As a concept, it is derived from the Latin maxim *audi alteeram partem* which in English means, "hear the other party". This rule obliges a judge or an adjudicator faced with the task of making a choice between two opposing stories to listen to both sides. He should not base his decision only on hearing one side. In the case of the judge, he should give equal opportunity to both parties to present their cases or divergent viewpoints. And doing so, should hold the scales fairly and evenly between them.

But he is not obliged to hear them both if one party, though given the opportunity, either declined or by conduct or otherwise, chose not to be heard. As is well known, in civil proceedings, where the object is compensatory and not penal, a party against whom a remedy is sought, must be notified of the claim against himself. But he is not obliged to answer it, or if sued in Court, is not compelled to make a defence. But in choosing that course, he runs the risk of an adverse decision being made against himself. If that happens, it cannot lie in his mouth to complain that there has been a breach of the rules of natural justice. In respect of Dr *Gachuki* that is precisely what happened. Though given an opportunity he elected not to be present. But fortunately for his client, his junior presented on behalf of Central Organisation of Trade Union an answer to the respondents contentions as best she could. We must therefore reject the contention that natural justice was breached or that, that concept had any relevance to this case.

As we observed at the beginning of this ruling, we think the argument presented to us on this application was purely academic and served no practical purpose. The applicants invoked the equitable jurisdiction of this Court "for a stay of proceedings pending the determination of this appeal. On the date we heard argument, that is on 26 October last, there was undisputed affidavit evidence that the proceedings had been concluded on the 27 October. So an order staying proceedings would be pointless As is 'well known, a Court of

equity whose jurisdiction the applicants are invoking, will not grant a relief which serves no practical purpose or as is otherwise said, “equity will not act in vain”. Counsel for the applicants however, retorted that the proceedings could not have been concluded as no ruling had been delivered. In ordinary legal terminology, proceedings of a Court differ from its conclusion or judgment. It is on former that the latter is based and in the legal parlance, the two are several. But we assume, without deciding, that a suit or matter is not concluded until a judgment or ruling is made. Therefore on the date we heard argument, the relief which the applicants sought could only have been an order to say the delivery of ruling.

We cannot see any legal warrant for this and counsel produced no authority for so novel a plea. The respondents invoked the ordinary time-tested process of the Court in seeking legal relief. All the persons who were likely to be affected by the result of the grant of that remedy, were notified and some of these including the applicants, by counsel, presented argument to the Court in opposition to the relief sought. Having listened to full argument from all the parties who chose to be heard, the learned Judge put off announcing his conclusion, presumably to re-elect on the various points raised. The applicants say in effect, we should present him from announcing to the parties his decision so that their counsel, who, on his own volition, elected not to be present, could advance further argument to the Court.

Such a cause would offend against one’s idea of propriety and fairness and to our way of thinking, would be wrong and unjust. Although we acknowledge that Miss *Weru* presented a full and unyielding case, we cannot avoid the conclusion that the relief prayed for, cannot be granted. It follows that this application fails and is dismissed with costs.

For the applicant:
Mr Muthoga and *Mr Moses Gitao*

For the Registrar of Trade Unions
Mr Oyalo

For Central Organisation of Trade Unions
Dr Gachukia and *Miss Weru*

Commercial Bank of Africa Ltd v Ndirangu
[1990–1994] 1 EA 69 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	26 June 1992
Case Number:	157/91
Before:	Kwach, Cockar and Muli JJA
Sourced by:	LawAfrica

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[1] Civil procedure – Consent order – Failure to serve interested party with such order where such party aware of it.

[2] Enquiry – Rules of natural justices – Where there is a conflict between the rules of natural

justices or the authority and dignity of the Courts.

Editor's Summary

The respondent charged a number of his properties to the appellant, a commercial bank, to secure advances made to him by the bank (appellants). When the respondents defaulted with repayment, the bank moved to exercise its statutory power of sale. To consider this, the respondent filed a suit in the superior Court seeking a multiplicity of reliefs including an injunction restraining the bank, its servants or agents from selling his properties and a declaration that the bank was not entitled to sell the said properties by public auction or otherwise. The respondent then applied for a temporary injunction under Order 39 of the Civil Procedure Rules and when the matter come up for hearing it was ordered by consent among the others that the sale of a specified parcel be stayed except that the respondent was given 60 days within which to dispose off the plot if he could sell it at more than KShs 4 million, as status quo was to be maintained and parties were at liberty to apply for further orders.

The respondent failed to get a buyer within the stipulated time and on the advice of its advocates, and without reverting back to court, the bank, in purposed exercise of its statutory power of sale sold and transferred the parcel in question to a buyer (interested party) at a consideration of KShs 4 million.

The responded made an application in the High Court under Order XXXIX, rules 1, 2 and 3 of the Civil Procedure Rules seeking an injunction to restrain the bank from alienating transferring or otherwise parting with possession and for an order suspending setting aside, staying or otherwise prohibiting the registration of the transfer of the parcel, application that was granted.

It is against that ruling and order that the bank appealed. The grounds supporting the appeal are that, under the consent order entered into previously on failure of the respondents to sell the land for the agreed sum within the agreed period, the bank then became entitled to sell it under its chargees right to sell and that it was against the rules of natural justices the interested party who was an innocent purchaser was being deprived of his property without being given an opportunity to be heard.

Held – The statutory power of sales which the bank could exercise had been curtailed and compromised by the consent order to the effect that the sale of the suit land was stayed and that order was not in anyway valued by any other order or orders. There was specific order granting the parties hereby to apply but no party availed itself of this liberty with the result that the consent order remained "unscathed".

The interested party was an active player in stage. He was fully aware that the sale of the suit land has been stayed by the Court. In the circumstances he cannot properly claim that he was an innocent purchaser for value without notice. He was partisan to the contempt of the Court order.

Although the interested party may not have been served with the consent order, he was aware of the transactions between the bank and the respondent and being aware that his legal rights were being threatened he should have applied to be joined as a party to defend his legal proprietary rights. Although he was invited by this Court to be heard and his counsel was indeed heard, still he is not a apart to this appeal. The upshot is that he has no *locus standi* before this Court and cannot expect to reap benefits from proceedings in which he is not a party.

Rules of natural justice are the foundation of a judicial system. Their observance is universal but, at the same time, a fragrant disobedience of a Court order, if allowed to go unchecked, will result in the onset of an erosion of judicial authority.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Oloo v Kenya Post and Telecommunication Corporation [1982-1988] 1 KAR 655

United Kingdom

Acrow (Automation) Limited v Rex Chainbelt Inc [1971] All ER 1175

Elliot v Klinger [1977] 3 All ER 141

John v Rees [1969] 2 WLR 1294

Marengo v Daily Sketch and Sunday Graphic Limited [1948] 1 All ER 406

Ridge v Baldwin [1963] 2 All ER 66

Judgment

Kwach JA: It is a fundamental tenet of the rule of law that court orders must be obeyed.

This appeal is essential about alleged flagrant disobedience of a Court order by one of the parties and its advocates. Advocates who aid and abet their clients to disobey or circumvent court orders must understand that they are as much liable to be committed for contempt of court as their clients. If any authority were needed for this perfectly obvious proposition, it can be found in the case of *Marengo v Daily Sketch and Sunday Graphic Limited* [1948] 1 All ER 406; *Elliot v Klinger* [1977] 3 All ER 141 and *Acrow (Automation) Limited v Rex Chainbelt Inc* [1971] All ER 1175.

Isaac Kamau Ndirangu (the respondent) charged a number of his properties to the appellant, Commercial Bank of Africa Limited (the Bank), including plot land reference number 12241, Nairobi to secure advances made to him by the Bank. When the respondent defaulted with payment, the Bank moved to exercise its statutory power of sale. To forestall this, the respondent filed a suit in the Superior Court seeking a multiplicity of reliefs including an injunction restraining the Bank, its servants or agents from selling his properties and a declaration that the Bank was not entitled to see the properties by public action or otherwise.

The respondent then applied for a temporary injunction under Order XXXIX of the Civil Procedure Rules, and on 12 February 1987, when the matter came before O'Connor J, it was ordered by Consent:

> "(1) That Messrs Cooper and Lybrand, Accountants and Auditors be and are hereby appointed to examine all the accounts between the plaintiff and the defendant for commencement to date including without exception all advances made to the plaintiff all payments made to the defendant by the Coffee Board of Kenya or other parties on behalf of the plaintiff including all interest charged and application of interest.

(2) That both parties to surrender all the documents and other related material pertaining to the said to Messrs Cooper and Lybrand and to cooperate fully with them in the exercise.

(3) That Messrs Cooper and Lybrand be and are hereby at liberty to summon any witnesses they deem necessary and/or to requisition for any materials from any party or witness as they deem fit.

(4) That the plaintiff do pay the Auditors and Accountants fees for the said Messrs Cooper and Lybrand for the exercise and to deposit such sums as may be requested by them before commencement and to deposit the said fees within fifteen days from today.

(5) That Coopers and Lybrand to file their report in court with copies to the parties within ten days from the date of completion of the exercise.

(6) Pending the report of the Auditors and/or further orders of the Court status quo to be maintained. No other plots except the eleven sub-divisions more particularly from Land Registration number 12565 shall be sold by the defendant and the transfer of those plots not be effected within forty-five days.

(7) That sale of land reference number 12241 be and is hereby stayed. The plaintiff be and is hereby at liberty to procure the sale of land reference number 12241 for a higher price that KShs 4 million within the next sixty days and the proceeds of sale of the said plot to be deposited with the defendant and that condition to be stipulated in the agreement for sale by the plaintiff.

(8) That case be mentioned on 1 April 1987.

(9) That there be liberty to apply.

(10) That costs to the defendant."

It is to be noted that the consent order was made in the presence of counsel for both parties. So I am entitled to hold as I do, that it's meaning and import was clear to the advocates and the parties. The *status quo* was to be maintained, the sale of plot land reference number 12241 was stayed except that the respondent was given sixty days within which to sell the plot if he could sell it at more than KShs 4 million. The reason for this stipulation was because on the 16 January 1987, the Bank had entered into contract with one Richard Maina to sell this property to him at KShs 4 million. The original date of completion was 31 March 1987, which was later changed to 15 April 1987. The respondent felt the Bank was trying to sell at a gross undervalue and for that reason it was agreed that the respondent could try to sell elsewhere at a higher price.

I have read that consent order very carefully, and the way I understand it, is that the sale of plot land reference number 12241 was stayed, but the respondent was authorised to sell it if he could find a buyer for it at more than KShs4 million, within sixty days. The plain meaning of this is that if the respondent failed to sell within the period, the property reverted back into the ambit of the order. The Bank could then, exercising its rights under the liberty to apply clause, apply to the Court for leave to go back to sell to Richard Maina. The consent order did not permit the Bank, in the event the respondent failed to get a buyer within sixty days, to go ahead and sell To Richard Maina, or anyone else without the intervention of the Court.

As ill luck would have it, the respondent failed to get a buyer at more than KShs 4 million within sixty days. Apparently on the advice of its advocates and without reverting back to Court, the Bank, in purported exercise if its statutory power of sale, sold and transferred plot land reference number 12241 to Richard Maina, on 17 August 1987 at a consideration of KShs 4 million.

The sale to Richard Maina by the Bank was transacted without the Court or the respondent being informed. The first time the respondent learnt about it at least officially, was when the letter from Muthoga *Gaturu* and Company, Advocates, dated 18 September 1987, arrived at the firm of Kilonzo and Company Advocates who were then acting for the respondent. It stated:

> "Dear Sirs,
>
> *Land* Registration *number 12241 – Commercial Bank of Africa Limited*
>
> We have been instructed by our client above named to write to you as follows:
>
> Pursuan*t to the Court order of 12 February 1987, under which it was agreed that the sale of eleven sub-divisions could be finalised and land parcel number 12241 sold after sixty days of that date*, our client went ahead and sold the plot to one Richard Maina for KShs 4 million and effected transfer to him on 18 August 1987, and the title is now in his name as the owner in place of your client.
>
> All the eleven sub-divisions have now been sold and all the money paid out to our client towards the recovery of the loan.
>
> In the premises kindly instruct your client to stop interfering with the land in question since it no longer belongs to him.
>
> Having sold the land, our client has nothing more to do with the sale of the plot and we are by a copy of this letter inviting Messrs Daly and Figgis, Advocates and Messrs Kagwe and Company to do what they can in protecting their client (sic) interests in this matter.
>
> Yours faithfully
>
> For Muthoga *Gaturu* and Company
>
> ET Gaturu". (emphasis mine)

The claim by *Muthoga Gaturu and Company Advocates*, in their letter that under the consent order of 12 February 1987, it had been agreed that parcel land reference number 12241 could be sold by the Bank after sixty days, was a gross distortion of the terms of the consent order. The sale of Land Registration number 12241 had been expressly stayed and only the respondent had been given permission to sell it if he could find a buyer for it at more than KShs 4 million, within sixty days. That limited power of sale was not given to the bank. It is plain beyond a peradventure that the sale of plot Land Registration number 12241 by the Bank to Richard Maina was undertaken in breach of the consent order of 12 February 1987. On the 23 October 1987, the respondent made an application under Order XXXIX, rules 1, 2 and 3 of the Civil Procedure Rules seeking an injunction to restrain the Bank from alienating transferring or otherwise parting with the possession of land reference number 12241 and an order suspending, setting aside, staying or otherwise prohibiting the registration of the transfer of this piece of land to Richard Maina. The application was supported by the affidavit of the respondent to which he annexed a copy of the transfer in favour of Richard Maina, among other documents. This is the application which came before Akiwumi J, on 19 May 1988. He delivered his ruling on 2 June 1988, and made an order setting aside the sale of the suit land to Richard Maina and prohibiting the registration of such sale if it had not taken place, and if it had, nullifying and declaring it to be of no legal effect whatsoever. It is against that ruling and order that the Bank has appealed to this Court.

Although this order had the effect of depriving Richard Maina of his property rights and was therefore prejudicial to him, it was made without giving him an opportunity of being heard in his absence. Counsel who appeared

before Akiwumi J who included Mr ET *Gaturu* for the appellant, did not address the judge on the necessity of involving Richard Maina in the proceedings although he was clearly an interested party.

Although the application was expressly brought to challenge the sale and transfer to Richard Maina, he did not apply to be joined as a party. And even after the judge had made an order nullifying the sale and transfer to him, he did not appeal against it as he could have done if he wished to do so under rule 74(1) of the Court of Appeal rules. It is also to be noted that although the appellant's advocates knew or ought reasonably to have known that Richard Maina was clearly a person directly affected by the appeal within the meaning of rule 76(1) of the Court of Appeal rules, they did not serve him with the notice of appeal. The decision to serve Richard Maina with the record of appeal was made by the Court when the appeal first came on, on 11 March 1992. He instructed counsel who had appeared and made submissions on his behalf.

The decision on the learned Judge has been challenged on some twelve grounds of appeal but in my view they can conveniently be reduced to two namely:

> "(1) That the judge erred in law and in breach of the rules of natural justice in making the order setting aside the sale of the suit premises to Richard Maina and nullifying the registration in his favour without giving him an opportunity of being heard; and
>
> (2) That the sale of the appellant of land reference number 12241 to Richard Maina was in exercise of the appellant's statutory power of sale and in accordance with the consent order made on 12 February 1987, and that in doing so, the appellant was not in contempt of Court."

Mr *Gaturu*, for the Bank submitted that since the parcel in question had been sold and transferred to Richard Maina, the order depriving him of the same and cancellation the registration in his favour should not have been made without giving him an opportunity of being heard and that is doing so, the judge committed a breach of one of the most fundamental rules of Natural Justice, namely, that a party should not be condemned without being heard. If Richard Maina has appealed against the decision of the judge as he was entitled to do and the submission had fallen from the lips of his counsel, I would have had no difficulty at all in accepting it. My reluctance to accept it springs from the fact that the Bank, who had deliberately flouted the order of the Court, is now seeking by a side wind to take advantage of possible prejudice to Richard Maina, who was not a party to the proceedings and has not come to this Court as an appellant to complain against other order.

Mr Kairu, who we allowed to make submissions on behalf of Richard Maina, also attacked the order on the ground that it was made in breach of the rules of natural justice and urged us to set it aside. He read to us a passage from the speech of Lord Reid in the well-known English case of *Ridge v Baldwin* [1963] 2 All ER 66 at 73H, where he said:

> "I would start an examination of the authorities dealing with property rights and privileges with *Cooper v Wandsworth Board of Works*. Where an owner had failed to give proper notice to the board, they had under an Act of 1855 authority to demolish any building which he had erected and recover the cost from him. This action was brought against the board because they had used that power without giving the owner and opportunity of being heard. The board maintained that their discretion to

> order demolition was not a judicial discretion and that any appeal should have been to the Metropolitan Board of Works. But the Court decided unanimously in favour of the owner Erle CJ held that the power was subject to a qualification repeatedly recognised that no man is to be deprived of his property without his having an opportunity of being heard and that this had been applied to 'many exercises of power which in common understanding would be the act of the district board in ordering a house to be pulled down'. Willes J said that 'the rule was of universal application and founded on the plainest principles of justice' and Byles J said that:
>
> > "Although there are no positive works in a statute requiring that the party shall be heard, yet, the justice of the common law will supply the omission of the legislature."

Mr Kairu also relied on the case of *Oloo v Kenya Post and Telecommunication Corporation* [1982-1988] 1 KAR 655, which is a decision of this Court. The appellant who had previously retired from the corporation and had been awarded gratuity and reduced pension, had his pension suspended after being re-employed without being given an opportunity of being heard. The suspension was to last until be attained the age of fifty, when he would have been eligible for a full pension on normal retirement. He brought an action for declaration that the suspension of his pension was unlawful, but the trial Judge dismissed the claim. He appealed, and in allowing his appeal the Court held, *inter alia*, that the Corporation's action in recalling the appellant to duty with the suspension of his pension was an act to his prejudice, and he should have been afforded an opportunity of making representations and of giving an explanation before being required to accept further office with the Corporation in the course of his judgment, Madan JA, (as he then was) said at 559:

> "The reason for the need actually to comply with the rules of natural Justice were well put by Megarry J *John v Rees* [1969] 2 WLR 1294:
>
> > 'It may be that there are some who would decry the importance which the Courts attach the observance of the rules of natural justice. "When something is obvious," they may say "Why force everybody to go through the tiresome waste of time involved in forming charges and giving an opportunity to be heard? The result is obvious from the start. "Those who tale this view do not, I think, do themselves justice". As everybody who has anything to do with the law well knows, the path of the law is strewn with examples of open and shut cases which, somehow, were not of unanswerable charges which, in the event, were completely answered; of inexplicable conduct which was fully explained; of fixed and unalterable determinations that by discussion, suffered a change. Nor are those with any knowledge of human nature who pause to think for a moment likely to underestimate the feelings of resentment of those who find that a decision against them has been made without their being afforded any opportunity to influence the course of events'."

The passage in these cases state the law correctly and that is the law as it applies in Kenya.

Mr *Gatonye*, for the respondent, on the other hand; submitted that although the order against Richard Maina was made in breach of the rules of natural justice, this would not be looked at in isolation, but should be considered in the context of the consent over which the Bank had flagrantly disobeyed.

I think this submission has considerable merit. Granted that the rules of natural justice have been breached, this Court should not lose sight of the fact that a valid order of the Court had been flouted in a most contemptuous and callous manner. Since there is a conflict, I have decided whether to uphold the rules of natural justice or the authority and dignity of the Court. Richard Maina, who

was prejudiced by the order, did not appeal against it. He did not appear before the judge to contest the application either. We have been informed from the bar that he has taken appropriate steps to seek redress from the Bank. So he has a remedy. The Bank should not be allowed to take advantage of its own contempt. This ground of appeal therefore fails.

The second ground of appeal can be disposed of very briefly. The consent order stayed the sale of land reference number 12241, Nairobi. But it gave the respondent sixty days within which to sell it if he could get a buyer at a price of more than KShs 4 million. He failed to get a buyer so the status quo remained. The order did not give the Bank the power to sell even if the respondent did not find a buyer. The Bank's right to sell in exercise of its statutory power had been expressly stayed under the terms of the order. So the Bank had no right to sell either in the exercise of its statutory power of sale or under the terms of the order without the sanction of the Court. It follows that this ground of appeal also fails.

I would like to commend the judge for taking the course he did. It is only by acting swiftly and firmly when an order of the Court is flouted that the dignity and authority of the Court can be upheld.

For these reasons, I would dismiss the appeal with cost to the respondent. As Cockar and Muli JJA also agree, it is so ordered.

Cockar JA: I have had the benefit of perusing in draft the judgments of my learned brothers Kwach and Muli JJA, which I entirely agree. Briefly the facts giving rise to this appeal are that on 21 June 1985, the respondent filed a plaint seeking *inter alia* an injunction to restrain the appellant (hereinafter referred to as the Bank) from trespassing in order to carry out the threatened sale by private or public auction or otherwise of his properties being land reference number 12241, Nairobi (hereinafter referred to as the suit land), two plots of land in Nairobi being land reference number 12239 and 12240 and eleven other plots being sub-divisions of plot land reference number 12565 all of which were charged to the Bank to secure various loans. The Bank filed its defence and counter-claim and the pleadings closed with the filing by the respondent of his reply to defence and defence to counter-claim. Various interlocutory applications seeking injunction and other reliefs followed. Eventually under a Consent Order recorded on 12 February 1987, after referring the examination of all the accounts between the parties to Messrs Coopers and Lybrand, Accountants and Auditors, and after prescribing the conditions and procedure relating to submission of their report, the Court further ordered as follows:

> "6. Pending the report of the Auditors and/or further orders of the Court status quo to be maintained. No other plots except the II sub-divisions more particularly from land reference number 12565 shall be sold by the defendant and the transfer of those plots not to be effected within forty-five days.
>
> 7. That the sale of land reference number 12241 be and is hereby stayed. The plaintiff be and is hereby at liberty to procure the sale of land reference number 12241 for a higher price than 4 million within the next sixty days and the proceeds of sale of the said plot to be deposited with the defendant and that condition to be stipulated in the agreement for sale by the plaintiff.
>
> 8. That case to be mentioned on 1 April 1987.
>
> 9. That there be liberty to apply.
>
> 10. That costs to the defendant."

The said Auditors submitted their report as required but the respondent was unable to sell the suit land (plot number 12241) within the specified period of sixty days. Upon submission of the Auditors report the respondent filed an application to have the report set aside while the Bank made an application to strike out the respondent's suit and to enter judgment for the Bank on its counter-claim. In its ruling dated 29 June 1987, relating to both the applications the learned Judge declined either to strike out or to act on the Auditors report on the ground that it offended the rules of natural justice but entered judgment for the Bank in the sum of KShs 8 068 002-72 which it held on the available affidavit evidence, to have been admitted as owed by the respondent to the Bank. The respondent filed a notice of appeal against the ruling on 1 July 1987, and, following an *inter partes* hearing on 31 July 1987, of an application for stay of execution of the judgment, the Court granted the respondent's prayer for stay of execution on 7 August 1987. On 17 August 1987, the Bank transferred the suit land to one Mr Richard Mbui Maina (hereinafter referred to as the interested party) in consideration of a sum of four million shillings, that prompted an application by way of chamber summons filed on 27 October 1987, by Messrs Kilonzo and Company Advocates, on behalf of the respondent, seeking an injunction to stop the sale of the suit land and *inter alia* to set aside, or uplift or prohibit registration of the suit land pending final disposal of all the appeals filed from decisions in respect of the various applications and the final disposal of the suit. The chamber summons was heard and on 2 June 1988, the learned Judge in view of the consent order made on 12 February 1987, and the order for stay of execution of decree granted on 7 August 1987, which in his view was an extension of the consent order, found the appellant's act of sale of the land to be in contempt of court and for that reason he declined to consider the submission that the sale was in a proper exercise of a charge's right of sale. In the circumstances he ordered the sale to the interested party to be set aside and its registration to be prohibited, if not already effected.

The interested party was neither made a party to the above proceedings nor was he present during the hearing of the above chamber summons.

This appeal, arising from the above ruling on 2 June 1988, of Akiwumi J is based on twelve grounds. However, there are only two grounds which are of consequence and which were argued at length. These are:

> "1. That under the consent order of 12 February 1987, on failure of the respondent to sell the suit land for a sum of over KShs 4 million within the agreed period the Bank then became entitled to sell it under its chargee's right to sell.
>
> 2. Against the rules of natural justice the interested party, who was an innocent purchaser, was being deprived of his property without being given an opportunity of being heard."

As to the consent order Mr *Gaturu* for the Bank contended that the stay with regard to the suit land was granted for sixty days in order only to enable the respondent to find a purchaser for over KShs 4 million. So on failure of the respondent to find a buyer for the suit land the stay lapsed and the position reverted to the status quo prescribed in paragraph 6 of the said consent order. Under the status quo there was no other order by the Court, which restrained or affected the Bank's right to sell as a chargee which is right the Bank had then proceeded to exercise.

We respect and we do not agree with Mr *Gaturu*'s interpretation of paragraphs 6 and 7 of the consent order. In the first place the report submitted by the Auditors, instead of being accepted, was being hotly contested. Further in addition to prescribing the observance of a status quo paragraph 6 had specifically prohibited the sale of any other plots except the eleven sub-divisions mentioned therein. That prohibition therefore applied to the suit land also. But as an agreement of sale had already been executed on 16 January 1987, between the Bank and the interested party the stay of the sale of the suit land that was granted in paragraph 7 of the said order was meant to stop any further steps being taken under the said agreement in respect of the suit land. This stay was made subject to one exception only which is described in the said paragraph seven and which was the liberty that was granted therein to the respondent only to sell the suit land within sixty days. The prohibition to sell and the stay of sale granted in the said two paragraphs had, in my view, effectively neutralised the Bank's right as a chargee and its obligation under the said agreement of sale, to sell. In neither of these two paragraphs is there any provision for the right to sell to ensue to the Bank under any eventuality.

However, in paragraph 8 of the consent order there is a provision for either party to be at liberty to apply for further orders. Thus when the respondent failed to find a purchaser within the prescribed period it was then up to the Bank to have applied to the learned Judge for further orders and thereby pave the way to the eventual sale of land in exercise of the powers vested in it under the charge. Instead of following the laid down steps to obtain the remedy the Bank flouted both the order to which it had consented and the stay of execution order that was granted by Court clearly to protect the suit land from being sold in execution for recovery of the judgment sum which step would have defeated the purpose of the consent order which was to protect the suit land from being sold until further orders of the Court. The learned Judge, in my view, was justifiably outraged at such a blatant flouting of the Court's order. I reject submissions made by Mr *Gaturu* under this head.

Coming now to the issue that the ruling of 2 June 1988, was going to deprive an innocent purchaser of his property Mr *Gaturu* repeatedly stressed that the rules of natural justice had been gravely offended because the ruling was going to affect directly the interested party's ownership of the suit land without his having been given an opportunity of being heard. The learned Judge having been alerted of the interests of the interested party should have given directions for him to be joined and heard.

It is to be noted that the interested party had not appealed against the ruling although he could have done so had he so wished – Court of Appeal Rules, rules 74 and 76(1). It was as a result of appropriate steps taken by Mr *Gaturu* for the Bank, on a direction from this Court, that on the day of the hearing of the appeal Mr Richard Kairu appeared on behalf of the interested party. He had no right to address the Court but we nevertheless allowed him to make submissions on behalf of the interested party and he did so. He strongly supported Mr *Gaturu*'s submissions that the rules of natural justice had been breached by the learned Judge in his ruling, which had so detrimentally affected the interests of the interested party without his having been given an opportunity of being heard during the hearing of the chamber summons.

Mr *Gatonye*, advocate for the respondent, fully aware of the gravity of the error and injustice in a proceeding whereby an innocent purchaser was condemned without having been given an opportunity to be heard, submitted that the learned Judge was faced with a conflict between a deliberate disobedience of a Court order on one side and the rules of natural justice on the other. The Bank with no other valid ground was merely using the breach of rules of natural justice to escape the consequences of its deliberate disobedience of the Court's order. In his view the learned Judge was right in finding a contempt and setting aside the sale.

Rules of natural justice are the foundation of a judicial system. Their observance is universal. But, at the same time, a flagrant disobedience of a Court order, if allowed to go unchecked, will result in the onset of an erosion of judicial authority. The conflict in this case in my view, is not difficult to resolve. The interested party apparently had a prior knowledge of the filing of the chamber summons – refer to first paragraph of his letter dated 9 February 1988, addressed to Messrs Kilonzo and Company who were the advocates of the respondent at that time. This letter was written within three months of the filing of the chamber summons on 27 October 1987, and a little over three months before its hearing commenced on 19 May 1988. So although it was imperative for either the respondent in the first instance, or the Bank or even the Court to have the interested party joined in the proceedings, the fact remains that the interested party had the opportunity to take steps to be joined and to make representations during the hearing of the chamber summons but he declined to do so. In fact his reason for not doing so and his apparent apathy in this matter become clear from the contents of this letter wherein he had offered the suit land back to the respondent on return of the purchase sum and the interest had been paid in respect of the loan he had to raise. So the argument of his being deprived of his property without being heard loses its sting. In fact it was confirmed by all the learned advocates that the interested party had already filed a suit against the Bank to obtain appropriate redress. In light of these exceptional circumstances appertaining to the breach of the rules of natural justice, I am of the view that the learned trial Judge made the right decision.

I whole-heartedly agree that this appeal be dismissed in terms as proposed by Kwach JA.

Muli JA: I have had the advantage of reading in draft the judgments of my noble learned brothers Kwach and Cockar J and I concur with their conclusions and the orders proposed by my noble learned brother Kwach JA.

The respondent, Isaac Kamau Ndirangu, charged his many properties to the appellant Bank (the Bank) as securities for financial advances made to him from time to time by the Bank. Amongst the many properties has property number land reference number 12241 which is the subject matter of this appeal and which I will hereinafter refer to as "the suit land". The Bank being the chargee of the suit land and the other properties had the statutory power of sale under the charges and this fact was not in dispute. The respondent defaulted in repayments and being apprehensive that the Bank might exercise its statutory power of sale under the charge, he instituted an action against the Bank on 21 June 1905 claiming, *inter alia*, injunction to restrain the Bank, or its agents from selling the suit land by private treaty or by public auction. The Bank filed its

defence and counter-claim. There followed various interlocutory matters culminating with the interlocutory application for injunction in which the respondent sought to restrain the Bank from exercising its statutory power of the sale of this suit land pending the determination of the substantive suit then pending in the High Court.

In the meantime, the Bank, in exercise of its power of sale entered into the sale agreement dated 16 January, 1987 between itself and the prospective purchaser, Richard Mbui Maina for the sale of the suit land reference number 12241) at the agreed price of KShs 4 000 000; completion date being stipulated to be 31 March 1987 which was changed to 15 April 1987.

When the application for injunction came for hearing on 12 February 1991 an order was entered by consent of the parties as follows:

> "It is ordered by consent:
>
> 6. Pending the report of the Auditors and/or further orders of the Court status quo to be maintained. No other plots except the 11 sub-divisions more particularly from land registration 12565 shall be sold by the defendants and the transfer of those plots not to be effected within 45 days.
>
> 7. The plaintiff be and is hereby at liberty to procure the sale of land reference number 12241 for a higher price than 4 million shillings within the next 60 days and the proceeds of the sale of the said plot to be deposited with the defendant and that condition to be stipulated in the agreement for sale by the plaintiff.
>
> 8. That case to be mentioned on 1 April 1987.
>
> 9. That there be liberty to apply.
>
> 10. That costs to the defendant (emphasis is mine)"

The respondent was unable to sell the suit land (land reference number 12241) within the specified period of 60 days. The case was not mentioned on the
1 April 1987, and if it was, no further orders were made. Neither the respondent nor the Bank applied to the Court under the specific order that the parties had liberty to apply. On the 17 August 1997, the Bank transferred the suit land to the earlier prospective purchaser Richard Mbui Maina, (the interested party) without reference to the Court for variation of the consent order or for any other or further orders.

There can never be any doubt that the transfer of the suit land was in furtherance of the sale agreement of 16 January 1987 and which sale was specifically prohibited under paragraph 7 of the consent order which stayed the sale of the suit land (land reference number 12241) except by the respondent, if he was able to secure a purchaser for over 4 million shillings within 60 days which period had already expired without any success.

The transfer of the suit land by the Bank to the interested party or to anyone else was in complete disregard of the Court order of 12 February 1988. The consideration if the sale was still KShs 4 million as was stipulated in the sale agreement of the 16 January 1987 between the Bank and the interested party. On 27 October 1987, the respondent filed a belated application by way of a chamber summons seeking an injunction to stop the sale of the suit land or to set aside the sale or to prohibit registration of the said suit land. The chamber summons came for hearing before Akiwumi J who delivered his ruling on 2 June 1986. In his ruling he held that the sale of the suit land was done in

contemptuous circumstances and ordered in effect that the sale of the suit land be set aside. The relevant part of the ruling is as follows:

> "But as I have already observed the sale of the suit land and the registration of the sale cannot be allowed to stand and must be nullified. In view of the decision of this Court that the sale of the suit land was in contempt of this Court it is not necessary to go into the questions argued in the present application whether the sale was in proper exercise of the right of sale of the defendants Bank as chargee. Since the order of the Court made on 7 August 1987 granting stay of execution still stands unchallenged, the only order I think I can now make, is that the sale of the suit land to Richard Mbui Maina is hereby set aside and the registration of such sale prohibited if it has not yet taken place, and if it has, is hereby nullified and declared to be of no effect whatsoever. The plaintiff will have his costs."

Hence this appeal.

There is no doubt whatsoever in my mind that the effect of paragraph 6 of the consent order was to stay all further transactions in respect of the suit land as status quo had been ordered to be maintained. Paragraph 7 thereof is specific that the sale of the suit land (land reference number 12241) was stayed. This sale must refer to the sale agreement dated 16 January 1987 or any other sale. Paragraph 8 thereof ordered for the case to be mentioned on 1 April 1987 which date was before the stipulated date of completion of the sale agreement of 16 January 1987. Paragraph 9 thereof gave the parties liberty to apply. Despite all these clear provisions of the Court consent order, the Bank completed the agreement and transferred the suit land to the interested party in complete defiance of the Court consent (Order of 12 February 1987. Both Mr *Gatonye* for the respondent and Mr Kairu for the interested party appeared to accept this position. The Bank being aggrieved by the Ruling and the orders made by Akiwumi J appealed to this Court. Mr *Gaturu* who appeared for the Bank both at the superior Court and before us filed some 12 grounds of appeal in the memorandum of appeal. He argued grounds 1, 2, 3, 4, 5 and 6 together and then grounds 7, 8, 9 together and finally grounds 10, 11 and 12 together. To me, the grounds of appeal taken together may be summed up into three propositions, namely:

> "1. Whether the consent order of 12 February 1987 remained "unscathed" or not, and
>
> 2. Whether the Bank and/or the interested party were in contempt of the Court consent order of 12 February 1987, and
>
> 3. Whether the Court was in breach of rules of natural justice in declaring the sale of the suit land and registration thereof in favour of the interested party to be null and void and of no effect.

Mr *Gaturu* for the Bank argued that equity of redemption was extinguished after the Bank had transferred the suit land to the interested party under its statutory power of sale and therefore nullification of the registration thereof was contrary to section 60 of the Transfer of Property Act. There was a consent order which had been flouted. The clear wording of the consent order leaves no room for speculation or ambiguity. The statutory power of sale which the Bank could exercise had been curtailed and compromised by the consent order to the effect that the sale of the suit land (land reference number 12241) was stayed and that order was not in any way varied by any other order or orders. There was a specific order granting the parties liberty to apply but no party availed itself of this liberty with the result that the consent order of 12 February 1987 remained "unscathed". The answer to 1 above is in the affirmative. I find

nothing to mitigate the complete disobedience of the Court order by the Bank. Section 60 of the Transfer of Property Act could not be invoked in aid of the, Bank in respect of the provisions related to extinguishment of equity of redemption.

Mr *Gaturu* urged us further to hold that the consent order was not breached by the Bank because after the 60 days granted to the respondent to sell the suit land for over Kshs4 million shillings had expired without the allowed sale taking place, the parties reverted to their original status with the result that the Bank had liberty to exercise its statutory power of sale and to proceed with the stayed sale between itself and the interested party.

Mr *Gatonye* for the respondent contended that the sale by the bank was contemptuously made and was therefore unlawful and void. The consent order was made by consent of the parties and the Bank must be held to be a party thereto. On the face of it, consent order was clear and unequivocal. Sale of the suit land (land reference number 12241) was clearly stayed. The Bank did not avail itself of the liberty granted by the Court to apply. Instead the Bank with the advice by its advocate went ahead and sold the very suit land in complete disobedience of the Court order. What else can be said in favour of the Bank other than that it was in contempt of the Court order to proceed with the very sale of the suit land which had been specifically stayed and prohibited by the Court's consent order. In these circumstances I am unable to agree with Mr *Gaturu*'s contention that the consent order was not breached.

Mr Kairu who appeared for the interested party by invitation of the Court supported Mr *Gaturu* and urged us to hold that, the learned Judge, having found that there was contempt of court, he should not have proceeded to annul the sale and the registration of the suit land in favour of the interested party without giving the said party an opportunity to be heard since legal ownership of the suit land had already vested in him; that the nullification of the registration was wrong because it amounted to punishing the interested party for contempt committed by another party.

Mr Kairu appears to concede that there was contemptuous, breach of the Court consent order. His only plea was that the interested party was not served with the consent order and the court should have ordered him to be joined as a party to the suit. The interested party was not a party to the suit before the Superior court and has never been a party to any of the proceedings in the superior Court. He came to this Court through the generous invitation of the Court. Notwithstanding, Mr Kairu was invited to address us on behalf of the interested party. Although the interested party may not have been served with the consent order, he was aware of the transactions and proceedings between the Bank and the respondent. He had entered into the sale agreement with the Bank to purchase the suit land. He was aware that the sale had been stayed by the Court order and this explains why the sale was not completed on the stipulated date. Being aware that his legal rights were being threatened he should have applied to be joined as a party to the suit or proceeding in order to be able to defend his legal proprietary rights, if any. He did not do that. He should have appealed against the orders of Akiwumi J if he was aggrieved. He did not do that either. Instead he went ahead to sue the respondent and the Bank so we heard from the Bar, against to whom he thought his remedy lay. Although he was invited by this Court to be heard and his counsel was indeed heard, still he is not a party to this appeal.

The upshot is that he has no *locus standi* before this Court and cannot expect to reap any benefit from court proceedings to which he is not a party.

The interested party was an active player on the stage. He was fully aware that the sale of the suit land had been stayed by the Court. In these circumstances he cannot properly claim that he was an innocent purchaser for value without notice. He was partisan to the contempt of the Court order.

It is imperative that orders of the Court must be obeyed as a cardinal basis for endurance of judicial authority and dignity. To do otherwise would erode the dignity and authority of the Courts. The blatant disobedience of the Court's consent order in this case renders any transactions in breach of the order to be void and the learned Judge was fully justified in making the orders complained of. To allow the appeal would be tantamount to rewarding the guilty parties for this grave contempt of court. The second proposition above is in the affirmative.

Regarding the question of breach of the rules of natural justice, I have come to the conclusion that the interested party was an active player on the stage. He knew all along what was happening and decided not to take any action to defend his legal proprietary rights, if any. He was aware of the orders made by Akiwumi J and should have appealed against those orders if he was aggrieved. Rule 74 of the Rules of this Court provide for such eventuality.

Courts of this country are fully mindful of the essence of the observance of the rules of natural justice. Indeed they are observed as a matter of our judicial system. It is then well established law that no one should be condemned unheard. The interested party chase not to be heard by the superior Court or to appeal against the orders made by it. In these circumstances, the interested party cannot be heard to cling on the breach of the rules of natural justice. He was the author of his own misfortune. The learned Judge was fully justified in annulling the sale and cancelling registration thereof notwithstanding that the interested party had not been heard. The answer to three above is in the negative. The sale of the suit land in breach of the Court order was a nullity and of no effect.

For these reasons I would dismiss this appeal with costs.

For the Appellant:
Mr ET Gaturu

For the Respondent:
Mr Gatonye

Farrah v Kenya Ports Authority
[1990–1994] 1 EA 83 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	30 January 1992
Case Number:	[1991] 2 KAR; 138/91
Before:	Hancox CJ, Gachuhi and Cockar JJA
Sourced by:	LawAfrica

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[1] Master and servant – Employee driving tractor to move scrap metal loaded by co-employee –

Employee jumping from tractor to avoid unsafe situation – Injury suffered due to alighting from tractor – Whether employee's apprehension of danger reasonable so as to cause action resulting in injury.

Editor's Summary

The appellant was employed to drive a tractor by the respondent port authority for the purpose of moving scrap metal in the port area. The metal was being stacked on the tractor by another employee operating a fork-lift. It was alleged in the plaint, *inter alia*, that the employers had failed to provide a safe system of work, plant and appliances so as to enable the appellant to carry out his duties without risk of injury.

On 28 October 1986, the appellant noticed that the heap of scrap metal on the tractor he was driving had become unstable and, fearing it would fall on him, he jumped from the tractor and sustained fracture of a bone in his right hand. He sued the ports authority, who denied liability, and the trial Judge rejected his claim on the ground that he was not injured either by the scrap metal or by the tractor but because he alighted from the tractor in a hurry. In evidence the appellant added that after he had alighted the scrap metal did in fact fall into the tractor. In case he should be reversed on appeal the judge assessed notional general damages at KShs 30 000.

On appeal:

Held – If the action of the employers or their servants caused a situation which gave rise to a reasonable apprehension in the mind of the appellant that he would be injured if he remained on the tractor, it could not be said that he acted unreasonably in alighting from the tractor.

The test in such circumstances as obtained in the instant case, is whether the appellant's action was as a result of an unreasonable alarmed mind, or the rash apprehension of danger, or whether it was such as a reasonable and prudent person would have adopted.

If a person places another in such a situation that he must adopt a perilous alternative, then he is liable for the consequences.

Accordingly, the port authority was liable in damages to the appellant, and as the judge's estimate was not based on any wrong principles, judgment would be entered for the appellant for that sum. *Butt v Khan* [1978] 1 KAR 1 followed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Butt v Khan [1978] 1 KAR 1 – **F**

Jones v Boyce [1816] 171 ER 540

Kenya Meat Commission v Raden [1990] 2 KAR 134

Plotti v Acacia Company Limited [1959] EA 248

Judgment

Hancox CJ: The facts giving rise to this appeal are that the appellant, in the course of his employment by the respondent port authority, was driving a tractor for the purpose of moving scrap metal, which was being stacked on the tractor by the operator of a fork-lift who was another employee of the ports authority, but who has since retired.

The plaint contained the usual provisions in these master and servant cases, namely that the authority was obliged to provide a safe system of work, plant and appliances, so as to enable him to carry out his duties without undue risk of damage or injury to himself. The next following paragraph avers that about 11am on 28 October 1986 the appellant was seriously injured when he slipped and fell whilst alighting from his tractor, "as per the instructions of the defendants and/or its servants and/or agents".

There follow the usual, stereotyped, particulars of negligence which can be obtained from any book on pleadings and civil procedure. Although a defence was filed denying liability, no defence witnesses were available on the date of hearing and the learned Judge embarked on proceedings in which the only oral testimony was that of a plaintiff/appellant, supported by medical documentary evidence from Mr Hemant Patel. This stated that the appellant had suffered a fracture of the fifth metacarpal of the right hand. That he was off work for six weeks and suffered no permanent or residual incapacity.

The judge was not impressed with the appellant's case on liability, and dismissed the suit. Had the plaintiff succeeded he would have awarded KShs 30 000 general, and KShs 1 000 special damages. The principal reason which affected the judge in his decision was that his testimony was at variance with the plaint. The judge continued:

> "He was not injured by the scrap metal nor was he injured by the tractor. The cause of his injury is his alighting in a hurry in fear that the scrap metal would fall on him."

Both Mr *Jiwaji*, appearing for the appellant, and Mrs *Adogo* for the respondent, referred us to passages in the brief record of the appellant's testimony. Mr *Jiwaji*, in support of his submission that the appellant jumped from the tractor to avoid being hurt by the falling metal, in the course of which he slipped and his right leg was trapped inside the tractor, cited this passage:

> "I noticed that the heap was unstable and I decided to come out of the tractor to avoid the heaping (falling) on me. I then fell down . . . my right arm was broken."

Mrs *Adogo*, on the other hand, submitted that it was clear from the judgment that the judge regarded the primary cause of the accident as being the manner in which the appellant alighted from the tractor, which showed that there was no negligence on the part of the respondent. She said that the burden of displacing that finding lay on the appellant in this appeal.

An analysis of the evidence shows that the appellant believed that the heap of scrap metal loaded on to his tractor by the fork-lift driver had become unstable. He said:

> "I slipped because I was alighting in a hurry because of fear that the scrap metal would fall on me."

So that paragraph contains the key as to why he jumped because he was in fear. Fear that the scrap metal would fall on him, which it would have done had he not jumped, because the appellant continued: "The scrap metal fell into the tractor after I fell down".

Was that a reasonable apprehension? In my opinion it was. A man is not bound to wait until disaster befalls him and then attempt to extricate himself from it. He is entitled, and indeed bound if he is not to be guilty of any contributory negligence, to take reasonable precautions to avoid injury to himself.

In *Jones v Boyce* [1816] 171 ER 540 the situation was not dissimilar from the instant one. The plaintiff was a passenger in a horse-drawn coach and saw that the coupling rein had broken, and that the horses were careering down the slope. Fearing the coach would overturn and he would be injured he jumped off with the consequences that his leg was broken. In leaving the case to the jury Lord Ellenborough said (at 541):

> "To enable the plaintiff, to sustain the action, it is not necessary that he should have been thrown off the coach; it is sufficient if he was placed by the conduct of the defendant in such a situation as obliged him to adopt the alternative of a dangerous leap, or to remain at certain peril; if that position was occasioned by the default of the defendant, the action may be supported. On the other hand if the plaintiff's act resulted from a rash apprehension of danger, which did not exist, and the injury which he sustained is to be attributed to rashness and imprudence, he is not entitled to recover. The question is, whether he was placed in such a situation as to render what he did a prudent precaution, for the purpose of self-preservation . . .
>
> Therefore it is for your consideration, whether the plaintiff's act was the measure of an unreasonably alarmed mind, or such as a reasonable and prudent mind would have adopted. If I placed a man in such a situation that he must adopt a perilous alternative, I am responsible for the consequences; if, therefore, you should be of opinion that the reins were defective, did this circumstance create security for what he did, and did he use proper caution and prudence in extracting himself from the apparently impending peril."

After the address the jury found for the plaintiff was awarded him £300 damages.

So in this case the test is: did the plaintiff (here the appellant) act as a reasonable and prudent man would have done? In my judgment the belief that the appellant entertained was reasonable. Its reasonableness is demonstrated by the fact that the scrap metal did fall into the tractor. In tortious liability it is enough for a plaintiff to establish that the act or omission of the defendant, and in the case of vicarious liability of his servants or agents, created the situation which obliged him to take avoiding action. In the application of this principle the existence or otherwise of instructions to alight from the tractor is immaterial. Equally, the fact that plaintiff was in this case a driver and not a passenger, as in *Jones v Boyce* (*supra*) matters not, for it was someone else's negligence which put him in the position of having to jump.

As a first appellate court we are entitled to re-evaluate the evidence given in the High Court. In doing so it seems to me that when the heap started to sway and became unstable, the appellant was perfectly justified in taking the avoiding action, that he did, namely by jumping off. Mrs *Adogo* said that if the overloading of the scrap metal on the tractor was the cause of the appellant jumping off, then this was not pleaded and was another instance of the variation between the pleadings and the evidence which so influenced the learned Judge.

There was a minor variation as to the time of the occurrence. The plaint says it was 11am, whereas the appellant says it was 5:30pm; the difference may be due to the Swahili concept of time which could, on one version, indicate 11am. At all events the Workmen's Compensation Act report says it was 5pm and in my view the balance of probabilities are that the latter was the correct time. That point was not, however noticed by either counsel.

As regards the other variations what does this amount to? The material part of paragraph 6 states:

> ". . . he was seriously injured when he slipped and fell whilst alighting from a tractor number 42."

The evidence is that as he was alighting from the tractor in a hurry he slipped and fell. I do not see any difference in substance therein. The account of the event is materially the same, namely that due to this, as I think reasonable, apprehension that this pile of scrap metal would fall on him, the appellant alighted from the tractor as quickly as he could. The only difference is that in the next portion of paragraph 6 it is stated that he did this, "as per the instructions of the defendant its servant and/or agent".

There the appellant did not say he had been so instructed, but whether he was or not makes no difference in view of that which I have already stated on this aspect of tortious liability. Independently of any misdirection it was in my view reasonable for the appellant to jump in the emergency which he reasonably apprehended. On the authority of *Jones v Boyce* (*supra*) it matters not that the injury which he in fact suffered was different from or more severe than, that which he would have sustained had he waited for the scrap metal to fall on him. The variance between the pleading and evidence is in this case circumstantial and immaterial. In the case of *Kenya Meat Commission v Raden* [1990] 2 KAR 134, this Court held that the real test in such matters was whether there was any unfairness as regards the defendants in knowing what case they had to meet. Thus tested the plaint in this case did not in any way seem to mislead or cause injustice or unfairness to the respondent. We also held that it would be unfortunate in a case of personal injury if a plaintiff, who has otherwise proved his case, is deprived of his remedy due to the niceties of pleading. In *Raden*'s case (*supra*) Kwach JA cited an earlier paragraph from the judgment of Fobes VP in *Plotti v Acacia Company* [1959] EA 248 at 251 where he cited this passage:

> ". . . The function of pleadings is to give fair notice of the case which has to be met so that the opposing party may direct his evidence to the issue disclosed by them . . . To condemn a party on a ground of which no fair notice has been given may be as great a denial of justice as to condemn him on a ground on which his evidence has been improperly excluded."

And continued:

> "I am in complete agreement with what Forbes VP said in this passage. All I need to add is that the defendant in this case had more than fair, indeed abundant, notice of what the plaintiff's case was."

I entirely agree with those sentiments. In my view the appellant proved his case substantially in accordance with his pleading. I would allow the appeal on the issue of liability. I would substitute for the learned trial Judge's finding a finding that the defendant (the respondent) are liable in negligence to the plaintiff (the appellant) and should be condemned in damages.

As regards quantum, I have considered the authorities put forward by Mr *Jiwaji* and the reasoning of the learned Judge on this aspect. While I might myself have made a higher award I do not consider in his assessment that the judge committed any error of principle, tested by the criteria set out in *Butt v Khan* [1978] 1 KAR 1. I would therefore dismiss the second ground of appeal and I would award the appellant KShs 30 000 general, and KShs 1 000 special damages. I would order the respondent to pay the costs of this appeal and of the proceedings in the High Court on the High Court scale. As the other members of this Court of this Court agree it is so ordered.

Gachuhi JA: I have had the advantage of reading the judgment of Hancox CJ in draft form and I entirely agree with it.

On the liability the employer will be liable for the carelessness of his employee in executing his duty which will place anybody in imminent danger. In this particular case, the appellant was not the one who loaded the tractor with scrap metal, his duty being that of driving away the tractor after it had been loaded. It is the fork-lift operator who stacked scrap metal negligently or carelessly without considering that the heap of scrap metal unless properly secured would place the plaintiff in imminent danger. As he drove away, he noticed that the load would fall on him. He had no other course open to him but to take such a measure to avert the danger to himself. He cannot be expected to ignore the impending danger or be expected to wait for the metal to fall on him which may cause him untold injuries. To state that the plaintiff was negligent in the way he alighted from the tractor was to demand too much of him by overlooking the fact that in a moment of passion one has to take quick decision of what to do to avoid the danger and there is no time to think or to look for where to step in alighting but rather to jump and avoid the danger, though in doing so he may hurt himself. In so doing he was taking steps to avoid more danger. What if he had remained in the tractor and the metal, which eventually fell in the tractor, fell on him and caused more injuries? In my view the steps the plaintiff took to avoid danger indicate that it cannot be correctly said that he was negligent or contributed to his injuries.

The plaintiff's evidence went unchallenged and did prove his case. On my part I would allow the appeal and award the damages assessed by the trial Judge. I agree with the order proposed by the Chief Justice.

Cockar JA concurred in the judgments of Hancox CJ and Gachuhi JA.

For the appellant:
H Jiwaji

For the respondent:
JM Adogo

Gaso Transport Services (Bus) Ltd v Obene
[1990–1994] 1 EA 88 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	21 November 1994
Case Number:	4/94
Before:	Manyindo DCJ, Odoki and Tsekooko JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Leave to amend statement of defence – Make application early – Factors to consider in determining application.

Editor's Summary

Akamba (U) Limited sold a bus to Joy Kusiime who, apparently, later resold it to the appellant. However, there was no change of particulars after the respective sales.

In 1989, the bus was involved in an accident and the respondent, a passenger in the bus, allegedly suffered injuries. The respondent therefore sued Akamba (U) Limited and the appellant. The appellant stated, in its statement of defence, that it had been wrongly sued but it did not state the facts to support this contention.

The appellant's advocate then raised a preliminary objection asking that the Plaint be rejected for not disclosing any cause of action. The objection was dismissed. The advocate sought leave to appeal but this application was also dismissed.

Later, Akamba (U) Limited was allowed to amend its statement of defence, after the matter had started. The appellant also later made an application to amend its statement of defence after hearing one of the witnesses who stated that the bus was sold to Gaso Transport Services Limited. The appellant argued that the bus had been sold to Gaso Transport services Ltd, not itself and that it was not in existence at the time of the accident.

This application was dismissed, hence this appeal.

Held – An application for leave to amend pleadings ought to be made promptly at the earliest stage in litigation. The more advanced the progress of litigation the more difficult it will be for the applicant to satisfy the Court that leave for amendment ought to be granted (*Eastern Bakery v Castalino* [1958] EA 461, *British Indian General Insurance Co v Parma (GM) and Co* [1966] EA 172 and *Kara v Makam* (1950) 17 EACA 16 applied).

Courts generally give leave to amend pleadings rather than give judgments in ignorance of the facts which ought to be known before rights are definitely decided. *Steeds v Steeds* [1899] 22 QBD 537 followed.

The governing principles in the exercise of discretion in allowing amendments are:

(i) The amendment should not work injustice to the other side. An injury that can be compensated by costs is not treated as an injustice.

(ii) Multiplicity of proceedings should be avoided and amendments which avoid such multiplicity should be allowed.

(iii) An application which is made *mala fide* should not be granted.

There is no evidence to show that the appellant's blunder is such that allowing the amendment would irreparably injure the respondent in his case, which injury cannot be made good by way of costs.

Application allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

British Indian General Insurance Company v Parma (GM) and Company [1966] EA 172 – **AP**

Cheleta Coffee v Melhsen [1966] EA 203

Eastern Bakery v Castelino [1958] EA 461 – **AP**

General Manager EA R and H v The Crstein [1968] EA 354

George v Priliin Auto Services (1955) 22 EACA 233

Jami Properties v Dar-es-Salaam [1966] EA 281

Jupiter Insurance v Hasham [1960] EA 562

Kara v Makam (1950) 17 EACA 16 – **AP**

Mbogo v Shah [1968] EA 93

McCoy v Allibhai (1938) 5 EACA 70

Uganda Credit and Savings Bank v Yosam Muze [1960] EA 660

Waljee's (U) Limited v Ramjis Punjambhas Bugerere Tea Estate Limited [1971] EA 188

United Kingdom

Steeds v Steeds [1889] 22 QBD 537 – F

Steward v Northern Metropolitan Tram ways Limited [1886] 16 QED 558

Tidlsey v Harper [1978-9) 10 ChD 396

Judgment

Tsekooko JSC: This appeal is against the ruling and order of the High Court where on 29 April 1993, the trial Judge dismissed an application by the present appellant for leave to amend the written statement of defence of the appellant (who is the second defendant in the suit in the High Court).

The back ground to the appeal as gathered from the record of the trial Court is this. During 1987, Akamba (U) Limited (first defendant in the suit) (hereinafter to be referred to as "Akamba") sold a bus, registration number UXS 106, to one Joy Kusiime. Change of the particulars of registration was not effected following that sale. The bus plied between Kampala and Masaka. On 10 October 1989, the bus was involved in an accident at or near KM 38, Masaka/Kampala Road. The respondent who claims to have been a passenger in the bus allegedly sustained injuries. Consequently, he filed the suit in the High Court against Akamba and the appellant or damages appears from evidence on record that Joy Kusiime resold the bus to Gaso Transport Service Limited before the particulars of registration were changed from Akamba to Joy Kusiime.

The two defendants duly entered appearance and filed their respective written statements of defence. In its amended written statement of defence Akamba denied liability on the basis that the bus had been sold to joy Kusiime but alternatively averred in paragraph 6 of that statement of defence that the accident was caused by the actions of another vehicle (UWU 171). As for the appellant, it, interia, denied liability and averred in paragraph 2 of its written statement of defence that it was wrongly sued although it did not set out facts in support of the avernment that it was wrongly sued.

On 24 September 1992, the suit came up in High Court for hearing. Mr Mulindwa who then represented the appellant in the High Court raised a preliminary objection asking the trial Judge to reject the plaint on the ground that the plaint did not disclose a cause of action. He was overruled. Then Mr Mulindwa unsuccessfully applied for leave to appeal against that ruling.

Thereafter five (5) issues were framed on the basis that the appellant was a proper party to the suit. The respondent as plaintiff testified and called two witnesses. The respondent and PW3 testified that the bus (UXS 106) belonged to Gaso Transport Services. Actually at some point the respondent referred to Gaso Transport Services Bus. The defendant called Haji Zaid Mukasa (DW1) who testified that the bus belonged to Gaso Transport Service for whom he

worked and that on the day of the accident he worked on the bus as its conductor on behalf of Gaso Bus Services. Here it should be noted that neither counsel (for plaintiff nor for each defendant) asked DW1 or indeed PW1 or PW3 to explain any differences between appellant Gaso Transport Services (Bus) Limited and Gaso Transport Services Limited or Gaso Transport Services. The hearing of evidence ended. Each side closed its case. Thereafter the case was adjourned to 12 January 1993 for submissions.

On 12 January 1993, Akamba sought leave to call another witness. When granting leave on 19 January 1993, the trial Judge allowed Akamba to amend its written statement of defence before calling the additional witness and at the same time he (the judge) suggested that the appellant and the respondent could file replies to the amended written statement of defence of Akamba "if need arises" Akamba filed the amended written statement of defence on or about 21 January 1993 and called the additional witness A Asghar Khan (DW2) on 26 March 1993 to which date the case had been caused listed for that purpose. It is that witness who revealed that the bus had in fact been sold to Joy Kusiime in 1987. By 26 March 1993, the appellant had not replied to the amended written statement of defence by Akamba.

After evidence of DW2, Mr Mulindwa applied for leave to adduce evidence to show that there were tow companies where names started with "Gaso Transport Services". One of them, Gaso Transport Services Limited, was in existence at the time of the accident while the appellant was not, Mr Mulindwa submitted. This was rejected by the trial Judge because:

> "The evidence intended to be adduced by (defendant number 2 (*sic*) raised new issues beyond the pleadings on record. The defendant number 2 is not entitled at this stage to call such evidence without amendment of the pleadings."

Mr Mulindwa rather half heartedly took opportunity thus suggested and applied for adjournment so as to make a formal application for leave to amend. Counsel for the other parties opposed the application. The application was dismissed.

The case was then adjourned to 14 April 1993 for submissions. In the interval, Mr Mulindwa some how filed an application on behalf of the appellant seeking leave to amend its written statement of defence. The application was heard and rejected on 29 April 1993. The learned Judge granted leave for this appeal to be made against that ruling.

The memorandum of appeal had included Akamba as second appellant but Akamba was struck out after we were satisfied that Akamba did not in fact appeal.

There is only one ground in the memorandum of appeal. It reads that:

> "The learned trial Judge erred in having found that the issue to be raised by the second defendant was fundamental to the plaintiff's claim to refuse to allow the second defendant to amend its written statement of defence as the said amendment had a serious bearing on the plaintiff's claim and on the second defendant's defence."

The formulation of the ground of appeal is confusing. From a perusal of the ruling of the learned Judge and the submissions of counsel for the appellant before us, it is clear that the complaint is that since the judge found that the proposed amendment would have a serious bearing on the claim of the plaintiff as well as on the defence of the second defendant, the learned Judge erred in refusing leave to amend the written statement of defence of second defendant (that is, the appellant).

The submissions of Mr *Musinguzi*, counsel for appellant hinged upon the evidence of DW2 (Ali Asghar Khan), the General Manager of Akamba. DW2's evidence is, as earlier stated, to the effect that after Joy Kusiime purchased the Bus in 1987, she sold the same bus to "Gaso Transport Service" before change of registration particulars of ownership were made from Akamba to her. DW2 further testified that Mr Fred Kijjambu of Gaso Transport Services Limited had collected papers of the registration of the bus on behalf of Gaso Transport Services Limited. DW2 denied knowledge of the appellant. He claimed in effect that Joy Kusiime sold the bus to Gaso Transport Services Limited but not to the appellant. At any rate that is what I understand to be the effect of the evidence of DW2.

The gist of Mr *Musinguzi*'s submission is that since the evidence of DW2 shows that the bus was sold to Gaso Transport Services Limited who, were (presumably) in possession of the bus by 10 October 1989 (when the accident occurred) the appellant was wrongly sued because the appellant was not in existence till 22 January 1990 that is, the day when Gaso Transport Services (Bus) Limited was incorporated. Counsel referred us to the contents of the chamber summons and the two accompanying affidavits sworn on 6 April 1993 by Mr Mulindwa and Miss Anne Mulindwa (the secretary/clerk in the firm) and which formed material before the trial Judge. To Anne's affidavit were attached copies of certificates of incorporation of the two companies.

Annexture "A" relates to the incorporation of the appellant on 22 January 1990. Annexture "B" shows that Gaso Transport Services Limited was incorporated on 7 December 1981.

Mr *Musinguzi* conceded that Mr Mulindwa (the appellant's counsel in the High Court) erred:

(*a*) in not setting out either in the chamber summons or in the accompanying affidavits the names of the directors of each company so as to demonstrate that the two companies are in actual fact managed by different individuals or groups of individuals;

(*b*) by failing to attach to the chamber summon a copy of the proposed amend written statement of defence for appellant;

(*c*) by failing to make prompt application for leave to make the proposed amendment to the written statement of defence in as much as by 15 January 1993, Mr Mulindwa was aware of the existence of the two separate "Gaso" Companies;

(*d*) by failing to take advantage of the judge's suggestion on 19 January 1993 that second defendant (appellant) and the respondent (plaintiff) could amend their pleadings after service upon them of the reamended written.

Mr *Musinguzi* made a spirited submission in an effect to convince us that in spite of the omission of Mr Mulindwa and the belated nature of the application in the Court below, under Order 6, rule 18 of the Civil Procedure Rules, leave to file an amended written statement of defence should have been allowed as the amendment was necessary for the purpose of determining the real question in controversy between the parties. Learned counsel cited *Uganda Credit and Savings Bank v Yosam Muze* [1960] EA 660; *Eastern Bakery v Castelino* [1958] EA 461 *and Tidlsey v Harper* [1978-9) 10 ChD 396, in support of his argument.

Mr *Mugabi*, who represented the respondent here and in the High Court opposed the appeal. Mr *Mugabi* submitted that the appellant has not shown that in refusing the application for leave to amend the trial Judge acted on wrong

facts or principle to justify interference by this Court in the exercise of discretion by the trial Judge. According to Mr *Mugabi* the written statement of defence of appellant was so detailed that the appellant must, as I understood learned counsel, be taken to have been aware that it was the proper party to be sued. Mr *Mugabi* further submitted that the application was so late that amendment of the written statement of defence would cause injustice to the respondent. Mr *Mugabi* did not, however, specify what actual or apprehended injustice the respondent would suffer in the event of the proposed amendment being allowed.

Mr *Mugabi*'s submission that the appellant must have had full information of the existence of the two companies early appears on face of it to be plausible. A superficial view of Mr Mulindwa's various submissions in the Court below and of the written statement of defence of the appellant appeared to support this. Paragraph 2 of written statement of defence as pleaded by appellant to me appeared to cater for appellant's contentions and could have had a basis for calling the evidence sought.

The paragraph states:

> "The second defendant denied the alleged liability and avers that it is wrongly sued wherefore the suit is misconceived embarrassing and shall apply that the suit be dismissed/struck out/rejected."

However, as stated earlier at the beginning of the hearing of the case, Mr Mulindwa on 24 September 1992, raised a preliminary objection claiming that the plaint did not disclose facts to show a duty of care which the appellant owed, the respondent pleaded in the plaint. He was overruled. As opposed to that and after DW2 gave his evidence on 26 March 1993 on behalf of Akamba to the effect that Joy Kusiime had resold the bus to Gaso Transport Services Limited, Mr Mulindwa sought leave of Court to call a witness whose evidence was to show that there existed two companies whose names each start with "Gaso Transport Services". Counsel wanted to establish that one of those companies was not in existence by 10 October 1989. Thus the preliminary objection cannot be construed so as to impute to the appellant knowledge of the existence of the two companies. Upon further reflection, I took the view that the problem may have been created by the advocate (Mr Mulindwa). Formulation of pleadings here is the responsibility of Mr Mulindwa. I say so because of paragraph 3, 4, 5 and 6 of the same written statement of defence. The appellant can hardly be credited with the manner of formulating pleadings so as to provide for alternative defences in the manner it was done in this case.

It is true Order VI, rule 18 gives the High Court wide discretionary power to permit amendment of pleadings to be made at any stage of the proceedings. Indeed as Mr *Musinguzi* pointed out, amendments to pleadings may in appropriate cases be permitted as late as during appeal by an appellate court: See *McCoy v Allibhai* (1938) 5 EACA 70, *Jupiter Insurance v Hasham* [1960] EA 562 and *Jami Properties v Dar-es-Salaam* [1966] EA 281 at 285. However, it is now trite law (or rather a well established practice) that courts are more flexible in allowing amendments whenever application for amendments are made promptly at the earliest stage in the litigation. The more advanced the progress of litigation the more will be the applicant to satisfy Court that leave for amendment ought to be granted. See *Eastern Bakery v Castalino* [1958] EA 461, *British Indian General Insurance Company v Parma (GM) and Company* [1966] EA 172 and *Kara v Makam* (1950) 17 EACA 16. According to these cases amendments can be made on appeal.

Mr *Mugabi*'s main ground for opposing the appeal is the generally accepted rule that an appellate court will not interfere with the discretion of a judge in allowing or in disallowing an amendment to a pleading unless it appears that in reaching his decision the judge proceeded upon wrong material or upon a wrong principle: See *George v Priliin Auto Services* (1955) 22 EACA 233 and *Eastern Bakery v Castelino* [1958] EA 461, *Mbogo v Shah* [1968] EA 93.

The chamber summons before the trial Judge contained eight grounds but the following are pertinent:

> "1. That after search at the office of the Registrar of Companies on 15 January 1993 it was established that the second defendant was incorporated on the 22 January 1990 (certificate true copy is attached marked "A").
>
> 2. That by reason of the said date of incorporation the second defendant company was not in existence on 10 October 1989 when the accident forming the subject matter of the main suit occurred whereof it cannot be held responsible for acts complained of by the plaintiff/respondent – see paragraph 4 of the plaint.
>
> 3. The said search also revealed that Gaso Transport services Limited was incorporated on the 7 December 1981 and it is still in existence (certificate true copy attached "B").
>
> 4. That after first defendant had been allowed to amend its written statement of defence where upon additional evidence was given and the witness disclosed that he was not aware of the existence of Gaso Transport Services (bus) Limited but rather aware of Gaso Transport Services Limited on whose behalf the Registration Book of UXS 106 was collected by one Fred Kijjambu on 24 February 1988 from Akamba (U) Limited after one Joy Kusiime had sold the Bus to Gaso Transport Service Limited.
>
> 5. That the amendment shall facilitate calling of necessary evidence.
>
> 6. That the said evidence revealed a new matter to the effect that there was no transaction between Joy Kusiime and the second defendant.
>
> 7. That (in view of the foregoing) unless this application is granted the second defendant shall suffer injustice should the plaintiff's claim succeed."

I think that the contents of paragraphs 1 to 4 and 6 in the summons should have formed the contents of the accompanying affidavits because they are evidence in support of the application. Further in my view the affidavit in support of the application which was based on the ground that the appellant did not exist by 10 October 1989 should have been sworn by a knowledgeable and responsible officer or director of the appellant. And as pointed out, the applicant never filed the proposed amended written statement of defence. The learned Judge justifiably criticised the omission to attach to the application the proposed amendment and the deficiencies in the two affidavits.

Again in my view he rightly criticised the appellant for its failure to make an early application for amendment. Having said that, it should be noted that no affidavit was filed by the respondent to indicate that in fact the appellant had been in existence by 10 October 1989 when the accident occurred.

In the course of his written ruling, the trial Judge referred to the following decisions on principles applicable to amendment of pleadings:

(i) Waljee's (U) Limited v Ramjis Punjambhas Bugerere Tea Estate Limited [1971] EA 188;

(ii) *Steward v Northern Metropolitan Tram ways Limited* [1886] 16 QBD 558;

(iii) *Jupiter Insurance v Pajabali Hasham* (*supra*);

(iv) *Jami Properties v Dar-es-Salaam* (*supra*);

(v) *Cheleta Coffee v Melhsen* [1966] EA 203; and

(vi) *General Manager EA R and H v The Crstein* [1968] EA 354.

The learned Judge disapproved the conduct of the defence case right up till the application for amendment was made. Thus he stated that:

> "The case was conducted on the basis that defendant was the operator of motor vehicle registration number UXS 106 and its employee was the driver of the said vehicle on the day of the tragic accident. This is born out by Mr Mulindwa's statement that he believed that the plaintiff was proceeding against the right party until 15 January 1993. The plaintiff has also all along been led to believe by defendant number two that it is the right party. No explanation has been provided why defendant number two has acted this way. No suggestion has been raised to the effect that this conduct was by over sight or inadvertence. Grounds four, five and six of the application are to the effect that the evidence of DW2 raised a new matter to the effect that Joy Kusiime sold the bus UXS 106 to Gaso Transport Services (Bus) Limited. I have no hesitation in rejecting these grounds."

The learned Judge gave his reasons for rejecting those grounds and continued:

> "It would appear to be that defendant number two deliberately omitted to raise this would be fundamental issue to the plaintiff's claim in its written statement of defence. The matter was not raised at all in the agreed issues. Defendant number 2 omitted to raise it when it was granted leave to amend its pleadings on 19 January 1993. If it had its way, defendant number two wanted to spring this into evidence at the last minute by reopening its case after it had closed it.
>
> In my view, without an adequate and convincing explanation of the various capes (*sic*) in the conduct of the defendant number two and taking into account the stage at which this rather fundamental issue is intended to be slotted, defendant number two2 does not deserve the indulgence of this Court in this matter . . ."

Whilst the learned Judge correctly criticised what is in reality an incompetent and shoddy fashion in which the defence of the appellant was conducted, I think with respect that the learned Judge did not address his mind to all the principles applicable in granting or refusing leave to amend. In that respect he erred in refusing leave. I note that on 21 March 1993, Mr Mulindwa first applied for leave to adduce additional evidence prompted by the evidence of DW2. In rejecting the application the learned Judge stated that the appellant could not "call such evidence without amending pleadings," yet the application to amend was rejected when it was made. The learned Judge appears to have rejected the undoubtedly belated application mainly because the proposed amendment would lead to a reopening of the case by the appellant. Indeed if appellant had this design why did it not slot in that evidence before the close of the defence case, that is, before Akamba made its own application on 12 January 1993 for leave to call additional evidence of DW2. The learned Judges conclusion on this point, is with respect unfounded on the facts.

Belated application to amend places a heavy burden on the applicant to convince the Court why he never applied earlier but courts generally give leave to amend a defect in a pleading rather that give judgment in ignorance of facts which ought to be known before rights are definitely decided; *Steeds v Steeds* [1889] 22 QBD 537 at 542.

Bowen LJ in *Cropper v Smith* [1883] 26 ChD 700 at 711 expressed himself in a passage often cited in the following words:

> "It is well established principle that the object of the Court is to decide the rights of the parties and not to punish them for mistakes they make in the conduct of their cases by deciding otherwise than in accordance with their rights . . . I know of no

> kind of error or mistake, which, if not fraudulent or intended to overreach, the Court ought not to correct, if it can be done without injustice to the other party. Courts do not exist for the sake of discipline, but for the sake of deciding matters in controversy, and I do not regard such amendment as a matter of favour or grace . . . It seems to me that as soon as it appears that the way in which the party had framed his case will not lead to the decision of the real matter in controversy, it is as much a matter or right on his part to have it corrected if it can be done without injustice as any thing else is a matter of right."

The editors of AIR Commentaries, the *Code of Civil Procedure*, Volume 3 (10 ed) at 130, commented on Order VI, rule 17 of the Indian Civil Procedure Rules Order VI, rule 17 is identical to our Order VI, rule 18. The learned editors states:

> "The rule gives a wide discretion to the Court to allow amendments necessary for the purpose of determining the real matter in controversy between the parties.
>
> The discretion is, however, a judicial one and not an arbitrary exercise of the power. Amendment cannot be claimed as a matter of right or in all circumstances. The under which the prayer for amendment is to be allowed cannot be exhaustively enumerated. It depends upon the facts of each individual case. But the principle is to do substantial justice and not to punish the party on technical grounds."

The following principles appear to be recognised as governing the exercise of discretion in allowing amendments:

1. The amendment should not work injustice to the other side. An injury which can be compensated by the award of costs is not treated as an injustice.
2. Multiplicity of proceedings should be avoided as far as possible and all amendments which avoid such multiplicity should be allowed.
3. An application which is made *mala fide* should not be granted.
4. No amendment should be allowed where it is expressly or impliedly prohibited by any law" (for example limitation actions).

In his ruling, the learned Judge criticised the appellant for failing to amend its statement of defence pursuant to the order of the judge delivered on 19 January 1993. In that ruling the learned Judge had ordered, *inter alia*, that:

> "(3) If the need arises the plaintiff and defendant number two may file replies thereto within 15 days from the date of service of the amended written statement of defence." (by Akamba).

As it turned out, Akamba only amended paragraph 4 of its statement of defence in the following words:

> "(4) Paragraphs 4 and 5 of the plaint are denied and in reply thereto the first defendant shall state that motor vehicle registration number UXS 106 had been sold to one Joy Kusiime and delivered to her. It is denied that the said Wilson Kamya was an employee of the first defendant and all the particulars of negligence are not admitted."

It is clear form the portion of the judge's ruling which I have just reproduced above that any reply which the appellant could have made was dependent on the contents of the proposed amendment by Akamba.

As can be seen from paragraph 4 of Akamba's amended defence (reproduced above), there was obvious need for the appellant to reply thereto in view or the contents of paragraphs 4 and 5 of the plaint itself. Moreover the appellant's application for leave to amend was prompted by or perhaps a sequel of the evidence of DW2 but not based on the amendment of its defence by Akamba.

In the present case, the Application to amend the written statement of defence was refused as I have already stated on grounds of, in effect, the incompetence and, I think, for lack of diligence on the part of counsel for the appellant. It is not easy on the facts to conclude that the application was made *mala fide* or is barred by any law. Moreover counsel for respondent is not wholly free from blame. The record shows that when testifying, PW1 and PW3 named the owners of the bus UXS 106 at time of accident to be "Gaso Transport Services". Left at that this could mean that the evidence of PW1 and PW3 referred to either the appellant or that other company which was incorporated on 7 December 1981 which is now not a party to the suit. In answer to a question raised by this Court.

Mr *Mugabi* stated from the bar that "we know it is the appellant". That utterance is neither evidence nor would it be sufficient proof that the right party is in fact and in law before the Court. Thus the question of deciding the real controversy may ultimately depend on the joining of Gaso Transport Services Limited or the substitution of it in place of the appellant.

DW2's evidence to the effect that he had had no knowledge of the appellant is open to several interpretations. One of such interpretations could be that he was not aware of the existence of the appellant when the bus was sold.

There is no evidence as far as I can ascertain showing that the blunder of the appellant is such that allowing the proposed amendment would irreparably injure the respondent in his case, which injury cannot be made good by way of costs.

I think that on the facts and for purposes of deciding the real controversy, I would reluctantly interfere with exercise of discretion by the trial Judge and allow the late application for leave to amend the written statement of defence. I think also that this is a fit case where the appellant should meet the costs of the respondent in this appeal.

I would accordingly allow the appeal, set aside the ruling and order of the learned trial Judge and remit the case to the High Court for continuation of the hearing after the amendment has been effected.

I would order the appellant to amend and file its statement of defence within fifteen (15) days from today. Appellant must serve the respondent and Akamba immediately thereafter. After service of the amended written statement of defence on the two respondents and Akamba) the respondent shall be at liberty to amend his plaint and Akamba (U) Limited and reamend its amended written statement of defence.

I would award to the respondent costs of this appeal.

Manyindo DCJ and Odoki JSC concurred in the judgment of Tsekooko JSC.

For the appellant:
Mr Musinguzi

For the respondent:
Mr Mugabi

Gatimu v Kimani
[1990–1994] 1 EA 98 (CAK)

Division: Court of Appeal of Kenya at Nyeri

Date of judgment: 12 May 1992

Case Number:	[1992] 2 KAR; 143/87
Before:	Hancox CJ, Masime and Kwach JJA
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[1] Succession – Land at Embu – Joint purchase by two deceased brothers – Death of first brother in 1960 and second in 1976 – Whether natural son of first brother entitled to inherit portion of second brother instead of his natural daughter – Whether daughter married at time of second death – Whether Embu customary law disentitled her to inherit – Method of proving existence of customary law – Section 3(2) – Judicature Act (Chapter 8) – Section 87 – Civil Procedure Act (Chapter 21) – Section 51, 59, 60(1)(a) – Evidence Act (Chapter 80) – Section 80 and 82 – Law of Succession Act (Chapter 160) – Sections 120(1)(3) and 143 – Registered Land Act (Chapter 300) – Section 17 – Married Women's Property Act – Matrimonial Cause Act of 1973.

Editor's Summary

In 1955, HJ Kimani and Kamuranga, who were brothers, purchased an area of land at Embu comprising 57.09 acres, of which Kamuranga's share was said to have been 15.9 acres. Kimani died in 1960 before the land was registered, and it was first registered in the name of his son, the plaintiff, on 10 March 1961. It was unclear on the evidence whether the defendant, who was the daughter of Kamuranga, began to reside on this land, in 1955, or in 1962 with her husband Patrick, but in any event he had left it in 1967 in order to settle on his own land, leaving the defendant on the disputed land. Again, it was unclear on evidence whether he and the defendant had merely separated, or had divorced, in 1967, or subsequently.

The plaintiff claimed that after the death of HJ Kimani, the surviving brother, Kamuranga, had treated him for all purposes as his son, and he wrote a letter from the United States in the Embu language dated 19 February 1969, in which it was asserted that both the brothers had given the whole of the land to him.

Kamuranga died in 1976 and the defendant continued to occupy the 15.9 acre portion of the land, maintaining that as she was his natural daughter she was entitled to inherit her father's share. The plaintiff, however, in May of that year sued for possession of the whole area, claiming that the defendant was a trespasser, and for an order for her eviction therefrom. The defendant claimed that the plaintiff held the land in trust for her, and did not at that stage limit her claim and interest to the 15.9 acres.

The trial magistrate found that there was an Embu custom to the effect that a married daughter cannot inherit land from her father, and that the plaintiff, as the first registered owner, was entitled to the land, and refused the declaration of trust sought by the defendant, holding that it was an attempt to circumvent section 143(2) of the Registered Land Act which, in any event, provided that a first registration was indefeasible, even on the ground of fraud or mistake. He held that she was a trespasser and made an order evicting her from the land. The judge on first appeal affirmed the magistrate's decision and findings.

On the second appeal to the Court of Appeal the defendant claimed, through her counsel, that the magistrate should have found trust in favour of the defendant/appellant, and that both the magistrate and the judge had failed to appreciate the effect of the letter of 19 February 1999, because no English translation had ever been produced before either court, and each had misapprehended the nature of the respondent's case. Moreover, the evidence showed that when her father died the appellant had been divorced from Patrick, and that, even if a custom such as the respondent alleged had existed, and the appellant was bound by it, the custom did not apply to a previously married woman who had been divorced at the relevant time.

The respondent contended that Patrick had moved away from the land because he could not tolerate another man, that is the respondent, providing for his wife, that Patrick was prepared to provide land elsewhere for the appellant, that the record showed that there was an interpreter in Court, leading to the inference that the letter of 19 February 1969, was in fact translated to the lower Courts, and that the evidence, especially a letter written to the parties by the District Officer on 10 May 1976, showed that the appellant was not divorced at the relevant time. Accordingly, the custom that inheritance under Kikuyu – which included Embu – law is patrilineal applied, that the appellant, as a natural daughter, should inherit the 15.9 acres, which, with the rest of the land, should go to the respondent.

Held – Following *Kimani v Gikanga* [1965] EA 735, where the existence of a custom is alleged which would produce a result different from the ordinary law, if it is of general notoriety, it may be prejudicially noticed or it may be proved by a book or document of reference or by the evidence of witnesses, in the same way as any other matter of fact.

A second appellate Court will not normally differ from concurrent findings of fact of the two courts subordinate to it, and will only do so if those concurrent findings have been based on a false premise.

In the instant case there were concurrent findings of fact that the appellant was a married woman; that she was not divorced from Patrick Gatimu at the material time; that the land had been registered in the name of the respondent during Kamaranga's lifetime; that the allegations of fraud had not been proved and that no customary trust existed in favour of the appellant.

The preponderance of the evidence showed, on the balance of probabilities, that the appellant was still married, and was not divorced, at the material time.

Hancox CJ dissenting – The Kikuyu, and therefore Embu, custom that a married woman cannot inherit her father's land was sufficiently notorious for the Court to take judicial notice of it; and accordingly evidence was not required to establish the custom, which was a salutary one and ensured that the land remained within the family, and which operated to exclude any right of inheritance of the appellant to the 15.9 acres.

There was no substance in the complaint that the Magistrate and the Judge had failed to consider the contents of this letter of 19 February 1969, for the appellant said in evidence that she had read it and referred to its contents, and the Magistrate had made several references to it in his judgment. The magistrate and the judge were accordingly right to reject the appellant's claim that there was a trust in her favour.

Per Masime JA – Kamuranga had lived on the land for 16 years after Kimani had died and during the adjudication and registration process, but he neither took any steps to have his or his natural daughter's interest therein noted in the register, nor did he take any action to claim any interest in the land, from which the correct inference was that he had consented to its registration in the respondent's name.

Per Hancox CJ – Neither the magistrate nor the judge had made a finding on the crucial issues of fact as to whether or not a custom existed which excluded a married woman from inheriting land from her father.

Under section 3(2) of the Judicature Act the Court had to be satisfied that the custom, if proved, was not repugnant to justice or morality, and a custom which was discriminatory in its effect, so as to bar women from inheritance, was repugnant to ordinary notions of justice and should not be followed.

The term "patrilineal", so as to provide for the inheritance of sons, should be confined to natural issue of the deceased.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Kamiru v Kamiru civil application number 75 of 1984

Kariuki Thuku v Andreano Gure Gachima High Court (Nyeri) civil case number 35 of 1968

Kimani v Gikanga [1965] EA 735 – **F**

Kivuitu v Kivuitu [1991] 2 KAR 241

Muhindi v Mugendo [1990] 2 KAR 156

Obiayo v Okotu [1990] 2 KAR 146

Obiero v Opiyo [1972] EA 227

Sheikh Mushtaq Hassan v Kamau [1986] 1 KAR 946

United Kingdom

King Emperor v Benoari Lal Sarma [1945] 1 All ER 210

Judgment

Masime JA: This suit concerns agricultural land registered under the Registered Land Act (Chapter 300) as Ngandori/Kirigi/1476 and measuring approximately 57.09 acres (the suit land). The suit land, it was common ground, was acquired by two brothers, namely Henry James Kimani (the father of the respondent) and Kamuranga Wakiringa (the father of the appellant). When the land adjudication process was applied to the land it was first registered in the name of the respondent Stephen Nyaga Kimani on 10 March 1961 as appears in the abstract of title produced in evidence.

It would appear that shortly after the registration of the suit land in the respondent's name he left the country for studies in the USA and did not finally return until September 1975. The following year the appellant moved onto the suit land, occupied and cultivated it, planting crops and constructing houses on it. When the respondent learned of this he wrote to the appellant's husband requiring them to vacate the suit land but the appellant did not do so and remains on the land to date. So when the respondent returned from the USA he filed, in May 1976, a suit in the Resident Magistrate's Court at Embu against the appellant seeking her eviction on allegations that she had trespassed on the suit land.

The appellant filed a statement of defence on 7 June 1976 in which she admitted that the respondent was registered proprietor of the suit land but claimed that he was so registered subject to a customary trust in favour of the appellant; consequently the appellant denied the alleged trespass and unlawful occupation of the land. In addition, the appellant counter-claimed against the respondent for a declaration of trust and an injunction to restrain the respondent from evicting her from the suit land.

In view of the pleadings and the issues joined by the parties, the suit was tried by the learned Senior Resident Magistrate, who found for the respondent and dismissed the appellant's counter-claim. On appeal to the superior Court the appellant's counter-claim was again dismissed and she now brings this second appeal.

The memorandum of appeal contains four grounds of appeal. The first relates to the concurrent findings of the two lower Courts that the appellant failed to establish fraud as a basis for seeking the declaration of customary trust. It is contended that that finding was erroneous since fraud was neither pleaded nor alleged. In my respectful opinion, in view of section 143(1) of the Registered Land Act (Chapter 300) it does not matter that fraud was neither alleged nor pleaded. The courts have consistently held that "section 143(1) does not preclude the Court from determining whether or not the plaintiff has an equitable interest in the land" – (see *Kariuki Thuku v Andereano Gure* [1968] High Court civil case (Nyeri) 35 per Bennett J. *Jonathan Orengo Obiayo v Moses Ondiegi Okotu* [1990] civil application 146 was to the same effect except that the suit was struck out for other reasons).

The other three grounds of appeal deal with the analysis and evaluation of the evidence and the findings made thereon by the two lower Courts. It is contended that the superior Court erred in law in failing to evaluate the evidence and to make its own independent findings thereon and that that failure occasioned a miscarriage of justice. In my view, therefore, this appeal turns on the analysis and evaluation of the evidence and the findings that ought to have been made by the lower Courts.

By his plaint the plaintiff/respondent sought the eviction of the defendant/appellant from the suit premises, and the costs of the suit. That claim was based on the fact that the respondent was the registered proprietor of the land title Ngandori/Kirigi/1476 measuring some 57.09 acres or thereabouts. It was alleged that the appellant had in or about 1962 wrongfully, and without the respondent's consent, entered the land and cultivated it to the date of the suit.

A statement of defence was filed in which the respondent's proprietorship over the suit land was admitted but the alleged wrongful occupation denied.

The defence further alleged that the respondent's registration was subject to a customary trust created during land adjudication and subsequently acknowledge in writing on 19 February 1969 and 10 May 1976. The appellant in the circumstances counter-claimed against the respondent for a declaration of trust over the entire suit land, rectification of the register to reflect the alleged trust, an injunction to restrain the respondent from interfering with the appellant's user of the land and costs of the suit.

The suit was set down for hearing before the Acting Resident Magistrate, Embu and evidence was led for both parties.

The respondent's evidence was that his father and the appellant's father were brothers and that the two brothers acquired the suit land before land adjudication. Both the brothers and the parties to the suit were alive during adjudication but the appellant, who was the only surviving child of her father, was already married and living with her husband, Patrick Gatimu Muruaciura (PW2). The respondent's father died in 1960, while the appellant's father died much later in April 1976. The suit land was registered in the respondent's name on 10 March 1961. There is no evidence that the appellant's father objected to the adjudication of the land in the respondent's name. After registration he lived for more than 15 years without taking any action to claim the land or any share in it. The respondent left Kenya for the USA to study in September 1961 and did not return finally until September 1975. In 1962 the appellant, her husband and their children entered and began to live on the suit land without any invitation from or consent of the respondent. When the respondent learned about this he wrote to the appellant's husband and asked them to leave his land and go to his own land. The respondent later learned that the appellant's husband left the suit land on receipt of that letter but the appellant refused to leave and remains on the suit land to date.

During his absence overseas, the respondent and the appellant's father exchanged correspondence in which references were made to the suit land. Copies of some of these letters were exhibited in Court and appear in the two supplementary records of appeal. In the letter dated 19 February 1969 the respondent admits that the respondent's father jointly with the appellant's father gave the suit land to the respondent before it was adjudicated and the registered in the respondent's name. It also appears that when that letter was written the appellant's father wanted to sell a portion of the suit land to a third party and that the appellant was herself resident on the land. Regarding the claim of the appellant's father, the respondent says in the letter:

> "Do not keep on saying that you want to be given your 15.9 acres. If you inherit (*sic*) to me 5 acres, then I will pay all the debts you owe to people. I want you to understand that for you to get your portion of land in my absence is not possible because that land is under the "power of attorney" and nobody can interfere with it without my authority. Ngari is the only person allowed by the law to do so such things in that land."

The other three letters dated 10 May 1976, 13 May 1976, and 22 May 1976 relate to the abortive attempt by the district officer, Runyenjes, who as chairman of the Embu North Land Control Board tried to sort out the land problem between the parties. For myself I do not seek that the correspondence tendered proves that the appellant's father, during the 15 years or so that he lived following the adjudication and registration of the suit land in the respondent's name, made any firm claim to the suit land.

It was the respondent's case that under Embu customary law – which it was common ground applies to the parties – the appellant, as a married woman living with her husband, could not, although she was the only surviving daughter of her father, inherit her father's land. In the respondent's view the appellant was unable to inherit her father's land because her rights to property move with her, on marriage and during the subsistence of such marriage, to her husband's clan because of the patrilineal system of inheritance. In any case, the respondent argued, it was not established by evidence that the appellant's father had any equitable interest in the suit land.

The plaintiff/respondent called the appellant's husband Patrick Gatimu Muruaciura (PW2) as his only witness. PW2 is a blacksmith and testified that he married the appellant in 1942 and cohabited with her until 1967. Between 1962 and 1967 PW2, the appellant and their children lived on the suit land until the respondent wrote a letter asking them to vacate the land. In 1967 he went away to live on his own land but his wife refused to go with him. This witness states that neither he nor his wife have any rightful claim over the suit land – he because he has his own land, and his wife, because she is his wife and should live on his land. Nor, according to him should the respondent be made to purchase any land for him as the district officer, Embu, purported to direct. Finally, PW2 denied having been divorced from the appellant; they only separated because he did not wish to live with her in her home. That concluded the respondent's case.

The appellant gave evidence and called two witnesses in defence to the respondent's case. Her own evidence was as follows. The suit land was purchased by the parties' father jointly. She then settled on the land and occupied eight acres which she developed by constructing houses and planting bananas, 305 coffee trees, sugar cane and macadamia trees. In the 1960s she received a letter from the respondent asking her to leave the land; she discussed the matter with her father who wrote to the respondent in America complaining that his 15.9 acres had been consolidated with the respondent's land. The matter was pursued when the respondent returned from USA and reported to the district officer Runyenjes on 10 May 1976.

In her further evidence the appellant stated that she was married to PW2 and has nine children with him. PW2 deserted her but they are not divorced – she did not follow him because she believes she is entitled to her father's land though she is a married woman. It was her case that the respondent fraudulently acquired the suit land during adjudication. In cross-examination the appellant said that a ceremony of divorce was performed between her and PW2; they did not remarry. Finally, she said she is not PW2's wife.

The appellant's son Edward Njeru (DW2) testified that in 1969 the appellant's father (his grandfather) dictated a letter which he wrote to the respondent in December 1968. In that letter the appellant's father complained about the respondent's request to the appellant to vacate the suit land when she was the only person looking after her father. The appellant's father in that letter asked the respondent to return as soon as possible and subdivided the land.

Meshack Njagi (DW3) was a member of the land adjudication committee at the material time. He testified that he knew the parents of both the parties and the suit land. According to DW3 the parents of the parties jointly purchased the land in 1955 for Kshs 849. The land was adjudicated and registered in the

respondent's name as his father had predeceased the appellant's father. Having said this, however, the witness adds that the appellant's father was to be responsible for the land until the respondent returned from overseas. DW3 finally states that the appellant's father claimed 15.9 acres of the suit land.

The last witness for the appellant was Muruaciura Nyaga (DW4); he was the father of the appellant's husband PW2. He testified that he arranged for the marriage between the appellant and PW2. Later, the appellant's father sued him in Court for divorce for non-payment of dowry and he gave one bull and one ram which were slaughtered by way of divorce. That was before the appellant and PW2 had any children and in the absence of PW2 who was in prison. That was the evidence for the appellant.

I have carefully analysed and evaluated the entire evidence adduced before the trial Court. The suit land was acquired by fathers of the parties, who were brothers; that was before land adjudication. During the adjudication process and before the registration of the suit land in the name of the respondent the respondent's father died in 1960. The appellant's father survived the respondent's father and himself died in 1976. The appellant, who was the only surviving child of her father, had been married to PW2 in or about 1943 and was, during the land adjudication and registration of the suit land, living with her husband away from the suit land. On this evidence I find that the appellant's father could, but did not, secure his right to the land by insisting on such right being noted on the register. Further, if he had wished to do so the evidence does not indicate why he did not have the appellant, his only surviving child, registered as a proprietor of his interest in the suit land. What is more, following the registration of the respondent as proprietor of the suit land, the appellant's father lived for 16 years but took no action to claim any interest over the land. The inference which I draw from all this evidence is that the appellant's father consented to the adjudication of the suit land and its registration in the name of the respondent.

Finally, as regards the appellant's counter-claim, I note that section 82(*a*) of the Succession Act (Chapter 160) empowers personal representatives:

> "to enforce, by suit or otherwise, all causes of action which by virtue of any law, survive the deceased or arise out of his death for his estate."

Such power is, however, by section 80 of the Act subject to any limitation in the grant of letters of administration which becomes effective only from the date it is issued. But the Succession Act does not apply to this appeal since although it was enacted in 1972 it was not operative until 1981, after this litigation commenced. I therefore revert to section 120 of the Registered Land Act (Chapter 300) which covered the situation until it was repealed by the Succession Act. That section provided:

> "120 (1) Where a proprietor dies intestate and is subject to African customary law relating to succession on death, this section shall apply, and a certificate signed by an administrative officer to the effect that a proprietor was so subject at the date of his death shall, when delivered to the registrar and filed, be conclusive evidence that the deceased proprietor was so subject.
>
> (2) Upon being informed of the death of a proprietor intestate, the Registrar, after satisfying himself of the death of the proprietor shall apply to the African Court for the determination of the heirs, and the African Court shall determine who are the persons entitled, according to the customary law applicable to any land, lease of charge of the deceased proprietor, and

the nature and extent of their respective shares, and shall thereafter issue a certificate in the prescribed form (hereinafter referred to as a certificate of succession) certifying the names of the persons so entitled and the nature and extent of their respective shares.

(3) The African court shall send the certificate of succession to the registrar who shall subject to the provisions of this Act, give effect to its terms by registering as proprietor of the land, lease or charge any person who appears from the certificate to be entitled thereto; and the certificate shall be filed."

In view of my findings on the evidence adduced at the trial I doubt that there was any cause of action, which survived the appellant's deceased father. But even if there was any such cause of action I find no evidence that the appellant was the personal legal representative of the deceased who would be empowered to bring the counter-claim as she purported to do.

For the above reasons I would respectfully disagree with the Chief Justice, whose judgment I have read in draft, and instead would, like Kwach JA, reject this appeal in the terms proposed by him.

Kwach JA: Wambugi w/o Gatimu (the appellant) is a cousin of Stephen Nyaga Kimani (the respondent). Both their fathers, who are now dead, were full blood brothers. They are of the Embu tribe.

Some time in 1976, the respondent filed a suit in the resident magistrate's court at Embu against the appellant seeking an order for her eviction from his parcel of land known as Ngandori/Kirigi/1476 measuring 59.89 acres and situated in Ngandori location in Embu District. The plaint contained an averment that the appellant had wrongfully, and without the consent of the respondent, entered the said parcel of land in 1962 and cultivated it ever since. She had ignored the respondent's request to vacate.

The appellant delivered a defence on 7 June 1976, in which she made the following averments among others:

"(2) The defendant admits that the plaintiff is the registered proprietor of the piece of land known as Ngadori/Kirigi/1476 as described but states that the plaintiff is registered subject to a customary trust created during land adjudication and recognised by the plaintiff in writing on the 19 February 1969, and the terms thereof subsequently agreed and put in writing before the Embu North Divisional Control Board at its meeting held at Runyenjes on the 10 May 1976.

(3) By reason of the facts averred in paragraph 2 hereof, the defendant denies that she is wrongfully or without the consent of the plaintiff in possession of the land in question and in answer to paragraph 4 of the plaint, states that she is in occupation of the said land as of right."

The appellant also made a counter-claim for declaration of trust and an injunction against the respondent restraining him from interfering with her user of the suit land.

According to the respondent's testimony at the trial, he became registered as proprietor of the suit premises on 10 March 1961. He then proceeded to USA in September the same year for further education and did not return to Kenya until September 1975. He said that, during land consolidation, the appellant was living with her husband and that she had been given land because she was married. His father, Henry James Kimani, died in 1960. The appellant's father, Kamuranga Wakiringa died in April 1976. It is significant to note that at the time of adjudication and registration of the respondent as the proprietor of the

suit premises, the respondent's father was already dead, while the appellant's father was still alive and well. The respondent denied that the appellant was divorced or that he held some 15.9 acres of the suit land in trust for the appellant's father. He maintained that under Embu customary law the appellant, being a married woman, could not inherit land from her father, who had no sons. He also said that he had attempted to assist the appellant by securing her alternative land, but his efforts were frustrated by the appellant and her husband, Patrick Gatimu.

Patrick Gatimu, the appellant's husband, gave evidence on behalf of the respondent. He said the appellant was his wife and that he married her in 1943. They stopped living together in 1967. He had been living with his wife on the respondent's land and the respondent had asked him to leave. He also told the Magistrate that:

> "We are not divorced. The plaintiff Nyaga is the one who should inherit her father's property. I do not have nor my wife any claim over her late father's land. She can't claim land at her father's since she is my wife. If we have divorced I would like my property to be paid back. I have no claim against Nyaga. I would only claim my wife back from Nyaga."

In cross-examination he was adamant that they did not divorce. The evidence of the husband is crucial because the outcome of this appeal depends on the marital status of the appellant at the material time.

The appellant also gave evidence and called four witnesses. She told the magistrate that her father had bought 15.9 acres out of which she has developed eight acres. She claimed to have been divorced from Gatimu but she did not know when this happened. She admitted that she and Gatimu were both living on the respondent's land before Gatimu left. Although she claimed that she had only one child with Gatimu when they divorced, whenever that was, she freely admitted having had nine more children with Gatimu after the alleged divorce.

In cross-examination, and for the first time, she alleged that the respondent had fraudulently acquired the land during the adjudication process. She gave some interesting evidence concerning customary law. She said:

> "Gatimu moved out of that land on his own accord. I could not have followed him as I have my father who owns land. I do not agree that married women cannot inherit. These days custom is out and women can inherit their father's property. My father did not give that land to Dr Nyaga since we had no son."

From this part of her evidence one can see straightaway that the appellant was challenging the Embu customary law of inheritance, about which I shall have something to say later on in this judgment.

Meshack Njagi, one of the witnesses called by the appellant, alleged that the respondent had stolen the land. He also said that according to Embu customary law a daughter can inherit. He came from a different clan.

The appellant also called Murucira Nyaga, her husband's father, to confirm that she and Gatimu were divorced. Being of advanced old age, the magistrate, quite properly in my own view, rejected his evidence as unreliable and worthless.

The magistrate who saw and heard the witnesses accepted the account given by the respondent. He found that no customary trust had been proved. He also found that, the appellant's father having had no son, the respondent was his rightful heir under Embu customary law. He further found that the appellant

was still married to Gatimu and that, as a married woman, she could not inherit her father's land. He gave judgment for the respondent and dismissed the appellant's counter-claim. She appealed to the High Court against the decision of the Magistrate.

The judge found that there was credible evidence to support the learned magistrate' s finding of fact, namely that the appellant was a married woman; that the land was registered in the name of the respondent during the lifetime of the appellant's father and during the subsistence of the marriage of the appellant; that the respondent was the only heir of the appellant's father because he had no son and the appellant was married; and that allegations of fraud and customary trust had not been established. The judge, having arrived at concurrent findings of facts with the trial magistrate, dismissed the appellant's appeal. The appellant has now brought a second appeal to this Court.

There are four grounds of appeal. In dealing with these, I have to remind myself that, being a second appeal, I am only concerned with issues of law (see Civil Procedure Act (Chapter 21) section 72). Apart from the attack on findings of fact by both the magistrate and judge, the only issues of law raised by this appeal are whether customary law was properly received in evidence and whether on the evidence a customary trust in favour of the appellant had been established.

Mr *Mahan* for the appellant submitted that the judge did not critically analyse the evidence and that, had he done so, he would have found that there was indeed a trust in favour of the appellant, at least to the extent of 15.9 acres which the appellant, as a divorced woman, and therefore single, could inherit from her father. His second submission was that the Embu customary law on which the magistrate and the judge relied had not been properly proved as no experts were called by the respondent who had the burden of proving it.

Mr *Khaminwa* for the respondent submitted that customary trust had not been proved. With regard to customary law, Mr *Khaminwa* conceded that expert evidence had not been called but he submitted that the custom in question was so notorious that the Courts could take judicial notice of it.

As regards trust, it is a question of fact and has to be proved by evidence. There is nothing in the Registered Land Act which precludes the declaration of a trust in respect of registered land, even if it is a first registration. It is to be noted that at the time the alleged trust was created, the respondent's father was already dead. The appellant's father was still alive and took an active part in the registration exercise. There is evidence to support Mr *Khaminwa*'s submission that it was out of the appellant's father's respect for the relevant Embu customary law that he supported the registration in favour of the respondent. I have read the evidence very carefully and I am satisfied that there is no evidence to support the appellant's claim of trust. This ground of appeal fails.

Coming to the issue of customary law, I shall first set down *ex extenso* the relevant statutory provisions. I start with section 87(1) of the Civil Procedure Act (Chapter 21):

> "87 (1) Any court may in any cause or matter pending before it in which questions may arise as to the laws or customs of any tribe, caste or community, summon to its assistance one or more competent assessors and such assessors shall attend and assist accordingly."

There is also section 51 of the Evidence Act (Chapter 80) which provides:

> "51 (1) When the Court has to form an opinion as to the existence of any general customs or right, the opinions as to the existence of such custom or right of persons who would be likely to know of its existence if it existed are admissible.
>
> (2) For the purposes of subsection (1) of this section the expression "general custom or right" includes customs or rights common to any considerable class of persons."

Section 59 of the Evidence Act provides that no fact of which the Court shall take judicial notice need be proved. And section 60(1)(*a*) of the Evidence Act provides that among the facts of which the Courts shall take judicial notice include all written laws, and all laws, rules and principles, written or unwritten, having the force of law. Customary law falls into this category.

Finally, there is section 3(2) of the Judicature Act (Chapter 8) which provides:

> "3 (2) The High Court, the Court of Appeal and all subordinate courts shall be guided by African customary law in civil cases in which one or more of the parties is subject to it or affect by it, so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law, and shall decide all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay."

The former Court of Appeal for East Africa in the case of *Kimani v Gikanga* [1965] EA 735 held that where African customary law is neither notorious nor documented it must be established for the Court's guidance by the party intending to rely on it and also that as a matter of practice and convenience in civil cases the relevant customary law, if it is incapable of being judicially noticed, should be proved by evidence or expert opinions adduced by the parties.

The relevant Embu customary law that the appellant is challenging is that a married woman cannot inherit her father's land. There is no dispute over the fact that the customs and traditions of the Embu tribe are similar to the Kikuyu.

On the right of inheritance by daughters, the late President Jomo Kenyatta in his book, *Facing Mount Kenya*, says (at 29):

> "After some time the family began to increase. Let us imagine that each wife had three sons and perhaps some daughters. But as female children do not take part in the ownership of land, we will leave them out, because, having no system of spinster hood in the Gikuyu Society, women do not inherit land on their father's side; they play their part in the family or clan in which they marry."

Cotran in his *Restatement of African Law*: volume 2 says (at 8):

> "Inheritance under Kikuyu law is patrilineal. The pattern of inheritance is based on the equal distribution of a man's property among his sons, subject to the proviso that the eldest son may get a slightly larger share. Daughters are normally excluded, but may also receive a share if they remain unmarried. In the absence of sons, the heirs are the nearest patrilineal relatives of the deceased, namely father, full brothers, half-brothers, and paternal uncles."

Under Embu customary law, the appellant would have been entitled to inherit some land from her father if she was unmarried. This may explain why she asserted so vigorously that she was divorced from Gatimu.

Among the Embu, divorce can be granted either by the family and clan elders under customary procedure or by a Court. If the divorce is granted, a ram (*ngoima ya gutharia nyumba*) that is of destroying the home, is slaughtered by the husband. The slaughter of this ram is an indication that the parties are no longer husband and wife. The father of the girl also slaughters a ram (*ngoima ya kuhata mbimbi*) (see Cotran's *Restatement of African Law*: volume 1, at 19).

In this case Gatimu, the appellant's husband, who should have performed the important part of the ritual of divorce, strongly denied that they were divorced. I think both the magistrate and the judge were right in preferring the evidence of Gatimu to that of the appellant on this issue. I am satisfied that the Embu customary law of divorce and inheritance is notorious enough and the Court can take judicial notice of it. There was accordingly no need to call expert evidence to establish it. The custom having been established, it was never suggested that it was repugnant to justice or morality so that it should not apply. There is a purpose for every custom. The Embu custom of inheritance ensures that the land remains in the family. That is in my view a good enough reason for upholding it. I would like to echo the remarks made by Nyarangi JA in the course of his judgment in the case of *Sheikh Mushaq Hassan v Nathan Mwangi Kamau* [1986] 1 KAR 946 when he had this to say in relation to customs (at 954):

> "I would say a judge should be very slow to criticise any particular custom of people. There always is a purpose for the practice of a custom. Human beings do not partake for too long in customs which are not beneficial to them. If a judge is required to apply a custom, it is often safe to summon to his assistance one or more competent assessors from the tribe or community of the parties to the action . . . before making critical comments on a custom. It is clear from the relevant part of his judgment that the trial Judge does not fully understand the substance and application of the material custom."

I would like to deal briefly with another point taken by Mr *Mahan* concerning the letter dated 19 February 1969, written to the appellant' father by the respondent. Mr *Mahan* submitted, firstly, that the contents of this important letter had been largely ignored, and not taken into account, by the magistrate. A perusal of the record of proceedings indicates that, contrary to Mr *Mahan*'s claim, the letter seems to have been read into the record by the appellant when she gave evidence before the magistrate in turn makes several references to it in his judgment.

The point about there not being an English language translation of the letter before the magistrate did not, in my judgment, occasion any prejudice to the appellant. The letter was produced by the appellant, who was represented by an advocate, and who should have arranged for the translation.

The second submission made by Mr *Mahan* about this letter was that it contained a promise by the respondent to give the appellant a part of the disputed land. I have read that letter very carefully but I could find no such promise. But even if it did, it would constitute an agreement affecting agricultural land which, in the absence of land control board consent, would be void for all purposes.

For these reasons, and not without some sympathy for the appellant, I have arrived at the conclusion that her appeal must fail. I would dismiss it with no order as to costs both here and below. As she has no right to remain on the respondent's land, I would give her six months form the date of this judgment

to vacate the land and give the respondent vacant possession. She will not be rendered homeless because her husband as throughout expressed his anxiety for her early return to his home.

Hancox CJ: This is a second appeal concerning a piece of land registered as parcel number Ngandori/Kirigi/1476 and measuring 57.09 acres according to the registration certificate produced as exhibit 1 in the Court of the resident magistrate at Embu (not 59.09 acres as stated in the plaint filed in May 1976). As we said in *Agnes Muhindi v Mugendo* [1990] 2 KAR 156, this Court is no stranger to lengthy delays in these civil land appeals but the present one exceeds even that one in its long history. The story begins with the marriage in 1943 of the appellant Esther Wambugi, who was the original defendant before the resident magistrate, to Patrick Gatimu, who was called as the respondent/plaintiff's only witness. I refer to that at the outset because the existence of this marriage or otherwise at the material time was made a central issue in the appeal as it was argued before us by Mr *Mahan* on behalf of the appellant, and Dr *Khaminwa* on behalf of the respondent.

The *dramatis personae* in this case are:

Henry James Kimani, the natural father of the respondent, who died in 1960 before the land was first registered.

Kamurunga Wakiringa, the brother to HJ Kimani, who was the natural father of the appellant and who died in April 1976. He was also treated, as is apparently the custom, as the father of the respondent his natural father's death, and it was in that capacity that the respondent wrote the letter of 19 February 1969 (exhibit 4) in somewhat equivocal terms, the English translation of which was not produced in either of the lower Courts, and did not emerge until the second supplementary record of appeal was field in this Court on 28 March 1991. He was buried by the respondent on the land, but not, we are informed by Dr *Khaminwa*, on the 15.9 acre portion which the appellant now claims.

Dr Stephen Nyaga Kimani, the original plaintiff, in whose name the land was first registered on 10 March 1961, who is, as I said, the nephew of Kamuranga and therefore the natural cousin of the appellant, Esther.

Esther Wambugi w/o Gatimu, the natural daughter of Kamuranga, who claims that her father purchased 15.9 acres of the disputed land which she inherited from him when he died in 1976. She had been living on the land prior to that (in her right as daughter to Kamuranga) and was consequently not a trespasser as had been alleged by the respondent in the plaint, but was occupying the land which the respondent held on a customary trust for her. She therefore counter-claimed for the appropriate declaration and an injunction.

Patrick Gatimu Maruaciura, the husband (or former husband) of the appellant who said that they had separated in 1967 but had not divorced and that he had invited her to come and live with him, with the implication that she would receive an appropriate piece of land from that source.

Muruaciura Nyaga, the father of Patrick Gatimu who confirmed the marriage and was subsequently sued by Kamuranga for non-payment of the dowry. He also said that he had produced a bull and ram which were slaughtered to signify the divorce. This witness' evidence was somewhat equivocal because in its context it appeared that the divorce (if divorce there was) was due to the non-payment of dowry rather than the separation of the parties, while the tenor

of his son's evidence was that he had moved away from the land because it was impossible and intolerable for him, as the husband, to live on land provided by another man, that is the respondent. Indeed, in his response to the district officer's letter dated 13 May he says that the course proposed might "force me into a divorce I do not want".

The remaining witness was a member of the land adjudication committee who confirmed that the land was bought jointly by the original two brothers, HJ Kimani and Kamuranga in 1955 for KShs 849, that the land was registered in the respondent's name because his father had died early, that Kamuranga's share was 15.9 acres and that a daughter can inherit under Embu customary law. I would observe that on the pleadings issue was not joined by the appellant as regards the 15.9 acres only but, apparently, as regards the whole of the land. As the disputed portion is only just over one quarter of the whole land it is possible that the parties might have reached agreement much earlier either before the subordinate court or the High Court. However, by the time the case reached this Court it was clear beyond peradventure that the appellant's claim was restricted to 15.9 acres, and it was argued on her behalf that it would be unjust to evict her from that portion as she has lived there since 1962, and probably well before that.

The only other matter which it is material to mention at this stage is that the district officer Runyenjes had made an attempt at settling the dispute as recorded in his letter of 10 May 1976 (exhibit 3), ending with the pious hope:

> "That since you are all relatives, you will live in harmony and whenever there arises any problems, solve the problem the family way."

The district officer had also stated in that letter, as Dr *Khaminwa* pointed out, that Esther and Patrick were, at that point in time at least, wife and husband, and were being referred to as Mr an Mrs Gatimu.

Mr *Mahan* submitted on behalf of the appellant that there was clear evidence on the record from which the Court should have inferred that the respondent, despite being the first registered proprietor on 10 March 1961, held the 15.9 held the 15.9 acres on trust for the appellant. The only independent witness, in the sense that he did not belong to the family, Meschack Njagi testified that the "said land", meaning the whole area, was purchased jointly by the fathers of the parties (who were natural brothers) in 1955. This was expressly denied by the respondent, who also reiterated that the defendant, as a married woman, was not entitled to inherit land according to Embu customary law.

Mr *Mahan* took us in detail through the translation of the letter written in the Embu language by the respondent to Kamuranga on 19 February 1969. The main thrust of that letter was the paragraph asserting that his own father and Kamuranga had both given him the land. The translation was, Mr *Mahan* submitted, never produced either before the magistrate or to the High Court on the first appeal before JS Patel J. Had the magistrate been aware of the contents of the letter, Mr *Mahan* said, he would have found a trust in favour of the appellant. Moreover, it is clear from the tenor of his judgment that the magistrate erroneously believed that the appellant's counter-claim was based on fraud, which was never pleaded and which was never her case. That was what led him to hold that the allegation of fraud was an attempt to circumvent the provisions of section 143 of the Registered Land Act (Chapter 300) whereby a first registration is indefeasible. But, as was made clear by Bennett J in *Obiero v Opiyo* [1972] EA 227 (an authority often referred to by this Court) not even proof of fraud can operate so as to vitiate a first registration in view of the very clear terms of the subsection.

When the matter came to the High Court of first appeal the judge did not reach an independent finding. All he did, it was submitted, was to adopt the submissions of the counsel then appearing for the respondent. The net result was that both courts had misconstrued the appellant's case and had therefore reached concurrent findings of fact with which this Court would be extremely slow to interfere, except when those concurrent findings have been clearly based on a false premise.

Accordingly, in all the circumstances of the case, the concurrent findings that the appellant was a trespasser were wholly unjustified and should be overturned.

Finally, Mr *Mahan* said that if the appellant had been on the land for 37 years (if she entered in 1955 as he claimed) or for 30 years (as the evidence for the respondent showed) it would be a great injustice to reach a finding now which would have the effect of evicting her from the land. The only just result was that a trust should be held to exist in her favour. In this respect he relied on *Nderitu Kamiru v Michellum Kariuki Kamiru* [1984] civil application 75 (a judgment of the full bench consisting of Platt, Gachuhi and Masime JJA). To this last contention, Dr *Khaminwa* generously said that he would not object to the appellant being given a reasonable time in which to vacate the land in the event of the Court holding in his favour and dismissing this appeal.

In his address on behalf of the respondent, Dr *Khaminwa* placed his argument fairly and squarely on the issue as to whether, at the relevant time, the appellant was married or not. If she was, he submitted, that is if she had remained married and was not divorced, then customary law came into operation and it was till a cardinal principle of customary law that a married woman cannot inherit property. This was clearly stated by the respondent in evidence and is borne out by the following passage from Cotran's *Restatement of African Law*: volume 2 at P 8:

> "Inheritance under Kikuyu law [which covers, *inter alia*, EMBU customary law] is patrilineal. Daughters are normally excluded but may also receive a share if they remain unmarried." (emphasis mine)

Dr *Khaminwa* maintained that it was clear from the evidence that when the respondent wrote to Patrick requesting him to leave the disputed land, he did not resist this but moved to his own land (where he was prepared to accommodate the appellant) because he could not allow Dr Njenga to provide for his wife. The reason Dr Nyaga wrote the contentious letter of 19 February 1969 was because the appellant, desirous of living apart from her husband and remaining on the land at Embu, had been pressuring her father to get out of the commitment he had made to the respondent, that is it to give him land together with all the rest. This must, I think, be only a matter of inference from the sequence of events, as Dr *Khaminwa* admitted, since there was only secondary evidence as to the reasons which prompted this correspondence.

Furthermore, Dr *Khaminwa* said, it was plain from the context of the evidence as a whole that there must have been a Court interpreter, since portions of the letter of 19 February 1969 were put to the various witnesses and it was inconceivable that the trial magistrate would have proceeded to judgment without having the smallest idea of that which it contained. Certainly the record shows that there was an interpreter in the early stages of the High Court proceedings.

Dr *Khaminwa* took us *seriatim* through the grounds of appeal. He disputed that the two lower Courts misapprehended the nature of the plaintiff's case, or that we were entitled to examine the evidence again as urged on ground two. As to grounds three and four, the evidence as to customary law was the other way, that is, if the appellant was still married in 1976 when Kamuranga died, and the marriage had not been dissolved, then customary law disentitled her to inherit. This was well before the commencement of the Law of Succession Act (Chapter 160), and no submissions were made to us that this case was in any way governed by that Act. Several decisions have recognised the statement in Cotran that I have cited above, notably Harris J in the matter of the estate of Stephen Mbuthi (deceased) at 263 of *Cotran's Cases on Customary Law*. Finally, Dr *Khaminwa* distinguished *Nderitu Kamiru v Michellum Kairuki Kamiru* [1984] civil application 75, because in that case all the evidence showed that Michellum had held their father's land on trust for all the brothers, and had then sold it behind their backs. The court held that there was clearly an equitable trust in favour of the brothers and set aside the sale to the second and third respondents. There was no mention of any custom or customary trust in the judgment and no violence was done to the patrilineal rule of the succession which, Dr *Khaminwa* maintained, is the guiding principle in this case.

The starting point in considering any appeal in which one or other of the parties advances customary law in support of his case in section 3(2) of the Judicature Act (Chapter 8) which provides:

> "The High Court, the Court of Appeal and all subordinate courts shall be guided by African customary law in civil cases in which one or more of the parties is subject to it or affected by it, so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law, and shall decided all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay."

The predecessor of section 3(2) was regulation 4 of the Kenya (Jurisdiction of Courts and Pending Proceedings Regulations) 1963 which came into question in *Kimani v Gikanga* [1965] EA 735, in which the appellant claimed that when the land, comprising 100 acres, was given to him in 1927 by the respondent's father (the appellant's uncle) it was given to him as the owner of it, as well as the "muramati" or administrator, and not as a "muhoi" or tenant at will. While the appellant was in detention the respondents had produced the first registration of the land in their names. Both the trial magistrate and the first appellate judge had found as a fact that the appellant had proved the existence of a custom under which he was entitled to the ownership of the land and, consequently, to the declaration of trust sought. If the custom was a matter of fact then no appeal lay to the Court of Appeal, second appeals being restricted to questions of law. Duffus JA said (at 738):

> "The parties in this case are Africans and therefore the Court will take judicial notice of such African customary laws a may be applicable but subject to the provisions of regulation 4 as set out above. The difficulty remains how are these customary laws to be established as facts before the Court? In some cases the Court will be able to take judicial notice of these customs without further proof as for instance in cases where the particular customary law has been the subject of a previous judicial decision or where the customary law is set out in a book or document of reference as provided in subsection (2) above, but usually in the High Court or in a magistrate's court, the relevant customary law will, as a matter of practice and of convenience, have to be proved by witnesses called by the party relying on that particular customary law in support of his case."

This proposition is more succinctly put by Newbold VP later in the report (at 743):

> "When it is alleged that by any particular African customary law a result follows different from that which would follow under the ordinary law of Kenya, then the existence of that African customary law has, unless it has become of such general notoriety that judicial notice may be taken of it under section 60 of the Evidence Act of 1963, [as Dr *Khaminwa* argued was the position as regards the non-inheritance of married women] to be proved by the person invoking it in precisely the same way that a person invoking customary rights has to prove the custom. In providing such African customary law opinion evidence is admissible under section 51 of the Evidence Act, 1963, and, in accordance with section 60(2) of the Act, it may also be proved by the production of a book or document. Once proved, the Courts must be guided by it in accordance with regulation 4 of the Kenya (Jurisdiction of Court pending Proceedings) Regulations of 1963."

So in that decision, by two of the most authoritative judges of this Court's predecessor, the means of proving customary law and the consequences which flow from doing so are made absolutely clear: firstly, customary law is a matter of fact, secondly if it is of wide notoriety the custom may be judicially noticed under section 60(1)(*a*) of the Evidence Act. Thirdly, if it is not judicially noticeable, the custom may be proved by the testimony of witnesses and/or by reference to a textbook of reference. Fourthly, the Courts are to be guided by African customary law where one party is subject to it, so far as it is not repugnant to justice or morality (see the former reg 4, and the present sub section 3(2) of the Judicature Act, which is in virtually identical terms).

In the instant case there was a conflict of evidence as to the alleged custom that women cannot inherit. A finding on this matter was not made by the magistrate. He concentrated on the issues of first registration and estoppel. The judge, however, did purport to reach a finding on this issue, for he said:

> "With regard to ground three there was a lot of evidence as to whether the appellant was a married woman or not. She was married and so cannot inherit her father's property as she could not be an heir according to Kikuyu custom."

The judge, with the greatest possible respect, reached the finding without considering the evidence from both sides. The appellant said:

> "These days custom is out and women can inherit their father's property."

The independent witness (in the sense that he was not a member of the family) (DW3) having stated that the respondent's father, HJ Kimani, had said that Kamuranga, his brother, was "to be entrusted to that land and he had to protect the plaintiff", and continued, "A daughter can inherit according to Embu customary law", without distinguishing between an unmarried, a married, or a divorced daughter. The district officer's letter would appear to support this. On the other, hand, there is clear evidence the other way from the respondent and from Patrick Gatimu, supported by the statement in Cotran (*supra*). The only part of this aspect of the case upon which the parties appear to be agreed is that if the appellant was divorced at the material time, there was no bar to her inheritance.

It is unfortunate that the first lower Court made no finding on this crucial issue, and that the second made one which is unsupportable due to the judge's not having considered the evidence of both parties, which is, I apprehend, an essential pre-condition to any valid finding on fact, where the fact is in issue, as it clearly was here. We cannot send the case back with directions because the original trial magistrate is now a judge, and the first appellate judge is now deceased.

I am prepared to assume in Dr *Khaminwa*'s client's favour that there is a custom in the Embu area of Kenya to the effect that a woman may not inherit land if she is still married, as this is supported by Cotran's *Restatement*. But it will not be noted that the passage I have set out above is equivocal as applied to the instant case because it says inheritance is "patrilineal". What does that term mean? Does it mean that a male person has prior rights of inheritance to land both if he is the natural son of the deceased and also if the deceased, as might appear here, stood in *loco parentis* to him after his own father had died? Or is patrilineal inheritance restricted to a natural son from his natural father, remembering that the natural issue is the person who claims to be entitled to the 15.9 acres, namely the appellant? I have searched in the *Oxford English Dictionary* and *Oxford Shorter English Dictionary* and in all the law dictionaries (that is Stroud, Butterworth's and Jowitt) and I have been unable to find a definition of this term except in the *Longman*'s and *Collins* dictionaries. The first state: "relating to, based on, or tracing descent through, the paternal line". The *Collins Dictionary* states "tracing decent, kinship or title through the male line".

I am also prepared to accept Dr *Khaminwa*'s submission that the statement by the appellant that she was divorced at the material time is against the weight of the evidence and, on the balance of probabilities, was wrong. There is the evidence of the husband, and the letter from the district officer on the issue, as against the imprecise evidence of the appellant, and that of the husband's father, who seems to have been referring to a different divorce, namely that which was going to take place as consequence of his failure to pay the dowry. I do not regard this as satisfactory evidence that the appellant was subsequently divorced from Patrick.

In my judgment, patrilineal devolution should be confined to natural, or, at the outside, adopted sons. Any other construction would enable a non-natural son, though a relative, to step in and supplant a person rightfully entitled to the land. I would therefore hold on this issue that the respondent did not, under customary law, have a right to inheritance prior to that of the appellant. True, the deceased, Kamuranga, could have left the land to the respondent, but did he do so? The independent witness having said in relation to "that land" that the original deceased, Kimani, had said that the respondent was to be protected, then went on to say that he was close to Kamuranga when he died, and that he had said the 15.9 acres should be given to this daughter Wambugi, meaning the appellant.

Even, however, assuming that the custom did cover non-natural sons, to the exclusion of a natural daughter, is such a custom repugnant to justice and morality, as we are enjoined to consider under section 3(2)? I do not detect any repugnance to morality in the present situation, but I am troubled regarding the other matter mentioned in the section, namely justice. Can it be regarded as consistent with justice that a female, whether married or not, should not inherit her father's property whereas a male can?

In the recent decision in *Kivuitu v Kivuitu* [1991] 2 KAR 241 this Court clearly held that a wife was entitled to one-half of the matrimonial home (notwithstanding that her strictly financial contribution may not have matched that of the husband) and not merely one-quarter, as the judge had found. In that case Gachuhi JA said (at 242):

> "The time when an African woman was presumed to own nothing and all what she owned belonged to her husband and was regarded as a chattel of her husband has long gone. Women are now honourably employed in highly salaried posts and occupy high positions equal to men both in the government and in the private sector. They

> own businesses and properties individually or in partnership and have shares in companies. There is no position that a man can hold which cannot be held by a woman. The situation has changed and so have customs."

True, that was a matrimonial case and a dispute between spouses under section 17 of the Married Womens Property Act, but the changed status of women generally was recognised by Masime JA, who said (at 243–244):

> "Most of the Kenya African communities are patrilineal and the matrimonial home is usually settled by the husband. Consequently, upon divorce it is usual for the wife to leave that home and in the process the wife will usually take away only her self-acquired personal property; any property which belongs to the matrimonial home and landed property invariably remain with the husband (see *Cotran Restatement of African Law*: Marriage and Divorce [1968]. Today, however, as a result of increased opportunity for education, employment and entrepreneurship, the money sector is no longer the man's domain. And even where only the husband is in the income earning sector the wife is not relegated to total dependence on him without an ability to make some reasonable contribution towards the economic management of their household and the upbringing of their family. It is no longer right to assume, as was done under customary law, that the wife was totally dependent on the husband and not capable of contributing at all or substantially to the development of the household and increase in the family wealth."

In my view the judges who were making those pronouncements, albeits in a divorce suit, recognised the changed status of women generally and, basing myself on those observations, which I regard as of general application, and on my own view of the section, I would hold that a custom which is discriminatory in its effect, so as to bar women from inheritance, is repugnant to ordinary notions of justice and that this Court should not be guided by it. It may be that this would have inconvenient results, in as much as the wife will still have certain rights against her husband, who is bound to provide for her, but it is my view that women are entitled to be treated as equals in matrimonial as in succession matters. If there is a divorce between husband and wife the wife would naturally have to bring into account any property she had so inherited (and under the Matrimonial Causes Act 1973, in England, had the prospect of receiving) as between the parties in the financial proceedings. While I am conscious that the following quotation was in relation to the construction of a statute, I nevertheless think it is illustrative of the general approach the Courts adopt in their decisions; namely that they reach a conclusion according to the law as applied to the facts, even though this may, on occasion, produce inconvenient results. In *King Emperor v Benoari Lal Sarma* [1945] 1 All ER 210 at 219 Viscount Simon LC said:

> "Again and again, this board has insisted that in construing enacted words we are not concerned with the policy involved or with the results, injurious or otherwise, which may follow from giving effect to the language used."

I recognise that the provisions of section 143 of the Registered Land Act, as explained by Bennett J in *Obiero v Opiyo* rendered a first registration of land indefeasible. However, the same judge, in a land case from the Nyeri district some years later, namely *Kariuki Thuku v Andreano Gure Gachima* [1968] High Court civil case (Nyeri) 35, held section 143 did not preclude the Court from determining whether or not the claimant had an equitable interest in the suit land. In that case, although he was not satisfied that the plaintiff had contributed anything towards the purchase price, the judge nevertheless held that as each of the two brothers had inherited and held the land from their father, he would

grant a declaration that the defendant held half of it as a trustee for the plaintiff. In the instant case I would likewise hold that the evidence establishes that the respondent holds the 15.9 acres on trust for the appellant. I would therefore allow the appeal to that extent, and substitute, for the orders of both the lower Courts, an order that there be a declaration that the respondent holds 15.9 acres of the land at Ngandori/Kirigi 1476 in trust for her, and the appellant is not a trespasser as regards that portion of the land. I would in consequence set aside the order or eviction against her.

As regards costs, to some extent the appellant has brought this protracted litigation in the High Court and this Court on herself. Had she, or her advocate, made it clear at the outset that she was only claiming 15.9 acres, it is not inconceivable that a settlement would have been reached. For this reason I would not disturb the orders of costs made in the High Court and the Resident Magistrate's Court. Neither would I make any order for costs in this appeal, including all the ancillary applications that have occurred before this Court.

As however, Masime and Kwach JJA disagree with the foregoing, there will be an order dismissing the appeal in the terms proposed by Kwach JA.

For the appellant:
Mr HK Mahan

For the respondent:
Dr JM Khaminwa

Interfreight Forwarders (U) Ltd v East AfricanDevelopment Bank
[1990–1994] 1 EA 117 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	2 July 1993
Case Number:	33/93
Before:	Wambuzi CJ, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Powers of appellate Court to review the evidence of trial Court.

[2] Common carrier – Common-law duties of a common carrier – Effect of Act of God on duties of common carrier.

[3] Damages – Currency to be used for award of damages – Factors to consider in the award of damages.

[4] Decree – Failure to specify rate of interest in decree.

[5] Negligence – Defence of inevitable accident – Burden of proving the defence on defendant.

[6] Pleadings – All issues to be inserted in pleadings – Effect and function of pleadings.

Editor's Summary

The appellant agreed to clear the respondent's motor vehicle from Mombasa and deliver it at Kampala. However, the vehicle carrier got involved in an accident on the way and the respondent subsequently sued for negligence. The appellant however argued that the vehicle was carried at the owner's risk and that the respondent had a duty to insure the vehicle.

Held – An appellate Court has jurisdiction to review evidence to determine whether the conclusions of the trial Judge should stand. This jurisdiction however must be exercised with caution. If there is no evidence to support a particular conclusion, or if it is shown that the trial Judge has failed to appreciate the weight or bearing of circumstances admitted or proved, or has plainly gone wrong, the appellate Court will not hesitate to so decide. (*Plotti v Acacia Company Ltd* [1959] EA 248 and *Peters v Sunday Post Ltd* [1958] EA 428 applied).

Inevitable accident can be a defence to a charge of negligence, but it cannot succeed unless the defendant can prove that something happened over which he had no control and the effect of which could not have been avoided by the exercise of care and skill; indeed the defence cannot be relied upon where the risk is reasonably foreseeable.

The burden of proving the defence of inevitable accident rests on the defendant. To succeed, the defendant must show one of two things, namely either what was the cause of the accident and show that the result of that cause was inevitable, or he must show all the possible causes, one or the other of which produced the effect, and must further show with regard to everyone of these possible causes that the result could not have been avoided. In this case the defendant gave a plausible explanation of the causes and effect of the accident.

A common carrier has a common- law liability arising from the nature of his business and is said to warrant or insure the safe delivery of the goods entrusted to him. But his promise is defeasible upon the occurrence of certain expected risks for example “Act of God” and the King’s enemies, and injuries arising from defects inherent in the goods carried. This qualification is implied in every contract made with a common carrier, and the occurrence of the risks exonerates the common carrier from liability. It was not the respondent’s case neither was any evidence adduced to show that the appellant acted as a common carrier when it undertook to clear and forward the vehicle to the respondent.

The system of pleadings is necessary in litigation. It operates to define and deliver it with clarity and precision the real matters in controversy between the parties upon which they can prepare and present their respective cases and upon which the Court will be called upon to adjudicate between them. It thus serves the double purpose of informing each party what is the case of the opposite party which will govern the interlocutory proceedings before the trial and which the Court will have to determine at the trial.

Thus, issues are formed on the case of the parties so disclosed in the pleadings and evidence is directed at the trial to the proof of the case so stated and covered by the issues framed therein. A party is expected and is bound to prove the case as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case not so set up by him and be allowed at the trial to change or set up a case not stated except by an amendment of the pleadings.

Since the respondent did not plead that the appellant was a common carrier, it cannot be permitted to depart from what clearly appears to have been his case as stated in the Plaint and claim that there was evidence proving that the defendant was a common carrier.

Where it is not apparent from the terms of the contract that damages for breach were to be awarded in a currency specified for the satisfaction of the obligations under the contract then damages were to be awarded in the currency which most truly expressed the plaintiff’s loss.

In ascertaining that currency, the questions to be asked were what the currency was which would as nearly as possible compensate the plaintiff in accordance with the principle of *restitution integrum*, and whether the parties were taken to have had that currency in contemplation.

The judge was justified in awarding the damages in a foreign currency which would be realised in local currency for purposes of enforcement of the judgment. *Mannrs v Pearson* [1898] 1 Ch 581; *Jugos Lavenska Providba v Castle Investment Co Inc* [1973] 3 All ER 4988; *Miliangos v George Frank (Textiles) Ltd* [1975] 3 All ER 801; *Continental Agencies v AC Berril and Co Ltd* [1971] EA 205; *The Despinar* [1971] 1 All ER 421 applied.

The general principle of law is that in cases of destruction of goods, the normal measure of damages is taken to be the market value of the goods destroyed at the time and place of destruction. *Liesbosch Dredger v SS Edison* [1933] AC 440; and *Moore v DER Ltd* [1971] 1 WLR 1476 applied.

Where a decree is for the payment of money, the Court may order interest at such rate as the Court deems reasonable to be paid on the principal sum adjudged to be paid. Where such a decree is silent. with respect to payment of further interest on the aggregate sum then the Court shall be deemed to have ordered interest at 6% per annum.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Continental Agencies v AC Berril and Company Limited [1971] EA 205 – **AP**

Peters v Sunday Post Limited [1958] EA 428 – **AP**

Plotti v Acacia Company Limited [1959] EA 248 – **AP**

United Kingdom

Jugos Lavenska Providba v Castle Investment Company Industries [1973] 3 All ER 498 – **AP**

Liesbosch Dredger v SS Edison [1933] AC 440 – **AP**

Manners v Pearson [1898] 1 Ch 581 – **AP**

Miliangos v George Frank (Textiles) Limited [1975] 3 All ER 801 – **AP**

Moore v DER Limited [1971] l WLR 1476 – **AP**

Sagarmull v Galstaun [1930] AIRPC 205

The Despinar [1971] 1 All ER 421 – **AP**

Judgment

Oder JSC: This is an appeal from the judgment of the High Court of Uganda allowing a claim by the respondent against the appellant for the price of a new motor car that had been damaged beyond repair in a road accident while being transported from Mombasa to Kampala. The claim was founded on an alleged

breach of contract and on negligence on the part of the appellant. For convenience, I shall hereinafter refer to the appellant and the respondent by their designations in the suit as the defendant and plaintiff respectively.

As stated in the plaint the claim was that the defendant had agreed for reward to clear the plaintiff's Volvo motor car from Mombasa and deliver it at Kampala. The car was brand new and it had just been purchased at £9 465. An implied term of the agreement allegedly was that:

"(*a*) the defendant would take due and proper care of the motor vehicle and;

(*b*) the defendant would take necessary precautions for its safe keeping and transportation. It was also averred that the defendant had received the car for the purpose and on the terms aforesaid, but had negligently and in breach of the contract failed to take proper care of the car. Particulars of the alleged breach of contract and negligence were that the defendant:

(i) loaded the car on a carrier without being safely secured by chains or wire ropes;

(ii) the carrier was driven without proper or sufficient look out;

(iii) the carrier was being driven at excessive speed;

(iv) the carrier was driven by one driver for long distance which made him to get tired and lose control;

(v) losing control of the carrier; and

(vi) failure to apply brakes to the carrier so as to avoid the accident that occurred".

The plaintiff then prayed for £9 465 or the equivalent; or replacement value of the car in pounds sterling or equivalent in Uganda currency as may be determined at the date of judgment; and costs.

In its written statement of defence the defendant denied the alleged contract and negligence, and averred that in the purposed contract it was agreed that the goods were to be carried at the owner's risk. It was also contended that the sisal ropes used to secure the vehicle on the carrier were the normal means used by modern transporters and that in the circumstanced the accident did not suggest negligence on the part of the defendant's driver. Further, it was not the defendant's duty to insure goods received for its clients. The burden lay on the plaintiff to provide insurance for the goods in question.

At the trial of the suit, four issues were agreed, namely:

"1. In the course of carrying the vehicle was the defendant guilty of negligence?

2. If the defendant was negligent did the plaintiff suffer any damage and if so how much?

3. If the defendant is liable is its liability excluded by the terms of the contract of carriage?

4. If the defendant is liable. What damages and other relief is the plaintiff entitled to"?

The learned Principal Judge who tried the suit found for the plaintiff and held that the accident in which the motor vehicle, the subject matter of the suit, was damaged had been negligently caused by the defendant's driver for whose negligence it was vigariously liable: alternatively, he hold that if there was no negligence then the defendant was liable as a common carrier. On the issue of exclusion of liability by terms of the contract, the judgment now appealed was silent but its effect appears to mean that the answer was negative on the ground that as the defendant was a common carrier it owed strict liability to the plaintiff for non-delivery of the motor car, on damages suffered the plaintiff the learned principal judge found it to have been a total loss of the car, and awarded £10 275, with interest at the rate of 36% and costs. Hence this appeal.

Five grounds of appeal were set out in the memorandum as follows:

> "1. Since the cause of action as stated in the plaint and as reflected in the issues which were framed by the parties was negligence the learned trial Judge erred in law when in the alternative he based his judgment on a different cause of action of a common carrier which puts strict liability on the carrier any damage or loss to the goods he accepts to carry.
>
> 2. The evidence on the record does not support the conclusion reached by the trial Judge that the accident was not inevitable but was due to the negligence of the appellant's driver.
>
> 3. The trial Court followed wrong principles in assessing damages and expressing the award in foreign currency.
>
> 4. The interest awarded was excessive, arbitrary and unjustified.
>
> 5. The decree does not tally with the judgment and was irregularly prepared and signed without the approval of counsel for the appellants".

Mr *Sendege* the learned counsel for the defendant on the appeal took ground two first, and contended that evidence from James Mbugua (DW2) the appellant's driver, the only eye-witness to the accident, indicated that the accident was inevitable. The evidence was not rebutted and yet the learned principal judge found it to have established negligence by the driver. In the circumstances, the learned counsel urged for a re-evaluation of that evidence by this Court as, according to counsel, there was no evidence to support a finding of negligence. In support of this contention, counsel relied on the cases of *Plotti v Acacia Company Limited* [1959] EA 248 and *Peters v Sunday Post Limited* [1958] EA 428. These cases are authorities for the principle that an appellate Court has jurisdiction to review evidence to determine whether the conclusions of the trial Judge should stand. This jurisdiction, however, must be exercised with caution. If there is no evidence to support a particular conclusion, or if it is shown that the trial Judge has failed to appreciate the weight or bearing of circumstanced admitted or proved, or has plainly gone wrong, the appellate court will not hesitate so to decide.

The relevant part of the evidence of DW2 which explained how the accident occurred reads as follows:

> "… It was around 9:30am when I had the accident. The accident happened 50 Kilometers before Nairobi. It was roughly 110 Kilometers from Mtito Andei to where the accident happened. Where I had an accident on a small hill. I was on top of the hill. I saw a bus coming from the opposite direction. It was at a very high speed. It came head on toward me. I was left with no space on the road. On realising the bus was reaching for me I swerved to the left. I went off the road. So my vehicle left the road completely. It was driven off the road for about ten paces (*that is* about 20 feet). The trailer itself did not move from the road. When I saw the bus, I applied the brakes. In that process it was the impact of the brakes I applied suddenly which the vehicle to go off. I was carrying seven vehicles. Only three vehicles went off the road. For all this long carrier, I have met a similar accident. The accident was caused by the rough and old road. This together with the speed of the coming bus and my sudden braking. I had left the turnboy in Mombasa . . . The accident happened so suddenly that I could not see the bus number. It did not stop."

In cross-examination DW2 said:

> ". . . Yes the accident occurred on top of the hill. The bus was climbing the hill when I saw it. The first time I saw it was not very far from me. It was about 30 yards away. It was a big bus carrying men (*sic*) passengers. It appeared to heading for me. I tried to apply lights but it was heading for me. If I had not stepped on the brakes I

> would have died. It is not possible to drive the trailer on the high speed because the road was very bad. It is not true that I suddenly applied the brakes. The bus was an Isuzu. It climbs down and up hill at the same speed. The car carrier is about 50 feet long and 8½ feet. It is slightly heavy even if it was carrying seven cars … When the front of my vehicle went off the road the Volvo was thrown off for a short distance. The measurement of 5 meters was taken from the middle of the trailer. When I flashed the lights the bus continued to come for me. It swerved when it was only about 10 feet."

On the basis of this evidence the learned Principal Judge's finding of negligence was expressed in his judgment as follows:

> "Unfortunately no accident report by the police was produced. It is unfortunate if we have to rely solely on the evidence given by James K Mbugua who was alone and who obviously cannot give evidence as to incriminate himself. However, from the testimony he gave, I am convinced that if he made the accident, as he says because an Isuzu passenger bus was coming towards him he was not quite alert. He panicked too much. My reason for saying this, is, that he claims he saw the bus in a 300 feet distance. He gave flashing lights to warn the bus driver. He thought it was heading for him. He swerved to his left side of the road and ended up off the road. But he says that the vehicle alone went off the road while the vehicle carriage trailer remained on the road. The three motor cars which were thrown off the carriage, including the plaintiff's Volvo, were thrown off by the bus but due to the impact which was occasioned by the sudden braking. To me this means that when the driver suddenly saw the bus, he must have panicked after being taken off guard. Perhaps because he was driving with no one to talk to and he was too much concentrating. If the bus was speeding towards him, it would, I think, have hit the trailer which never swerved off the road. Had the driver been on guard, he would not have panicked so as to leave the road and brake suddenly. I find that the driver was in default. Panicking for no cause and thereby swerving and braking suddenly so as to cause the motor vehicles to throw off their carrier."[*sic*]

In the absence of evidence other than what came from DW2, I think that the accident must be taken to have happened as he described it. A bus was coming from the opposite direction at a very high speed. DW2 first saw it from the top of a hill. The bus was heading towards him, causing him to swerve to the left and brake in order to avoid collision with the bus. Application of the brakes caused three motor cars on the carrier to be thrown off. The road was also rough. In short, in DW2's own words, "the accident was caused by the rough and old road together with the speed of oncoming bus and by sudden braking".

No police accident report was produced in evidence. Consequently, no evidence was available to indicate how wide or narrow the road was. From the evidence describing what happened, I think that it is reasonable to infer that with a bus heading towards him, DW2 did not have much room to avoid a collision with the bus without braking and swerving off the road. It is also difficult to reject DW2's evidence that the road was rough and that he first saw the bus from the top of a hill when it was only 30 yards away. A police accident report might also have included skid marks (if any) of DW2's vehicle. Such skid marks would have been relevant in showing where DW2 first reacted by braking when he sighted the bus in relation to the crest of the hill.

Thus, considering the evidence as a whole, I would find it difficult to reject DW2's evidence as inconsistent with the manner in which the accident happened. In my view his evidence appears to be a plausible explanation of what occurred. The explanation, with respect, does not seem to suggest that when the driver suddenly saw the bus he panicked because he was taken off guard

and concentrating too much on driving and that due to the panic, he left the road and braked suddenly causing the motor cars on the carrier to be thrown off. On the contrary, I think that if the bus suddenly appeared on the scene and in the manner described by him, DW2's reaction by swerving and braking was a reasonable one.

The defendant contended in the suit and on appeal that the accident was inevitable and not caused by negligence. Inevitable accident can be a defence to a charge of negligence, but it cannot succeed unless the defendant can prove that something happened, over which he had no control and the effect of which could not have been avoided by the exercise of care and skill; indeed the defence cannot be relied upon where the risk is reasonably foreseeable. The burden of proof lies on the defendant setting it up. To succeed, the defendant must show one of two things, namely either what was the cause of the accident and show that the result of that cause was inevitable, or he must show all the possible causes, one or other of which produced the effect, and must further show with regard to everyone of those possible causes that the result could not have been avoided. See *Charles Worth and Percy on Negligence* (7ed) at 196.

In the instant case, the defendant, in my view gave a plausible explanation of the causes and effect of the accident. I would accept that explanation as given in DW2's evidence. In the circumstances I would think that the accident was not negligently caused by DW2. It was most probably an inevitable accident. I would think, therefore, that ground two of the appeal should succeed.

In an alternative finding the leaned trial Principal Judge said that if the defendant did not negligently cause the accident then it was strictly liable as a common carrier. This is the subject matter of ground one of the appeal which, I think, should also succeed. In this connection the learned Principal Judge referred, properly so in my view, to the definition of "a common carrier" as stated in *Funk and Wagnall's Standard Dictionary*, International Edition, where "a common carrier" as stated in the well-known *Anson's Law of Contract* (7ed).

Briefly, the law is that a common carrier has a common-law liability imposed on him arising from the nature of his business, and is said to warrant or insure the safe delivery of the goods entrusted to him. By this is meant that a common carrier promises to bring the goods safely to their destination, or to indemnify the owner for their loss or injury (*that is* damage), whether happening through his default or not. But his promise is defeasable upon the occurrance of certain excepted risks for example "act of God" and the King's enemies, and injuries arising from defects inherent in the goods carried. This qualification is implied in every contract made with a common carrier, and the occurrance of the risks exonerates the common carrier from liability.

After stating the law, the learned Principal Judge proceeded to find the defendants' liability in the following words:

> "From the foregoing authorities, more especially the definition of a common carrier, there is no way the defendant has escape liability under the definition of a common carrier. In conclusion therefore, even if the defendant's driver was not guilty of negligence in meeting the accident so that the defendant is vicariously liable, the defendant as a common carrier is liable to the plaintiff to the loss. The defendant is not covered by the exceptions that exonerate common carriers from liability."[*sic*]

With respect, I am unable to go along with the learned Principal Judge in this regard. Firstly, because it does not appear to have been the plaintiff's case as

stated in the plaint that the defendant was a "common carrier". Paragraphs 3 and 4 of the plaint which have a bearing on the issue did not indicate that the contract was made with the defendant as "a common carrier". By all indications from the plaint and a letter dated 19 July 1988 (exhibit D2) the contract appears to have been an ordinary one. Exhibit D2 is a letter which the plaintiff wrote to the defendant authorising the latter to clear from Mombasa and forward to Kampala a Volvo car which the former was expecting to arrive at Mombasa at the end of that month. No other documentary evidence of the terms of the contract was produced.

Secondly, no evidence was adduced indicating that the defendant acted as "a common carrier" when it undertook to clear and forward the motor car in question for the plaintiff. Mr *Kateera*, learned counsel for the plaintiff in the suit and on appeal submitted before this Court that the plaintiff in the suit and on appeal submitted before this Court that the evidence of the defendant's operations assistant, Partick Idro (DW1) was sufficient to show that the defendant was a common carrier. The learned counsel also contended that in so far as that evidence proved that the defendant was a common carrier it was not necessary to plead that issue, since it was a matter of evidence the facts of which were only within the knowledge of the defendant, on whom the burden of proving them lay. Section 105 of the Evidence Act (Chapter 43) on which the learned counsel partly relied for this contention reads:

> "105 In civil proceedings when any fact is especially within the knowledge of any person the burden of proving that fact is upon him."

The evidence of DW1 to which the learned counsel referred as showing that the defendant was a common carrier does not seem to support that contention. DW1 was apparently cross-examined about a document known as "delivery note" dated 19 August 1988 and issued apparently by Messrs Interfreight (Kenya) Limited concerning the Volvo car in question. The document was produced as exhibit Dl. In cross-examination DW1 said that the form described as common carrier the defendant's sister company in Mombasa, which carried the goods as its agent. Far from proving that the defendant or its Mombasa Agent were common carriers the form, in fact, reads on the reverse side as follows:

> "(1) The Company assumes no liability or obligation as a common carrier and is not to be held responsible for any loss, delay or damage to the goods to be forwarded…"

In the circumstances, I think that the defendant was not proved to be a common carrier by DW1's answers in cross-examination regarding exhibit Dl.

The plaintiff's contention that it was not necessary to plead in the plaint that the defendant was a common carrier, I think has no merit. Nor do I think that section 105 of the Evidence Act is relevant to this case for the reasons I will now proceed to discuss.

Order 6, rule 1 of the Civil Procedure Rules provides that:

> "Every pleading shall contain, and contain only, a statement on a precise form of the material facts on which the party pleading relies for claim or defence as the case may be, but not evidence by which they are to be proved…"

Rule 2 provides that in all cases in which particulars are necessary such particulars shall be given.

The system of pleadings is necessary in litigation. It operates to define and deliver it with clarity and precision the real matters in controversy between the parties upon which they can prepare and present their respective cases and upon which the Court will be called upon to adjudicate between them. It thus serves the double purposes of informing each party what is the case of the opposite party which will govern the interlocutory proceedings before the trial and which the Court will have to determine at the trial. See *Bullen and Leacke and Jaccob's Precendent* (12ed) at 3. Thus, issues are formed on the case of the parties so disclosed in the pleadings and evidence is directed at the trial to the proof of the case so set and covered by the issues framed therein. A party is expected and is bound to prove the case as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case not so set up by him and be allowed at the trial to change his case or set up a case inconsistent with which the alleged in the pleadings except by way of amendment of the pleadings.

For the above reasons, if the plaintiff did not plead that the defendant was a common carrier, I think that he cannot be permitted to depart from what clearly appears to have been his case as stated in the plaint and claim that there was evidence proving that the defendant was a common carrier. As already found above no evidence, in fact, supported that, contention.

Another reason for departure from the findings of the learned principal judge is that the issue whether the defendant was a common carrier was not included in the issues framed by agreement at the trial of the suit. Earlier on in his judgment the learned Principal Judge at 39 of the record of proceedings stated what he called "the plaintiff's contentions" to be two. One of them was that the defendant as a common carrier was liable to identify the defendant whether there had been negligence or not. But the four issues which were then immediately stated as having been agreed and framed did not include that contention.

The success of the first two grounds would be sufficient to dispose of the appeal, but I will nonetheless consider the other grounds for they were argued by both parties.

Ground three of the appeal as I understand it consists of two parts. The first part complaints about the principles followed in awarding the damages and the second concerns the award of damages in a foreign currency. Taking the latter point first, Mr *Sendege*, learned counsel for the defendant, submitted on appeal that since the decision in cases such as *Jugos Lavenska Providba v Castle Investment Company Industries* [1973] 3 All ER 498 (CA) and especially, *Miliangos v George Frank (Textiles) Limited* [1975] 3 All ER 801 house of a party to a contract can sue in foreign currency for money due under the contract. But in the instant case since the plaintiff did not conduct his business in foreign currency for purposes of the contract in question, and the contract was not made, nor contemplated compensation, in foreign currency, there was no justification for departure from the general principle that transactions should be made in local currency. The general principle alluded to by the learned counsel was stated in cases as *Manners v Pearson* [1898] 1 Ch 581, and *Continental Agencies v AC Berril and Company Limited* [1971] EA 205. But since the *Miliangos* (*supra*) and similar cases, for example "*The Despinar*" [1971] 1 All ER 421 the prevailing view is that awards or judgments expressed in foreign currency are valid. In the *Miliango*'s case (*supra*) it was held that where a plaintiff brought an action for a sum

of money due under a contract he was entitled to claim and obtain judgment for the amount of the debt expressed in the currency of a foreign country if the proper law of the contract was the law of that country and the money of account and payment was that of the same country. If it was necessary to enforce the judgment, that was to be converted into sterling at the date when leave was given to enforce the judgment. *The Despina R* (*supra*) appears to have widened the application of the principle in the *Miliango*'s (*supra*). For in the former it was held that even where the proper law of a contract and the contract specified a particular currency as the currency of account and payment in respect of all transactions arising under the contract, then any damages awarded under the contract, then any damages awarded under the contract were to be awarded in the currency of the contract since that was the currency with which the contract had the close connection. However, where it was not apparent from the terms of the contract that damages for breach were to be awarded in a currency specified for the satisfaction of thy obligations under the contract then damages were to be awarded in the currency which most truly expressed the plaintiff's loss. In ascertaining that currency the questions to be asked were what the currency was which would as nearly as possible compensate the plaintiff in accordance with the principal of *restitutio integrum*, and whether the parties were to be taken to have had that currency in contemplation.

In the instant case, the contract did not specify a particular currency in which payment would be made in the event of damages. However, the defendant knew that the plaintiff's car had been imported from overseas. The possibility that the plaintiff would wish to be compensated in a currency that would enable the plaintiff to import a similar car from overseas in the event of loss was one which, I think, should have been foreseeable by the defendant. Consequently, applying the principles in *Miliangos* (*supra*) and *The Despina R* (*supra*), which I find persuasive, I think that the plaintiff and the learned principal judge were justified in claiming its loss and awarding the damages respectively in a foreign currency which would be realised in local currency for purposes of enforcement of the judgment.

With regard to the principles followed in assessment of the damages, Mr *Sendege* submitted that the learned principal judge had departed from the principle that the measure of damages is based on the loss suffered at the time of destruction of goods or breach of contract.

The plaintiff's case not having been founded on detinue, the award of replacement value of the damaged Volvo car was not justified. The case having been based on breach of contract and tort the plaintiff was entitled to the value at the time of the loss.

The evidence on the basis of which the sum of $1 027 was awarded instead of £9 465, which had been claimed in the plaint, was that subsequent to the accident the plaintiff ordered another Volvo car similar to the one that had been damaged in the accident at a cost of £10 275, but as at the date of the trial of the suit the cost of a similar car had gone up to £12 000. Mr *Kateera* counsel for the defendant at the trial prayed for an award of £10 275 in his closing address. In the circumstances, the learned Principal Judge's reason for making the award he did was expressed (at 42) as follows:

> "Although the sum pleaded in the plaint is £9 465.00 I notice that in prayer (*b*) of the plaint the alternative prayer is the replacement value of the car in sterling equivalent

> in Uganda currency as may be determined at the date of judgment. These days floating currency, it is difficult to predict how much Uganda Shillings will fetch in terms of pounds sterling. Mr David Mulira says that by now the vehicle should fetch £12 000 I am afraid I cannot find the price of £12 000. If the plaintiff wished to be awarded this sum they should have obtained a proforma invoice from the local dealers which would have been an assailable evidence. In the circumstances, I am prepared to award the plaintiff a sum of £10 275".

As I understand this part of the judgment the learned principal judge awarded the sum of £10 275 because that was the new cost of a similar Volvo car to replace the damaged one, which had been pleaded in the alternative prayer.

There was evidence proving that increased cost. I would have been prepared to award £12 000 if the learned Judge thought that was an issue under prayer (*b*). In the circumstances, I think that the learned principal judge was justified in awarding the sum he did. Indeed, the general principal of the law is that in cases of destruction of goods, the normal measure of damages is taken to be the market value of the goods destroyed at the time and place of destruction. For instance in ship collision cases, it has always been said that the owners of the lost ship are entitled to *restitutio in integrum*. The basis of putting the plaintiff into the position he would have been had the collision not occurred, which is what is required to effect a *restitutio in integrum*, is the award of the market value of the lost ship. See *Liesbosch Dredger v SS Edison* [1933] AC 440. But from the relevant authorities it appears to be possible to also recover consequential expenses made necessary by the tort or breach of contract. For instance in the case of *Moore v DER Limited* [1971] l WLR 1476, where the plaintiff's Rover car was used by him in his practice as a dentist was rendered a total loss in an accident caused by the defendant's negligence, the Court of Appeal held that the plaintiff was entitled to recover the cost of hiring another Rover car for the eighteen weeks it took to obtain a new Rover car. An argument that the claim for the cost of a substitute car should be substantially cut down because the plaintiff could have bought a second hand Rover car within two weeks of the accused was rejected by the Court of Appeal. See *Macgregor on Damages* (14ed) at 706. In the instant case I think that the plaintiff was entitled to recover the cost of a substitute Volvo car as awarded by the learned Principal Judge by way of consequential damages.

In the circumstances I would think that ground four of the appeal. The plaintiff did not pray for interest in it's plaint, but in his address to the Court at the trial Mr *Kateera*, learned counsel for the plaintiff prayed for award of £10 275 which was not sufficient to fetch a Volvo car due to fluctuations in the value of the Uganda shillings then the interest of 36% would top it up. On appeal it was contended for the defendant that the award of interest at 36% was arbitrary, especially as the plaintiff did not pray for interest in the plaint and that since the award of damages was in foreign currency, no interest should have been given.

Section 26(2) and (3) of the Civil Procedure Act (Chapter 65) provides that where a decree is for the payment of money, the Court may order interest at such rate as the Court deems reasonable to be paid on the principal sum adjudged to be paid. Where such a decree is silent with respect to payment of further interest on the aggregate sum provided for under subsection (2) then the cost shall be deemed to have ordered interest at 6% per annum. Section 26, therefore, leaves the rate of interest to be paid on a decretal sum at the discretion

of Court. Such discretion must, of course, be exercised judicially. In the instant case, Mr *Kateera* conceded, rightly so in my opinion, that the rate of interest was arrived at arbitrarily. He said that the rate of interest, applicable was about 40% at the time of the judgment. Consequently 36% was not excessive.

I think that some interest was awardable on the sum adjudged. But while I think that the reasons given by the learned Principal Judge was an arbitrary one, the rate of 36% does not appear excessive in the circumstances. I would, therefore, have declined to reduce the rate of interest in question.

Finally ground five, Mr *Sendege* submitted that the decree giving 42% as it did, was wrong because it was in conflict with the judgment, contrary to rule 6 of Order 18 of the Civil Procedure Rules. Moreover, the decree had been prepared by the plaintiff without the consent or the defendant. The decree as appearing on the record obviously contravenes rule 6 of Order 18 of the Civil Procedure Rules, which states that the decree shall agree with the judgment, contrary to rule 6 of Order 18 of the Civil Procedure Rules. Moreover, the decree had been prepared by the plaintiff without the consent of the defendant. The decree as appearing on the record obviously contravenes rule 6 of Order 18 of the Civil Procedure Rules, which states that the decree shall agree with the judgment. Mr *Kateera* conceded this point and said that he did not support the interest rate of 42% provided for in the decree. He also conceded that the decree was drawn without the consent of the defendant.

It is apparent, therefore, that the decree was not prepared in accordance with the provisions of rule 7 of Order 18. It was apparently sealed and signed by the registrar before it was approved by both the parties to the suit. It was also not settled by the learned Principal Judge who tried the suit. It was also not settled by the learned principal judge who tried the suit. But since the defendant's complaint in this regard relates to what the registrar did, I think that it should not have been made the subject of an appeal to this Court; for rule 8 of Order 46 of the Civil Procedure Rules provides that any person aggrieved by an order of a registrar may appeal therefrom to the High Court. Moreover, as Mr *Kateera* pointed out, the notice of appeal stated that the defendant intended to appeal against the decision of the learned principal judge. In the circumstances, I would think that this ground of appeal should fail.

In the result I would allow this appeal in view of the success of grounds one and two of the appeal. Consequently I would order that the judgment of the High Court be set aside and the plaint of the respondent be dismissed. I would also allow the appellant the cost of the suit and of the appeal since it has been successful in the main grounds.

Wambuzi CJ: I have had the advantage of reading in draft the judgment prepared by Oder JSC and I agree that this appeal should be allowed.

As regards ground one of the appeal the respondent by its plaint alleged an agreement to clear and transport its Volvo car from Mombasa to Kampala. The respondent further alleged that the appellant "negligently and in breach of the said contract and the said terms thereof …" damaged the car beyond repair. Particulars of the negligence were given. The cause of action was negligence which was denied by the appellant in its written statement of defence alleging that the vehicle was transported at the owner's risk. There was no claim based on liability of a common carrier in the plaint and consequently there is no defence to that claim. The issue as framed were solely to ascertain whether or not there was negligence and again the question of liability of a common carrier was not in issue.

Apparently the issued of liability of a common carrier was first raised by counsel for the respondent during his submission at the close of the case in the lower Court to the effect that if the appellant was not liable in negligence it was liable as a common carrier apparently having agreed to transport the respondent's vehicle. Mr *Sendege* who appeared for the appellant pointed out that the matter had not been pleaded but even then there was no amendment to the plaint to allege liability of the appellant as a common carrier.

The learned trial Judge found in effect that the appellant was a common carrier and was accordingly guilty of strict liability for the loss under common law.

I have not been able to find any authority directly in point but the nearest I could find is *Plotti v The Acacia Company Limited* [1959] EA 248. I would like to refer to a passage in the judgment of Forbes, the learned Vice President at 250 where he refers to a somewhat similar issue in that case in the following terms:

> "For the appellant it is contended that the particulars of the contributory negligence found against him by the learned trial Judge were wholly different from those alleged against the appellant in the written statement of defence, and that the contributory negligence found was at no time alleged against the appellant, who consequently had no opportunity of denying the same…
>
> As regards the appellant's first contention it is certainly true that the particulars of contributory negligence found by the learned trial Judge were not pleaded in the written statement of defence. The written statement was framed on the basis that the appellant was fully aware of the chain on the lift gates and that he had never closed the gates of the lift or set the lift in motion: and it was pleaded in paragraph 7:
>
> '(*c*) that the plaintiff injured himself through his own negligence…
>
> (*d*) that the injuries were caused by the plaintiff's own violent, efforts negligently executed in reckless and insistent attempts to close the gates of the lift.'
>
> This theory of the accident was, very properly on the evidence, rejected by the learned trial Judge.
>
> Notwithstanding the pleadings, the fifth issue framed at the trial, with the agreement of the counsel, was: 'was there contributory negligence'?
>
> Counsel for the appellant, however, contends that this issue, though framed in general terms, must be construed with reference to the particulars of negligence pleaded, and is limited to those particulars; that the trial in fact proceeded on that basis, and that he never dealt with, or appreciated that he had to meet, a case of contributory negligence founded on an entirely different set of particulars.
>
> There is, I think, force in the appellant's contention. It is true that in *Sagarmull v Galstaun* [1930] AIRPC 205, a case in which the variation of an agreement was not pleaded, but was nevertheless put in issue, contested and proved the Privy Council said:
>
> 'Their lordships are satisfied that, notwithstanding the form of the plaint the suit was fought by the parties deliberately upon issues substantially as framed by the trial Judge and ought upon that footing to be determined.'
>
> In the instant case, however, it does not appear that the issue of contributory negligence was contested on the basis of the particulars which the learned trial Judge held established it. The question whether the chain ought to have been seen was mentioned by counsel for the appellant in his address, but this was apparently in relation to the question whether the chain was a sufficient warning to the public not to use the lift. In view of rule 3, Order XIV of the code of Civil Procedure it was not unreasonable that counsel should regard the fifth issue as limited to the particulars of contributory negligence alleged in the statement of defence…"

In the case before us the cause of action pleaded was negligence, the issues were framed and the trial proceeded on that basis. I think it was misdirection in law on the part of the learned Principal Judge to base his judgment on a cause of action not pleaded and not being part of the issues upon which the parties fought the suit. I think the first ground of appeal must, therefore succeed.

I agree that the second ground of appeal should also succeed. The only evidence available as to how the accident happened is the evidence of the appellant's driver, Mbugua (DW2). There is nothing to show that what he claimed happened did not in fact happen. With respect to the learned trial Judge I am unable to read panic into the driver's actions of swerving off the road and braking suddenly to avoid a collision. Nor can I say that the o coming bus would necessarily have hit the trailer if the driver's claim that he swerved to avoid colliding with it was true.

I would allow the appeal on these two grounds and I find it unnecessary to deal with the remaining grounds of appeal as the matter raised therein do not arise.

As Platt JSC agrees with the orders proposed by Oder JSC there will be orders in the terms proposed by the learned Justice of the Supreme Court, Oder J.

Platt JSC: I have had the advantage of reading the judgments in draft of Wambuzi CJ and Oder JSC. I agree that the appeal must succeed on grounds one and two. Consequently I would order that the judgment of the High Court be set aside and the plaint of the respondent be dismissed. I would allow the appellant the costs of the suit and this appeal, as the appellant has been successful on the main issues regarding liability.

For the appellants:
Mr Kateera

For the respondent:
Mr Sendege

Kabogere Coffee Factory Ltd and another v Kigongo
[1990–1994] 1 EA 130 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	8 April 1994
Case Number:	10/93
Before:	Manyindo DCJ, Odoki and Oder JJSC
Sourced by:	LawAfrica

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[1] Appeal – Extension of time for lodging an appeal – Original appeal incompetent but still pending – Whether application can be granted.

Editor's Summary

By way of a reference, the applicants sought to vary, discharge or reverse the decision of a single judge of the Court of Appeal dismissing with costs the applicants' application for extension of time

for appealing against the ruling and

order of the High Court in certain companies causes. The applicants, through their newly appointed firm of advocates, had realised that their pending appeals had certain defects. They filed an application seeking extension of time within which to commence fresh appeals against the decisions in the same matters before withdrawing the original appeals or without waiting for them to be struck out. At the hearing of the application, a preliminary objection was taken by the respondent that the application ought to have been brought after the pending appeals had been disposed of either by striking out or by being withdrawn. This objection was upheld and the application dismissed with costs hence the reference.

Held – It has been well established that an application for extension of time for sufficient reason can be entertained during the pendency of an appeal. (*Kiboro v Posts and Telecommunications Corporation* [1974] EA 155 followed).

Having decided that an appeal was incompetent, the Court could immediately go on to consider whether an extension of time could be allowed. Further, although an appeal may appear to be incompetent, the Court could adjourn the hearing of such an appeal thus giving time for an application for extension of time to be brought.

There may be circumstances in which striking out when the incompetence of an appeal first comes to light is the proper course to take, instead of entertaining an application for extension of time.

There is no provision under the Court of Appeal Rules that permits institution of a fresh appeal while a previous one in the same case is still in existence.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Barclays Bank of Uganda Limited v Rodrighes Uganda Supreme Court civil appeal number 5 of 1987 (UR)

Kiboro v Posts and Telecommunications Corporation [1974] EA 155 – **F**

Kyazze v Busingye Supreme Court of Uganda civil application number 18 of 1990 (UR)

Matovu v Kiwanuka civil application number 12 of 1991 (UR)

Olwora v Uganda Central Co-operative Union Limited civil appeal number 25 of 1992 (UR)

Opolo v Attorney-General of Uganda [1969] EA 496

The Executrix of the Estate of the late Christine Namatovu Tebajjukira v Debora Namukasa, civil application number 8 of 1988 (UR)

Ruling

Manyindo DCJ, Odoki and Oder JJSC: This is a reference for an order to vary, discharge, or reverse the decision of a single judge of this Court dismissing with costs the applicants' applications for extension of time for appealing against the ruling and order of the High Court in certain companies causes.

The notice of motion bringing the reference did not state the rules under which it was done; but the hearing was proceeded with on the assumption that rule 54 applied. This ruling is made on the same basis.

The background is that the present applicants, then represented by the firm of *Messrs Lubega-Matovu and Company Advocates*, filed in this Court civil appeals numbers 19 and 20 of 1992. The appeals were from the High Court, in companies cause number 7 of 1990. The present respondent was also the respondent, in those appeals. In due course, the appeals were set down for hearing on 16 October 1992. However, prior to that date, the applicants changed to another firm of advocates, *Messrs Owiny-Dollo, Tibaijuka and Company Advocates*, who are their counsel in the present application. On taking over the conduct of the case, the new advocates discovered that the appeals appeared to be incompetent on a number of grounds, and thought that they might be struck out. Consequently, they filed in this Court, civil applications numbers 40 and 41 of 1992, seeking extension of time within which to commence fresh appeals against the decisions in the same matters before withdrawing the original appeals or without waiting for them to be struck out.

The two applications were heard and disposed of together as they involved the same parties and were based on the same facts. At the hearing two preliminary objections were taken by the respondent, one of which succeeded, resulting in the applications being dismissed with costs. Hence this reference.

The objects of the applications giving rise to this reference were stated in the notice of motions as being:

> "for an order that the applicant be granted an extension of time within which to appeal against the above ruling and order, and that the costs of and incidental to this application abide the out-come of the intended appeal."

The affidavits supporting the applications were deponed by the applicants' counsel, Mr *Tibaijuka* on 8 October 1992. In essence they were to the effect that the appeals were incompetent because they had been lodged by an advocate who had no valid practicing certificate the notices of appeal were at varience with the memoranda of appeals as regards the date of the rulings and orders appealed from; the relevant pleadings were omitted from the records of appeals; the letter applying for the proceedings, rulings and orders of appeals was not included in the records of appeals, nor was the registrar's certificate on those matters. The facts stated in the affidavits were not challenged by affidavit in reply.

The preliminary objections taken at the hearing of the applications were first that as the High Court had jurisdiction to grant extension of time under section 37 of the Judicature Act, 1967 the applications ought to have been commenced in that Court. Relying on the authorities *Opolo v Attorney-General of Uganda* [1969] EA 496 and *Kyazze v Busingye* Supreme Court of Uganda civil application number 18 of 1990 (UR) and others, the learned single Judge rejected this preliminary objection.

The second was that the applications being for extension of time, they ought to have been brought after the pending appeals had been disposed of either by striking out or by being withdrawn. This objection was upheld on the grounds that the fundamental defect of the inability to act by the applicants' advocate due to the absence of a practicing certificate was incurable and that the other important defects must also first be cured.

Four grounds were stated for the reference, but the third one was abandoned during the hearing. The ones which remained are to the effect that:

> "1. The learned single Judge erred in regarding the applicants' civil applications as being intended to cure defects in the respective pending appeals when the applications in fact sought an extension of time to institute a fresh appeal in each case.
>
> 2. The learned single Judge erred in holding that the pending appeals had to be disposed of first before an application for extension of time could be entertained.
>
> 4. The learned single Judge erred in awarding costs against the applications, having found that either party was right and wrong on equally important issues".

Mr *Tibaijuka*, learned counsel for the applicants took grounds one and two together. We shall deal with them in the same manner. He submitted that it was proper for the applications for extension of time to have been brought while the incompetent appeals were still pending. On the authorities of some recent decisions of this Court and others, the pendency of an incompetent appeal was no bar to applications for extension of time. See *The Executrix of the Estate of the late Christine Namatovu Tebajjukira v Debora Namukasa*, civil application number 8 of 1988 (UR), and *Matovu v Kiwanuka* civil application number 12 of 1991 (UR). Secondly, the learned counsel criticised the learned single judge for having dismissed the application for what were said to be incurable defects, and yet the applications had been intended to seek extension of time to file fresh appeals and not merely to cure defects in the incompetent appeals. It was contended that even if the purpose was to seek extension of time to cure defects, the applications should have been neither dismissed nor struck out. Instead, they should have been adjourned pending the outcome of the appeals. A further criticism was that at worst the applications should have been struck out and not dismissed, which now has the effect of shutting the applicants out. He is now barred from bringing fresh applications, which would not have been the case had the applications been merely struck out.

Referring to rule 4 of the rules of this Court, the learned counsel submitted that the application of that rule is both prospective and retrospective. An application under the rule may be brought either before taking the steps for which extension of time is sought or after such steps have already been taken.

Opposing the reference in his reply Mr *Matovu*, learned counsel for the respondent, began by conceding that the applications in question ought to have been struck out, and not dismissed as they were. He then submitted that on the basis of what was stated in the relevant affidavits, the learned single Judge was justified in holding that the applications were intended to cure defects in the appeal. Some of those defects were in curable, for instance the lack of a valid practicing certificate by the advocate who instituted the appeals; and the filing of the notice of appeal in the Supreme Court instead of in the High Court. In the circumstances, it was contended that the applicant was not entitled to extension of time during the pendency of the incompetent appeals. The applications for that purpose should, therefore, have been struck out.

It has now been well established by a long line of decisions of this Court that an application for extension of time for sufficient reason can be entertained during the pendency of an appeal. Many of the recent decisions on this point appear to have their basis on the case of *Kiboro v Posts and Telecommunications Corporation* [1974] EA 155 beyond which, we think, it is unnecessary to go in

tracing the development of the law and to discern the conditions under which time may be extended to cure defects in pending appeals, or such appeals held to be null and void. In *Kiboro* (*supra*) the appellant filed a record of appeal which did not contain a certified copy of the decree appealed against as required by rule 85(1)(*h*) of the rules of this Court. Just before the appeal was to be heard, he filed a fresh record of appeal which contained the decree, contending that he was entitled to file it as a supplementary record, alternatively that he should be allowed to file it out of time. The reason given for the error was that a clerk had mistakenly followed the High Court Rule. It was held that the record filed before the hearing of the appeal was not a supplementary record, but a refiling out of time of the original record containing the basic documents omitted from the original record and that the appeal was incompetent unless the Court extended time for filing the copy of the decree as part of the original record or for filing of the fresh record as the record of appeal in place of the original defective record. But before the Court could do that, it must be satisfied that there was "sufficient reason" for granting indulgence. In the event, the Court considered that no cause was shown, and struck out the appeal.

Kiboro's case (*supra*) illustrates, *inter alia*, how, having decided that the appeal was incompetent, the Court could immediately go on to consider whether an extension of time could be allowed. It also decided that although an appeal may appear to be incompetent, the Court would adjourn the hearing of such appeal thus, giving time for an application for extension of time to be brought.

The next case in the line appears to be *Barclays Bank of Uganda Limited v Eddy Rodrighes*, Uganda Supreme Court civil appeal number 5 of 1987 (UR). In that case, the appeal was struck out as incompetent for three reasons. First because the appellant had not compiled with the procedure for filing of a supplementary record of appeal. His attempts to amend the record by introducing at the hearing a document that had been omitted from the record was rejected. But more relevant for our purpose in the instant case are the second and third reasons. They were that neither the order appealed against nor the order granting leave to appeal were included in the record of appeal as required by rule 85(1)(*h*) and (*i*), and that the notice of appeal was filed out of time.

In the *Estate of the late Namatovu Tebajjukira* (*supra*), an application was made under rule 4 for extension of time within which to file either the decree or fresh records of appeal on the ground that appellant failed to file the appeal in time because no decree had been extracted although the other documents of the record were ready. The application was heard by Odoki JSC as a single judge of this Court. The learned single judge allowed the application on the ground that sufficient reason had been shown. On page 4 of his judgment he referred to *Kiboro* (*supra*) and *Barclay's Bank of Uganda Limited* (*supra*) with approval and said this:

> "Therefore, where the time for filing the record of appeal has expired, an omitted decree can only be filed after the Court has granted extension of time.
>
> I agree with Mr Mulira that an appeal which is incompetent must be struck out and not dismissed. But I do not accept his submission that the present incompetent appeal should be struck out first before entertaining this application for extension of time in which to lodge the appeal. In the first place, there is no proper application before me for striking out the appeal. Secondly, a single judge of this Court has no jurisdiction to entertain an application to strike out a notice of appeal or an appeal as provided

> under rule 52(*c*) of the rules of this Court. In my opinion this Court is properly seized of the application for extension of time, and it now proceeds to consider the merit of that application."

The learned single Judge then considered and allowed the application for extension of time on the ground that sufficient reason was shown.

The case of *Matovu* (*supra*) came to this Court, like the present, by way of a reference. As a result of the decision granting an extension of time within which to lodge a record of appeal in proper order, the one previously lodged having omitted the decree appealed against, rendering the appeal incompetent, the unsuccessful party applied to the Court for a review under rule 54. In considering the application the Court made a fairly thorough review of the decisions in the cases of *Kiboro* (*supra*) and *Tebajjukira* (*supra*) and took them into consideration in upholding the single judge's decision extending time for the appellant. It rejected the view that the incompetence of an appeal must always be acted upon when it first comes to light, though that may well be the result if that is proper in the circumstances of a case. That, in our view, left the door open in appropriate cases for an incompetent appeal to be struck out without entertaining an application for extension of time to cure the defects being the basis of the incompetence. In the circumstances of *Matovu* (*supra*) however, the Court followed the general principle applied in the previous cases referred to, and held that when an application for extension of time is being heard even if the appeal at that time appears to be incompetent extension of time may nevertheless be granted if there is sufficient reason for doing so.

We now turn to consider the grounds of the reference. First, the criticism that the learned single Judge wrongly regarded the applications for extension of time in which to file fresh appeals as having been intended to cure defects in the incompetent appeals. We understand this to mean that the learned single Judge should have considered the applications in question as if the original incompetent appeals did not exist; he should have ignored them. With respect, we do not accept this criticism for the reason that the premises on which the applications sought extension of time consisted entirely of the defects which rendered the original appeals incompetent. The applicants were not seeking to file fresh appeals where none existed before. They were doing so because the original appeals were incompetent. In the circumstances, therefore, we think that the merit of the applications could not be considered in isolation of the original appeals and the reasons for their being incompetent. The merit of the applications for extension of time was inextricably linked with the incompetence of the original appeals. The learned trial Judge was, therefore, entitled to take into account the defects which were enumerated in the affidavits supporting the applications in question.

The next criticism is that the learned single Judge wrongly held that the pending appeals had to be disposed of first before an application for extension of time could be entertained. The passage in the ruling of the learned single Judge at which this criticism was directed reads as follows:

> "It is clear that Mr *Tibaijuka* must demonstrate that the proper course for me to take is to grant an extension of time at this stage of the appeal; and that causing the appeal to dispose of first is not appropriate. It seems to me to be clear that it is not appropriate to grant an extension of time at this stage. Not only can the fundamental objection to the Advocate's ability to act not be cured, but there are also a number of other important defects which must be cured. It is best that the existing appeal is disposed of, and the new appeal brought without all these defects. It is generally unwise to allow a new appeal to be instituted before the existing appeal is disposed of."

In this passage, the learned single Judge clearly gave his reasons for rejecting the applicant's contention that extension of time for lodging new appeals should be granted at that stage, and that causing the incompetent appeal to be disposed of was inappropriate. In essence, the reasons were that in addition to other defects, the one concerning the advocate's inability to act was a fundamental one which could not be cured by extension of time and that as a general principle a new appeal should not be instituted before the old one is disposed of. We agree with the decision of the learned single Judge and the reasons for it. Firstly, because we think that it is not as inconsistent as it appears with the decisions in previous cases to the effect that an application for extension of time can be entertained during the predency of an incompetent appeal. As this Court said in *Matovu* (*supra*) there may be circumstances in which striking out when the incompetence of an appeal first comes to light is the proper course to take, instead of entertaining an application for extension of time. We cannot lay down what such circumstances should be. Each case must be considered on its own facts. The present case, in our view, falls in the category of the exception envisaged in *Matovu* (*supra*). The defects in the incompetent appeals were so fundamental that the appeals should have first been disposed of before fresh ones could be filed. In addition to serious defects such as the absence in the record of appeal of the pleadings, the letter applying for proceedings, the rulings and order appealed against, and the registrar's certificate. Other defects included the notice of appeal being at variance with the memorandum of appeal as regards the date of the ruling and order appealed, and that the appeals having been lodged by an advocate without a valid practising certificate. In the recent case of *Alfred Olwora v Uganda Central Co-operative Union Limited* civil appeal number 25 of 1992 (UR) this Court held that it was an offence under section 14(1) of the Advocates' Act, 1970 for an advocate to practise without a valid practising certificate, and that under the *proviso* to the subsection, an advocate could not be prosecuted before the 1 March. This means that an advocate enjoys a period of grace of two months during which period he may practise without a certificate and cannot be prosecuted. Consequently, documents filed by such an advocate during the period of grace are valid.

In the instant case, since the affidavits stated that the advocate concerned did not have a valid practising certificate, it must be taken that the documents were filed after the grace period had expired.

Secondly, no provisions of the rules of this Court appear to permit institution of a fresh appeal while a previous one in the same case is still in existence. In this regard, Mr *Tibaijuka* informed us from the bar in his reply that the applicants intended to withdraw the incompetent appeals after knowing the fate of the applications for extension of time. In our view this would appear to be putting the cart before the horse. The applications in question were made and the hearing commenced while the incompetent appeals were still pending. The learned single Judge was faced with the situation in which the applicants wished to file fresh appeals while the previous ones in the same case were still pending, and not with what the applicants might do following the fate of their applications. If it was their intention to do so they should have withdrawn the appeals under rule 93 of the rules of this Court, but they did not do so. They apparently saw some difficulties in the way of such an action. They then chose, instead, to bring the applications in question which as the learned single Judge held, rightly in our view, were properly objected to.

For the reasons given, grounds one and two of the reference must fail.

Regarding the ground concerning costs, Mr *Tibaijuka* contended that each party having succeeded on equally important grounds of the objection it should have been left to bear its own costs.

The relevant part of the learned single Judge's ruling reads as follows:

> "Accordingly, I up-hold the objection on the first ground, but reject that on the second ground. Each party has been wrong on equally important issues. But the objection substantially succeeded and the objection must have the costs of the objection proceedings."

We agree with the learned single Judge. As the objection which succeeded disposed of the application in the respondent's favour, he was entitled to the cost of the application. Consequently, this ground of the reference must also fail.

The learned single Judge dismissed the applications on a successful objection, although they were not heard and determined on merit. We think that dismissal would have been justified only if the applications were found not to have sufficient reason under rule 4. As it is, the applications should have been struck out. This, we think is what the learned single judge must have meant to do. However, since this was not made a ground of appeal and as the point was conceded by the respondent, we think that what happened does not affect the result of the reference.

In the result the applicants' reference is dismissed with costs to the respondent, but the order of the learned single Judge dismissing the applications is set aside and substituted with one striking them out.

For the applicants:
Mr Tibaijuka instructed by *Owiny-Dollo, Tibaijuka and Company Advocates*

For the respondent:
Mr Matovu instructed by *Lubega-Matovu and Company Advocates*

Kalinga v Kalumwana
[1990–1994] 1 EA 137 (CAT)

Division:	Court of Appeal of Tanzania at Mbeya
Date of judgment:	9 May 1991
Case Number:	2/91
Before:	Ramadhani, Mnzavas and Mapigano JJA
Sourced by:	LawAfrica

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[1] Trespass – Possession as basis for action – Right to possession, a defence.

Editor's Summary

The regional *Chama Cha Mapinduzi* celebrations of 5 February 1985 were held in Mbozi District. The District celebrations committee identified the site on which to hold the festivities and decided that

it should be fenced by building cottages all around to turn it into s stadium. Interested persons were issued with plots for building the cottages. Both the applicant and the respondent were issued with plots separated by an interspace. A public toilet was built on the interspace leaving passages on either side of the latrine. After the celebrations

were over it was decided to block the passages. The respondent was permitted by the district customs officer to build a wall to connect his cottages to the side of the latrine adjacent to him. When he was about to put up a roof he left for Dar-es-Salaam and on his return found both the wall and the toilet demolished. The appellant was in the process of putting up a new cottage. The respondent commenced court action for trespass against the appellant leading to the following question between the Court of Appeal "since the subcommittee was the one with the authority to allocate plots at the stadium and as neither the respondent nor the appellant obtained possession of the plot in dispute from the subcommittee, could either one of them be said to have acquired a good title?".

Held – The foundation of an action for trespass to land, is possession. To maintain trespass against a wrongdoer, it is not necessary that the plaintiff's possession should be lawful. (*Delaney v TP Smith Ltd* [1946] 2 All ER 23 followed).

One of the defences against an action for trespass is a claim by the defendant that he had a right to the possession of the land at the time of the alleged trespass or that he acted under the authority of some person having such a right.

A person is liable for trespass if he acts voluntarily knowing the nature and the quality of his act even though he does not know the act to be wrongful. (*Morriss v Marsden and another* [1952] 1 All ER 925 applied).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Delany v TP Smith Ltd [1946] 2 All ER 23 – **F**

Morris v Marsden and another [1952] 1 All ER 925 – **AP**

Thompson v Ward [1953] 1 All ER 1169

Judgment

Ramadhani, Mnzavas and Mapigano JJA: This is the third appeal between the parties, the matter having started in Vwawa Urban Primary Court in Mbozi District. So for the sake of clarity and simplicity we shall refer to the parties by their first names rather than by the appropriate legal labels.

Omari Kalumwana unsuccessfully sued Jela Kalinga at the primary court for the repossession of a certain plot. Needless to say, he was aggrieved and so appealed to the District Court of Mbozi where he succeeded. It was then the turn of Jela to go to the High Court at Mbeya to challenge that decision. However, he failed to persuade Mtenga J and thus lost again. But as his morale is high, Jela has finally come to us after obtaining a certificate from Mwaikasu J that there is a point of law at stake. Thus Omari was the original plaintiff while Jela was the original defendant. Now before us Omari is the respondent and Jela is the appellant.

The facts of the matter are as simple as their issues are intertwined. The regional *Chama Cha Mapinduzi* (CCM) celebrations of the 5 February 1985 were

held in Mbozi District. The district celebrations committee identified the site on which to hold the festivities and decided that it should be fenced by building cottages all around to turn it into a stadium, so to speak. The district celebrations committee, as would be expected, was under the chairmanship of the District Commissioner while the district cultural poficer, one Nicodemus Mwankemwa (PW2), was its secretary. A building subcommittee (hereinafter referred to as the subcommittee), whose composition was not spelled out in evidence, was established and charged with the Task of issuing plots to interested persons for building the cottages. Both Omari and Jela were allocated plots which were separated by an interspace. A public latrine was built on the interspace leaving passages on either side of the latrine. After the celebrations were over it was decided to block up the passages. Omari was permitted by PW2 to build a wall to connect his cottage to the side of the public latrine adjacent to him. When he was about to put up a roof he left for Dar-es-Salaam and, on his return, Omari found both the wall he had constructed and the public latrine demolished and Jela was in the process of creating a new cottage thereon having being permitted to do so by both the District Land Officer, one Paul Nyalusi (DW2), and the District Medical Officer called Senga Senga (DW3). It was the same DW3 who had earlier on given a written authority to one Sadoki to demolish the public latrine and the wall of Omari. Naturally, Omari confronted Jela who ignored his protests and proceeded with his construction work. That sent Omari to the Primary Court, as said earlier, suing Jela for the trespass.

The point of law that was certified to us briefly was this:

> "Since the sub-committee was the one with the authority to allocate plots at the stadium and as neither Omari nor Jela obtained possession of the plot in dispute from the sub-committee, could either one of them be said to have acquired a good title?"

Mr *Bateyunga*, learned counsel for Jela, the appellant, presented a memorandum of appeal containing four grounds of appeal. The first ground was that the learned Judge erred to find Jela to be a trespasser as that issue could not arise in the circumstances of this case. The second ground was that the judge erred to declare Omari to have had a better title while there was a finding of a double allocation. The third ground was that the judge erred to have denied compensation to Jela on the ground that he was a trespasser. Lastly, that the judge erred to have granted the plot to Omari while none of them had a better title because of the double allocation.

Mr *Bateyunga* before us submitted that since the subcommittee did not allocate the plot to either Omari or Jela then none of them had good title. Therefore, the counsel argued, Omari had no right to sue Jela who could never be a trespasser. Mr *Bateyunga* prayed that the decision of the Primary Court be restored.

On the other hand, Mr *Mwangole*, learned counsel for Omari, the respondent, argued that there was no double allocation as Omari was given the plot by PW2 on behalf of the sub-committee. On the contrary, the counsel submitted, Jela had no good title as both DW2 and DW3 had no authority to issue plots. However, Mr *Mwangole* could not refer us to any evidence to support his contention that PW2 issued the plot in dispute to Omari on behalf of the sub-committee.

It was the finding of the lower Courts that the sub-committee was the proper authority to allocate plots at the stadium. It was equally settled that the said sub-committee did not issue the plot in dispute to any of the parties. So we are of the same opinion that in law neither of the two had a better title than the other. But in such a situation can there not be trespass?

The foundation of an action for trespass to land is possession. It was decided in *Delany v TP Smith Ltd* [1946] 2 All ER 23 that to maintain trespass against a wrongdoer it is not necessary that the plaintiff's possession be lawful. But that is not the case if the action is against the lawful owner. As there was no lawful owner in this case the question is then which of the two had possession, albeit unlawful, at the time of the dispute.

It has never been disputed at any stage that Omari had actual possession before the demolition and the subsequent construction by Jela. The case of *Thompson v Ward* [1953] 1 All ER 1169 supports the proposition that any one who was in possession or who is deemed to have been in possession at the time of the trespass could bring action for trespass. So Omari's action was proper.

However, one of the defences against an action for trespass is a claim by the defendant that he had a right to the possession of the land at the time of the alleged trespass or that he acted under the authority of some person having such a right (*Halsbury's Laws of England* (3ed) Volume 38 at 749 paragraph 1226). That has been the defence of Jela. But as already shown he could not have such a right as DW2 and DW3 had no authority to give it to him.

For the sake of completeness we may observe that it could have been argued, though it was not, on behalf of Jela that he did not know that he was committing trespass or that he was misled by DW2 and DW3 into occupation. That is very true. However, a person is liable for trespass if he acts voluntarily knowing the nature and the quality of his act even though he does not know the act to be wrongful (see *Morris v Marsden and another* [1952] 1 All ER 925).

Thus we find that Omari had possession of the plot in dispute and that Jela committed trespass. So possession should be restored back to Omari as was the finding of both the District Court and the High Court.

Mr *Bateyunga* had prayed that in the event we came to the conclusion which we have arrived at, we then should consider awarding compensation to Jela. Mr *Mwangole* was bitterly opposed to that prayer but eventually he conceded. As there was no evidence as to how much money Jela expended on the structure we direct the District Magistrate to take evidence from the parties and experts like the Government valuers to assess the cost of erecting the building in 1986. Interest on the amount from the date of judgment by the district court, that is the time when Jela was dispossed, to the time of payment of the compensation should be granted as well.

The appeal is dismissed except for compensation.

As the parties were not at fault but were misled into this litigation by others who then become onlookers we order each party to bear his own costs.

Before we finish, we may as well comment that Omari suffered some loss when the wall he had built was demolished. But that is a claim which could be brought against DW3 who ordered the demolition and not Jela.

For the appellant:
Mr Bateyunga

For the respondent:
Mr Mwangole

Kampala Bottlers Ltd v Damanico (U) Ltd
[1990–1994] 1 EA 141 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	12 January 1993
Case Number:	22/92
Before:	Wambuzi CJ, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Particulars of fraud not specifically pleaded.

[2] Land – Impeaching title of registered proprietor – The factors to consider – Irregularity in the provision of title-trespass – Pleading the particulars of fraud – Burden and standard of proof of fraud to impeach title to land.

Editor's Summary

The appellant was the registered proprietor of 1.030 hectares of land in Industrial area, Kampala. The appellant claimed that the respondent had trespassed on their land by clearing and grading it.

The respondent, while admitting entry into the land, however claimed that such entry was by virtue of a grant of a lease in the suit property for five years and that the appellant's certificate of title over the suit property was obtained by fraud.

The trial Judge found that the appellant indeed obtained the title by fraud. The appellant appealed claiming that no particulars of fraud were pleaded by the respondent or proved.

Held – The lack of a grant is not one of the grounds for impeaching the title of a registered proprietor of land based on the wording of sections 56 and 184 of the Registration of Titles Act.

A registered title cannot be set aside for mere irregularity in the preliminary stages. It is fraud that has to be proved where section 184(*c*) of the Registration of Titles Act is involved.

To impeach the title of a registered proprietor of land, fraud must be attributable to the transferee, either directly or by necessary implication. The transferee must be guilty of some fraudulent act or must have known of some act by somebody else and taken advantage of such act.

The burden of proof of fraud must be heavier than a balance of probabilities generally applied in civil matters.

The particulars of fraud must always be pleaded since it is a very serious allegation to make. Fraud by the appellant, or anybody else for that matter, has therefore not been proved in the case

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

David Sejjaaka v Rebecca Musoke civil appeal number 12 of 1985

Livingstone Sewanyana v Martin Aliker civil appeal number 4 of 1990 (SC)

Robert Lusweswe v Kasule and another High Court civil suit number 1010 of 1983

United Kingdom

Assets Co v Mere Roihi [1905] AC 176

Waimiha Saw Milling Co Limited v Waione Timber Company Ltd [1926] AC 101

Judgment

Wambuzi CJ: The appellant, a limited liability company, brought an action in the High Court against the respondent, also a limited liability company, seeking an order of eviction and general damages in trespass.

Briefly the facts were that the appellant is the registered proprietor of approximately 1.030 hectares of land comprised in *Lease Hold Register* Volume 1972, folio 2, plot number M 271, Nakawa Industrial Area, Kampala. The appellant alleged that in November 1991, the respondent trespassed on the appellant's land by clearing and grading the same.

The respondent admitted entry upon the land in question but denied such entry was wrongful as it was by virtue of a grant of a lease in the suit property for a period of five years. The respondent alleged that the certificate of title held by the appellant of the suit property was obtained by fraud.

At the trial, the sole issue was whether or not the appellant obtained its title of the suit property by fraud.

The learned trial Judge found there was fraud and gave judgment in favour of the respondent. The appellant has now appealed to this Court against the decision of the High Court on two grounds, namely,

> "1. That the learned trial Judge erred in law holding that the certificate of title obtained by fraud.
>
> 2. The learned trial Judge erred in law in awarding the reliefs prayed for."

In arguing the first ground, Dr *Byamugisha* for the appellant submitted that by a letter dated 13 October 1988, exhibit P2, the appellant who had initially obtained a lease respect of the suit property was granted an extension of two years with effect from 1 May 1988. The Commissioner of Lands was accordingly notified by letter, exhibit P3. Apparently, it was necessary to resurvey the plot, which was done. The City Council of Kampala demanded ground rent by a letter dated 21 August 1991 which was paid as per exhibit P7. Exhibit P1 which is the certificate of title was accordingly prepared was executed on 26 September 1991. Learned counsel submitted that by the time the respondent was granted a lease of the same plot, the appellant had already been registered as proprietor. Learned counsel submitted that the City Council dealt with appellant as if it was not necessary to apply for extension the lease as the lease offer had not been utilised because of resurvey which had not been completed until 1991. Learned counsel referred us to sections 184, 42(4) and 56 of Registration of Titles Act to the effect that the title of a registered proprietor cannot be impeached because of irregularities, that fraud must be proved. No particulars of fraud were pleaded and there is no evidence to support learned trial Judge's finding of fraud.

For the respondent, Mr *Kateera* submitted in effect that a certificate of title is evidence of a grant without which certificate is meaningless. Learned counsel argued in effect that the grant made to the appellant expired in 1990 and was renewed. Accordingly the lease subsequently prepared by the Land Office was without authority.

It is not in dispute that the appellant was initially granted a lease over the suit property. The dispute is whether or not this lease was extended as claimed by the appellant. It is also not disputed that the appellant is the registered proprietor but it is also claimed for the respondent that the registration was obtained by fraud.

In so far as is relevant, section 56 of the Registration of Titles Act provides as follows:

> "… and every certificate of title issued under the provision herein contained shall be received in all courts as evidence of the particulars therein set forth and of the entry thereof in the Register Book and shall be conclusive evidence that the person named in such certificate as the proprietor of or having any estate or interest in … the land therein described in is seized or possessed of such estate or interest."

According to these provisions, it would appear to me that production of the certificate to title in the names of the appellant is sufficient proof of ownership of the land in question unless the case falls within the provisions of section 184 of the Registration of Titles Act. The section provides as follows:

> "No action of ejectment or other action for the recovery of any land shall - lie or be sustained against the person registered as proprietor under the provisions of this Act except in any of the following cases:
>
> (*a*) the case of a mortgagee as against a mortgagor in default;
>
> (*b*) the case of lessor against a lessee in default;
>
> (*c*) the case of a person deprived of any land by fraud as against the person registered as proprietor of such land through fraud or as against a person deriving otherwise than as a transferee bona fide for value from or through a person so registered through fraud;
>
> (*d*) the case of a person deprived of or claiming any land included in any certificate of title of other land by misdescription of such other land or of its boundaries as against the registered proprietor of such other land not being transferee thereof bona fide for value;
>
> (*e*) the case of a registered proprietor claiming under a certificate of title prior in date of registration under the provisions of this Act any case in which two or more certificates of title may be registered under the provisions o this Act in respect of the same land,
>
> and in any case other than as aforesaid the production of the registered certificate of title or lease shall be held in every court to be an absolute bar or estoppel to any such action against the person named such document as the grantee, owner, proprietor or lessee of the land therein described, any rule of law or equity to the contrary notwithstanding."

In the first place and needless to say, lack of grant is no one of the grounds for impeaching the title of a registered proprietor on the wording of this section and also of section 56 to which I referred earlier in this judgment. I must therefore, reject Mr *Kateera*'s argument that a certificate of title is meaningless unless a grant has been shown to have be made in respect of the land in question.

Secondly, on the wording of section 184 it would appear that an action for recovery of land can lie or be sustained only by "a person deprived of any land" against the person registered as proprietor of such land through fraud.

In the case before us it must be shown that the appellant was registered as proprietor of the land through fraud. In its written statement of defence, the respondent pleaded in paragraph 6 as follows:

> "It is submitted that the certificate of title annexed to the plaint was obtained by fraud as since 1990 the City Council of Kampala never sat to give further extension of the lease to the plaintiff."

Normally, where fraud is pleaded, particulars of the fraud must be given. It was submitted before us that the particulars of the fraud in this case were the fact that the City Council did not sit since 1990 to give further extension of the lease to the plaintiff.

I must confess I am a little at a loss as to who was being alleged to have been fraudulent.

Be that as it may, on the question of fraud which in a way was the sole issue in the lower Court, the learned trial Judge had this to say:

> "The spring board for the issue is to get the meaning of 'fraud'. It is well established law that fraud means actual fraud or some act of dishonesty. In *Waimiha Saw Milling Co Limited v Waione Timber Co Limited* [1926] AC 101 at 106. Lord Buchmaster said 'now fraud implies some act of dishonesty'. Lord Lindley in *Assets Co v Mere Roihi* [1905] AC 176 states, Fraud in these actions (that is actions, seeking to effect (sic) a registered title) means actual fraud, dishonesty of some sort not what is called constructive fraud an unfortunate expression and one may opt to mislead, but often used for want of a better term to denote transactions having consequences in equity similar to those which flow from fraud.
>
> This case was applied by our Court of Appeal in *David Sejjaaka v Rebecca Musoke* civil appeal number 12 of 1985.
>
> Reviewing the whole evidence and both counsels' submissions about the issue of fraud and given the available legal issues, I think Mr *Kateera*'s submissions are unassailable. There was fraud and it was committed by someone in the Land Office. That someone had by design incorporated the minute quoted in the lease and persisted in sending the lease document for execution by the Council. The Council chairman and Town Clerk must have perused the lease document containing the said minute. They are supposed to peruse it in any case before signature. However, they went ahead and executed the documentation 8 October 1991. The minute is the root from which the offer and certificate of title derive their validity, This has been held to be the legal position in *Livingstone Sewanyana v Martin Aliker* civil appeal number 4 of 1990 (SC). In this case the plaintiff under KCC minute DC 20/233/88 dated 7 September 1988 was given a two year lease effective from 1 May 1988. For reasons stated the plaintiff did not apply for extension and there was actually no extension granted by the Council. The defendant under Min, DC 9 August 1991 of 9 September 1991 was granted a lease for an initial period of three years from 1 October 1991, (exhibit D1). Then out of the blue on 8 October 1991, the plaintiff was granted a lease for two years from 1 August 1991 quoting KCC Min DC/233/88 dated 7 September 1988 (exhibit 15). This lease was processed by the Land Office.
>
> I agree with Mr *Kateera* that the Land office has no general agency to prepare certificates of title. They only prepare a certificate where they have been instructed by the City Council which is the controlling authority.
>
> I refer to section 17 of the Public Lands Act.
>
> In this particular case evidence in this respect was adduced by DW1 when he stated that a lessee whose lease has expired before the survey (in this case a re-survey) has

> been completed, it would still be necessary to re-apply after that re-survey, and the application be subjected to further consideration by the Council. In this case there were no instructions contained in any minute found on the preparation of the certificate which was issued on 8 October 1991. The Land Office by design quoted an earlier minute on which an expired grant had been based. I say by design because I cannot think of any other explanation why a basic matter like a minute should not have put them on notice. I also fail to understand why the Council chairman and the Town Clerk signed the lease without perusing it as they ought to. Had they perused it they would have found out that the lease was not a wrong minute (sic) and that barely a week earlier the City Council had granted a lease offer to the defendant of the same plot . . .
>
> The way the first issue has been framed does not compel me to determine who committed the fraud. The facts disclosed an irregularity surrounding the grant so grave as to amount to a dishonest dealing with the grant. Both the Land Officer and Council chairman and Town Clerk share responsibility for this by their refraining from carrying out basic inquiry.
>
> In my considered view, there is no sound reason disclosed why the Land Office and that of the Council chairman and Town Clerk could not peruse the minute under which the plaintiff's certificate was processed. That was the basic pre-requisite. They refrained from doing that and the result was fraud. I therefore find that fraud was committed.
>
> Dr *Byamugisha* submitted that even if there had been any fraud on the part of the Council, that fraud could not be used to impeach the plaintiff's title.
>
> In support of his argument, he referred to sections 56 and 184 of the Registration of Titles Act.
>
> I wish to answer Dr *Byamugisha*'s argument by the following quote from the case of *Robert Lusweswe v Kasule and another* High Court civil suit number 1010 of 1983, where Odoki J as he then was said:
>
> 'Therefore while the cardinal rule of registration of titles under the Act is that the Register is everything, the Court can go behind the fact of registration in cases of actual fraud on the part of the transferee'."

Taking the last point first and with respect to the learned trial Judge, I do not think that Dr *Byamugisha*'s point was answered by the authority cited. If anything, the authority supports Dr *Byamugisha*'s point and as already indicated in this judgment, fraud must be attributable to the transferee. I must add here that it must be attributable either directly or by necessary implication. By this I mean the transferee must be guilty of some fraudulent act or must have known of such act by somebody else and taken advantage of such act.

Returning to the judgment of the learned trial Judge, he seems to have held that there was fraud because he could not otherwise understand how all those concerned would fail to notice the duration of the lease which was indicated in the minutes of the City Council meeting. He went on to find fraud committed by someone in the Land Office by the chairman of the Council and by the Town Clerk. The latter two apparently for failure to notice the error.

With respect, this verge on constructive fraud if there was any fraud rather than actual fraud as required by the authorities referred to in the lower Court. Besides, it was not shown nor did the learned trial Judge find that the appellant was guilty of any fraud or that he knew of it.

Further, I think it is generally accepted that fraud must be proved strictly, the burden being heavier than on a balance of probabilities generally applied in civil matters. The learned trial Judge did not indicate the standard at which fraud

had be proved. There may have been negligence on the evidence before the learned trial Judge but equally all those concerned may have thought that the appellant was entitled to a term after the resurvey as the offer had not been utilised. With respect I unable to say that fraud was proved against the appellant anybody for that matter.

I would allow the appeal, set aside the judgment and decree of the High Court and substitute thereto judgment for the appellant with costs here and in the Court below.

There appears to be evidence that trespass had at some stage ceased and therefore there is no necessity for an eviction order. I would otherwise remit the case to the High Court for assessment and grant of general damages for trespass. As both Oder and Platt JSC agree with my proposed orders it is so ordered.

Platt JSC: The Kampala Bottlers Limited, a limited liability company, brought an action against Damanico (U) Limited praying for the eviction of Damanico (U) Limited general damages in trespass and costs.

There is no dispute that the plaintiff had originally been granted a lease of a parcel of land registered in leasehold register Volume 1972, Folio 2, plot number M 271, Nakawa Industrial Area. The lease was extended from 1988 for two years with effect from 1 May 1988 (see exhibit PII). That was followed by a notification to the Commissioner of Lands, from the City of Kampala, asking the Commissioner to effect the extension. This notification was given on 28 February 1989 (see exhibit PIII). However when the extension was to be effected, a complaint was received from the Foods and Technology Department of the Ministry of Rehabilitation, that the plaintiff had encroached upon the Ministry's land. Consequently, the extension was not carried out, because of the necessary resurvey which took some time. The lease expired before the survey was completed in early 1991. There was some delay in obtaining prints of the new survey. But it seems that on the basis of the old lease there followed a demand for land premium and ground rent dated 28 August 1991 for UShs705 000 (see exhibit PVI). The money was paid on 4 September 1991. On 26 September the plaintiff was given a lease for two years from the 1 August 1991 which was registered on 8 October 1991.

In the meantime, on 15 July 1991, the defendant Dama Limited applied for a plot on which to erect a bottling plant. On 31 October 1991 the defendant was allocated plot M 271 Nakawa Industrial Area with a lease for three years extendable to 49 years. The defendant was told to contact the Commissioner of Lands for the preparation of a formal lease offer. Accordingly, the Commissioner for Lands made out a lease offer on November, 1991 (exhibit D.I). It seems that the Plaint objected, and the Town Clerk answered on 27 November 1 (exhibit D4). The Town Clerk explained to Dr *Byamugisha*, plaintiff's advocate, that the plaintiff's lease had expired 13 April 1990, and accordingly the plot reverted back to City Council. Indeed the Council had allocated it to another developer on 9 September 1991. The Town Clerk explained that the plaintiff no longer stood as the registered proprietor of land, and by a copy of the letter the defendant was requested to proceed with development on the site.

Strangely enough, the land premium and ground rent was still demanded from the plaintiff company on 21 January 1992, and again on 17 February 1992.

At the end of 1991 or the beginning of 1992 the defendant Company went on to the land and started to clear and grade it in preparation for building a factory. In its defence the defendant admitted that it had done so and claimed that its entry upon the land was lawful. First the defendant pointed out that the plaintiff's lease had expired in 1990, and the City Council had granted a leasehold to the defendant on 9 September 1991. The Council had followed it up with the letter of allocation of the 31 October 1991 and then the lease offer of 7 November 1991.

How the letter of 31 October 1991, and lease offer of 7 November 1991 came to be made, is difficult to understand, because the lease to the plaintiff had been made out on the 26 September 1991 and registered on the 8 October 1991, several weeks before the allocation of the land was notified to the defendant on 31 November 1991. What is more remarkable is that Mr Patrick Makumbi, the Town Clerk has signed all, these documents; the lease to the plaintiff and the allocation to the defendant. Nevertheless, the plaintiff relying on its registered title viz the lease registered on 8 October 1991, brought this action against the defendant, which replied that the plaintiff had obtained its Certificate of Title by fraud, for the reasons that the Kampala City Council had never given authority for a further extension of the lease to the plaintiff. In fact, the defendant is quite correct. The plaintiff's lease had expired on 1990 and it was not renewed by any further offer of an extension. But the plaintiff was awaiting the result of the resurvey.

The learned Judge found no fraud on the part of the appellant, but the officials in the City Council and Land Office were guilty of fraud. Consequently, he set aside the registration of the plaintiff's lease dated 8 October 1991. The plaintiff appeals against the decision. I shall now refer to him as the appellant.

It is at first sight somewhat difficult to see why the officials should have been fraudulently while the person to benefit was not so guilty. I suppose it might be that the officials could have some grudges against one of the parties. On the other hand, it is easy to see a case where the registered owner to whom the land was transferred could be guilty of fraud together with the officials, or where he could see a wrongful action by the officials about to take place and take advantage of it.

The nearest illustration of fraud in this case might be the last one viz. Where the officials had acted wrongly and the registered owner had taken advantage of it. But the learned Judge has negatived that result by not finding that the appellant, the registered owner was guilty of any fraud.

From the sequence of events set out above. I have great sympathy with the learned Judge's exasperation at the manner which these important industrial developments were handled almost simultaneously, in granting the appellant a lease which registered on 8 October 1991, the same month as that the Council offered a lease in the same land to the respondent. Such a record can only lead to sinister suspicion. But there is no evidence that the appellant knew anything of the respondent's activities until the respondent appeared on the appellant's land. The appellant could well have thought that the Council putting the record straight after the resurvey. The extension to 1990 had not been completed. Certainly, the Council hardly claim that there should have been a fresh application until the resurvey was complete and after the Council demanded in August 1991 land rent and received in September 1991, in the sum of UShs705 000; no small sum. I would agree with learned Judge that there was no evidence of fraud upon appellant's part, and the failure to apply for a further extension, if it was a failure, is quite understandable.

In these circumstances the issues for trial required a careful approach.

In the first place, I strongly deprecate the manner in which the respondent alleged fraud in his written statement of defence. Fraud is very serious allegation to make and it is as always wise to abide by the Civil Procedure Rules, Order VI, rule 2 and plead fraud properly giving particulars of the fraud alleged. Had that been done, and the appellant had been implicated, then on the judge's findings that would have been the end of the defence. If, on the other hand, the officials had been implicated, then on the usual interpretation of section 184(*c*) of the Registration of Titles Act, that would have been found to be insufficient. It is generally held that fraud must reside in the transferee. Whether the learned Judge's wider interpretation of the words of section 184(*c*); ". . .as against the person registered as proprietor of such land through fraud" can mean that the fraud of third parties quite apart from the transferee, is sufficient to set aside registered title, is a matter which may possibly need further elucidation. But it is not open for consideration in this case, because of another important procedural lapse. Had that been the respondent's case, he should have brought the Land Office officials and Town Council officials before the Court. It is important that before someones reputation is besmirched, he has had an opportunity to defend himself. The officials here might have explained the confusion in their action. Even incompetence might not be fraudulent.

It must be understood from the nature of the defence, that the unspecified fraud must be primarily directed against the party in the case, against whom the defence has been made. That is to say, that primarily, the respondent's allegation of fraud must relate to the way in which the appellant gained registration, as the appellant was the only other party in the case.

The resultant situation then is that as no fraud was found on the part of the appellant, that was the end of the matter. The learned Judge held that the vagueness of the pleadings allowed him to find fraud wherever he might see it. That, with respect, was allowing himself too great a latitude. His proper course was to have called the respondent's attention to the vague allegation of fraud before the trial, and ascertain whether an amendment was necessary, to specify what fraud it was that the respondent alleged. That would have clarified the issues for trial. This case seems to call for greater pre-trial clarification as on summons for directions.

Then once the appellant had a registered title, and that prior in time to the lease offered to the respondent the respondent had no right to trespass on the land of the appellant. The respondent vacated the land promptly. Hence no eviction order is now necessary. But general damages were claimed and that issue was not resolved. I agree with my Lord and the Chief Justice that the record should be remitted to the trial Court for the assessment of damages in case its main finding is upset. I would agree with all the consequent orders proposed by him on allowing this appeal.

Before I leave the matter, I should perhaps add one or two words on the place in proceedings such as this, of the preliminary steps leading to registration of title of land.

Registered title cannot be set aside for mere irregularity in the preliminary stages. See section 56 of the Registration of Titles Act. It is fraud that has to be proved where section 184(*c*) of the Registration of Titles Act is involved. It may be that the various steps taken illustrate fraud. Such a case was *Sewanyana v Martin Aliker*

civil appeal number 4 of 1990 (SC). The authority had no right to grant the land. The allocatees had put in false papers which have been wrongly passed by the council's officer. Altogether there was collusion and fraud in the transferee.

Oder JSC concurred in the judgments of Wambuzi CJ and Platt JSC.

For the appellant:
Dr Byamugisha

For the respondent:
Mr Kateera

Kanabo v Editor in Chief Ngabo News Paper and others
[1990–1994] 1 EA 149 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	21 November 1994
Case Number:	39/93
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Powers of appellate Court to interfere with the award of damages – Factors to consider before interfering with damages awarded.

[2] Libel – Factors to consider in the award of damages – Effect of status of the defamed person in award of damages – Failure of defence of justification – Offer of an apology in mitigation to damages.

Editor's Summary

The appellant successfully sued the respondents for general damages for defamation. The trial Judge in awarding her damages observed that since she did not have a high social status the award of Ushs 75 000 as general damages would suffice.

She appealed against the quantum of damages.

Held – An appellate Court may only interfere with an award of damages when the award is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the trial Judge applied a wrong principle or that he misapprehended the evidence in some material respect, and so arrived at a wrong figure. *Byalem and others v Uganda Transport Co [1975] Ltd* civil appeal number 10 of 1993 (UR); *Ilanga v Manyoka* [1961] EA 705; *Associated Architects v Nazziwa* civil appeal number 5 of 1981 (UR) followed.

The trial Judge was wrong to condemn the appellant to low general damages solely on account of her social status since status alone is not enough. It is necessary to combine status with the gravity or seriousness of the allegations made against the plaintiff.

Anyone who falsely accuses another of a heinous crime, such as murder, should be condemned heavily in damages.

Once an ordinary man or woman is defamed seriously and is shunned by the public then it does not matter whether he or she is of high or low status.

In this case the appellant's business was affected, her friends shunned her because of the false allegations made against her; this and not her status called for higher damages. *Lubanga Kene v Focus Nespaper and others* High Court civil suit number 262 of 1988 (UR) considered.

It is trite law that where the defence of justification fails then high damages may be awarded on that count. Though the offer of an apology is not a defence, it does mitigate the damages.

Appeal allowed. UShs2.25 million general damages awarded.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Abu Mayanja v Kulengera Newspaper High Court civil suit number 459 of 1990 (UR)

Associated Architects v Nazziwa Court of appeal of Uganda civil appeal number 5 of 1981 (UR) – **F**

Byabalema and 2 others v Uganda Transport Company [1975] Limited civil appeal number 10 of 1993 (UR) – **F**

Ilanga v Manyoka [1961] EA 705 – **F**

Kibedi v FAD Publications High Court civil suit number 869 of 1987 (UR)

Lubanga Kene v Focus News Paper and 3 others High Court civil suit number 262 of 1988 (UR) – **C**

Rev Father John Neudegger v The Telecast Newspaper and others High Court civil suit number 754 of 1988 (UR)

Judgment

Manyindo DCJ: This is an appeal against the quantum of the damages only. The appellant successfully sued the respondents in the High Court for general damages for defamation. She was awarded UShs75 000 general damages plus costs of the suit.

The respondents published in their "*Ngabo*" News Paper volume number 1179 of Wednesday 28 March 1990, and volume number 337 of Saturday 31 March 1990, articles defamatory of the appellant. They depicted her as a witch doctor, a thief and a hardcore criminal who had planned and executed the murder of her wealthy husband so that she could come into his riches. The respondents put out the defences of justification, qualified privilege and fair comment.

The trial Judge found that the publications were false and defamatory of the appellant. He thus rejected the defence of justification and fair comment. He did not deal with the defence of qualified privilege but then the respondents have not cross-appealed on the point.

The trial Judge was requested to award the appellant UShs5 million general damages. The High Court decisions in *Rev Father John Neudegger v The Telecast Newspaper and others* High Court civil suit number 754 of 1988 (reported in 1988-1990 HCB 155), *Kibedi v FAD Publications* High Court civil suit number 869 of 1987 (UR) and *Abu Mayanja v Kulengera Newspaper* High Court civil suit number 459 of 1990 (UR) were cited in support.

Rev Father John Neudegger, a Catholic priest at Tororo, was falsely accused of amassing personal wealth through misuse of Church funds. He was awarded UShs3 million general damages. Mr Wanume Kibedi, a prominent lawyer and former Attorney-General of Uganda was falsely accused of having connived with Adi Amin in the murder of a former Chief Justice of Uganda. He was awarded UShs4.5 million general damages and veteran politician and cabinet Minister *Abu Mayanja* who was falsely accused of having illegally pocketed gate collections at Nakivubo Stadium was awarded UShs9 million general damages.

The trial Judge considered those three cases but decided that they were not relevant to the case before him. This is what he said:

> "On general damages I have considered the several authorities in the decided cases drawn to my attention where different awards were made by this Court, in the past, to the successful plaintiffs of different categories that is, *Rev Father, John Neudegger*'s case; *Mr Wanume*'s case and *Mr Abu Mayanja*'s case. In comparison to the present case, the plaintiff in this case does not rank in the status, as high as any of the successful plaintiffs in each of the above mentioned cases.
>
> I therefore, consider an award of the sum of UShs75 000 as general damages, for the defamatory publication and libel to be an adequate award and I do hereby award the same."

The appellant's complaint in this Court is that it was wrong for the trial Judge to award the appellant very low damages simply because she belonged to a low social class or status. The trial Judge should have taken into account the fact that she was a successful business women, happily married to her now deceased husband and that she is now shunned by the public as a murderer of her own husband.

On the other hand Mr Hudsen Diana *Musoke* who represented the respondents supported the award of UShs75 000. He argued that the appellant deserved no more than that since she had not impressed the trial Judge who had put her down as a person of low status.

As this Court pointed out in *Byabalema and others v Uganda Transport Company* [1975] Limited, civil appeal number 10 of 1993 (UR), an appellate Court may only interfere with an award of damages when the award is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the trial Judge applied a wrong principle or that he misapprehended the evidence in some material respect, and so arrived at a wrong figure. Also see *Ilanga v Manyoka* [1961] EA 705 and *Associated Architects v Nazziwa* Court of appeal of Uganda civil appeal number 5 of 1981 (UR).

In the instant case there was evidence led by the appellant to show that she was a successful business woman. However, there was evidence that she is now shunned by her friends and business associates. With respect, I think the trial Judge was wrong to condemn her to low general damages solely on account of her social status. I do not think status alone is enough. It is necessary to combine that status with the gravity or seriousness of the allegations made against a plaintiff. Anyone who falsely accuses another of a heinous crime such as murder should be condemned heavily in damages. In my opinion once an ordinary man or woman is defamed seriously and is shunned by the public then it does not matter whether he or she is of high or low status.

In this case the appellant's business was affected, her friends shunned her because of the false allegations made against her; this and not her status called

for higher damages. It is remarkable that in *Lubanga Kene v Focus News Paper and others* High Court civil suit number 262 of 1988 (UR), where the allegations against the plaintiff was that in his capacity as Manager of a certain Corporation he had transferred an employee of the Corporation from Jinja on tribal grounds and that the transfer had adversely affected the Corporation's plant at Jinja, the same trial Judge awarded the plaintiff UShs2.25 million as general damages. It seems to me that the allegations in that case was not as serious as the allegations here.

Finally, there is also the fact that the respondents never vacated the allegations made against the appellant. They never offered an apology to her. Instead they sought to justify them but failed to do so miserably. It is trite law that where the defence of justification fails then high damages may be awarded on that account. Of course the offer of an apology is not a defence but it does mitigate the damages.

In view of the forgoing I would allow this appeal, set aside the award by the High Court and substitute an award of UShs2.25 million general damages plus costs here and in the lower Court. The decretal sum would carry interest at the Court rate from the date of judgment.

Odoki and Platt JJSC concurred in the judgment of Manyindo DCJ.

For the appellant:
Information not available

For the respondents:
Mr HD Musoke

Kaniki v Republic
[1990–1994] 1 EA 152 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	8 November 1993
Case Number:	116/93
Before:	Kisanga, Ramadhani and Lubuva JJA
Sourced by:	LawAfrica

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[1] Criminal law – Appeal against sentence – Factors to consider before appellate Court interferes with sentence by trial Court – Credibility of witnesses to be determined by trial Court.

Editor's Summary

The appellant was convicted of the offence of defiling a girl below the age of fourteen years, contrary to section 136(1) of the Penal Code and was sentenced to ten years' imprisonment.

He appealed against the sentence of ten years' imprisonment.

Held – Matters of credibility of the witnesses are primarily the domain of the trial Court which has the advantage of assessing the demeanour of the witnesses and evaluating the credibility of such

evidence. The Court of Appeal will not readily interfere with the decision of the trial Court on such an issue.

It is incredible and unbelievable that all the prosecution witnesses in this case could have conspired to frame the appellant. Further, the appellant tendered no evidence to show that the trial Judge's sentence was unlawful or manifestly excessive.

It is trite law that before a Court of Appeal can interfere with the trial Court's sentence, the appellate Court must be satisfied that either the sentence imposed was manifestly excessive or that the trial Court ignored to consider an important matter or circumstance which ought to be considered while passing the sentence or that the sentence imposed was wrong in principle.

In this case there is no reason for interfering with the sentence which cannot be said to be excessive or unlawful. Hence the appeal against sentence was dismissed.

No cases referred to in judgment

Judgment

Lubuva JA: Before the High Court of Tanzania, at Moshi, NM Mushi J, the appellant was convicted of the offence of defilement of a girl below the age of fourteen years contrary to section 136(1) of the Penal Code. He was sentenced to ten years' imprisonment. Initially, the appellant was charged with the offence of incest by male contrary to section 158(1) of the Penal Code as a first count and the charge of defilement contrary to section 136(1) of the Penal Code in the alternative. At the end of the trial, the appellant was convicted of the offence of defiling a girl under the age of fourteen years. He has now appealed to this Court against the sentence of ten years of imprisonment.

The facts are brief but unpalatable and are on the whole undisputed. The incident took place on 21 April 1988 at a place called Shanty town within the outskirts of the Municipality of Moshi. The victim of this unsavoury episode is one Mwamvita daughter of Rashidi (PW4) who was at the time of the incident nine years of age. At the time of the trial [1991] she had reached the age of thirteen years of age. In 1976, the appellant got married to Asia Zuberi (PW2). In 1978 again he (appellant) started living with Christina Sarwart (PW1) in a separate house from that of Asia Zuberi (PW2) (not a legal marriage). By that time, Christina Sarwart had a child of her own with another person. This is the victim of this ugly sexual incident, Mwamvita Rashidi (PW4). The appellant was therefore a foster father to Mwamvita (PW4) who was staying with her grandmother the mother of appellant in the said area of Shanty town in Moshi, On the day of incident, 21 April 1988 the appellant upon visiting his mother's house, found Mwamvita in the company of other two children – Edward (PW3) and Rashidi who was not called in at the trial to give evidence. The appellant instructed Edward (PW3) and the other child Rashidi to go out of the house to attend to some shamba work nearby. Mwamvita Rashidi was therefore left behind alone with the appellant to clean up the servant's quarter. It was during this time that the appellant sexually assaulted Mwamvita Rashidi. Edward (PW3) who was with Rashidi at a nearby shamba on hearing Mwamvita crying, rushed to see what was happening. He, (PW3) saw the appellant in the kitchen holding on to Mwamvita's mouth.

Thereafter, the matter was reported to Asia Zuberi (PW2) and Christina Sarwart (PW1) the wives of the appellant. To both (PW1) and (PW2), Mwamvita narrated in detail all that the appellant had done to her. The child victim of the incident Mwamvita (PW4) was taken to the hospital by PW1 for medical examination. In the normal manner in such cases, PF3 was issued as a basis or medical investigation. The police took up the case for investigation which finally resulted in the prosecution of the appellant who was as explained earlier, convicted and sentenced to ten years' imprisonment. At the start of the trial, Mr *Itemba*, learned counsel was assigned to defend the appellant. However, for some reason in the course of the trial the appellant showed lack of confidence in Mr *Itemba*. Consequently, another counsel Mr AM *Shayo*; learned advocate was assigned to defend the appellant throughout the trial.

The appellant's line of defence at the trial was denial of the offence. He claimed that all the witnesses particularly his wives (PW1) and (PW2) were all out to fabricate evidence in order to fix him, appellant. The trial Judge rejected this defence rightly so in our opinion. This was a case whose determination depended on the credibility and acceptance of the evidence of the witnesses. In our view, the trial Judge quite properly and thoroughly analysed the evidence of the witnesses which he accepted as truthful. As a result the appellant was convicted of the offence of defiling a girl below the age of fourteen years contrary to section 136(1) of the Penal Code.

His appeal to this Court is against sentence only. In the course of hearing the appeal, and as already indicated, the appellant persistently raised arguments against the conviction. He alleged that the witnesses particularly (PW1), (PW2) his wives had conspired to frame the case against him. Likewise, he claimed that Mwamvita, (PW4) the victim of the sexual assault and Edward (PW3) were all taught by (PW1) and (PW2) to frame up evidence against him. He insisted that there was no evidence that Mwamvita, (PW4) was sexually assaulted as no PF 3 was tendered at the trial. The appellant further asserted that he had intended to call witnesses who were not called to give evidence in support of his defence. He finally pleaded with this Court to be lenient with him as the sentence of ten years is excessive. There was credible evidence of an unusual conduct on the part of the appellant who disappeared soon after this incident as the appellant was coming from the hospital in the company of his wife Asia Zuberi, (PW2) where (PW4), Mwamvita had been taken for medical examination. According to (PW2), during the time when the appellant was in hiding, she (PW2) received a letter from the appellant in which he wrote "*Mimi naishi porini angalia watoto*".

The appellant denied to have disappeared or written such a letter. We are in agreement with the learned trial Judge that it is incomprehensible that all these witnesses particularly his wives should fabricate evidence against the appellant. However, the Court again reminded the appellant that he had been allowed to come to this Court on the question of sentence only. This being an appellate Court; matters of credibility of the witnesses are primarily the domain of the trial Court which has the advantage of assessing the demeanour of the witnesses and evaluating the credibility of such evidence. This Court will not readily interfere with the decision of the trial Court on such an issue.

For the Republic, Mrs *Sumari* learned State Attorney supported the conviction and sentence. She submitted that though this was not an appeal against

conviction but as the appellant had argued at length on conviction, she urges that the conviction was properly founded. She countered that there was abundance of credible evidence which was believed by the trial Judge. The learned State Attorney wondered, why all these witnesses, (PW1), (PW2), (PW3) and (PW4) should all conspire to frame the case of this kind against the appellant. As the appeal on the conviction was without merit, it should be dismissed in its entirety, the learned State Attorney contended. The non availability at the trial of the PF 3 regarding the medical examination of (PW4), did not in any way vitiate or weaken the prosecution case. Mrs *Sumari*, learned State Attorney further submitted. It was Mrs *Sumari*'s conclusion that at the circumstances of the case, the sentence imposed against the appellant cannot be faulted, it was lawful and not excessive for such a shameful act.

Though indeed as rightly pointed out by Mrs *Sumari*, the learned State Attorney, this was not an appeal against conviction, on the evidence on record and the persistent argument of the appeal before us by the appellant, the appeal against conviction is, in our view, without any merit. We are satisfied that there was paucity of evidence of (PW1) and (PW2), the wives of the appellant which was fully supported by the evidence of the child victim of the sexual assault, (PW4) and Edward, (PW3). We fined it highly incredible that both the wives of the appellant, (PW1) and (PW2) and the children, (PW4) and (PW3) should all conspire to fabricate evidence against him. Even granted that (PW4) was not the child of the appellant as the appellant would want this Court to believe, that in our considered view, is no reason for her, (PW4) to frame up a case of this nature against him. The record bears no evidence of bad relationship between the appellant and the two wives a version which the appellant vainly tried to canvass at the hearing of the appeal. We do not accept that. Though we could glean from the evidence that the victim child of the sexual assault (PW4) was experienced in sexual intercourse, for the reasons advanced, by the prosecution (at page 19 of the record) that the PF 3 which had been handed over to the police could not be traced, and the fact that (PW4) had been told by the appellant to take a wash; we are convinced like the learned trial Judge that Mwamvita (PW4) was sexually assaulted. Furthermore, we are also satisfied that the learned trial Judge was justified in his finding that it was the appellant who defiled Mwamvita (PW4). The conviction though not a ground of appeal to this Court, can hardly be faulted in these circumstances.

On the sentence, in the circumstances of the case, there can be no doubt that this was a serious and shameful act of sexual abuse against a child of tender age. As the learned trial Judge rightly remarked, it is an offence that calls for severe punishment. (PW4), a child of tender age must in our view have suffered traumatic psychological and mental torture at the very thought of her foster father involving himself with her in this manner. At the hearing of this appeal, the appellant advanced no reasons to show either that the sentence was unlawful or manifestly excessive. Having listened to the appellant's plea for leniency with great sympathy we see no reason to depart from the old time established principle of criminal justice in matters of sentence on appeal. That it is a trite principle that before a Court of Appeal can interfere with the trial Court's sentence, the appeal court must be satisfied that either the sentence imposed was manifestly excessive or that the trial Court failed to consider an important matter or circumstance which ought to have been considered while passing the sentence or that the sentence imposed was wrong in principle. In this appeal,

we are with respect in agreement with the contention of the learned State Attorney, that all the relevant circumstances of the case were duly considered by the learned trial Judge when deciding on the sentence. We see no reason for interfering with the sentence which, in our view cannot be said to be excessive or unlawful.

For these reasons the appeal against sentence is accordingly dismissed.

For the appellant:
Mr Itemba

For the Republic:
Mrs Sumari, State Attorney

Kariuki v Attorney-General
[1990–1994] 1 EA 156 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 April 1992
Case Number:	70/91
Before:	Gicheru, Kwach and Cockar JJA
Sourced by:	LawAfrica

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[1] Discretion – Attorney-General – Admission of foreign advocate – Discretion to be exercised judiciously.

[2] Judicial review – Application for leave to apply for orders of mandamus and certiorari *– Merits of the matter not considered.*

Editor's Summary

The appellant was arrested and charged with treason before the Chief Magistrate's Court at Nairobi. This offence carried a mandatory death sentence with it.

The appellant then applied to the Attorney-General, under the provisions of section 11(1) of the Advocates Act (Act number 18 of 1989), for permission for a foreign advocate to appear as his defence attorney in the matter. The Attorney-General, using his discretion provided under the Act, refused to grant permission.

The appellant then applied for leave to apply for orders of *certiorari* and *mandamus* but the application was dismissed by the High Court as having no merits. He appealed.

Held – The exercise of discretion should not depart from the rules of natural justice. Discretion must be exercised judicially. *Attorney-General v Ryan* [1980] AC 718 followed; *David Oloo Onyango v Attorney-General* civil appeal number 152 of 1986 considered; *Fairmount Investment Ltd v Secretary of State for the Environment* [1976] 1 WLR 1255 considered.

In an application for leave to apply for orders of *certiorari* and *mandamus*, the applicant only

needs to demonstrate a *prima facie* case without going to the merits of his case. *Inland Revenue Commissioners v National Federation of Self Employed and Small business Limited* [1981] 2 All ER 93 applied.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

David Oloo Onyango v Attorney-General civil appeal number 152 of 1936 (UR) – **C**

United Kingdom

Attorney-General v Ryan [1980] AC 718 – **F**

Fairmount Investments Limited v Secretary of State for the Environment [1976] 1 WLR 1255 – **C**

Council of Civil Service Unions and others v Minister for Civil Service [1984] All ER 935

Inland Revenue Commissioners v National Federation of Self-Employed and Small Business Limited [1981] All ER 93 – **AP**

Judgment

Gicheru, Kwach and Cockar JJA: Section 11(1) of the Advocates Act 18 of 1989, hereinafter called the Act, is in the following terms:

> "(1) The Attorney-General may, in his absolute discretion, admit to practise as an advocate, for the purpose of any specified suit or matter in or in regard to which the person so admitted has been instructed by the Attorney-General or an advocate, a practitioner who is entitled to appear before superior Courts of a Commonwealth country, if such person has come or intends to come to Kenya for the purpose of appearing, acting advising in that suit or matter and is not disqualified or suspended by virtue of this Act and a person so admitted (hereinafter in this section referred to as a foreign advocate) shall not, for the purpose of that suit or matter, be deemed to be an unqualified person."

Thus, before the Attorney-General can exercise his discretion under this subsection, the foreign advocate must be entitled to appear before superior Courts of a Commonwealth country; he must not be disqualified or suspended by virtue of the Act; there must be in existence a specified suit or matter in or in regard to which he has been instructed by the Attorney-General or an advocate; and, he must have come or intends to come to Kenya for the purpose of appearing, acting or advising in that suit or matter. When the application of the subsection has been invoked by a person interested and the foregoing factors have been established, the Attorney-General must proceed to exercise his discretion. Once this obligation is discharged, the Act is mute as to what redress is available to a person aggrieved in the exercise of that discretion.

On 8 October 1990, Mirugi Kariuki, the appellant, was arrested at his home in Nakuru. On 19 October 1990 he was charged before the Chief Magistrate's Court at Nairobi with the offence of treason contrary to section 40 of the Penal Code. The only penalty for that offence is death. On 11 December 1990, the appellant's advocates, *Martha Njoka Company* wrote a letter to the Attorney-General seeking permission for Michael Mansfield, Esquire, QC to appear in

the Chief Magistrate's Court as a defence attorney for the appellant. That letter which was signed by Martha *Njoka*, advocate and copied to Mrs Mirugi Kariuki, Nakuru stated:

> "Duly instructed by Mrs Susan Mirugi Kariuki, I hereby apply for permission under section 10 of the Advocates Act for Michael Mansfield, QC of Tanks Court, Cursitor Street, London EC 4A EJA, United Kingdom to appear as my senior for Mr Mirugi Kariuki in the Chief Magistrate's Court criminal case number 5167 of 1990 where the said Mr Mirugi Kariuki, advocate is charged jointly with others with the offence of Treason.
>
> I shall be grateful if you could kindly give your attention to this matter as expeditiously as possible to enable (me) to communicate with Mr Mansfield."

Section 10 of the Advocates Act referred to in this letter was the relevant section in a matter such as is contained in the said letter in the now repealed Chapter 16 of the Laws of Kenya. The relevant section now and as at the date of the letter aforementioned is section 11 of the Act.

By a letter dated 19 December 1990 addressed to Ms Martha *Njoka* of *Martha Njoka and Company Advocates*, Nairobi the Attorney-General responded to this matter as follows:

> "I acknowledge receipt of your letter reference number MN/K/C/17/90 dated 11 December 1990 applying for admission of a foreign advocate namely Mr Michael Mansfield QC to lead you in the defence of your client.
>
> I have considered your application and I find nothing to justify my admitting a foreign advocate for the purpose. Accordingly, your application is hereby refused."

Consequent to this letter, the appellant, on 8 February 1991, after giving the requisite notice to the Registrar pursuant to Order LIII, rule 1(3) of the Civil Procedure Rules, applied to the High Court for leave to apply for orders of *certiorari* and *mandamus* as is required by subrules 1 and 2 of the aforesaid rule.

The appellant's chief complaints were that he was not notified of the intended refusal to admit a foreign advocate to appear for him in the Nairobi Chief Magistrate's Court criminal case number 5167 of 1990; he was not given notice to show cause why his request for a foreign advocate should not be granted, the Attorney-General did not act fairly; and on the whole, the exercise of discretion by the Attorney-General was in breach of the rules of natural justice.

Dugdale J in his ruling in this matter had this to say:

> "In her submissions learned counsel alleged that the Attorney-General's refusal was contrary to law and in breach of natural justice; that he failed to give the applicant an opportunity to be heard or make representations upon the refusal and that the applicant was given no opportunity to show cause why (the request for) a foreign advocate should not be granted."

There is no basis in fact or law for these allegations which are rejected by the Court. The learned Judge then proceeded:

> "The Court has noted that learned counsel has made no reference whatsoever, to the absolute discretion" involved, either in her address or in the pleadings."

After concluding that on the face value the appellant's application did not justify the grant of the orders for which leave to apply was sought, the learned Judge dismissed the same.

Appellant appeals to this Court and has put forward 18 grounds of appeal of which grounds one, two and 19 are pertinent. These are:

> "1. The learned Judge erred in law and in fact in failing to appreciate that the application for leave is only a preliminary step intended to invoke the jurisdiction of the Court by compliance with the formal rules and is not *stricto sensu*, the time for going into the full merits of the substantive application for orders of *certiorari* and *mandamus*.
>
> 2. The learned Judge erred in law and in fact in dealing with the application for leave as if it were the application for orders for *certiorari* and *mandamus* and dealing with the merits thereof.
>
> 19. The learned Judge erred in law and in fact by failing to find that the Attorney-General's discretion under section 11(1) of the Advocates Act must be exercised judicially and hence subject to judicial review."

According to counsel for the appellant, Ms Martha *Njoka*, the High Court did not apply the proper criteria when dealing with the appellant's application for leave to apply for orders of *certiorari* and *mandamus*. Indeed, to her, that Court went into the merits of the appellant's intended application for the aforesaid orders. This was erroneous. Her further argument is that the appellant alleged that the rules of natural justice were overlooked in that the Attorney-General did not accord him an opportunity to be heard. He was not given a chance to explain his case. Had this happened, he may have been able to paint out why Mansfield Esquire, QC should have been admitted as a foreign advocate to appear for him in the Criminal Case mentioned above in terms of section 11 of the Act.

The argument advanced by counsel for the respondent, Mr *Oyalo* is that leave to apply for the orders of *certiorari* and *mandamus* is not a matter of course. In a matter such as was the subject of the application for leave to apply for the orders aforementioned, the Attorney-General's discretion was unfettered. In the exercise of that discretion, he could not be faulted. To counsel therefore, the trial Judge was right to refuse the leave sought by the appellant.

There is no doubt that the learned Judge was alive to the appellant's principal complaints. He set them out in his ruling as can be seen above, but rejected them as having no basis in fact or law. It is not clear how he arrived at this conclusion for at that stage their merit was not an issue. In truth, once the appellant alleged a breach of the rules of natural justice, the learned Judge should have paused there or clearly that was a point fit for further investigation. Such investigation could only have been possible on a full basis with all such evidence as is necessary and the facts and all such argument as is necessary on law. Nothing should be done in the name of justice which would strike a reasonable man as unjust. In *David Oloo Onyango v The Attorney-General* civil appeal number 152 of 1986 (UR) Platt JA said:

> "It is clear that the English Courts have taken the view that the Courts are not to abdicate jurisdiction merely because the proceedings of an administrative nature or of an internal disciplinary character. It is a lead which I think the Courts in Kenya would do well to follow in carrying out their task of balancing the interests of the Executive and the Citizen. It is to everyone's advantage if the Executive exercises its discretion in a manner which is fair to both sides, and is seen to be fair."

In the same case, Nyarangi, JA had this to say:

> "There is a presumption in the interpretation of statutes that rules of natural justice will apply."

In *Fairmount Investments Limited v Secretary of State for the Environment* [1976] 1 WLR 1255 at 1263 letter C, D and E, Lord Russel of Killowen said:

> "There was a certain amount of discussion before your Lordships on the significance and applicability of the phrase 'may quash' and on the difference between the phrase 'not within the powers of this Act' and 'the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with'. In my view the instant appeal does not require discussion of these points: for I am satisfied that if the true conclusion is that the course which events followed resulted in that degree of unfairness to Fairmount that is commonly referred to as a departure from the principles of natural justice it may equally be said that the order is not within the powers of the Act and that a requirement of the Act has not been complied with. For it is to be implied, unless the contrary appears that Parliament does not authorise by the Act the exercise of powers in breach of the principles of natural justice, and that Parliament does in the by the Act require, in the particular procedures, compliance with those principles."

The foregoing is a powerful statement in regard to a departure of the principles of natural justice. As pointed out earlier in this judgment, the Act is silent as to what remedy is available to a person affected in the exercise of discretion by the Attorney-General under section 11(1). It is ever, quite clear that it is not within the powers of the Act to depart from the principles of natural justice when discretion is being exercised under this subsection.

Lord Diplock, delivering the judgment of the Privy Council in the case of *Attorney-General v Ryan* [1980] AC 718 at 730 letter E, observed:

> "It has long been settled law that a decision affecting the legal right of an individual which is arrived at by a procedure which offends against the principles of natural justice is outside the jurisdiction of the decision-making authority."

The mere fact that the exercise of discretion by the decision-making authority affects the legal rights or interests of some person makes it judicial and therefore subject to the procedure required by natural justice. Thus, that discretion must be exercised judicially, that is to say, fairly. The fact that the exercise of discretion is administrative does not make it any the less judicial for this purpose see *HWR Wade on Administrative Law* (5ed) at 463.

In Council of *Civil Service Unions and others v Minister for Civil Service* [1984] 3 All ER 935 at 948E;J Lord Scarman said:

> I believe that the law relating to judicial review has now reached the stage where it can be said with confidence that, if the subject matter in respect of which prerogative power is exercised is justiciable, that is to say if it is a matter on which the Court can adjudicate, the exercise of the power is subject to review in accordance with the principles developed in respect of the review of the exercise of statutory power.
>
> The controlling factor in determining whether the exercise of prerogative power is subject to judicial review is not its source but its subject matter."

It is not the absoluteness of the discretion nor the authority exercises it that matter but whether in its exercise, some person's legal rights or interests have been affected. This makes the exercise of such discretion justiciable and therefore subject to judicial review. In the instant appeal, it is of no consequence that the Attorney-General has absolute discretion under section 11(1) of the Act if

in its exercise the appellant's legal rights or interests were affected. The appellant's complaint in the High Court was that this was so and for that reason he sought leave of that court to have it investigated.

Lord Scarman in the case of Inland Revenue Commissioners v National Federation of Self-Employed and Small Business Limited [1981] 2 All ER 93 at 113G and H had this to say:

> "It is wrong in law, as I understand the cases, for the Court to attempt an assessment of the sufficiency of an applicant's interest without regard to the matter of his complaint. If he fails to show, when he applies for leave, a *prima facie* case, or reasonable grounds for believing that there has been a failure of public duty, the Court would be in error if it granted leave. The curb represented by the need for an applicant to show, when he seeks leave to apply, that he has a case is an essential protection against abuse of legal process. It enables the Court to prevent abuse by busybodies, cranks and other mischief makers. I do not see any other purpose served by the requirements for leave."

In this appeal, the issue is whether the appellant in his application for leave to apply for orders of *certiorari* and *mandamus* demonstrated to the High Court a *prima facie* case for the grant of those orders. Clearly, once breach of the rules of natural justice was alleged, the exercise of discretion by the Attorney-General under section 11(1) of the Act was brought into question. Without a rebuttal to this allegation, the appellant certainly disclosed a *prima facie* case. For that, he should have been granted leave to apply for the orders sought.

Section 3(2) of the Appellate Jurisdiction Act (Chapter 9) of the Laws of Kenya provides that:

> "3 (2) For all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred by this Act, the Court of Appeal shall have, in addition to any other power, authority and jurisdiction conferred by this Act, the power, authority and jurisdiction vested in the High Court."

In the present appeal, the appellant has asked this Court to set aside the order of the High Court dismissing his application for leave to apply for the writs of *certiorari* and *mandamus* to grant him leave to apply for these writs, and costs of this appeal.

From what we have endeavoured to set out above, we are in no doubt that the appellant ought to have been granted leave to apply for orders of *certiorari* and *mandamus*. The dismissal of his application in this regard by the High Court was without sound legal basis. Accordingly, we allow this appeal, set aside the order of the High Court dismissing the appellant's application as is mentioned above; and pursuant to the provisions of section 3(2) of the Appellate Jurisdiction Act (*supra*) order that the appellant be granted and is hereby granted leave to apply for the writs of *certiorari* and *mandamus*. He will have the costs of the appeal.

Those then are the orders of this Court.

For the appellant:
Ms M Njoka instructed by *Martha Njoka Company*

For the respondent:
Mr Oyalo

Kasozi and others v People's Transport Service
[1990–1994] 1 EA 162 (SCU)

Division: Supreme Court of Uganda at Mengo

Date of judgment:	28 February 1994
Case Number:	27/93
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Compromise on suit – Judge's power to interfere with consent between parties – Mode of proving special damages.

Editor's Summary

The appellants were passengers in the respondent's bus when it was involved in an accident with another vehicle. They then sued for damages.

However, at the close of their evidence, their advocate and the respondent's advocates recorded a consent judgment putting liability upon the respondent. The judge however ignored the consent and entered judgment against the appellants who then appealed.

Held – A Judge may intervene when a compromise is put forward to him. However, there is a limit to the Court's intervention and it is generally not for the Court to impose its idea of what is best for the parties. The Court must only be sure that the parties entered into the agreement of compromise and that the compromise was what they thought best suited themselves. *Padamshi v Hirji* [1952] 19 EACA 15 and *Neale v Gordon Lennox* [1902] AC 465 distinguished.

If the learned Judge had decided to intervene, rightly or wrongly, he should have said so at once and rejected the compromise. Having apparently accepted the compromise, the parties could only have expected that judgment for the appellants would have been entered and the damages assessed.

Special damages must be proved. If one has no documentary evidence, one must call the persons concerned as witnesses or the parties can admit special damages.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Padamshi v Harji [1952] 19 EACA 15 – **D**

United Kingdom

Barton v Fincham [1921] 2 KB 291 (CA)

Neale v Cordon Lennox [1902] AC 465 – **D**

Judgment

Manyindo DCJ, Odoki and Platt JJSC: The appeal in this case, according to the first ground thereof, concerns the question whether a trial Judge, can ignore an agreement of the parties compromising part of the suit, and asking for damages to be assessed on the basis of the compromise. The three appellants had sued the Peoples' Transport Service for damages arising out of the motor vehicle accident, in which the appellants were passengers in Peoples' bus registered number UPM 117 which was involved in an accident with another vehicle. It seems that the collision occurred at a corner on the road between Mubende and Fort Portal, and the three appellants alleged that they suffered injuries. At the close of the evidence of the third appellant Dranda, Mr *Mugabi*, counsel for the appellants at the trial as well as on this appeal, made the following observations to the Court:

> "In view of the evidence which has been adduced and in respect of the witnesses, we have agreed with my colleague that the defendant admits liability up to seventy five percent and that we tender the medical reports as exhibits and the plaintiff closes his case, and I will call no witnesses and we leave the case to you to assess the quantum of damages." (*sic*)

Mr *Mugenyi* for the Peoples' Transport Service is recorded as saying; "I am agreeable with the submissions of Mr *Mugabi*".

The effect of that compromise was that the first five issues leading to a decision on liability had been answered. Only the sixth issue leading to the damages remained. The learned Judge made no observations as to the compromise. He went on to listen to the counsel on each side submitting on damages. He then adjourned to give judgment. However, to the surprise of counsel for the appellants, judgment was given against the appellants on the grounds that all the evidence recorded could not just be excluded and indeed, the appellants were trespassers in the defendant's but and therefore, not entitled to any compensation or damages. If, on the other hand, the judge was wrong about that, he made various orders for damages. The second ground of appeal is that they were too low.

Counsel agreed that the appeal should be heard on written submissions. For the appellants Mr *Mugabi* takes the point that once the compromise was recorded and accepted, the Court was unable to deal with the question of liability. His duty was to decide the amount of damages for the respondent. Mr *Mugenyi* contended otherwise on the basis of *Padamshi v Harji* [1952] 19 EACA 15 where the learned Vice President quoted from a passage of Atkin LJ, in *Barton v Fincham* [1921] 2 KB 291 (CA), at 299 to the effect that:

> "If the parties before the Court admit that one of the events has happened which gives the Court jurisdiction, and there is no reason to doubt the *bona fides* of the admission, the Court is under no obligation to make further inquiry as to the question of fact; but apart from such admission the Court cannot give effect to an agreement, whether by way of compromise or otherwise, inconsistent with the provisions of the Act."

Mr *Mugenyi* therefrom contended that the question was one of *bona fides*, and consequently if the trial Judge in this case doubted the *bona fides* of the compromise he was within his rights to intervene.

As a pure statement of principle we would accept Mr *Mugenyi*'s submission that a judge may interview when a compromise is put forward to him, but that does not entirely describe the whole position. Reference may be made to *Cordery on Solicitors* (7ed) 1981 at 89 to the following effect:

> "4. To Compromise:
>
> A Solicitor is authorised to compromise proceedings subject to the following reservations:
>
> (iii) In any case in which as part of the terms of compromise the Court's intervention to order that something shall or shall not be done is required, the Court may notwithstanding anything which has been said or done by the counsel or solicitors of the parties, inquire into the circumstances and withhold or grant its intervention as it may deem just."

The case cited in support *Neale v Cordon Lennox* [1902] AC 465 (the other one is not available) concerned the case of counsel exceeding his authority. The Court did not follow the compromise.

It follows that the Court may intervene if, for instance, the authority of one of the advocates is withheld by the client to enter into the compromise. It may be that the client himself objects in Court, when he discovers what has happened. It would obviously be invidious for the Court to make any order arising out of that kind of misunderstanding. But there is clearly a limit to the Court's intervention. Suppose the Court did not find that the Court itself, if a party, would have entered into such a compromise, or suppose that the Court thought that another course would have been more beneficial to the parties, would the Court be entitled to intervene? It must be understood that the Court is not here dealing with such cases as are mentioned in *Cordery* (*supra*) such as minors or wards of Court or beneficiaries under a trust and other disputes arising out of a fiduciary nature when the Court must sanction the compromise. What the Court is here dealing with is a commercial matter, arising out of passengers suing the Transport Company owning the bus in which the passengers were travelling. In such matters, if the Court is satisfied that the liability of the transport Company has been admitted, and that all that the Court is required to do is to assess damages, if any, in general the Court should accept the admission of liability and assess the damages. It is not generally for the Court to impose its idea of what is best for the parties. On the one had, the early despatch of litigation may be of great benefit to the parties, and on the other had, the Court may well not be aware of all the circumstances of the parties, which, if known, would incline the Court to accept the compromise. The one matter of which the Court must be sure, is that the parties entered into the agreement of compromise, and that that compromise was what they thought best suited themselves. It is therefore wise for the Court, to test the acceptance of the compromise, if that is possible, and there are many authorities relating to the precautions which should be taken, when a consent judgment is entered.

It is therefore, of interest how the learned Judge came to reject the compromise and dismiss the suit. Mr *Mugenyi*, in an interesting elliptical phrase, submitted that if the learned Judge doubted the *bona fides* of the compromise then he has power to make further inquiry and look at the whole case.

The learned Judge's views must now be revealed:

> "After the close of the plaintiff's case the defence called no evidence to rebut the plaintiff's allegation. Mr *Mugenyi* informed the Court that they had agreed with his

> colleagues that the defendant admits liability to the extent of 75% and they tender in evidence the medical reports as exhibits by consent, and that the Court proceeds to assess the quantum of damages. I must point out that so long as counsel acting for the party in a case and his instructions has not been terminated, he had full control over the conduct of the trial and his apparent authority to compromise all matters connected with the action. (Authority quoted). From what has transpired above I am of the view that though Mr *Mugenyi* had admitted liability on behalf of the defendant to the tune of 75% still I had to go ahead and consider the issues as framed in the light of the evidence on record. The Court could not have ignored all that evidence on record and straight away proceed to consider the quantum of damages. Justice required that I should evaluate the evidence in order to satisfy myself that the claim had been proved on a balance of probabilities."

In general the learned Judge thought that his duty lay in examining the evidence. That is in principle exactly what he ought not to do, after a compromise has been put forward. In practice that is exactly what he could not do, because he had not recorded all the evidence. If the learned Judge had decided to intervene rightly or wrongly, in principle she should have said so at once, and rejected the compromise. The appellants might then have called further evidence to support their case, and the respondent could have offered its defence. Having apparently, accepted the compromise, the parties could only have expected that judgment for the appellants would have been entered and the damages assessed. It was not right to take them by surprise and judge the matter on part of the evidence, without intervening to reject the compromise.

Mr *Mugenyi*, however, suggests that the learned Judge doubted the compromise. That is a matter of some amusement. First of all, the doubt, if any, would settle upon the shoulders of Mr *Mugenyi*. Did he or did he not have instructions to enter into the compromise? It has not been suggested that by mistake, misunderstanding or coercion, (*inter alia*) Mr *Mugenyi* entered into the compromise, or that he had no instructions to do so. The appellants have not complained that Mr *Mugabi* had no instructions. The learned Judge seems to suggest that he expected Mr *Mugenyi* to have control of the proceedings, and to have authority to enter into the compromise. There does not seem to have been any ground or want of authority, or other vitiating circumstances as explained above, to cast doubt on the *bona fides* of the compromise.

The learned Judge went through such evidence as had been presented to him, and of course had a difficult time. He felt it was "safer" to find that the accident had happened as the appellants described it, because there had been no defence evidence. Secondly, he found again that as there was no defence, that the plaintiff/appellants had been involved in the accidents. Then on the fourth issue the learned Judge did not take that view. He held that as the plaintiffs did not produce their tickets, they were not farepaying passengers and therefore were trespassers. In the judge's view, it is not uncommon for people "to fluke and travel on some vehicle unnoticed without paying fares". The first appellant said that he had paid his fare. The other two said that they were passengers. No cross-examination on this point was put to any of the plaintiffs and it was not an issue raised in the written statement of defence. One might have expected the learned Judge to say that since there had been no defence on the point, the plaintiffs had proved their case.

It is clear that the learned Judge's finding on this point seems unreasonable on the evidence and issues raised. But it is even more unreasonable when the judge did not hear the full case. This type of doubt can hardly be said to show

that the compromise was entered into *mala fides*. It was really a case of judge interposing entirely his own view over the wishes of the parties, on an issue which they had not raised in any way. That is not a ground for doubting the *bona fides* of the agreement. It was certainly a matter to be put to the parties, if the judge felt so inclined, at some stage during the evidence, but not after the compromise had been reached, and no further evidence would be called.

There was further trouble on the law. It is not at all clear how the appellants could be trespassers as they were sitting in obvious places in the bus. Further evidence would have been needed to show how they had entered the bus and whether the driver or his conductor knew they were there. If they had been allowed to enter the bus with or without tickets, a duty of care would have existed, although there might have been a case of *volenti non fit injuria*. The evidence was not sufficient to deal with these precepts.

It is clear that the first ground of appeal must succeed. The decree dismissing the action must be set aside and part judgment entered for the appellants on liability. Damages should be assessed on the basis of 75% liability.

The learned Judge gave his assessment of the damages. We do not observe however, that he reduced his assessment by 75%.

In principle we agree that special damages must be proved. They were not. It is no use saying that people cannot keep receipts and so forth. If one has no documentary evidence, one must call the persons concerned as witnesses or the parties can admit special damages. What Mr *Mugabi* thinks is obviously reasonable, is his opinion. Unfortunately, opinions often differ on these matters. The learned Judge was right, in the absence of agreement on these matters between the parties, to exclude special damages.

The medical evidence had its faults as the learned Judge pointed out. We allow his assessments to stand less one quarter, to observe the agreement on 75% liability.

In conclusion, we substitute judgment for the appellants and general damages assessed at UShs75 000 for the first appellant, UShs82 500 for the second appellant and UShs22 500 for the third appellant. We award the costs both here and below to the appellants.

For the appellants:
Mr Mugabi

For the respondent:
Mr Mugenyi

Katemi v Republic
[1990–1994] 1 EA 166 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	12 October 1992
Case Number:	65/92
Before:	Omar, Ramadhani and Mnzavas JJA
Sourced by:	LawAfrica

[1] Criminal law – Defence of provocation – Factors to consider – Standard of proof required – Effect of omission by Judge to consider defence of provocation – Doubt in efficacy of defence of provocation to be resolved in favour of the accused.

Editor's Summary

This was an appeal against conviction on a murder charge. The appellant argued that he had acted out of provocation by the deceased. In the alternative, the appellant argued that he ought to have been released as conditions for his proper identification as the killer of the deceased were allegedly lacking.

Held – The appellant was apparently provoked by the receipt of a court summons from the deceased after the two had been reconciled and he had paid TShs30,000 to ostensibly settle their dispute. The failure by the trial Judge to consider the possibility of provocation on the appellant by the deceased's behaviour was wrong (*Chacha s/o Wambura v R* (1953) 20 EACA 339 applied).

Facts of provocation need only be proved by reasonable probability and not strictly (*Festo Shirabu Musungu v R* (1955) 22 EACA 454 followed).

The omission by the trial Judge to consider the defence of provocation raises doubt whether an ordinary person of the community to which the appellant lived would not have been provoked by the deceased's behaviour. This doubt should be resolved in favour of the appellant.

Appellant only found guilty of offence of manslaughter instead of murder and sentenced of five years' imprisonment in place of the death sentence.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Chacha s/o Wambura v Republic (1953) 20 EACA 339 – **AP**

Festo Shirabu Musungu v Republic (1955) 22 EACA 454 – **F**

Tuwamoi v Uganda [1967] EA 9

Judgment

Mnzavas JA: In this appeal the appellant was charged with and convicted of murder clause 196 of the Penal Code and sentenced to death. Dissatisfied with the finding and the sentence of the High Court, Moshi J, he is appealing to this Court.

Arguing the appeal on behalf of the appellant Mr *Kahangwa*, learned defence counsel submitted that the appellant killed the deceased because of provocation offered to him by the deceased.

In the alternative, but without prejudice to the defence of provocation, it was Mr *Kahangwa*'s submission that because one of the assessors was of the opinion that conditions for proper identification of the appellant as the person who fatally attacked the deceased with a panga on the material night was lacking, the trial Court should have resolved the doubt in the favour of the appellant and find him not guilty.

The Court was invited to allow the appeal and acquit the appellant. In rebuttal Mr *Muna*, learned State Attorney, supported the conviction. The learned counsel submitted that PW1, daughter of the deceased, had identified the appellant through light of a torch, one Silvester, shone in the room. Mr *Muna*

was also of the view that even if the question of identification of the appellant was resolved in his favour his confession to the justice of the peace implicated him with the murder of the deceased. It was learned State Attorney's submission that the trial Court was right in coming to the conclusion that appellant's confession to the justice of the peace was free and voluntary. Mr *Muna* argued that on the evidence tendered in the lower Court the defence of provocation was not available to the appellant.

In this case the evidence that tended to connect the appellant with the death of the deceased is the testimony of Kweji Katwale, (PW1), who testified that she saw the appellant through a torch light as he was mercilessly outing the deceased with a *panga*.

One of the assesor did not however believe that the witness, (PW1), could have properly identified the appellant as the killer notwithstanding the aid of a torch, given that it was a dark night.

The other evidence which tended to implicate the appellant with the death of the deceased was appellant's extra-judicial statement which apparently amounted to a confession. He however in his defence in Court repudiated part of the statement which was most incriminating. This was his statement that he had visited deceased's house at about 1am and attacked the deceased, deceased's wife and one of his children with a *panga*.

The learned trial Judge examined the confession in great detail and on the basis of the decision in *Tuwamoi v Uganda* [1967] EA 9, came to the conclusion that appellant's confession – exhibit P3 was given freely and voluntarily, and that it could not but be true, with respect to the learned trial Judge we have no quarrel with the finding that appellant's confession could not have been anything but true given the enmity between the deceased and the appellant based on belief of witchcraft and bearing in mind that at the material time the appellant was facing a charge of threats to murder in a primary court where the deceased was the complainant.

Our only concern is whether appellant's confession read as a whole afforded him a defence of provocation.

We hereby quote in extensor his confession to the justice of the peace:

> "*Maelezo Yangu Mafupi"*
>
> *"Tulikuwa na kesi mahakama ya mwanzo kabla na marehemu Katwale Sahani ya kutukanana kwenye pombe niliwekwa lock-up, baadaye siku hiyo nilipata mdhamini na kupewa tarehe ya kurudi, kabla ya tarehe yetu marehemu alinishitaki sungusungu nikadaiwa nijieleze. Nilijibu kuwa kesi yangu iko mahakamani. Nilitolewa nje ili wajadili. baadaye niliitwa na kuelezwa napewa viboko kumi na sita na* TShs20 000*, nilikataa kupigwa kuwa wataniua, hivyo nililipa* TShs10 000 *ili nisipigwe, pia nililipa* TShs20 000*, jumla* TShs30 000*. Baadaye niliuliza Kama yamekwisha ndipo marehemu alikubali imekwisha ndipo tukaondoka. nilienda mahakama siku moja kabla ya siku yetu. Sikukuta mtu, kesho yake sikwenda nikawa na safari. Kurudi nilikuta kuitwa shaurini ndipo nilikasirika kuona watoto wangu wanalala njaa na bado marehemu anaendeleza kesi na fedha zangu zote nimemalizia kwake. Nilienda kwake kupiga hodi kama saa saba. Marehemu mkewe na watoto wake wawili walitoka nje. Nilianza kuwakata marehemu mkewe na mtoto wao mmoja kwa panga. Baadaye nilikimbia na kulitupa panga mtoni simiyu nikarudi nyumbani.Lilipopigwa yowe nilienda kujificha kijiji cha Nyamigamba badala ya kijiji changu cha Chandulu. Ndipo baadaye nilitafutwa na kukamatwa. Haya ndiyo maelezo yangu*."

From our scrutiny of this confession its gist is that the appellant lost his temper and was provoked when he received a Court summons about the case between

him and the deceased after Sungusungu had reconciled them and after he was made to cough up a total of TShs30 000 and the deceased had said that the quarrel between them had ended.

He was pained to see that his family had nothing to eat as he had paid all the money he had in order to end the quarrel between him and the deceased but the deceased had, it would appear, taken him for a ride.

Apparently neither in his judgment nor in his summing up to a gentleman assessors did the learned trial Judge mention the possibility that the appellant may have been provoked by the deceased's behaviour. Had he taken this possibility into account he would no doubt have put to the assessor the question whether deceased's behaviour could have provoked an ordinary person of the community to which the appellant belonged.

As it was held in the case of *Chacha s/o Wambura v Republic* (1953) 20 EACA 339:

> "The question of provocation is ordinarily one of fact and it is only in the clearest cases that it should be withdrawn from consideration on that basis. All elements of provocation should be considered together in assessing their effect."

The Eastern Africa Court of Appeal had also this to say in *Festo Shirabu Musungu v Republic* (1955) 22 EACA 454:

> "Facts relied on as provocations do not have to be "strictly proved". It is only necessary that there should be such evidence as to raise reasonable probability that they exist. If this is the effect of the evidence, the onus lying upon the prosecution is not discharged and murder is not proved."

The question as to whether the appellant went to deceased's house and attacked him immediately after he came to know of the Court summons was not gone into by the trial Court and we are therefore unable to say whether or not the killing was done in the heat of passion caused by sudden provocation.

We also not in a position to say what would have been the opinion of the assessors on the question of provocation if the facts had been put to them.

This omission does, in our considered opinion, raise doubt as to whether an ordinary person of the community to which the appellant lived would not have been provoked by deceased's outlandish behaviour. The doubt is resolved in favour of the appellant and we accordingly find him not guilty of murder but guilty of the lesser offence manslaughter clause 195 of the Penal Code.

The conviction for murder is quashed and the sentence of death is hereby set aside.

Taking into account that the appellant has been in remand since 1989 and his not very young age, feel that a sentence of five years' imprisonment commencing from the day he was convicted – (11 March 1992) will meet the justice of the case. The appellant is so sentenced.

For the appellant:
Mr Kahangwa

For the respondent:
Mr Muna, State Attorney

Kay Jay Rubber Products Ltd v Development Finance Company (K) Ltd (Keith Law Grant Sinclair)

[1990–1994] 1 EA 170 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	29 and 30 January 1991
Case Number:	[1989] 2 KAR; 55/89
Before:	Hancox CJ, Masime and Cockar JJA
Sourced by:	LawAfrica

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[1] Equitable estoppel – Waiver – Default by company in repaying instalments due under loan agreement – Appointment of receiver under concurrent debenture – Rescheduling of instalments by lender – Further default by company – Whether agreement required notice of intention before appointment of receiver – Whether forbearance by lender in enforcing instalments and rescheduling debt constituted a waiver of rights – Whether lender thereby estopped from appointing a receiver.

Editor's Summary

By a loan agreement dated 26 August 1981, the respondents Development Finance Company (K) Ltd (DFCK) lent KShs 7 million to the appellants Kay Jay Rubber Products Ltd (KJL) for the purpose of purchasing an acre of industrial land, the development of two factories thereon and the installation of machinery. The loan was to be repaid, as to interest, by half yearly instalments, commencing on 31 December 1981, and, as to capital by 14 equal instalments of KShs 0.5 million commencing 31 December 1983. A simultaneously executed debenture empowered DFCK to appoint a receiver of KJL's assets in the event of a breach, *inter alia*, of the conditions of repayment.

KJL experienced difficulties in commencing production of its goods, and no capital or interest was repaid until the first quarter of 1987 when a total of KShs 3.7 million representing interest was paid to DFCK, as a result of which DFCK rescheduled the repayments as to interest oat KShs 99 000 per month commencing 31 July 1987, and as to capital by 60 monthly instalments of KShs 18 200 starting on 31 July 1988.

None of these rescheduled repayments were made by KJL and on 19 August 1988, DFCK appointed the second respondent as the receiver and manager of DFCK's property and assets, and despatched a letter of the same stating that as KJL had failed to repay the principal and interest, the security constituted by the debenture had become enforceable and that they were appointing a receiver accordingly. There was a dispute as to whether the letter preceded the receiver taking possession of KJL's property. KJL then filed suit against DFCK claiming a declaration that the appointment of the second respondent was invalid and, *inter alia*, an injunction to restrain him from so acting and trespassing on their premises.

Simultaneously they applied for a temporary injunction against both respondents in similar terms, but this was dismissed by Githinji J who applied the criteria laid down in *Giella v Cassman and Company Ltd* [1973] EA 358 and, *inter alia* held that no prior written demand was necessary before the appointment of a receiver.

On appeal by the appellants they contended that under the loan agreement they were entitled to a notice demanding repayment of the loan before the enforcement of the security by appointing a receiver, secondly, that the Judge misinterpreted the effect of the written and oral exchanges between the parties which amounted to a waiver by DFCK of the respective defaults in the repayments and they were therefore estopped from applying the enforcement provisions of the debenture; and, thirdly, that the Judge had effectively determined the issues in the main suit on an interlocutory application.

Held – The plain meaning of the relevant clauses in the loan agreement and in the debenture was that once DFCK had declared the principal amount to be due, as it did by the letter of 19 August 1988, the loan became due and payable immediately and without demand.

KJL was not entitled under the terms of the loan agreement or the debenture to a notice demanding repayment without a specified time before the security was enforced. Accordingly, DFCK was entitled to install the second respondent as receiver and manager under the debenture.

There never was an express or an implied representation that DFCK would not appoint a receiver. The forbearance on the part of DFCK, and in particular the rescheduling arrangements, did not amount to a waiver of their rights under the loan agreement or under the debenture, nor did these arrangements give rise to an equitable estoppel in favour of KJL.

Even if such an implied representation could be gathered from the correspondence and the rescheduled arrangements, that representation could only be operative, on the authority of *Central London Property Trust v High Trees House Limited* [1947] KB 130, for so long as the conditions prevailing when it was made continued to apply. Once it became clear (as it had by 30 July 1988) that KJL were not even complying with the rescheduled arrangements, those conditions had ceased to exist and so the doctrine of equitable estoppel would not apply thereafter. The Judge was therefore right, on the material before him, to dismiss the application.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Giella v Cassman Brown and Company Limited [1973] EA 358

United Kingdom

Bank of Baroda v Panesar [1986] 3 All ER 751

Bentley Stevens v Jones [1974] 2 All ER 653

Central London Property Trust Limited v High Trees House Limited [1947] KB 130

Lloyds Bank Limited v Margolis [1954] 1 All ER 734

RA Cripps and Sons Limited v Wickenden [1973] 2 All ER 606

Windsor Refrigerators and Company Limited v Branch Nominees Limited [1961] 1 Ch 375

Judgment

Hancox CJ: I have had the advantage of reading the draft judgment of Masime JA respecting the submissions made and the authorities cited to us in this appeal. There can be no doubt that the default provisions were very stringent. For instance clause 7.01 of the loan agreement, dated 26 August 1981, which is the *fons et origo* of the whole affair, states that on the happening of any of the "event of default" (including default in repaying the principal or interest) then:

> "DFCK may by notice to KJL declared that the principal amount of the loan then outstanding to be due and payable immediately in which case the DFCK security shall become enforceable and all sums due by KJL to DFCK under this agreement shall become payable forthwith notwithstanding anything to the contrary herein contained."

The debenture charging the assets of KJL of even date contains an even more severe clause. After reciting that KJL shall perform and observe the covenants in the loan agreement "as if set out herein in *extenso*" (Cl 6(*a*)), it continues, (clause 8):

> "The principal sum together with interest thereon and all other moneys and liabilities intended to be hereby secured shall immediately become payable without demand notwithstanding anything to the contrary herein contained:
>
> (*a*) If under the loan agreement DFCK shall by notice in writing to the company declare the principal amount of the loan provided for in the loan agreement then outstanding to be due and payable immediately or
>
> (*b*) If the company shall commit a breach of any of the covenants or agreements herein contained or implied and on its part to be performed and observed."

So in that case, as Mr *Wako* submits, no notice, or even intimation, of a default is required.

Although it has not been disputed the company was in default in repaying the interest and principal sum on the initial loan, (otherwise, doubtless, there would have been no rescheduling agreement, or "agreed variations" as they are described in the defence), I confess I have experienced difficulty in identifying the breaches with any degree of precision, for this is not evinced by the record of appeal. As, according to the survey of KJL's affairs comprised in the DFCK repayment proposals dated 25 February 1988, the loan of KShs 7 million was disbursed in 1981, which must have been after 26 August 1981, the first instalment of interest was due, under article 2.04, by 31 December 1981, and the first instalment of principal, KShs 500 000 was due on 31 December 1983. There is no material on record as to whether any of those instalments were paid, though the inference is that they were not, for the survey continues: ". . . by the time production commenced the company had nearly three years' interest to clear . . ."

The inference is also that none of the capital repayments of KShs 0.5 million were made (as DFCK's letter of 1 December 1986, stated that KShs 3 million represented overdue principal) but in pursuance of the rescheduling arrangements

it was common ground between counsel that a total of KShs 3.7 million arrears of interest were paid in three amounts in March and April 1987. Even so there is no precise statement as to when the defaults occurred, so as to bring into play article 7.01 and clause 8 of the loan agreement and debenture respectively, except the schedule attached to the letter of 1 December 1986, when overdue and penalty interest were set out as at the end of 1986. The same schedule envisages the "rescheduling" of the principal debt through to 30 June 1990.

Notwithstanding the supposed deadline for the repayment of arrears of interest by KJL, Mr Detrie, the head of the Project Rehabilitation Division of DFCK, extended the deadline by three months to 31 March 1987, by his telex of 20 March 1987, as being a more "conservative" date. In the same telex he complains of an attempt by KJL to pay only KShs 1.5 million and of further "unconvincing excuses", but as we have seen, KShs 3.7 million was in fact paid, concluding on 28 April 1987, as a result of Mr Rajinder Kapila's letter of 30 March 1987.

Mr *Wako* in his address said that the KShs 3.7 million was not part of the rescheduling proposals, as a term thereof, but a condition precedent to DFCK agreeing to those proposals, and he supposed this by the paragraph in the telex of 24 June 1987, which says:

> "When the arrears of KShs 3.7 million were finally paid, DFCK agreed to again reschedule the principal amount outstanding for the six years period as requested."

At all events when the rescheduling agreement was eventually arrived at, in the telex of 10 June 1987, and the letter from Kenya Projects (the majority shareholder in KJL), it amounted to a moratorium on the principal until 30 July 1988, which would then be paid in 60 monthly instalments of KShs 182 000 ending on 30 June 1993, not 30 June 1990, as the schedule of 1 December 1986, had said.

Whether the status between 30 July 1987, and 30 July 1988, was a mistake or deliberate confusion engendered by the borrowers is unclear. The telex of 10 June 1987, is ambiguous in this respect. First, it speaks of repayment of principal starting on 30 July 1987, and then in the next breath that interest only will be paid (at KShs 99 000 per month) from the date until 30 July 1988, during which time there would be moratorium on principal repayments. There is thus conflict regarding the rescheduling in the same document. At all events, KJL were clearly acting on this assumption as shown by the last paragraph of Kenya Projects' letter of 15 June 1987, and in the meantime KJL recorded the arrival of a considerable quantity of new machinery which was shown to Mr Detrie on 28 January 1988, and they submitted provisional accounts for 1987:

> "Which shows better working, improved turnover and reduced losses after making full provisions for DFCK interest and depreciation."

In that letter (of 25 February 1988) KJL then referred to "several alternative proposals" and a "mutually acceptable repayment programme" and concluded in these glowing terms:

> ". . . bringing all required machinery and providing very sound, marketing financial and management services to the company."

Mr *Wako* took us through all the correspondence in order to show that, far from being guilty of unfair and oppressive conduct, in particular in putting in a receiver on 19 August 1988, DFCK had lent over backwards during the years to accommodate KJL, and had continually granted indulgence to them. Yet,

apart from the KShs 3.7 million, not a single cent had been paid. Instead KJL were constantly making fresh proposals which, in the end, must have persuaded even the gullible Mr Detrie that drastic action was necessary.

Mr *Wako* displayed a curious reluctance to tell us the act or event which, as it were, constituted the straw which broke the camel's back and precipitated the receivership, especially as the meeting of 14 July 1988 (as appears from the minutes), was conducted in a cordial atmosphere: "management efforts were commended" and the conversion of the 1987/1988 interest into preference shares in KJL was considered. Another meeting was fixed for January 1989 but at one time was there a hint that the extreme step of receivership, (which KJL obviously feared) would be taken within the next five weeks.

Mr *Waki*, on behalf of KJL, says that all these proposals and counter-proposals establish a course of conduct which at the same time amounted to a waiver by DFCK of the breaches, (which KJL had committed by failing to pay the instalments of principal and interest) and thus of its right to appoint a receiver, and also to an estoppel by words and conduct preventing DFCK from asserting its right to appoint a receiver, under C19 of the debenture.

It is true that Mr *Wako*, in reply to Mr *Waki*'s argument on is second issue, was able to point to article 9.01 of the loan agreement, which provides that no granting of time or delay or omission in exercising any right under the agreement shall constitute or imply a waiver of any breach of it by KJL, but, as Masime JA pertinently observed during the submissions, the rescheduling arrangements were so extensive that in the end they converted the loan agreement into another agreement, and it was therefore difficult to say on the facts whether the breach giving rise to the appointment of a receiver was against the original loan agreement, or against the rescheduling arrangements, which appear to have been finalised by the exchange of correspondence and telex message during June 1987. Or was it possible that the breaches became blurred over the years and that DFCK had merged the two sets of breaches so that it is not really possible to discern whether the breaches were of the original loan agreement, of August 1981, or of the rescheduled arrangements.

Mr *Waki* quoted extensively from the work entitled the Discipline of Law by Lord Denning, who, it will be remembered, in 1947 set the ball rolling on the doctrine of equitable estoppel by his decision in *Central London Property Trust v High Trees House Limited* [1947] KB 130. What, then, is equitable estoppel? As Lord Denning said (at 206):

> "If the defendant (in this case DFCK) led the plaintiff to believe that he would not insist on the stipulation as to time and that if they carried out the work he would accept it, and they did it, he could not afterwards set up the stipulation as to the time against them. Whether it be called waiver or forbearance on his part it is a kind of estoppel. *By his conduct he evinced an intention to affect their legal relations*." (Emphasis mine).

The several passages to which Mr *Waki* referred us at paragraphs 201, 207, 214 and 217, are all to similar effect, but as he relied so heavily on this principle I will quote from one more paragraph (at 217):

> "When a man has led another to believe in a particular state of affairs, he will not be allowed to go back on it when it would be unjust or inequitable for him to do so."

I apprehend that the words "unjust or equitable" refer to the circumstances that the party to whom the representation is made has acted on it to his detriment in

reliance on the representation. Much was made of this by Mr *Wako* in his submissions on behalf of the respondent. He referred particularly to page 215 of the work by Lord Denning as follows:

> "If you study the cases in which this doctrine has been applied, you will see that all that is required is that this one should have acted on the belief induced by the other party."

A similar passage appears at 223. So Mr *Wako* says there is nothing here to show the DFCK held out to KJL that they would not appoint a receiver or that KJL acted on that assumption. Even if they had acted on a representation of this nature made by DFCK then article 9 of the loan agreement, a clause entered into freely by KJL, without any duress, effectively estoppel KJL from relying on it.

It is, however, Mr *Waki*'s case that KJL did rely on the willingness of DFCK to accept delay repayments, and even if they (DFCK) did not say in so many words that they would not appoint a receiver, nevertheless that was the one thing that KJL feared, and that is why they went to considerable lengths to placate DFCK and make KJL a profitable going concern. Consequently, they were entitled to assume that the conduct of DFCK in forbearing to insist on due repayments and in agreeing to the rescheduling meant that there was no danger of a receivership.

I have already referred to the importation of new machinery by KJL, the provisional accounts showing better working, sound marketing financial and management services and improved turnover, and also that at the meeting of 14 July "management efforts were commended". Mr *Waki* relied on all these matters in support of his argument and referred in this connection to paragraphs 5 to 9 of Mr Ruparelia's affidavit of 1 September 1988, annexed to the chamber summons claiming an injunction against the receivership. In particular he referred to the letter of 24 August 1988, in which Mr Ruparelia sets out KJL's achievements in purchasing and installing new machinery to the tune of KShs 6 million, which they had done:

> "In good faith assuming that DFCK will keep its words and commitment made earlier at the last board meeting (meaning the 14 July board meeting) to . . . allow time for repayment after getting marketing plans."

And concluded:

> "thus by any standard we are not in default . . . and placing (KJL) under receivership is totally unwarranted, unjustified and a breach of trust . . ."

Earlier on, Mr Ruparelia had suggested that KJL start the repayments from 1989, and this despite the agreement for rescheduling made to begin (as to interest) on 31 July 1987, and (as to capital) on 31 July 1988, thus further extending the date when repayments would begin.

With the events that I have just detailed in mind I now turn to consider the case which formed the basis of the text in Part V of the Discipline of Law upon which Mr *Waki* so heavily relied, namely *Central London Property Trust Limited v High Trees House Limited* [1947] KB 130. That was a case where the head landlords had let to the head tenants the ground lease of a block of flats at £2 500 per annum. As a result of World War Two most of the inhabitants moved out of London, with the result that it was difficult to fill the flats with tenants. After discussion the head landlords agreed to accept £1 250 per annum as ground rent which the head tenants paid until 1945.

By 1945, due to the ending of the war, conditions had changed and the head landlords then sued for the original rent for the quarters ending in September and December 1945. While it is true that Denning J (as he then was) held that the head landlords should not be allowed to go back on their promise to reduce the rent, it is not generally realised by those who continue to rely on the doctrine of equitable estoppel, that in the *High Trees* case (*supra*) Denning J in fact gave judgment for the head landlords (the plaintiffs) for the increased rent for the two quarters in question. He did this because he held that the promise could only be binding so long as the conditions prevailing when it was made properly applied. Once the war danger had receded and the tenants returned it would have been unreasonable to hold the head landlords to their promise for the entire 99 year lease, as the head tenants had contended. Denning J concluded with this paragraph at 135):

> "I find that the conditions prevailing at the time when the reduction was made had completely passed away by the early months of 1945. I am satisfied that the provision was understood by all parties only to apply under the conditions prevailing at the time when it was made, namely when the flats were only partially let and that it did not extend any further than that."

What, therefore, Lord Denning was actually saying was:

> "True, there was a representation intended to affect legal relations between the parties, and true the representee acted upon it, but once the conditions which had brought about the representation had passed away, it would be unjust and harsh to hold the representor to an original bargain struck because of the conditions then prevailing."

Mr *Wako* strongly argued in this case that article 9 of the loan agreement had been included advisedly (and agreed to by KJL) so as to allow DFCK the necessary flexibility to extend time for instalments to *bona fide* borrowers, who, due to misfortune had fallen into arrears with their repayments, bearing in mind that DFCK's object and purpose was to keep afloat commercial concerns which had good prospects and not to bring about their ruin.

What, then, happened in the instant case? According to Mr *Wako*, DFCK had granted indulgence to KJL again and again and, aside from the interest repayments totalling KShs 3.7 million in March and April 1987, nothing had ever been repaid. The rescheduling arrangements had not been honoured. No interest payment of KShs 99 000, or any other sum, was effected on 31 July 1987, nor in any other month up to July 1988, and no capital repayment of KShs 182 000 was made on 30 July 1988, despite the moratorium.

As, under the rescheduling, the first capital repayment was due two and a half weeks after the board meeting of 14 July 1988, when, as I have said, a number of high-sounding statements as to KJL's achievements and prospects had been made (remembering that the minutes of that meeting were not agreed), and roughly the same time before the receivership, it would appear that the penny had finally dropped that KJL had no intention of repaying anything and that the forebearance granted by DFCK had only been abused.

In these circumstances, within the principle of *High Trees* would it be just to hold DFCK to the promise (even assuming a promise not to appoint a receiver could be carved out of the correspondence) when none of the stipulations had been complied with by KJL had when all DFCK had done was to try and assist KJL over its repayments?

Mr *Wako* asked, rhetorically, where is the evidence that KJL acted on the representations (if representations there were) to their detriment since they had paid nothing, not a single cent, even under the rescheduling agreement. Indeed it was Mr *Wako*'s case that KJL had not, nor ever had had, any money, and although this authority was cited in another connection (as to whether any notice or formal demand for repayment of the loan was necessary before the appointment of a receiver) the passage to which we were referred is relevant in the present context. In *Bank of Baroda v Panesar* [1986] Ch 751, a case in which money due by two associated companies was held to be payable on a demand made, as provided for in the debenture, Walton J said (at 160):

> "In practice, in 99 cases out of 100, all this is completely academic, because the debtor has not got the money anyway and the demand is only a step towards some other end, for example bringing an action, appointing a receiver in the case of a company, and so forth. In this case the debtor cannot possibly claim any additional time, as, there being no payment that he can make, there can be no pretence that he required any additional time for payment."

In the *High Trees* case (*supra*) there was an express representation (which Denning J held gave rise to the estoppel) by the plaintiffs on 3 January 1940 in a letter which said:

> ". . . we confirm the arrangement made between us by which the ground rent should be reduced as from the commencement of the lease to £1 250 per annum."

In the present case there never was any representation that DFCK would not put in a receiver. Even if it could be said from the correspondence that DFCK had implied represented that they would not do so this surely would only have applied during the currency of the rescheduling arrangements. Once it became plain, as it must have by 30 July 1988, that KJL had not and would not be able to pay either the capital or the interest instalments, as rescheduled, (particularly as Mr Detrie, in his telex of 24 June 1987, had said that the rescheduling should be done on the lines then recently agreed) the rescheduling arrangements no longer applied and accordingly, the conditions prevailing at the time when they were made and accepted, had passed away, because in Walton J's words:

> ". . . the debtor has not got the money anyway . . . and . . . there is no payment that he can make."

So the conditions prevailing at the time of rescheduling and up to 30 July 1988, had, in my judgment passed away by 19 August 1988.

But Mr *Wako* did not rest his case upon an analysis of the estoppel and waiver situations alone. He referred to Githinji J's ruling in which the learned Judge correctly set out the principles governing interlocutory injunctions, as laid down in *Giella v Cassman Brown and Company Limited* [1973] EA 358. Tested in this way, Mr *Wako* submitted, there was not even an arguable case on the grounds of waiver or estoppel for granting an injunction to restrain the receivership, still less a *prima facie* case, and, as for conditions (*b*), an irreparable loss, well, the boot had been on the wrong foot in the previous Court of Appeal ruling because it was DFCK, not KJL, who were suffering the irreparable loss as it was plain that they were not getting any of their money back. Nor were they likely to get it back, as was shown by the constant requests for variations, even of the rescheduled arrangements. DFCK's final attitude is epitomised, even though it came 14 months earlier, in the telex of 24 June 1987, which states:

> "When the arrears of KShs 3.7 million were finally paid, DFCK agreed to gain rescheduling the principal amount outstanding for the six year period as requested, on

> the clear understanding that interest payments would be met. Now however only a few weeks later you are putting new demands to us, including a three and a half year rescheduling and no interest payments until August 1988 . . . We cannot continue indefinitely to keep changing things around and we therefore propose to reschedule the outstanding principal sum along the lines as recently agreed."

When that telex is set against the letter from Mr Ruparelia of 24 August 1988, five days after the receiver had been put in, it is plain that, despite ample warning, KJL could not bring themselves to realise that DFCK, while indulgent, would eventually have to enforce default, even in the repayments under the rescheduling agreement, they put themselves at risk, then in my judgment they wilfully shut their eyes to the inevitability of a receivership.

Githinji J, in his ruling, carefully considered all the arguments and authorities placed before him. The criteria this Court now has to apply are different from those which were considered in the interlocutory application under rule 5(20)(*b*): On a rule 5(29)(*b*) application all the applicant has to show is that he had an arguable appeal, in that he has substantial points to present to the Court on his appeal, secondly, if he has, would his appeal be nugatory if the Court denied him the relief sought.

On a substantive appeal, the appellant must establish that in exercising his discretion the judge took into account matters which he should not have taken into account, or omitted to take into account, matters which he should have taken into account, or otherwise that his decision was plainly wrong.

I must confess that having carefully analysed Githinji J's judgment, in my view he not only set out the guiding principles correctly, but he considered all the documentary evidence with great care, as he did the authorities cited to him, most of which have been cited in this Court. The judge correctly appreciated that he was not required to make any findings on fact or to decide the points of law raised, which would be done at the trial.

Mr *Waki* criticised the ruling and said that the judge having thus correctly directed himself, then went on to make final findings on matters which had been strongly asserted by KJL and as strongly denied by DFCK, which should have been resolved at the main trial. I did not read his ruling in that way. It is true he distinguished the authorities cited from the instant case, but he concluded that portion of the ruling by saying that for the reasons stated he was not satisfied KJL had established the first ingredient in the *Cassman Brown* case (*supra*) namely that it had a *prima facie* case with a probability of success. He then made a finding that KJL would be adequately compensated by an award of damages if the suit succeeded.

It was also submitted that the judge had effectively determined that the main suit by refusing the relief sought, which is the complaint made in grounds six and seven of the memorandum of appeal. It is perfectly true that in many cases a decision on an interlocutory application has the effect of rendering it difficult or even impossible for the unsuccessful party on that application to continue with the suit. But that is not the same as saying that the judge finally decided the issues in the suit itself. For myself, I do not think that he did. The tenor and content of his ruling shows that he had the principles applicable to temporary injunctions very well in mind.

Finally, Mr *Waki* criticised the phrase used by the judge "but if I am wrong . . . " in relation to the requirement of notice and suggested that this was an

indication that the judge was doubtful about the correctness of his earlier conclusion. I do not read that paragraph in this way. The judge stated that in his judgment the contract (that is the loan agreement) contemplated that DFCK should give notice that the principal sum was due and payable, but not that a notice of demand that the principal sum must be paid within a certain period. The letter of 19 August did not say in so many words that the principal sum was due and payable. It said:

> "In breach of the covenant contained in clause 1 of the debenture (which referred back to the obligations of KJL under the loan agreement) you have failed to pay the principal and interest on the loan . . ."

But to my mind that is sufficient to indicate to the recipient that the principal sum was due and payable, and the judge was therefore correct in holding that clause 7.01, notice was required, that requirement (if it applied) was also satisfied because the principal sum demanded then became repayable forthwith, so that it came to the same thing. With respect to Mr *Waki*, I cannot see that that form of words, which is not uncommon in judicial language, indicates doubt on the part of the judge that the distinctions he had just drawn between *Windsor Refrigerator Company Limited v Branch Nominees Limited* [1961] 1 Ch 375 and *RA Cripps v Wickenden* [1973] 2 All ER 606, (both authorities having been cited to him by Mr *Waki*, who appeared for KJL in the High Court) on the one hand, and the instant case on the other, were correct.

For these reasons, agreeing as I do with the reasoning of Masime JA on the first issue in this appeal, namely that KJL was not entitled under the terms of the loan agreement or of the debenture to a notice demanding repayment within a specified period of time before the security was enforced, which comprises grounds two and three of the memorandum of appeal, I also take the view that no waiver or estoppel arose on the correspondence and board meetings because no representation was ever made expressly or impliedly that DFCK would not enforce its security by putting in a receiver, but even if there had been the conditions pertaining thereto had passed away by 19 August 1988, and therefore, on the authority of High Trees, the promise no longer applied. That, in my judgment, disposes of issue two, comprising grounds four and five of the memorandum of appeal.

As regards issue three, comprising grounds six and seven, I have already expressed my opinion that the judge did not in effect determine the issues in the main suit, a matter on which he expressly warned himself in the course of his ruling.

For these reasons I would dismiss the appeal against Githinji J's ruling of 10 March 1989 with costs. As Masime and Cockar JJA agree, it is so ordered, but, in dismissing the appeal, I would nevertheless wish to say that we are all indebted to Mr *Waki* for his well construed argument on behalf of the appellant.

Masime JA: Kay Jay Rubber Products Limited (the appellant) has brought this interlocutory appeal against the refusal of the superior Court (Githinji J) to grant an interim injunction to restrain the Development Finance Company of Kenya Limited (DFCK) and its appointed receiver and manager (receiver) from trespassing or otherwise interfering with the business premises and operations of the appellant until the determination of the suit pending between the parties in the superior Court. In the course of the application for temporary relief, many affidavits and other supporting documents were filed which formed the basis of the ruling appealed from.

The silent facts of the case may be summarised as follows. DFCK advanced a loan of KShs 7 million to the appellant for the financing and operation of a project described in the schedule to the loan agreement. The loan agreement was executed on 26 August 1981 and provided, *inter alia*, that it was to be secured by:

(*a*) a debenture dated the same date; (the debenture);

(*b*) a charge (subsequently executed on 17 May 1983).

Under articles 2.01, 2.02 and 2.07 of the loan agreement the appellant agreed to repay the loan by 14 equal instalments of KShs 500 000 half-yearly on 30 June and 31 December, each with effect from the second anniversary of the advance of the loan. It appears that the appellant encountered difficulties in the initial stages in complying with the scheduled payments under the agreement; the appellant therefore initiated discussions with DFCK with a view to obtaining accommodation and rescheduling the payments. DFCK had in the face of the said difficulties appointed its representative to the appellant's board of directors and was therefore fully aware of the difficulties. Further, the appellant was required under the agreement to furnish to DFCK accounts and reports of its operations on a continuing basis enable DFCK to monitor the appellant's activities.

After the advance of the loan in 1981 the appellant commenced implementation of the project and completed the factory building in 1982. That done, the appellant found that all its fully paid up capital and the DFCK loan went into the construction of the factory, the importation of machinery and pre-operational expenses. By the time production commenced overdue unpaid principal and interest for three years amounted to KShs 3 million and Shs3 196 000 respectively. The appellant therefore made proposals to DFCK for the rehabilitation of the project through various measures in November 1986. The proposals included merger of the appellant with an associate company, conversion of KShs 1 million of part of the DFCK loan into equity in the appellant, and borrowing KShs 3 million by the associate company from a third party and, finally, the rescheduling of the overdue principal so that it be repayable by 30 June 1987. These proposals were considered and approved by DFCK who duly notified the appellant thereof on 1 December 1986. No response was forthcoming from the appellant until 24 February 1987 when it made additional proposals to DFCK. By its letter of 4 March 1987 DFCK warned the appellant that non-compliance with the agreed rescheduling by 31 March 1987 "would lead to a lot of trouble which (the parties) must avoid at all cost". DFCK warned further that:

> "If that deadline is not met, a great deal of hard work and effort by (the parties) the credibility, reputation and good will of (the appellant) that has been built up again would be destroyed. That would surely not be in anyone's interest and (DFCK) trust that (the appellant) will do the necessary in time."

In response, the appellant held discussions with DFCK on 18 and 19 March 1987 as a result of which the appellant made new proposals seeking seven years in which to pay up the arrears of principal then standing at some Shs4 million. This was unacceptable to the DFCK who communicated to the appellant's chairman in the UK leaving no doubt whatever that arrears of principal must be paid on or before 31 March 1987 "regardless of how it is done" if the appellant's name was not to be spoiled for good. The appellant replied insisting that the DFCK approved their new proposals offering to make

an immediate payment of KShs 2 million if DFCK agreed to release some security documents to enable the appellant negotiate the funds. DFCK released the requested documents but the appellant did not pay the promised KShs 2 million and the DFCK wrote on 16 April 1987 stating:

> "This situation is now becoming really critical and unless we get paid immediately (DFCK) don't see how (it) can prevent things from getting out of hand."

On 24 April 1987 DFCK communicated to the appellant its agreement to reschedule the principal amount of KShs 7 million over a period of about five years on certain conditions. A further exchange of correspondence occurred but up to 21 July 1987 no agreement had been reached between the parties and no payment whatever made by the appellant. In event, the DFCK decided under the loan agreement to appoint one of its officers as general manager and chief executive of the appellant with effect from 29 September 1987.

Despite all the efforts made the situation does not appear to have improved and DFCK finally decided to take the steps which precipitated this litigation. On 19 August 1988 the senior legal officer to DFCK wrote to the appellant as follows:

> "We refer to the debenture 26 August 1981 issued by your company to us securing the loan made under the loan agreement dated 26 August 1981. In breach of the covenant contained in clause 1 of the debenture you have failed to pay the principal and interest on the loan particulars of which are known to you and are set out in detail below. By reason of the said breach of covenant, the security constitute by the debenture has become enforceable and, in exercise of the powers conferred by the debenture, we are appointing with immediate effect Mr KLG Sinclair as the receiver Manager of the property and assets charged by the debenture.
>
> *Particulars of Arrears*
>
> Principal 1 500 000-00
>
> Interest 1 472 322-00
>
> Default interest 288 292-80
>
> *Other costs, charges*
>
> Expenses 8 265-60
>
> Yours Faithfully,
>
> Catherine A Kola,
>
> Senior Legal Officer."

On the same date they appointed the second respondent as the receiver/manager of the appellant; the receiver immediately travelled to the premises of the appellant and installed himself as such. The appellant protested to DFCK by letter dated 24 August 1988 and on 1 September 1988 filed suit in the superior Court and simultaneously therewith applied for an injunction against the respondents.

In its memorandum of appeal against the superior Court's refusal of injunction the appellant sets out seven grounds of appeal but these were lumped into three broad issues during arguments namely:

> "(1) That the learned Judge erred in law and misdirected himself in holding that there was no provision for serving a notice calling in the loan before appointment of a receiver and that even if there was such a provision then it was complied with on the evidence before him.
>
> (2) That the learned Judge misdirected himself in finding that there was no contract of waiver when there is in law no requirement that such a contract be established and it was sufficient that the appellant acted on DFCK's unequivocal representations, promises and agreements to its detriment for DFCK to be estoppel from insisting on strict compliance with the loan conditions.

(3) That on the evidence before him the learned Judge was wrong to determine the main suit in the course of the interlocutory application."

The first ground of appeal revolves on the construction of the security documents to determine the validity of the appointment of the receiver. Learned counsel submitted that the fact that there was a dispute as to the validity of the appointment of the receiver made it imperative that a trial be held and evidence be adduced. For this proposition counsel cited the case of *Windsor refrigerator Company Limited v Branch nominees Limited* [1961] 1 Ch 375. The precise terms of the security documents have however to be considered.

Article 7 of the loan agreement provides for events of default as follows:

"7.01 In any of the following events (hereinafter referred to as an "event of default") DFCK may by notice to KJL declare that the principal that the principal amount of the loan then outstanding to be due payable immediately in which case the DFCK security shall become enforceable and all sums due by KJL to DFCK under this agreement shall become payable forthwith notwithstanding anything herein contained:

(*a*) If KJL shall make default in the payment of any instalment of principal moneys owing in respect of the loan or of interest thereon payable in accordance with this agreement for a period of 21 days after the same shall have become due;

(*b*) . . . etc."

And article 10 of the agreement provides that any notice thereunder may be served by sending the same by registered post or cablegram addressed to the recipient at its registered office and shall be deemed to have been served at the time when in the ordinary course of such post such notice will have reached its destination. Upon DFCK making the declaration provided for under article 7 of the loan agreement clauses 8 and 9 of the debenture come into effect:

"8. The principal sum together with interest thereon and all other moneys and liabilities intended to be hereby secured shall immediately become payable without demand notwithstanding anything to the contrary herein contained:

(*a*) If under the loan agreement DFCK shall by notice in writing to the company declared the principal amount of the loan provided for in the loan agreement then outstanding to be due and payable immediately;

(*b*) . . . etc

9. At any time after this security shall have become enforceable (and so that no delay or waiver of the rights exercise the powers hereby conferred shall prejudice the future exercise of such powers and without prejudice to any other remedies provided by law) DFCK may in writing appoint any person whether an officer or agent to be a receiver of the property and assets hereby charged or agreed to be charged or any part thereof of the company . . . etc."

Counsel for the appellant urged us to construe article 7.01 of the loan agreement as requiring DFCK to send a notice of demand before its security becomes enforceable. In support of that submission counsel cited to us a long line of authorities commencing with *Lloyd's Bank Limited v Margolis* [1954] 1 All ER 734 and ending with *Bank of Baroda v Panesar* [1986] 3 All ER 751. In the *Lloyd's Bank* case (*supra*) a charge securing an overdraft provided that the chargor would pay on demand all the money and other liabilities due. It was held, *inter alia,* that the true construction of the legal charge was that the making of a demand was a condition precedent to the recovery of the money secured thereby and therefore time ran from the date of the demand and (in the case) the claim was not time barred.

In *Windsor Refrigerators Company Limited v Branch Nominees Limited* [1961] 1 Ch 375 the debenture contained a condition that at any time after the principal moneys thereby secured became payable, the debenture holder might in default of payment on demand appoint a receiver; that case discusses at length the impropriety of dealing with issues of construction of documents preliminary rather than at trial. In view of the precise provisions of the debenture in the case however it is distinguishable from this appeal.

Again, *Cripps (Phamarceuticals) Limited v Wickendens* [1973] 2 All ER 606 was a case where the debenture secured overdraft facilities and the money was repayable on demand. The debtor companies sued the debenture holders claiming that the appointment of the receiver was invalid in that it had been made before the bank had made a demand for payment or, alternatively before the companies had had an opportunity to comply with the demand. It was held *inter alia* that the appointment of the receiver could not be impugned on the ground that insufficient time had been allowed to the companies after the demand had been made for, where money was repayable on demand, all a creditor had to do was to give the debtor time to get the money from some convenient place, he was not obliged to give the debtor time to negotiate a deal which might produce the money. So the claim was dismissed.

And in *Bentley-Stevens v Jones* [1974] 2 All ER 653 it was held that a director who was removed by irregular but curable processes was not entitled to the grant of an interlocutory injunction, for example, where the requisite notice of intention to vote him out of office had not been given the irregularity could be cured by the giving of a valid notice.

Finally, in *Bank of Baroda v Panesar* [1986] 3 All ER 751 it was held, *inter alia*, that a notice demanding repayment of moneys secured by a debenture did not have to specify the amount due and that if money due under a debenture was payable on demand the debtor company was entitled, once demand was made, to reasonable time to implement the mechanics of payment for example, to deliver a cheque by return or to transfer the necessary funds from one bank account to another but it was not entitled to any time to raise the money if it was not at hand.

Having considered all these authorities I am no persuaded that they support learned appellant's counsel submissions. The plain meaning of the debenture is in my respectful view that once the DFCK declares the principal amount to be due under the loan agreement then the loan becomes due and payable immediately and without demand. Under article 10 such a declaration of the amount due is to be sent by post to the appellant but on the facts of this appeal it was personally handed over to the appellant simultaneously with the notice of appointment of the receiver. This was not disputed in the pleadings in the superior Court. On the view that I have formed that a demand calling in the money due does not lie on the proper construction of the loan agreement and the debenture counsel's complaint that the receiver was appointed long before the notice declaring the money owed to DFCK due and payable immediately does not arise.

I turn now to submissions on behalf of the respondent. Mr *Wako* submitted that on the material before the superior Court the learned Judge exercised his discretion judicially, applied the law to it and arrived at a correct decision. On a proper construction of the security documents, he submitted, the issue of a

demand was not a condition precedent; there were specific repayment provisions which were distinguishable from the indefinite repayment provisions made in the cases which as has been shown above dealt with overdraft facilities.

In any case, counsel submitted, even if a demand were to be made (which he denied) so far as the appellant had shown it was completely unable to repay the DFCK loan and it was all academic. Counsel quoted Walton J in the *Bank of Baroda* case (*supra*):

> "In practice, in 99 cases out of 100, all this is completely academic because the debtor has not got the money available anyway and the demand is only a step towards some other end, for example bringing an action, appointing a receiver et cetera. In this case the debtor cannot possibly claim any additional time as there being no payment that he can make, there can be no pretence that he requires any additional time to implement the mechanics of payment."

The Honourable the Chief Justice has dealt in his judgment, which I have had the Advantage of reading in draft and with which I concur entirely, with the submissions by Mr *Waki* on waiver and estoppel. It is for all these reasons that I am of the view that the learned Judge at first instance correctly appreciated the material before him, applied the law to it and exercised his discretion judicially to refuse the application for injunction. I therefore find no merit in the appeal against the judge's decision and I would dismiss this appeal with costs.

Cockar JA concurred in the judgments of Hancox CJ and Masime JA.

For the appellant:
PN Waki

For the respondent:
SA Wako

Kenengyere and another v Nyamagoye
[1990–1994] 1 EA 184 (HCU)

Division:	High Court of Uganda at Mbarara
Date of judgment:	5 June 1992
Case Number:	7/91
Before:	Karokora J
Sourced by:	LawAfrica

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[1] Appeal – Role of second appellate Court – Demeanor of witnesses – Grounds in memorandum of appeal.

[2] Civil procedure – Application to a Magistrate's Court – Recalling of a witness – Absence of a plaint or statement of claim.

[3] Land – Customary rights – Extinguishing these rights – Leasehold.

Editor's Summary

The respondent claimed that he bought a forest of eucalyptus trees, Kanena Hills, and obtained Gomborora receipts on each occasion.

The appellants, on the other hand, on behalf of a group of cattle keepers (Barisa Kwaterana Nyabutungurukwa Kanena) claimed that these fields had been used by cattle keepers as grazing areas under customary tenure and did not therefore belong to the respondent. The group had then applied for registration of their tenure over their area.

The respondent, who had been a member of the group, later sued the group. The trial Magistrate held that since the lease offer to the group did not include Kenana hills, it belonged to the plaintiff. The group appealed but Chief Magistrate upheld the trial Magistrate's decision and the Group therefore appealed to the High Court

Held – An appellate court has power to reconsider materials that had been placed before the trial Judge. In considering which witnesses to believe, as regards their demeanor and manner the appellate Judge must be guided by the impression on the Judge who saw them. However, other circumstances may force the appellate Judge to differ with the trial Judge on credibility of the witnesses. *Pandya v R* [1957] EA 336 applied.

An appellate court must consider all grounds stated in the Memorandum of Appeal or give reasons for omitting some grounds in the memorandum of appeal.

The Civil Procedure Act applies equally to magistrates and judges. However, the Civil Procedure Rules do not apply to the Magistrates who are governed by the Magistrate's Courts Act. A court of law has the powers to recall a witness if, in the interests of justice, it is reasonable and necessary.

The absence of the statement of claim or the plaint from the lower Court's records did not occasion any miscarriage of justice as both sides knew what was being claimed by either party.

There is no evidence to support the respondent or the trial magistrate's conclusion that the respondent had bought the Kenana hill.

The Group's customary rights over Kenana could not be disturbed or extinguished by failure of its inclusion in the lease offer. Such rights could only be extinguished after giving the group a full hearing, which was not done.

Appeal is allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Management Training and Advisory Centre v Patrick Kakuku Ikanza High Court civil appeal 6 of 1985 (UR)

Pandya v Republic [1957] EA 336 – **AP**

Peters v Sunday Post Ltd [1958] EA 424

United Kingdom

Coghlan v Cumberland 3 [1898] 1 Ch 704

Watt v Thomas [1947] AC 484

Judgment

Karokora J: This is an appeal by Nyabutungurukwa Kanena Barisa Kweterana, represented by Kifendere and Kinengyere, hereinafter referred to as the appellant against the judgment of the learned Chief Magistrate, Mr Dhabangi

dated 11 April 1990. The appellants were the defendants in Magistrate Grade II's court at Bushenyi. They lost the case and appealed to the learned Chief Magistrate of Mbarara and again lost the appeal and still were not satisfied with the decision and were given leave to appeal to the High Court. The respondent, Nyamagoye, now was the plaintiff in Court of first instance, and respondent in Chief Magistrate's Court.

The plaintiffs/respondent's brief facts of the case were that he bought a number of forests from six different people on Kanena hill starting in 1967 and was issued with Gomborora receipts on each occasion. He claimed on each occasion when he bought forest of eucalyptus trees, he went together with the seller and got Gomorora receipt. At the trial he tendered those six receipts as the receipts he was issued by the Gomborora chief, Mr Katomo, on purchasing those forests. On cross-examination and on engaging an advocate, he changed his story about the receipts. He stated that the receipts were issued to him later in 1979 by Mr Katomo upon his information he obtained from his Diary about the dates and names of the sellers. The plaintiff never called any of the six people he alleged to have bought forests from. He did not call parish chief alleged to have been present when he bought those forests. He never called any of the people adjacent to this hill.. He however, admitted he was an official of defendant/appellant group at the time they applied for lease of the hills/hill.

On the other hand the brief facts of defendant's case were that the hill in question had been used by cattle keepers as their grazing area under customary tenure. In 1958, both hills, Kanena and Nyabutungurukwa were declared and registered as public grazing areas. However, before then in 1948 people were compelled to grow in crops such as soya beans and eucalyptus trees. In 1968, the cattle-keepers formed a group known as Barisa Kweterana Nyabutungurukwa Kanena and applied for lease for both hills. District Land Committee members visited them and there was no objection.

Both hills were recommended to be leased to the group. The land was surveyed. Meanwhile, plaintiff who was one of the officials, quietly withdrew from the group and started claiming Kanena as his own hill-hence the litigation.

The trial Magistrate accepted plaintiff's evidence that since lease offer to Barisa Kweterana Nyabutungurukwa Kanena was confined to Nyabututngurukwa, Kanena belonged to plaintiff. Therefore the case was decided in favour of plaintiff. Defendants were dissatisfied and therefore appealed to Chief Magistrate. The Chief held since Kanena was different from Nyabutungurukwa and lease offer to the group was confined to Nyabutungurukwa Kanena belonged to plaintiff/respondent. The respondent appealed to the High Court after obtaining leave to appeal under section 232(3) of MCA 1970. The grounds of memorandum of appeal ran as follows:

> "(1) That the judgment of the learned Chief Magistrate like that of the trial magistrate is bad in law and against the weight of evidence.
>
> (2) That the learned Chief Magistrate misconstrued the provisions of section 1(2) of the Civil Procedure Act and in addition to his failure to appreciate that the said Act was inapplicable to courts presided over by Magistrates Grade II and III, further erred by wrongly applying the law to justify an irregularity which had occasioned serious miscarriage of justice.
>
> (3) The learned Chief Magistrate having made finding that it was wrong for the trial magistrate to refer to or rely on proceedings recorded before a retrial was ordered, erred in law in concluding that that was not fatal as the reasons for this conclusion were based on mere speculations.

(4) That the learned Chief Magistrate erred in law in purporting to determine the appeal on the basis of the recorded evidence alone without knowing the contents of the pleadings, as he could not legally satisfy himself that the evidence adduced was sufficient to prove or relevant to the claim. This misdirection occasioned serious miscarriage of justice.

(5) That the learned Chief Magistrate erred in concluding that the sole basis of the appellant's claim to the land was the lease offer whereas there was overwhelming evidence, that, prior to their application they had been the customary owners of the land and that this customary ownership was not disturbed by the Commission's failure to offer them Kanena hill.

(6) That the learned Chief Magistrate erred in law by failing to consider the grounds of appeal separately and giving reasons for rejecting each ground, and had he done so the results would have been different."

Now before plunging into grounds of appeal I feel I should discuss my role as a second appellate Court. The role of a second appellate court can be gathered from *Pandya v Republic* [1957] EA 336 in which case *Coghlan v Cumberland 3* [1898] 1 Ch 704 was cited with approval as follows:

> "The case was not tried with a jury, and the appeal from the judge is not governed by the rules applicable to new trials after a trial and verdict by a jury. Even where, as in this case, the appeal turns on a question of fact, the Court of Appeal has to bear in mind that its duty is to rehear the case and the Court must reconsider the materials before the judge with such other materials as it may have decided to admit. The court must then make up its own mind, not disregarding the judgment appealed from, but carefully weighing and considering it; and not shrinking from over-ruling it if no full consideration the Court comers to the conclusion that the judgment is wrong . . . When the question arises which witness is to be believed rather than another, and that question turns on manner and demeanour, the Court of Appeal always is, and must be guided by the impression made on the judge who saw the witnesses. But there may obviously be other circumstances, quite apart from manner and demeanour, which may show whether a statement is credible or not, and these circumstances may warrant the Court in deferring from the judge, even on a question of fact turning on the credibility of witnesses whom the Court had not seen."

In *Pandya v Republic* [1957] (*supra*) the Court of Appeal was dealing with a second appeal. The court went ahead and stated at 338:

> "In our view the principles declared in those passages are basic and apply with equal force to a first appeal from a conviction by a judge or Magistrate sitting without a jury in any of the territories within the jurisdiction of this Court. On a second appeal to this Court (where, as in the present case, the trial was before a Magistrate) it becomes a question of law as to whether the first appellate court on approaching its tasks, applied or failed to apply these basic principles."

So in *Pandya* case (*supra*) the Court of Appeal stepped into the shoes of the High Court and reappraised and subjected the whole evidence to that fresh and exhaustive scrutiny which the appellant was entitled to expect on the first appeal.

This was a criminal appeal but the above principle applies with equal force in civil case for example *Peters v Sunday Post Ltd* [1958] EA 424, *Watt v Thomas* [1947] AC 484.

Although counsel never addressed me on the matter raised in the first ground of memorandum of appeal, I feel it my duty to go through the entire evidence and subject it to exhaustive scrutiny and make my own conclusion, But bearing in mind the fact that I never saw the witnesses as they testified.

From the evidence on record, the plaintiff based his claim over Kanena hill through purchase of six eucalyptus forests from six different people, one of whom he called to testify to Court. He claimed that when he purchased the forests there was a parish chief present. He claimed that he was given receipts by Gomborora chief on each occasion he bought a forest.

However, on cross-examination and appearance on an advocate for plaintiff, he stated that the receipts which he had tendered as an exhibit were issued in 1979 by Mr Katomo, Gomborora chief in the absence of the sellers. He stated that he provided information to Mr Katomo, the Gomborora chief from his diary concerning the dates, names of the sellers and area of the forests he had bought at Kanena.

Against the above story, the defendants claim was grounded on customary tenure. They claimed that they had always used both hills Kanena and Nyabutungurukwa as their grazing area. They gave historical back grounds of those two hills as far back as 1948. From their evidence, the hills were registered as public grazing area in 1958. In 1968 they applied for both Nyabutungurukwa and Kanena, which they had used under customary tenure, in leasehold from the Uganda Land Commission. The chairman stated both hills were granted to them in leasehold and that both hills were surveyed. During that period, he stated that the plaintiff was a member of the Barisa Kweterana Nyabutungurukwa Kanena. However, when the group constructed cattle crash the plaintiff filed a suit against the two defendants individually when the land belonged to the entire group under the customary tenure. He was successful on the ground that since the cattle keepers (Barisa) had been offered Nyabutungurukwa in leasehold, Kanena belonged to the plaintiff. The learned Chief Magistrate upheld that decision on appeal, because Kanena was different from Nyabutungurukwa, which had been offered to the Barisa Kweterana Nyabutungurukwa Kanena.

I now must turn back to the passage in the judgment of the trial magistrate upon which he allowed the plaintiff's action. The passage is in the middle of page 4 of the judgment:

> "The plaintiff contends this is his land from the fact that he bought the tree plantations from individuals who issued him with Gomborora receipts which were destroyed. The defence contends that this is part of the land which they were offered vide exhibit D1. (This is nowhere to be seen on record). I have considered the evidence as a whole before me. I accept the evidence of the plaintiff that he bought these forests from different individuals between 1967 and 1975. These forests are there and are on kanena hill. There is a clear boundary between Kanena and Nyabutungurukwa hills; the latter has no trees but is open land. Here I wish to point out the receipts produced by the plaintiff exhibit P1 are of no use and I ignore them. A perusal of the lease offer exhibit D1 is addressed to Nyabutungurukwa Kanena Barisa Kweterana and the heading is 80 hectares of Nyabutungurukwa Ankole ULC MIN 125(*a*)(94) of 27/30 July 1971. It is also clear as anything can be that the land offered to the group is on Nyabutungurukwa and not anywhere else. I am satisfied the plaintiff has customary ownership of this land in dispute. He acquired it by purchase and got Gamborora receipts for the same.
>
> I reject the defence contention that this is part of the land they were offered as exhibit D1 . . . The defence erecting a kraal in plaintiff's land obviously committed an act of trespass and the plaintiff was justified to complain.
>
> For the reasons I have tried to give I have no doubt in my mind that the land in dispute is of the plaintiff. Accordingly, I enter judgment for him with costs."

The above judgment was upheld by the learned Chief Magistrate after he had directed himself to what was expected of him as sitting in first appellate Court. He referred to *Management Training and Advisory Centre v Patrick Kakuku Ikanza* High Court civil appeal 6 of 1985 (UR) which must have been decided on the principle laid down in *Pandya v Republic* [1957] EA 336 (*supra*) and *Coghlan v Cumberland* 3 [1895] 1 Ch 704 (*supra*).

I must state that, with due respect, the learned Chief Magistrate, having properly directed himself to what the first appellate Court was supposed to do, he failed in his duty to rehear the case and reconsider the materials as it may have decided to admit. I am sure if he had done so, his decision would have been different. For instance, the learned Chief Magistrate realised that the plaintiff ought to have called the persons who sold him the land, but he did not. Despite that omission the learned Chief Magistrate upheld the decision of Magistrate Grade II, when the plaintiff's claim of the forests was based on purchase of those forests. Having stated that he had ignored the Gomborora receipts as being useless, what evidence was left to support plaintiff's claim over the hill, when there was no one who came forward to say that plaintiff had bought these forests from him? If plaintiff stated that when he bought these forests, the parish chief was present, how come, he never called this parish chief to testify whom he had stated was still alive? How could the trial Magistrate hold that the plaintiff had proved his case on the balance of probabilities that he had purchased the forests on Kanena hill when none of the people adjoining the hill came forward to Court to say so? The evidence which was overwhelming was that the plaintiff together with the entire defendant group used both Kanena and Nyabutungurukwa hills as their grazing areas under customary tenure. Plaintiff admitted he was the secretary of their group known as Nyabutungurukwa Kanena Barisa Kweterana. The chairman of the group was the second defendant who stated the land was not his and that the crash and kraal constructed on Kanena was for spraying cattle belonging to the group. From the evidence of defence side, even when members of District Land Committee visited both hills on the application for lease by the group, the plaintiff, who was present, never raised any objection to both hills being granted to defendant group. I therefore cannot see how a reasonable tribunal properly directing its mind to the evidence would give judgment in favour of plaintiff who had no evidence whatsoever to support his claim that he was the owner of Kanena. His own evidence was contradictory as to how he bought the forest. His evidence-in-chief initially was that when he bought from the owners, each owner took him to the Gomborora chief, Katomo, who issued the receipts to him – the receipts he had tendered in as exhibits. During Cross-examination by second defendant, he admitted the receipts were actually, never issued to him immediately after he had bought the forests. He stated they were issued to him 1979 in the absence of the sellers and upon information given/supplied to the Gomborora chief by plaintiff as to the date, the sellers and the place. In law such receipts would not be received by court, as they were inadmissible as not being receipts issued by the sub-county chief who was even not called to say he is the one who issued them.

Here I must state that although the trial Magistrate stated he had ignored the receipts there is no doubt that he heavily relied on those receipts, so called receipts, in holding that the plaintiff was the owner of Kanena hill under customary tenure. The evidence was not even evidence of any of the alleged

sellers or that or the parish chief alleged to have been present. There was no evidence from any of the local people to support plaintiff's claim of having purchased it from different people. He had been using Kanena and Nyabutungurukwa under customary tenure jointly with defendants hence his being secretary of that group. Their group was known as Nyaburungurukwa Kanena Barisa Kweterana. It is therefore incomprehensible to understand how a reasonable tribunal properly directing itself to the evidence could hold that Kanena belonged to plaintiff; the secretary of Nyabutungurukwa Kanena Barisa Kweterana had applied for lease of both hills. If in offering the lease the ULC offered 80 hectares on Nyabutungurukwa alone, Kanena would automatically remain the grazing area of Nyabutungurukwa Kanena Barisa Kweterana under customary tenure as they had always used it unless and until the Uganda Land Commission offered it to another person who had applied for it and convinced the controlling authority (ULC) that he would make better use of it than the defendant group. Even then, this would be after hearing the group which had used it for many years. As from evidence the group used it in 1948 when public was compelled to grow trees on Kanena, each person having a plot of trees whilst cattle keepers grazed on Nyabutungurukwa.

From the evidence, in 1958, both hills were declared and registered as public grazing area. This evidence was given by the second defendant, who was the chairman of the group since its inception. This evidence remained unchallenged. The discredited evidence of plaintiff during cross-examination by second defendant could not tilt defence evidence in favour of plaintiff. Unfortunately both the trial Magistrate and the learned Chief Magistrate on appeal, never addressed themselves to this evidence on record. I must state that instead of the learned Chief Magistrate rehearing the case and subjecting the entire evidence to that exhaustive scrutiny, which he was under a duty to do, he introduced into the case extrinsic evidence. For instance, there is nowhere on record where it was stated either by plaintiff or defence that Kanena was occupied. That it was a hill of human habitants and small scale farming. I do not see where in evidence the learned Chief Magistrate got the following portions of evidence on page 3 of his judgment:

> "But that Nyabutungurukwa is a hill free of habitants and cultivation and eucalyptus trees. Probably a hill of rolling pastures. Government just could not have declared Kanena as part of the public grazing area. Nor could ULC make the mistake several years later."

I must say that the above portion is found nowhere in evidence. It was an invention of the learned Chief Magistrate. The group known as Nyabutungurukwa Kanena Barisa Kweterana had its grazing areas on those two hills namely Kanena and Nyabutungurukwa. This evidence was never challenged. The plaintiff was a member of this group. He admitted to have been so.

From the entire evidence on record the weight of evidence was in favour of defendants, plaintiff having adduced no evidence at all to prove his case on the balance of probabilities.

Coming to the second ground of appeal, there is no doubt that the Civil Procedure Act is applicable before Magistrate grade II and III. I do not see why Mr *Keitirima* is complaining that the Act does not apply to lay Magistrates when section 1(2) of the Civil Procedure Act is very clear. Even section 242 of the Magistrate's Courts Act does not exclude lay Magistrates from applying the Civil Procedure Act, where there is silence in MCA dealing with issue in question.

The issue in question was the recalling of a witness. Under Order XVI, rule 12 a witness can be recalled but these rules do not extend to lay magistrates as the lay magistrates have their Rules made under MCA. However, I think under section 101 of Civil Procedure Act any court of law can in the interest of justice recall a witness or a party who has already testified to come and retestify if in the interest of justice, it is reasonable and necessary. I do not see any injustice the recalling of plaintiff caused in this case.

Coming to the third ground of appeal, there is no doubt that the trial magistrate referred to proceedings taken before a retrial was ordered and this was an irregularity which irregularity was observed by the learned Chief Magistrate on appeal. In my considered view whereas the learned Chief Magistrate held the irregularity was not fatal, I must state that it was fatal for a trial magistrate to rely on evidence not before him. He was bound to rely and act on the evidence taken before him but not otherwise. Referring to the trial before a retrial was ordered could be considered as having been influenced in his decision, because if he did conclude that receipts had been produced before a Court, whose findings had been set aside, and a retrial ordered, it would be difficult to say that he did not rely on those receipts in holding that the plaintiff had purchased those forests, though he had stated he had ignored those receipts. How could he hold that plaintiff had purchased the forests and eventually Kanena, if he had ignored those receipts, when there was no other evidence in support of his purchase of Kanena? At least, one would have expected him to call the sellers of those forests, if any and the parish chief alleged to have been present and any of the local people.

It was erroneous for trial Magistrate to have relied on proceedings taken before a retrial was ordered. It was in my view erroneous for the learned Chief Magistrate to hold that reliance on evidence taken before a retrial was ordered was not fatal in the part and did influence him in his conclusion that the plaintiff was the owner of Kanena by purchase. How could the trial magistrate come to this conclusion in the absence of those receipts which had been tendered prior to the retrial, when the alleged sellers did not testify before him, and when the parish chief never testified before him?

With due respect to the learned Chief Magistrate, there is no doubt that the learned trial magistrate heavily relied on the proceedings taken prior to the retrial and his reliance on those proceedings was fatal to his decision. Therefore the decision of the learned Chief Magistrate which supported the decisions of the lower Court could not be permitted to stand.

Coming to the fourth ground of appeal, there is no doubt that there was no plaint or statement of claim on the file. The learned Chief Magistrate found no copy of plaint or statement of the claim on file. Although rules under Magistrates courts Act do not specifically talk of a plaint they nevertheless talk of statement of claim which must be read to the defendant who is asked whether he admits the substance of the claim. No doubt, there was no evidence of the statement of claim being found on the record when the appeal was heard by the learned Chief Magistrate. However, from the evidence of both parties it became evident that the plaintiff was claiming to be the owner of Kanena, whilst the defendant were claiming to be the owners of the hill, it having been one of the public grazing hills. So the question was whether the land on which the defendant constructed the kraal and crash belonged to the plaintiff or the defendant group. In my view its absence from record did not occasion any miscarriage of justice as from the record, every side knew what was being claimed.

As regards the fifth ground of appeal I think I have already discussed this while discussing the first ground. In my considered view it was erroneous on the part of the learned Chief Magistrate to conclude that the sole basis of the appellant's claim to the land was the lease offer; because according to the evidence on record, which was credible, the defendant group together with the respondent had a society known as "Barisa Kweterana Nyabutungurukwa Kanena" literally interpreted as "cattle-keepers Union Nyabutungurukwa Kanena" and were having these hills on which they grazed their cattle for many years. From the evidence, in 1958, these two hills were declared public grazing area and people started grazing their cattle. In 1968, the group applied to have their grazing areas under customary tenure to be leased to them. At that time the evidence, which was uncontroverted, was that the respondent/plaintiff was the secretary of that group. The hills were inspected and none raised any objection to the two hills being offered to the defendant group in leasehold. The respondent, who was a member of the Barisa Kweterana, Nyabutungurukwa Kanena, claims the defendant group was offered only Nyabutungurukwa whilst the claimed Kanena hill to be his own hill by purchase. As I have already held there was no credible evidence to prove he had purchased anything in form of forests from Kanena hill. There was nothing before the learned Chief Magistrate or before me to show that the appellant group was offered 80 hectares of Nyabutungurukwa hill only. In any case, even assuming the 80 hectares offered was confined to Nyabutungurukwa this did not mean the defendant group lost their customary rights which they had exercised and enjoyed for many years over Kanena hill unless and until the controlling authority (ULC) had offered it to another applicant, probably plaintiff, if he convinced them he would use it better than the defendant/appellant group and that they could only do this after the customary owners were given a hearing. The defendant/appellant group would not simply be deprived of their rights over Kanena hill without being heard. Here I must state that there was no evidence of defendant group having been deprived of their customary rights over Kanena and no such action would legally be done by the Uganda Land Commission to take away Kanena from them (defendant) without giving them a hearing as doing so would be infringing upon cardinal rules of natural justice of *audi alteram partem*. Therefore even if assuming that Kanena hill was not offered to the Barusa Kweterana Nyabutungurukwa Kanena in leasehold, the law recognises their customary right over it and therefore failure to offer Kanena to defendant never disturbed or extinguished their customary ownership over Kanena. Their rights could be tampered with if after hearing any applicant and the defendant group, the controlling authority of public land which is the ULC found that the applicant would use it better than the defendant group. But even then, the defendant group could go to court seeking remedy.

Therefore, I would accept the submission that the learned Chief Magistrate erred in concluding that the sole basis of the appellant's claim to Kanena hill was the lease offer. From the evidence which was overwhelming Kanena hill was part of their grazing area held under customary tenure together with Nyabutungurukwa. They applied to have their customary holding on both hills to be brought under operation of Registration of Titles Act by getting a lease for both hills. If one hill was offered in leasehold, the other one remained theirs under customary tenure.

Lastly, Mr *Keitirima*, counsel for appellant criticised the way the learned Chief Magistrate handled the appeal. He wondered whether memorandum of appeal is required by law for fun. He submitted that the learned Chief Magistrate never considered each ground set out in the memorandum of appeal. For instance

grounds two, four, six, seven and eight were never considered at all by the learned Chief Magistrate. It was submitted that he only considered first and second grounds of the memorandum of appeal. It was contended that this was not proper exercise of his appellate jurisdiction. Unless he excluded other grounds and gave reasons for doing so, he would not legally ignore the grounds contained in the memorandum of appeal. It was contended that this was not proper exercise of his appellate jurisdiction. Unless he excluded other grounds and gave reasons for doing so, he would not legally ignore the grounds contained in the memorandum of appeal. It was contended that if he had considered each ground of appeal separately, he would have come to a different decision.

On the other hand Mr *Kahungu*, counsel for respondent submitted that the ground had no merit, because according to him all grounds were considered except that they were never considered in a chronological order, but failure to do so, he contended, never affect the final decision.

After carefully considering the memorandum of appeal and the grounds contained therein and after carefully going though the judgment of the learned Chief Magistrate I find that the learned Chief Magistrate never considered grounds two, four, six, seven and eight of appeal which he was under a duty to do. The learned Chief Magistrate was bound to consider the grounds contained in the memorandum of appeal unless he gave reasons for discussing two or three grounds together. He cannot simply ignore the grounds and pick one or two and content himself that he has disposed of the appeal, if he does not give reasons for omitting other grounds in the memorandum of appeal.

Therefore considering the submission of both counsel, I think that the appellate Court is under a duty to consider the grounds raised in the memorandum of appeal it can consider two or more grounds together and should say so, if it does so, but should not simply pick on one or two and discuss those and completely ignore the rest of the grounds. Otherwise the purpose of memorandum of appeal would be defeated.

Therefore considering all the above grounds the appeal is allowed with costs here and below. The judgment and order of the learned Chief Magistrate and trial magistrate are set aside.

For the appellant:
Keitirima

For the respondent:
Kahungu

Kenindia Assurance Co Ltd v Muturi
[1990–1994] 1 EA 193 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	31 May 1994
Case Number:	87/93
Before:	Gachuhi, Kwach and Akiwumi JJA
Sourced by:	LawAfrica

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[1] Arbitration – Stay of proceedings.

[2] Consent judgment – Court's power to set aside – Factors to consider.

Editor's Summary

The appellant had insured the respondent's pick-up. The terms of insurance stated, *inter alia*, that in case of an accident the respondent would pay the appellant 10% of the costs of repair and that in case of any disputes, the matter would be referred to two arbitrators, appointed by the parties, to determine it. It was also stated that the making of an award by the arbitrators would be a condition precedent to any right of action by either party.

The respondent's vehicle was later involved in an accident (after execution of the insurance agreement) and the respondent paid the appellant 10% of the costs of repairs as per the terms of the agreement.

However, the appellant delayed in the repairs and did not provide another pick-up to the respondent to assist him in the business. Hence the respondent's business that relied heavily on the pick-up allegedly suffered. The respondent then sued for special and general damages for loss of use of the pick-up.

During the proceedings the Court stayed the matter pending a reference of the matter to arbitration as per the terms of the agreement. Both parties therefore appointed their respective arbitrators.

However, there were still misunderstandings between the parties and their respective agreements. The respondents therefore applied to the High Court for hearing dates on the grounds that the arbitration proceedings had broken down. The High Court then set aside the consent judgment and set hearing dates.

On the hearing date the appellant raised objections that the consent order for a stay of the proceedings had not been set aside and that completion of the arbitration was a condition precedent to a right of action by the respondent. The trial Judge dismissed these objections. The appellant then applied for an adjournment of the matter but this application was also dismissed. The judge then proceeded to hear the matter and found for the respondent.

The appellant appealed.

Held – A consent judgment may only be set aside for fraud, collusion or for any reason which would enable the Court to set aside an agreement. *Brookebond Liebig (T) Ltd v Mallye* [1975] EA 264 followed.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Brooke Bond Liebig (T) Ltd v Mallye 1975 EA 267 – **F**

Kenindia Assurance Company Ltd v Patric Muturi civil application number Nai 107 of 1993 (44/93) UR

Judgment

Gachuhi, Kwach and Akiwumi JJA: The appellant, an insurance company, had insured the respondent's commercial vehicle, a Toyota Hilux pick-up, for a maximum sum of KShs 350 000. The

related insurance policy which

is in common form, provided that in case of damage to the pick-up that required to be repaired, the respondent would pay 10% of the cost of repairs. The policy as is normal in such policies, also provided in clause 9 thereof, which is commonly referred to in the trade as an "all differences" clause, for the reference of all differences arising out of the policy to, in this case, two arbitrators appointed one each in writing, by the parties to the dispute. Clause 9 also goes on further to make the following important provision, that:

> ". . .and the making of an award shall be a condition precedent to any right of action against the company."

Shortly after the policy came into effect, the respondent's pick-up was involved in an accident as a result of which, it was extensively damaged. The appellant agreed to have the pick-up repaired and the respondent paid to the appellant l0% of the repairs, in this case estimated at KShs 35 000. The respondent claimed that the appellant was taking an inordinately long time in repairing the pick-up, and that what repairs had been done were of poor quality and unsuitable and that the delay in repairing the pick-up and that what repairs had been done were of poor quality and unsuitable and that the delay in repairing the pick-up and to a proper standard, badly affected his business as a supplier of vegetables and fruits to many customers. In spite of several requests made by the respondent, the appellant failed to have the pick-up properly repaired or until then, to supply the respondent with another vehicle so as to enable him to carry on his business. And so, the respondent sued the appellant seeking general and special damages for the loss of the use of his pick-up. The plaint was filed on 12 April 1990. Appearance for the appellant must have been entered, for about two months later on, 18 June 1990; the matter came before Oguk J where both parties were represented by counsel. Mr *Mithega* for the respondent then informed the judge thus:

> "We have a consent order to record in this case as follows: 'by consent proceedings in this suit be stayed. Costs to the applicant in respect of this application'."

Mr *Ghadialy* for the appellant, then significantly retorted as follows:

> "I agree, *the suit is premature*. I would have liked the costs of this suit". (Emphasis ours.)

Though the record of proceedings for that day is not clear on the point, the order for stay was made in order that the provisions of clause 9 of the policy should first be complied with, if the respondent was to have any cause of action against the appellant at all. Indeed, three days after the making of the consent order, advocates for the respondent wrote to the appellant's advocates *inter alia*, that:

> "Following the order for stay of the proceedings in this case we are now requesting you to have this matter sent for arbitration as condition 9 of policy number 115/030/100/621/39/9" (presumably the policy covering the respondent's pick-up with the appellant)."

Correspondence exhibited in the matter show that in February 1991, the appellant appointed Mr BJ Howkes of BJ Howkes, advocates, as its Arbitrator. The respondent having first unsuccessfully sought to appoint the Commissioner

of Insurance as his Arbitrator, finally, appointed in May 1991, Mr JM Mwarania of Mbae Mwarania and Company Advocates, as his Arbitrator. There can be no doubt that the stay of proceedings had been ordered so that the dispute could go for arbitration. Thereafter, there ensued an exchange of correspondence between Arbitrators and between them and the advocates of the parties. As does happen in such cases, the hearing of the arbitration proceedings was delayed. It appears from the correspondence that the parties having failed to draw up agreed upon issues for consideration by the arbitrators, it was agreed by Mr Mwarania in his letter of 12 February 1992, that the arbitration proceedings should be conducted in accordance with the following proposals contained in Mr Hawkes' letter of 18 November 1991, addressed to him.

> "It seems to me that the facts are not in dispute and the argument involves assessing the facts in conjunction with the policy.
>
> It seems to me it might be possible for the two sides to agree a bundle of documents and to submit such bundle to you and to me without the necessity of giving evidence which will save considerable expense in this matter."

In disregard of this agreed mode of conducting the arbitration proceedings, the respondent's advocates, without informing the appellant's advocates, sent to the Arbitrators their own, not agreed, bundle of documents, together with their then unasked for, written submissions. Mr Hawkes wrote on 19 February, 1992, to the appellant's advocates expressing his surprise at this, and in a subsequent letter of 18 September 1992, addressed to Mr Mwarania and copied to the Deputy Registrar of the High Court at Meru, deplored Mr Mwarania's actions and what he saw as wrongful steps being taken to have the suit heard at that stage. The appellant's advocates protested against the steps taken by the respondent's advocates which led to a dispute between these advocates as to who had acted improperly and who was causing the delay in the arbitration proceedings. But it seems to us that the advocates of the respondent cannot escape some measure of blame.

Then on 9 June 1992, Mr Mwarania took it upon himself, alone, and wrote on his own behalf, to the appellant's advocates and copied to his fellow Arbitrator and the respondent's advocates, a letter which contained the following cynical sentence which pays no respect to the agreed mode of the arbitration proceedings:

> "As no submissions have been made by you we are afraid that we. are unable to proceed with this matter and by copies of this letter we are informing the interested parties that they can recall for (*sic*) order for arbitration and have the matter adjudicated upon by Court."

This uneducated and contrived advice was probably what the respondent's advocates were waiting for, for they lost no time in informing the appellant's advocates that they intended as a result of Mr Mwarania's letter, to apply to the High Court for matter further directions. On 7 July 1992, Mr *Mithega* had the matter placed before Oguk J only for the limited purpose of taking a hearing date for the disposal of the suit notwithstanding the provisions of clause 9 of the policy and the fact that Mr *Ghadialy* had on 18 June 1992, written to Mr Mwarania, the respondent's Arbitrator copied to Mr *Mithega*, remonstrating with Mr Mwarania, we think quite rightly, that:

> "There is no shortcut and the matter cannot go back to the Court without the other party being informed of any agreement reached by the arbitrators or one arbitrator and the party appointing him."

Mr *Mithega* without having filed a formal application, informally, submitted to Oguk J that a hearing date for the disposal of the suit by the Court be fixed since Mr Mwarania could not proceed with the arbitration. It would perhaps have been more appropriate if an application had been made under section 9 or 12 of the Arbitration Act, to replace an arbitrator who had refused to act. However, counsel then holding brief for the appellant's counsel, Miss *Mwangi*, asked for an adjournment as Mr *Ghadialy* was engaged elsewhere and pointed out significantly, that the suit had been stayed by consent of both parties and if a hearing date were to be taken, it should be by consent of both parties. She might well have added that a true consent order could only be set aside by consent. But the learned Judge did not accede to this request and in a ruling in which he concedes that the matter had been stayed so that the dispute may be arbitrated upon, and without making a specific order setting aside the order of stay, proceeded to pronounce himself in the following manner:

> "It appears that it has become impossible to proceed with arbitration In this case. In the circumstances the suit is now listed for hearing on 12 October 1992. Costs in the cause"

He further ordered that hearing notice be served on the appellant.

But what is the effect of this order on the order of stay of proceedings that was made on 18 June 1990, so that the dispute between the parties might be determined by arbitration under the "all differences" clause 9 of the policy? As already shown, the making of an award after an arbitration is what shall give rise to any right of action against the appellant. In other words, if no arbitration is first carried out, no matter how dilatory the tactics of a party to it may be, in its determination, the insured cannot bring an action against the insurer arising out of the policy of insurance unless perhaps it can be shown as is not the case here, that the insurer was fraudulently and deliberately frustrating the determination of the arbitration proceedings.

Furthermore, the Arbitration Act which governs arbitration proceedings contains provisions which are relevant to the dispute between the parties. Section 6 of the Act provides that if a party to an arbitration agreement such as the respondent within the context of clause 9 of the policy, commences any legal proceedings in any court against the other party to the arbitration agreement such as the appellant, matters agreed to be referred to arbitration such in respect of as the dispute between the parties which is covered by the "all differences" clause 9 of the policy, any party such as the appellant, may at anytime, after entry of appearance and before delivering any pleadings such as a statement of defence, apply to the High Court, for stay of proceedings in compliance with the provision of section 6 of the Act, the appellant after entry of appearance and without being required to file its defence, properly obtained by consent, stay of proceedings of the suit filed by the respondent.

Although the Act does not make any provisions concerning the setting aside of an order of stay obtained under section 6, it contains other provisions giving the High Court various other powers with respect to the conduct of an arbitration which are not relevant to the matter now before its. The answer to the question how a stay granted by consent so as to enable an arbitration to take place, can be set aside, must therefore be looked for elsewhere.

So what powers therefore, has the High Court to set aside a stay of proceedings that is ordered by consent so that a matter in dispute can be referred to

arbitration? The setting aside of a consent judgment was considered by the East African Court of Appeal, the predecessor to this Court, in the case of *Brooke Bond Liebig (T) Ltd v Mallye* [1975] EA 267. In that case, it was held that a consent judgment may only be set aside for fraud, collusion or for any reason which would enable the Court to set aside an agreement. This principle would in our view, apply with equal force to a consent order such as the one made on 18 June 1990. It can only be set aside by consent, unless upon proper application having been made, it can he shown, as is not the case here, that the consent order was obtained by, fraud or collusion. Indeed, it was counsel for the respondent who had applied to the High Court for the consent order to be made. Indeed, he had supplied the wording of the order. But does the evidence in this matter also show that the appellant has acted in any way that would justify a Court setting aside an agreement, with respect to the consent order of stay of proceedings? We would say no. But a matter that bears repetition is that the informal application before the learned Judge on 7 July 1990, was for the fixing of a hearing date, a matter which is quite different from the setting aside of the fundamental and substantial order of stay of proceedings which in any case, was not applied for or even mentioned by counsel for the respondent in his submissions or even by the learned Judge in his ruling. The substantive order of stay of proceedings cannot be set aside by a side wind within the context of an informal application for the fixing of a hearing date, when the setting aside of the stay of proceedings was not specifically in issue or cogent reasons advanced in support of it. It must also not be forgotten that in compliance with the provisions of section 6 of the Act, stay had been ordered before the appellant filed its defence, and it would be unreasonable to fix a hearing date without even giving the appellant the opportunity of filing its defence. The lack of a defence was to be unfairly and improperly exploited by Kuloba J when he came to hear the suit.

It is clear to us that the order of Oguk J did not amount to a setting aside stay of proceedings then before the High Court. It was also a futile order since, without the completion of the arbitration and the making of an award, no right of action could in terms of clause 9 of the policy, accrue to the respondent. This being so, the proceedings in the suit in the High Court remained stayed and the suit could not have gone on for hearing and what hearing took place was null and void. This really concludes the matter before us. But it is instructive to consider what took place after the fixing of the hearing date by Oguk J.

On 24 February 1993, the suit came up for hearing before Kuloba J and Mr *Ghadialy* for the appellant, raised preliminary objections to the hearing of the suit. These were that since the order of stay of proceedings had been made by consent, it was wrong for the suit to be set down for hearing as Oguk J had ordered on 7 of July 1992, on the unilateral application of counsel for the respondent; and that the delay in commencing the arbitration proceedings was caused by the respondent and in any case, the completion of the arbitration proceedings and the making of the award therein, was a condition precedent to the right of action in Court accruing, to the respondent. Mr *Mithega* for the respondent opposed the preliminary objections saying that an application to review the so called order setting aside the order of stay should have been made; that Mr *Ghadialy* was fully represented by Miss Mwangi when Oguk J directed that the suit be listed for hearing, and that the delay in proceeding with the arbitration due to the actions of the appellant.

Kuloba J overruled the preliminary objections raised *inter alia*, on the grounds that he, having no jurisdiction to hear an appeal against the order of Oguk J setting aside the stay of proceedings, he could not even if he wanted to, set that order aside; that clause 9 of the policy could be exploited to delay or frustrate the resolution of the matter in dispute and that this factor, and there is no evidence at all to support this, had influenced Oguk J in making his order setting aside the order of stay of proceedings. Kuloba J then overruled Mr *Ghadialy*'s objections. With respect, if the learned Judge had only taken the trouble to consider carefully the proceedings before Oguk J on 7 July 1992, he would not have, failed to come to the conclusion that even though Oguk J had made an order fixing a date for the hearing of the suit, he had certainly not made an order, which incidentally, had not been applied for, setting aside the consent order of stay of proceedings.

Mr *Ghadialy* then sought an adjournment to enable him to file a defence which he had not been required to file in view of the fact that stay of proceeding had been ordered by consent within the context of section 6 of the Arbitration Act. This reasonable request was refused.

A third submission by Mr *Ghadialy* that the suit was unmaintainable because no award had been made as a result of the arbitration proceedings which could then give rise to a cause of action by the respondent, was also brushed aside by Kuloba J. His reason for doing this, *inter alia*, and which we find wholly untenable, was that the jurisdiction of this Court could not be outed by "the simple devise of an unguardedly phrased arbitration clause", which is well known to be common form in the trade, and that this was particularly so, when it had not been shown that the parties had equal bargaining power in the drawing up of the contractual clause in question. But firstly, there is little room for bargaining, as the learned Judge himself, must know when it comes to insurance policies in respect of motor vehicles. Next, the learned Judge, refused Mr *Ghadialy*'s fourth application for leave to withdraw from the suit. Kuloba J then proceeded to hear the evidence of the respondent. No witness was called on behalf of the appellant and Kuloba J then reserved his judgment to a date to be notified. In the reserved judgment, he found for the respondent, emphasising, as if he did not know why, that no defence had been filed within fourteen days of entering appearance, the appellant must, be taken to have admitted the averments in the respondent's plaint. Having thus as it were, justified what he intended to do, the learned Judge in a long winded and verbose judgment concluded by awarding the respondent general damages in the sum of KShs 2 000 000, a sum far in excess of the maximum amount for which the respondent's pick-up was insured, KShs 2 256 000 by way of special damages plus costs to be agreed upon and interest at the usual rates and from the usual respective dates until the satisfaction of the judgment.

It has come as no surprise at all to us that the appellant has appealed against the judgment of Kuloba J on the ground that the supposed order of Oguk J setting aside the consent order of stay of proceedings being bad in law and of no effect, could not be relied upon by Kuloba J as conferring jurisdiction on him to hear and determine in the high-handed and oppressively hasty manner, the suit that the respondent had filed. On 16 July 1993, the appellant obtained a stay of execution of the judgment of Kuloba J and undertook to deposit into an interest bearing account in the joint names of the appellant and the respondent, the decretal sum arising out of the judgment of Kuloba J.

Mr *Mithega* for the respondent could only make the feeble submission that though the informal application before Oguk J on 7 July 1992 was for the fixing of a hearing date, it was by implication, also an application for the setting aside of the consent order staying proceedings in the suit before the High Court.

As we have already concluded, there was no valid order setting aside the consent order staying the proceedings in the suit before the High Court. This latter order still stands and the bearing of the suit by Kuloba J was a nullity and of no effect. The appeal against his judgment is allowed and the decretal sum deposited by the appellant as a result of the ruling of this Court dated 16 July 1993, in the case of *Kenindia Assurance Company Limited v Patric Muturi*, civil application number Nai 107 of 1993 (44/93(UR)), together with the interest earned, shall forthwith be released to the appellant who shall also have its costs of this appeal.

For the appellant:
Mr Ghadialy

For the respondent:
Mr Mithega

Kenindia Assurance Co Ltd v Otiende
[1990–1994] 1 EA 200 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	17 May 1990
Case Number:	103/89
Before:	Hancox CJ, Masime and Kwach JJA
Sourced by:	LawAfrica

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[1] Insurance – Motor accident causing severe injuries and paraplegia – Third party risks – Whether insurance company liable directly to plaintiff without judgment being obtained against negligent party insured – Concurrent civil suit against insured and employee – Whether policy required to cover liability for injuries of respondent if also an employee – Section 5(b)(i) and 10(1) – Insurance (Motor Vehicles Third Party Risk) Act (Chapter 405) – Order XVI, rule 6 – Civil Procedure Rules.

Editor's Summary

On 29 April 1983, the respondent was severely injured when a matatu in which he was being carried was involved in an accident and overturned. The evidence showed that the matatu was driven and owned by the first and second defendants in a separate suit brought in 1983 by the respondent against them for negligence and vicarious liability respectively. That suit had been dismissed under the three year rule on 14 July 1989. It was common ground in the instant suit that judgment had not been obtained against the owner or the driver of the matatu, being the persons insured under a policy with the appellant. The trial Judge held that a compromise agreement whereby the appellant as insurers had agreed to settle the disputed claim directly with the respondent in respect of their insured's liability,

was enforceable, and that the appellant was liable in damages directly to the respondent. However, the point that no judgment had been obtained against the persons insured, was not raised in the

High Court, either on the pleadings or in the evidence, neither was it raised in the memorandum of appeal. It was raised for the first time in a letter dated 19 March 1990 from the appellants' advocates to the respondent's advocates, and was taken on a preliminary point purportedly as a matter going to the jurisdiction of the High Court when the appeal was heard.

The evidence also disclosed that at the time of the accident the respondent was in fact employed by the insured as an assistant conductor in the vehicle.

On the preliminary issue as to jurisdiction it was submitted on behalf of the respondent that the appellant had admitted the jurisdiction of the High Court and that it had in fact induced the Court to hear the case on agreed issues that they had advanced, and that on the authority of *Oscroft v Benabo* [1967] 2 All ER 548 they could not now raise the point on appeal for the first time.

Held – The normal rule that a party could not raise for the first time on appeal a point they had failed to raise in the High Court did not, and could not, apply when the issue sought to be raised *de novo* on appeal went to jurisdiction.

The requirement in section 10(1) of the Insurance (Motor Vehicle Third Party Risks) Act that judgment is obtained against the insured before insurer becomes liable under the Act is an essential pre-condition of liability under the Act. Without it the Court has no jurisdiction to order the insurer to pay damages for injuries to the respondent, so that the appellant company was not estopped from raising the issue as a preliminary point on appeal.

In any event it was doubtful whether the liability was one which was required to be covered by section 5(*b*) of the Act, in as much as the appellant was said to have been an employee of the insured at the material time and the bodily injury sustained by him arose out of and in the course of his employment, and was thus excluded by the first *proviso* to section 5.

As the appellant had by its conduct in failing to take the preliminary issue in the High Court, and indeed until a later stage in the preparations for the appeal, it had to that extent misled the respondent into thinking that the point would not be taken and thus caused him not to pursue the concurrent action with any diligence. It would accordingly be ordered to pay two thirds of the respondent's costs in both courts (dictum of Law VP in *Nakuru Oils Mills v Lakhani* [1976] KLR 33 at 39 considered).

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kenya Commercial Bank Limited v James Osebe [1982] 1 KAR 48

Nakuru Oil Mills v Lakhani [1976] KLR 33 – **C**

Judgment

Hancox CJ: We have listened to both advocates and the authorities produced. The main body of section 10(1) of the Insurance (Motor Vehicle Third Party Risks) Act (Chapter 405) is in our opinion clear. It says:

> "If, after a policy of insurance has been affected, judgment in respect of any such

> liability as is required to be covered by a policy under paragraph (*b*) of section 5 (being a liability covered by the terms of the policy) is obtained against any person insured by the policy, then, notwithstanding that the insurer may be entitled to avoid or cancel, or may have avoided or cancelled, the policy, the insurer shall, subject to the provisions of this section, pay to the persons entitled to the benefit of the judgment any sum payable thereunder in respect of the liability, including any amount payable in respect of costs and any sum payable in respect of interest on that sum by virtue of any enactment relating to interest on judgments."

It is common ground, and is indeed apparent from this record, that no judgment against the insured, that is to say Titus Otiende Midrah who is, or rather was, the second defendant in High Court civil case 4362 of 1988, has ever been obtained. We do not for the moment need to decide the issue as to whether the liability was one required to be covered by a policy (the point being that contrary to section 5(*b*)(i) of the Act the unfortunate plaintiff/respondent was an employee at the relevant time) but we do note that the jurisdiction point was never taken in the High Court before Shields J. The tenor of his judgment is obviously that there was at least moral liability in the appellant and that that led to legal liability. We say unhesitatingly that that was a wrong approach. Accordingly, on the plain wording of the subsection, an essential pre-condition of liability did not exist, and as it is axiomatic that a third party cannot sue on a contract if he is not a party to it (as the respondent was not), then in the absence of any statutory exception, he cannot sue on that contract.

In this case the contract of insurance was between Titus and Kenindia. Therefore the plaintiff in this case was out of court *ab initio*. We are satisfied that this is a point of jurisdiction. True, as Mr *Wamalwa*, in a valiant attempt to save the situation, pointed out to us, the appellant's admission of jurisdiction in their defence and their invitation to the judge to decide the agreed issues, and this was directly made by Mr K *Mwaura* at 86 of the record, was in some senses an agreement that the case was for trial by the judge. But neither that admission nor the invitation can confer on the Court jurisdiction when none exists.

Even though a point is not taken in the Court below or in the main memorandum of appeal (though Mr *Shah* said it was taken in the "supplementary" dated 19 March 1990), this Court is bound to decide it (see *Kenya Commercial Bank Limited v James Osebe* [1983] 1 KAR 48) but that principle does not bind us on the matter of costs. Not only did the appellant in this case lull the rather unsuspecting advocates for the plaintiff respondent into not realising that there was such a point, but they actively encouraged their false sense of security and we have in mind, in particular, the statement of objection of page 28 of the record. Even though this was made in response to the summary judgment application, it had the effect, we are sure, of misleading the legal advisers to the plaintiff/respondent.

We have called for the file in High Court civil case 4362 of 1983 and we note with concern that that has now been dismissed under the three-year rule, but after Messrs *K Mwaura* has withdrawn from that case. In these circumstances is the unfortunate plaintiff, who is a paraplegic as a result of the accident, to have no remedy or recompense at all? We trust not. It may well be that as the first plaintiff in that case he took no steps because of this then ongoing appeal.

Returning to the question of costs, Mr *AB Shah* did concede his clients should pay some of the other side's costs of the High Court suit, but not of the appeal.

After considering the judgment of the Court's predecessor and in particular that of Law VP in *Nakuru Oil Mills v Kakhani* [1976] KLR 33 at 39, we think the appellants should pay two-thirds of the respondent's costs both in the High Court and in this appeal.

Being therefore of the view that the preliminary objection must succeed we allow the appeal but make the order regarding costs above indicated.

As regards the High Court action we hope that an application to extend time in the High Court (which may well have expired by now) should be sympathetically treated.

Orders accordingly.

For the appellant:
AB Shah and K Mwaura

For the respondent:
FN Wamalwa and Chakava

Kenya Bus Services and another v Mayende
[1990–1994] 1 EA 203 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	31 January 1991
Case Number:	34/90
Before:	Hancox CJ, Masime JA and Omolo AJA
Sourced by:	LawAfrica

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[1] Quantum of damages – Injuries of maximum severity – Loss of both legs below knee – Principles on which appellate Court is entitled to interfere with an award of damages – Principles of assessment of contributor of minor – Necessity to plead and prove special damages with particularity.

Editor's Summary

On 8 March 1984, the respondent, aged 12, was run over by a bus owned by the first appellant company and driven by the second appellant. At the trial before Bosire J, liability was conceded and the hearing proceeded on the issue of damages, the advocate for the respondent conceding that he was contributorily negligent to the extent of 10%. The judge held, *inter alia*, that the respondent's earning capacity had been substantially reduced and assessed damages under that head of KShs 200 000. He also awarded KShs 1 100 000 as damages for pain, suffering and loss of amenities.

On appeal it was contended that the judge had erred in principle in holding that the respondent was to be compensated for the injuries he suffered, rather than for the loss occasioned by the injuries. It was also contended that the judge had misapprehended the nature and extent of the injuries and that as a consequence of these errors, the judge had awarded excessive damages.

Held – The principles on which an appellate Court will interfere with a trial Judge's assessment of

damages are now well settled in the Court of Appeal. The court will only interfere where an error of principle by the trial Judge is shown, or where the damages awarded are as high or as low that they must be a wholly erroneous estimate and an error or principle must be inferred.

No error of principle by the judge was shown and the damages awarded were not so high that an error of principle could be interfered.

The special damages awarded were far in excess of the KShs 59 991-50 pleaded and the Court drew attention to the earlier decisions of the Court which decided that special damages have to be strictly proved, but as they had been agreed between counsel and no point had been taken in the appeal, that part of the award would not be disturbed.

Before the 10% contributory negligence was conceded on behalf of the respondent his legal advisers and the judge should, on the authority of *Butt v Khan* [1977] 1 KAR 1, have satisfied themselves that on 8 March 1984, he had the capacity to know that he should not commit the act or omission which resulted in the accident.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Butt v Khan [1977] 1 KAR 1 – **F**

Henry Wangahu Kibucha v Isabella Masongo civil application number 98 of 1989

Idi Ayub Omari Shabani v City Council of Nairobi [1985] 1 KAR 681

Janet Ndiare v Kenya Bus Services civil application number 121 of 1987

Mariam Maghema Ali v Jackson Nyambu civil application 5 of 1990

Oratah v Atieno [1983] Digest – Inamdar 10-1-03

Robert Msioki Kitavi v Coastal Bottlers [1985] 1 KAR 891

United Kingdom

Bonham Carter v Hyde Park Hotel [1948] 64 TLR 177

Jobling v Associated Dairies Limited [1981] 3 WLR 172

Judgment

Omolo AJA: This appeal arises from the judgment and decree of the High Court at Mombasa (Bosire J) by which the appellants, Kenya Bus Services (Mombasa) Limited (first appellant) and Peter Kitheka (second appellant) were ordered to pay to the respondent, Frederick Mayende, a total of KShs 1 626 391 as damages, general and special. The dispute arose because on 8 March 1984 the respondent was run over by a bus (registration number KUR 801), which was at that time owned by the first appellant and was being driven by the second appellant as an employee or agent of the first appellant. The respondent, who was then a minor aged 12 years and in standard seven at a Mombasa Primary School, suffered grave injuries, was admitted at the Aga Khan Hospital, Mombasa, where he stayed for some two months. He was then discharged in a wheel-chair and on the 14 May 1985, he, through his father as his next friend, instituted a suit in the High Court at Mombasa alleging negligence against the

second appellant and claiming general and special damages against both appellants for his injuries. The appellants filed a defence denying that the second appellant was negligent and in turn they averred that it was the respondent who was negligent or alternatively that the respondent's negligence substantially contributed to the accident. When the matter eventually came up for hearing before Bosire J on 23 August 1988, the following order was recorded:

> "Order
>
> By consent and with court's approval plaintiff concedes 10% contributory negligence with the result that the question of liability judgment is entered for the plaintiff against the [sic] both defendants jointly and severally to the extent of 90% liability. As for damages, special and general, Mr Gathuku has undertaken to seek and obtain his client's approval of the figures which have been agreed upon by both counsels appearing in the matter and to report back on 12 September 1988. . ."

It is clear from the record that the parties failed to agree on quantum of damages and that issue went for trial before the judge on 12 October 1989.

The respondent was a minor, suing through his father, when the suit was instituted. By consent of these legal advisers, and apparently with the approval of the Court, he was held to have been contributorily negligent to the tune of 10%. I suppose that before the learned trial Judge gave his approval, facts were placed before him and he was satisfied from those facts that being only 12 years old at the time of the accident, the respondent had the capacity to know that he ought not to do the act or make the omission which resulted in the accident occurring. I would draw attention to the words of Madan JA, as he then was, in the case of *Bashir Ahmed Butt v Uwais Ahmed Khan by M Akmal Khan* [1977] 1 KAR 1 (at 6):

> "I respectfully agree, and I would also dismiss the appeal in so far as it relates to contributory negligence. Indeed, I am of the opinion the practice of the civil courts ought to be that normally a person under the age of 10 years cannot be guilty of contributory negligence, and thereafter, insofar as a young person is concerned, only upon clear proof that at the time of doing the act or making the omission he had capacity to know that he ought not to do the act or make the omission."

In the appeal before us, the respondent was 12 years old at the time of the accident and since the order saddling him with 10% contributory negligence was only made with the approval of the judge, we take it that there must have been facts which satisfied the judge that whatever it was the respondent did or omitted to do, the respondent had the capacity to know that he ought not to do the act or make the omission. I will say no more on this point as no complaint was raised about it in the appeal.

Having failed to reach agreement on the issue of damages payable to the respondent, that issue was fought out before the judge and, as I said earlier, the judge awarded the respondent a total of KShs 1 626 391 made up as follows:

(*a*)	General damages for pain, suffering and loss of amenities	KShs 1 100 000
(*b*)	Loss of earning capacity	KShs 200 000
(*c*)	Cost of invalid equipment, its servicing	
	Including cost of travel to and accommodation in UK	KShs 220 000
(*d*)	Cost of future medical care	KShs 70 000
(*e*)	Special damages	KShs 217 990
	Total	KShs 1 807 990
	Less 10% contribution	KShs 1 626 391

The appellants appealed against two items, namely (*a*) and (*b*) and they list two grounds of appeal which are that:

1. The learned Judge acted on a wrong principle of law in assessing damages payable to the plaintiff respondent.
2. The damages awarded to the plaintiff respondent were manifestly high compared with the injuries suffered.

These grounds are not specifically confined to items (*a*) and (*b*) in the judge's award but Mrs *Adogo* who argued the appeals before us told us at the beginning that their complaint is only against the two items – pain, suffering and loss of amenities (item (*a*)), and loss of earning capacity (item (*b*)). Otherwise there was no complaint on the other heads of damages. Before I deal with the grounds of appeal, there is one matter I wish to comment on and it is this. In his plaint, the respondent had claimed a total of KShs 59 991-50 as special damages. That was the sum specifically pleaded in the plaint. The sum eventually awarded to the respondent as special damages is the very large amount of KShs 217 990 and it is clear from the record this sum was awarded by consent.

The learned trial Judge specifically says in his judgment that special damages were agreed and he did not have to discuss it. The judge's view on this is fully borne out by the written submissions made to him by Mr *Gatonye* who appeared for the respondent and Messrs Kiambo and Company Advocates who appeared for the appellants. Though special damages were agreed, it is not clear why only KShs 59 991-50, was pleaded. I would once again draw attention to the recent remarks by the Court of Appeal in *Mariam Maghema Ali v Jackson t/a Sisera Store* civil appeal 5 of 1990 and in *Idi Ayub Omari Shabani v City Council of Nairobi* [1985] 1 KAR 681 at 684:

> ". . . Special damages in addition to being pleaded, must be strictly proved as was stated by Lord Goddard CJ, in *Bonham Carter v Hyde Park Hotel Limited* [1948] 64 TLR 177 thus:
>
> > 'plaintiff's must understand that if they bring actions for damages it is for them to prove damage, it is not enough to write down particulars and, so to speak, throw them at the head of the Court, saying, "this is what I have lost, I ask you to give me these damages". They have to prove it.'
>
> See also the case of *Ouma v Nairobi City Council* [1976] KLR 297 at 304."

As I have said the sum awarded to the respondent as special damages far exceeded the sum pleaded in the plaint, but as the award was made by the agreement of the parties and there being no complaint against the sum awarded, I can do no more than comment on the matter.

That now brings me to the grounds of appeal and as I have already pointed out, only two heads of damages were challenged. Mrs *Adogo* contended before us that the learned trial Judge applied a wrong principle of law in assessing damages payable to the respondent and further that the judge misapprehended the nature and the effect of the injuries suffered by the respondent, and that as a consequence of this misapprehension the judge awarded grossly excessive damages for pain, suffering and loss of amenities and also on the head of loss of earning capacity. In support of the contention that the learned Judge applied a wrong principle of law in assessing damages, Mrs *Adogo* drew our attention to a paragraph in the judgment wherein it is stated:

> "Damages are awarded for actual damage or injury suffered. The actual sum to award has to be based on real damage and on the basis of what the trial judge discerns the plaintiff has lost in amenities of life and his experience in estimating the loss in monetary terms. It has also to be arrived at bearing in mind awards in cases with similar or related injuries."

Mrs *Adogo*'s complaint about this passage appeared to be confined to the first two sentences and she drew our attention to the remarks of Nyarangi JA in *Janet Ndiare v Kenya Bus Service (Mombasa) Limited* civil application 121 of 1987 at 3 where that learned Judge says:

> "A person is not compensated for the physical injury: he is compensated for the loss which he suffers as a result of that injury. The plaintiff will be compensated not for having the serious injuries but for inability to lead a full life – *Jobling v Associated Dairies Limited* [1981] 3 WLR 172."

If I understood Mrs *Adogo* correctly, her position is that since the trial Judge was of the wrong view that damages were being awarded to the respondent for the actual damage or injury suffered by him, as opposed to the loss which he suffered as a result of his injuries, the judge applied a wrong principle of law and consequently, his assessment of damages was itself wrong.

The principles on which an appellate court will interfere with a trial Judge's assessment of damages are now well settled in Kenya. Kneller JA, as then was, put it thus in *Robert Msioki Kitavi v Coastal Bottlers Limited* [1985] KAR 891 at 895:

> "The Court of Appeal in Kenya, then, should, as its forerunners did, only disturb an award of damages when the trial judge has taken into account a factor he ought not to have taken into account or failed to take into account something he ought to have taken into account or the award is so high or so low that it amounts to an erroneous estimate. *Singh v Sing and Handa* [1955] 22 EACA 125, 129; *Butt v Khan* [1977] I KAR 1."

Also see *Idi Ayub Omari Shabani (an infant suing by his friend) and Yusufu Juma v City Council of Nairobi and Daniel Nachela Kahungu* [1985] 1 KAR 681 where Hancox JA, as he then was, stated the test thus (at 683):

> "The test as to when an appellate court may interfere with an award of damages was stated by Law JA, in *Butt v Khan* [1977] 1 KAR 1 (a case referred to in another context by the learned Judge) as follows:
>
> > 'An appellate court will not disturb an award of damages unless it is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the judge proceeded on wrong principles, or that he misapprehended the evidence in some material respect, and so arrived at a figure which was either inordinately high or low.'
>
> This direction has since been followed frequently by this Court."

Did the trial Judge really err in principle or is his award so inordinately high that it must be an erroneous estimate of damages payable to the respondent? For my part, I do not think so. I have already set out the alleged error of principle of which Mrs *Adogo* complains. On the face of it the argument looks attractive, but on more serious consideration, it really amounts to no more than semantics, and at the end of the day, it is the nature of the injuries suffered by the respondent and the effects of such injuries upon him that the trial Judge took into account. There was no dispute on the evidence as to the nature of injuries suffered by the plaintiff. As a result of the accident, the respondent underwent amputations on both his legs below the knee. He sustained extensive abrasions on the back of the chest and the lumbar area. He also sustained comminuted fracture of the pelvis, fracture dislocation of the left hip joint, rupture of the urinary bladder and urethra, concussion arising from a head injury, fracture of the left clavicle, fracture of the lumbar LV2 and abrasions on right knee and both thighs. The unchallenged medical evidence showed that

the respondent underwent at least three operations, two to amputate the legs and one to repair the ruptured bladder. The respondent was on skeletal traction for some weeks and following his discharge he had to attend the hospital to have his urethra dilated and there was uncontroverted evidence that such dilations would continue for the rest of the respondent's life. Again there was unchallenged evidence that the left pelvis had developed gross osteoarthritis and that the respondent would not be able to do anything about this until after the age of 50. Clearly the injuries suffered by the respondent, particularly to his legs were of maximum severity and in assessing what loss the respondent suffered as a result of the injuries; the judge was entitled to take into account the nature and extent of those injuries.

In arriving at the figure of KShs 1.1 million as damages for pain, suffering and loss of amenities, the judge considered authorities and relied particularly on the case of *John Okello Orata v George Atieno Ayuka* [1983] Digest-Inamdar-10-1-03 in which Masime J, as he then was, awarded to a two-year-old infant KShs 1 million as damages for pain suffering and loss of amenities. It is true that Orata's injuries were probably more serious in that at the age of two his bones would be growing faster than the skin and muscle and that repeated operations would have to be done in order to trim the continued growth of the bones, but even then the injury was to both legs, which is the position in the present appeal. It is also not to be forgotten that the award in *Orata*'s case (*supra*) was made on 11 October 1984 while the award complained of in this appeal was made on 24 November 1989, some five years later. The extra KShs 100 000 over a period of five years is understandable. Nor can I find anything in the case of *Henry Wangahu Kibucha v Isabella Kwamboka Mosongo* civil application 98 of 1989 to make me think that the sum awarded on the head of pain, suffering and loss of amenities in the current appeal is excessive. It is true the injuries to Isabella were also of maximum severity and it is true she was awarded only KShs 850 000 for pain suffering and loss of amenities, but it is equally true that the total damages awarded to her came to KShs 2 156 810. She was, for example awarded KShs 378 000 for nursing care; the learned Judge in the present appeal refused to award anything on this head.

The other head of damages complained of is the KShs 200 000 awarded to the respondent as loss of earning capacity. I did not understand Mrs *Adogo* to contend that no damages can be awarded under this head. Indeed, she conceded that that is a legitimate loss which the Courts must somewhat compensate; it was compensated to the tune of KShs 453 000 in the *Isabella* case (*supra*) Mrs *Adogo*'s complaint is that the KShs 200 000 awarded is excessive and once again she reverted to *Orata*'s case, in which KShs 200 000 was awarded. For my part, I do not think that *Orata*'s case can be of assistance to the appellants on this head. As I have said, Orata was only two years old and it must have been extremely difficult to assess what earning capacity he had lost at so young an age. The respondent was 12 years at the time of the accident and he was about 18 years old during trial. There was evidence that he was doing well in school and it was probable that had the accident not occurred, he might very well have pursued a mechanical engineering course at the university. There was evidence that in his present condition, the respondent would not be able to follow a course which would involve physical exertion. As the learned Judge pointed out, correctly in my view, "it is the risk that he might not reasonably compete in the job market for the available jobs . . ."; that had to be considered. The judge then awarded KShs 200 000 on this head. In my view, that sum cannot be treated as so large that an error of principle must be inferred.

In the end I have come to the conclusion that the damages awarded to the respondent were well within the general trend of awards in similar cases and there is no basis upon which this Court should interfere. Accordingly, I would dismiss this appeal with costs.

Hancox CJ: I have had the advantage of reading the judgment of Omolo AJA in draft and faired. The respondent suffered injuries which for a young person can be described as catastrophic, involving the amputation of both legs below the knee.

I entirely agree with all that Omolo AJA has said, and in particular with his reference to the aspect of 10% contributory negligence on the part of the respondent. As Masime JA also agrees it is ordered that the appeal be dismissed with costs.

Masime JA concurred in the judgment of Omolo AJA.

For the appellants:
Adogo

For the respondent:
CM Gatonye

Kenya Meat Commission v Raden
[1990–1994] 1 EA 209 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	27 January 1990
Case Number:	40/89
Before:	Hancox CJ, Gachuhi and Kwach JJA
Sourced by:	LawAfrica

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[1] Master and servant – Injury to employee's hand by cutting saw wielded by fellow employee – Whether particulars of negligence sufficient – Effect of variance between evidence and negligence alleged in plaint – Effect of inference by judge from material not given in evidence.

Editor's Summary

The plaintiff was a casual worker employed on the killing floor of the defendant's abattoir (a factory within the meaning of the Factories Act) and was engaged in that which he described as hosing down the horns of an animal which was in the process of being slaughtered, while a co-employee was removing the horns with a circular saw suspended from the ceiling and driven by electricity. The particulars negligence supplied in the plaint, to which the issues agreed before the judge related, stated that the saw had "slipped of" the co-employee and cut the dorsal aspect of his right thumb, causing permanent and painful injury to it. The only evidence, however, of the circumstances of the accident, which was given by the plaintiff himself, was to the effect that despite the animal having been stunned by the captive bolt procedure, it writhed in pain and jerked its head, thus knocking the co-employee's hand and the circular saw on to the plaintiff, resulting in injury to him. Counsel for the defendant and the judge at the trial commented on the differences, but the judge nevertheless found that the defendant had failed to ensure that their

system of work, procedure and the steps taken were sufficiently safe to prevent injury to the plaintiff, that they had failed in their duty of care and were consequently liable in damages for the injury. There was a conflict on the evidence as to whether the second act of hosing down the horns of the animal was necessary or was part of the procedure in the preparation of the carcass of the animal, and though no evidence was given as to why this was done, the judge nevertheless found that the reason was to clean the particles of horn from the animal in preparation for the succeeding operations.

The defendant commission appealed on the issue of liability.

Held – The variation between the evidence given and the particulars supplied in the plaint was not, in the circumstances of personal injury to an employee, fatal to a finding of liability on the part of the defendants.

The reason supplied by the judge for the second watering or hosing operation was not justified on the evidence, nor was it a necessary inference from the primary facts.

This constituted misdirection which might have resulted in the appeal being allowed, had the appeal been launched or argued on that footing.

Per Kwach JA – Had the appellant attacked the judge's findings as regards the second hosting operations the appeal would probably have succeeded.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Abbay Abubakar Haji v Marair Freight Agencies Limited [1984] 1 KAR 474

Kanti and Company Limited v British Traders Insurance Company Limited [1965] EA 108

Mohamed Mohamoud Jabane v Highstone Butty Tongoi Olenja [1986] 1 KAR 982

Plotti v Acacia Company Limited [1959] EA 248

Robert Kinuthia Mungai v Republic [1984] 1 KAR 611

United Kingdom

Blay v Pollard and Morris [1930] All ER Rep 609

Judgment

Hancox CJ: This appeal arises out of an accident that occurred to the respondent/plaintiff while a casual labourer at the Mombasa factory of the Kenya Meat Commission on 20 July 1981. Though the plaint was filed some three years later in June 1984, it did not come to trial until October 1988, after which Bosire J in a judgment dated 25 November 1988, found for the plaintiff on liability and assessed the damages for the injury to his right thumb at KShs 70 189 to include KShs 1 320-50 by way of special damages, but discounting KShs 1 137-25 paid under the Workmen's Compensation Act (Chapter 234). In

personal injury cases there is frequently an element of delay in the trial of an action because it is often not possible for those in medical charge of the cases to assess the degree of permanent and/or residual disability, if it exists, for several months or even years: videlicet for instance the case of *Mohamed Mohamoud Jabane v Highstone Butty Tongoi Olenja* [1986] 1 KAR 982, on which this Court commented on the delay, and which took eight years from the accident to the final disposal of the appeal. Nevertheless, the effect of so long a delay before the case is concluded on the recovery and morale of an injured plaintiff must in those circumstances be quite serious.

No complaint was made regarding the learned Judge's finding as to quantum of damages, and indeed in the Court of his argument Mr *Inamdar*, for the appellant corporation said he was confining himself to grounds one, two and three of the memorandum of appeal. As far as I can see, the judge did not make the findings of fact complained of in grounds four and five and six(ii) and these needs not, therefore, have been included in the memorandum. To do so merely clutters up the record, and we have said more than once that the inclusion of unnecessary grounds as a make weight in a petition or memorandum of appeal lengthens the appeal and tends to distract the minds of the Court from the essential issues. As to six(i), there was in fact no evidence to show how it was ensured that the animal was completely dead before the horn cutting part of the operation commenced and the judge's finding was, therefore, in that respect, correct.

Nevertheless, it cannot be gainsaid that there were some findings of fact which the judge made in the course of his otherwise very careful judgment which were not supported by the evidence or even by necessary inference from the primary facts. One such is the reason which the judge gave for the second sprinkling or hosing operation. By whichever name it is called, it denotes the application of water to that which had by then become (or which one hopes had by then become) the carcass of the animal taken to the factory for the purpose of being slaughtered.

The reason for the first hosing operation was perfectly clear. It was to remove dirt and grime for the exterior of the animal and thus presumably prevent contamination of infection of the meat into which the unfortunate beast is, by this series of operations, converted. As to the second, there was a direct conflict of evidence: I will not say a conflict of fact because the defendant' s only witness, Munyua, the foreman on the killing floor at the material time, had no knowledge of the accident itself. But whereas the plaintiff had said:

> "I was sprinkling water on the animal's horns as they were being cut . . ."

and

> "Yes, I was hosing down horns while they were being removed. This is done simultaneously with the cutting. Your are not right when you say that no housing was being done at the time of cutting horns. I had not worked long in section but I was assigned duty of hosing horns as they were being cut."

The foreman said:

> "No showering is done at stage of cutting horns. Health Department does not allow it."

And he reiterated this in cross-examination.

However, even on the foreman's evidence, it transpired that there was a second, to use a neutral expression, application of water, in which the plaintiff was engaged, for he said:

> "Plaintiff was under my charge. He was supposed to hose carcasses and to clean blood on floor. Hosing carcasses was end of operation . . . plaintiff would only clean along the channels. From there to place where horns were being chopped off was about 10 feet."

By that time the animal would, one hopes, be dead, but even so it was common ground, on analysis of the evidence called, that there was a second hosing operation. The only conflict is when this occurred.

The plaintiff gave that which in my view was a more comprehensive account even though he was a "simple and apparently, semi-illiterate person", of the progressive stages of the slaughtering of an animal than that of the foreman. But he did not give the reason or the necessity for hosing the horns during the horn-cutting. So the learned Judge, after giving a very clear summary of the gruesome stages which preceded it, provided his own reason. He said:

> "However, it would appear to me that there was and is justification for hosing the head, and *particularly the horns*.
>
> The cutting of the horns is done by using a saw. In any sawing, particles fall off. I *opine* that some of that fall on the animal and others fall on the ground. These particles, like the dirt on the animal's skin which is showered off, would require to be cleaned off to keep the outer body of the animal clean for the succeeding operations.
>
> One may ask why tickling of water had to be simultaneous with the cutting operation. From the evidence before me it can be deduced that because of the next operation there would be no opportunity, to do it thereafter.
>
> *In the light of the opinion I have come to, I hold that* there was in addition to the horn-cutting operation another operation in which a person other than the electric saw operator *hoses the horns in the course of the cutting operation*."

The emphasis is mine, and it demonstrates the element of speculation and opinion in the judgment on an aspect not covered in the evidence, that is the reason for the hosing down of the horns. We have said before, particularly in relation to criminal appeals, see *Robert Kinuthia Mungai v Republic* [1984] 1 KAR 611, that is not permissible for a Court of first instance to speculate or to insert a finding unless it is supported by evidence or unless it is a necessary, in the sense of inevitable, inference form primary facts. In a criminal case this may well result in the appeal being allowed.

It is true that in the instant case Mr *Inamdar,* in his eloquent tearing to shreds of the plaintiff's advocate's pleading, did not regard this aspect of the appeal as material, stating that it was not necessary to his appeal to challenge that finding. But the judge did regard it as material, even crucial, for he said:

> "Determination of this case, will, therefore, depend mainly on whether or not the plaintiff is to be believed that during the horn-cutting operation some water is spouted on the horns."

Plainly, the necessity for it would lend credence to the plaintiff's testimony that water was, in fact, spouted or sprinkled onto the horns at that stage. As we said in *Abbay Abubakar Haji v Marair Freight Agencies Company* [1984] 1 KAR 474 in which all parties to a motor a accident were killed, leaving no witnesses, it is the clear duty of a Court to arrive at a finding on the facts, however difficult the circumstances may be, if that is at all possible. But that duty does not extend to supplying a theory as to what happens when the inferences from primary facts do not inevitably point that way.

Had the appeal been framed, or more importantly, argued, on the foregoing basis then I for one might have felt some difficulty in resisting that argument. But it was not so framed or argued. The error to which I have drawn attention above, namely that the trial Court had invented a reason for the plaintiff's activity in hosing the animal at the crucial moment when the saw slipped, or was knocked, on to the plaintiff's right hand appears nowhere in the grounds of appeal. It follows that, even short of the reason for doing so, the plaintiff's testimony that he was engaged on, and was in fact, hosing the horns at the relevant moment, there being nothing to set directly against it, remains valid.

The appeal was, however, argued on the technical ground that the way in which the evidence came out at the trial did not match the pleadings. It is a cardinal principle of law and procedure, Mr *Inamdar* submitted, that a plaint, and especially the particulars of negligence, must be framed with reasonable degree of precision so as to enable the defendant to know that case he has to meet. I turn, therefore, to examine the plaint and the evidence in support of it. I say at the outset of doing so that although there was a suggestion in one of the medical reports, and in a small part of the evidence, that the plaintiff's injury was caused by a knife, that suggestion was not in my view borne out by any of the evidence, and neither was it put to the plaintiff in cross-examination that the accident occurred in that way. The case had proceeded throughout and this appeal has been heard on the footing that the injury was due to contact with the electric cutting saw.

Paragraph 4 of the plant sets out in standard form the duty cast upon an employer to provide and maintain in effect a safe system of work and to expose the plaintiff to a risk of damage or injury of which the defendants knew or ought to have known. Paragraph 5 alleges that while the plaintiff was working on the killing floor, a co-worker "negligently slipped off the saw which cut the right hand of the plaintiff who was standing a few feet away from the said saw".

For the particulars of negligence we have to drop down to paragraph 8. Paragraphs (*a*) and (*b*), (*e*) and (*f*) are standard, and can be found in any of the standard text books on pleadings. Paragraphs (*c*) and (*d*) however, purport to particularise the general averment in paragraph 5, without, in fact adding or detailing anything thereto. Paragraph (*g*) comes very close to, if it does not actually do so, raising the plea of *res ipsa loquitur*, but again neither the case nor the appeal proceeded on this footing. The defence, which maintains a general denial, nevertheless, condescends to the particular by denying that the saw slipped from the hand of a co-worker to the plaintiff.

The issues having been joined, they were then distilled down into the agreed issues recorded and filed nearly 18 months before the trial. Mr *Inamdar* took us through these in detail and it cannot be disputed that issue number two is an invitation to the Court to find, yes or no, whether the accident occurred in the manner described in paragraph 5 of the plaint. The learned Judge, however, did not decide this issue directly, (nor could he do so in view of the way in which the evidence had emerged); for he said:

> "No evidence was tendered to show the saw operator was negligent as a result of which the plaintiff was injured . . . Consequently I am unable to find that the slipping of the saw, if indeed it occurred, was due to any negligence on [the saw operator's] part."

So there, in that passage, the learned Judge negatives the very issue which had been framed on the pleadings. He, however, went on to say:

> "I, however, find that the plaintiff was cut by the saw in the course of the horn cutting operation."

This was, of course, generally, in accordance with the plaintiff's evidence on this point because he maintained in Court that he had said in his statement to the insurers on 12 August 1982, namely that the animal, whether stunned or not by the captive bolt, writhed or jerked its head, but anyway moved and hit the circular saw being operated by Peter Nyamai with the result that the plaintiff's hand was cut.

Though this account was at variance with paragraph 5, and was commented on by Mr *Inamdar* in his submissions in the High Court, no attempt was made to amend the plaint, except in another minor and probably irrelevant respect. Did that variance, therefore, preclude the learned Judge from reaching a finding, based on the plaintiff's evidence, that the accident occurred due to the defendant's failure to exercise reasonable care to ensure smooth and safe operation in its factory?

Mr *Jiwaji* – who is in my opinion to be complimented on presenting an argument on behalf of the respondent/plaintiff at relatively short notice due to the absence of Mr Pandya overseas – stated that there was no dispute, on the pleadings or otherwise, that the injury was caused by the electric saw, and he stated that the judge in his judgment did address his mind to the issues raised.

I come now to the authorities cited by Mr *Inamdar* in support of his submission that the plaintiff was limited to the particulars given in the plaint and that the judge was not entitled to rely on evidence which went outside those particulars, all the more so since agreed issue number two reiterated paragraph 5 of the plaint.

In the early case of *Blay v Pollard and Morris* [1930] All ER Rep 609 the Court of Appeal held that the trial Judge was not entitled to make a finding of *non est factum* because, as a matter of law, the plea was not open to a person who was not mistaken as to the nature of the document he had signed, even though he might misapprehend its legal effect. That, of course, was a straight misdirection of law. However, the way in which that case becomes relevant to the instant one was the second contention put forward by Morris, which was that the agreement could be avoided for fraud.

Now fraud at common law has always had a special connotation. The allegation being a serious one, it has been rightly held that such an allegation must be strictly pleaded and proved. And this indeed emerges from the following passage in the judgment of Slesser LJ which to my mind explains the passage from the earlier judgment of Scrutton LJ (at 612) cited to us by Mr *Inamdar*. Slesser LJ said:

> "Fraudulent conduct must be distinctly alleged and as distinctly proved, and it is not allowable to leave fraud to be inferred from the facts."

The gravamen of that case was, therefore, that the fraud alleged regarding the agreement to pay the rent prior to the dissolution of the partnership could not be raised without having been pleaded. For myself, I would hesitate to apply the rigours of the universal rule of pleading regarding fraud to a case of industrial injury which is an action of wholly different character, involving, as it does, the recollections of witness of a rapid series of events in which there is understandably a risk of confusion, especially by the person injured.

Taking the third case next, *Kanti v British Traders Insurance Company Limited* [1965] EA 108, this, though no fraud was alleged, likewise related to a commercial transaction and whether the insurers were liable to indemnify the insured for damage to enamel wear under an all risks insurance policy. Again, I would hesitate to apply rules applicable to a commercial contract to a case of personal injury, but before leaving that case I would emphasise the passage from Law JA's judgment in which he said:

> "When the parties agree an issue, the Court should decide the case upon that issue if it is properly framed, and arises out of the pleadings."

To explain that case a little further, the nature of the all risks policy, which constituted the contract between the parties was such that once the plaintiff proved that the goods had arrived damaged, having left the port of consignment undamaged, and that the damage was not natural or inevitable, he had discharged the onus upon him. The learned Chief Justice's finding on the first appeal had in effect been that the goods were subject to inherent vice and it was for this reason that Law JA went on to hold that it would be unjust for the plaintiffs be non-suited for having failed to prove something that was never made an issue between the parties at the trial and which was, in law, incorrect. So really was the opposite of the present case, the judge having wrongly inserted a hurdle for the plaintiff to surmount which never arose to be tried in the first place. In the instant case, the issue whether the plaintiff was injured by the saw and whether that was due to the commission's breach of duty did arise fairly and squarely on the pleadings, particularly on paragraphs 4 and 8 of the plaint.

I therefore turn to Mr *Inamdar*'s second authority, which was the only one relating to personal injury, though not one in the course of employment namely *Plotti v Acacia Company* [1959] EA 218, in which Law JA, as he later became, happened to be the trial Judge. There the issues arose as to whether there was any contributory negligence by the plaintiff. But it will be observed in that case paragraph 7 of the defence stated that the injuries were caused by the plaintiff's own "reckless and insistent attempts' to close the lift gates. In fact the evidence showed that the accident had not happened due to the plaintiff's positive acts, but only that he had failed to notice the chain, which had ridden up on the gates when the button was pressed and caught the plaintiff's hand. In those circumstances it was not surprising in my view that the Court absolved the plaintiff of contributory negligence because the effect of the relevant portion of the defence was that the plaintiff injured himself by his own negligence, that his insistent pulling of the gates was the proximate act which had the causative effect of injuring him, whereas when the evidence came out, it transpired that all that he was guilty of was failing to see the chain.

Mr *Inamdar* quite rightly drew to our attention the passage at the end of page 251 of that report which emphasises that the objection of pleadings is to give to the opponent fair notice of the case he has meet so that he may direct his evidence to that issue. Indeed the learned Judge recognised this principle in the instant case for he stated it in so many words when ruling on the amendment sought by Mr Pandya. The defendant abstained from calling any evidence directed to the issue as to how the accident did occur, but only generally called the foreman as to the sequence of events that should have occurred. In those circumstances they were not really in a position to refute the evidence that a second Peter Nyamai was working as the saw operator on the killing floor.

In this case I do not think there was any unfairness as regards the defendants knowing what case they had to meet. The plaintiff said straight away in this evidence that he was injured due to the writhing or jerking of the animal. I think the defendants should thereupon have objected, if they wished to take the point, that the evidence was a variance with the pleaded particular of negligence. They should not wait until the end of the case, or the appeal, and then, as it were, huff the other side for not having led evidence in accordance with the plaint. I consider it would be most unfortunate, in a case of personal injury, if a plaintiff, who has otherwise proved his case, is deprived of his remedy due to the niceties of pleading.

Having reviewed the authorities and considered the submissions by the appellant's counsel on the appeal, it would be to my mind unjust to hold the plaintiff to be non-suited because, while the general allegation is correct, the particular way in which the accident happened was at variance with paragraph 5, when there are indeed other allegations in paragraphs 4 and 8 which make it perfectly clear that the accident happened at work in circumstances which established on the balance of probabilities that the defendants failed in the duty of care which they owed to the plaintiff.

For these reasons, notwithstanding the judge's unjustified finding as to the reason for the second hosing or watering down taking place, I agree with his finding that the accident occurred in the course of the horn-cutting operation and was due to the defendant's failure to take reasonable care to ensure that this was done safely.

I would therefore dismiss the appeal with costs to the respondent. As Gachuhi and Kwach JJA agree, that is the order of this Court.

Kwach JA: I have had the advantage of reading the judgment of Hancox CJ and I concur with him, I would, nevertheless, like to add some remarks of my own.

Richard Ambogo Raden, the respondent in this case (hereafter called "the plaintiff") filed proceedings against Kenya Meat Commission (hereafter called "the defendant") claiming damages following an accident which occurred in the defendant's abattoir (the premises) at Mombasa on 20 July 1981, early in the afternoon and as a result of which the plaintiff sustained personal injuries.

The plaintiff's cause of action as pleaded in his plaint was based on negligence and in the alternative, on alleged breach of statutory duty on the part of the defendant to provide the plaintiff with a sage place of work. On the material day, the plaintiff, casual labourer on a daily wage, had been detailed to work in the part of the premises known in the argot of the meat trade as the "killing floor". The plaint contained allegations of negligence against a fellow-worker whose name was given as Peter Nyamai. Particulars of the alleged negligence were given. As the trial Judge, after the trial acquitted Peter Nyamai of negligence, it is not necessary for me to dwell further on this aspect of the case.

The judge however went further and found that on the evidence, the allegations of breach of duty against the defendant had been proved on the balance of probabilities and gave judgment for the plaintiff triggering off this appeal.

Paragraph 4 of the plaint which was admitted in the defence filed on behalf of the defendant is in the following terms:

> "(4) It was term of the said contract of employment between the defendants and the plaintiff and reasonable precautions for the safety of the plaintiff while he was engaged upon his work, not to expose the plaintiff to a risk of damages or injury of which the defendants knew ought to have known, to provide and maintain

> adequate and suitable plant, tackle and appliances to enable the plaintiff to carry out his work in safety, to take a reasonable measure to ensure that the place where he carried out his work was safe and provided and maintained a safe proper system to work."

Particulars of alleged negligence and breach of duty to provide a safe place of work were given under paragraph 8 of the plaint, subparagraph (*f*) of which reads:

> "(*f*) Failing to provide or maintain any or any proper system of working."

As part of the preparation for the trial summons for directions was dispensed with and issues were agreed between counsel for both parties in a statement of issues dated 2 June 1987, filed in Court on 4 June 1987, *inter alia* as follows:

> "(2) If so, did the said accident occur in circumstances and/or in the manner alleged in paragraph 5 of the plaint?
>
> (3) If so, was the said accident caused by the negligence and/or beach of contract of employment on the part of the defendants, its [sic] servant for agent as alleged in the plaint?"

The matter did not come on for trial until 18 October 1988, and the trial of the action presumably proceeded on the issues as previously framed. The judge assessed damages at KShs 70 189-25 for which sum he entered judgment for the plaintiff together with interest and cost of the suit.

Although the memorandum of appeal contained some nine grounds of appeal, Mr *Inamdar*, counsel for the defendant, restricted his assault on the first three grounds namely:

> "(1) The learned Judge erred in holding the defendant liable on the ground that reasonable care was not taken to ensure that the animal was completely dead before carrying out the horn-cutting operation.
>
> (2) The learned Judge erred in holding the defendant liable on grounds which fell outside the scope and ambit of the pleadings exchanged in this case as well as of the issues agreed between the parties.
>
> (3) The learned Judge erred in failing to hold that, the plaintiff having failed to prove the negligence alleged in the plaint, his suit should be dismissed with costs."

I will deal with these grounds of appeal in their numerical order but before doing that I ought to point out that Mr *Inamdar*, right from the outset informed us that he was not taking issues with the learned Judge's finding that there was, in additional to the horn-cutting operation, another operation which a person other than electric saw operator hosed the horns in the course of the cutting operation. I draw attention to this concession because, having regard to the conflict of evidence in this particular point, I would have thought that it would have provided a critical point from which Mr *Inamdar* could have mounted a successful challenge. I take this view of the matter because, speaking for myself, having read the record very carefully, I could not find any justification for this finding on the evidence.

With regard to the first ground of appeal, Mr *Inamdar*'s complaint was that the learned Judge erred in holding the defendant liable on the ground that reasonable care was not taken to ensure that the animal was completely dead before carrying out the horn-cutting operation. Evidence was given by the plaintiff concerning the process in the slaughter house which begins with the animal being given a shoving to remove any dirt on its body. It is then led into a knocking box where it is stung with a captive hold pistol. This procedure

renders the animal unconscious and the slides to the next stage where its throat is cut. It is then shackled and hoisted on a bleeding rail. From here the animal is moved to the killing floor section. When the animal gets to that stage it is supposed to be dead. Evidence was not given to explain how the fact of death is confirmed. The next procedure is the dehorning of the animal using an electric saw with a weight balance suspended from the ceiling. It is operated with a hand-switch and moves only vertically but not horizontal. When the switch is released it stops.

According to the plaintiff's evidence, during the process of dehorning water is again trickled on the horns and that was the specific task he was engaged in when the accident occurred. On this point, the evidence given on behalf of the defendant by Peter Njoroge Munyua, who was at the material time a foreman on the killing floor, was that no showering is done at the stage of cutting horns because, according to him, the Health Department does not allow it. He did not elaborate. He was not pressed either.

Commenting on the evidence of these two witnesses on the necessity otherwise of showering of the horns, the learned Judge said:

> "The reason for spouting or trickling water on the horns was not given by plaintiff. The question that immediately comes to the fore of the mind is was trickling of water on the horns necessary . . . Why then would it require hosing with water as soon as it reaches the killing floor? The defendant contention is that no such hosing is necessary. However, it would appear to me that there was and is justification for hosing the head, and particularly horns.
>
> The cutting of the horns, is done using a saw. In any sawing some particles fall off. I opine some of those fall on the animal's head, around the horns as others fall to the ground. These particles, like the dirt on the animal's skin which is showered off, would require to be cleaned off to keep the out body of the animal clean for the succeeding operations . . . In the light of the *opinion* I have come to, I hold that there was, in addition to the horn cutting operation another operation in which a person other than the electric saw operator holds the horns in the course of the cutting operation." (Emphasis mine).

It is obvious from the foregoing passage that the learned Judge's conclusion regards hosing during the process of dehorning is only a matter of opinion based on any evidence.

As to whether the particular animal was dead or not when it reached dehorning stage, the only evidence there is on this point is the undisputed and unchallenged evidence of the plaintiff who testified that a cow was brought onto the roller before it had died. That the man who had been assigned the duty of cutting off the horns started doing so. Due to pain, the animal jerked its head. The horn hit the electric saw which in turn cut the plaintiff's right hand. The evidence of Peter Munyua was that by the time an animal is hoisted to the killing floor it is dead but he admitted that he was not present when the plaintiff was injured. The only other person who could have given direct evidence on the occurrence of the accident was Peter Nyamai, the electric saw operator, but the defendant chose not to call him. As a result, the only eye witness account was that given by the plaintiff which the learned Judge accepted and, in my view, rightly so. The first ground of appeal accordingly fails.

Mr *Inamdar*'s complaint in the second ground of appeal was that the judge's determination of liability fell outside the scope of the pleadings and the issues agreed between the parties. I have already set out the paragraphs in the plaint

which I consider germane to this particular issue and which I am prepared to accept that the pleading in relation to breach of statutory duty could have been drawn better or improved upon, it nevertheless covered the basis essential ingredients of the particular cause of action involved. In this respect the defence is no better.

As to whether the allegation of breach of statutory duty formed part of the issue agreed between the parties, one only needs to look at issues number 3 to answer that question in the affirmative. Mr *Inamdar* referred us to three cases but they were only of marginal, if any assistance, in this appeal. The first is the case of *Blay v Pollard and Morris* [1930] All ER 609. In that case, Pollard and Morris, who had carried on the business of garage proprietors, orally agreed to dissolve the partnership as from 4 March 1929, on the terms that Morris should take over the liabilities of the partnership as from that date. Pollard notified his father, who was a solicitor, of the dissolution of the partnership, and the latter prepared a written agreement to carry it into effect. By that agreement, Morris undertook to indemnify Pollard in respect of past rent. The agreement was signed by Morris, who said he could not understand it. Judgment in respect of arrears of rent was obtained against Pollard and Morris, and the former claimed to be indemnified by Morris in respect of rent due before the dissolution of the partnership. Morris delivered a defence in which he pleaded that the written agreement was signed by him in the belief that it embodied the previous oral agreement, and that it was drawn up and signed under mutual mistake of fact, and that he never agreed to indemnify Pollard for rent before the dissolution. There was no allegation of fraud, nor was rectification claimed in the pleadings. At the trial, it was found that Morris signed the document with practically no consideration of its terms, or that new liabilities had been imposed which Morris had not orally agreed to, and the judge, accordingly, rectified the agreement signed by limiting the liability to rent accruing after 4 March.

On appeal by Pollard to the Court of Appeal, it was held that the appeal would be allowed because it was not open to Morris to raise the plea of *non est factum* (it is not his deed) in the absence of fraud or misrepresentation since he knew that the agreement he signed was for the dissolution of the partnership; there was no allegation of fraud or conduct amounting to fraud and no claim for rectification, and, therefore, it was not open to the judge to rectify the written agreement; and that there was no evidence of mutual mistake.

In the instant case, the alleged failure by the defendant to provide a safe place of work was not only pleaded but also particularised. It was also made an issue at the trial before the judge.

Mr *Inamdar* also referred to the case of *Kanti and Company Limited v British Traders Insurance Company Limited* [1965] EA 108. That was an insurance claim and among the complaints raised was that the trial Judge had decided the case on an issue not agreed between counsel. Law JA said (at 117):

> "Where the parties agree on an issue, the Court should decide that case upon that issue, if it is properly framed an arises out of pleadings, as was the case here."

As I have already pointed out, there was no transgression that rule in the present case.

The last case, *Plotti v Acacia Company Limited* [1959] EA 248, concerned a claim for damages for personal injuries sustained by the appellant in a defective lift in the respondent's hotel. The trial Judge gave judgment for the appellant

but found him guilty of contributory negligence to the extent of 50%. It was contended on behalf of the appellant that this finding was based on particulars of negligence wholly different from those alleged against the appellant in the written statement of defence and that the contributory negligence found was at no time alleged against the appellant, who consequently had no opportunity of denying the same. The Court of Appeal for East Africa found this complaint to be well founded on the evidence and allowed the appellant's appeal restoring to him the full award of KShs 18 000 general damages.

Mr *Inamdar* referred us to a passage in the judgment of Forbes VP (at 251) where the importance of particulars in pleadings was emphasised:

> "The importance of particulars in pleadings was clearly demonstrated in *Esso Petroleum Company Limited v Southport Corporation* [1956] AC 218 . . . In the course of his judgment Lord Normand said (at 238):
>
> > '. . .The function of pleadings is to give fair notice to the case which has to be met so that the opposing party may direct his evidence to the issue disclosed by them . . . To condemn a party on a ground of which no fair notice has been given may be as great a denial of justice as to condemn him on a ground which his evidence has been improperly excluded.'"

I am in complete agreement with what Forbes VP said in this passage. All I need to add is that the defendant in this case had more than fair, indeed abundant, notice of what the plaintiff's case was. The second ground of appeal accordingly fails.

I can dispose very briefly of the last ground of appeal. Having got the allegation of negligence out of the way, there was still the alternative limb of the plaintiff's case which the defendant ought to have met, but for some reason did not meet. And looking at the pleadings and evidence in the case as a whole, I have no doubt in my own mind that the judge was perfectly justified in arriving at the conclusion he did. This ground also fails. For these reasons, I would dismiss this appeal with costs.

Gachuhi JA concurred in the judgment of Hancox CJ and Kwach JA.

For the appellant:
IT Inamdar

For the respondent:
AHA Jiwaji

Kibera v Republic
[1990–1994] 1 EA 220 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	20 September 1991
Case Number:	7/91
Before:	Hancox CJ, Gachuhu JA and Omolo AJA
Sourced by:	LawAfrica

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[1] Bail – Pending appeal on second appeal – Grounds of appeal said to be fatal to convict – Whether completion of sentence before appeal a relevant factor – Whether substantial point of law

has to be shown – Principles on which discretion will be exercised by Court of Appeal.

Editor's Summary

The appellant was convicted of theft by the Senior Resident Magistrate, Nairobi, and appealed to the High Court against his conviction. Pending that appeal, he was released on bail. When his appeal was dismissed he preferred a second appeal to the Court of Appeal and again applied for bail pending his appeal. His advocate contended:

(*a*) That the fact that the High Court granted bail pending the first appeal must have been because it accepted his contention that the appeal had an overwhelming probability of success;

(*b*) That the appellant's sworn defence was not considered by the Courts below; and

(*c*) That his sentence of two years' imprisonment would have been served by the time his appeal was heard and determined.

Held – The appellate Court may grant bail pending a second appeal if it is satisfied that there is a substantial point of law to be argued which could result in the conviction being quashed (*Toroha Mohamed Toroha v Republic* [1988] criminal application Nai 5 applied).

In the instant case the points raised by counsel for the appellant were not of such an exceptional nature that the Court would be driven to the conclusion that justice would not be done unless the applicant was released on bail.

The sentence was unlikely to have been completed by the time the appeal was heard and determined, but even if that were so that factor would not compel the Court to release the applicant on bail pending the appeal.

Application dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Abdulla v Republic criminal application number 2 of 1989

Daniel Dominic Karanja v Republic criminal application number 14 of 1986

Joseph Njaramba Karura v Republic [1987] 1 KAR 1165

Opondo v Republic [1978] KLR 25

Toroha Mohamed Toroha v Republic criminal application 5 of 1988

Judgment

Omolo AJA: The applicant asks the Court, under rule 5(2)(*a*) of its Rules, to be granted bail pending his intended appeal to the Court from his conviction and sentence of two years' imprisonment on a charge of theft contrary to section 275 of the Penal Code. The conviction and sentence from which he wishes to appeal was recovered against him by a Senior Resident Magistrate of Nairobi on 31 January 1991. He appealed to the High Court but that court, by its judgment dated 3 June 1991, dismissed his appeal. Pending the hearing of his appeal in the High Court, he had been released on bail and Mr *Odero* asserted before us that the High Court must have granted to the applicant bail pending

the hearing of his appeal because that court must have accepted the applicant's position that his appeal had an overwhelming probability of success. That is the accepted principle upon which the High Court would act in granting bail to a convicted person: see for example *Opondo v Republic* [1978] KLR 25. Following the dismissal of his appeal by the High Court, the applicant filed a notice of appeal to this Court on 4 June 1991, and he followed that by the present application on 9 August 1991. The application is supported by the affidavit of Mr *Odero* and in paragraph 7 of that affidavit, he depones that "there are several substantial points of law to be argued in the appeal which could result in the conviction being quashed". A draft memorandum of appeal is also attached to the application.

Amplifying before us, Mr *Odero* contended that one of the points of law to be argued in the intended appeal is that the High Court was of the view that the charge of theft was inappropriate and that if that be so, the applicant ought not to have been convicted on that charge, a charge of theft is not interchangeable with one of deception, argues Mr *Odero*.

Mr *Odero* next contends that the sworn defence put forward by the applicant was not considered by both courts below and that failure is fatal to the applicant's conviction. There is support for Mr *Odero*'s contention that failure to consider the defence of an accused may be fatal to a conviction. In *Joseph Njaramba Karura v Republic* [1987] 1 KAR 1165 this Court held (at 1168) that failure by the trial Judge to consider the case for the defence constituted a breach of the rules of natural justice and therefore sufficient to unsettle the judgment.

Lastly, Mr *Odero* contended that the conviction of the applicant was against the weight of evidence. Mr *Odero* also rightly drew out attention to the principle on which this Court acts in deciding whether or not to grant bail to an applicant whose appeal is pending before it. The principle is well stated in the case of *Taroha Mohamed Toroha v Republic* [1988] criminal application 5, *Abdulla v Republic* [1989] criminal application 2 and *Daniel Dominic Karanja v Republic* [1986] criminal application 14, all of which were cited and made available to us by Mr *Odero*. The principle to be gleaned from all these decisions is that:

> "Where an appellate court is satisfied that there is a substantial point of law to be argued that it could result in the conviction being quashed, the Court may grant bail pending appeal."

(See *Toroha v Republic*). We have duly considered the points raised by Mr *Odero* against the evidence recorded by the magistrate and the judgments of the Courts below. Having done so, we are unable to conclude that the points of law raised are of such an exceptional nature that we must be driven to the conclusion that justice will not be done unless the applicant is released on bail. The sentence of two years' imprisonment is to run from 3 June 1991 when the High Court dismissed his appeal. We do not think he will have completed serving it by the time his appeal is heard and determined, but even if that were to be so, we do not think that it is a factor which must compel us to release him on bail pending the hearing of his appeal (see *Abdulla*'s application).

We agree with Mr *Etyang*' for the Republic that this application should be dismissed and we so order.

For the applicant:
MO Odero

For the Republic:
AG A Etyang'

Kibwana and another v Jumbe

[1990–1994] 1 EA 223 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	1993
Case Number:	6/93
Before:	Kisanga, Mnzavas and Mfalila JJA
Sourced by:	LawAfrica

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[1] Civil procedure – Death of plaintiff – Right to sue surviving in tort.

[2] Damages – Powers of court to grant – General damages – What to consider – Interest on general damages – Interest on special damages – Factors to consider.

[3] Negligence – Vicarious liability – Relationship of employer and the tortfeasor *– Doctrine of* res ipsa loquitur *– When to apply – Factors to consider.*

Editor's Summary

The respondent's husband, Jumanne Jumbe, was employed by the second appellant, General Tyre East Africa Limited, as an Export Officer.

On 21 October 1978, Jumanne Jumbe got involved in an accident while travelling in the second appellant's vehicle that was being driven by the first appellant at the time. The respondent then sued the two appellants in tort but succumbed to his injuries and died before the suit was determined.

His widow, having obtained letters of administration of his estate, applied to continue the suit as the deceased's legal representative. The application was granted. The trial Judge found against the appellants. The appellants did not appeal against liability but rather how the interest on damages was awarded and the rate of interest awarded by the Court.

Held – Rights to action and demands existing in favour of or against a person at the time of his death, survive to and against his representatives, except those rights which are tied up with the individuality of the deceased. *Actio personalis moritur cum persona.*

Under the common law, actions in respect of torts will generally be extinguished on the death of either party to such actions. However, section 9 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Chapter 360) saves causes of action based on tort from abating unless they are for defamation, seduction or inducing spouses to repeat. Hence the widow's right to sue had not abated under the law.

An employer's vicarious liability does not depend on his relationship with the victim of the accident, but with the *tortfeasor*.

The Doctrine of *res ipsa loquitur* will only apply where there is *prima facie* evidence of negligence against the defendant. In order for the doctrine to apply the following factors need to be considered:

(i) The thing causing the damage must be under the control of the defendant(s) or his servant(s).

(ii) The accident must be such as would not in the ordinary course of things have happened without negligence.

(iii) There must be an absence of any explanation by the defendant ie there must be no evidence of the actual cause of the accident. If the facts are sufficiently known it ceases to be whether they speak for themselves, the only question being whether on the facts as established negligence is to be inferred or not.

Scott v London and St Katherine Docks Co [1865] 3 H and C 596 followed.

As the cause of accident is known the maxim of *res ipsa loquitur* does not apply in this case. *Barkway v South Wales Transport Co Ltd* [1950] All ER 392 applied.

The Court, in granting general damages, will determine an amount which will give the injured party reparation for the wrongful act and for all the direct and natural consequences of the wrongful act. The fact that the plaintiff mentioned a specific figure as general damages does not take away the Court's function to determine and quantify the damage suffered.

In a claim for special damages, no interest can be awarded for the period prior to the delivery of judgment because before the delivery of judgment which awarded the general damages, the plaintiff was not entitled to any particular amount which could attract interest. Interest on general damages is only due after judgment. *Prem Lata v Peter Musa Mbuju* [1965] EA 592 followed.

The Court only has discretion to award interest before delivery of judgment only on special damages expended or incurred, but even this at such rate the Court thinks reasonable. However, the discretion does not extend to the period after delivery of judgment since this is governed by Order 20, rule 21 of the Civil Procedure Code, which is limited between 7% per annum and 12% per annum.

Trial judge was wrong to grant interest on general damages from date of filing suit and to award interest at the rate of 5% per month after delivery of judgment.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Admiralty Commissioners v Susqueh-Hanna [1926] AC 655

Eastern Radio Service v RJ Patel [1962] EA 818

Hooda v GM Gulamali High Court civil revision number 4 of 1960

JS Joban Putra v GN Jaffer High Court civil revision number 2 of 1960

Mohamed son of Mohamed v Athman Shamte [1960] EA 1062

National Bank of Commerce v Parma Shoes Company civil appeal number 11 of 1988

Prem Lata v Peter Musa Mbuju [1965] EA 592 – **F**

Toprani v Patel [1958] EA 346

YF Gulanhussein v French Somaliland Shipping Company Limited [1959] EA 25

United Kingdom

Barkway v South Wales Transport Company Limited [1950] All ER 392 – **AP**

Scott v London and Saint Katherine Docks Company [1865] 3 H and C 596 – **F**

Judgment

Mfalila JA: The respondent in this appeal is shown as Rose Jumbe in her capacity as administrator of the Estate of one Jumanne Jumbe. A brief explanation is therefore called for. Jumanne Y Jumbe was the husband of Rose Jumbe and at all material times he was employed as Export Officer by the second appellant, General Tyre East Africa Limited, headquartered at Arusha. According to the claim, on or about the 21 October 1978, the said Jumanne Jumbe while in the course of his employment with the second appellant was traveling in the second appellant's motor vehicle driven by the first appellant, when the said motor vehicle was involved in an accident and caused serious injuries to the said Jumanne Jumbe. After his recovery, Jumanne Jumbe filed a claim in tort against the second appellant as employer and the first appellant as driver of the said motor vehicle and employee of the second appellant. He claimed general damages amounting to TShs600 000 against the first appellant for his negligent driving and against the second appellant as being vicariously liable for the negligence of the first appellant, its employee. The suit took inordinately long before it was finally determined by the High Court, hence unfortunately Jumanne Jumbe the plaintiff in Arusha High Court civil case number 103 of 1983 died in 1988 while it was still pending. At this stage, the widow Rose Jumbe applied for and was granted letters of administration to administer the estate of her late husband. After getting letters of administration, she applied to be brought on the record as the legal representative of the deceased plaintiff to continue the suit. The application was granted on 13 December 1989, and it was ordered that she be brought on the record and henceforth the suit was prosecuted by her in that capacity and it is in that capacity that she appeared before us as the respondent. Having traced the history of how Rose Jumbe came to be on the record of this appeal, the next question is whether her being brought on record was proper in law. The learned Judge who granted the application and everyone else appear to have assumed the automatic nature of the position.

The actual position is neither automatic nor simple. The question is whether on the death of the original plaintiff Jumanne Jumbe, the suit abated. The governing legal provision is Order 22, rule 1 of the Civil Procedure Code of 1966 which provides as follows:

> "The death of a plaintiff or defendant shall not cause the suit to abate *if the right to sue survives*". (Emphasis ours.)

When therefore Mrs Rose Jumbe applied to be brought on the record to continue the suit as personal representative of the deceased, the Court should have asked itself whether the plaintiff's right to sue the appellants survived his death. In this connection it was incumbent upon the respondent who was claiming that the deceased plaintiff's right to sue had survived to her, to show either that she was entitled to assert the right to the same relief claimed by the deceased plaintiff or that there are some statutory provisions entitling her to do so.

The general rule is that all rights of action and all demands existing in favour of or against a person at the time of his death survive to and against his representatives, except those rights which are tied up with the individuality of the deceased, these are caught up in the maxim – "*personalis moritur cum persona*", that is a personal right of action dies with the person. As a general rule this maxim applies to actions in respect of torts so that on the death of either party to such action the right to sue will be extinguished. Hence in the present case since the claim by the deceased plaintiff was based on tort, this right to sue did not survive his death. In the circumstances, the respondent's application to be brought on record as the deceased's legal representative should not have been granted in the automatic manner, in which it was. The only salvation left to the respondent was whether there are statutory provisions to override the common-law position. In the Indian Civil Procedure Code, the position is saved by the provisions in the Indian Succession Act of 1925 and the Probate and Administration Act. However our own Probate and Administration Ordinance (Chapter 445) would not be of any assistance to the respondent because the nearest provision in section 40 does not specifically provide for the survival of causes of action. We have laboured to save this suit because given the gross mishandling that it has suffered and the unnecessary delays to which it was subjected mostly due to the plaintiff's own counsel, we thought it would be most unfortunate and tragic for the unfortunate widow if the suit were to fail on the plaintiff. The Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Chapter 360) came readily to our assistance. Section 9 of this Ordinance provides as follows:

> "9 (1) Subject to the provisions of this section, on the death of any person after the commencement of this Ordinance, all causes of action subsisting against or vested in him shall survive against, or as the case may be for the benefit of his estate:
>
> Provided that this subsection shall not apply to causes of action for defamation or seduction or for inducing one spouse to leave or remain apart from the other or to claims for damages on the ground of adultery.
>
> (2) Not applicable.
>
> (3) No proceedings shall be maintainable in respect of a cause of action in tort which by virtue of this section have survived against the estate of a deceased person unless either:
>
> (*a*) Proceedings against him in respect of that cause of action were pending at the date of his death; or
>
> (*b*) Proceedings are taken in respect therefore not later than six months after his executor or administrator took out representation."

This section specifically saves causes of action based on tort from abating on the death of either party unless they are defamation, seduction or inducing spouses to separate, which this one is not any of these. Therefore the right to sue in this suit survived the death of the plaintiff and the legal representative was properly brought on the record.

Having firmly established the respondent's legal position, we now turn to the suit itself. In the final amended plaint which was about the fourth version, the plaintiff alleged that on or about 21 October 1978, while in the course of their employment, the first defendant and the plaintiff were travelling in the second defendant's motor vehicle, the first defendant being the driver, attempted to overtake motor vehicle registration number TZ 34121, Isuzu and in the process

crashed into the Isuzu whereby the plaintiff sustained injuries leading to permanent disabilities. The plaintiff went on to assert that this accident was a result of the negligence of the first defendant as employee and/or authorised driver of the second defendant. He particularised the first defendant's negligence as follows:

> "(*a*) Attempting to overtake the Isuzu vehicle while it was not possible and in the process crashed into the same.
>
> (*b*) While overtaking, the first defendant went completely off course as the other vehicle's driver tried to swerve to the right.
>
> (*c*) That due to the above mentioned negligence the plaintiff suffered injuries and permanent disabilities."

The injuries suffered by the plaintiff were also particularised as follows:

> "(*a*) Injuries to the spine from the mid-thoracic spine resulting in complete paraplegia.
>
> (*b*) Multiple bodily bruises.
>
> (*c*) Nervous shock."

By reasons thereof the plaintiff claimed general damages amounting to
TShs600 000, interest on the decretal amount at nine per cent per month from the date of suit till date of full and final payment and costs of the suit.

At the conclusion of the trial in the High Court, the learned Judge found on the evidence before her that at the time of the alleged accident, the plaintiff was in the course of his employment with the second defendant, that the accident was caused by the negligence of the first defendant and that therefore the plaintiff was entitled to the damages as claimed in the plaint. Accordingly, she awarded the plaintiff the sum of TShs600 000 as general damages, but reduced the interest claimed from nine per cent to five per cent per month from the date of filing the suit to the date of full settlement and costs of the suit. The appellants then lodged this appeal but only against the rate of interest awarded. They were apparently satisfied with the judges finding on their liability and have in fact already paid to the respondent the principal sum adjudged. In their memorandum of appeal which contained two grounds, the appellants complained:

> "(*a*) That the learned trial judge erred in law in awarding interest on the decretal amount at the rate of 5 per cent per month beyond the date of delivery of judgment.
>
> (*b*) That the learned trial judge erred in law and fact in awarding interest on the principal sum at the rate of five per cent per month, which rate is clearly excessive and out of proportion".

As indicated, this appeal is not concerned with the liability of the appellants in negligence because there was no appeal against the judge's finding on this point. In this appeal we are only concerned with the rate of interest which was awarded. However, having gone through the record of trial and noted some shortcomings, we have decided to deal with the question of the absence or presence of negligence on the part of the first appellant and the second appellant's vicarious liability so that our observations can act as a guide in future cases. It was for the same reason that we dealt with the point whether the plaintiff's right to sue survived his death.

In our view, the most important question was whether negligence on the part of the first appellant was established. After establishing negligence on the

part of the first appellant, the respondent had to show that at the time of the accident, the first appellant was acting in the course of his employment as employee of the second appellant. What was the evidence in this regard? In her evidence-in-chief the respondent said nothing regarding the first appellant's alleged negligence, this is not surprising because she admitted that she does not know much about the accident as she did not witness it. But in cross-examination, she stated that although she was not present when the accident happened, the deceased had told her that the accident occurred when the first appellant was overtaking an Isuzu truck TZ 34121 in the course of which the first appellant's vehicle hit the Isuzu truck. The next question is what were the circumstances in which the first appellant's vehicle hit the lorry? Two explanations were offered on by the first appellant and the other by the respondent. Of course the respondent not having been at the scene could only hazard a guest. She said that since the first appellant knocked the lorry as he was overtaking it causing his own vehicle to overturn, this circumstance, she said, appears to suggest that the overtaking was done recklessly without due attention. And, in her written submissions at the end of the trial, the respondent submitted that the first appellant's negligence was to be found in the speed at which he was driving. In her submission, the first appellant's failure to stop or otherwise manage the vehicle at the time of the accident is evidence of high speed and therefore reckless driving.

On the other hand the first appellant explained that the accident happened when he started overtaking an Isuzu lorry after indicating to the lorry driver his intention to do so. As he came abreast with the lorry, it swerved onto his path knocking his vehicle and causing it to overturn. He added that the lorry swerved to his side because its driver was trying to avoid a cyclist. His tyre also burst in the process. In the circumstances the appellants submitted that there was no thread of evidence adduced by the respondent before the Court of prove that the accident which resulted in the alleged injuries was due to the negligence of the first appellant. They added that in the criminal court the first appellant was acquitted of the charge of reckless driving.

In reply, the respondent stated that since her claim was not founded on the negligence by the first appellant but rather on a claim based on injuries sustained in the course of employment, the first appellant's negligence was immaterial. The trial Judge did not comment on this strange submission, but on our part we are satisfied that it was misconceived both in fact and law. It was misconceived in fact because the respondent specifically pleaded the first appellant's negligence in paragraph 6 and particularised the alleged negligence in the same paragraph in three subparagraphs. It was misconceived in law because the vicarious liability of an employer does not depend on his relationship with the victim of the accident, but with the *tortfeasor*. It was therefore extremely important and material to prove the first appellants negligence.

In her judgment the trial Judge had the following to say on the appellants liability in negligence:

> "With regard to issue two (that is whether the accident was caused by the negligence of the first appellant) there is the evidence of the first defendant who was driving the accident vehicle at the material time. He stated that he flashed to an Isuzu lorry ahead of him that he was overtaking the said lorry but the lorry driver would not give way thereby causing some tyres of the Range Rover ARG 134 to leave the tarmac road resulting in the said Range Rover overturning. It is the considered view of the Court

> that if the lorry driver would not give way to allow the first defendant to pass safely, the first defendant was duty bound to slow down and drive behind the Isuzu lorry until it was safe to overtake it. The first defendant would have done so if he were driving with due care and attention and not at an excessive speed. The circumstance of the Range Rover the first defendant was driving getting of the tarmac and overturning indicates that the first defendant was driving at such excessive speed or with such recklessness that he failed to control the said Range Rover thereby causing it to overturn. Even if the first defendant were not negligent in his driving, the plaintiff would still be entitled to damages for personal injuries sustained in the material accident on the concept of "*res ipsa loquitur*" (sic) and furthermore because the plaintiff was within the scope of duties assigned to him by his employer the General Tyre (EA) Limited when the motor accident occurred."

From the above passage of the trial Court judgment, we have been able to extract four reasons on which the learned Judge based her finding that the first defendant was negligent thereby entitling the plaintiff to damages. These are:

> "(1) That the first defendant was driving at an excessive and reckless speed.
>
> (2) That he overtook a vehicle when it was not safe to do so as the vehicle infront of him would not give him way.
>
> (3) On the doctrine of *res ipsa loquitur*.
>
> (4) That the plaintiff was at the time of the accident acting within the scope of his employment."

Each of these reasons prompted some question in our minds. With regard to the first reason, was there any evidence led to support it? Apart from the fact that there is no evidence led to support the first reason, it was not part of the pleadings, in other words excessive and reckless speed was not among the particularised acts of negligence pleaded in paragraph 6 of the plaint. The trial Judge should not therefore have imported it. The second reason is well founded because it came from the first appellant's own mouth. He said, "I had flashed to the Isuzu lorry that I was overtaking but the said lorry driver did not give me way, so that the accident occurred". It is clear from this that the first defendant was forcing his way to overtake the lorry while fully aware that the lorry driver was not ready to give him way as apparently there was a cyclist in front. Although speed was not pleaded in the particulars of negligence, and this is just one of the numerous weaknesses in the conduct of the respondent's case, the first appellant must have been traveling at a high speed while forcing his way to overtake the lorry. The act of forcing his way to overtake the lorry even without the high speed constituted negligent driving. Since the accident involving the Range Rover driven by the first appellant and the Isuzu lorry was thus obviously due to the negligent and careless driving of the first appellant, the question of applying the maxim "*res ipsa loquitur*" did not arise as the trial Judge indicated as being another reason establishing the first appellant's negligence. We intend therefore to dwell at length on this maxim and clarify its application. The learned trial Judge stated: "even if the defendant was not negligent in his driving, the plaintiff would still be entitled to damages for personal injuries sustained in the material accident on the concept of "*res ipsa loquitur*" (*sic*). This statement was a contradiction in terms arising out of the confusion of the concept in this maxim and how and in what circumstances it should be applied. If there is no negligence, the maxim simply would not arise. The circumstances which give rise to the application of the maxim, constitute *prima facie* evidence of negligence against the defendant. We think we cannot

better the explanation of the maxim given by Professor Winfield in his book on *Torts* (13ed) at 125:

> "In order to discharge the burden of proof placed upon him, it is usually necessary for the plaintiff to prove specific acts or omissions on the part of the defendant which will qualify as negligent conduct. Sometimes, however the circumstances are such that the Court will be prepared to draw an inference of negligence against the defendant without hearing detailed evidence of what he did or did not do. Thus for example the presence of an unlighted vehicle on the road at night will, if there is no other lighting, be regarded *prima facie* evidence of negligence on the part of the driver. It is important to appreciate however that this means no more than that in the absence of an explanation from the defendant in rebuttal will depend in each case on the strength of the inference against him and the standard of care called for in the circumstances.
>
> The position has, however, been complicated and obscured by the use in many cases of the maxim "*res ipsa loquitur*". As Morris LJ has said, the maxim "possesses no magic qualities, nor has it any added virtue, other than that of brevity, merely because it is expressed in Latin. When used on behalf of a plaintiff it is generally a short way of saying: "I submit that the facts and circumstances which I have proved establish a *prima facie* case against the defendant". There are certain happenings that do not normally occur in the absence of negligence, and upon proof of these a Court will probably hold that there is a case to answer. In other words the maxim does not more than express in three words what has just been said."

From this passage we discern one condition before this maxim can be applied to a particular situation. This is that the mere fact of the accident having happened should tell its own story and raise the inference of negligence so as to establish a *prima facie* case against the defendant. The story should be clear and indicate only a *prima facie* case of negligence against the defendant. This concept is illustrated by the following two cases. In *Scott v London and Saint Katherine Docks Company* [1865] 3 H and C 596 – six bags of sugar fell on the plaintiff whilst lawfully passing a doorway of defendant's warehouse. Defendants called no evidence and Erle CJ stated:

> "There must be sufficient evidence of negligence. But where the thing is shown to be under the management of the defendant or his servants, and the accident is such as in the ordinary course of things does not happen if those who have the management use proper care, it affords reasonable evidence, in the absence of explanation by the defendants that the accident arose from want of care."

On this principle, the Chief Justice found that sufficient evidence of negligence existed in the case before him. From the above passage three conditions for the application of the maxim can be extracted. These are:

> "(1) That the thing causing the damage be under the control of the defendant(s) or his servant(s).
>
> (2) That the accident must be such as would not in the ordinary course of things have happened without negligence.
>
> (3) Absence of any explanation, by the defendant, in other words there must be no evidence of the actual cause of the accident. This is because if the facts are sufficiently known the question ceases to be whether they speak for themselves, the only question being whether on the facts as established negligence is to be inferred or not".

The case going the other way is *Barkway v South Wales Transport Company Limited* [1950] All ER 392. In this case B was travelling as a passenger in the defendant's omnibus and was killed when it veered across the road and fell over an embankment. A great deal of evidence was given by the defendants and it

was established that the cause of the accident was a defect in one of the tyres which could have been discovered beforehand if the defendants had required their drivers to report occurrences which could result in what was described as "impact fractures". The House of Lords held that as the cause of the accident was known, *res ipsa loquitur* did not apply, but that on the facts the negligence of the defendants was established.

Like in the *Barkway v South Wales Transport Company Limited* [1950] All ER 392 case, the cause of the accident in the present case is known, that is the first appellant attempting to forcibly overtake a lorry when it was obviously not safe to do so. The maxim *res ipsa loquitur* was therefore clearly not applicable.

The fourth and last reason used to establish the second defendant's liability was that the plaintiff was at the time of the accident acting within the scope of his employment. With respect, this also confused issues. The vicarious liability of an employer in tort as we have already stated, is not governed by the relationship between the employer and the victim of the tort of negligence. Rather his liability is based on his relationship with the *tort feasor* who must have at the time of the accident been acting within the scope of his employment. The relationship of the plaintiff to the second defendant would have been relevant only if he had based his claim on the Workman's Compensation Ordinance. On the facts of this case, there is no doubt that the first defendant or the present first appellant was at the time of the accident acting within the scope of his employment with the second appellant. In the circumstances the vicarious liability of the second appellant was thus firmly established.

The other point which we want to deal with again purely for reasons of future guidance is the question of damages which were claimed and awarded in this case. We say for future guidance because the question is not before us. We have felt compelled to make these observations because we strongly feel that the respondent in this appeal as was her plaintiff husband, did not get proper advice as regards their claim for damages, and at the end of the trial the Court did not face and resolve this problem properly to the plaintiff's fullest advantage. In all the four plaints, only general damages amounting to TShs600 000 were claimed. We are at a loss to understand why counsel on behalf of the plaintiff limited himself to this head of claim. We think this was very unfortunate. In an accident of such magnitude which resulted in such serious incapacitating injuries to the plaintiff, the following reliefs in addition to the general damages should have been specifically claimed:

> "(*a*) Damages for loss of future earnings.
>
> (*b*) Damages for pain and suffering.
>
> (*c*) Damages for loss of expectation of life."

This we think could have done justice to the plaintiff or his estate. But as it turned out only a meager TShs600 000 was claimed as general damages. The trial Court automatically awarded this figure acting as if its hands were tied to the figure asked for. The fact of the matter is that the Court was not tied to the figure of TShs600 000 which in any case should not have been pleaded. A plaintiff should only ask for general damage and leave the qualification to the Court. The Court determines how much damages are due be it in contract or tort, which so far as money can compensate, will give the injured party reparation for the wrongful act and for all the natural and direct consequences of the

wrongful act. As Lord Dumedin stated in the case of *Admiralty Commissioners v Susqueh-Hanna* [1926] AC 655:

> "If the damage be general, then it must be averred that such damage has been suffered, but he quantification of such damage is a jury question." (read Court)

Hence the fact that in the present case the plaintiff mentioned a specific figure did not take away the function of the Court to determine and quantify the damage suffered. In the circumstances of this case where only one head of claim was made, the trial Court would have been perfectly entitled to ignore the figure claimed and award a much higher figure. During the hearing of the appeal Mr *Makange*, counsel for the respondent, invited us to assess afresh the general damages because according to him, this Court is not tied to the amount claimed or that awarded by the High Court. This Court, he said, can award damages as it thinks fit. We agree with Mr *Makange* that we are not tied to the amount claimed or that awarded by the High Court, but we have to be moved to exercise this jurisdiction. We cannot do it in the absence of an appeal and since in this case there was not appeal against the amount of general damages awarded, we cannot take up the matter on our own with a view to interfering or changing what was claimed or awarded.

Having digressed for so long in the hope that our digression will be of assistance in future cases, we not turn to the appeal before us regarding the rate of interest which was awarded by the trial Court. As indicated earlier on in this judgment, the trial Judge awarded interest on the principal sum at five per cent per month from the date of filing the suit to the date of full settlement. In their memorandum of appeal, the appellants stated that the trial Judge erred in law in awarding interest on the decretal amount at the rate of five per cent per month beyond the date of delivery of judgment and that in any case awarding interest at the rate of five per cent per month was clearly excessive and out of proportion. At the hearing of the appeal, Mr *Maro*, learned counsel who appeared for the appellants, submitted that the power of the trial Court to award interest is provided in section 29 of the Civil Procedure Code and that interest on general damages cannot be awarded from the date of filing the suit but from the date of judgment. Interest from the date of filing the suit is only awarded on special damages. He added that since general damages are not known until they are assessed by the Court, they are not owed until they are pronounced hence interest on them cannot be backdated. In this case, he submitted, where the award was only for general damages, the trial Court could only award interest from the date of judgment and this at the Court rate only.

On the second ground of appeal Mr *Maro* submitted that the rate awarded at five per cent per month was too high and that in any event the rate applicable after judgment is between seven and twelve per cent per annum. The rate awarded of 5% Per Month is equivalent to

The rate of interest prescribed under powers conferred on the Chief Justice by section 29 vide *Gazette* Notice number 410 of 1964 are the same as those prescribed under Order 20, rule 21 namely between the minimum of seven per cent and the maximum of 12 per cent per annum from the date of the delivery of judgment until satisfaction. The rate of interest to be awarded for the period prior to the delivery of judgment is set at the discretion of the Court. The rate which it considers reasonable. There are thus two divisions of interest under Tanzania Law as opposed to three under section 34 of the Indian Civil Procedure Code

which ceased to apply in Tanzania in 1996. These two divisions correspond to the period for which interest is awarded. The first period covers the whole of that period up to the delivery of judgment. The second period is the period from the delivery of judgment to final satisfaction. The rate to be awarded for the first period is entirely at the discretion of the Court, whereas the rate to be awarded for the second period is also at the discretion of the Court but within set limits that is between seven and twelve per cent per annum. Although for the purposes of fixing interest rates there are only two periods, the first period can be sub-divided into two namely the period prior to the institution of the suit and the period between the filing of the suit till judgment. In the present case the learned trial Judge awarded interest at the uniform rate of five per cent per month from the date of filing the suit to the date of full and final payment. The judge therefore consolidated two distinct periods, the one before and after judgment. Could the judge properly do this? This is the basis of the two complaints in the memorandum of appeal. The two periods as we have already indicated are governed by different methods of fixing the rates of interest. One in which the Court has complete discretion, and the other where the Court's discretion is bound within a limited area. We do not think in the circumstances that the two periods could be consolidated and treated as one for the purpose of fixing interest rates. In *Mohamed son of Mohamed v Athman Shamte* [1960] EA 1062, the appellant obtained judgment against the respondent for TShs1 000 with interest therein amounting to TShs1 190 to the date of filing proceedings and further interest on the principle sum at the rate of six per cent per annum from the date of filing proceedings to the date of final payment. The plaintiff was not satisfied with the rate of interest awarded between the date of filing the suit and the date of judgment. He appealed to the High Court in which he complained among other things that the learned Resident Magistrate erred in not allowing the rate of interest as agreed between the parties from the date of filing until judgment. At the hearing, counsel for the appellant submitted that as the rate of interest under the loan agreement was eighty four per cent per annum, the appellant should be allowed interest at this rate also for the period between the date of filing of the suit to the date of judgment the High Court held Mosdell J:

> "Quite apart from legislative provisions on the subject, it is clear that this Court has an inherent power to reopen a harsh and unconscionable bargain between two parties and in particular in relation to the rate of interest agreed to be paid on a loan.
>
> …
>
> The rate prescribed from the date of delivery of judgment is six per cent as laid down in the relevant rules. But the interest rate between the date of filing of the suit and the date of judgment is left to the discretion of the Court. In the instant case the Resident Magistrate reached the conclusion that although a contractual rate of interest might be deemed reasonable by the Court, it was not bound to award such a rate of interest if it considered it harsh and unconscionable.
>
> …
>
> The discretion of the Court is not displaced by an agreement to pay a certain rate of interest. The court may or may not award the contractual rate of interest between the date of the institution of the suit and judgment in the exercise of its discretion. Whether it does so or not depends upon whether or not such rate is reasonable."

Although this *Mohamed son of Mohamed v Athman Shamte* [1960] EA 1062 case as well as *JS Joban Putra v GN Jaffer* High Court civil revision number 2 of 1960, Murphy J and *Hooda v GM Gulamali* High Court civil revision number 4

of 1960, Biron AJ were concerned with contractual rates of interest, unlike the present case where the principal judgment debt is in the nature of general damages in tort, nevertheless they underline the principle governing the award of rates of interest for different periods and the discretionary nature of the award for the period prior to the delivery of judgment. In the two revision cases, a rate of interest at two and half per cent per month was awarded but this as indicated was in contract and for periods in which the Court had discretion as to what rate to award that is the period before judgment.

The case which is almost on all fours with the present case and therefore directly relevant is *Prem Lata v Peter Musa Mbuju* [1965] EA 592, which was an appeal from the High Court of Kenya. In that case the appellant in a suit for damages for personal injuries was awarded TShs24 000 as general damages and TShs1 742-80 as special damages but the trial Judge refused an application to award interest on these two sums from the date of filing suit until judgment. The Court held that in personal injuries cases, interest on general damages should not be awarded for the period between the date of filing suit and judgment but interest should normally be awarded on special damages if the amount claimed has been actually expended or incurred at the date of filing suit. The Court, Law JA stated at 593:

> "The award of interest on a decree for the payment of money for the period from the date of the suit to the date of the decree is a matter entirely within the Court's discretion, by section 26 (equivalent to our section 29 *supra*) of the Civil Procedure Act. Such discretion must of course be judicially exercised, and where as in this case no reasons are given for the exercise of a judicial discretion in a particular manner, it will be assumed that the discretion has been correctly exercised, unless the contrary be shown. (*Toprani v Patel* [1958] EA 346). In an attempt to satisfy us that the normal practice is to award interest on the amount of a money judgment from the date of filing suit, counsel for the appellants referred us to *Eastern Radio Service v RJ Patel* 1962 EA 818 and *YF Gulanhussein v French Somaliland Shipping Company Limited* [1959] EA 25. In both these cases the successful party was deprived of the use of goods or money by reason of a wrongful act on the part of the defendant, and in such a case it is clearly right that the party who has been deprived of the use of goods or money to which he is entitled should be compensated for such deprivation by the award of interest. But suits for damages for personal injuries are in a different category. It cannot be said that, at the date of filing suit, the plaintiff is entitled to any particular amount. This depends on the decision of a number of factors, including liability contributory negligence, and the assessment of damages which may include as in this case, as considerable element in respect of future disability. In these circumstances, we do not consider that the Chief Justice wrongly exercised his discretion in refusing to award interest from the date of filing suit in respect of the general damages, as the infant plaintiff cannot have been deprived of the money represented by these damages from any particular date before judgment. Counsel for the respondent does not however, oppose an order for the payment of interest on the special damages awarded to the next friend as these represent out of pocket expenses actually paid or incurred at the date of filing suit. We agree."

In the present case where no special damages were pleaded and awarded, the trial Judge overlooked every principle enunciated in the *Prem Lata v Peter Musa Mbuju* [1965] EA 592 case quoted above as well the provisions of Order 20, rule 21 of the Civil Procedure Code when she awarded interest at the rate of five per cent per month from the date of filing the suit to the date of satisfaction of the decree. Since the award was only for general damages, no interest could be awarded for the period prior to the delivery of judgment because before

delivery of the judgment which awarded general damages, the plaintiff was not entitled to any particular amount which could attract interest. Interest on general damages is only due after the delivery of judgment because then the principal amount due is known. The Court has a discretion to award interest for the period before the delivery of judgment only on special damages actually expended or incurred, but even this at such rate as the Court thinks reasonable. This discretion does not extend to the period after the delivery of judgment. The rate of interest to be awarded during the period after the judgment is delivered is governed by the provisions of Order 20 rule 21 of the Civil Procedure Code which is limited between the minimum of seven per cent per annum and the maximum of twelve per cent per annum. The trial Judge awarded a rate of interest at sixty per cent per annum. Even for the period prior to the delivery of judgment for which the Court has unlimited discretion subject to reasonableness, the award of interest at that rate cannot by any description or yardstick be regarded as reasonable. It is twice the normal bank rate. Even if we were to agree with Mr *Makange* that in fixing the interest at this rate, the trial Judge took into account the responsibilities which fell on the respondent upon the death of her husband as well as the devaluation of the shilling, this rate would still appear unreasonable. But these two considerations have one main objection that they are irrelevant when considering the rate of interest to be awarded. They could be relevant in assessing the amount of damages and then only if the claim was made vide the provisions of Law Reform (Fatal Accidents Miscellaneous Provisions) Ordinance (Chapter 360. Then, the responsibilities of the widow or other dependants would feature prominently. But this was a case of the legal representative stepping into the shoes of the plaintiff in a claim for personal injuries. With regard to the devaluation of the shilling, this Court in *National Bank of Commerce v Parma Shoes Company* civil appeal number 11 of 1988 approved the principle. In that case the High Court awarded TShs50 000 as compensation for the depreciation in value of the sum claimed that is TShs34 500. The present appeal is however different, it is concerned with the rate of interest to be awarded on the principal sum. This as it has been shown is governed by statute. The depreciation in value of the principal sum is a separate and unrelated issue. Therefore both the consideration advanced by Mr *Makange* to support the five per cent month interest rate are irrelevant.

For the reasons we have given, we uphold the appeal against the rate of interest awarded by the trial Court and say that the trial Judge was wrong to grant interest on general damages from the date of filing the suit, that the trial Judge was wrong to award interest at the rate of five per cent per month beyond the date of delivery of judgment and that such rate in any case was too high and out of proportion. We accordingly set aside the interest awarded at five per cent per month from the date of filing the suit to full payment. We order instead that the principal sum of TShs600 000 awarded as general damages, shall carry interest at the rate of twelve per cent per annum from the date of judgment to the date of full payment.

With regard to the costs of this appeal, we are aware that ordinarily the costs must follow the event, but in this case we have taken into account the fact that due to the errors of her advocates in the High Court the respondent has been grossly under paid, her new responsibilities in the family and the fact that she was saddled with this appeal purely on account of the trial Court’s errors in law.

We think for these reasons that she should not be burdened further with extra costs. Accordingly we make no order as to costs.

For the appellants:
Mr Maro

For the respondent:
Mr Makange

Kiggundu and another v Uganda Transport Co (1975) Ltd
[1990–1994] 1 EA 236 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	August 1993
Case Number:	7/93
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica

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[1] Damages – Assessment of motor vehicle accident – Manner in which loss of earning should be claimed.

[2] Damages – General damages – Assessments of motor vehicle accidents – Appellant a 42 year old businessman had his leg amputated above the knee – Diagnosis put permanent disability of the appellant at 60% – Quantum.

[3] Damages – Special damages – Claim for – Where claimant lost a sum of money during an accident.

[4] Evidence – Medical evidence – Where evidence of the victim contradicts that of a medical doctor.

Editor's Summary

The appellants were travelling in the respondent's bus from Kampala to Kira when it overturned near a place called Nakasungola. The first appellant sustained a crush injury to the left leg that resulted in an amputation above the knee leaving him with a 60% permanent disability. The second appellant sustained a fracture of the femur and sprain in the right shoulder, complicated by wasting of the right thigh muscles and shortening of the right leg resulting in a permanent limp. Permanent physical incapacity was put at 45%.

They appealed against their respective awards from the High Court.

Held – Loss of earnings should be claimed as special damages and must be proved strictly see *Bhogal v Burbridge and another* [1975] EA 288.

Sadly (*obiter*) it is in this country for victims of motor accidents to be stripped of their cash and other properties by wrong elements, especially while the victims are unconscious. This is a foreseeable consequence for which the errant driver or his master, as the case may be, will be liable to pay special damages, if the loss is established.

In this case the first appellant clearly sustained a severe disability injury. (I agree that) the award of UShs5.5 million general damages was on the lower side. I would set aside that award and substitute a sum of UShs10 million general awards.

The medical doctor and also the second appellant were in the best position to classify the injuries. The medical evidence should have been accepted by the trial Judge (a sum of UShs600 000 awarded to the second appellant was substituted with a sum of UShs2 million general damages).

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Bhogal v Burbidge and another [1975] EA 286 – **F**

Judgment

Manyindo DCJ: The appellant and a third plaintiff Safina Namwanje sued the respondent in the High Court for general and special damages arising from an accident involving the respondent's bus in which they were travelling as fare-paying passengers. Namwanje's claim was settled out of court. At the hearing of the suit liability was admitted by the respondent, so that the matter proceeded for the purpose of assessment of damages only.

The essential facts are that on 27 March 1993, the appellants were travelling in the respondent's bus from Kampala to Kira when the bus overturned at or near a place called Nakasongola. The first appellant, Kiggundu, sustained a crush injury of the left leg. He was rushed to the nearest hospital. The doctors there could not save his leg, so an amputation above the knee was carried out. According to Professor Sekabunga who examined him at Mulago hospital on 10 May 1990, for the purpose of this case, the amputation of the leg left the first appellant with a 60% permanent disability. He was on 15 June 1992, awarded Shs5.5 million general damages. The court took into account:

> "The nature of the injury, the amputation of the leg, above the knee, the age of the victim who is 42 years and the value of the shillings at this moment."

His claim for special damages was in respect of cash in the sum of UShs200 000 a wrist watch valued at UShs25 000 and a pair of shoes valued at UShs15 000 which were lost as a result of the accident. The claim was disallowed on the ground that the special damages had to be proved strictly which the first appellant had not done. This is how the judge dealt with matter:

> "I shall start with what plaintiff number 2 claimed. He stated that he was dealing in sell of chicken and groundnuts and had UShs200 000 with him. He did not go any further to explain where the money was or for what purpose. The mere claim that I had 200 000 shillings on me and disappeared per se is not enough; nor is it enough to say that, I had shoes worth UShs15 000 and a watch worth UShs25 000. I do find the above too general to merit proof of the type or actual value. This item in my well considered opinion was not proved strictly to merit award." (*sic*).

He also claimed loss of earnings at a rate of UShs150 000 per month, but the claim failed on the ground that it was not proved. According to the admitted report of Professor Sekabunga who examined him on 23 August 1990, the second appellant Sentongo had sustained a fracture of the right femur and sprain in the right shoulder. The fracture was complicated by the wasting of the right thigh muscles and shortening of the right leg which resulted in a permanent limp.

Permanent physical incapacity was put at 45%. But the trial Judge found that the doctor's report was contradicted by the testimony of the appellant which was to the effect that he had been injured on the right leg by metals and he could not walk properly. He said nothing about fracture. The trial Judge thought that the injuries were fairly minor and awarded only UShs600 000 general damages. His claim for loss of earnings at UShs50 000 per month was rejected for want of evidence.

The appellants now appeal against the decision of the High Court on three grounds, namely:

> "1. That the learned trial Judge's award of general damages was inordinately low and was an erroneous estimate of the damages to which the appellants were entitled.
>
> 2. That the learned trial Judge erred in law when he failed to award special damages.
>
> 3. That the learned trial Judge erred in law and in fact when he held that the second appellant had not proved that he suffered a fractured femur."

The first appellant also challenges the trial judge's decision not to allow his claim for special damages. Mr *Mugabi* counsel for the appellants presented written arguments under Rules of this Court to which a written reply was filed by Mr Yesero *Mugenyi*, counsel for the respondent. Both counsel also appeared in Court at the hearing of the appeal, under subrule 4 of rule 97 their presence was not necessary and they were not entitled to address the Court except with leave. I find this provision unnecessarily prohibitive. There may be matters in the written submissions on which Court may require clarification or even further argument. Indeed in this case we called upon both counsel to submit on a point or two. This was necessary for the Court to arrive at a just decision of the case.

I will deal with the claim for loss of earnings first. It is mentioned in paragraph 7 of the plaint thus:

> "7. The plaintiffs claim from the defendant in general and special damages for pain and suffering, loss of amenities of life and loss of earnings due to the injuries thereof appear below causes to them as a result of the said accident." (*Sic*).

No details of the claim for loss of earnings are stated at the hearing of the suit the first and second appellant simply stated that they earned UShs150 000 and UShs50 000 respectively per month from their business undertakings. It was not clear whether the sums were gross or net earnings. The trial Judge held that the first appellant had not proved his claim strictly, and accordingly rejected it. He did not consider the claim of the second appellant but it seems that he rejected it for same reason. Loss of earnings should be claimed as special damages and must be proved strictly. See *Bhogal v Burbidge and another* [1975] EA 286. In this case the claim was vague and not proved. It was rightly rejected in my view.

Mr *Mugambi* did not address the trial Judge on this matter at all. His claim, on appeal, that a sum of UShs27 million should have been included in the general damages awarded as loss of earnings is clearly untenable. Nor do I agree with his submission that since the claim was not challenged it must succeed. There must be cogent evidence to prove it.

In dismissing the first appellant's claim for special damages the trial Judge had this to say:

> "I shall start with what plaintiff number 2 claimed. He started that he was dealing in sale of chicken and groundnuts and had UShs200 000 with him. He did not go any

> further to explain where the money was or for what purpose. The mere claim that he had 200 000 shillings on him and disappeared per se is not enough; nor is it enough to say that, I had shoes worth 15 000 and a watch worth 25 000. I do find the above too general to merit proof of the type, actual value. This item, in my well considered opinion was not proved strictly to merit award."

I agree that the claim with regard to the watch and pair of shoes was not proved strictly. The first appellant could have produced receipts for the same if that was possible. He could have stated what type of watch and shoes they were, when he bought them and for how much. He could also have testified as to the going price as at the time of trial. That information would have assisted the trial Judge to ascertain whether or not the value claimed was reasonable. In the circumstances the judge was right to reject the claim.

As for the lost cash, I do not see what else the first appellant could have done to prove the claim. His evidence was that he was going to Kira, some 200 miles from Kampala, to buy groundnuts for resale. For that purpose he had on him UShs200 000. I do not think that that was too much a sum for him to have. In my view the real question is whether the damage was remote. The man said that he was knocked down unconscious. He was taken to hospital when he regained consciousness his money was nowhere to be seen. Sadly, it is common in this country for victims of motor accidents to be stripped of their cash and other properties by wrong elements, especially while the victims are unconscious. This is a foreseeable consequence for which the errant driver or his master, as the case may be, will be liable to pay special damages, if the loss is established. I think that the first appellant should have been awarded the claim under this head.

Finally, I will now consider the claim that the general damages were inadequate. With regard to the first appellant who was 42 years old at the time of accident, Mr *Mugambi* contends that the working age, in case of a businessman, should be put at 65 years or more since there is no retirement age for business people. That is a novel point but I think that there must be a limit to age for the purpose of calculating damages. Courts of this country have taken the position that normal working life expectancy is 50 to 55 years. In this case the first appellant clearly sustained a disabling injury. I agree that the award of UShs5.5 million general damages was on the lower side.

I would set aside that award and substitute a sum of UShs10 million general damages.

In awarding the second appellant only UShs600 000 general damages the trial Judge was influenced by that appellant evidence that:

> "I got on my right leg. I was injured by metals and cannot walk properly. The pains come on and off. The leg pains me."

The learned Judge thought that that evidence contradict the medical report which showed that he had sustained a fracture of the right femur and sprain of the right shoulder; that stainman's pin was inserted in the right femur but was removed and a pin inserted on the fractured femur. The judge thought that the failure of this appellant to allude to the fracture rendered his case "obscure" and contradicted the medical evidence.

In my view that conclusion was not justified on the evidence. The medical doctor and not the second appellant were in the best position to classify the injuries. The medical evidence should have been accepted by the trial Judge.

The evidence showed that the injuries were much more serious than the trial Judge thought. I have no doubt that had he properly: considered the evidence he would have awarded substantial damages. I accordingly set aside the sum awarded and substitute therefore a sum of UShs2 million general damages.

In the result grounds one and three of the appeal are allowed ground two succeeds only in part. The awards for general damage shall carry interest at Court rate from the date of judgment the special damages awarded to the first plaintiff shall carry interest, at commercial rate, from the date of filing suit. The respondent shall pay the appellants the costs of this appeal. As Odoki JSC and Platt JSC also agree, it is so ordered.

Odoki and Platt JJSC concurred in the judgment of Manyindo DCJ.

For the appellants:
Mr Mugabi

For the respondent:
Mr Yesero Mugenyi

Kijiji Cha Ujamaa Manolo v Hote
[1990–1994] 1 EA 240 (CAT)

Division:	Court of Appeal of Tanzania at Tanga
Date of judgment:	9 March 1992
Case Number:	1/90
Before:	Mnzavas JA
Sourced by:	LawAfrica

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[1] Appeal – Extension of time to file notice of appeal – Relevant factors – Sickness of appellant a material factor – Rule 8 – Court of Appeal Rules.

Editor's Summary

The applicant sought an extension of time to file a notice of appeal and an extension of time to file an application for leave to file an appeal to the Court of Appeal against the decision of the High Court. His grounds for the application were that, Firstly, he was not informed of his right of appeal when the judgment of the High Court was read to the parties. Secondly, the applicant contended that soon after the judgment, he fell sick and was hospitalised only to be discharged after the expiry of the time limited for filing the notice of appeal. The applicant further contended that his appeal had chances of success. The application was opposed by the respondent who argued that first, the Court had no legal obligation to explain to the applicant his rights of appeal. The respondent impugned the authenticity of the medical report and finally, argued that the applicant's appeal had no chances of success.

Held – There is no statutory provision that the Court must explain to a partly his rights of appeal. However, it is a universally accepted practice that a Court should explain to the parties before it after delivery of judgment their rights of appeal.

Sickness has been accepted by courts as a good cause to account for dilatoriness in allowing a party to pursue his appeal out of time. *Range Chacha v Elifas Nyirabu* [1967] HCD 115 followed.

In civil cases the applicable rule is that parties are bound by their pleadings. *Arusha Tailoring v Mrs T Pucci* [1967] HCD 424 followed.

Application allowed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Arusha Tailoring v Pucci [1967] HCD 424 – **F**

Range Chacha v Nyirabu [1967] HCD 115 – **F**

Ruling

Mnzavas J: In this application the applicant is praying for extension of time to file notice of appeal and extension of time to file application for leave to file an appeal to this Court against the decision of the High Court.

In his affidavit and supplementary affidavit the applicant states that he was unable to file his application in time because he was not informed of his rights of appeal when the judgment of the High Court was read to the parties at the Lushoto district court.

Arguing this point Mr *Kavuta*, learned counsel for the applicant, submitted that the record does not show that the applicant was explained his rights of appeal. This silence in the record, it was argued, tended to confirm applicant's argument that his rights of appeal was not explained to him by the Court, and, being a lay man, Mr *Kavuta* submitted, that the applicant did not know what to do after the judgment and that this contributed to his dilatoriness in pursuing his rights.

The applicant also states in paragraph 9 and 10 of his affidavit that soon after the judgment he fell sick and was hospitalised up to 16 January 1990 when he was discharged.

He says that he came to Tanga on the very day he was discharged from hospital to pursue his appeal and that the High Court registry advised him to file a notice of appeal and an application for leave to appeal to this Court. He filed the necessary papers on the same day, 16 January 1990, but after contacting an advocate he was informed that he was already time-barred and was advised to file the present application. Mr *Kavuta* argued the applicant's illness also contributed to his delay in filing the application in time. It was the learned counsel's submission that the intended appeal has overwhelming chances of success.

In the alternative but without prejudice to the foregoing it was argued that even if the Court finds that there were no sufficient reasons accounting for applicant's delay, the application should be granted on the ground that there are chances of a success in the intended appeal.

In rebuttal Mr *Mramba*, learned counsel for the respondent, argued that even if rights of appeal were not explained to the applicant such omission on the part of the Court did not excuse the applicant from following the rules of the Court and that the Court had no legal obligation to explain to the applicant his rights of appeal.

As for the argument that the applicant got indisposed soon after the judgment of the High Court it was Mr *Mramba*'s submission that even if the chairman who represented the applicant was unable to pursue the matter any other official, for example the secretary of the "*Kijiji*", should have represented the Kijiji and lodge his application in time. Mr *Mramba* also questioned the authenticity of the medical report – annexure A, which showed that the chairman of the applicant/Kijiji cha Ujamaa Manolo was admitted in hospital from 13 December 1989 to 16 January 1990. It was Mr *Mramba*'s view that it was difficult to imagine that the applicant could have travelled all the way from Lushoto to Tanga to pursue his appeal on the very same day he was discharged from hospital. Furthermore it was submitted that the applicant's signature on the notice of appeal materially differed from his purported signature on the affidavit, supplementary affidavit and memorandum of appeal. This difference in the signature, it was submitted, showed that the applicant lied and that he should not be believed.

The learned counsel for the respondent also argued that the applicant was not diligent in prosecuting his appeal because it took him a long time to swear his affidavit and to file it after he had filed notice of appeal on 16 January 1990.

Coming to the pray for extension of time to file application for leave to appeal to this Court Mr *Mramba* argued that this application ought to have been filed in the High Court and not to this Court. In support of his argument the Court was referred to section 4(1)(*c*) of the Appellate Jurisdiction Act and rules 43 and 44 of the Court of Appeal Rules.

Finally it was argued that the intended appeal has no chance whatsoever of success. It was submitted that the "*Kijiji Cha Ujamaa Manolo*" which appeared as the plaintiff in the Mlalo Primary Court – civil case number 111 of 1986 (and which matter has now reached this Court) had no *locus standi* in the matter. It was argued that the Kijiji should have been represented by its village council. In support of this argument section 26 of Act number 7 of 1982 was quoted.

In reply Mr *Kavuta* submitted that it was quite possible for the applicant to reach Tanga on the same day he was discharged from Lushoto hospital as the distance is not very long and that there are regular buses between the two points.

As for the difference in the signature it was argued that this was not canvassed in the counter affidavit of the respondent. It was also submitted that the difference in the signature did not necessarily indicate that the applicant was a liar, and that the applicant may have more than one signature.

As for the delay in swearing and filing his affidavit after filing notice of intention to appeal it was submitted that the chairman had first to consult various leaders in the Ujamaa Village and hence the delay

Finally it was Mr *Kavuta*'s argument that application for extension of time on a matter touching the Court of Appeal is lodged before the Court of appeal and not before the High Court as submitted by Mr *Mramba*. In support of his argument Mr *Kavuta* referred the Court to rule 8 of the Court of Appeal Rules.

After having heard arguments from both counsel and after my thorough perusing of the records relating to this application, the vital question this Court has to decide is whether the applicant has succeeded in showing sufficient

reason to account for his dilatoriness to lodge his application in time so as to warrant this Court to allow the application under rule 8 of the Court of Appeal Rules. The argument that failure on the part of the High Court to explain to the applicant his right of appeal contributed to the delay was, as already mentioned above, countered by Mr *Mramba* that there was no legal obligation on the Court to explain to the applicant his rights of appeal. With respect I agree that there is no statutory provision that the Court must explain to a party his rights of appeal, but with even greater respect to the learned counsel it is a universally accepted practise that a Court should explain to the parties before it after delivery of judgment their rights of appeal. It is not difficult to see why courts have always followed this rule of practice. The majority of the people appearing before the Courts are humble citizens ignorant of the intricacies of the law; and many of them appear in person as was the applicant in this case. To mitigate this disadvantage courts always explain to the parties appearing in person their rights of appeal. That being the position where it appears, as it does in this case, that a Court did not explain to a party his rights of appeal, a complainant against such omission deserves a sympathetic hearing.

As for the argument that the applicant fell sick soon after the judgment of the High Court was read and the counter argument that another official of the applicant should have represented him; there is force in Mr *Mramba*'s submission but we should also not lose sight of the fact that the chairman was a simple villager not conversant with legal technicalities. Had the applicant been represented by an advocate applicant's indisposition would not have helped him very much. The position in this case is that the applicant fell sick soon after the judgment intended to be appealed against was delivered. That he was admitted in Lushoto hospital suffering from enteric fever is evident from the discharge card annexure A. Sickness has been accepted by courts as a good cause to account for dilatoriness in allowing a party to pursue his appeal out of time – see the decision in *Range Chacha v Nyirabu* [1967] HCD 115.

On question whether the intended appeal has chances of a success Mr *Mramba* was, as already mentioned above of the view that the intended appeal has no chance of success at all because the applicant had no *locus standi* in the matter. This is a good argument but as Mr *Mramba* will no doubt agree on reflection it has been brought rather late in the day as it was not raised in the lower Courts. In any case such argument would be more relevant when the actual appeal is heard.

Coming to Mr *Mramba*'s submission that the signatures of the applicant materially differed. It is clear from ocular observation that the signature of the applicant on the notice of appeal is totally different from the signatures appearing on the affidavit, on the supplementary affidavit, and on the memo of appeal.

Surprisingly however, this complaint is not part of respondent's pleadings in his counter affidavit. In civil cases the applicable rule is that parties are bound by their pleadings. So the decision in *Arusha Tailoring v Pucci* [1967] HCD 424, to mention but only one of the many decisions on the question of pleadings.

Finally on the question as to which court the applicant should have filed his application for extension of time to file his application for leave to appeal to this Court I tend to agree with the learned counsel for the applicant that the application is properly before this Court in view of the clear provisions of rule 8 of the Court of Appeal Rules.

Taking into account the omission by the High Court to explain to the applicant his rights of appeal, the fact of his indisposition soon after the judgment of the High Court and the overriding consideration that cases should be dealt with on their merits I grant this application as prayed. Costs to follow the event.

For the applicant:
Mr Kavuta

For the respondent:
Mr Mramba

King Woolen Mills Ltd and another v Kaplan and Straton Advocates
[1990–1994] 1 EA 244 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	16 December 1993
Case Number:	55/93
Before:	Cockar, Muli and Akiwumi JJA
Sourced by:	LawAfrica

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[1] Advocate – Fiduciary relationship between client and advocate – Retainer establishing relationship – Conflict of interest – Confidentiality – Advocate representing common clients – Delay in objecting – Prejudice or mischief anticipated.

Editor's Summary

The appellants negotiated a loan from the Standard Merchant Bank Limited (The London Bank), through a guarantee offered by the East Africa Acceptances Limited (The Acceptances).

The appellant then requested the respondent to act for them in clearing the loan and in drafting the various security documentation. The respondents agreed to so act for the appellants but also informed the appellant that they would also be acting on behalf of The London Bank in relation to the loan agreement and on behalf of The Acceptances in connection with the preparation of an asset debenture and legal charge over the appellant's property. The appellants did not express any objection to the respondent acting for the other two parties.

Subsequently, the respondent wrote a letter to the appellant accepting to act for them but also stating that it would reserve the right to continue acting for the London Bank and The Acceptances, as its principal clients, in case of any conflict between them and the appellant.

The respondent thus acted as advocates for the appellant on one hand, and for The London Bank and the acceptances on the other hand from 1981 to 1982.

A dispute later arose between the appellants and The Acceptances in 1989 and the appellants filed suit against them and their receivers in a different matter.

The appellants then also filed this suit seeking a declaration from the Court that the respondents

cannot represent The Acceptances, The London Bank and the receivers in the former suit and an injunction restraining the respondent from breaching the terms of the client/advocate relationship established by their retainer.

The injunction application was dismissed hence the appeal.

Held – An advocate should not accept instructions to act for two or more clients where there is a conflict of interest between those clients.

A retainer creates a contractual relationship between the advocate and the client irrespective of whether two or more clients are involved.

An advocate cannot act in a manner prejudicial to his client or disclose any confidential information to anyone without the client's consent.

An advocate who has acted for two common clients cannot later act for either party in litigation when a dispute arises between the common clients concerning the original transaction or the subject matter for which he acted for the clients as a common advocate. *Re: a Firm of solicitors* [1992] 1 All ER 353 followed; *Rukesen v Ellis, Munday and Clerk* [1912] 1 Ch 831 distinguished.

Acting for two or more common clients did not remove the necessity of confidentiality between the advocate and each of the clients separately.

Conclusion of the transaction for which the retainer was made did not extinguish the duties and obligations of the common advocate.

Delay in objecting to an advocate's continued representation of a certain client does not defeat or change the duty or obligations of the common advocate imposed on him under the retainer.

Real prejudice and mischief is anticipated if the respondents are permitted to continue acting for one of the parties. *Supasave retail Limited v Coward Chance and others* [1991] 1 All ER 668 applied.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

United India Insurance Co v EA Underwriters civil appeal number 36 of 1983

United Kingdom

Re a Firm of Solicitors [1992] 1 All ER 353 – **F**

Rukesen v Ellis, Munday and Clerk [1912] 1 Ch 831 – **D**

Supasave Retail Limited v Coward Chance and others [1991] 1 All ER 668 – **AP**

Judgment

Muli JA: The appellant, the Manchester Outfitters Suiting Limited and Galot Industries, are limited liability companies incorporated and registered in Kenya and carrying on the businesses of manufacturing clothes and property developers respectively. The former is a subsidiary company of the latter hereinafter collectively referred to as "the borrowers" where the context so requires. The respondents are a prominent firm of advocates practicing law in Kenya and based in Nairobi.

The first appellant negotiated successfully a loan from the Standard Merchant Bank Limited (the London Bank), through the East Africa Acceptances Limited; another company incorporated in Kenya, (the Acceptances), to the tune of 1.3 million Deutsche Marks and 1.05 million Swiss Francs. The loan was guaranteed by the Acceptances Limited, hereinafter collectively referred to as "the lenders", where the context so requires. The names of the first appellant and the Acceptances appear to have changed but nothing turns on this.

The respondents were initially retained to act for the London Bank and the Acceptances during the negotiations the preparation of the loan agreement and security documents.

> The first appellant wrote to the respondents on 9 October 1981 as follows:
>
> M/s Kaplan and Straton
>
> Advocates
>
> PO Box 40111
>
> Nairobi.
>
> Attention: Mr JM Kibuchi
>
> *Gentlemen*
>
> We have negotiated a medium term loan for KShs 12 million, from Standard Chartered Bank, (Merchant Banking Division), through East African Acceptances Limited, Nairobi.
>
> The loan is secured against an unconditioned guarantee from East African Acceptances Limited (EAA). In turn we have agreed to a first legal charge on our property at Athi River, and a debenture on the assets of the company in favour of East African Acceptance's Limited.
>
> The loan documents from Standard Chartered Bank have now been received by East African Acceptances and they will shortly be instructing their advocates to draw up the legal charge and debenture. As you are aware, the property in question is plot number 2, of the land at Athi River. Since the main title and sub-titles are under registration, we would request you to confirm to East African Acceptances, Limited, as under.
>
> 1. That you are acting on our behalf through Galot Industries Limited, in the matter of transfer and registration of titles this piece of land.
> 2. That you would be issuing a professional undertaking to surrender the title pertaining to plot 2 to East African Acceptances, upon receipt of the same, so as to register the legal charge as mentioned above.
>
> Through this letter, we request you to issue the letter of undertaking, so that we could obtain the disbursement of loan at the earliest.
>
> We understand that your firm would also be acting on behalf of East African Acceptances Limited, and the loan documentation being forwarded by them for legal opinion. We would very much appreciate, if you could clear the documents on our behalf also and advice us accordingly,
>
> Yours faithfully
>
> Manchester Outfitters Suiting Division Limited
>
> TR Laxman
>
> Secretary"

This letter constituted the request by the first appellant that the respondents do act for them in clearing the loan and security documents as well as advising them accordingly. The first appellant received a copy of the letter from the respondents to the acceptances informing them that the respondents were acting for the second appellant in connection with the purchase of properties, one of which was to be offered to the Acceptances as security for the loan to

the first appellant company and that the respondents would hold the deed plan. When released, to the order of the Acceptances. As this letter is also relevant in the negotiations, I reproduce it's contents hereunder:

> "East African Acceptances Limited
>
> Stanbank House
>
> Nairobi
>
> Dear Sirs
>
> *Galot Industries Limited Purchase of LR number 1337 and 1338/2*
>
> We represent Galot Industries limited in connection with the purchases of the above mentioned properties. When the transfers of the properties, which have been presented at the Land office, are complete, a sub-division scheme which has already been approved by the commissioner of Lands, will be implemented resulting in thirty sub-divisions of which one will be offered to you as security for a loan in the name of Manchester Outfitters Suiting Division Limited. We confirm that when all the formalities have been finalised, and the deed plan for the sub-division designated land reference number 12867/1 is released by the director of survey, we shall hold the same to your order.
>
> We understand that you will be instructing us separately in connection With the completion of a legal charge in your favour over the said property.
>
> Yours faithfully
>
> Kaplan and Straton
>
> Signed
>
> JM Kibuchi
>
> cc Manchester Outfitters Suiting Division Limited
> JMK/mb"

On the 23 October 198l, the Acceptances confirmed their Instructions to respondents as follows:

> "Messrs Kaplan and Straton
>
> Queensway house
>
> Nairobi.
>
> Your Ref: JMK/23577)
>
> Dear Sirs
>
> *Manchester Outfitters Suiting Division*
>
> We write with reference to your letter dated 16 October 1981, and our earlier telephone conversation with Mr *Keith* and confirm as follows:
>
> 1. That you will approve on behalf of Standard Chartered Merchant Bank, the loan agreement referred to in the letter of 1 October 1981.
> 2. You will approve on our behalf the guarantee to be issued by us to Standard Chartered Merchant Bank, London and confirm exchange control approval thereof.
> 3. To act on our behalf in the, preparation of all assets debenture to be issued to us by Manchester Outfitters Suiting Division.
> 4. To prepare a legal charge over plot number 2 at Athi River. We observe your remarks that the factory was apparently being constructed on plot number 1. The company had in fact confirmed that the construction is being carried out on plot number 1. We therefore request you to prepare a legal charge over the plot or plot being occupied by the building.
>
> Regarding the guarantee to be issued by Manchester Outfitters we do not think that we shall require any further tangible security since Manchester Outfitters is offering adequate security to cover the loan.

We enclose herewith a photocopy of Central Bank of Kenya letter of approval dated 26 August 1981. We understand that this letter has since been amended to cover the remittances of the loan and interest without having to produce evidence of receipt of machinery into the country in an approved manner. This was necessary because our loan was not directly related to the importation of the machinery.

We assume that the certificate of approved enterprise has erroneously been issued and we expect the borrower to obtain the correct certificate of an approved enterprise in accordance with your advice.

We have been advised by Standard Chartered Merchant Bank, London that they would prefer Kaplan and Straton to draft a suitable guarantee and submit the text to them for final approval. Regarding the borrowing powers of the company we shall expect you to advice them to make the necessary amendments to the Memorandum of Articles of Association to enable the company to borrow as necessary. This will be appropriate since we have no objection to your acting for Manchester Outfitters and ourselves. In the event of an apparent conflict of interest we expect you to advise us accordingly.

We note that you require a substantial deposit on account of legal expenses related to this transaction. We shall make arrangements to pay this as soon as you advice us of the figure.

Yours faithfully,

For: East African Acceptances Limited

Signed

General Manager

Encls”

On the same date Mr KHW *Keith* for the respondents, Wrote to Mr Mohan Galot Chairman of the second appellant’s company as follows:

“Mohan Galot Ese

Chairman

Galot Industries Limited

PO Box 57837

Nairobi

Dear Mr Galot

Re: Standard Chartered Merchant Bank Limited Loan to Manchester Outfitters Suiting Division Limited

I refer to my meeting with you of yesterday and as arranged now enclosed a copy of my letter of today’s date to East African Acceptances Limited for your information and action where necessary.

As you will appreciate, East African Acceptances Limited and Standard Chartered Merchant Bank Limited are my principal clients in this particular transaction and accordingly if at any time it appears that there is or there may be conflict between yourselves and East African Acceptances Limited, I must reserve the right to continue acting for them and ask you to seek independent legal advice. At the present time however, there does not seem to be any difficulty.

You agreed that you would expedite the obtaining of the subdivision of land survey deed plan, so that the two sites presently owned by Galot Industries Limited could be transferred to Manchester Outfitters Suiting division Limited as a matter of urgency. Will you please also forward to me a copy of the original Certificate of Incorporation of Manchester Suiting division and Manchester Outfitters Limited together with further copies of the Memorandum and Articles of Association all certified by yourselves as being true copies of the originals. If the companies have passed any resolution amending the Memorandum and Articles of Association, I also require certified copies of those.

> I also require a copy of the Central Bank's approval which you apparently hold for the borrowing so that I may ensure that it covers all matters which require exchange control approval.
>
> Finally, you will recall that I discussed the likely amount of my Firms fees, which I estimate will amount to £10 000. Of this I require £5 000 to be paid now and I look forward to receiving this amount within the next few days, and the balance together with the disbursements or stamp duty etc., should be paid when the documentation is ready for execution.
>
> I will let you know as soon as I receive further instructions from East African Acceptances Limited with regard to the necessary revision to the loan agreement. As requested, I enclose a further copy of the Loan Agreement.
>
> Yours sincerely
>
> Signed
>
> KHW Keith
>
> KHK/as
>
> Encl"

This letter confirmed conclusion of the respondents' acceptance to act for the appellants, as well as for the London Bank and the Acceptances. For the period from 1981 to 1982, the respondents so acted for the appellants, the borrowers, on the one part and the London Bank, the lender and the Acceptances, on the other part. They were thus accepted to act for the appellants as well as their principal clients (the London Bank and the Acceptances).

There was no dispute that the respondents so acted as the common advocate for the appellants, the London Bank and the Acceptances. During this period the formalities of the loan were successfully completed. The loan was guaranteed by the first appellant with the legal charge and all assets debenture in favour of the Acceptances. The respondents had prepared the loan agreement, the guarantee, the debenture and the legal charge on behalf of the London Bank, the Acceptances and the appellants as well as furnishing the requisite legal opinion. There were also other transactions concerning the security property at Athi River. The loan agreement and the security documents were duly executed by the parties without any objection. The transaction having been successfully concluded the London Bank disbursed the loan to the appellants under the loan agreement.

In 1989, disputes arose between the appellants and the Acceptances resulting in an action being filed by the appellants in the High Court (High Court civil suit number 5002 of 1990) against the Acceptances and their appointed receivers, particulars of which were pleaded in the Amended plaint containing 39 paragraphs a defence and counter-claim containing 62 paragraphs and a reply thereto containing 35 paragraphs. This suit is pending before the high court and I will say no more about it except that on the eve of the resumed hearing of that suit, the appellants filed the present suit from which this appeal lies.

The appellants instituted the present suit against the respondents praying for a declaration that they were not entitled to represent or to act for the Acceptances, the London Bank and the Receivers or any other party which was involved in the borrowing transactions entered into between the appellants, the London Bank and the Acceptances. They also sought an injunction to restrain the respondent from breaching the terms of the client/advocate contract of retainer entered into by the appellants between 1981 and 1982.

The application by way of chamber summons for an injunction to restrain the respondents from so acting for the acceptances and other associated companies or persons came up before the superior Court (Shields J) who in his usual short and crisp ruling dismissed the appellants' application with costs. Hence this appeal.

Mr *Kamau* for the appellants filed some ten (10) grounds of appeal which he argued together. He advance three propositions, namely:

1. An advocate who acts for both the purchaser and the seller will be restrained from acting for the seller in any action in which validity of any documents is challenged by the borrower.
2. The principles upon which this Court will upset the decision of the High Court is laid down by Madan J in the *United India Insurance Co v EA Underwriters* civil appeal number 36 of 1983.
3. That the respondents having drawn the loan agreement, the debenture, the legal charge as well as the legal opinion and the legal advice thereof on behalf of the lenders, and the appellants are disqualified from acting for the lenders and in any subsequent litigation or dispute arising from the same loan transaction in which the validity of the loan and security documents are challenged.

Looking at the grounds of appeal as a whole, we are of the view that these revolve around the above propositions and may be telescoped in one main ground namely:

> The respondents having accepted to act for both the appellants and the Acceptances in the loan transaction between the appellants and the London Bank and the Acceptances, are they in breach of their fiduciary relationship of client and advocate by representing the lenders in any litigation arising from the said loan transaction in which the validity of the loan and security documents are challenged. Put simply, is the advocate who acts for both the borrower and the lender in a transaction disqualified from acting or representing one of the parties or clients in any subsequent litigation concerning the said transaction? I am of the view that the points raised in the other grounds of appeal are incidental thereto.

It is not in dispute that the respondents accepted and acted for both the appellants, the London Bank and the Acceptances in all the transactions involving the loan to the appellants from the London Bank and the guarantee, the legal charge and the Debenture in favour of the Acceptances. Mr *Keith* of the respondents' firm of advocates was responsible for putting together the transaction. For all intents and purposes, he was the advocate for both the borrower (the appellants) and the lenders (the London Bank and the Acceptances). The fiduciary relationship of advocate/client existed upon Mr *Keith*'s acceptance of the retainer from the appellants. This is quite clear from his letter of 23 October 1981, to the chairman of the second appellant: (*supra*):

> "As you will Appreciate East Africa Acceptances Limited, and the Standard Chartered Bank Limited are my principle clients in this particular transaction and accordingly if at any time it appears that there is or there, may be conflict between yourselves and the East Africa Acceptances Limited; I must reserve the right to continue acting for them and ask you to seek independent legal advice. At the present time however, there does not seem to be any difficulty."

Thus there was a retainer – a contractual relationship between the appellants and Mr *Keith* on behalf of his firm whereby he undertook expressly or by implication to fulfil the appellants' obligation in connection with the transactions involving the loan from 1981–1982.

Once the retainer is established, then the general principle is that an advocate should not accept instructions to act for two or more clients where there is conflict of interests between those clients. Of course there are exceptions to this general principle. In the instant case the respondents through Mr *Keith* were the advocates for their principal clients, the London Bank and the Acceptances. They accepted the retainer from the appellants although they put a caveat that in the event of a conflict of interest arising between the appellants and their principal clients that they reserved the right to continue acting for their principal clients and to ask the appellants to seek independent legal advice. However, Mr *Keith* saw no conflict of interests at that time, although he foresaw such an eventuality arising subsequently.

The retainer created a contractual relationship between the advocate and the client irrespective of whether two or more clients are involved. That is to say that the relationship is not tripartite. Each client has a separate retainer relationship with the common advocate. For example like in the instant case, Mr *Keith* for the respondents having accepted to act for the appellants, the borrowers, and the lenders, in putting together the loan transaction he has a duty to the borrower and should not subsequently act for the lenders to enforce repayment of the loan because he had obtained relevant knowledge of the borrower's financial position when acting for him in connection with the original loan transaction. In these circumstances he would take unfair advantage prejudicial to borrowers if he so acts for the lenders because of apparent conflict of interest.

The fiduciary relationship created by the retainer between client and advocate demands that the knowledge acquired by the advocate while acting for the client be treated as confidential and should not be disclosed to anyone else without that client's consent. That fiduciary relationship exists even after conclusion of the matter for which the retainer was created. This principle applies equally where an advocate acts for two or more clients in the same transaction or subject matter because the retainer is specific between the individual client and the common advocate. There exists no fiduciary relationship between the two or more clients of the common advocate. Any knowledge received from each client and their common advocate, although the common advocate acting for two or more clients will be able to complete the transaction speedily and save the clients expense by engaging one common advocate; this fact alone is for convenience only and does not affect the general principle that he should not so act or divulge the confidential information received by him from one client to the other client or clients without the consent of the client in the retainer imparting the confidential information. The corollary to this cardinal principle is that the advocate having so acted for two or more clients should be wary to act for one client against the other client or clients in a subsequent action or litigation concerning the original transaction or the subject matter for which he acted for the clients as their common advocate. The reason for this is not far fetched. The information or knowledge so acquired and which is confidential by reason of the fiduciary relationship between the opponent client and the common advocates will place the other client or clients at a disadvantage occasioning prejudice if that knowledge or information is used against them by the common advocate in a subsequent litigation arising from the original transaction or subject matter for which he acted for the clients as their common advocate. As such the conflict of interest is apparent and the common advocate should not act for one of his client or clients against the other client or clients in a subsequent litigation arising from the original transaction or the subject matter.

I am persuaded to adopt the rule as has emerged since in *Rukesen v Ellis Munday* and clerk as reported in *Orderly on Solicitors* (7ed) at 70:

> "A solicitor who has been retained by a client is under an absolute duty not to disclose any information of a confidential nature which has come to his knowledge by virtue of a retainer, and to exercise the utmost good faith towards his client not only for so long as the retainer lasts but even after termination of the retainer, in respect of any information acquired during the course of and by virtue of the retainer and the Court will restrain the solicitor by injunction from any breach likely to damnify the client and award damages for breach. There is no general rule prohibiting a solicitor who has acted for one client in a matter acting for an opposite party in the same matter, but where a solicitor owes a duty to a third party which conflicts his duty to a particular client he is not relieved of his duty to the client."

In *Rakusen v Ellis Munday and Clerke* [1912] 1 Ch 831 Cozens-Hardy MR as he then was put the principle as follows at 835:

> "A solicitor can he restrained as a matter of absolute obligation and as a general principle from disclosing any secrets which are confidentially reposed in him. In that respect, it does not very much differ from the position of any confidential agent who is employed by the principal. But in the present case we have to consider something further. It is said that in addition to the absolute obligation not to disclose secrets there is a general principle that a solicitor who has acted in a particular matter, whether before or after litigation has commenced, cannot act for the opposite party under any circumstances, and it is said that that is so much a general rule and the danger is such that the Court ought not to have regard to the special circumstances of the case. I do not doubt for a moment that the circumstances may be such that a solicitor ought not to be allowed to put himself in such a position that, human nature being what it is, he cannot clear his mind from the information which he has confidentially obtained from his former client, but in my view we must treat each of the cases, not as a matter of form, not as a matter to be decided on the mere proof of a former acting for a client but, as a matter of substance, before we allow the special jurisdiction over solicitors to be invoked, we must be satisfied that real mischief and real prejudice will in all human probability, result if his solicitor is allowed to act."

The injunction was refused notwithstanding proof of contract of retainer and the general principle that once the solicitor has acted for a client, he should never act for the client or opponent client in a subsequent litigation arising from the transaction or subject matter for which had acted for the client. Rukesen had consulted Munday and no one else. Clerke was on vacation and knew nothing about Rukesen's consultation with Munday. The solicitors in the firm of Ellis, Munday and Clerke used to act for clients separately without the knowledge of the other solicitor. Clerke was a complete stranger to Rukesen's communications to Munday. In the special circumstances of that case, there was no possibility of Clerke disclosing confidential information imparted to Munday by Rukesen. There was no mischief or probability of mischief or prejudice ever arising from Clerke acting for the opponent company.

Rukesens v Ellis, Munday and Clerke was considered in *Re A Firm of Solicitors* [1992] 1 All ER 353, 354. In that case a firm acted for ASM. Both the firm and ASM received much confidential information from ASA and its subsidiaries which would be of value to Mr Derby in the main action and that they should not therefore be permitted to Act for Mr Derby in that action. The issues raised in the main action were very closely bound up with the matters being investigated by ASM and the firm between 1982–1985.

It was held Parker LJ at 354:

1. There was no general rule that a firm of solicitors who had acted for a former client could never thereafter act for another client against the former client, but a firm of solicitors would not be permitted to act for an existing client against a former client if (Per Parker LJ and Sir David Croom-Johnson) a reasonable man with knowledge of the facts would reasonably anticipate that there was a danger that information gained while acting for the former client would be used against him or (per Stanghton LJ) there was some degree, of likelihood of mischief, ie of the confidential information imparted by the former client being used for the benefit of the new client. If (Stanghton LJ dissenting) there was such a conflict of interest it was only in very special Cases that the Court would consider that a Chinese wall would provide an impregnable barrier against the leakage of confidential information . . . . . .
2. (Stanghton LJ dissenting) on the facts, a reasonable man with knowledge of all the facts including the measures for a Chinese Wall proposed to be taken by the firm would, notwithstanding those measures, still consider that if the firm was allowed to continue to act for the defendant, there would be at risk that some of the confidential information provided by the ASA companies to the firm when it was acting for ASM might inadvertently be revealed to the firm's team who were to act for the defendant. Accordingly, the appeal would be dismissed and the injunction restraining the firm from acting for the defendant would be continued. . . . . .

The facts in the present case are simple. Mr *Keith* of the firm of advocates (the respondents) acted for the appellants as borrowers and the lenders between 1981–1982 or thereabout. He was to put together a deal whereby the appellants were to borrow money from the lenders – the offshore Bank through the Acceptances. In all, Mr *Keith* drew up at least six documents and advised both his clients accordingly. It was not in dispute as evidenced by correspondence exchanged between the parties (*supra*) that contractual, fiduciary or retainer relationship existed between Mr *Keith* and the individual clients as their common advocate. That being the case, the information imparted to Mr *Keith* by the individual clients was confidential. Mr *Keith* owed a duty to his individual clients not to disclose or divulge any confidential or secret information imparted to him in confidence to anyone else including the other clients in the loan transaction without the consent of the client imparting the confidential information. There is no doubt in my mind that to put together the loan transaction of this magnitude for the appellants to get the loan from the offshore Bank, the appellants must have furnished much confidential information to Mr *Keith* to convince the offshore Bank that they were viable. The many loan and security documents which were necessary to put together the loan transaction needed disclosure by the appellants of secrets and confidential information about themselves and their background. Mr *Kamau* for the appellants submitted that Mr *Keith* had knowledge of the appellants' "financial positions and vulnerabilities".

Quite apart from the loan and documents and the correspondence exchanged between the parties and in particular the preparation of the debenture whose validity is now challenged by the appellant, Mr *Keith* must have much more confidential information to enable him to draw up the debenture and the other loan and security documents. The debenture, the loan agreement, the legal charge the guarantee and the amendment of the appellant companies' Memorandum and Articles of Association, in themselves may not he confidential because some of them had to be exchanged and executed by the appellants, the

lenders and the Acceptances. Similarly the letters exchanged between the appellants and the respondents (*supra*) necessary for the preparation of the loan and security documents, in themselves may not be confidential because, by their very nature were necessary and common information to all the parties to enable Mr *Keith* to conclude the loan and security documents. Nevertheless, much More confidential and secret information must have been imparted to Mr *Keith* by the appellants. The lenders may not have imparted much confidential information for their desire was to be satisfied that the appellants were viable borrowers and the loan and security documents were water-tight in their favour. I would imagine Mr *Keith* of the respondents' firm enquiring from the appellants of their viability, background and financial standing. For instance I would imagine Mr *Keith* asking whether the appellant companies were solvent or not. Whether they had borrowed from the local banks and if so whether the loans so raised had been liquidated, whether there were pending suits against the appellant companies, the assets and liabilities of the appellant companies, the financial turn-over of the appellants' companies, businesses, creditors of the appellant companies, whether or not any of the directors of the appellants' companies has been declared bankrupt or discharged bankrupt and so forth. The questionnaire may not be exhaustive. This information imparted to Mr *Keith* on these and such other questions is confidential and secret between the appellants, Mr *Keith* and the respondents and should never be revealed to anyone else including the lenders without the appellants' consent. It was confidential information and secrets of the appellants imparted to Mr *Keith* and the respondents in confidence under retainer to enable Mr *Keith* to successfully conclude the loan transaction. Mr *Keith* and the respondents had knowledge of this vital confidential information which would, in all probabilities, damnify the appellants in the pending suit between the appellants and the Acceptances to which the respondents have been acting and intend to act for the Acceptances and their appointed receivers against their former clients, the appellants in the original loan transaction.

The respondent's case is based on the affidavit of Mr *Keith* in opposition to the chamber summons dated 2 February 1993. Mr *Keith* admitted that there existed a contract of retainer by both the appellants who also knew the existence of the retainer by the lending London Bank and the Acceptances. As a matter of practice, Mr *Keith* deponed that it is common in Kenya for the advocate instructed by the leading Financial Institution or Bank also to act for the borrowers for convenience of speed, saving costs and lack of conflicts which cannot be resolved. According to Mr *Keith*, there was an express term of the retainer that in the event of any conflict arising between the appellants and the lending bank or the Acceptances, the respondent reserved the right to continue to act for the lending bank and the Acceptances. He also believed that there was an implied term of the retainer that all information from all clients would be made available to the other clients who were parties to the original loan transaction, unless the client providing the information expressly stipulated that the information was to be kept confidential from one or more of the other parties.

That he had never received any request that he should treat any information confidential as against the other clients involved in the transaction. That no conflict arose during 1981 and 1982 during preparation of the loan and security documents. That he never acted for the parties thereafter although he acted for

the Acceptances in the appointment of Receivers and managers who were appointed in September 1990. That at no time did the appellants complain or object to the respondents continuing to act for the Acceptances until after the hearing of the main suit had commenced and at no time did the appellants complain about the validity of the debenture until the allegation appeared for the first time in the reamended plaint.

In his opinion, Mr *Keith* deponed as follows in paragraph 32:

> "I verily believe that it would cause a great injustice to SCFS and the Receivers if they were forced to change advocates in the middle of the hearing as complex as this particularly when the plaintiffs have acquiesced in their continued representation by the defendants for so long and there is no information in the defendants' possession of a confidential nature which it acquired from the first plaintiff. It will be extremely difficult, time consuming and costly for another firm to become fully familiar with all the details of the case. It may well necessitate an adjournment which would be very lengthy given the commitments of counsel and the congestion in the Courts which will probably be made worse by the impending election petitions. SCFS and the Receiver's are at the moment constrained by an interim injunction from enforcing their security until the hearing so that it is of the utmost importance to them that there is a speedy hearing."

Quite apart from the affidavit containing argumentative statements, the above is pure opinion of Mr *Keith* and Mr Deverell who is conducting the defence in the main suit.

Mr *Guram* for the respondents submitted firstly that there was no confidential information imparted to Mr *Keith* by the appellants and secondly there was no possibility of real mischief arising if the respondents are allowed to continue acting against their former client, the appellants. The trust of the respondents' case is that there was no confidential information pleaded in the re-amended plaint and none can exist in a transaction where the advocate is acting for two or more clients because he owed all the clients a duty under the retainers.

I do not think for a moment that it can be argued that no confidential information existed because the respondents were acting for the appellants, the lending bank and the Acceptances in the original loan transaction. The very nature of the contract of retainer imposed a duty on Mr *Keith* to treat the information imparted to him by the appellants as confidential. It also imposed on him an obligation not to disclose such confidential information to any one else including the other clients involved in the transaction without the consent of the client providing the confidential information, in this case the appellants. Nor do I think for a moment that it can be argued that the duty and obligations imposed on him as a common advocate ceased after conclusion of the transaction for which the retainers were made. Further, the mere delay in raising the point of objection to the respondents continuing to act against the appellants does not defeat or change the duty or the obligations of the common advocate imposed on him under the retainer. Mr *Keith* has already admitted that he had discussed the transactions with Mr Deverrel, and the advocate of the respondents' firm.

The learned Judge, refused the injunction sought on the following lines:

> "I must confess I can envisage no sort of confidential information disclosed by the borrowers to his solicitor or his advocate that could by being disclosed to the lender, would work any mischief to the borrower's detriment."

With greatest respect this was a misdirection. The learned trial Judge failed to appreciate that the information under the retainer was confidential *ab initio*. Although he applied the principle correctly, he failed to appreciate that the respondents may have had more confidential information. He also failed to appreciate that the validity of one of the security documents was challenged in the main suit and that the, respondents being the authors thereof, knew much more behind the documents than is apparent on the documents and are bound to use that knowledge at their trial against the appellants, their former clients.

Mr, *Keith* admitted in his affidavit (*supra*) that he had a discussion with Mr Laxman and Mr Mohan Galot on 25 March 1982 when they discussed the debenture now under challenge to provide additional facilities. This discussion was confidential with the result that if the respondents are permitted to continue to act for the Acceptances, the information imparted during those discussions will be used by the respondents to defeat the very challenge of the validity of the debenture by the appellants.

I have used the phrases "Mr *Keith* and the respondents" because, unlike in *Rukesen v Ellis, Munday and Clerke*'s case where Mr Munday alone acted for Rukesen separately and independently with exclusive knowledge while Mr Clerke was on holiday and unaware of the communication imparted to Mr Munday by Mr Rukesen, this is not so in the present case for there is evidence of other advocates Mr Kibuchi and Mr Deverrel of the same firm of the respondents acting for the same parties during the period in question. The respondents had imputed knowledge of the vital confidential information imparted to Mr *Keith* by the appellants – so I hold.

Reverting to the consideration of the main issues, counsel referred us the recent decision in *Supasave Retail Limited v Coward Chance and others* [1991] 1 All ER 668 in which *Rukusen v Ellis, Munday and Clerke and Re a Firm of Solicitors* (*supra*) were applied and followed. In that case Sir Nicolas Browne-Wilkinson VC summed up the general rule at 673 as follows:

> "The English law on the matter has been laid down for a considerable period by the decision of the Court of Appeal in *Rukusen v Ellis, Munday and Clerke* [1912] 1 Ch 831. The law as laid down there is that there is no absolute bar on solicitor in a case where a partner in a firm of solicitors has acted for one side and another partner in that firm wishes to act for the other side in litigation. The law is laid down that each case must be considered as a matter of substance on the facts of each case. It was also laid down that the Court will only intervene to stop such practice if satisfied that the continued acting of one partner in the firm against a former client of another partner is likely to cause (and . . .) real prejudice to the former client unhappily, the standard to be satisfied is expressed in numerous different forms in *Rukusen*'s case itself. Cozens-Hardy MR laid down the test as being that a Court must be satisfied that real mischief and real prejudice will, in all human probability result if the solicitor is allowed to act. As a general rule, the Court will not interfere unless there be a case Where mischief is rightly anticipated."

Applying the above tests to the facts in the present case, I must be satisfied that real mischief or real prejudice is rightly anticipated. It must be remembered that the pending main suit prays for declaration that the security documents and in particular, the Debenture are unenforceable and should be discharged. The appointment of Receivers and Managers is also unenforceable being based on invalid security documents. There are other prayers in the main suit all arising from the loan transaction and the appointment of Receivers and Managers. The loan and security documentation as well as transactions for the appointment of

Receivers and Managers were all drawn by Mr *Keith* on behalf of the respondents. In order to conclude these documents much more confidential information was imparted to Mr *Keith* by the appellants. Mr *Keith* also acted for the defendants in the main suit to enforce realisation of the loan securities on the ground of non-repayment of the loan. I have no doubt in my mind that the respondents will consciously or unconsciously or even inadvertently use that confidential information acquired from the appellants under the retainer during preparation of the loan agreement and the security documents as well as knowledge of subsequent events against the appellants in the main suit. The result will be that the appellants will not only be confronted with their own confidential information but will suffer great injustice and prejudice during the trial of the main suit. Mr *Keith* admitted in his affidavit that the defendants in the main suit will suffer great injustice if they changed advocates at this late hour when the main suit is pending as part heard. If great injustice is to be suffered by any party, it will be the appellants who have so far engaged several advocates on several occasions in an attempt to get one to represent them in this suit which Mr *Keith* describes as "complex". I am of the view that the appellants will suffer prejudice if the respondents are allowed to continue acting for the defendants in the main suit. I am also satisfied that it cannot be said that the respondents will not take unfair advantage of the confidential information they acquired from the appellants during the formation of the loan transaction to defeat the appellants' case during the hearing of the main suit. There is a dispute as to the validity of the debenture and Mr *Keith* admitted having disclosed what was discussed between him, Mr Laxman and Mr Mohan Galot regarding the excess facilities provided thereunder. This alone is a mischief because the information will now be thrown at the appellants' faces in an attempt to uphold the validity of the Debenture. The extent of the confidential information acquired from the appellants, between 1981–1990 and which is now in the possession of the respondents is not known but it is there. There has been no measures taken to protect disclosure of that information even by the use of the impregnable barrier of a chinese wall to prevent confidential information being used against the appellants at the trial of the main suit.

Mr *Guram* sought to distinguish the *Rukesen*'s case (*supra*) on the facts of this case on the ground that although there was confidential information that information was not known by Mr Clerke. Hence, the refusal of the injunction. He also sought to distinguish *Re A Firm of Solicitor*'s case (*supra*) on the ground that the confidential information was contained in a long letter whose contents appear in the judgment, hence grant of the injunction. In *Supasave Retail v Cowards Chance*'s case (*supra*) injunction was granted because no adequate measures were taken to prevent disclosure of the confidential information. Mr *Guram* submitted further that if there be breach of the duty and obligations of the respondents in respect of any disclosure of confidential information, the appellants' remedies, other than injunctions, lay elsewhere. I do not agree. The appellants are perfectly entitled to take any measures including issuance of an injunction to stop mischief and prejudice occurring at the trial of the main suit.

I have considered authorities which were cited by both counsel and their submissions and have come to the firm conclusion that real prejudice and real mischief are anticipated if the respondents are permitted to act for the defendants in the main suit.

In the result, I would allow this appeal, set aside the ruling and orders of the superior Court. I would grant an order for injunction to restrain Mr *Keith* and any partner in the respondents' firm of advocates from continuing to act for the defendants in the main suit or in any litigation or proceedings arising from the loan transactions of 1981–1982. I would award costs of the appeal to the appellants. As Cockar and Akiwumi JJ agree judgment is hereby entered on the terms I have proposed.

Cockar and Akiwumi JJA concurred in the judgment of Muli JA.

For the appellants:
Mr Kamau

For the respondent:
Mr KHW Keith and *Mr Guram*

Kiriisa v Attorney-General and another
[1990–1994] 1 EA 258 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	21 November 1994
Case Number:	7/94
Before:	Manyindo DCJ, Oder and Tsekooko JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Application for adjournment – Discretion of court be exercised judiciously – Delay in prosecuting the matter – Right to be represented by advocate of one's choice.

Editor's Summary

The appellant claimed an interest in some property over which the second respondent was granted a certificate of repossession by the Minister of Finance, under the Expropriated Properties Act of 1982.

During the hearing, the judge refused to grant an application for adjournment that was made on the grounds that the appellant's advocate was indisposed. The judge later dismissed the matter for want of prosecution when the advocate holding the brief said he was unable to proceed with the matter.

Hence the appeal.

Held – The trial Court has discretion to allow or refuse an application for adjournment. This discretion must be exercised judiciously and an appellate court would not normally interfere with the exercise of the discretion unless it has not been exercised judiciously. *Nitin Madhvani v East African holdings Limited and others* civil appeal number 14 of 1993, Supreme Court (UR) followed.

Discretion is the faculty of deciding or determining in accordance with circumstances and what seems just, fair, right, equitable and reasonable in those circumstances.

It cannot be right for a Court to force an advocate to argue a matter in which he is ill prepared or not prepared at all since that would be a negation of justice to his client.

The appellant sought four previous adjournments for good reasons hence these would not amount to deliberate attempts by the appellant to delay the hearing of the appeal. The appellant would also not deliberately delay the matter when he was the one seeking possession of the property.

Appeal allowed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Nitin Jayant Madhvani v East African Holdings Limited and others civil appeal number 14 of 1993 – **F**

Judgment

Manyindo DCJ: The second respondent was granted a certificate of repossession of certain property in Kampala by the Minister of Finance under the Expropriated Proprietor Act of 1982, (hereinafter called the Act). The appellant, who claimed an interest in the property (in that he had bought it from a third party who had bought it from someone who in turn had bought it from the Departed Asian Property Custodian Board before its former owner, the second respondent was granted a certificate of repossession following the nullification of such sales by the Act), appealed to the High Court against the grant of the certificate of repossession. He involved the second respondent as legal representative of the government.

The case came up for hearing five times but was adjourned at the instance of the parties. It last came up for hearing on 16 December 1993. On that day Professor *Sempebwa*, counsel for the appellant was not in Court. A Mr *Serwanga* of the same firm held a brief for him. Mr *Serwanga* sought an adjournment on the ground that Professor *Sempebwa* who had personal charge of the case had taken ill suddenly. The representative of the Attorney-General reluctantly consented to the application but Mr *Kayondo* strongly opposed it on behalf of the second respondent.

The learned Judge turned down the application. This is what she stated in her ruling:

> "This is an old appeal filed in 1991, challenging the issuance of a certificate of repossession to the second respondent by the Minister of Finance. Since the filing of the appeal, it has come up for hearing a number of times without taking off. This morning another adjournment is being sought on the grounds that Mr *Sempebwa* who has personal conduct of this case is indisposed. There is no medical evidence to show that the advocate is sick. However, even if Mr *Sempebwa* was sick counsel who has appeared in the morning has been appearing in this case and I am of the view that he is possessed with sufficient knowledge of the case to conduct the appeal.
>
> The application for adjournment is refused and the hearing of the appeal will proceed."

Mr *Serwanga* then sought and obtained an adjournment for consultations with his client. When the Court reassembled shortly afterwards, it was the appellant and not Mr *Serwanga* who addressed the Court. He informed the Court that he

had gone to Professor *Sempebwa*'s home that morning and found the Professor "terribly sick". He went on:

> ". . . The main point I want to make here, I personally wish that the Professor handles this case. I beg that we be given days so that may lawyer handles my case. I am the one who is suffering but the second respondent with his lawyer are enjoying the house and they have nothing to loss. The delay in this case is because we have been sent by this Court to settle the matter out of Court. We had to sit with Attorney-General, Custodian Board and other relevant authorities and Mr *Serwanga* does not know what has been going on. I beg for a chance for the Professor to come and we proceed."

The counsel for the respondents opposed the appellant's application for adjournment. The learned Judge agreed with them. She rejected the application in the following terms:

> ". . . The applicant who is legally represented in these proceedings has applied for an adjournment on the grounds which had already been raised by his counsel – namely the absence of Professor *Sempebwa*. The earlier application was rejected for the reason I gave and I have not been persuaded by the subsequent application to change that position. The appellant did not appear to me as an aggrieved party and therefore may have nothing to do with this case drags on. It will be noted from the record of proceedings that when this appeal came before judge and the said Professor was ready to proceed, the appellant stood up and informed it that he had disagreed with his lawyer and wanted to engage another one. His request was granted.
>
> After it was granted the same law firm wrote to the Court that he has re-instructed them to conduct the appeal. The position of the appellant is uncertain and there is a deliberate attempt to delay the disposal of this appeal. The application for an adjournment is once again refused."

The appellant then informed the Court that he was "handicapped", whereupon the learned Judge made this final order:

> "Since the appellant has withdrawn his instructions from his counsel and can not proceed with his appeal, it will be dismissed for want of prosecution with costs."

There was a misdirection there. The appellant had not withdrawn instructions from his counsel. On the contrary, he had reinstructed him to continue to act for him. The appellant appealed to this Court against the order dismissing his appeal for want of prosecution, on five grounds namely:

> "1. The learned trial Judge erred in law and in dismissing the suit for want of prosecution.
>
> 2. The learned trial Judge erred in law and in fact in deciding that the appellant did not appear to be an aggrieved party.
>
> 3. The learned trial Judge erred in law and in fact in holding that counsel who appeared to apply for an adjournment was unable and capable one to represent the appellant.
>
> 4. The learned trial Judge erred in law and in fact in holding that counsel who appeared to apply for an adjournment was unable and capable one to represent the appellant.
>
> 5. The learned trial Judge erred in law when she decided to deny the appellant his constitutional right of being represented by counsel of his own choice."

At the hearing of this appeal ground number four was abandoned by counsel for the appellant as it was same as number three. From the two rulings or orders of the Court quoted above it can be seen that it rejected the appellant's application for adjournment on four grounds. These were:

> (*a*) that Mr *Serwanga* had not established the fact that Professor *Sempebwa* was sick on the material day,

(*b*) that the matter had been adjourned many times before,

(*c*) that Mr *Serwanga* was capable of arguing the appeal but chose not to do so,

(*d*) that the appellant did not appear to be aggrieved by the Minister's decision and would lose nothing if the case dragged on, hence the delaying tactics.

At the hearing of this appeal Professor *Sempebwa* submitted that the dismissal of the case was improper as it was based on wrong considerations. Regarding his illness, he submitted that the trial Judge should have accepted the statement of Mr *Serwanga* from the bar that he (*Sempebwa*) was down with gout. As for the previous adjournments counsel contended that they were justified; one was to enable the appellant to sort out differences between himself and his counsel and the others were taken with a view to settling the matter out of court.

With regard to Mr *Serwanga*'s failure to argue the appeal, Professor *Sempebwa* contended that this was a complicated case which necessitated extensive research and preparation which he had done.

Mr *Serwanga* had never perused the case file and was clearly in no position to argue the appeal effectively. Finally, Professor *Sempebwa* submitted that the appellant would not want to delay the case since he wanted possession of the property form the second respondent.

It is in the discretion of a trial Court to allow or refuse an application for adjournment. It is settled law that the discretion must be exercised judiciously. An appellate court would normally not interfere with the exercise of the discretion unless it has not been exercised judiciously; see *Nitin Jayant Madhvani v East African Holdings Limited and others* civil appeal number 14 of 1993, Supreme Court (UR).

In my opinion discretion simply means the faculty of deciding or determining in accordance with circumstances and what seems just, fair, right, equitable and reasonable in those circumstances. In the instant case it is clear from the appellant's memorandum of appeal to the High Court that he wished to argue there that the Act which deprived him of his property without compensation was unconstitutional. For that purpose he engaged Professor *Sempebwa*, a constitutional lawyer. The latter prepared his arguments but could not come to court to argue them on the material day. On that and Mr *Serwanga* who represented him in Court submitted thus:

> "The matter is being handled personally by Professor *Sempebwa* who is sick. He has an attack of gout and cannot move. According to his note he was prepared to proceed with this matter."

I think that in absence of evidence to the contrary the trial Judge should have accepted that statement as true. If she doubted it she should have directed counsel to produce medical evidence but did not.

According to the record of proceedings, Mr *Serwanga* had appeared in Court in connection with the case on two previous occasions but only for the purpose of seeking adjournments as Professor *Sempebwa* was not available. In my view the trial was not justified in these circumstances to hold as she did, that:

> "Even if Mr *Sempebwa* is sick counsel who has appeared in the morning has been appearing in this case and I am of the view that he is possessed with sufficient knowledge of the case to conduct the appeal."

The submission of Mr Kayaodo before us told it all. He said:

> "*Serwanga* could have argued the appeal but refused to do so. The memo of appeal had 9 grounds. *Serwanga* was not prepared but should have attempted to argue it. That was the order of the Court and *Serwanga* should have complied with it."

Surely it cannot be right for a Court to force an advocate to argue a matter in which he is ill prepared or not prepared at all. In my view that would be a negation of justice to his client.

As for the several adjournments, it is necessary to put the matter in its proper perspective. The matter came up for hearing for the first time on 11 March 1992. On that day the appeal was not to be heard; only an interlocutory application for a temporary injunction by the appellant against the second respondent was to be heard by Ongom J. The application was not heard as counsel for the second respondent gave an undertaking that his client would not interfere with the appellant's possession of the disputed property. The appellant was in possession of the property then.

The appeal itself was adjourned to 25 March 1992, for hearing. On that day Professor *Sempebwa* went to court ready to proceed with the case. However, the appellant informed court that there had arisen a misunderstanding between himself and Professor *Sempebwa* and that he wished to instruct another firm of advocates to handle his case. He asked for adjournment for that purpose. Professor *Sempebwa* then withdrew from the case.

The learned Judge appreciated the appellant's position. She observed that the appellant had a constitutional right to be represented by a lawyer of his choice. Although the appellant had asked for one month's adjournment, the judge adjourned the matter *sine die*.

It came up again on 24 September 1992. This time Ouma J presided. By then the appellant had settled his differences with Professor *Sempebwa* and re-engaged him. But Professor *Sempebwa* was away in England for health reasons. Mr *Serwanga* held brief for him. By consent of the parties the appeal was adjourned to 3 November 1992, for hearing, before another judge. No reason was given why it had to go before another judge.

It came up before Kikonyogo J on that day. Counsel for the first respondent successfully applied for an adjournment with a view to reaching a settlement out of court. The matter was adjourned to 3 December 1992. When it came up on that day Professor *Sempebwa* sought a two-week's adjournment to enable the parties to conclude the settlement. The other counsel reluctantly agreed to the adjournment which the Court then granted. The matter was then adjourned, for the fourth time, to 22 December 1992.

Professor *Sempebwa* was unable to attend court on that day as he was a member of the Constitutional Commission which was meeting the President, to hand him the draft Constitution.

Mr Omunyakol who held brief for Professor *Sempebwa* sought an adjournment. Counsel for the first respondent did not oppose the application as he had instructions to "initiate concrete negotiations (with the appellant) in respect of the amounts that can be compensated to the appellant." Mr *Kayondo*, counsel for the second respondent again reluctantly agreed to the adjournment. He stated, *inter alia*:

> "I pray that in the spirit of reconciliation and understanding the Attorney-General should write to the appellant before the next time. He sold the building to the appellant. He should write to the appellant and ask him how much. After that we shall write our proposals."

The learned Judge then entered this note:

> "By consent this case is adjourned to 25 March 1993, to enable to parties to continue with the negotiations a for settlement. If by that date no settlement has been reached then the Court will proceed with the hearing of the appeal."

For some unrecorded reason the case did not come up for hearing on that day. The assistant registrar of the High Court twice (on 12 May 1993 and 27 August 1993) fixed it for hearing on 30 September 1993, but on 29 September 1993, she fixed it for hearing on 16 December 1993, by consent of the appellant and second respondent. It was on that day that the appeal was dismissed in the circumstances stated above.

It seems clear to me that the appellant sought the four adjournments for good reasons which were on the whole appreciated by the Court and the other counsel in the case. For this part Mr *Kayondo* blamed the delays of the first respondent who failed to wrap up a settlement out of court in good time. With respect to the learned Judge, I do not see in any of those adjournments a deliberate attempt by the appellant to delay the hearing of the appeal.

I will now consider the last point that the appellant did no appear to be aggrieved by the Minister's decision to grant to the second respondent the certificate of repossession and so would lose nothing if the case dragged on. The certificate of repossession was signed by the Minister of Finance on 23 June 1991. The appellant lodged his statutory appeal to the High Court on 22 July 1991, seeking for a declaration that the Minister's decision was unconstitutional and that the appellant was the lawful proprietor of the disputed property. His case was that he had never been a departed Asian so that the disputed property of which he was the registered proprietor, never divested from him. Under the Act to qualify as an aggrieved party one must have an interest *in rem* – in the property.

Clearly the appellant was an aggrieved party within the meaning of the Act. It is a fact that by the time the appeal was dismissed the second respondent was in possession of the property. So I do not see why the appellant would want to delay the matter when he was seeking possession of the property.

I am of the view that none of the four reasons given by the judge justified the dismissal of the appeal for want of prosecution. I would allow this appeal, set aside the ruling and order of Byamugisha J and remit the appeal to the High Court for hearing on its merits by another judge. I could give the appellant his costs of the appeal.

As Oder JSC and Tsekooko JSC also agree, it is so ordered.

Oder and Tsekooko JSC concurred in the judgment of Manyindo DCJ.

For the appellant
Mr Serwanga and *Prof Sempebwa*

For the second respondent:
Mr Kayondo

Kisira and another v Futi and another
[1990–1994] 1 EA 264 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment: 8 May 1994

Case Number: 138/86

Before: Masime, Gicheru and Cockar JJA

Sourced by: LawAfrica

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[1] Quantum of damages – Injuries of maximum severity – Paraplegia – Whether judge correct in awarding itemised heads of damages rather than global award – Principles upon which appellate court can interfere – Relevance of English authorities – Relevance of rehabilitation effort – Whether possible improvement in condition of respondent can reduce award for loss of amenities of life – Relevance of "lost year's" principle.

Editor's Summary

On 28 August 1977, the first respondent, aged 19, suffered severe injuries as a result of a road accident which led to paralysis of the lower limbs, neurological damage and impairment of sight and hearing. She had also lost the possibility of childbearing. Negligence was not disputed and the trial proceeded on the issue of quantum for which the trial Judge gave an itemised award totalling KShs 2.75 million. On appeal it was submitted that the items for pain, suffering, loss of expectation of life and the cost of rehabilitation overseas was erroneous. It was also contended that the judge should have made a global, rather than an itemised, award and that the total award was so manifestly excessive as to require the Court of Appeal to interfere.

Held – The judge was correct in itemising the award under the various headings.

The judge had not erred in paying regard to the English authorities as no Kenyan authorities had been cited to him.

The rehabilitation treatment over five years had achieved a small improvement in the first respondent's condition but it was not such as to require any interference with the award, the rehabilitation being mainly directed to maintaining her existing condition.

Following *Butt v Khan* [1977] 1 KAR 1, the award was not so inordinately high or low as to represent an entirely erroneous estimate. (Observations by Masime JA on relevance of lost years principle).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Butt v Khan [1977] 1 KAR 1 – **F**

Shabani v City Council of Nairobi and another civil appeal number 52 of 1984

Matiga v Musila civil appeal numbers 66 of 1982 and 88 of 1983

United Kingdom

House Croft v Burnett [1986] All ER 332

Judgment

Masime JA: Monique Manova Futi (the first respondent) was a young attractive girl aged 19 years when she sustained grave injuries in a road traffic accident on 28 August 1977. The medical reports put in evidence at the trial show that these were injuries of maximum severity, are permanent, have and will continue to have a most terrible effect on her and her relations for the rest of her life. She suffered severe neurological damage with resulting constant headaches, impaired vision and hearing, she has to live the rest of her life confined to a wheelchair and can only move if at all for 20 metres on a tripod stick; she has no chances of a sex life marriage or childbearing; she is conscious enough to appreciate her predicament and the tremendous burden that she is to her sister, brother in law and family and as a result has suffered behavioral changes so that she is bitter, bad tempered and difficult to deal with and assist though it is imperative that assistance she must have as she has no independence and cannot even go to the toilet without help.

For these extremely serious injuries loss of expectation of life and an appreciation of her academic potential and career expectation, Porter J awarded the first respondent a total sum of KShs 2 750 000-00 on 30 July 1985. This sum comprises awards under various heads as follows:

1. (*a*) Pain, suffering and loss of amenities including prospects of marriage; and

   (*b*) Loss of expectation of life KShs 700 000-00.

2. Cost of rehabilitation overseas KShs 200 000-00.

3. Loss of future earnings taking account of her need for residential care after treatment using a multiplier of 12 KShs 1 850 000-00.

   Total KShs 2 750 000 00

A total of eleven grounds of appeal have been filed against the learned Judge's decision but during the appeal they were argued under six topics:

1. That the award for pain, suffering, and loss of amenities was erroneous (grounds one–four),
2. That the award for lost years or future earnings (grounds five and six) was erroneous,
3. That there should have been a global rather than an itemised award (ground seven),
4. That there was error in the calculation of the cost of rehabilitation overseas (ground eight),
5. That the total damages: awarded was so manifestly excessive as to amount to an error or principle (grounds nine and ten); and,
6. That it was erroneous to award costs on a higher scales (ground eleven).

I turn to consider the appellant's complaints with regard to each of these headings.

Learned counsel first took issue with the award of KShs 700 000-00 for pain, suffering, and loss of amenities and loss of expectation of life. He complained that having regard to awards to the first respondent in respect of special damages and cost of treatment abroad which would probably lead to improvement in her condition and way of life, the award under this head should have been proportionately reduced. Learned counsel also complained the trial Judge relied entirely on English cases and did not refer to any Kenyan authority.

After reviewing the medical evidence counsel submitted that it appeared the first respondent still had prospects of improvement particularly at the end of treatment and rehabilitation for the cost of which provision was made. He submitted that the learned trial Judge was not alive to this probability and that had he been so alive he would have reduced the award under this head to say KShs 500 000-00. For these submissions learned counsel cited several local cases.

It is now settled that an appellate Court may only interfere with an award when:

> "it is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the judge proceeded on wrong principles, or that he misapprehended the evidence in some material respect, and so arrived at a figure which was either inordinately high or low."

Per Law JA in *Butt v Khan* CA number 40 of 1977 and followed frequently by this Court in subsequent cases see eg *Shabani v City Council of Nairobi and another* CA 52 of 1984. *Matiga v Musila* CA numbers 66 of 1982 and 88 of 1983. Can it be said that the award in this case calls for disturbance on the basis of principle? Learned counsel submitted that as the learned Judge had decided to award general damages under the lost years principle, he should have made a global award encompassing pain, suffering and loss of earning capacity and not made separate awards as he did here to take account of accelerated lump sum payment with a likely return from the investment thereof. I have carefully and anxiously considered learned counsel's submissions in light of the authorities cited and the injuries to the first respondent but I regret that I am unable to accede to these submissions. I do not detect any error of principle or that the awards were so inordinately high as to attract interference by this Court.

On the lost years principle counsel argued that the learned trial Judge did not take into account the principles enunciated in the case of *Matiga v Musila* (*supra*) that is, award a sum which if invested would yield a return approximate to the expected loss of earnings or earning capacity and then deduct therefrom one third for the cost of the personal upkeep of the first respondent and 45% for the benefit of accelerated receipt of the lump sum, On this basis it was submitted that no more than a figure of KShs 740,000-00 should have been awarded to the first respondent. On this aspect of the matter I have examined what the learned Judge did he was alive to the principle that he should not award damages which would harm Kenya as a whole; he was nevertheless constrained to try to compensate the expected expenses of rehabilitation and maintenance of the first respondent. The learned Judge has been criticised for plucking a figure out of the air and using it to arrive at the award he made. With respect, Mr Sampson was not being fair to the learned Judge: a figure of KShs 16 000-00 per month was suggested at the trial and an expected basic salary of KShs 17 500 per month was also put forward; the learned Judge rejected both these figures as to use them would lead to awards of KShs 2.3 million and KShs 2.5 million both of which he rejected as excessive. In the result he settled on about KShs 12 847-00 per month a figure which worked out to an award of KShs 1.85 million. I am not persuaded that in doing so the learned Judge erred.

Having considered the submissions of counsel on the lost years I am of the view, like the learned Judge was, that in the circumstances of this case the principle of the' lost years was irrelevant: See *House Croft v Burnett* [1986] All ER 332 at 345 where it was stated:

> "The lost years, because of their remoteness in time, are highly speculative and I think are better dealt with by some small adjustment in the multiplier, such as a factor

> of one, or even a half, as applied to the full multiplicand, rather than trying to speculate what proportions of notional earnings 30 years hence would not form part of plaintiff's then living expenses."

From what I have said above it is clear that the learned Judge took into account local circumstances and did not, though only English cases were cited to him, overlook the fact that this was a Kenyan case.

Learned counsel also submitted that the award should be considered as at the date of judgment without regard to the incidence of inflation. For myself I have considered the injuries of maximum severity suffered by the first respondent and I do not find that the award calls for interference from this Court on principle.

Finally learned counsel submitted that there were no special grounds for ordering costs for two counsel and none were stated. In support of this ground of appeal, counsel submitted that as liability was admitted and the contest herein was limited to assessment of damages there was no justification for the order. I have considered the submission and noted that liability was admitted just before trial. However, the first respondent sustained extremely severe injuries and complex medical reports were in issue. In the circumstances, for my part I would not disturb the order on costs.

In the result I would for my part find no merit in this appeal and I would order it to be dismissed with costs. As Gicheru and Cockar JJA, agree, the order is that the appeal is dismissed with costs.

Cockar JA: I have had the advantage of perusing the draft judgment of Masime JA with which I agree. The scope of the injuries suffered by the first respondent and the severe limitations that the effect of these injuries have placed on her future life and activities which have been accurately described by the learned trial Judge have been summarised by Masime JA.

Of the 11 grounds of appeal Mr Sampson grouped the first four grounds of appeal together, grounds five and six together, and grounds nine and ten together. Grounds seven, eight, eleven were dealt with separately.

Mr Sampson first stressed that the trial Judge had merely considered the interests of the first respondent only in his approach to assessment of general damages in respect of pain, suffering, loss of amenities and loss of normal expectation of life. The learned Judge had relied on English authorities only, and had used the award given in these cases as a guide. As the standard as well as cost of living in England held no resemblance to that in Kenya awards based on English authorities could lead to unjustifiably high awards. I must point out here that no local authorities were cited to the learned trial Judge. In fact, Mr *Muli* who appeared for the appellants at the trial did not cite any authority at all. But that shortcoming on the part of the advocate apart, the trial Judge, I find, had in his mind the principle which Mr Sampson is now urging that the figure in respect of an award for damages for pain, suffering, loss of amenities and loss of normal expectation of life should be based on figures obtained from similar local cases and should also take into account the circumstances of the injured person. Having considered in details the circumstances of the first respondent which were likely to affect the award, and which Mr Sampson complained was only a one-sided view, this is what the trial Judge had to say (page 112 of record, page 6 of typed judgment).

> "One does not wish to make awards of damages which would harm Kenya as a whole but nevertheless some attempt must be made to compensate what are to be actual expenses in the future known to very fair degree of accuracy."

Having made that observation the learned trial Judge then proceeded to consider the English authorities that had been cited. He found that in England in early 1980's the awards were very variable and ranging between £ 20 000-00 to £ 55 000-00. Keeping in mind the rate of exchange between the English and the Kenya currency an award of KShs 700 000-00 under this head, to my mind, is not such as may be termed manifestly or inordinately high.

The underlying theme of what is thereafter left of the first four grounds of appeal can be divided into two limbs as follows:

1. The trial judge failed to have regard to the conflicting medical reports and the fact that the first respondent was improving.
2. The trial judge failed to take into account that the other amounts awarded as special damages by him would result in an improvement in the first respondent's condition and way of life and should have reduced the general damages by such other amounts which constituted special damages.

On the question of conflict of medical evidence the attention of neither the learned trial Judge nor this Court was drawn to any such conflict which the appellants had in mind. As regards improvement in her condition the first respondent, prior to her accident was, as described by the trial Judge, a 19 years old, slim and attractive girl, who was popular with boys, was ambitious and career conscious, and who had completed the Belgian School at Kinshasa where she had been studying secretarial services and languages and was due to go to University in Brussels to read languages. Ten days after the accident Prof Ruberti in his examination report dated 10 November 1977 (exhibition 2a), *inter alia*, stated that she was deeply comatose as a result generalised closed head injury with brain stem involvement adding that although she started improving she was still unconscious and in a negative state and it would be after one year, provided she ever recovered consciousness, that it would be possible to assess severity of the brain damage. Over five years later, during which time the first respondent had undergone overseas treatment and rehabilitation at Lisbon, Kinshasa and Brussels, Prof Ruberti examined her on 1 December 1983 (Report dated 2 December 1983 exhibition 2c) and described her condition during his evidence in Court on 5 December 1983 as follows:

> "When I first saw her she was a slim very attractive girl of 18 or 19 when I last saw her, last week for a final assessment, she had become very much overweight and shapeless. The sort of shape one associates with paraplegics and mental handicap.
>
> This is due to the neurasthenic situation that she wants to eat all the time as there is nothing else to do (post-traumatic Bulemia). Secondly, as she is confined to a wheelchair she has no exercise. This is a vicious circle. This has a most damaging effect on the body and organs and affects expectation of life: and causes fatty deposits in the arteries in general. Difficult to say: taking 70 years as normal expectation of Iife is at least 20 to 25 years less. This exhibit V is a photograph: it is like the girl I saw."

I saw her in December. Generally she is as severely impaired as she was physically and mentally. She has clinically brain stem damage. There is cross paralysis. It is certainly permanent and there is brain atrophy. I assess her invalidity as permanent and 100% she can use a triangular support to shuffle about 10 paces and then loses strength she has a permanent wheelchair. She will spend most of her life in the wheelchair or in bed or carried.

I would agree that she requires a trained nurse, she cannot look after herself at all.

The paralysis is of left arm and leg and loss of half of the visual field on the left side when she tried to pour a cup of coffee I understand she was unable to hold it and I have seen the burns which resulted on the lower part of her body.

As a result of efforts of rehabilitation, she will not improve but she must continue attending to maintain her present state.

In addition to the loss of normal expectation of life that is disclosed in the above quoted passage from Prof Ruberti's evidence, there are two other facts in relation to the improvement aspect which stand out clearly. One is that, continued rehabilitation effort is necessary because although it will not improve the first respondent's condition the treatment was necessary in order to maintain her present state. That more or less settles the issue that the condition of the first respondent's not going to improve any more. The second fact that is highlighted is the miserable nature and extent of improvement that had been achieved during a period of over 5 years of treatment and rehabilitation. To my mind the improvement in condition of the first respondent that has been shown to have been achieved is not such as to persuade me not to interfere with the award of the trial Judge who in addition had the further advantage of having observed the first respondent when she gave evidence, and certainly was in a much better position to judge her present condition. It has to be borne in mind that included in the particular award is the loss of normal expectation of life also which, Prof Ruberti has confirmed, is bound to result.

As regards the second limb, complaining that a special damages that had been awarded and has resulted in improvement of the condition of the first respondent, ought to have been subtracted from the award under the head of pain, suffering and loss of amenities, I do not find any merit in that submission. Mr *Deverell* for the respondents pointed out the invoices bill and receipts which had formed the basis for the award of special damages. These expenses Mr *Deverell* submitted had been incurred in the first respondent's treatment and to keep her alive. He very rightly pointed out that the first respondent could not be left out in the bush for nature alone to work out the improvement in her condition. I agree with Mr *Deverell* that this submission on behalf of the appellants ought to be discounted altogether. Having considered the first four grounds of appeal from all the relevant aspects, I am satisfied that the award of KShs 700 000-00 for pain, suffering and loss of amenities and loss of normal expectation of life in this case is quite proper.

Grounds five and six were argued together and the submission also covered ground seven of the appeal which had complained as to why a global award had not been made. Masime JA has dealt with these grounds together with ground 11 which has disputed award of costs on higher scale. I have nothing useful to add to his very thoughtful conclusions.

Ground eight of the appeal states that the trial Judge had erred in his calculations concerning the award of KShs 200 000-00 in respect of cost of rehabilitation. Referring to what had been urged on behalf of the first respondent in the lower court, Mr Sampson said that Prof Ruberti had said that costs of rehabilitation were very high and that there was no evidence that the first respondent had to go to centres in France or Belgium for rehabilitation. In his view this expense had to be struck out.

I have already referred to the passage in Prof Ruberti's evidence where he said that rehabilitation would not improve first respondent's condition but she

had to continue this treatment in order to maintain her present state. He had added that rehabilitation costs in Brussels were very high. The reason why it had become necessary to arrange for the first respondent to live in a rehabilitation centre was explained both by the sister (PW2) and the brother-in-law (PW3) of the first respondent who had looked after her and had met all the expenses that had been incurred in her treatment. After having given a detailed account of the treatment given to the first respondent and how she had been looked after since her accident and since her departure from Nairobi the sister, Mabova Mabila (PW2), ended by saying that she had 5 children of here own, she was the wife of an ambassador; she could not continue herself, even with a nurse, looking after the first respondent all the time and that they were looking for an institution where she could stay. She then mentioned about Bruckman Hospital, a specialised centre in Brussels but she did not know by then how much it would cost. Her husband, Mr Kabale Kiseke Seka (PW3), the Zairean Ambassador, mentioned problems of similar nature that they were encountering in looking after the first respondent. He however, threw more light on rehabilitation costs. He said that when he was in Portugal the first respondent had stayed for about 8 months in a centre which had costs about $ 450 dollars a month. The costs at a centre in Brussels had come to $1000 for 2 weeks and now, 6 years later, would probably be $ 1000 a month. There obviously is an error in the above figures in respect of costs in Brussels because costs of rehabilitation in, Brussels were expected to be much higher. Keeping in mind the rate of exchange and the cost of air flights, an award of KShs 200 000-00 by way of rehabilitation costs is not at all excessive. The trial Judge had these figures before him which in my view gave him adequate material to assess a fair and just award, Mr *Deverell* complained, not unjustifiably, that the trial Judge had given rehabilitation costs for one stay only whereas according to Prof Ruberti rehabilitation treatment had to be undertaken frequently But I do not intend to interfere with the award of KShs 200 000-00 by way of rehabilitation cost. As Masime JA, has found, and I concur with him, that there was no error in the award of KShs 1.85 million for future earnings I agree with Masime JA that the appeal be dismissed. I also agree with the order on costs as proposed by Masime JA.

Gicheru JA concurred in the judgment of Masime and Cockar JJA.

For the appellants:
Mr Muli

For the respondents:
Mr Deverell

Kivuitu v Kivuitu
[1990–1994] 1 EA 270 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	21 March 1991
Case Number:	26/85
Before:	Gachuhi, Masime JJA and Omolo AJA
Sourced by:	LawAfrica

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[1] Husband and wife – Financial provision – Matrimonial home – Registration in joint names – Extent of wife's financial contribution – Effect of wife's non-monetary contribution – Whether wife

entitled to equal share by indirect contribution to family finances – Section 17 – Married Women's Property Act of 1882 – Section 3(1) – Judicature Act (Chapter 8).

Editor's Summary

In late 1970, the husband, an advocate and a member of Parliament, made an official visit to New York, leaving the appellant wife to look for a suitable family home, which she duly found in an area in Nairobi specifically approved by the husband. It was purchased for KShs 170 000. The husband caused the necessary deposit to be paid and the wife completed the sale agreement. Despite the husband's desire to have the house registered in his sole name, the wife's view prevailing and it was accordingly registered in their joint names. The husband paid the mortgage instalments but the wife obtained intermittent employment and through this and various business ventures which the wife ran on behalf of the family she contributed to the family income and assets.

On the institution of divorce proceedings in 1981, the wife took out an originating summons claiming, *inter alia*, that matrimonial home should be sold and the proceeds shared equally. The judge found that the parties' respective contributions were such as to entitle the wife to one quarter and the husband to a three quarter's share. The wife appealed and the husband cross-appealed. On the cross-appeal it was contended that the wife had made no financial contributions, that she held her registered share as trustee for him, and that the register should be rectified so as to designate him as the sole proprietor.

Held – Although the wife had made measurable financial contributions to the family income and to the property, that was too narrow as a basis on which to determine the parties' respective shares in the matrimonial home.

The wife had made a substantial indirect contribution to the family income and assets by using her income to pay household expenses, to prepare food and clothing for the children, organising their schooling, and generally enhancing the welfare of the family.

The judge had therefore erred in apportioning the parties' shares as to one quarter and three quarters respectively, and they were entitled to the property in equal shares.

Instead of the sale ordered by the High Court, (since the husband was still living there with the children of both his marriages) there would be substituted an order that the property would be independently valued, and that the husband would pay to the wife a sum equal to half the valuation.

Per Omolo AJA – An urban house-wife and a wife left in the rural home makes a contribution to the family welfare and assets, so that where a husband acquired property from his salary or business and registers it in the joint names of himself and his wife without specifying any proportions, the Courts must take it that such property, being a family asset, is acquired in equal shares.

Per Gachuhi JA – The time when an African woman was presumed to own nothing at all and all that she owned belonged to her husband and was regarded as a chattel of her husband has long gone. Women are now honourably employed and occupy high positions equal to men in the government and in the private sector. The situation has changed and so have customs.

Per Masime JA – Today, as a result of increased opportunity for education, employment and entrepreneurship the money sector is no longer the man's domain.

Appeal dismissed. Cross-appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Karanja v Karanja 1976 KLR 307

Patel v Commissioner of Lands [1980] KLR 38

United Kingdom

Bedson v Bedson [1965] QBD 666

Chapman v Chapman [1969] All ER 476

Falconer v Falconer [1969 1 All ER 449

Judgment

Omolo AJA: We have before us an appeal and a cross-appeal filed by Mary Ann Matanu Kivuitu and Samuel Mutua Kivuitu respectively against the Judgment of the High Court at Nairobi.

(Aganyanya J) by which it was ordered that the parties, who were once a husband and wife, owned property known as land reference number 4894/11. Garden Estate, Nairobi, in the proportion of one as to the wife and four as to the husband. With the consent of the parties, we consolidated appeals. Though the parties have been divorced for a long time, I shall, for ease of reference, simply refer to them as husband and wife. On the 10 September 1981, the wife took out an originating summons under section 17 of the Married Women's Property Act of 1882, the Judicature Act (Chapter 8), the Matrimonial Causes Act (Chapter 150) sections 27 and 28, and all other enabling provisions of the law and in her summons she played for orders:

> "1. That the property (ie land reference number 4894/11, Garden Estate, Nairobi] having been the matrimonial home of the plaintiff and defendant herein and consequent upon the decree of divorce granted in High Court divorce cause number 34 of 1972 between the parties herein, the Court be pleased to order that the property known as land reference number 4894/11 Garden Estate, Nairobi, be sold and the proceeds be shared in equal shares to the plaintiff and the defendant.
>
> 2. That the plaintiff herein be given the first option in the said sale of land reference number 4894/11, Garden Estate, Nairobi.
>
> 3. That the defendant be ordered to execute all necessary transfers to the plaintiffs or other purchaser's name and that in default the Registrar of the High Court of Kenya or any other such officer be authorised to execute the same instead of the defendant.
>
> 4. That cost be paid by the defendant."

Those prayers were strenuously opposed by the husband and the matter went for a full trial in the High Court which after the trial made the Order 1 referred to earlier. The wife was dissatisfied with that order and she appealed, listing four grounds namely:

> "1. The learned Judge erred in fact in finding that the appellant contributed nothing towards the purchase price of the disputed property.

2. The trial judge erred in fact in finding that the appellant and the respondent jointly owned the disputed property in the proportions of one to four and not in equal shares.

3. That the trial judge erred in law in failing to find that the appellant's title as joint tenant to the disputed property was and is absolute and indefeasible.

4. That the trial judge erred in fact and in law in failing to find that the appellant and the respondent held the land in equal undivided shares."

The husband was also dissatisfied with the order made by the judge and he in turn cross-appealed and listed four grounds, namely:

"1. The learned Judge having rightly found as a fact that:

(*a*) The deposit for the purchase was paid by the appellant/defendant and the balance was also paid by monthly instalments deducted from the defendant/appellant's salary;

(*b*) Though the initial agreement was made by the plaintiff/respondent, the same was made by her on the instructions of the defendant/appellant;

(*c*) That there was no sufficient evidence of the plaintiff/respondent's financial contribution either directly or otherwise towards the purchase of the disputed property;

(*d*) that there was no contribution by the plaintiff/respondent during the short period of employment which could have relieved the appellant from expenditure he otherwise would have had to bear, erred in law and fact in holding that the plaintiff/respondent and defendant/appellant jointly owned the disputed property in proportions of one to four respectively. On the contrary as a necessary sequel the learned Judge should have held that the plaintiff/respondent was holding ½ share in the said property as a trustee of the defendant/appellant and the Register in respect of the said property be rectified to read defendant/appellant as the sole proprietor.

2. The learned Judge erred in ordering accounts of the rental income from the said property to be taken and further erred in ordering the payment of the one forth (sic) of the same to the plaintiff/respondent despite the fact that the rental income derived from the extension (*sic*) and renovation done by the appellant exclusively at his own expenses (*sic*).

3. Alternatively the learned Judge had no jurisdiction under section 17 of Married Women's Property Act to order an inquiry or accounts of the rental income from the said property which was non-existent at the time of making such order.

4. The learned Judge erred in awarding remedy which was not prayed nor canvassed by the respondent at any stage of the proceedings."

I have found it necessary to set out all the grounds contained in the appeal and the cross-appeal they starkly bring out the conflicting claims of the parties over the disputed and it is those claims which the High Court was called upon to resolve and did attempt to resolve. It is the same claims we are now called upon to resolve. There was no dispute on the recorded evidence that the disputed property was registered in names of the husband and the wife and the registration did not set out the shares party. There was equally no dispute on the recorded evidence that the husband bought the property intending that it was to be their matrimonial home. In this respect, better than to quote from the evidence of the husband:

"Advocate: Previously married to plaintiff in 1966. During 1969 I was a Member of Parliament was staying with plaintiff as husband and wife in 1970 in September,1970 I decided to buy a house. Entered into an agreement with Donald Norice MacDonald land reference number 8707/7 Thika Nairobi road, Purchase price KShs 160 000 paid KShs 20 000 to MacDonald. Agreement dated 11 September, 1970 (Def Sch 3).

> I was then living in Woodley City Council Flats. I was appointed as an MP to attend the assembly of United Nations September 1970. This was to last approximately 3 months. I tried to look for a suitable house before I left. I could not find any. MacDonald's house was not bad but its situation is risky. I was not happy … about its security being near main road Thika - Nairobi. When I was leaving, I told the plaintiff to look for a house suitably situated and if she found one, she could negotiate on my behalf and if need be enter into an agreement with the seller. I told her MacDonald was a reasonable man and could possibly refund the deposit made. I particularly mentioned Garden Estate since a neighbour in Woodley Estate had bought a house there."

It is clear beyond any doubt from this passage that the husband who is an advocate and who was then a member of Parliament was then married to the wife and he was in search of suitable premises in which they could set-up a home for the family. He had got such premises from one MacDonald or McDonald but he was not happy with its security as a family residence and hence the need to look for another one, particularly at Garden Estate where a previous neighbour at Woodley Estate had bought a home. These are the circumstances in which the disputed premises came to be acquired and like the learned trial Judge I have no doubt that the property was acquired as the matrimonial home of the parties.

The property was purchased for KShs 170 000. A deposit of KShs 17 000 was required. The husband was then in New York, attending the sessions of the United Nations General Assembly. It was accordingly the wife who looked for the property and on the 22 November 1970 entered into a Memorandum of Agreement of sale/purchase and see exhibit 1. In her evidence before the judge, the wife appeared to contend that she was buying the property on her own but that contention is not tenable on the evidence. If that had been so, there would have been no need for her to be in constant communication with the husband as is shown by the various letters she wrote to him over the subject and which letters were produced before the judge.

The husband in turn contended that the wife was simply acting as his agent and that is clear from the passage I have already quoted. This contention of the husband was based on the theory that the wife had no source of income of her own, and therefore she could not have bought the house either on her own or jointly with him. As regards the deposit of KShs 17 000, there was clear evidence that the money came from a business called Kona or Corner Wholesalers. That business was a partnership owned by the husband and one Mulu Mutisya. The husband contended that he instructed Mulu Mutisya to release to the wife the KShs 17 000 and that this was done. He later paid back the money The wife's contention was that she borrowed the money from the business and later refunded it with money obtained from her own business or businesses. The learned Judge found for the husband on this point holding that she "was not able to support her contention in any material sense." Mrs *Njoka* for the wife attached this finding, arguing that by the phrase "in any material sense" the judge meant the wife had failed to adduce documentary evidence in support of her claim that she had refunded the KShs 17 000 to Kona wholesalers. I agree with Mrs *Njoka* that in these circumstances, it is difficult to expect parties to keep a record of the transactions involved in the acquisition of a family home, but for my part I really do not wish to decide the matter simply on the issue of whether or not the wife had in fact made a financial contribution to the acquisition of the property. That, in my view, is too narrow a compass within which

to confine these serious issues. The question must be the nature of the contribution that a wife or husband has to make before she or he can be held to have acquired a share in the matrimonial home. Must such contribution simply be of financial nature, direct or indirect authorities to which the spouses we were referred dealt with situations in which one or the other of the have made a financial contribution, direct or indirect, to the acquisition of the family home. *Chapman v Chapman* [1969] All ER 476 involved a situation in which the husband and wife put all their financial resources into the purchase of the house without reserving separate interests, and as a joint venture and accordingly, they were held to have acquired equal interests in the home.

In *Falconer v Falconer* [1969] 1 All ER 449 the money to purchase the land on which the matrimonial house was built was contributed wholly by the wife but both parties made contribution to the expenses for constructing the matrimonial home. In those circumstances reasonably held the principles applicable to whether a matrimonial home standing in the name of the wife or the husband alone belonged to them both jointly (in equal or unequal shares were that the law imputed to the husband and the wife an intention to create a trust for her by way of inference from their conduct and the surrounding circumstances, and that an inference of trust would be readily drawn when each had made a substantial contribution purchase price or to the mortgage instalments, either directly, as where the contribution to be such, or indirectly as where both parties went out to work and one paid the keeping and the other paid the mortgage instalments; but whether the parties held in equal shares would depend on their respective contributions. In the *Falconer* case (*supra*) the matrimonial home was registered in the wife's sole name. *Karanja v Karanja* [1976] KLR 307 which was cited in the High Court and mentioned before us, was decided by the Court and held, as per the head note:

> "Kikuyu customary law has changed radically since the days when land belonged to the tribe and section 17 of the Married Women's Property Act of 1882 of England together with the English authorities decided there under is applicable to an African husband and wife in Kenya where both are in salaried employment and contributing to household expenses and the education of the children. The fact that property acquired after marriage is put into the name of the husband alone and that the husband has evinced no intention that his wife should share in the property does not necessarily exclude the imputation of a trust nor preclude the wife in appropriate circumstances from obtaining declaration that the property acquired by virtue of a joint venture is held on trust for them both."

What is clear from this line of authorities is that both spouses were found to have made a financial contribution either direct or indirect, to the purchase of the property. There is no difficulty as to what a direct financial contribution is, either the wife or the husband has paid so much money towards the purchase of the property. Again there is little difficulty in what an indirect financial contribution is where both the wife and husband are in salaried employment of one or the other of them and uses the income to pay household expenses such as food, clothing, school so on, such a spouse is making an indirect contribution to the purchase of the property because the other spouse can then use his or her income to pay for the price. What about the ordinary housewife in Nairobi and other urban centres where this type of dispute is likely to occur? She remains in the house preparing food for the family, and generally keeping the house going. She ensures that the children are in a position to go to school in clean uniforms and that the husband also goes to work in clean clothes and general attends to

matters which enhance the welfare of the family. True, the money to do all these' often provided by the husband, but can it be said that such a woman is making no contribution to the family welfare and its asset?

Or take the not too uncommon situation in Kenya where the wife is left in the rural home tilling the land and generally keeping such home going. The husband is in paid employment in an urban centre and probably sends money home to the wife at the end of each month. The wife may, apart from running the home, be growing and looking after crops such as tea, coffee, maize and such. She may even be left with the children who attend rural schools. The husband using money from his job, acquires property in the town. Can such a wife be said to have contributed nothing towards the acquisition of such property and can only depend on the charity of the husband?

For my part, I have not the slightest doubt that the two women I have used as examples have contributed to the acquisition of the property even though that contribution cannot be quantified in monetary terms. In the case of the urban housewife, if she were not there to assist in the running of the house, the husband would be compelled to employ someone to do the household chores for him; the wife accordingly saves him that kind of expense. In the case of the wife left in the rural home, she makes even a bigger contribution on to the family welfare by tilling the family land and producing either cash or food crops. Both of them, however, make a contribution to the family welfare and assets. So that where such a husband acquires property from his salary or business and registers it in the joint names of himself and his wife without specifying any proportions, the Courts must take it that such property, being a family asset, is owned in the equal shares. Where, however, such property is registered in the name of the husband alone then the wife would be, in my view, perfectly entitled to apply to the Court under section 17 of the Married Women's Property Act of 1882, so that the Court can determine her interest in the property and in that case, the Court would have to assess the value to be put on the wife's non-monetary contribution. I can find nothing *Chapman v Chapman, Falconer v Falconer* or *Karanja v Karanja* (*supra*) which would force me to the conclusion that only monetary contribution must be taken into account. Any such limitation would clearly work an injustice to a large number of women in our country where the reality of the situation is that paid employment is very hard to come by.

The wife in the present dispute, however, can hardly qualify as simply housewife. The husband contended that she made no contribution at all and the judge appears to have accepted this, but this position was hardly supported by the evidence. She looked for the property herself when the husband was out in the United States and it was her who found the property and first signed the Memorandum of Agreement of sale/purchase to which I referred earlier This must be why the judge refused to hold that she had contributed nothing. The husband contended she was acting on his instructions and as his agent but this cannot be right. She was clearly buying family property and kept the husband fully informed on the matter. The husband did not allege he paid her to act as his agent or anything of that sort. When the husband came back and attempted to register the property in his sole name, she promptly rejected that attempt and the property was in fact registered in their joint names.

Again there was evidence that the wife was, for some periods, employed in various places earned various amounts as salary. True, the periods of employment were short and intermittent, and the salary not as large as that of the husband, but the money still went into the budget. When she left paid employment, she was involved in various businesses and the husband did not contend to the contrary. His contention was that he paid for the businesses their (businesses) were not profitable at all. The point, however, is that the wife was involved in businesses and that the husband was not paying her to run those businesses for him. The businesses might not have been profitable but they were not a dead loss on the family. One business (Gallery Africa) was sold for KShs 65 000. Clearly the wife was making a financial contribution to the family income, either through paid employment or through these businesses. So that whether the original deposit of KShs 17 000 was paid by the husband he subsequently paid all the mortgage instalments from his salary, the wife also made contribution to the family income. Her contribution might have been intermittent and not much as that of the husband but nevertheless contribution it was and upon the property acquired it was registered in their joint names with no specification as to who owned proportion, It was clearly intended to be family property jointly owned by the husband in equal shares and with respect to the learned judge the evidence on record did not warrant his conclusion that the wife owned a quarter while the husband owned the rest.

Even on the question of joint registration by itself, the law is more in favour of the wife than the husband. It is not very clear from the record under what Act the disputed property was registered, but section 22(4)(*a*) of the Registration of Titles Act provides:

> "When two or more persons are entitled as tenants in common, the registrar shall issue to those persons one certificate of title for the entire describing them as tenants in common …"

Paragraph (*b*) of that subsection gives the Registrar the discretion to issue separate certificates person.

Section 23 of the Act provides:

> "(1) the certificate of title issued by the registrar to a purchaser upon a transfer or transmission by the proprietor therof shall be taken by all courts as conclusive evidence that on named therein as proprietor of the land is the absolute and indefeasible owner thereof subject to the ecumbrances, easements, restrictions, and conditions contained therein or endorsed thereon, and the title of that proprietor shall not be subject to challenge except on rid of fraud or misrepresentation to which he is proved to be a party."

Section 28 of the Registered Land Act makes similar provision to the above. The husband sought to challenge the wife's title on the ground that the wife was registered as a trustee for himself and the issue of trustee was based on the allegation that the wife had not made any contribution towards the purchase of the land. I have held that the wife in fact made financial contribution towards the purchase of the matrimonial home, and the judge's finding to the contrary was not justified by the evidence. But even if I had been of the view that the wife had contributed no money at all towards the purchase of the home, I would have gone on to assess her non-monetary contribution as a wife and put a value upon that. As I said earlier, it would clearly be cruel to the wife and to

other women in her position that they can only have share in property acquired during marriage if they can prove some financial contribution. At any rate this wife made a financial contribution and she and her husband bought the property as a family venture and had it registered in their joint names. They clearly intended to hold it in equal shares as a family asset. We were referred to the case of *Patel v Commissioner of Lands* [1980] KLR 38 where the late Sachdeva J held that despite the fact that the former Mrs Kiano was jointly registered with Dr Kiano a proprietors of some land she was still a trustee for Dr Kiano because she had contributed nothing towards the purchase of the land. I think the decision in that case should be confined strictly to the peculiar circumstances pertaining to the case. It was a notorious fact that Mrs Kiano had been deported from Kenya. She was accordingly not in a position to present her side of the story to the Court and though service upon her was effected upon a firm of local advocates, there was no evidence at all that those advocates were able to receive instructions from her. Dr Kiano asserted in a letter that she had contributed nothing and the judge accepted that assertion. The judge also appears to have found that Mrs Kiano had in fact abandoned her claim to the land. That decision was probably right in those peculiar circumstances but it must not be extended beyond those circumstances. That being my view of the matter, I would allow the wife's appeal and dismiss the husband's cross-appeal with costs. I would set aside the learned Judge's order that the parties are entitled to property in the ratio of one to four and substitute it with an order that they hold the property in equal shares. I would also set aside the judge's order that the taking of accounts of rental income, which order was not prayed for by either party. The wife had also asked for an order that the property be sold and the proceeds therefrom shared equally between the parties. I would instead order that a valuation be carried out on the property by, a valuer acceptable to the parties and upon such valuation, the husband should pay the wife half the value of the property. The costs of the valuer are to be borne initially by the husband but he shall recover half thereof from the wife's assessed share. I also give to the parties liberty to apply, and I would award to the wife half of her costs of this appeal.

Gachuhi JA: The root cause of these appeals was an originating summons filed by Mary Ann Matanu (wife) against Samuel Mutua Kivuitu (husband) under section 17 of the Married Women's Act of 1982 and other provisions of the Law. As a result of the judgment in the High Court in which the Court ordered a valuation of the property and the said valuation to be in proportion as to a quarter to the wife and three quarters to the husband, each party filed appeals challenging the apportionment by the judge. Both appeals were consolidated by consent.

The facts relating to the subject matter of the appeal are seen out in the Judgment of Omolo which I had the advantage of reading in draft. I entirely agree with him.

The Married Women's Property Act of 1882 is one of the Acts of general application in Kenya African customary law in relation to the ownership of property, if applied, would be in conflict with the written law and in particular with the provision of section 17 of the Married Women's Property Act of 1882 of England. This provision discussed by Simpson J (as he then was) in *Karanja v*

Karanja [1976] KLR 307. The time when an African woman was presumed to own nothing and all that she owned belong to her husband and was regarded a chattel of her husband has long gone. Women are more honourably employed in highly salaried posts and occupy high positions equal to men both in the government and in the private sector. They own businesses and properties individually or in partnership and have shares in companies. There is no position that a man can hold which cannot be held by a woman. The situation has changed so have customs.

Returning to the issue in this appeal, there is evidence that both husband and wife as a married couple agreed to buy a house to be occupied by them as a married couple, agree to buy a house to be occupied by them as a matrimonial home. When the husband was away, she found a suitable home the price for which she negotiated and entered into a sale agreement with the owner. She kept her husband fully informed of the progress. On return of the husband, the property was conveyed to them as joint tenants. The wife was at time employed and at times was in business. She must have assisted in domestic matters while the husband paid the mortgaged loan. The parties have children. Their marriage broke down later. Divorce proceedings were instituted and the marriage was dissolved. The wife moved away from the matrimonial home while the husband remained with the children occupying the matrimonial home and has now remarried. The wife prays that the matrimonial home be sold and the proceeds be shared equally and that she be given an option to buy.

The fact the property is registered in their joint names, it means, that each party owns an undivided equal share therein. Again section 17 does not give the right of sale but a determination and declaration of the wife's share in the property. In *Bedson v Bedson* [1965] QBD 666 where the husband used all his life's savings to buy a draper's business consisting of the shop on the ground floor and living accommodation above, for the purpose of providing a home and "means of livelihood", the Court of Appeal refused to grant an order of sale as the result would turn out the husband out of the home.

In the present appeal, because of the contribution at the initial stages of the negotiation, I accept the findings of the judge that the wife contributed either in cash or kind towards the purchase of this property. Because of the conveyance of the property to beheld by them as joint tenants, there was a presumption at the time that the intention of the parties was to hold the matrimonial home as joint tenants providing that if one of them died, the other would take the entire ownership. The wife has left the matrimonial home, has not lost her interest. That position remained and cannot be altered. I would allow this appeal and set aside the Judgment of the High Court and substitute therefore an order that both husband and wife are entitled to one half undivided share of the property. Because the husband is occupying the matrimonial home with the children of the first marriage and with the wife and children of the second marriage, I would not grant an order for sale but I would order that the property be valued by a professional valuer to be agreed by both parties.

I am in agreement with the final orders proposed by Omolo AJA that this Court should make.

As Masime JA also agrees, it is so ordered.

Masime JA: By consent of the parties we consolidated these appeals as they arose out of the superior decision in High Court civil case number 2638 of 1981 (OS). The pleadings and competing claims parties in the originating summons, the decision thereon by the superior Court and the challenges there of by the parties to these appeals have been succinctly summarised by Omolo AJA in his judgment which I have had the advantage of reading in draft and which I agree.

In view of the importance of this matter in the development of the law, I wish to add the following.

Most of the Kenya African communities are patrilineal and the matrimonial home is usually settled by the husband. Consequently upon divorce, it is usual for the wife to leave that home in the process the wife will usually take away only her self acquired personal property, any which belongs to the matrimonial home and landed property invariably remain with husband. (See Cotran: *Restatement of African Law: Marriage and Divorce* of 1968). Today however, as a result of increased opportunity for education, employment and entreprenuership the money sector is no longer the man's domain. And even where only the husband is in the income earning sector the wife is not relegated to total dependence on him without an ability to make some reasonable contribution towards the economic management of their family. It is no longer right to assume, as was done under customary law that the wife was totally dependent on the husband and not capable of contributing at all or substantially to the development of the household and increase in the family wealth. Apart from that it is fashionable today for betrothed couples to have pre-wedding and wedding parties during which many gifts are given to them for setting up of their matrimonial home. It is known that some gifts included land and property. It would be in my view wrong if upon divorced the wife was permitted to take away only her personal effects and any other property that she can be proved to have acquired directly through her own efforts. It is incumbent on the Courts to consider all the factors and the circumstances in each case to evaluate and determine whatever the nature of the wife's contribution and on findings to apportion the matrimonial property accordingly on divorce.

It is for these reasons that I concur in Omolo AJA's approach in these appeals. The matrimonial property in issue was clearly purchased as such and on the evidence both parties contributed towards its purchase and my analysis and evaluation of the evidence at the trial does not lead me to any reason to find that the wife contributed any less to the acquisition of property than the husband. I would therefore allow the appeal by wife and declare that the property is owned by the parties in equal shares. In view of the cost of acquisition of property today however, I would not order that matrimonial home be sold, rather, I would direct valuation of the property by a valuer acceptable to both parties and order that the husband pay out to the wife the equivalent in money of one half the value of the property, I would also order the husband to the valuation costs initially and recover half thereof from the wife's ultimate share. I would allow half of costs of this appeal to the wife.

For the appellant:
Mrs Njoka

For the respondent:
Information not available

Kukal Properties Development Ltd v Maloo and others
[1990–1994] 1 EA 281 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment: 31 March 1993

Case Number: 155/92

Before: Gachuhi, Kwach and Muli JJA

Sourced by: LawAfrica

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[1] Civil procedure – Judgment be on issues stated – Failure to do so.

[2] Contract – Conditional provision in agreement – Prior correspondence.

[3] Estoppel – Effect of Act of Parliament on doctrine of estoppel.

[4] Land – Failure to execute agreement for sale by one party – Effect of.

[5] Specific performance – Effect of repudiation – Failure to pay purchase price – Accepting deposits.

Editor's Summary

The appellant entered into an agreement for the sale of a maisonette in Nairobi with the first and second respondent (the Maloos) at a price of KShs 600 000.

The Maloos paid a deposit of KShs 60 000 while the balance was to be paid on the date of completion of the sale agreement.

Subsequently, the appellant entered into another sale agreement with the third and fourth respondents (the Porbunderwallas) for the sale of another mansionette on the same plot and at the same price. The latter agreement was subject to the same conditions as that made with the Maloos.

The two agreements were also subject to the purchasers obtaining a loan within 14 days before the completion date from a financial institution, failing which the agreement would be cancelled and the monies paid by the purchasers refunded.

However, while the first sale agreement was executed by both parties, the latter agreement was only executed by the Porbunderwallas.

The respondents failed to provide proof that they had obtained loans from financial institution within the stipulated period. The appellant therefore cancelled the agreement and refunded the amounts paid by the respondents.

The respondents then sued. The trial Judge ordered the appellant to complete the contract per the terms of the contract. Hence the appeal

Held – A judge is obliged to decide on each and every issue framed. Failure to do so constituted a serious breach of procedure.

The failure to execute the second agreement by the appellant or by anyone authorised by it, rendered the second agreement inconclusive.

The doctrine of estoppel cannot apply against an Act of Parliament, *Patterson v Kanji* (1956) 23 EACA 106 followed.

Correspondence written prior to the execution of a contract cannot be used in the construction of the agreement, *Damodar Jinabhai and Co Limited v Eustace Sisal Estates Ltd* [1967] EA 153 followed,

The respondents had not paid the full purchase price and could not therefore obtain an order of specific performance. *Sisto Wambugu v Kamau Njunguna* [1988] 1 KAR 217 followed.

By accepting the refunds of their deposits, the respondents had accepted the breach and could not then later sue for specific performance. *Johnson v Agnew* [1979] 1 All ER 883 considered.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Damodar Jinabhai and Co Limited v Eustace Sisal Estates Ltd [1967] EA 153 – **F**

Hasham v Nanji [1960] EA 7

Patterson v Kanji (1956) 23 EACA 106 – **F**

Sisto Wambugu v Kamau Njuguna [1988] 1 KAR 217 – **F**

United Kingdom

Aberfovle Plantations Limited v Cheng [1959] 3 All ER 910

Johnson v Agnew [1979] 1 All ER 883 – **C**

Spottiswoode v Doreen Appliances Ltd [1942] 2 All ER 65

Judgment

Kwach JA: This is an appeal by Kukal Properties Development Limited (the appellant), against a decree for specific performance of two agreements, given by the superior Court in favour of two couples, Tafazzal Hatimali Maloo and his wife Sakina Tafazzal Maloo (the Maloos); and Anverali Mohamedali Porbunderwalla and his wife Latifa Anverali Porbunderwalla (the Porbunderwallas).

By an agreement for sale dated 23 June 1987, entered into between the appellant and the Maloos, the appellant agreed to sell to the Maloos a maisonette (identified as number 2 on plot land reference number 2/20 Nairobi, at a consideration of KShs 600 000. The Maloos paid a deposit of KShs 60 000 to a nominated advocate as a stakeholder. Completion date was to be 15 August 1987. The sale was subject to 8 special conditions, the relevant ones for the purposes of this appeal being conditions 1 and 7 by which it was provided that:

> "1. Time is of the essence of the contract.
>
> 7. This agreement is subject to the purchaser getting a loan from any Financial Institute. If the offer is not coming 40 days before the date of completion, this Agreement will be taken as cancelled and the deposit will be refunded after deducting KShs 1 500 being the fees for Mr KS Brambatt for work done in this matter upto that date. The deposit will not accrue any interest thereon."

The agreement between the appellant and the Maloos was signed by both parties and witnessed. The agreement for sale between the appellant and the Porbunderwallas was for the sale of maisonette number three on the same plot at the same price and was also subject to the same special conditions except that in this case the agreement was signed by the Porbunderwallas but not by the appellant or anyone else authorised by the appellant to do so.

The way special condition number seven is couched leaves a lot to be desired but I think, and there is no dispute about this, that the purchasers had to provide evidence of an offer of a loan within two

weeks from the date of

signing the agreements, that is to say, on or before 6 July 1987. Alleging breach of this particular special condition, the appellant rescinded both agreements and refunded the deposits to the respondents. The respondents instituted proceedingsagainst the appellant and Nairobi Homes Limited whom they alleged had at all material times the issues framed; that he erred in ordering specific performance of the agreements in question; that the appellant was entitled to rescind the agreements since the said agreements were conditional.

Nineteen issues were framed for decision by the judge. In his judgment, the judge only dealt with nine issues leaving ten undecided. It was the submission of Mrs *Dias*, for the respondents, that the issues that the judge did not deal with explicitly he had covered by implication. With respect this is not borne out by a perusal of the judgment and in any event this would constitute a violation of the express provisions of Order XX, rule 5 of the Civil Procedure Rules which provides that:

> "2. In suits in which issues have been framed, the Court shall state its finding or decision, with the reasons therefore, upon each separate issue."

Once issues were framed, the judge was obliged to decide each and every one of them and in failing to do so he committed a serious breach of procedure. This ground of appeal accordingly succeeds.

The decision is also challenged on the ground that in relation to the claim by the Porbunderwallas, there was no valid and enforceable agreement concluded between them and the appellant the agreement (exhibit 20) is dated 23 June 1987. It is signed by the Porbunderwallas but it is not signed by the appellant as the vendor. With regard to this omission, the judge took the view that it was due to oversight on the part of the appellant's advocate and that since the Porbunderwallas had been made to believe that the agreement had been executed, the appellant was estopped from relying on non-signature. He held that in the circumstances, the agreement was to be deemed to have been executed. The execution of a legal document is a matter of fact. It is either executed or not executed. This was an agreement for the disposition of an interest in land and had to comply with section 3(3) of the Law of Contract Act (Chapter 23) which, before the amendment of 1990, provided that:

> "(3) No suit shall be brought upon a contract for the disposition of an interest in land unless the agreement upon which the suit is founded, or some memorandum or note thereof, is in writing and is signed by the party to be charged or by some person authorised by him to sign it.
>
> Provided that such a suit shall not be prevented by reason only of the absence of writing, where an intending purchaser or lessee who has performed or is willing to perform his part of a contract:
>
> (i) has in part performance of the contract taken possession in part performance of the contract and has done some other act in furtherance of the contract.
>
> (ii) Being already in possession continues in possession in part performance of the contract and has done some other act in furtherance of the contract."

The agreement in question was not signed by the appellant or anyone authorised by the appellant to sign it. The Porbunderwallas could not rely on the proviso because they had not taken possession of the maisonette. It is therefore plain beyond argument that there was no concluded agreement both in fact and in law between the appellant and the Porbunderwallas, which could be enforced by a decree for specific performance. And as to the judge's holding that the appellant was estopped from denying the validity of the agreement, this is

quite clearly erroneous on the authority of *Patterson v Kanji* (1956) 23 EACA 106, where the Court of Appeal for Eastern Africa held that there can be no estoppel against an Act of Parliament. The result is that the order for specific performance in favour of this couple should never have been made at all because it clearly had no legal basis. This ground of appeal succeeds.

The next ground of challenge is that both agreements were conditional. It was Mr *Lakha*'s submission that the agreements were subject to the respondents obtaining offers of loans from any financial institution and that time being of the essence, if the respondents failed to meet this condition there could be no binding contract on which specific performance could be decreed. He referred to the case of *Spottiswoode v Doreen Appliances Ltd* [1942] 2 All ER 65, where an offer by the defendants to take a lease of premises was accepted on behalf of the plaintiffs subject, *inter alia*, to the terms of a formal lease to be prepared by their solicitors. The defendants were let into possession and a draft of the agreement was sent to them. A fortnight later the plaintiffs wrote to the defendants indicating that they were not willing to proceed with the agreement. They brought an action to recover possession, and the defendants counter-claimed for specific performance of an alleged agreement to grant them a lease. It was held by the Court of Appeal upon the proper construction of the offer, there was no binding contract until a formal agreement had been executed. Since this had not been done the defendants were not entitled to specific performance.

Mr *Lakha* also cited the case of *Aberfoyle Plantations Limited v Cheng* [1959] 3 All ER 910 which was also a case of a conditional contract. In the judgment of the judicial committee of the Privy Council which was read by Lord Jenkins, there is this passage at 915E:

> "Before parting with these two authorities their Lordships would observe that the reason for taking the date fixed for completion by a conditional contract of sale as the date by which the condition is to be fulfilled appears to their Lordships to be that, until the condition is fulfilled, there is no contract of sale to be completed, and accordingly, that, by fixing a date for completion, the parties must by implication be regarded as having agreed that the contract must have become absolute through performance of the condition by that date at latest."

It was the appellant's case throughout that the agreements were conditional upon the respondents producing evidence of offers for loans from any financial institution by a given date and that the respondents had failed to do so. It was contended on behalf of the respondents, on the other hand, firstly, that, through an arrangement made by the appellant through its agent, Nairobi Homes Ltd the offers were to be obtained from the Housing Finance Company of Kenya Limited and secondly, that they produced evidence of such offers within the contractual period. As regards the first contention, the respondents sought to rely on prior correspondence to modify or amplify special condition number seven. This, they could not do because, to my mind, the law on the point is clear. It is that in the construction of in agreement prior correspondence cannot lie called in aid. The judge placed reliance on a letter dated 20 March 1987, which was written before the execution of the agreements, by which Nairobi Homes Limited confirmed to the Maloos that there was a loan arrangement of KShs 500 000, with Housing Finance Company of Kenya Limited provided they qualified for the same. If this was to be a term of the agreement, no doubt it would have been incorporated into the agreement which was subsequently executed on 23 June 1987. It was not. Such correspondence is regarded in law as forming part of the negotiation process. This point was dealt with by the Court of Appeal for East Africa in the case of

Damodar Jinabhai and Co Ltd v Eustace Sisal Estates Ltd [1967] EA 153. Sir Charles Newbold P said at 155F:

> "Before I deal with these submissions I think, I should refer to four matters which were raised by Mr Nazareth, who appeared for the purchaser, though the precise reason for raising some of them was not very clear to me. The first matter was that the Chief Justice should have looked at a previous draft of the contract in order to determine the meaning of clause 7. The Chief Justice refused to do so and I entirely agree with his decision. It is true that in certain circumstances evidence of surrounding circumstances may be admissible in order to interpret a document (See section 29, proviso 6 of the Evidence Act) but in no case is evidence of prior negotiations admissible See *Virbai v Bhatt*) and the evidence of a prior draft which has been rejected, of a contract is ipso facto nothing other than evidence of prior negotiations."

And Spry JA, said this at 159B:

> "I would begin by stating what I understand to be the law relating to the interpretation of contracts in Tanganyika. First, where the contract is in writing and its terms are clear and unambiguous, no extrinsic evidence may be called to add to or detract from it, but where necessary extrinsic evidence may be given of surrounding facts, although evidence of the negotiations is never admissible to vary the terms of the written contract."

There can be no doubt therefore that the judge was wrong in relying on the letter of 20 March 1987, in the interpretation of special condition number seven of the agreement.

With regard to the alternative contention by the respondents that they had produced evidence of loan offers, there is clearly no evidence to support this. Such evidence as there is, is to the contrary. In cross-examination, Taffazal Hatimali Maloo (PW2) told the judge, *inter alia*:

> "I am pleading for more time in which to obtain mortgage finance. I was to get loan within 40 days. I was refunded KShs 58 500. I accepted the refund and I deposited in my account. We agreed on specific deadline. Yes at date of deadline I had not obtained any finance from any financial institution. I cannot produce even now a commitment from any financial institution."

And Mohamedali Porbunderwalla's evidence was that:

> "Contractual date is set therein in the agreement that is 15 August 1987. Had I paid KShs 500 000 the contract would have been complete as on that date. As at that date my loan was still being processed by HFCK. Consequently, by that date, I could give neither the money nor the offer from a financial institution because I was unable."

From the evidence of both Mr Maloo and Mr Porbunderwalla two vital facts emerge, firstly, that they were totally unable to come up with loan offers on the contractual date and, secondly, that they accepted a refund of their deposits following the repudiation of the agreements by the appellant.

I now turn to the consideration of the question whether on the evidence the remedy of specific performance was available to the respondents. On the date of completion, the respondents may have been willing to complete but they were certainly not ready and able to do so for they did not have the wherewithal. There is no evidence that either Housing Finance Company of Kenya Limited or any other financial institution had agreed to lend the respondents the necessary mortgage finance.

At the time of the repudiation of the agreements by the appellant, the respondents had neither paid nor tendered the purchase price. On their own admission, they did not have the money and could not therefore be said to be

ready and willing to perform their part of the bargain. As they had failed to pay the full purchase price, they could not in law obtain an order for specific performance of the agreements to sell the two maisonettes to them. This Court has so held in the case of *Sisto Wambugu v Kamau Njuguna* [1988] 1 KAR 217.

There is one further reason why specific performance should not have been decreed. The respondents by accepting the refunds of the deposits paid by them, thereby accepted the breach with the result that they could only sue for damages for the alleged breach. Alternatively, they could refuse to accept the breach, treat the contracts as alive, and sue for specific performance. In that event, the respondents would have been obliged to perform their part of the contracts. In this case, the respondents did not keep the contracts alive. In his speech in the House of Lords in the case of *Johnson v Agnew* [1979] 1 All ER 883, Lord Wilberforce set out the law on this point admirably at 889C:

> "In this situation it is possible to state at least same uncontroversial propositions of law. First, a contract for the sale of land, after time has been made, or has become, of the essence of the contract, if the purchaser fails to complete, the vendor can either treat the purchaser as having repudiated the contract, accepts the repudiation, and proceed to claim damages for breach of the contract, both parties being discharged from further performance of the contract; or he may seek from the Court an order for specific performance with damages for any loss arising from delay in performance. (Similar remedies are of course available to purchasers against vendors). This is simply the ordinary law of contract applied to contracts capable of specific performance. Secondly, the vendor may proceed by action for the above remedies (viz specific performance or damages) in the alternative. At the trial lie will however have to elect which remedy to pursue. Thirdly, if the vendor treats the purchaser as having repudiated the contract and accepts the repudiation, he cannot thereafter seek specific performance. This follows from the fact that, the purchaser having repudiated the contract and his repudiation having been accepted, both parties are discharged from further performance."

In the present case the respondents accepted the appellant's repudiation and both parties were therefore discharged from further performance. In my judgment therefore, the remedy of specific performance was not available to the respondents and consequently not open to the judge and should never have been ordered. If the respondents had any claim against the appellant, it was for damages for breach of contract only.

Mrs *Dias*, who appeared for the respondent both here and in the superior Court, urged us to uphold the decision of the judge and cited numerous authorities in support of her submissions. It is difficult not to admire her persistence and sheer tenacity but in the ultimate analysis 1 am convinced that the only reason she fought this case tooth and nail the whole distance, was because she was an interested party. This could have blurred her vision and contributed to her inability to see the wood for the trees.

For these reasons, I would allow this appeal, set aside the judgment and decree of the High Court and substitute therefore an order dismissing the respondents' suit with costs. I would give the appellant the costs of this appeal.

Muli JA: I have had the advantage of reading in draft the judgment by Kwach JA and I agree that the appeal be allowed with costs.

The appellant company advertised through its duly appointed agent the sale of the two maisonettes at a price of KShs 600 000 each with a loan arrangement

with Housing Finance Company of Kenya of KShs 500 000 on each maisonette. The respondents are two families residing in Nairobi. The first and second respondents are a man and his wife (the Maloos) and the third and fourth respondents are also a man and his wife (the Porbunderwallas).

By the transactions evidenced in writing and dated the 23 June 1987, the appellant wished to sell maisonette number two to the Maloos and maisonette number three to the Porbunderwallas at a price of KShs 600 000 each on the terms and conditions contained in the said documents subject to the respondents obtaining a loan from any financial institution within 40 days before the completion date which was stipulated to be the 15 August 1987. I have used the words. “transactions” and “documents” purposely because the validity of the intended agreements was at issue. The respondents accepted the offer and paid’ the 10% deposit of KShs 60 000 for each maisonette. By a letter dated 27 May 1987, the appellants’ agent, Messrs Nairobi Homes Limited offered the loan arrangements with Housing Finance upon payment of the necessary commitment fees. The respondents accepted this on 23 June 1987. Unfortunately the financial arrangements were not successful in time as stipulated in the documents I have referred to whereupon the appellant rescinded and cancelled the intended agreements on 9 September 1987. Being aggrieved by the cancellations of the agreements, the respondents jointly brought action for specific performance of the agreements on the ground that the appellant was in breach of the said agreements. After a protracted, trial the learned trial Judge found for the respondents and ordered specific performance of the agreements by the appellant with costs of the suit. Hence this appeal.

There are 11 grounds of appeal. For convenience and clarity I would separate the two transactions and deal with each transaction separately. Although both intended vending agreements are identical in every respect, the intended agreement between the appellant and the Maloos (exhibit 10) was executed by the parties while the one between the appellant and the Porbunderwallas (exhibit 20) was executed by the latter only. I would like to consider this latter agreement first. As the appellant did not execute the intended agreement, its legal effect and validity became a hot issue to be decided at the onset. Ground three of the appeal’ addresses itself to this issue. The learned trial Judge held:

> “It then becomes clear that the defendant treated the agreement between it and third and fourth plaintiffs to have been executed and valid. Of course the third and fourth plaintiffs believed on reasonable grounds that its execution was in fact accomplished and the fact that defendants never signed it would not in their view affect them. So my finding is that the non-signing by the defendant of the agreement exhibit 20 must have been an oversight by the defendant’s lawyer. Considering the fact that the plaintiff after signing was made to believe in whatever he did, that the agreement had been executed, an estoppel would act against the defendant if lie tried to rely on the non-signing. Fortunately he has not in this case and I hold that the agreement must be deemed to have been executed and my answer to the issue in this respect is also yes.”

With the greatest respect the learned trial Judge misdirected himself completely. In the first place it matters not what the parties or one of them believed or was made to believe. The real issue was whether the agreement was duly executed by the parties and if not, what were the legal consequences? Put it another way was the agreement executed by the parties, and if not, was the agreement binding and enforceable against any of the parties?

It is trite law on this point and is made beyond doubt under section 3(3) of the Contracts Act (Chapter 23 Laws of Kenya) as follows:

> "3 (3) No suit shall be brought upon a contract, for the disposition of an interest in land unless:
>
> (*a*) The contract upon which the suit is founded:
>
> (i) is in writing;
>
> (ii) Is signed by all the parties thereto; and
>
> (iii) Incorporates all the terms which the parties have expressly agreed in one document; and
>
> (*b*) The signature of each party signing has been attested by, a witness who is present when the contract was signed by such party."

In the instant case the appellant did not execute the intended agreement between itself and the Porbunderwallas. No amount of correspondence prior or subsequent to the date of the intended agreement will change the legal position. Mrs *Dias* urged us to hold that since this issue was not pleaded in the pleadings coupled with the correspondence exchanged prior to and subsequent to the agreement the appellant must be deemed to have executed the intended agreement or that the appellant must be estopped from relying on the non-execution of the intended agreement as a ground to vitiate the agreement. Indeed the learned trial Judge fell into this trap and misdirected himself. I do not agree.

Mrs *Dias* contention is faulty in two respects. Firstly, it is trite law on pleadings that a party need not plead the law.

Secondly, the doctrine of estoppel does not operate against an Act of Parliament. See *Patterson v Kanji* (1956) EACA 106.

I have considered the authorities cited by Mrs *Dias* but I find no authority to support her contention that the unexecuted agreement by the parties may be deemed to have been executed by reference to correspondence prior to or after the date of the intended agreement. To do so would be to introduce extraneous matters which may not have been intended by the parties. The authority in *Hasham v Nanji* [1960] EA 7 did not support Mrs *Dias* contention and was clearly distinguishable on the facts of that case. I hold that the intended agreement between the appellants and the Porbunderwallas was inoperative. and therefore unenforceable for lack of execution by the appellant. The total sum was that there was no valid agreement enforceable in law. Ground three of the appeal succeeds.

Ground one of the appeal complains that the learned trial Judge was wrong in that he did not consider sufficiently or at all the agreed issues. There were 19 agreed issues signed by counsel for the parties. Mr *Lakha* for the appellant, contended that the learned trial Judge misdirected himself by not considering all the agreed issues. He submitted further that by not doing so in his judgment, the said judgment became defective. He gave examples of agreed issues eight and nine where the judge merely said "yes" or "in part" without. considering them. There is no mention of issues numbers 10 to 19. Order XX, rules 4 and 5 of the Civil Procedure Rules provides:

> "4. Judgment in defended suits shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision.
>
> 5. In suits in which issues have been framed, the Court shall state its finding or decision, with the reasons therefore upon each separate issue."

Clearly the learned trial Judge was in error in failing to consider all the issues separately and by omitting issues numbers 10–19. These omissions rendered the

judgment defective. Ground one of the appeal succeeds. This would have been sufficient to dispose of this appeal but I shall consider the other grounds of appeal because they raise important points of law. For instance ground two raises the import into an agreement issue as to whether or not it is prudent to correspondence parties prior to the agreement. In exchanged between the particular whether the agreement between the appellant and the Maloos was binding on the parties.

Mrs *Dias* contended that all the evidence including correspondence between the parties prior to or after the agreement are admissible. I think that this contention is sweeping. As I understand it where the contract is in writing and its terms are clear and unambiguous, no extrinsic evidence may be called to add to or detract from it. See *Damodar Jinabhai and Co Limited v Eustace Sisal Estates Ltd* [1967] EA 153 at 159 Spry JA as he then was.

Evidence of negotiations is never admissible to vary the terms of the written contract. However, where there is a latent ambiguity, extrinsic evidence may be given of surrounding facts to explain the ambiguity. But certainly evidence or correspondence on prior negotiations may be admissible. It is assumed that the intentions of the parties to a written contract are embodied in the written contract itself. I have used the phrase "prior negotiations" because subsequent correspondence may affect the written contract where it is clear from the wording that the parties intended such subsequent correspondence to affect the written contract. For instance, subsequent correspondence may vary the terms of the written contract if it is clear from the correspondent that the parties intended to vary the contract.

Mrs *Dias* urged us to consider prior correspondence to show that there was another contract concerning financial arrangements. The learned trial Judge held that prior correspondence was admissible. This was misdirection. Prior correspondence was purely prior negotiations and therefore inadmissible. In *Aberfovle Plantations Limited v Cheng* [1959] 3 All ER 910 at 918F Lord Jenkins, as he then was said:

> "Their Lordships can attach no importance to the vendor's argument based on surrounding circumstances. The parties chose to fix 30 April 1956 by the agreement as the date for what they themselves described as completion" and must be bound by that choice.
>
> It should Also be placed on record that certain evidence as to an alteration made in clause 4 of the draft of the agreement when the matter was in negotiation, which Good J appears to have admitted was, in their Lordship's view, wholly inadmissible for the purpose of construing the agreement itself, and was by common consent excluded from consideration at the hearing before them."

And so it is in the instant case. Ground two of the appeal succeeds.

The agreement under consideration has special conditions. It is the agreement between the appellant and the Maloos in respect of maisonette number two (exhibit 10). The special conditions are:

> "1. Time is of the essence of the contract.
>
> 7. This agreement is subject to the purchaser getting a Loan from any Financial Institute. If the offer is not coming 40 days before the date of completion, the agreement will be taken as cancelled and the deposit will be refunded after deducting KShs 1 500 being the fee for Mr KS Brahmbhatt for work done in this matter up to that date. The deposit will not accrue any interest thereon."

These special conditions remained intact from the date of the execution of the agreement by the parties on 23 June 1987. There was no amendment or variation of the terms of the agreement with the result that time remained of essence to this

agreement and also subject to the purchaser getting a loan from any financial institution (special conditions numbers one and seven respectively (*supra*). In absence of valid variation of the terms and conditions of the agreement, the parties must be deemed to have intended to be bound by the terms and conditions of the agreement. In terms of special condition number one time was of the essence of the agreement with the result that completion date remained as stipulated to be 15 August 1987 (clause 5), and the Maloos were required to produce the offer from any financial institute within 40 days before the date of completion. In default the agreement was to be taken as cancelled and the deposit would be refunded (special condition number seven). Forty days before the completion date was 6 July 1987. There was no such an offer forthcoming as at that date. The appellant was generous enough to grant an extension of time to 4 August 1987. As at that date or any other date thereafter, no offer was forthcoming from the Maloos. Mrs *Dias* admitted from, the bar that there had been no offer made up to this day. In absence of the offer being made within the stipulated contractual period and time being of the essence of the agreement, the Maloos were clearly in breach of the special conditions numbers one and seven of the said agreement. The learned trial Judge was clearly wrong when he held that the appellants were guilty of the breach of the agreement. This was not so on the facts of this case.

On 9 September 1987, Mr Brahmbhatt for the appellant wrote to the Maloos as follows:

> "I refer to my letter dated 22 July last, addressed to you, according to which this transaction was cancelled. Therefore I enclose herewith my cheque for KShs 58 500 being balance of the deposit after deducting my fees (KShs 1 500) as mentioned in para 7 of the special conditions of the Agreement for sale and a copy of the agreement for sale for your records."

The learned trial Judge considered the issues of the time being of the essence of the contract and special condition seven in somewhat muddled way. He found in effect that time was not of essence because the appellant was responsible for financial arrangements with Housing Finance Company of Kenya and that special condition number seven was rendered ineffective. I do not agree. In so far as the agreement entered into between the appellant and the Maloos was concerned, there was no variation of the conditions therein nor was the agreement entered into through fraud, mistake or misrepresentation of facts. The learned trial Judge misdirected himself in admitting prior negotiation correspondence to construe the valid written agreement. There was no evidence to alter the special conditions that time was of the essence of the contract and that the Maloos were duty bound to produce the financial offer from any financial institute during the contractual period. He misapprehended the meaning of special condition number seven which required the Maloos to produce the financial offer 40 days before the completion date. The absence of the financial offer within the extended contractual period was a breach on the part of the Maloos and the appellant was entitled to cancel or to rescind the agreement, as he did. Whatever involvement the Housing Finance Company of Kenya and/or the Nairobi homes may have been, this did not affect the contract between the appellant and the Maloos. Any such involvement can best be termed extraneous matters and clearly wholly inadmissible.

Special condition number seven rendered conditional agreement in so far as it stipulate ed that the agreement was subject to the happening of the future events namely the production of the financial offer as well as compliance with the completion date. It is trite that where the contract is subject to a future

event, there is no bonding contract until and unless that condition subsequent is fulfilled. In *Aberfovle Plantations Limited v Cheng* (*supra*) Lord Jenkins, as he then was, held at 914 Post:

> "Their Lordships may now turn to the (question exhaustively debated before them and the Courts below: Within what period of time did the agreement . . . to be performed? The answer to that question must plainly depend on the true construction of the agreement or in other words on the intention of the parties as expressed in, or to be implied from, the language they have used. But subject to this overriding consideration, their Lordships would adopt as warranted by authority and manifestly reasonable in themselves the following general principles:
>
> (i) Where a conditional contract of sale fixes a date for the completion of the sale, then, the condition must be fulfilled by that date;
>
> (ii) Where a conditional contract of sale fixes no date for completion of the sale, then the condition must be fulfilled within a reasonable time;
>
> (iii) Where a conditional contract of sale fixes (whether specifically or by reference to the date fixed for completion) the date by which the condition is to be fulfilled, then the date so fixed must be strictly adhered to, and the time allowed is not to be extended by reference to equitable principles."

In an earlier decision in *Spottiswoode v Doreen Appliances Ltd* [1942] 2 All ER 65 Lord Greene MR, as he then was had this to say:

> "The real fact of the matter is that the language used here is equivalent to the common and more concise phrase "subject to contract," and, if anything is settled, it is that the phrase is one which makes it clear that the intention of the parties is that neither of them is to be contractually bound until a contract is signed in the usual way."

Applying the above principles to the present case, it is quite plain that time was of essence for the completion of the agreement on the 15 August 1987. It is also quite plain that the agreement was to be subject to the Maloos obtaining financial offer from any financial institute and to provide the appellant with that financial offer within 40 days before the completion date (15 August 1987). The parties must be deemed to have intended to become contractually bound on the fulfilment of the conditions subsequent. Until and unless fulfilment of these conditions subsequent no contract came into existence. Grounds one, seven, eight and ten succeed.

I would like to consider the remaining grounds of appeal, namely grounds four, five, six and eleven. In my opinion, these grounds are consequential and depended on the main issue, namely whether the intended agreements between the appellant and the respondents were operative and enforceable in law. The intended agreements were dead *ab initio* for lack of execution by the appellant in the case of Porbunderwallas intended agreement. It follows therefore that it was unenforceable against the appellant. With regard to the executed agreement between the appellant and the Maloos, this was a conditional contract intended by the parties to become binding on the fulfilment of conditions subsequent, namely completion of the contract on the 15 August 1987 and availability of the financial offer from any financial institute 40 days before the date of the completion. None of these future events ever materialised with the result that the Maloos were in, breach of their agreement. Flowing from this breach, the appellants through their lawyer, Mr Brahmbhatt, notified the Maloos and in fact all the respondents of the cancellation and rescission of the intended agreements in terms of special condition number seven. This was on 9 September 1987. Mr Brahmbhatt also returned the 10% deposit less his professional fees. As at that time, no financial offer from any financial institute was forthcoming.

The Maloos and indeed all the respondents accepted the refunds. Mrs *Dias*, while conceding acceptance of the refunds, contended that the cheques were never presented or cashed. It did not matter as to what happened to the cheques provided that the refunds were accepted on behalf of the respondents.

The learned trial Judge held that there was a financial offer made by Housing Finance Company. He arrived at this conclusion after considering the correspondence exchanged prior to the execution of the agreements. There was no evidence of any financial offer as stipulated in special condition number 7. The responsibility lay squarely on the Maloos and indeed the respondents to furnish the appellant with the financial offers. The Maloos and indeed all the respondents were unable to secure the financial offers from any financial institute. The learned trial Judge was in error in holding that the respondents were ready and willing at all material time to complete the agreements. This cannot be so. He misdirected himself in all respects after holding that prior negotiations correspondences were admissible. There was no evidence to support that conclusion. Grounds four, five, six and eleven must succeed.

The Maloos were in breach of the intended agreement. They accepted the refund of 10% deposit. The purchase price was not tendered during the contractual period or thereafter. The remedy of specific performance was not available to the Maloos. Specific performance is an equitable remedy and must flow from a legal right. The Maloos, having committed breach of their agreement, specific performance could not be legally decreed. The learned trail judge fell into error in decreeing specific performance; see *Sisto Wambugu v Kamau Njuguna* [1988] 1 KAR 217.

The entire judgment was defective and bristles with monumental and fatal misdirections of law and facts. It cannot be allowed to stand.

In the result, I would allow this appeal with costs and would set aside the judgment of the superior Court.

Gachuhi JA concurred in the judgment of Kwach and Muli JJA

For the appellant:
Mr Lakha

For the respondents:
Mrs Diass

Luambano v Republic
[1990–1994] 1 EA 292 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	11 April 1990
Case Number:	113/89
Before:	Makame, Ramadhani and Mfalila JJA
Sourced by:	LawAfrica

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[1] Criminal law – Defence of insanity – Factors to consider before Court orders examination by medical doctor.

Editor's Summary

Appellant was convicted of the offence of murder and sentenced to death. He appealed arguing that the trial Court erred in not ordering that he should be examined by a medical doctor.

Held – In order for a Court to order that the accused be detained at a mental hospital for medical examination, as per section 220(1) of the Criminal Procedure Act of 1985, there must be material which would reasonably make it appear to the Court that the accused person might have been insane when he committed the deed. There was no such material in this case.

Appeal dismissed.

No cases referred to in judgment

Judgment

Makame Ramadhani and Mfalila JJA: The appellant Dastan Anthony Luambano was condemned to suffer death and he is now appealing from that decision. The High Court sitting at Songea, Kizimoto J, found it established that the appellant, with malice aforethought, killed Micaela Kwenda, the wife of Danda, a person the appellant believed to be his wife's paramour. The allegation was that the appellant deliberately put poison in some flour which the deceased used to cook a meal for herself and her family. She died as a result of eating that meal. Her husband and her son were also taken ill as a result of partaking of the meal. This was at Namabengo Village in Songea District on 31 August 1986.

Mr *Mwanyika*, leaned State Attorney, resisted the appeal argued before us by Miss *Mcharo*, learned counsel for the appellant.

Miss *Mcharo* had failed two grounds of appeal; that the trial Court should have considered the defence of accidental poisoning; and secondly, that the learned trial Judge should have invoked the provisions of section 220(1) of the Criminal Procedure Act of 1985; in other words he should have ordered the appellant to be detained at a mental hospital for medical examination.

We were not at all surprised that at the hearing of this appeal Miss *Mcharo* abandoned the first ground, and we are able to say at the outset that Miss *Mcharo* is on very thin ground with regard to the second prong of her attack.

Before section 220(1) of the Criminal Procedure Act of 1985 can be brought into play it must first appear to the Court that the accused person might have been insane at the material time. There must be some material which would make it appear to the Court and reasonably so if we may add, that the accused person might have been insane when he committed the deed. In the instant case we are of the considered view that there was no material such as would have made the Court feel that the accused might have been insane.

There was plenty of evidence, despite the appellant's protestations to the contrary, that the appellant believed that the deceased's husband, Danda, was in the habit of enjoying the appellant's wife's intimate favours. After the deceased had got killed the appellant wrote to a brother of his confiding to him how the deceased unhappily got killed when the appellant had intended to kill the deceased's husband who had been sleeping with the appellant's wife. We see nothing that would persuade us to agree that the trial Court should have ordered the appellant to be medically examined as to his mental health. Miss *Mcharo* urged that the appellant's act of poisoning foodstuff which he knew would be consumed also by other people, and not only by Danda, was irrational. We ask, what murder is ever rational?

We agree with Mr *Mwanyika* that the evidence against the appellant was overwhelming and we accordingly dismiss the appeal.

For the appellant:
Miss Mcharo

For the State:
Mr Mwanyika

Lubega v Barclays Bank (U) Ltd
[1990–1994] 1 EA 294 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	30 June 1992
Case Number:	2/92
Before:	Manyindo DCJ, Platt and Seaton JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Court has discretion to strike out or substitute parties – Particulars of fraud must be specifically pleaded – Failure to plead fraud or particularise is a fundamental error.

[2] Receivership – Receiver is agent of the debtor even if paid by the creditor – Debtor liable for the acts of the receiver.

Editor's Summary

The appellant sued the respondent in detinue, seeking an order for the release of his lorry which he claimed to have bought from Ssezibwa Estates Ltd and was wrongfully seized and detained by the respondent's auctioneers.

Apparently, Ssezibwa Estates Ltd had bought the said lorry using funds from the respondent and had executed a debenture instrument as security. Among the conditions for the purchase were *inter alia* that the Sssezibwa Estates Ltd would not resell it for 4 years from the date of registration. Any resale after that would require approval from the District Administrator and of the Resistance Committee number one and of the bank.

The trial Judge held that the auctioneers were properly appointed by the respondent as receivers and agents of Ssezibwa Estates Limited and that the receiver, not the respondent, was the right party to sue. In the alternative, she held that the receivers and Ssezimbwa Estates Limited ought to have been joined as defendants under Order 1, rule 7 of the Civil Procedure Rules.

The appellant appealed.

Held – A receiver is an agent of the debtor, even though he might be remunerated by the creditor company. *Gosling v Gaskell* [1897] AC 595; *Owen v Cronk* [1895] 1 QB 265; *Achelis (Kenya) Ltd v Nazareli and Sons Ltd and another* [1967] EA 823; *George Baker Ltd v Eyon* [1974] 1 AER 900; *Re:*

B Johnson and Company (Builders) Ltd [1955] Ch 634 followed.

As the receiver was the agent of the debtor company and not the respondent, the right party to be sued would have been the debtor company. This would have been in accordance with the principle of *quifacit per alium facit per se* (he who acts through another is deemed to act in person). It is trite law that a principal is liable for the acts of his agent.

Order 1, rule 10 of the Civil Procedure Rules gives the Court wide discretion to strike out or add parties in order to ensure a proper and fair determination of the matter raised in the suit.

The charge crystallised the moment there was default and a receiver appointed. Hence, Ssezimbwa Estate Limited did not have the authority to transfer the lorry to the appellant at that time. *Wheatlay v Silustone and Company* [1885] 29 Ch 715 distinguished.

Ssezimbwa Estates Limited unlawfully and fraudulently sold off the lorry to defeat the interests of the respondent which was bound to confiscate it in order to recover part of the loan.

The appellant did not act prudently after being put on notice by the endorsement on the registration card. He should have ascertained from the registrar of companies whether the company was free to sell its assets and would then have seen the debenture. He also took possession of the lorry and used it for over a year without transferring it into his names and effected the transfer only when he realised that he might lose the lorry. In the circumstances it cannot be said that he had bought the lorry in good faith. In any case he cannot claim a prior right to the respondent in equity when the respondent had a debenture security which was not complied with.

The consent to transfer given was misconceived. It was given retrospectively and in contravention of the respondent's debenture and conditions put on the lorry by the government. The government was not entitled to consent to transfer after the sale and after the respondent had foreclosed.

The purported sale of the lorry was fraudulent and the transfer was of no effect since Ssezibwa Estates Limited had no title in the lorry to pass to the appellant. The debenture precluded Ssezibwa Estates Limied from selling the lorry without the respondent's consent and breach of this covenant vitiated the sale.

It is necessary to plead the particulars of any alleged fraud. *Okello v Uganda National Examinations Board* civil appeal number 12 of 1987 followed; *Dhanji Ramji v Rambhai and Co (Uganda) Ltd* [1970] EA 515 distinguished.

Failure to plead and particularise fraud is a fundamental defect and not an irregularity curable by evidence or otherwise. Fraud must be pleaded and proved. A prerequisite to any action in detinue is the plaintiff's superior right to possess as against the defendant's. In this case the Bank had the superior right as the plaintiff's title to possess was based on an invalid date.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Achelis (Kenya) Limited v Nazarali and Sons Limited and another [1967] EA 382 – **F**

Dhanji Ramji v Rambhai and Company (Uganda) Limited [1970] EA 515 – **D**

Household Centre Limited v Achelis (Kenya) Limited [1967] EA 823

Okello v Uganda National Examination Board civil appeal number 12 of 1987 – **D**

United Kingdom

B Johnson and Company (Builders) Limited, Re [1955] Ch 634 – **F**

George Baker Limited v Eyon [1974] I AER 900 – **F**

Gosling v Gaskell [1897] AC 595 – **F**

Owen v Crenk [1895] 1 QB 265 – **F**

Wheatley v Silustone and Company [1885] 29 Ch 715 – **D**

Judgment

Manyindo DCJ: This is an appeal against the judgment of Byamugisha J, delivered in the High Court sitting at Kampala on 12 April 1991. The appellant had sued the respondent Bank in detinue, seeking an order for the release of a lorry which he claimed to have bought from Messrs Ssezibwa Estates Limited, but which lorry had allegedly been wrongfully seized and detained by Messrs Sunrise Associated Auctioneers and Court Brokers as agents of the respondent. He also claimed special and general damages, interest and costs of the suit.

The facts of the case can be stated briefly as follows. By 1989, the government of Uganda had taken a decision to assist farmers with Crop Finance and Transport. The Commercial Banks, including the respondent, were requested to assist in that regard. Messrs Ssezibwa Estates Limited was a customer of the respondent bank and had executed a Debenture Deed with the respondent on 11 October 1982. There were three other Debentures executed by the same Company by the end of January 1989. Ssezibwa Estates Limited, were dealers *inter alia*, in buying, processing and transporting Coffee.

On 30 March 1989, Ssezibwa Estates Limited executed the fourth Debenture with the respondent for further loans for Crop Finance and Purchase of the lorry by then Ministry of Transport and Communication which had imported the lorries for allocation to farmers and dealers in produce. The appellant was allowed overdraft facilities to the tune of UShs7.5 million as a loan for the purchase of the lorry. As security, the respondent took an all assets debenture for UShs15.5 million. They also took out legal mortgages of the debtor's Coffee Factory and one residential house.

Armed with funds, Ssezibwa Limited then bought the Tata lorry registration number UPF 818, on 26 September 1989. They took possession of it on same day. The Ministry of Transport and Communications caused the Ministry of Finance to put a condition to the lorry, (on the registration card) namely, that the lorry was not to be transferred to another person without the express consent of the Treasury. And in the letter of allocation of the lorry to Ssezibwa Estates Limited; the same Ministry clearly stated that the allocation was made subject to four conditions. It is the first condition which is relevant to the case. It was that the allocatees were not to resell or transfer the lorry for a period of four years from the date of its initial registration and that any resell after the

four years would have to be approved by the allocatee's Resistance Committee number 1 and the District Administrator. The lorry was also subject to the floating charge contained in clauses 2 and 5(*j*) of the head debenture which states as follows:

> "2. The Company hereby charges with the payment and discharge of all moneys and liabilities intended to be hereby secured (including any expenses and charges arising out of or in connection with the act authorised by clauses 5, 8 and 9 hereof. All its undertaking goodwill assets and property whatsoever and wheresoever both present and future including its uncalled capital for the time being; and that the charge created by this debenture shall rank as a first charge on all immovable property of the Company (to be mortgaged as hereinafter provided) shall constitute a fixed charge and as regards all other property hereby charged shall constitute a floating security so that the Company is not to be at liberty to create any mortgage or charge upon any of the property comprised in this security to rank either in priority to or *pari passu* with the charge hereby created. Any debenture mortgage or charges hereafter created by the Company (otherwise than in favour of the Bank) shall be expressed to be subject to this debenture. The Company shall forthwith upon the execution of this Debenture but subject to the rights of any prior mortgage deposit with the Bank the title deeds of all immovable properties now vested in the Company and shall from time to time likewise deposit with the Bank the title deeds of any immovable property which may hereafter be acquired by the Company, all such deposits of title deeds being by way of equitable mortgage as collateral security for the repayment of the Principal moneys and interest hereby secured) and shall at its own expense whenever called upon by the Bank so to do execute legal mortgages or charges as the case may require in favour of the Bank over any such immovable properties, such legal mortgages to be in such form as the Bank may require.
>
> 5(*j*) The Company hereby covenants with the Bank; not to assign alienate let sub-let transfer or part with the possession of any of the property assets hereby charged or covenanted to be mortgaged or any part thereof without the consent in writing of the Bank first had and obtained and then only on the condition that the consideration received by the Company in connection with the assignment alienation letting sub-letting or parting with possession will be remitted to the Bank in reduction of the amount for the time being owing under this Debenture."

On 22 August 1990, Messrs Sunrise Associated Auctioneers who had been appointed Receivers by the respondent in accordance with the terms of the Debenture, impounded the lorry and advertised it for sale. It was to be sold on 4 October 1990. On 19 September 1990, the appellant had the vehicle transferred into his names and then on 27 September 1990, he instituted these proceedings against the respondent, after all attempts by his Lawyers to secure the release of the lorry had failed.

At the trial four issues were framed by the parties for determination by the trial Judge. They were:

> "1. Whether the suit was brought against the right defendant;
>
> 2. Whether the transfer of the lorry was valid;
>
> 3. Whether the plaintiff is the rightful owner of Tata lorry registration number UPF 818;
>
> 4. Reliefs if any."

After full trial the judge answered the first and second issues in the negative as a result of which she declined to consider the third issue. By implication it had

been answered on the second issue. She found that Sunrise Associated Auctioneers and Court Brokers were properly appointed by the respondent as Receivers and agents of Ssezibwa Estates Limited (and not of the respondent as claimed by the appellant) under clauses 8 and 9 of the debenture. In her opinion the receiver and not the respondent was the right party to be sued in the circumstances. Alternatively, the appellant could and should have joined the receiver and Ssezibwa Estates Limited as defendants under Order 1, rule 7 of the Civil Procedure Rules.

She considered the possibility of the Court joining them as defendants under Order 1, rule 10(2) of the Civil Procedure Rules but declined to do so since the respondent should never have been sued as the appellant had no cause of action against it. In her view the Court could only invoke the order and rule under reference to add names of any person who ought to have been joined whether as plaintiff or defendant, but not to substitute parties.

With regard to the sale and tranfer of the lorry to the appellant, the judge held that those transactions were carried out in bad faith for three reasons. Firstly, Ssezibwa Estates Limited had no power to sell or transfer the lorry in view of the strict prohibitions put on it by the respondent and the government. Secondly, the appellant was put on notice by the endorsement on the registration card, that the lorry was encumbered and so he should have made the necessary enquiries to ascertain the true position of the lorry. Thirdly, that the purported lifting by the Minister of Finance and that of Transport and Communications of the condition prohibiting Ssezibwa Estates Limited from alienating the lorry was unjustifiable as it defeated the interest of both the government and the respondent and that in any case the Ministers had acted in ignorance of the true situation probably due to misrepresentation of facts by counsel for the appellant.

She had no doubt that the transactions were tainted with fraud and so upheld the submission of counsel for the appellant that it was immaterial that the particulars of fraud had not been pleaded since there was ample evidence to support them. As for the reliefs, the judge took the position that had the appellant's suit succeeded, she would have ordered immediate repossession of the lorry since his claim was based on detinue. She would have awarded no special damages (for loss of earnings) as none was proved. UShs500 000 would have been awarded as general damages for wrongful deprivation. She was silent about costs but presumably they would have followed the event.

Ten grounds of appeal were raised in the memorandum of appeal. They were:

"1. The learned trial Judge erred in law and on the facts when she found that the respondent (defendant) was not the right party to the suit and that there was no cause of action against it. (At 9-10 judgment.)

2. The learned trial Judge erred in law and misdirected herself on the facts and circumstances of the case in failing to conclude from the overwhelming evidence on the record that the Tata lorry UPF 818 (hereinafter called the "lorry") the subject of the suit was lawfully acquired by the appellant and belonged to the appellant at all the relevant times.

3. The learned trial Judge misdirected herself in law when she failed to appreciate that the debenture had not crystallised at the time the appellant acquired the lorry and the vendor Ssezibwa Estates Limited could pass valid title to the appellant.

4. The learned trial Judge misdirected herself on the facts in failing to find that ownership of the lorry had passed onto the appellant by the time the receiver was appointed and the judge contradicted herself when after rightly finding that the charge was a floating charge which crystallised with appointment of the receiver on 20 August 1990 she failed to conclude that the lorry, belonged to the appellant at the time of its seizure.

5. The learned trial Judge wrongly believed the testimony and opinion of Kemigisha DW2 that the debenture was an all assets debenture and therefore Ssezibwa Estates Limited could not sell of the lorry in the ordinary course of business and the trial judge erred in failing to construe and give effect to the clause 2 of the Debenture and she thereby generally came to the wrong conclusions in law and in fact.

6. The learned trial Judge misunderstood the usual intention of the restriction appearing in the lorry registration book that is "not to be transferred without the consent of the treasury" thereby concluding wrongly that the restriction should have put the appellant on notice that the vendor's assets were charged and it had no title to pass.

7. The learned trial Judge misdirected herself after having rightly believed that the Minister of Transport and Communications had power to impose a restriction on the transfer of the vehicle when she disregarded the subsequent authority to a transfer of the lorry given by the same Minister.

8. The learned trial Judge erred in law and misdirected herself on the facts when she found that the only legal remedy which was available to the appellant was the repudiation of the sale agreement and to sue the vendor Ssezibwa Estates Limited for the return of the purchase price.

9. The learned trial Judge erred in law in finding that the respondent's failure to plead particulars of fraud was not fatal and she further erred to find that there was sufficient evidence on record on which the Court could safely make a finding that the transfer of the lorry into the names of the plaintiff was tainted with fraud.

10. The learned trial Judge erred in law and misdirected herself on the facts when she held that the appellant's claim for damages for non-use of his lorry was an item of claim for special damages which must be proved strictly and were not proved therefore no award was made and she erred in awarding an inadequate sum of UShs500 000 by way of general damages".

At the hearing of the appeal, ground number 10 was abandoned when it became clear to counsel for the appellant that the claim for special damages had to be strictly proved and which as the trial Judge had quite rightly pointed out, the appellant had not done. Regarding the remaining grounds counsel's submissions can be summarised thus:

"1. The appellant bought the lorry in good faith, unaware that it was incumbered;

2. The respondent, through their agent, the receiver, impounded the appellant's lorry unlawfully, refused to deliver it on demand and so were properly sued in detinue;

3. the floating charge on the lorry crystalised on 22 August 1990, when the receiver was appointed and the seizure effected the crystallisation did not affect the appellant's ownership arising out of the sale which had taken on 26 September 1989, when Ssezibwa Estates Limited had a valid title to pass to the appellant;

4. In law, Ssezibwa Estates Limited could sell off the lorry inspite of the covenants in the Debenture provided the sale was effected before the charge crystallised and the sale was done in the Company's normal course of business which was the case here;

5. The endorsement on the registration card did not necessarily put the appellant on notice that the vendor's assets were charged;

6. The Court erred in holding that the Treasury should not have given consent to transfer;

7. it is not true that the only legal remedy available to the appellant was for him to repudiate the sale agreement and sue Ssezibwa Estates Limited for the return of the purchase price and;

8. Particulars of fraud must be pleaded where fraud is relied on."

Did the appellant have a cause of action against the respondent? Under clause 6 of the debenture, the principal moneys and interest thereby secured would immediately become payable without demand if specified situations arose. Two such situations would be:

"(*a*) if the Company (Ssezibwa Estates Limited) committed or attempted or purported to commit any breach of any of the covenants contained in the debenture; and

(*b*) if the Company failed to pay any instalment of the principal or interest within fourteen days of the due date."

Clause 8 empowered the respondent to appoint a Receiver and Manager or Receivers and Managers for the purpose.

Clause 9 clearly provided that although the respondent would renumerate the Receiver or Receivers, the Receiver would be the agent of the debtor Company. This provision was a restatement of the well established principle as evidenced by several authorities such as *Gosling v Gaskell* [1897] AC 595; *Owen v Cronk* [1895] IOB 265; *Achelis (Kenya) Limited v Nazarali and Sons Limited and another* [1967] EA 382; *Household Centre Limited v Achelis (Kenya) Limited* [1967] EA 823; *George Baker Limited v Eyon* [1974] I AER 900 and *Re B Johnson and Company (Builders) Limited* [1955] Ch 634, that a Receiver is an agent of the debtor.

With respect the trial Judge was in my view quite right therefore in holding that as the Receiver was the Agent of the debtor company and not the respondent the right party to be sued would have been the debtor Company. This would have been in accordance with the principle that *qui facit per alium facit per se* (he who acts through another is deemed to act in person). It is trite law that a principal is liable for the acts of his agent.

In paragraph 7(vii) of their written statement of defence the respondent raised the issue of misjoinder, pointing out that the wrong party had been sued. It is not clear why counsel for the appellant made no effort to put the matter right, for example, by amending the plaint. Be that as it may, was the trial Judge right in refusing to step in under Order 1, rules 10(2) and (4) of the Civil Procedure Rules to correct the non-joinder?

Order 1, rules 10(2) and (4) states as follows:

"10 (2) The Court may at any stage of the Proceedings either upon or without the application of either party, and on such terms as may appear to the Court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the Court may be necessary in order to enable the Court effectually and completely to adjudicate upon and settle all questions involved in the suit, be added."

In my view Order 1, rule 10(2) gives the Court wide discretion in the matter. The Court may strike out or add parties. This is obviously necessary for the proper and fair determination of the matter raised in the suit. I cannot agree with the trial Judge's holdings that the power given to Court by Order 1, rule 10(2) does not include substitution of defendants. If rule 10(2) is read together with sub-rules 4 and 5, it will become very clear that substitution of defendants is permitted. They state as follows:

> "10 (4) Where a defendant is added or substituted, the plaint shall, unless the Court otherwise directs, be amended in such manner as may be necessary, and amended copies of the summons and of the plaint shall be served on the new defendant, and, if the Court thinks fit, on the original defendants.
>
> (5) For the purpose of limitation the proceedings as against any person added or substituted as defendant shall be deemed to have begun only on the service of the summons on him.
>
> 13. Any application to add or strike out or substitute a plaintiff or defendant may be made to the Court at any time before trial by motion or summons or at the trial of the suit in a summary manner."

The next question is whether the trial Judge's finding that the sale and transfer of the lorry was null and void was justified in law. There can be no doubt that Ssezibwa Estates Limited did not have the right to sell the lorry without the written consent of the respondent. The sale clearly contravened the covenant in clause 5(*j*) cited above. Under that clause even the proceeds of the sale had to be remitted to the respondent as part settlement of the outstanding loan. Here Ssezibwa Estates Limited sold the lorry and then pocketed the money or paid it to another creditor.

Counsel for the appellant did argue both here and in the High Court that the sale was in order because by the time it was perfected the floating charge had not crystallised. I cannot agree. It seems clear to me that the charge crystallised the moment there was default and a Receiver was appointed.

Another argument that was advanced by counsel for the appellant but which holds no water was that Ssezibwa Estates Limited properly sold the lorry in the normal course of its business. Reliance was put on the case of *Wheatley v Silustone and Company* [1885] 29 Ch 715. In that case a company created a floating charge in respect of its undertaking and subsequently created an equitable one in favour of the Bank. It was held by the Court that the mortgage to the plaintiff had priority over the debentures. North J held that the debenture was meant to be a general floating security over all the property of the Company as exists at the time when it is to be put in force but that it was not intended to prevent and does not prevent the carrying on of the business in the ways it is carried on in the normal cause of business.

But I think *Wheatley* (*supra*) is irrelevant to the case before us for two reasons. First, in that case the debenture was taken after a mortgage which is not the case here. Second, Ssezibwa Estates Limited; was not in the business of selling tracks and was not free to sell the lorry in question according to the debenture and fraudulently sold off the lorry to defeat the interest of the respondent which was bound to confiscate it in order to recover part of the loan.

Another argument was that the lorry was not specifically charged until a Receiver was appointed who seized it. According to counsel for the appellant, Ssezibwa Estates Limited was free to sell the residue of its property not specifically charged under the mortgage. I do not think there is merit in this argument because if it had merit then what is the use or purpose of a floating charge? What security is there if the debtor can sell his property at will?

The problem in this case is that even the purported consent to sale and transfer of the vehicle came after the lorry had long been sold. Yet the debenture went beyond what the Court said in *Wheatley* (*supra*) in that it required Ssezibwa Estates Limited to obtain the respondent's consent to sell and then surrender the purchase price to the respondent. Clearly this was a special case where the lorry was required for a special purpose and the Debenture contained special conditions of consent and payment of the proceeds of the sale of any of the debtor's property to the respondent. The situation here is different from that which obtained in *Wheatley* in my view.

As for the appellant, I think he did not act prudently in the matter. He was put on notice by the endorsement on the registration card. He was dealing with company assets and should therefore have ascertained from the registry of companies whether the company was free to sell its assets. He would then have seen the debenture. He took possession of the lorry and used it for over a year without transferring it into his names and effected the transfer only when he realised that he might lose the lorry. In the circumstances it cannot be said that he had bought the lorry in good faith. In any case he cannot claim a prior right to the respondent in equity when the respondent had a Debenture security which was not complied with.

I agree with the trial Judge's finding that the consent to transfer was misconceived. It was given retrospectively and in contravention of the respondent's Debenture and conditions put on the lorry by the government. As the trial Judge observed, it is astonishing that two Government Ministers purported to defeat the interests of the respondent and the government especially when the loan had been given at the instance of the government. I do not think that the government, or rather the Ministers were entitled to consent to transfer after the sale and after the respondent had foreclosed.

The acting Commissioner of Inland Revenue, Harison Bukenya (DW1) did not assist matters either. It was his evidence that before his Department registered the lorry in the names of the appellant on 19 September 1990, no one, not even the respondent, had claimed an interest in the lorry. Yet in cross-examination he admitted that counsel for the respondent had on 22 December 1989, written to him in the following terms:

> "*Re: Motor Vehicle Tata Lorry Registration number UPF 818*
>
> Reference is made to the above matter. We act for Barclays Bank of Uganda Limited who has requested us to write to you to register their interest in the above lorry by way of lodging a caveat to prevent any sort of transfer of the same.
>
> Our client granted Messrs Ssezibwa Estates Limited a loan of UShs3 125 000 and overdraft facilities of UShs14 893 491. Messrs Ssezibwa Estates Limited pledged the lorry to their creditors not being Barclays Bank who later highjacked and sold it of to recover what was owed to these creditors. The whole issue now is that our clients have an interest in the said Tata Lorry UPF 818 to the extent of the overdraft and loan facilities extended to Messrs Ssezibwa Estates Limited.
>
> Hoping our request meets with your consideration.
>
> Yours faithfully
>
> Mugerwa and Matovu."

The letter was received by DW1 on 25 January 1990. Now DW1 was a remarkable witness. In his evidence-in-chief he had stated that the vehicle was not registered in the normal way, it was allocated to the registered owner (Ssezibwa Estates Limited) by government with instructions that it was not to

be transferred without the consent of the Minister of Transport. Yet in cross-examination he had the guts to say:

> "I had no duty to show the Minister the letter of 22 December 1989."

In view of the foregoing I am of the view that the trial Judge was right in holding that both the purported sale of the lorry was fraudulent and that the transfer was of no effect since Ssezibwa Estates Limited had no title in the lorry to pass to the appellant. The basis of the trial Judge's decision was largely that the wrong party had been sued and that the debenture precluded Messrs Ssezibwa Estates Limited from selling the lorry without the consent of the respondent. Breach of covenants vitiated the sale.

It is also true, as the trial Judge held, that fraud also vitiates the sale. But I think there is merit in ground nine of appeal that the trial Judge misdirected herself on the law at the point when she said:

> "It was argued quite rightly in my view by Mr Bwanika (counsel for plaintiff/appellant) that the defendant did not give particulars of fraud. But the question is whether there was prejudice. It was held in the case of *Dhanji Ramji v Rambhai and Company (Uganda) Limited* [1970] EA 515 that failure to plead was an irregularity but was not such an irregularity which can affect the merits of the case. In the instant case, the defendant's failure to give particulars of fraud is not fatal since there is sufficient evidence on record on which the Court can safely make a finding that transfer of the lorry into the names of the plaintiff was tainted with fraud."

With respect *Dhanji* (*supra*) is not relevant here. Fraud was not in issue in that case where the respondent sued the appellant and another person as partners. The appellant denied that he was a partner in the firm where he worked with his co-defendant. Invoking section 40 of the Partnership Act, the trial Judge held that there was evidence showing apparent partnership. On appeal the Court of Appeal for East Africa held that failure to plead facts justifying the application of section 40(1) of the Act was a serious irregularity, but on which was cured by the fact that during the hearing the question whether there was apparent partnership was fully convassed and that in any case the irregularity did not affect the merits of the case. As far as fraud is concerned the requirement to plead the particulars of the alleged fraud is, as was pointed out by this Court in *Okello v Uganda National Examination Board* civil appeal number 12 of 1987.

This principle is embodied in Order 6, rule 2 of the Civil Procedure Rules which reads:

> "In all cases in which the party pleading relies on any misrepresentation, fraud breach of trust, wilful default or undue influence, and in all cases in which particulars may be necessary such particulars with dates shall be stated in the pleadings."

The above rule is mandatory. To my mind failure to plead and particularise fraud is a fundamental defect and not an irregularity curable by evidence or otherwise. Fraud must be pleaded and proved. The trial Judge clearly misdirected herself on the point. Had the appellant's case been dismissed solely on grounds of fraud this appeal would have succeeded.

Finally, I come to the question whether the trial Judge was right in holding that the only remedy available to the appellant was to repudiate the sale agreement and sue Ssezibwa Estates Limited for refund of the purchase price. I do not find it necessary to answer the question which was made obiter. It must be left to the appellant to decide what course of action to adopt. Clearly even if the judge was wrong on the point, that would not give the appellant the right to sue the respondent in my opinion.

For the reasons I have given I would dismiss this appeal with costs here and in the lower Court. As Platt JSC and Seaton JSC also agree it is so ordered.

Seaton JSC: The question we have to decide is whether the debenture before us which is in fact a debenture of a limited liability company, and which created a charge on all the company's assets, had crystallised with the appointment of a receiver of the company's assets so that the purported sale of the company's lorry UPF 818 was void.

The assets of the company fall under two heads. Insofar as concerns the immovable property, the debenture constituted a fixed charge in favour of the debenture holder, the respondent Bank. But the position with regard to all other property thereby charged the position was different. With respect to them the debenture created a floating charge.

According to clause 5 of the debenture, the company was not to alienate, transfer or part with the possession of any of the property and assets thereby charged or covenanted to be mortgaged or charged, without the consent in writing of the Bank first had and obtained and then only upon the condition that the consideration received by the company in connection with the alienation or parting with possession would be remitted to the Bank in reduction of the amount for the time being owing under the debenture.

The charge created by the debenture was in security for UShs15.5 million, being as to UShs8 million overdraft facilities and as to UShs7.5 million a loan for buying a Tata lorry. This lorry was of a special kind brought in by the government to help mainly farmers and which the government had asked all Commercial Banks who were able to assist farmers to purchase.

Upon instructions from the government a restriction was placed by the Revenue Department upon any transfer of the lorry UPF 818 without the consent of the Minister of Transport. This restriction placed on its registration (log book).

The debenture had been executed on 11 October 1982. It was registered with the Registrar of Companies on the same day. The company duly acquired and used the lorry in its agricultural business. By September 1989 it had defaulted in payment of the loan covered by the debenture. On 11 December 1989 a letter of demand of payment was sent by the Bank's lawyers to the Company. On 22 December 1989 the Bank through its lawyers wrote to the Registrar of motor vehicles requesting that a caveat be lodged against any transfer of the lorry to protect their interest in it.

By a sale agreement dated 26 September 1989 the company purportedly sold the lorry to the appellant for UShs11 million. A transfer form signed by the company was handed to the appellant together with the log book. The appellant used the lorry transporting for gain.

On 20 August 1990 a receiver was appointed of the company's assets by the Bank. On 22 August 1990 the lorry UPF 818 was impounded by traffic policemen on the Bank's instruction. On 21 September l990 the lorry was advertised for sale by public auction to be held on 4 October 1990, unless the company paid in full UShs28 million. This was then amount owing, including interest plus fees, costs and expenses.

It appears that the sale by auction never occurred. By the time of trial the lorry remained parked in the Bank's courtyard. It is now contended on behalf of the appellant that a floating charge crystallises when the receiver is appointed under the debenture; at the time the plaintiff bought the lorry the debenture was still floating; the company were at 1iberty therefore to sell it.

If there had been nothing more in this case than a charge covering the lorry sold prior to the appointment of a receiver, and I only had to determine whether or not the company had liberty to sell, I should have had to determine according to well-known principles that a debenture such as this in the present case does not cease to be a floating security until the company had been wound up, or stops business, or a receiver had been appointed at the instance of the debenture holder. It would follow that, even if there had been default in payment of the obligations secured by such debenture, the company could deal with its property in the ordinary course of business until the company had been wound up, or a receiver had been appointed.

In the present case, however, there are other factors. Here there was a purported sale, prior in date to the appointment of the receiver. But it was contrary to an express stipulation in the debenture that there should be no alienation, transfer or parting with possession of any of the company's property without the written consent of the debenture holder. There was a purported transfer and substitution of the company's name on the registration (log) book by the appellant's. But there was a restriction against any transfer without consent of the Minister.

Under the circumstances it is necessary for me to consider the other contentions raised by the appellant – these are, that he is *bona fide* purchaser for value as he had no knowledge of anything party's interest in the lorry, and that Ministerial consent was in fact given.

The statement of facts in the pleadings was not perhaps as clear nor the evidence as comprehensive as might have been expected. But the learned trial Judge in a reserved judgment found that given the above-mentioned restrictions, the company could not sell off the lorry in the ordinary course of business in good faith. She went on to state (at 16 of the judgment) that:

> "…The plaintiff's position is no better. The restriction in the registration book should have put him on notice. A search in Registry of Motor Vehicles and that of Companies would have revealed to a prudent man that the assets of Ssezibwa Estates Limited were charged and that it had no title to pass a better title than he himself possesses. Apparently no search appears to have been done."

The learned Judge then referred to the ministerial consent to the transfer which was eventually given on 7 September 1990 after representations had been made to him by the appellant's counsel Mr H *Kayondo*, to the effect that the company had gone into liquidation, its directors were had to trace and he (counsel) had given a personal guarantee. The judge found the Minister's action, in total disregard of the Bank's claim to be "quite astonishing".

The question of fraud was then considered. The learned Judge found that counsel for the Bank had raised the issue but had failed to give any particulars. This failure was held to be immaterial, the question being whether there was prejudice:

> "…It was held in the case of *Dhanji Ramji v Rambhai and Company (Uganda) Limited* [1970] EA 515 that failure to plead was an irregularity but was not such as irregularity which can affect the merits of the case. In the instant case, the defendant's failure to give particulars of fraud is not fatal since there is sufficient evidence or record on which the Court can safely make a finding that the transfer of the lorry was tainted with fraud. The purported transfer of' the lorry was, to all intents and purpose void. The plaintiff has no protection under section 24 of the Sale of Goods Act." (at pp 16-17 of the judgment)."

With the learned Judge's view as to the failure to give particulars of fraud, I would with respect disagree. In the instant case, fraud was of the essence of the issues and the failure of the Bank to give particulars of the alleged fraud was more than an irregularity. This error of misdirection, however, does not in my view invalidate, the judge's findings on the two main issues; that the appellant was not the rightful owner of the Tata Lorry UPF 818 and the transfer from the company was not valid.

As to the remaining issues, the learned trial Judge held that:

> "…the only legal remedy which was available to the plaintiff was the repudiation of the sale agreement and to sue Ssezibwa Estate's Limited for the return of the purchase price."

With this holding I would, with respect agree. A pre-requisite to any action in detinue is the plaintiff's superior right to posses as against the defendant's. In the instant case, the Bank had the superior right as the plaintiff's title to possess was based on an invalid sale.

It follows that the appellants claim against the Bank for general and special damages, was rightly dismissed, by the learned Judge.

I would therefore dismiss this appeal with costs to the respondent Bank in the appeal and in the Court below.

Platt JSC concurred in the judgment of Manyindo DCJ and Seaton JSC.

For the appellant:
Mr H Kayondo

For the respondent:
Information not available

Makumbi and another v Sole Electrics (U) Ltd
[1990–1994] 1 EA 306 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	19 May 1994
Case Number:	11/94
Before:	Manyindo DCJ
Sourced by:	LawAfrica

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[1] Taxation of costs – Guiding principles – When the Commercial Transaction Levy becomes payable.

Editor's Summary

The applicants made a reference to court from the decision of the taxing master. The respondent had filed a certain declaratory suit against the applicants. The second applicant, then applied for an order striking out the plaint on the ground that it disclosed no cause of action against them. The application succeeded in part but the rest of the action remained.

The respondent appealed against the order striking out part of the action. Counsel for the applicants concealed the crucial point that the trial Judge had based his decision on a point not raised by the applicants. The case was remanded to the High Court for the main suit to be heard on its merits. The

respondent was awarded costs of the appeal when the respondents; bill of costs was lodged. The taxing master taxed the fees and disbursements, including the Commercial Transaction Levy at UShs13 854 000 hence this reference.

Held – The principles governing taxation of costs by a taxation master are the following:

(*a*) The instruction fee should cover the advocates' work, including taking instructions as well as other work necessary for presenting the case for trial or appeal, as the case may be.

(*b*) There is no legal requirement for awarding the appellant a higher brief fee than the respondent, but it would be proper to award the appellant's counsel a slightly higher fee since he or she has the responsibility to advise his or her client to challenge the decision.

(*c*) There is no mathematical or magic formula to be used by the taxing master to arrive at a precise figure. Each case has to be decided on its own merit and circumstances.

(*d*) The amount of the subject matter involved may have a bearing.

(*e*) The taxing master has discretion in the matter of taxation but must exercise the discretion judicially and not whimsically.

(*f*) While a successful litigant should be fully reimbursed the costs he has incurred, the taxing master owes it to the public to ensure that costs do not rise above a reasonable level so as to deny the poor access to court. However, the level of remuneration must be such as to attract worth recruits to the profession.

(*g*) So far as practicable, there should be consistency in the award made.

As a matter of principle, an appellate court will not interfere with an assessment of costs by a taxing master, unless he has misdirected himself in a matter on principle, but if the quantum of an assessment is manifestly extravagant, a misdirection of principle may be a necessary inference. *Steel Construction and Petroleum Engineering Ltd v Uganda Sugar Factory* [1970] EA 141 followed.

The mere production of a long list of authorities does not necessarily mean that there was protracted research by counsel.

A successful party should have the costs of a case regardless of whether the costs will be recovered.

An advocate should not be reimbursed for what he has not spent. If the Commercial Transaction Levy has not been paid at the time of taxation then taxation of that item should be deferred until the Commercial Transaction Levy is paid and receipts issued.

Reference allowed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Attorney-General v Uganda Blanket Manufacturers Supreme Court civil application number 17 of 1993 (UR)

Hashjam v Zanab [1957] EA 255

Kabanda v Kananura Melvin Consulting Engineers Supreme Court civil application number 24 of 1993 (UR)

Nalumansi v Lule Supreme Court of Uganda civil application number 12 of 1992 (UR)

Raichand v Quarry Services of East Africa Limited and others [1972] EA 162

Steel Construction and Petroleum Engineering (EA) Limited v Uganda Sugar Factory Limited [1970] EA 141 – **F**

Ruling

Manyindo DCJ: This is a reference to me as a single judge under rule 109(2) of the rules of this Court from the decision of the taxing master in civil appeal number 28 of 1992, in which costs in the sum of UShs13 854 000 were awarded to the respondent against the applicants jointly and severally.

The relevant facts of the case are as follows. The respondent company entered into a tenancy agreement with Kampala City Council in respect of the latter's property (the suit premises) situate on plot number 5A Nasser road, Kampala. That was on 1 January 1988. The respondent took possession of the suit premises and are still in occupation of same. On 27 February 1991, Kampala City Council advertised the suit premises for sale to the public by tender. The second applicant and the respondent company were some of the bidders. The second applicant was declared the successful bidder.

The respondent company was not satisfied with the result. They claimed that the first applicant, Mr Makumbi, who was at the time the Kampala City Council town clerk, had colluded with the second applicant, and rigged the sale. But he (Makumbi) was sued in his personal capacity. They complained to the inspector general of government who investigated their complaint and found it to he genuine. He recommended that the tender award be rescinded and the suit property be re-advertised for sale. It seems that the recommendation was not accepted because on 23 May 1992, the respondent was served with a notice to vacate the premises, within forty-eight hours.

The respondent immediately filed a suit in the High Court, seeking for a declaration, that the purported sale and purchase of the suit property by the applicants was "illegal, null and void," and for an order of rescission. The respondent company also sought a declaration that it was still, the lawful tenant in the property and an injunction restraining the second applicant from evicting the respondent company from the suit property.

The second applicant then applied, under Order 6, rule 29 of the Civil Procedure Rules, for an order striking out the plaint on the ground that it disclosed no cause of action against them. The application succeeded in part – that part of the plaint relating to the bidding was struck out but the rest of the action remained.

The respondent company appealed to this Court against the order striking out part of the action. When the appeal came up for hearing counsel for the applicants conceded the crucial point that the trial Judge had based his decision on a point not raised by the applicants. The appeal ended there and then, with an order that the matter be taken back to the High Court for the main suit to be heard on its merits.

The respondent company was awarded costs of the appeal. The respondent's Bill of costs was lodged in the Registry for taxation on 30 July 1993. The advocate's fees plus disbursements came to UShs34 395 500 plus Commercial Transaction Levy (CTL) of UShs5 159 325 (at 15% of the advocate's taking). The grand total was therefore UShs39 554 825.

After hearing counsel for the parties the taxing master taxed the fees and disbursements including Commercial Transaction Levy at UShs13 854 000. Hence this appeals. The memorandum of the reference was drawn and filed by Mr *Sendege*, counsel for the first applicant. At the hearing of the reference Mr *Womutuba* counsel for the second applicant adopted the first applicant's memorandum with leave of Mr *Sendege*.

There are five grounds of the reference namely:

"1. The instruction fees awarded by the Registrar was manifestly excessive in view of the subject matter of the appeal, the station in life of the first applicant and the fact that the appellants action against the first applicant had not been struck out.

2. The registrar erred in law and principle in awarding the sum of UShsl2 million as instruction fees in view of the nature of the appeal.

3. The taxing master erred in law and principal in awarding a figure of UShs1 800 000 as commercial transactions levy to the appellant.

4. The taxing master failed to appreciate and give us due consideration to the fact that the first applicant (Patrick Makumbi) is a poor civil servant getting a very miserable salary.

5. The taxing master failed to appreciate and give us due consideration to the fact that the appeal was against an interlocutory matter which had not disposed of the plaintiff's claim against the applicants".

Where the applicant prays:

"(*a*) That his Lordship be pleased to make such deduction as will be necessary to make the award reasonable and commensurate with the subject matter of the appeal.

(*b*) That the applicant be allowed to pay off the final figure after reference by installments of about UShs20 000 per month till payment in full.

(*c*) That the costs of this reference may be paid by the respondent".

Both counsel abandoned prayer (*b*) at the hearing of the reference.

The only items questioned before me were the instruction fee of UShs12 million and Commercial Transaction Levy of UShs1 800 000. The applicants contended that the instruction fee was grossly excessive given the fact that the appeal was against an interlocutory order which had not disposed of the whole suit and that the appeal rested on a straight forward point of law which was easily conceded by the applicants thereby bringing the appeal to an early end. The appeal was disposed of within about thirty minutes - this much was conceded by the parties. This is the complaint in grounds one, two and five. For the first applicant it was also submitted that the taxing master should have taken into account the fact that the man was a poor Civil Servant who depends on a salary of UShs15 000 per month.

With regard to Commercial Transaction Levy, counsel for the applicants contended that that tax can only be awarded to the advocate of the successful party as a disbursement or to his client, on proof of payment. It was therefore wrong for the taxing master to award the refund of Commercial Transaction Levy before the tax had been paid.

On the other hand counsel for the respondent submitted that there was no merit in the application as the applicants had not shown that the instruction fee awarded was manifestly excessive or that the taxing master applied wrong principle in terms of rule 109(2) of the rules of this Court. He also contended, that the appeal was complex and required a lot of research, hence the long list of authorities which counsel prepared and filed in Court. He argued that the appeal was not on an interlocutory order but on a final order. He pointed out the fact that in absence of a scale of costs in the Supreme Court (unlike in the High Court) the taxing master has wide discretion in the matter. It had not been shown that he had exercised that discretion wrongly. He pointed out that the value of the property was put differently by the parties, ranging from UShs70 million to UShs439 million.

As for the Commercial Transaction Levy the learned counsel argued that it has been the practice of the taxing master to allow the statutory 15% levy before the tax is paid because the client usually pays a small deposit on account of instruction fee. The balance is recovered from the losing party at the end of the case. So the requirement for the production of receipts on taxation cannot be met before the case has been brought to an end.

In his ruling the Taxing master observed that the matter of the instruction fee was not easy, adding:

> "In the first place, the nature of the appeal, presents a number of problems. The appeal was on an interlocutory order. It did not in any way dispose of the main suit. In a way these are thrown away costs. But then what is the effect of the order allowing the appeal? The appellants are sitting tenants. The property was advertised for sale. They did bid but there are apparent anomalies and/or alleged frauds. If this Court had confirmed the decision striking out the action, then the appellant's chances of bidding for the property would be all gone. The appeal therefore was of paramount interest to the appellant.
>
> Counsel for the appellant did tremendous research as demonstrated by the list of authorities. Costs are awarded for preparing and conducting the appea1. All the preparations were done, the appeal cause – listed, the hearing commenced although adjourned to sort out some preliminary issues hearing resumed until counsel for the respondent conceded to the appeal. If a party wants to save on costs, notice should be given to the other party in time for him not to waste time doing research and preparing. Conceding the appeal saved just a small portion of the costs."

He then went on to state that the value of the property was important and that although the appeal did not dispose of the suit, the respondent would, have lost their chance to bid for the second time had their appeal failed. It was for that reason that he thought that an instruction fee of UShs12 million was reasonable.

The principles governing taxation of costs by a taxing master are well settled. First, the instruction fee should cover the advocates' work, including taking instructions as well as other work necessary for presenting the case for trial or appeal, as the case may be. Second, there is no legal requirement for awarding the appellant a higher brief fee than the respondent, but it would be proper to award the appellant's counsel a slightly higher fee since he or she has the responsibility to advise his or her client to challenge the decision. Third, there is no mathematical or magic formula to be used by the taxing master to arrive at a precise figure. Each case has to be decided on its own merit and circumstances. For example, a lengthy or complicated case involving lengthy preparations and research will attract high fees.

In a fourth, variable decree, the amount of the subject matter involved may have a bearing.

Fifth, the taxing master has discretion in the matter of taxation but he must exercise the discretion judicially and not whimsically. Sixth, while a successful litigant should be fairly reimbursed the costs he has incurred, the taxing master owes it to the public to ensure that costs do not rise above a reasonable level so as to deny the poor access to Court.

However, the level of remuneration must be such as to attract recruits to the profession. Seventh, so far as practicable there should be consistency in the awards made. See *Raichand v Quarry Services of East Africa Limited and others* [1972] EA 162, *Nalumansi v Lule* Supreme Court of Uganda civil application number 12 of 1992 (UR), *Hashjam v Zanab* [1957] EA 255 and *Kabanda v Kananura Melvin Consulting Engineers* Supreme Court civil application number 24 of 1993 (UR).

As far as an appellate Court is concerned the following two principles apply upon a review of taxation. First, an appellate Court will not interfere with an assessment of costs by a taxing master, unless he has misdirected himself in a matter on principle, but if the quantum of an assessment is manifestly extravagant, a misdirection of principle may be a necessary inference. See *Steel Construction and Petroleum Engineering (EA) Limited v Uganda Sugar Factory Limited* [1970] EA 141, *Kabanda v Kananura Melvin Consulting Engineers* (*supra*) and *Attorney-General v Uganda Blanket Manufacturers* Supreme Court civil application number 17 of 1993 (UR).

In the case before me it is clear that the respondent's appeal was against an interlocutory order and that it succeeded on a point of law, which was easily conceded by the applicants.

With respect to the taxing master, I am of the view that the value of the suit property was immaterial since the respondent company was not claiming a proprietory interest but the right to bid again for the property. It was not even certain that their second bid would succeed. I cannot agree that the mere production of a long list of authorities means that there was protracted research by counsel. It is possible to find any authorities in just one case. Grounds one, two and five must succeed.

I agree with counsel for the applicants that as the appeal was conceded in a matter of minutes, the taxing master was not entitled to award the instruction fee of UShs12 million. It is manifestly excessive. Clearly there was a misdirection of principles. It should be reduced. I reduce it to UShs2 million.

I see no merit in the ground that the taxing master should have taken into account the financial status of the first applicant since no evidence was led to prove that he was incapable of paying the costs. In any case that would not be a matter for consideration by the taxing master. It is trite law that a successful party should have the costs of the case. Whether or not the costs will be recovered is another matter. In the instant case the respondent's burden was easy since he could recover the costs from one of the applicants or both. There is no merit in ground four.

There remains the master of the Commercial Transaction Levy. This tax is governed by Finance Decree number 14 of 1972. Section 1(1) of that Decree imposes the levy. advocates are liable to pay the tax from the professional fees

they charge for legal service they render to their clients. Section 2(3) of the Decree allows sellers or performers of services to pass the Commercial Transaction Levy to their customers or clients, provided the amount of the levy charged is recorded on the relevant document provided by the tax authority.

This tax can only he awarded to the advocate as disbursement. It can also be awarded to his successful client but only on proof of payment. Paragraph 4 of the taxation of costs rules of this Court clearly provides that disbursement shall be shown separately at the foot of the Bill of Costs and that receipts must be tendered at the time of taxation.

In this case the Commercial Transaction Levy of UShs1 800 000 was claimed by the advocate for the respondent as a disbursement and it was allowed as such by the taxing master. That was wrong, for an advocate should not be reimbursed for what he has not spent. This much was conceded by counsel for the respondent. In my judgment if the Commercial Transaction Levy has not been paid at the time of taxation then taxation of that item should be deferred until the Commercial Transaction Levy is paid and receipts issued. There is thus merit in ground three of the reference.

The award is set aside. The item may be presented again for taxation at an appropriate time.

In the result the reference is allowed to the extent that the instruction fee is reduced to UShs2 million and the award of UShs1 800 000 as Commercial Transaction Levy set aside. As the reference has succeeded substantially I award the applicants three quarters of the costs of this reference.

For the first applicant
Mr Sendege

For the second applicant
Mr Womutuba

For the respondent:
Information not available

Maritim and another v Anjere
[1990–1994] 1 EA 312 (CAT)

Division:	Court of Appeal of Tanzania at Dodoma
Date of judgment:	20 February 1992
Case Number:	73/91
Before:	Ramadhani, Mnzavas and Mapigano AJA
Sourced by:	LawAfrica

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[1] Damages – General and special damages – Quantum – Extent of physical injuries and loss of "mental acuity" minor – Special damages not pleaded – Whether general damages should be reduced – Whether special damages can be awarded if unpleaded though proved.

[2] Tort – Negligence – Liability of motor vehicle accident – Claimant alleging offending motor vehicle rolled back on hill and rammed into his vehicle – No rebuttal oral evidence by appellant, save

for document – Whether oral evidence is to be preferred over written evidence – Whether appellant was liable.

Editor's Summary

The appellant was the respondent in the trial Court. He was sued for damages resulting from a motor vehicle accident. The respondent testified that the appellant's lorry moved backwards on a steep incline and rammed into the respondent's vehicle. The respondent was awarded general damages for pain and suffering and also damages for loss of motor vehicle, loss of user, cost of car hire, hospital and medical care and future medical care.

The appellant appealed, arguing that no special damages had been pleaded and hence none should have been awarded. Further the appellant argued that the evidence of liability was contradicted by a letter by the respondent in which they gave a different explanation for how the accident happened.

Held – The judgment on liability could not be successfully challenged. Documentary evidence on liability is not to be preferred to oral evidence, particularly when there is no difficulty in calling the witnesses. Since the appellant did not come to court to give his version of how the accident happened, the trial Judge was perfectly entitled to accept the version of the respondent.

The award of KShs 1 million for pain, suffering and loss of amenities was purportedly for three broken ribs and loss of mental acuity. The evidence contradicts this and suggests that the actual injury suffered was extremely minor, like swollen right leg and face. The general damages would therefore be reduced to KShs 50 000.

The only sums pleaded as special damages were for loss of motor vehicle. Other awards for loss of user, cost of car hire, hospital bills and future medical care were not pleaded at all and were accordingly not awardable. Special damages must be pleaded and specifically proved. *Sande v Kenya Cooperative Creameries Ltd* [1992] LLR 314 (CAK), *Eldama Ravine Distributors Ltd v Benson Chebon* civil appeal number 22 of 1991, *Coast Bus Services Ltd v Danyi and others* [1992] LLR 318 (CAK) followed.

Appeal allowed in part.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Coast Bus Services Ltd v Danyi and others [1992] LLR 318 (CAK) – **F**

Eldama Ravine Distributors Ltd and another v Chebon civil appeal number 22 of 1991 (UR) – **F**

Sande v Kenya Cooperative Creameries Ltd [1992] LLR 314 (CAK) – **F**

Judgment

Muli, Omolo And Tunoi JJA: On the 23 August 1990, Benson Owenga Anjere, the respondent herein, instituted in the Principal Magistrate's Court at Sheria House civil case number 6204 of 1990 against William Kiplangat Maritim, the first appellant, and United Millers Limited, the second appellant. In his plaint dated the 20 July 1990, the respondent alleged that the first appellant was, at the time or times relevant to his claim, an employee of the second appellant,

that the second appellant owned motor vehicle registration number KZY 954 while the respondent himself owned motor vehicle registration number KNC 414, a Peugeot 404 station wagon, that on or about the 18 December 1989 at about 7pm, the first appellant, in his capacity as an employee of the second appellant and in the course of his employment with the second appellant so negligently drove the second appellant's said motor vehicle along Naivasha-Nakuru Road that he caused the said vehicle to collide with the respondent's motor vehicle which was also being driven along the same road by the respondent's authorised driver. The respondent set out the particulars of negligence he was alleging against the two appellants, and having done so he averred that as a result of the collision, he had sustained bodily injury and had also suffered loss and damage. The respondent set out the particulars of negligence he was alleging against the two appellants, and having done so he averred that as a result of the collision, he had sustained bodily injury and had also suffered loss and damage. The respondent claimed general damages for bodily injury and he also claimed special damages which were itemised as:

1. Total loss of motor vehicle KNC 414 – KShs 35 000.
2. Towing charges and various travelling charges (continues to incurring the same).
3. Police abstract report – KShs 110.
4. Assessor's report – KShs 800.
5. Lost Rado watch, spare wheels and spanners – KShs 43 500.

There were also claims for loss of use of the motor vehicle, money paid for medical reports but all these amounts were not specified in the plaint. The appellants filed a joint defense in which the admitted the occurrence of the accident on the 18 December 1989, (paragraph 4) but they specifically denied that they were negligent as alleged or at all and they in turn alleged that the accident was caused solely or was contributed to by the negligence of the respondent. The other allegation in the plaint were denied.

The next step in the proceeding is that by miscellaneous civil application number 735 of 1991 filed in the High Court on the 11 November 1991, the respondent asked the High Court to transfer to itself the case which he had filed in the Court of the Principal Magistrate, Sheria House, The High Court, by an order dated the same 11 November 1991 transferred the case to itself. The case was eventually heard by Msagha-Mbogholi, J between the 16 June 1992 and the 2 December 1992, and in a reserved judgment dated and delivered on the 16 February 1993, the learned Judge awarded to the respondent a total of KShs 2 796 301 as general damages made up as follows:

1. General damages for pain, suffering and loss of amenities	KShs 1 000 000
2. Loss of motor vehicle	KShs 42 000
3. Loss of user	KShs 936 000
4. Cost of car hire	KShs 216 470
5. Hospital/Medical Bills	KShs 251 286
6. Future Medical Care	KShs 300 000
7. Damages	KShs 50 545
Total	KShs 2 796 301

The appeal for the two appellants is against both liability and quantum of the damages awarded.

On the issue of liability, we do not think the judgment of the learned Judge can successfully be challenged. On that aspect of the matter, the respondent himself his driver Benson Mwaka Mbithi (PW3) and Raphael Atanda (PW4), all of whom were in the vehicle at the time of the accident, explained the circumstances in which the accident occurred. The effect of the evidence of the respondent who was sitting next to the driver himself was that the vehicle of the respondent was following that of the second appellant, which was going over some steep incline. For some unexplained reason, the vehicle of the second appellant started to move backwards and it came and rammed into that of the second appellant's vehicle. The appellants, on the other hand, did not call any evidence to explain how the accident had occurred. Instead, they chose to rely on some letter written to them by the respondent and the appellants alleged the accident happened in the manner explained by the respondent in the said letter. It must be understood that documentary evidence is not to be preferred over evidence of witnesses, particularly where there is no difficulty in calling the witnesses. The first appellant had been driving the second appellant's vehicle at the time of the accident; the first appellant himself was sued and negligence was primarily alleged against him. He did not come to court to give his version on how the accident had occurred. In the circumstances, the learned Judge was perfectly entitled to accept the version proved by acceptable evidence before the judge. There is no merit in the appeal as respects liability and that aspect of the appeal must fail.

That now brings us to the aspect of the appeal concerning the award of damages, both special and general. We have already said that the respondent was awarded KShs 1 000 000 as general damages for pain suffering and loss of amenities. What injuries did the respondent sustain to warrant that huge award? According to the respondent, he sustained three broken ribs and he also lost his mental acuity, whatever that may mean, which was his only remaining bodily asset as at the time of the accident. This is how a good place for us to say that the respondent had been involved in another accident in 1979, ten years before the accident we are considering, and as a result of the 1979 accident he had been paralysed and was confined to a wheel-chair. Mr *Oyatsi* for the appellants contended before us that the respondent did not suffer any bodily injury as a result of the second accident. For our part, we have no difficulty, whatsoever in coming to the conclusion that, if the respondent suffered any injuries during the second accident, those injuries were extremely minor. The respondent was travelling to his home in Western Province when the accident took place. The police were called to the scene of the accident and the respondent himself produced the police abstract on the accident. It shows that no person was injured during the accident. We are unable to subscribe to the view that the respondent had three fractured ribs and yet the police would still say no one had been injured.

Again, following the accident, the respondent and his party travelled back to Nairobi and according to the evidence they went straight to the Kenyatta National Hospital and the respondent was there and then admitted. At 96 of the record is another document produced by the respondent himself (exhibit 11) and which is headed:

> "Private hire services for Benson Owenga Anjere following the disabling of his motor vehicle registration KNC 414 in a road accident on 18 December 1989."

The first entry on the document is the claim for KShs 4 000 which the respondent was charged by "Wepesi" from Naivasha to Nairobi. The next date is 19 December 1989 and again 21 December 1989 when the respondent hired vehicles to transport him from Kenyatta to Buru Buru Estate and from Buru Buru Estate to Kenyatta respectively. What those entries must mean is that if the respondent was admitted in Kenyatta National Hospital on the 18 December, then he was discharged on the 19 December hired a vehicle for KShs 300 to take him to his house at Buru Buru Estate and he did not find any need to go back to the hospital until the 21 December when he again hired a vehicle for KShs 300 to take him back. Then on the 26 December 1989, the respondent hired a vehicle for KShs 18 000 and he traveled from Nairobi to Western Province and he did not return to Nairobi until the 30 December 1989. On the 31 December he again hired a vehicle from Buru Buru to Kenyatta. We ask ourselves; how could it be possible that this already paralysed respondent with three fractured ribs inside his body, be able to make the numerous journeys even to Western Kenya? We have no doubt whatsoever that the respondent never suffered any such injuries and documents (such as exhibit 11) were made up for the purpose of defrauding the appellants. Even the police officer who saw him immediately after the accident did not see any serious injuries on him apart from the face and a swollen right leg. The respondent used to be an insurance executive before the accident of 1979. It is obvious to us, and this is unfortunate, that the respondent was taking advantage of the injuries he had sustained in 1979 to enable him to get further compensation from the insurance company which had issued the policy in respect of the second appellant's vehicle. We are surprised the learned Judge was taken in by the fraud.

The respondent however, suffered some slight injury like swollen right leg and face. On the question of his mental acuity, we need only to point out, as Mr *Oyatsi* rightly pointed out to us, that the respondent himself wrote the demand letter that he instituted the suit himself, conducted the complicated litigation in the High Court by himself and at the end of it all, wrote out detailed submissions to the judge. We are unable to discern any loss of mental acuity in all these, irrespective of what the medical reports produced purported to show. With respect to the learned Judge, he was wrong in awarding the respondent the sum of KShs 1 000 000 for paid suffering and loss of amenities. We reduce that sum to KShs 50 000 bearing in mind that the respondent must have suffered some pain and discomfort as a result of the accident.

On special damages, the only sums pleaded were KShs 35 000 for loss of the vehicle itself, KShs 110 paid for police abstract, KShs 800 paid to the assessors and KShs 43 500 claimed for the lost Rado watch, spare wheels and spanners. The judge awarded only KShs 50 545 as special damages, which must mean that was the sum which he found proved before him. There is no cross-appeal against that award and we shall not interfere with it.

The other awards namely KShs 936 000 for loss of user KShs 216 470 for cost of car hire, KShs 251 470 for hospital bills and KShs 300 000 for future loss suffered by the respondent, were not pleaded at all and are accordingly not awardable. In this regard, we can only refer to this Court's decision in *Sande v Kenya Cooperative Creameries Ltd Civil Appeal Number 154 (UR)* [1992] LLR 314 (CAK). We would repeat what we said there:

> "As we pointed out at the beginning of this judgment Mr Lakha readily agreed that these sums constituting the total amount were in the nature of special damages. They

> were not pleaded. It is now trite Law that special damages must not only be pleaded but must also be specifically proved. We do not think we need to cite any authority for this simple and hackneyed proposition of law."

We can find nothing to add to that. In respect of Mr *Lakha*'s submissions in *Sande*'s case (*supra*) to the effect that the evidence regarding special damages had been given without any objection, that the respondent had been cross-examined on it, and submissions had been made thereon, the Court said and we quote:

> "There is no doubt from the record that all the matters listed in this ground of appeal did take place before the judge and the question that we must answer is whether in the circumstances of the case they can be taken to excuse the appellant's failure to comply with the well- settled and mandatory requirements of the law that special damages must be pleaded and must be specifically proved."

The court then referred to its two previous decisions particularly that of *Eldama Ravine Distributors Ltd and another v Benson Kipruto Chebon* civil appeal number 22 of 1991 (UR) and cited this passage from the judgment of Cockar JA:

> "In this case, the claim for transport expenses which is a claim for special damages has not been pleaded at all in the plaint. Unfortunately the respondent was not represented by an advocate during the trial before the superior Court which fact would perhaps explain why evidence relating to a claim for special damages which had not been pleaded was allowed to be introduced and accepted in evidence. In my view, the award of KShs 14 000 by way of transport charges must be disallowed."

The court then referred to its other decisions in *Coast Bus Services Ltd v Danyi and others Civil Appeal No 192* [1992] LLR 318 (CAK) and quoted therefrom this passage:

> "We would restate the position. Special damages must be pleaded with as much particularity as circumstances permit and in this connection, it is not enough to simply aver in the plaint as was done in this case, that the particulars of special damages were to be supplied at the time of trial. If at the time of filling the suit, the particulars of the special damages are not known, then those particulars can only be supplied at the time of trial by amending the plaint to include the particulars which were previously missing. It is only when the particulars of the special damages are pleaded in the plaint that a claimant will be allowed to proceed to the strict proof of those particulars …"

Having cited these authorities in the *Sande*'s case, the Court then concluded:

> "We can find no reason to make us depart from this position taken by this Court as recently as July 1993."

We cannot find any reason to make us depart from that position in this appeal and the consequences of that must be that those damages awarded as special damages but which were not pleaded in the plaint must be disallowed. Accordingly, while we retain the sum of KShs 50 545 awarded as special damages, we set aside the other awards and substitute them as follows:

1. General damages for pain, suffering and loss of amenities — KShs 50 000
2. Loss of user of vehicle — Nil
3. Cost of car hire — Nil
4. Hospital/Medical Bills — Nil
5. Future Medical Care — Nil

We award interest at court rates on the sum of KShs 50 545 with effect from the date when the suit was filed but the interest on the KShs 50 000 awarded for pain, suffering and loss of amenities shall be at court rates with effect from the date of the High Court judgment.

The appellants have failed in their appeal as regards liability but they have succeeded in having the damages reduced from a total of KShs 100 545. That is a very substantial success and in the event, we order that the appellants shall get two thirds of the appeal.

For the appellant:
Mr Oyatsi

For the respondent:
Information not available

Matangule and another v Republic
[1990–1994] 1 EA 318 (CAT)

Division:	Court of Appeal of Tanzania at Dodoma
Date of judgment:	20 February 1992
Case Number:	73/91
Before:	Ramadhani, Mnzavas and Mapigano AJA
Sourced by:	LawAfrica

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[1] Crime – Accomplice – Principle offender – Offence of defilement and murder – Appellant took deceased to her fait accompli *and then left her – Whether sufficient collaboration to convict as principal offender in defilement and murder.*

[2] Crime – Murder – Defilement – Child of tender years – Circumstantial evidence by child playmate – Whether particulars of offence had been proved.

[3] Evidence – Circumstantial evidence – Child of tender years – Evidence tending to show appellants guilty of defilement and murder – Demeanour of child "worried and hesitant" – Whether judge had properly appreciated demeanour of principal child witness.

Editor's Summary

The first appellant, father of the second appellant, took the deceased blind-folded, a tender girl of 12 years, into a house where the second appellant and two other men were waiting. The deceased was then found dead and with hymen ruptured. The principal evidence against the accused was from a child playmate of the deceased, who was the niece of the first accused. While testifying, she was worried and hesitant and looking down. The trial Judge rationalised her demeanour and held her to be a truthful witness.

On conviction, the appellants appealed. They argued that the principal witness was unbelievable, and that her evidence was unreliable. The first accused further argued that even on the basis of the evidence adduced by the prosecution, he should not have been convicted as a principle offender as he did not participate in the crime.

Held – The court was satisfied that the principal child witness was credible. First because the trial Judge found her to be so, and he was the better judge of that basing on demeanour. The shyness and

fidgeting on the witness was to be expected of a village adolescent girl who had not even been to school. Also she was testifying against her own uncle. The court would also conclude in favour of her credibility on the totality of all the evidence before the Court.

The circumstantial evidence had shifted the burden to the accused to explain when and how they parted with the deceased. The deliberate lies by the accused and refusal to give an explanation corroborated the prosecution case.

Since the first appellant escorted the deceased blindfolded into the house wherein she was last seen alive, his subsequent departure from the house was not sufficient disassociation from the crime.

No cases referred to in judgment

Judgment

Ramadhani, Mnzavas and Mapigano AJA: Richard Matangule, appellant 1, is the father of Elia Richard appellant 2. The two have been convicted of the murder of a tender girl of twelve years, called Mwajuma Maiko. The post-mortem report, which was admitted without dispute, showed that the deceased was defiled; the hymen was ruptured and there was evidence of ejaculation, and the body was burnt by hot water to the extent of 75%.

The prosecution procured three witnesses but Dorika d/o Berege (PW1) was the one on whose evidence the conviction was secured. As for Tatu d/o Mashumbu (PW2), a girl of ten years, the learned trial Judge (Mwalusanya J) told the assessors thus: ". . . her evidence does not implicate any of the accused with the offence". In his judgment also Mwalusanya J wrote: ". . . she denied to have had witnessed the two accused taking the deceased into the room". So her evidence was not at all taken into account. Likewise, the testimony of Kenneth s/o Hembelo (PW3) was held not to implicate the appellants in any way. All that PW3 deposed was that sometime on the fateful day he saw four girls including PW1 and PW2 going in a certain direction while appellant 1 was behind them.

PW1 stated that in the morning of Sunday 24 May 1987 she, together with PW2, the deceased and a fourth girl, were playing at the house of appellant 1, her paternal uncle, the younger brother of her father. Then she was called inside the house by appellant 1 and there she found two other men besides her cousin, appellant 2. However, PW1 was just dismissed and she went out. Then the appellants went outside the appellant 1 told the deceased to get into the house. As the deceased did so, appellant 2 blindfolded her with a red handkerchief and both appellants escorted her inside. Then appellant 1 came outside, leaving appellant 2, the deceased and the other two men inside, and ordered PW1 and the other girls to go to play at their grandmother's. PW1 never again saw the deceased alive.

The appellants were represented in this appeal, as they were at the trial, by Mr *Mbezi*, learned counsel. He had two grounds of appeal.

In the first ground Mr *Mbezi* argued that the conviction was wrong as it was founded on the unreliable evidence of PW1. In the first place Mr *Mbezi* submitted that PW1 was a self-confessed liar. When cross-examined, Mr *Mbezi* pointed out, PW1 replied "I did not see any other person inside". However, Mr *Mbezi* proceeded, upon re-examination PW1 said "inside the room I saw three persons seated including Second accused. I was lying when I answered defence counsel the contrary". In the second place, Mr *Mbezi* submitted, the demeanour of PW1 in Court portrayed her to be a witness not worthy of belief.

Mr *Mbezi* said that the learned trial Judge vividly described her demeanour in his judgment thus: ". . . PW1 when testifying looked worried and hesitant and was always looking down". Yet despite of that, Mr *Mbezi* continued, the learned trial Judge rationalised her demeanour and held PW1 to be a witness of truth. In the third place, Mr *Mbezi* contended, the evidence of PW1 was contradicted by that of the other two prosecution witnesses. The learned counsel pointed out that PW1 claimed to have been with PW2 at the appellants' premises yet on cross-examination PW2 differed from PW1. Mr *Mbezi* wondered how that could have been if both witnesses were together at the material time. Then Mr *Mbezi* also pointed out that whereas PW1 had said that appellant 1 ordered them to go to play at their grandmother's after the deceased had got inside, PW3 testified that PW2 had gone to his home crying and that PW3 did not say that PW1 was with PW2 at the time. Lastly, Mr *Mbezi* in impeaching the credibility of PW1, questioned her delay to report the matter while the body of the deceased was seen the following morning.

In the second ground, which was in the alternative to the first, Mr *Mbezi* argued that the learned trial Judge erred when he found appellant 1 a principle offender. Mr *Mbezi* said that according to PW1 all that appellant 1 did was to ask the deceased to get into the house after which he left thereby disassociating himself.

On behalf of the respondent/Republic was Mr *Nyabili*, learned State-Attorney. He submitted that the conviction founded on the evidence of PW1 alone was sound and added that there was no need for corroboration since PW1 was not a child of tender years. Mr *Nyabili* submitted that the inconsistencies were more apparent than real. He pointed out that according to Esteri Matangule (DW1), the wife of appellant 1 and the mother of appellant 2, PW1 had gone twice to the house of the appellants. My *Nyabili* said that PW1 first went there in the morning and it was then that she saw appellant 2 and the other two men. The learned State-Attorney said that PW1 went again in the noon when appellant 2 and his colleagues were not there. Mr *Nyabili* submitted that the question which PW2 was asked was ambiguous and hence her reply appeared contradictory.

As for the demeanour of PW1, Mr *Nyabili* reiterated what the learned trial Judge has said, that she was torn between telling the truth and testifying against her uncle and cousin.

On the second alternative ground Mr *Nyabili* submitted that if PW1 is believed then the actions of appellant 1 spoke for themselves. Mr *Nyabili* stated that the leading of a blindfolded deceased into the house and the chasing away of the girls afterwards brought appellant 1 squarely under the preview of section 22(*b*) of the Penal Code.

We must say at the outset that the case was very poorly presented at the trial. The sequence of the events was not clearly brought out. We agree with Mr *Nyabili*, for instance, that PW1 went to the house of the appellants twice; at the first time both appellants as well as the other two persons were around and at the second time there was only appellant 1 whom she served lunch. DW1 supported PW1 on that. Admittedly there are some contradictions in the testimonies of the two, that is PW1 and DW1, with which we shall deal soon. Secondly, we have noted that the times given, as is to be expected from villagers, were estimates and to a great extent added to the confusion.

That notwithstanding, we are satisfied that PW1 is credible. First, this is because the learned trial Judge found her to be so and he is the better judge of that basing on the demeanour. The shyness and the fidgeting exhibited by PW1 in Court was to be expected of a village adolescent girl speaking in public. It would seem that she had not even been to school. This is in addition to the reason the learned trial Judge gave that PW1 was between the devil and the deep blue sea. Secondly, we have found PW1 reliable on the totality of all the evidence before the Court. PW1 had said that she had gone to the house of appellant 1 and she was supported by appellant 1 himself and DW1. Then PW1 said that she cooked food for and served it to appellant 1. Here DW1 stated that PW1 did not cook but only served food to appellant 1. However DW1 and PW1 are agreed that PW1 served food to appellant 1. In the third place, PW1 said that appellant 2 had two visitors that fateful morning. Appellant 2 himself admitted that and so did appellant 1 though DW1 mentioned one visitor. But how would PW1 have known of these visitors or even a visitor if she had not actually been there in the morning. Finally, there is the fact that appellant 2 was left at home with his two colleagues. This is what PW1 had said and she was supported by appellant 1 and appellant 2 though he claimed that the other visitor had left before his father.

Thus in the main we are satisfied that PW1 told the truth and the gist of her testimony was that the appellants were the last known persons to have been with the deceased. This fact, without any doubt, casts a very grave suspicion on them. But this in itself is not conclusive proof that the appellants killed the deceased.

However, there are other factors too. First, we have never been able to know why the appellants blindfolded the deceased as they led her inside. Then there is another question: why appellant 1 chased away the other girls. Here there is the evidence of PW3 who saw the girls going with appellant 1 behind them ensuring, as it were, that they were really gone. Lastly, the appellants had to give an explanation of when and how they parted with the deceased. On the contrary they gave deliberate lies. Appellant 2 was categoric that he never saw PW1 or the deceased and the other girls that day. Appellant 1, on the other hand, prevaricated. In examination-in-chief appellant 1 said “when I went to church I did not leave her (PW1) behind”. Answering the first assessor appellant 1 said “when I went to church I left the deceased, Dorica and Tatu at my home”. Yet upon re-examination appellant 1 replied “when going to church I left them (deceased, Dorika and Tatu) playing at their homes and not at my home. I said at their homes and not mine”.

Now, these deliberate lies and the refusal to give an explanation corroborate the case for the prosecution that they are responsible for the death of the deceased.

As for the alternative ground of appeal we are of the firm view that it has no merit at all. Appellant 1 escorted the poor girl inside the house, then chased away her playmates and conveniently made himself scarce. He cannot have disassociated himself with what he had helped to facilitate.

We must confess that this situation of a father and a son being privy to a sexual assault on a girl aged twelve years has exercised our minds considerably. However, that goes to motive which is not essential in a criminal conviction. However, ritual practices cannot be ruled out especially considering the question

of picking and choosing the victim which preferred a much younger girl than PW1. The story of the defence that this was all a frame-up because appellant 1 was suspected of containing illicit relationship with the mother of the deceased is bogus. Father and son were very much bedfellows for such a plot.

This appeal is dismissed.

For the appellants:
Mbezi

For the respondent:
Nyabili

Matiba v Moi (1)
[1990–1994] 1 EA 322 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	19 November 1993
Case Number:	241/93
Before:	Cockar, Muli and Omolo JJA
Sourced by:	LawAfrica

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[1] Appeal – Application to strike out notice of appeal under rules 42(1) and 80 of the Court of Appeal Rules on the ground that there was no right of appeal against the decision of the Election Court upholding the competency of the election petition before it.

[2] Constitution – Section 44 read with section 10 – Whether appeal precluded by reasons of section 44(5) of the Constitution from a decision of the Election Court on whether the petition before it was validly signed as required by rule 4(3) – National Assembly Elections (Election Petition) Rules of 1993.

[3] Court of Appeal – Extent of jurisdiction to entertain appeals – Section 64(1) constitution section 3 Appellate Jurisdiction ACE, Chapter 9 – Section 66 Civil Procedure Act (Cap 21).

Editor's Summary

The applicant, filed an election petition challenging the election of the respondent, as President of Kenya following upon the presidential election held in December 1992. The respondent applied to the Election Court to strike out the petition on the ground that it was signed by the applicant's wife under a Power of Attorney conferred upon her by the applicant and not by the applicant as was required by rule 4(3) of the National Assembly Elections (Election Petition) Rules of 1993.

The Election Court held that the petition was validly signed. The respondent lodged a notice of appeal against that decision and the applicant filed an application in the Court of Appeal to strike out the notice of appeal on the ground that by virtue of section 44(5) of the Constitution, there was no right of appeal against any decision of the Election Court, whether interlocutory or otherwise.

Held – Section 44(1) read together with section 10 of the Constitution sets out specific questions relating to the validity of an election which an Election Court can be called upon to decide. Under section 44(5) of the Constitution, it is only upon those specific questions that the determination of the High Court, whether interlocutory or final, is not subject to an appeal.

Whether or not a petitioner has presented a valid petition is not one of the questions set out in section 44(1) read with section 10 of the Constitution, in the result, an appeal against a decision on that issue is not barred by section 44(5).

The cumulative effect of section 64(1) of the Constitution, section 3 of the Appellate Jurisdiction Act (Chapter 9) and section 66 of the Civil Procedure Act is that an appeal lies from every decision of the High Court to the Court of Appeal unless otherwise expressly provided by the Civil Procedure Act (Chapter 21).

Application dismissed.

Per Cockar JA – There is no mention of an "Election Court" in the Constitution. It is a Court created by the National Assembly and Presidential Elections Act (Chapter 7) under section 2 of which it is defined as the High Court in the exercise of the jurisdiction conferred upon it by section 44(1) of the Constitution. As an Election Court the High Court is merely exercising an additional jurisdiction conferred upon it by section 44. It is not thereby deprived of the unlimited original jurisdiction conferred upon it by section 64(1) of the Constitution. It follows that when it is called upon to function as an "Election Court", the High Court has not forsaken its function or jurisdiction conferred upon it by section 64(1) of the Constitution.

Per Omolo JA – The Court of Appeal is a creature of statute and has only such powers and jurisdiction as are conferred on it by law. The court has no inherent jurisdiction on any matter and its jurisdiction cannot be implied from circumstances, however attractive such an implication may be. On the other hand, the Court is the Court of last resort in the Republic and it must not be too shy when it comes to the question of determining whether or not it has jurisdiction to hear and determine a particular issue. Whilst it will not usurp jurisdiction, it will interpret liberally the extent of its jurisdiction. If it has no jurisdiction, it will down tools.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Arnautoglu v CIT case number 93 of 1962

Commissioner of Income Tax v Menon [1982-88] 1 KAR 695

Karanja v Kabugi and another [1981] LLR 2185 (CAK)

Lillian "S" v Caltex Oil (Kenya) Ltd [1989] LLR 1653 (CAK)

Mudavadi v Kibisu [1970] EA 585

Munene v Republic (number 2) [1978] KLR 105

Njeru v Republic (number 2) [1979] KLR 162

United Kingdom

Canadian Eagle Oil Co Ltd v King [1946] AC 140

Cape Brandy Syndicate v CIR [1921] 2 KB 403

Nair v Tek [1967] 2 AC 31

Ruling

Cockar JA: This is a notice of motion filed under rules 42(1) and 80 of the Court of Appeal Rules to strike out the notice of appeal dated and filed on 2 July 1993, on behalf of the respondent against the decision of the High Court of Kenya given on 1 July 1993. The facts leading to the notice of motion briefly are that following the election of His Excellency President Daniel Toroitich Arap Moi, the respondent, as the President of the Republic of Kenya, in the election of 29 December 1992, a petition has been filed in the High Court by the applicant challenging the validity of the said election. Section 44(1) of the Constitution allows any person entitled to vote in the election concerned to make such an application. A preliminary point was taken before the High Court challenging the competency of the petition which was rejected. That gave rise to the filing of the notice of appeal by the respondent and of this application to strike it out.

The application to strike out is supported by an affidavit dated 1 October 1993, sworn by Mr GBM *Kariuki* advocate for the applicant, in paragraphs 7 and 8 whereof he has deponed as follows:

> "7. That I have studied the law relating to appellate jurisdiction of this Honourable Court in relation to decisions of the Election Court and in particular the Constitution of Kenya and case law and I am convinced that this Honourable Court has been deprived of appellate jurisdiction in relation to decisions of the Election Court.
>
> 8. That no appeal lies against the ruling/decision of the Election Court in election petition number 27 of 1993, dated 1 July 1993.

It is prayed that the notice of appeal be struck out on the ground that no appeal lies against the decision of the Election Court.

Mr *Kariuki*'s submissions mainly centred around subsections (5) and (4) of section 44 of the Constitution. To be able to appreciate properly the significance of these subsections, I quote them below together with the relevant portions of the section itself:

> "(1) The High Court shall have jurisdiction to hear and determine any question whether:
>
> (*a*) a person has been validly elected as a member of the National Assembly; or …
>
> (4) Parliament may make provision with respect to:
>
> (*a*) circumstances and manner in which, the time within which and the condition upon which an application may be made to the High Court for the determination of a question under this section; and
>
> (*b*) the powers, practice and procedure of the High Court in relation to the application.
>
> (5) The determination by the High Court of any question under this section, whether the decision be interlocutory or final, shall not be subject to appeal."

It is to be noted that the provisions of section 10 of the Constitution have extended the application of section 44 to the Presidential elections also.

Mr *Kariuki*'s contention was that in the past despite the provision in subsection (5) of section 44, as it then stood, the Courts had found that appeals lay to the Court of Appeal on decisions arising from interlocutory applications. He cited *Karanja v Kabugi and another* [1981] LLR 2185 (CAK) and *Mudavadi v Kibisu* [1970] EA 585 as being the appeals in which the Court of Appeal had

exercised jurisdiction over decisions of the Election Courts arising from interlocutory applications. Prior to its amendment subsection (5) read as follows:

> "The determination by the High Court of any question under this section shall not be subject to appeal."

Mr *Kariuki* contended that in order to close the loopholes exposed by the Court of Appeal in these decisions the Parliament had added the following words in the subsection:

> "Whether the decision be interlocutory or final."

The decision herein by the Election Court having been given in respect of an interlocutory application to strike out the petition was, therefore, in consequence of the addition of the aforesaid words, non-appealable. The addition of the word "interlocutory" had, in Mr *Kariuki*'s views, once and for all closed all the channels by way of an appeal from an Election Court leading to the Court of Appeal. All issues relating to the validity of an election were prescribed to be determined under section 44 of the Constitution. Subsection (5) thereof had rendered non-appealable every decision in respect of any question or issue relating to the validity of the election which was covered by this section.

Mr *Kariuki* further strongly argued that Parliament gave effect to the requirements section 44(4) by enacting the National Assembly Elections and Presidential Elections Act (Chapter 7) (hereafter referred to as the Act). The National Assembly Elections (Elections Petition) Rules (hereafter referred to as Rule or Rules) have been promulgated thereunder. Therefore any decision made by the Election Court involving compliance or non-compliance with any of the Rules was in fact to be construed as a decision under section 44(4) and would, therefore, be subject to subsection (5) and so would be non-appealable. It followed that the decision of the Election Court rejecting the preliminary point which had sought that the petition be struck off for non-compliance with rule 4 subrule (3) must be deemed a determination of a question which had arisen under section 44(4), and so must be treated as non-appealable. Mr *Kariuki* urged that the notice of appeal filed by the respondent be ordered to be struck out.

Mr *Shah* assisted by Mr *Ombogo*, was quite succinct in his submissions made on behalf of the respondent. He said that section 44 was designed to deal with the validity of the election only. The petition had been filed under the Rules promulgated in consequence of the provisions of the Act. The preliminary point that was raised had questioned the competency of the petition itself. It had no connection with any question related to the conduct of the election which alone was the subject matter of section 44. It therefore, was not a matter which fell under the provisions of section 44. He also referred to the *Karanja v Kabugi and another* and *Mudavadi v Kibisu* (*supra*) both of which had been cited by Mr *Kariuki*. What he stressed was that in both the decisions the Court of Appeal had strongly come out in favour of the view that any order which did not determine the validity of the election was appealable; that would also mean determinations such as rulings on interlocutory applications preceding the hearing of an election petition. Mr *Shah*'s contention was that subsection (5) applied strictly to matters which affected the validity of the election itself and no more. He urged that the application to strike out the notice of appeal be dismissed with costs for two counsel.

Perusing section 44(1) of the Constitution carefully I would observe that the words which have defined the jurisdiction given to the High Court by this section are:

> "to hear or determine any question whether:
>
> (*a*) any person has been validly elected . . ."

What, therefore, is not subject to any appeal is the determination of the validity of the election. Any question which will affect the validity of an election will only arise from acts or omissions of the candidates or the administration or their personnel prior to or during election up to the time the result is finally declared. So it is clear that it is the determination by the High Court (the Election Court) of any such question only which is not subject to appeal. In fact the amendment to subsection (5) of section 44 of the Constitution on which Mr *Kariuki* was relying heavily has to my mind now clearly confined its scope in respect of interlocutory decision also to the aforesaid matters only. That does not mean a denial of a right to appeal on determination of any question which the High Court may be called upon to adjudicate but which does not in any way affect the validity of the election in a manner already stated. Its decisions on such matters, in my view, and as has already been held earlier by the Court of Appeal, are appealable. The matters over which the Court of Appeal has jurisdiction, have been defined in section 64(1) of the Constitution, section 3 of the Appellate Jurisdiction Act (Chapter 9) and section 66 of the Civil Procedure Act (Chapter 7), the cumulative effect whereof, put in simple words, is that an appeal lies from every decision of the High Court to the Court of Appeal unless otherwise expressly provided by the Civil Procedure Act.

Before proceeding further I shall now deal with the term "Election Court". There is no mention of an "Election Court" in section 44 of the Constitution or in any other section of the Constitution. It is a Court created by statute. In section 2 of the Act it is defined as follows:

> "Election Court" means the High Court in the exercise of the jurisdiction conferred upon it by section 44(1) of the Constitution."

As an "Election Court" the High Court is merely exercising an additional jurisdiction conferred on it by section 44(1) of the Constitution. The High Court is not thereby deprived of the unlimited original jurisdiction conferred on it by section 64(1) of the Constitution. It follows that when it is called upon to function as an "Election Court" under Part VI of the Act the High Court has not forsaken its functions or jurisdiction conferred on it by section 64(1) of the Constitution. Having said that with regard to the dual functions and jurisdiction of the High Court under section 44 of the Constitution I now find that it is not difficult to decide the question of whether or not an appeal lies from the ruling of the High Court in this case.

The preliminary point raised before the High Court questioned the competence of the petition filed by the applicant. It cannot be disputed that the question raised by the preliminary point has nothing at all to do with any part of the election exercise itself such as misconduct on the part of any personnel engaged therein. In fact the point raised was with regard to an act, or perhaps an omission, committed by the petitioner after the declaration of the result of the election. The High Court when performing the functions of an Election Court is strictly confined to matters which may have affected the validity of the election. There is no denial of what is obvious, and that is that the determination

of the validity of an election and the determination of the competency of a petition are basically two entirely different matters. Section 44(1) of the Constitution and the Act have comprehensively provided an adjudication on any matter affecting the validity of an election. But the determination of the competency of a petition has not been envisaged nor provided for in either the aforesaid section or the Act. The reason for that is simple in that the High Court when functioning strictly as an Election Court is restricted to determining questions relating specifically to the validity of an election only. But when confronted with an issue falling outside the ambit of section 44(1) of the Constitution, such as the present one questioning the competency of the petition, it will shed that role and assume its normal role and jurisdiction conferred on it by section 64(1) of the Constitution. As there is no written law forbidding an appeal from the High Court to the Court of Appeal on this issue, I have no hesitation in finding that an appeal in this case lies to this Court.

Mr *Kariuki* also submitted that any question relating to rule 4 subrule (3) be accepted as part or an extension of subsection (4) of section 44 of the Constitution and so be deemed to be an interlocutory matter as envisaged under subsection (5) of the section. On this point I am quite clear in my mind that rule 4(3) is a part of a procedural scheme devised and set out by the Rules committee under section 23(3) of the Act to regulate the practice and procedure concerning petitions. By no stretch of imagination can any Rule be deemed to be capable of adding to or subtracting from section 44(4) of the Constitution.

As both my Lords Muli and Omolo JJA agree with my aforesaid decision the order of this Court is that an appeal in this case lies to the Court of Appeal and, therefore, the notice of motion filed by the applicant on 5 October 1993, to strike out the notice of appeal is now dismissed. As regards the costs Mr *Shah* had applied for costs for two counsel. The reason he advanced was the legal complexity of the issues involved. Mr *Kariuki* made no response to that. The Electoral Commission was not served with the application by Mr *Kariuki* because the Commission had not filed a notice of appeal. The Commission, however, was served as an interested party under rule 76 of the Court of Appeal Rules by Mr *Shah*. Mr Gautama appeared for the Commission and was in attendance throughout the hearing of the application. He did not address the Court but offered to do so if called upon by the Court. We did not feel any need for that. However, in our view, it was proper for the Commission to be served because it is an interested party. As to their costs they will be entitled to the day's attendance costs only. With regard to Mr *Shah*'s request for costs for two counsel, I am not persuaded that this matter is fit for an order for two counsel's costs. In the event, I award costs of the application to the respondent and the day's attendance costs to the Electoral Commission against the applicant. Orders accordingly.

Muli JA: The applicant, Kenneth Stanley Njindo Matiba brought this application by way of a notice of motion dated 30 September 1993 under rules 42(1) and 80 of the Rules of this Court seeking to strike out the notice of appeal filed on behalf of the respondent, Daniel Toroitich arap Moi on the 2 July 1993 on the ground that no appeal lies against the decision of the Election Court dated 1 July 1993 in election petition number 27 of 1993. The respondent is the President and Commander-in-Chief of the Armed Forces. The election petition itself is not on the record but the decision from which the intended appeal is sought states that the applicant/petitioner filed the petition to challenge the

election of the President held on the 29 December 1992. There was a preliminary objection to the petition by motion filed by the respondent and the Electoral Commission on the ground that the said petition having been signed by Mrs Edith Matiba under the Power of Attorney instead of by the applicant/petitioner himself as required under rule 4(3) of the National Assembly Election Petition Rules (the Rules) was incompetent or invalid and should be rejected by the Court. In a long and detailed "decision", as was called by the Election Court (Torgbor, Couldrey and Sheikh-Amin JJ), the respondent's motion was dismissed with costs. The respondent filed the notice of appeal which the applicant/petitioner now seeks to have it struck out on the ground that this Court has no jurisdiction to entertain the intended appeal or any appeal from the decision of the Election Court.

The jurisdiction of this Court to entertain appeals from the Election Courts has come up, on many occasions in the recent past. Arguments on this point have not become dormant despite the many applications which have come to this Court on the very basic issue of the jurisdiction of this Court. Mr *Kariuki* for the applicant and Mr *Shah* for the respondent cited recent decisions of this Court and made valuable submissions which assisted us in appreciating the real issue. I am sure my brothers on this bench also join me in thanking both counsel.

In order to determine as to whether or not this Court has jurisdiction to hear appeals from the Election Court of the High Court, it is necessary to examine closely the law as provided under the Constitution of the Republic of Kenya and the laws made thereunder. The Constitution is the substantive law of the land and if any other law made thereunder is inconsistent with the Constitution, the Constitution prevails and the other law made thereunder is void to the extent of the inconsistency (see section 3 of the Constitution).

This Court is the creature of the Constitution and it is the superior Court of record. Its jurisdiction and powers in relation to appeals from the High Court is conferred on it by law (see section 64).

Part 1 of the Constitution provides *inter alia* for election of the President of the Republic of Kenya and in particular section 10 thereof provides:

> "10 (1) Subject to this section, section 44 shall apply to the hearing and determination of a question whether a person has been validly elected as President, as it applies to the hearing and determination of a question whether a person has been validly elected as a member of the National Assembly.
>
> (2) Where a person applies to the High Court for the determination of more than one of the following questions, namely, whether the President was qualified to be nominated for election as President, or was validly elected as President, or was validly elected as a member of the National Assembly, he shall make one application only to the High Court."

Section 44 of the Constitution provides:

> "44 (1) The Court shall have jurisdiction to hear and determine any question whether:
>
> (*a*) a person has been validly elected as a member of the National Assembly; or
>
> (*b*) the seat in the National Assembly of a member thereof has become vacant.
>
> (2) An application to the High Court for the determination of a question under subsection (1)(*a*) may be made by any person who was entitled to vote in the election to which the application relates, or by the Attorney-General.

(3) An application to the High Court for the determination of a question under subsection (1)(*b*) may be made:

(*a*) where the Speaker has declared that the seat in the National Assembly of a member has by reason of a provision of this Constitution become vacant, by that member; or

(*b*) in any other case, by a person who is registered as a voter in elections of elected members of the Assembly, or by the Attorney-General.

(4) Parliament may make provision with respect to:

(*a*) the circumstances and manner in which, the time within which and the conditions upon which an application may be made to the High Court for the determination of a question under this section; and

(*b*) the powers, practice and procedure of the High Court in relation to the application.

(5) The determination by the High Court of any question under this section, whether the decision be interlocutory or final, shall not be subject to appeal."

The result of the application of both the above sections is that the High Court has jurisdiction to hear and determine, in the case of the President, whether the President was qualified to be nominated for Presidential elections, or was validly elected President, or was validly elected as a member of the National Assembly. In the case of any other Parliamentary member whether the member has been validly elected as a member of the National Assembly or whether a seat in the National Assembly of a member thereof has become vacant. In short the High Court has jurisdiction to hear and determine limited matters arising out of an election. That is to say the validity of nomination of and the election of President or whether the President was validly elected as a member of the National Assembly (section 10 (*supra*)) as well as whether a seat of a member of the National Assembly has become vacant. This is made abundantly clear and unquestionable by the provision of subsection (5) of the section 44 of the Constitution (*supra*). The use of the phrase "under this section" puts this beyond doubt.

The High Court has limited jurisdiction on matters for determination arising from an election as are provided for under section 44 of the Constitution and to the extent of those matters only the determinations thereof are final. The finality of those determinations in respect of matters of nomination, and election of the President as well as election of a Parliamentary member or the determination as to whether the President or the Parliamentary member have been validly elected as members of the National Assembly and finally whether a seat in the said Assembly has become vacant makes it very clear that no appeal lies to the Court of Appeal. The result is that this Court has no jurisdiction to hear or to entertain appeals from the decisions of the Election Court in respect of those limited matters conferred to the High Court under sections 10 and 44 of the Constitution. Those decisions of the High Court, whether the decisions be interlocutory or final are not subject to appeals to the Court of Appeal. I am attempting to make it as clear as I can make it that the validity of qualifications to be nominated as President and the election of the President as a Parliamentary member as well as whether a seat in the National Assembly has become vacant, are within the jurisdiction of the High Court only and no appeals, whether be interlocutory or final, lie to this Court. This Court, whose jurisdiction to hear or to entertain appeals from the Election Courts of the High Court

has been expressly denied by the Constitution (section 10 and 44) and expressly conferred on the Election Court of the High Court alone and cannot be curtailed or extended except by Parliament itself. I would be bold to summarise the jurisdiction of the High Court in matters of elections within the scope of sections 10 and 44 of the Constitution and which the Court of Appeal is constitutionally deprived of jurisdiction. In my view these are:

1. Validity or otherwise as to whether the President was qualified to be nominated for election as President.
2. Validity or otherwise as to whether the President was elected as President.
3. Whether the President or a Parliamentary member was elected as a member of the National Assembly.
4. Whether a seat in the National Assembly has become vacant.

The decisions of the Election Court, whether interlocutory or final are not appealable to the Court of Appeal. Mr *Kariuki*, for the applicant was at great pain attempting to convince us that all questions arising from an election are constitutionally barred from the jurisdiction of the Court of Appeal. He was basing his arguments on the use of the phrase "any question" appearing in section 44(5) of the Constitution (*supra*). This cannot be so. I would be brave to state that the High Court has limited jurisdiction of election matters within the scope of sections 10 and 44 of the Constitution only and matters outside this scope may ultimately be appealable to the Court of Appeal. I have used the word "may" cautiously. To accede to Mr *Kariuki*'s submissions on this point would be to cause violent misinterpretation of the Constitution. It would be tantamount to violent misconception of the law. The more Mr *Kariuki* attempted to convince us the more I was convinced that he was clearly wrong.

This brings me right on the real question and that is that was the petition filed by the applicant/petitioner valid or not on the ground that it was not signed by the applicant/petitioner himself but by his wife under the Power of Attorney? I for one would have liked to see a copy of the petition and the Power of Attorney. We are told that the petition was signed by Mrs Edith Matiba but we are not told whether the Power of Attorney conferred on Mrs Edith Matiba were general or specific. However, I will accept that there was a petition and the Power of Attorney as the parties do not appear to have any difficulties about them. The petition is still pending in the Election Court of the High Court. I do not know the contents of that petition and the prayers therein. Since the petition has not yet been heard and determined, the qualification to be nominated as President, the validity of election of the President, the validity of election of the President or as a member of the National Assembly have not taken place. The provisions of sections 10 and 44 of the Constitution have not been exhausted yet. What was at issue before the Election Court was the validity of the petition as to whether or not it was properly conceived having been signed by Mrs Edith Matiba but not by the applicant/petitioner himself.

Subsection (4) of section 44 of the Constitution empowered Parliament to make provisions with respect to:

"(*a*) The circumstances and manner in which, the time within which and the conditions upon which an application may be made to the High Court for the determination of a *question* under *this section*; and

(*b*) The powers, practice and procedure of the High Court in relation to the application."

The National Assembly and Presidential Elections Act chapter 7 (the Act) was enacted by Parliament. Subsection (3) of section 23 of the Act empowered the Rules committee to make Rules of the Court regulating the practice and procedure concerning petitions. The relevant Rules are National Assembly Elections (Election Petition) Rules. Regulation 4(3) thereof provides as follows:

> "(3) The petition shall conclude with a prayer as, for instance, that some specified person should be declared duly elected or nominated, or that the election should be declared void and *shall* be signed by *all the petitioners*."

The word "shall" is used which makes it mandatory that the petition must be signed by all the petitioners. I am mindful that I am dealing with an interlocutory application to determine whether or not this Court has jurisdiction to hear the intended appeal against the ruling of the Election Court that the petition was validly signed notwithstanding that the petitioner/applicant himself did not sign the petition but by his wife under Power of Attorney.

As I have already shown, the High Court has a limited jurisdiction to hear and determine election matters within the scope of sections 10 and 44 of the Constitution. It follows therefore that there are certain election matters outside the scope of the High Court jurisdiction. For instance, there is procedure for a person aggrieved by the registration as a voter or elector as provided for under sections 8, 9, 10 and 11 of Chapter 7. The court referred to in Part III thereof is not the Election Court. Section 7 thereof lays down the procedure to be followed by any person adjudged or declared disqualified from being registered as a voter or elector by reasons mentioned therein. He has a right of appeal against the decision to disqualify him. Then there are matters concerning the form of the petition. The Regulations provide the form to be adopted by a petitioner. Rules 3 and 4 thereof are couched in mandatory terms by the use of the word "shall". I reproduce the Rules:

> 3. (1) The presentations of an election petition shall be made by delivering it at the office of the registrar, and the registrar or the officer of his department to whom the petition is delivered shall give a receipt in the following form:
>
> Received on the … day of … 19 … At the registry of the High Court, a petition touching the election/nomination of … for … purporting to be signed by … (insert the names of the petitioners)
>
> Registrar.
>
> Or other officer to whom the petition is delivered)
>
> (2) Two copies of the petition shall be delivered with the petition.
>
> 4. (1) an election petition shall contain the following statements:
>
> (*a*) It shall state whether the petitioner is entitled to petition under section 44 of the Constitution.
>
> (*b*) It *shall state the holding and results of the election*, and shall briefly state the facts and grounds relied on to sustain the petition.
>
> (2) The petition shall be divided into paragraphs, each of which shall be confined, as nearly as is practicable, to a distinct portion of the subject, and every paragraph shall be numbered consecutively, and no costs shall be allowed for drawing or copying any petition not substantially in compliance with this rule, unless otherwise ordered by the Election Court.
>
> (3) The petition shall conclude with a prayer as, for instance, that some specified person should be declared duly elected or nominated, or that the election should be declared void, and shall be signed by *all the petitioners*." (Emphasis mine)

Non-compliance of the form of a petition is not one of the matters failing within the ambit of sections 10 and 44 of the Constitution. It is a matter which is properly decided by the High Court (by Election Court) exercising its unlimited jurisdiction. In particular, the manner of presentation of a petition, contents and the form thereof, evidence not to be stated in a petition without leave of the Election Court etc. There are other procedural matters within the Rules which may be dealt with by the ordinary courts, the registrar, appeals against nominations, multiplicity of petitions etc. These matters do happen before the actual election of President or Parliamentary member takes place. More so in cases of non-registration and disqualifications.

I am of the firm view that these procedural matters and substance of petitions are not within the scope of section 10 and 44 of the Constitution. Occurring as must of necessity do, they take place before elections themselves take place and as such are outside the scope of sections 10 and 44 of the Constitution. Decisions of the High Court (Election Court), whether, interlocutory or final, are not caught by subsection (5) of section 44 of the Constitution. Any appeal from the decisions of the High Court (Election Court) on matters outside the scope of sections 10 and 44 of the Constitution are appealable as to right of the Court of Appeal. I hold therefore that the Court of Appeal has jurisdiction to hear appeals from the Election Court on those procedural and substantial matters which are outside the scope of sections 10 and 44 of the Constitution.

The decision of the High Court (Election Court) from which the present application comes is on the validity of the petition in election petition number 27 of 1993. The High Court has not yet heard the election petition with the result that sections 10 and 44 of the Constitution do not apply. This court has therefore jurisdiction to hear and determine this application as well as the intended appeal from the decision of the High Court (Election Court). The notice of appeal lodged by the respondent is properly before this Court and the intended appeal should be processed in the normal way.

Before I conclude this ruling I would like to say a few words about the authorities cited to us by counsel. I have read them with much stimulation. For over a decade this Court has been seized of the issue of jurisdiction in appeals from Election Courts of the High Court. Following the persuasive authority in a Malaysian decision in *Nair v Tek* [1967] 2 AC 31 this Court broke through by holding that it has jurisdiction to hear appeals on interlocutory matters from the Election Court dealing with election petitions. In *Mudavadi v Kibisu* (*supra*) it so held that this Court has jurisdiction to hear an appeal from an order of the High Court which did not determine the validity of the election. In *Karanja v Kabugi and another* (*supra*) Civil Appeal No 30 of 1981 it was held by the majority decision (Miller JA dissenting) that this Court had jurisdiction.

Mudavadi and *Karanja* decisions (*supra*) were before the amendment of subsection (5) of section 44 of the Constitution was enacted. What jurisdiction had hitherto appeared to be vested in this Court before the introduction of a phrase “whether interlocutory or final” in subsection (5) was restricted even further by the amendment (Act 7 of 1984). The earlier authorities in *Mudavadi* and *Magugu*’s authorities (*supra*) are no longer good law and are clearly distinguishable on facts and law. The Malaysian persuasive authority too is distinguishable and will no longer be a persuasive authority in this country.

We were also referred to the authority in *Commissioner of Income Tax v Menon* [1982-88] 1 KAR 695. This authority is distinguishable on facts and law.

It should not have been cited to us as canons of interpretation of taxing statutes are quite different from interpretations of other laws. See *Cape Brandy Syndicate v CIR* [1921] 2 KB 403 Rowlatt J and approved by Viscount Simon LC in *Canadian Eagle Oil Co Ltd v King* [1946] AC 119 at 140 and applied to this country in *Arnautoglu v CIT* case number 93 of 1962:

> "A number of these quotations have been set out in the judgment under appeal and it will be sufficient for my purpose to say that in taxation legislation, it is the letter of the law that is paramount and to quote what was said Rowlatt J . . .
>
> In a taxing Act one had to look merely at what is clearly said. There is no room for imbendment as to tax. Nothing is to be real in nothing is to be implied. One can only look fairly at the language used."

In the result I would dismiss the motion with costs to the respondent and the Electoral Commission as proposed by Brother Cockar JA. It will remain an unsatisfactory state unless Parliament amends the Constitution to curtail altogether the jurisdiction of this Court over the whole of election matters or to confer by law some jurisdiction to it in clear terms. Until then the High Court (Election Court) will continue to exercise limited jurisdiction of election matters within the scope of sections 10 and 44 of the Constitution and the Court of Appeal will continue to exercise limited jurisdiction on those election matters which are outside the scope of the same sections and which do not determine the validity of the election.

Omolo JA: Under section 44(1), of the Constitution of Kenya, the High Court has jurisdiction to hear and determine two questions namely:

> "(*a*) Whether any person has been validly elected as a member of the National Assembly; or
>
> (*b*) Whether the seat in the National Assembly of a member thereof has become vacant."

By section 44(5) of the same Constitution:

> "The determination of the High Court of any question under this section, whether the decision be interlocutory or final, shall not be subject to appeal."

Kenneth Stanley Njindo Matiba, the applicant is challenging the election of Daniel Toroitich arap Moi, the respondent, as the President of the Republic of Kenya and for that purpose, the applicant filed a petition in the High Court of Kenya. That petition was signed for the applicant by his wife, Edith Matiba. It appears from the record that due to ill-health the applicant is no longer able to perform simple tasks like signing documents. The applicant, it would appear from the "decision" of the High Court which is the subject of the dispute before us, blames the respondent for the ill-health which has deprived him (applicant) of power to sign documents. The wife of the applicant signed the petition on behalf of the applicant, pursuant to a Power of Attorney which the applicant donated to her.

Rule 4(3) of the National Assembly Elections (Election Petitions) Rules of 1993, (the Rules), made pursuant to section 23(3) of the National Assembly and Presidential Elections Act, is in the following terms:

> "The petition shall conclude with a prayer as, for instance, that some specified person should be declared duly elected or nominated, or that the election should be declared void and *shall be signed by all the petitioners*."

Seeing that the applicant had not signed his petition himself, the respondent moved the High Court, by way of notice of motion, that the applicant's petition ought to be struck out as being contrary to the Rule which I have already set our herein. The applicant strenuously resisted the respondent's application in the High Court and in a considered "decision" dated the 1 July 1993, the High Court sitting as an Election Court ruled that the applicant's petition was valid because in the circumstances of the applicant, such as his inability to write and sign, the signature of the applicant's wife was a valid and sufficient signature for the purposes of rule 4(3). The Election Court then dismissed with costs the respondent's notice of motion. Faced with that reversal, the respondent filed his notice of appeal on the 2 July 1993, stating in that notice that he intended to appeal to this Court against the whole of the decision of the Election Court.

On the 5 October 1993, the applicant filed his present application by notice of motion and under certificate of urgency and the applicant prays to us for order:

> "l. That the notice of appeal dated and filed in court on the 2 July 1993 by Daniel Toroitich arap Moi through his advocates, Messrs Kilonzo and Company, be struck out on the grounds that no appeal lies against the decision of the Election Court dated the 1 July 1993 in election petition number 27 of 1993 involving the applicant and the respondent.
>
> 2. That the respondent be condemned to pay the costs of these proceedings."

I have already set out the relevant provisions of section 44 of the Constitution. Section 44(5), as it now stands, in particular, categorically states that the determination of the High Court which for that purpose is the Election Court of any question under the section whether interlocutory or final, shall not be subject to appeal. It is interesting that Parliament has always sought to keep out the Court of Appeal from matters dealing with the Constitution particularly those arising from election petitions. The history behind section 44(5) is well known. Before its amendment this Court had always insisted that it had jurisdiction to hear appeals from the determination of the Election Court on interlocutory matters. If it were necessary to cite any decisions on the matter, I would refer to the cases of:

1. *Mudavadi v Kibisu* [1970] EA 585
2. *Karanja v Kabugi and another* [1981] LLR 2185 (CAK)

Faced with the resolute attitude of the Court not to be totally kept out of matters arising from election disputes, Parliament brought in the amendment to section 44(5) of the Constitution, and knowing the history underlying the matter, one would conclude that Parliament must have thought it had succeeded in keeping out the Court of Appeal from these matters. The applicant is clearly of the same view and hence his application that we strike out the notice of appeal for if we do not have jurisdiction to hear an appeal from the determination of an Election Court, then the notice of appeal filed herein can only be a waste of time and ought to be struck out under rule 80 of the Court's Rules. The question, however, still remains; has Parliament eventually succeeded in totally depriving this Court of any jurisdiction in matters relating to election petitions?

Before I can attempt to answer that question, let me state from the very outset that our Court is a creature of statute and it cannot be reminded too often

that it (Court) only has such powers and jurisdiction as are conferred on it by law. The court has no inherent jurisdiction on any matter and its jurisdiction cannot be implied from circumstances, however attractive such an implication may be. On the other hand, it must not be forgotten that we constitute the last court of resort in the Republic and we must not be too shy when it comes to the question of determining whether or not we have jurisdiction to hear and determine a particular issue. On this point, I would myself adopt a robust and liberal approach which was always advocated by that great jurist, the late Chief Justice CB Madan – see for example *Munene v Republic (number 2)* [1978] KLR 105 at 112 where he is recorded as saying:

> "We will not usurp jurisdiction. We will interpret liberally the extent of our jurisdiction . . ."

If we have no jurisdiction, then of course as was said in *"Lillian S" v Caltex Oil (Kenya) Ltd* [1989] LLR 1653 (CAK) we must down tools.

Now, what questions were the Election Court called upon to determine? By his notice of motion, the respondent was saying that the applicant had not presented before the Election Court a valid election petition upon which that court could proceed to determine the question:

> "1. Whether Daniel Toroitich arap Moi was qualified to be nominated for election as President; and
>
> 2. Whether Daniel Toroitich arap Moi has been validly elected as President - section 10 of the Constitution."

These questions still remain undetermined by the Election Court. The question it was called upon to determine was:

> "Whether Kenneth Stanley Njindo Matiba had presented before the Election Court a valid election petition upon which the Election Court could proceed to determine the primary questions."

Section 44(1) of the Constitution sets out the issues upon which the Election Court can be called to determine. Those issues are two and in my view it is only upon those two issues that:

> "The determination by the High Court of any question under this section, whether the decision be interlocutory or final, shall not be subject to appeal."

Whether or not a party has presented a valid election petition to the High Court is not among the issues set out in section 44(1) and it is to be remembered that while the High Court itself would, under section 60(1) of the Constitution have unlimited original jurisdiction to hear election petitions, it (High Court) would not have an inherent jurisdiction to hear and determine invalid election petitions. The power to do so is conferred upon it by the Constitution, the National Assembly and Presidential Elections Act and the Rules made thereunder. In the absence of a valid election petition, that is a petition which does not comply with the Act and the Rules, the High Court would have no jurisdiction to hear and determine the two questions set out in section 44)(1) of the Constitution. In my view if Parliament had intended that the question of whether a valid petition has been presented to the High Court, which gives the High Court its jurisdiction, was also to be left to the determination of the Court, such a question would have been included in section 44(1) and if it had been so included, the determination of the High Court thereon would have been final and subject to no appeal.

Mr *Kariuki* for the applicant drew our attention to section 44(4) of the Constitution which provides that:

> "Parliament may make provisions with respect to:
>
> (*a*) the circumstances and manner in which, the time within which and the conditions upon which an application may be made to the High Court for the determination of question under this section; and
>
> (*b*) The powers practice and procedure of the High Court in relation to the application."

Mr *Kariuki* submitted that pursuant to this subsection Parliament enacted the National Assembly and Presidential Elections Act, and that under section 23(3) of the Act, the Rules committee has made the National Assembly Elections (Election Petitions) Rules of 1993 which provide for, among other things how election petitions are to be signed. Mr *Kariuki* then contended that the determination of the issue of whether or not an election petition has been properly signed, that is whether or not there is a valid election petition before an Election Court, is necessarily a determination under or pursuant to section 44(1) and is not appealable.

I at first found this argument almost irresistible but on further examination, it is really not sustainable. As I have said repeatedly, section 44(1) provides for the determination of only two issues and read in conjunction with section 10(2) of the Constitution, three other issues are added, namely whether the President was qualified to be nominated for election as President, or was validly elected as President or was validly elected as a member of the National Assembly. Those are the questions which an Election Court is required under the Constitution, to determine, and as we pointed out to Mr *Kariuki* during the hearing of the application, neither the National Assembly and Presidential Elections Act, nor the Rules made thereunder can add another question to those set out in the Constitution. If they purported to do so, they (that is the Act and Rules) would be in conflict with the Constitution and to the extent of that conflict they and their purported addition, would be void section 3 of the Constitution. So that the issues to be determined by the Election Court must remain those which are set out in sections 10(2) and section 44(1)(*a*) and (*b*) of the Constitution.

I have already pointed out that if there was no valid election petition before an Election Court, then that court from the very beginning, would have no jurisdiction to proceed to determine the questions set out in the two sections of the Constitution and the Court would be bound to decline jurisdiction and strike out the purported petition. In my view, the question of jurisdiction, though it is in a way an interlocutory matter, is such a serious one that if Parliament had intended that a ruling on it by the Election Court is among the matters not appealable, it (Parliament) would have included it in section 44(1) of the Constitution. So that in the present application, if the Election Court had ruled that there was no valid election petition before it and struck out the petition, I would see nothing in the Constitution to prevent the applicant from coming to this Court and telling it:

> "The Election Court has wrongly ruled that my petition before it is invalid. It has consequently held that it has no jurisdiction to decide the question or questions I have raised before it under sections 10(2) and section 44(1) of the Constitution. I ask the Court of Appeal to rule that my petition is valid and hence the Election Court has jurisdiction to hear and determine the questions I have raised."

Once it is held, as I do, that the validity of an election petition is not one of the matters covered under section 44(1) of the Constitution, then section 44(5) does not apply and the ordinary appeal provisions, particularly section 66 of the Civil Procedure Act, apply and there is a right of appeal to this Court. That was the position adopted by this Court in cases such as *Mudavadi v Kibisu* and *Karanja v Kabugi and another* to which I have referred. It was not until the majority decision of the Court in the case of *Njeru v Republic (number 2)* [1979] KLR 162 that the position was doubted. It is fair to add that *Njeru*'s case was subjected to heavy criticism in the judgment, particularly that of Madan JA (as he then was) in the case of *Commissioner of Income Tax v Menon* (*supra*) (1982-88) KAR 695 and that the same case is now under a sustained attack in a specially constituted division of this Court. Accordingly, I would not wish to base my ruling, one way or the other, on the *Njeru*'s case. I have already held that section 44(5) of the Constitution has really not succeeded in totally depriving this Court of all jurisdiction in election petitions and that the matter raised by the respondent before the Election Court, namely, the validity of the election petition itself is still appealable to this Court. I would also dismiss the application with costs to the respondent but I see no reason to certify for two counsel. I would also award the Electoral Commission the costs for its counsel's attendance for the day.

For the applicant:
GBM Kariuki instructed by *GBM Kariuki and Co*

For the respondent:
AB Shah and Maxwell Ombogo

Mawji v Lalji and others
[1990–1994] 1 EA 337 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	29 June 1993
Case Number:	236/92
Before:	Kwach JA
Sourced by:	LawAfrica

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[1] Advocate – Mistake – Failure to serve copy of letter bespeaking proceedings for appeal on respondent – Failure to file appeal for one year after typed proceedings were available – Whether this was caused by mistake of counsel or by negligence – Whether averment of ignorance of law was credible.

[2] Appeal – Extension of time – Failure to serve copy of letter bespeaking proceedings on respondent – Delay to file suit for one year after typed proceedings were available – Whether this was caused by mistake of counsel or by negligence – Whether application for extension of time would be granted.

Editor's Summary

This was an application for extension of time to file a memorandum of appeal. The High Court decision was given more than five years previously. The applicant's previous advocates had written to the Court asking for certified copies of the proceedings and ruling, without copying the letter to the respondents of their advocate. They had subsequently obtained certified copies of the proceedings, one year after the typed proceedings had been available for collection.

The applicant's new advocates filed this application for extension of time. They argued that the failure of the applicant to file the appeal after the typed proceedings were ready was due to a mistaken belief by his advocates that certified proceedings were required.

Held – There was no affidavit from the applicant's previous advocates to confirm the patently absurd averment that they had not known of a change of rules which was effected five years previously relating to sufficiency of typed proceedings in the record of appeal. The delay in filing the appeal had not been caused by a genuine error or mistake of counsel but by negligence, pure and simple. Justice will be better served by allowing the negligence of lawyers in this case to fall on the heads of litigant. *Ketterman v Hansel Properties* [1988] 1 All ER 38 adopted.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Kenya National Capital Corporation v Thammo Holdings Ltd and others [1989] LLR 4070 (CAK)

United Kingdom

Ketteman v Hansel Properties Ltd [1988] 1 All ER 38 – **A**

Ruling

Kwach JA: This is an application by Baber Alibhai Mawji (the applicant) under rule 4 of the Court of Appeal Rules, for extension of time within which to file a memorandum and record of appeal. The ruling against which the applicant wishes to appeal was given by Rauf J more than 5 years ago, on 6 June 1988. The application is supported by an affidavit sworn by the applicant. A notice of appeal was lodged on 14 June 1988.

On 8 June 1988, AR Kapila and Company Advocates, who were then acting for the applicant, wrote to the Deputy Registrar of the superior Court asking for a certified copy of the proceedings and ruling. This letter does not appear to have been copied to the respondents or their advocate. Nothing further happened until 26 November 1990, when AR Kapila and Company Advocates, again wrote to the Deputy Registrar and said, *inter alia*:

> "We refer to the above case and wish to point out that on 8 June 1988, we applied for a certified copy of the proceedings and the ruling made on the 6 June 1988. So *far we have been supplied with a certified copy of the ruling but have not been supplied with a certified copy of the proceedings*" (empasis mine).

Among the documents required under rule 85 of the Court of Appeal Rules for the purposes of preparing a record of appeal, the only one required to be *certified* is the decree or order. (See rule 85(1)(*h*)).

On 5 March 1991, Kapila and Company Advocates, wrote to the Deputy Registrar yet again still asking for a certified copy of the proceedings. At that point, the applicant changed advocates and instructed Kilonzo and Company Advocates, to act for him. On 16 September 1991, Kilonzo and Company wrote to the Deputy Registrar asking for a copy of proceedings and a certificate of delay. A certificate of delay was issued purporting to cover the period from 8 June 1988 to 29 October 1991, but this cannot possibly be correct because the necessary documents were ready and available much earlier than that. Mr Rustam *Hira* had obtained copies on 4 October 1990. Besides, the letter bespeaking copies of proceedings and ruling, as I have already said, was never copied to the opposite party, so the applicant cannot take advantage of the proviso to rule 81 of the Court of Appeal Rules. This is clear from rule 81(2) of the Court of Appeal Rules. A casual perusal of the defective certificate of delay reveals that it was prepared by the advocates themselves. Although the applicant suggests in paragraph 18 of his affidavit that the Court was to blame for the delay, I cannot accept this because the documents which were required did not need to be certified as the advocates then acting for the applicant in this matter are alleged to have erroneously thought or believed.

The real reason for the delay is said by Mr *Nowrojee* to be a mistake or error on the part, of the advocates who were acting for the applicant. In paragraph 21 of his affidavit, the applicant depones:

> "(21) That in addition, my previous advocates, AR Kapila and Company Advocates, were not aware of the second amendment to rule 85 of the Court of Appeal Rules which restored the provision that uncertified proceedings were sufficient in a record of appeal and it was f or that reason that in each of the letters to the Deputy Registrar, they requested to be supplied with certified copies."

There is no affidavit from AR Kapila and Company Advocates, to confirm this patently absurd averment by the applicant that they were indeed unaware of the amendment. I am not surprised that there is no such affidavit. The amendment in question came into force way back in May 1985, and it is inconceivable that a firm of the standing of AR Kapila and Company Advocates, which is owned by some of the most able and experienced advocates in Kenya, would have been unaware of the amendment. I do not consider that what happened in this case can by any stretch of the imagination be described as a genuine mistake or error on the part of a legal adviser.

Mr *Nowrojee*, for the applicant, has cited a number of authorities including one of my own decisions, *Kenya National Capital Corporation v Thammo Holdings Ltd and others* [1989] LLR 4070 (CAK) Civil Application No 201 of 1989 to emphasise that the relevant factors which I should take into account in exercising my discretion in favour of the applicant, are all present in this case. These are an error or mistake of counsel; that the appeal involves issues of public importance relating to trust law going beyond the immediate parties; and that the subject matter is a residential property in Muthaiga, Nairobi, which the applicant has occupied for more than 16 years whose value he puts at approximately KShs 12 000 000.

Apart from the last factor, I do not believe that the other two factors are present in this case. All said and done, the bottom line is that the applicant finds himself in this unfortunate position because of negligence, pure and simple, on the part of his advocates. I do not regard what happened in this case as a genuine error or mistake on the part of the advocates.

I have arrived at the conclusion that the delay involved is inordinate and has not been explained to my satisfaction. This is one of those cases where I agree entirely with the remarks of Lord Griffiths in his speech in the, case of *Ketteman v Hansel Properties Ltd* [1988] 1 All ER 38 at 62, where he said:

> "Another factor that a judge must weigh in the balance is the pressure on the Courts caused by great increase in litigation and the consequent necessity that, in the interests of the whole community, legal business should be conducted efficiently. We can no longer afford to show the same indulgence towards the negligent conduct of litigation as was perhaps possible in a more leisured age. There will be cases in which justice will be better served by allowing the consequences of the negligence of the lawyers to fall on their own heads rather than allowing an amendment at a very late stage of the proceedings."

For all these reasons, I decline to exercise my discretion in favour of the applicant and dismiss the application with costs.

For the applicant:
Mr Nowrojee

For the respondent:
Information not available

Mayfair Holdings Ltd v Ahmed
[1990–1994] 1 EA 340 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	20 June 1990
Case Number:	18/90
Before:	Hancox CJ, Gachuhi and Gicheru JJA
Sourced by:	LawAfrica

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[1] Agency – Effect of general power of attorney under English law – Whether registration thereof compulsory in Kenya – Whether agreement for sale of land by son and agent of father enforceable as against principle – Principles to be applied when successful party deprived of costs – Sections 4, 9, 18 and 44 – Registration of Documents Act (Chapter 285) – Sections 110 and 116 – Registered Land Act (Chapter 300) – Section 10(1) – Powers of Attorney Act of 1971.

Editor's Summary

The respondent, a medical practioner, left Kenya in 1982 in order to serve the World Health Organisation in Jeddah, Saudi Arabia, leaving his son Shakeel to manage his affairs in Kenya, Pakistan and the United Kingdom. To this end in 1984 he executed a general power of attorney in the form prescribed by the United Kingdom Power of Attorney Act of 1971, which thereby conferred on the donee, Shakeel, "power to do on behalf of the donor anything which he can lawfully do by an attorney".

In February 1987, the appellant made an offer for a prime leasehold property in Kisumu of which the respondent was the owner and which was accepted by Shakeel. Both parties were at the stage

represented by the same advocate in whose offices the agreement was signed and the 10% deposit was paid by cheque in favour of the respondent. There was a conflict of evidence as to whether the cheque was paid initially to Shakeel who handed it immediately to

the advocate, whether it was handed to the advocate who retained it, or (as the defence filed averred) not handed over at all. The trial Judge expressly found that the appellant did effect payment of the deposit but it was retained by the advocate, who was doubtful of the validity of the power of attorney under Kenya law and who obtained forms for completion by the respondent of a fresh power of attorney, which the respondent subsequently refused to sign.

On the appointment of new advocates by the respondent in June 1987, the agreement was repudiated, and in December 1987, the appellant accordingly sued for specific performance, an order to execute the transfer and consequential damages.

The judge found in favour of the appellant in all but one of the seven agreed issues (which related to specific performance) but nevertheless dismissed the suit upon the grounds that as the power of attorney had not been registered under the Registration of Documents Act (which registration he held to be compulsory under section 4 of the Act) it could not be received in evidence under section 18. He accordingly found for the respondent, but held that the respondent's case was without any intrinsic merit and refused to give costs to the (successful) respondent. The appellant appealed, and by consent the appeal was argued on the issue of the validity of the agency between the respondent and Shakeel, and, consequently, whether the former was bound by the agreement.

Held – The lack of verification under section 110 of the Registered Land Act as a necessary condition for registration under section 116(2) did not render the power of attorney compulsory registrable under section 4 of the Registration of Titles Act.

Therefore, the power of attorney was not excluded from evidence by the operation of section 18 because the seventh proviso to section 4 specified that registration of documents "registrable" under the Registration Land Act is not compulsory (per Hancox CJ "registrable" means "capable of being registered").

The judge was correct in deciding that the power of attorney was to be construed for its effect according to the law of Kenya.

The power of attorney, though improperly registered by the registrar, was, therefore admissible as one of the factors necessary to establish the agency between the respondent and Shakeel, and could be considered together with all the surrounding circumstances, including the events in the advocate's offices on 3 March 1987.

Though the appellant believed in the good faith of Shakeel, and that he had authority to enter into the transaction on behalf of his father, the reservations expressed by the advocate, and in particular his retention of the cheque (which was not deposited in the respondent's account) and the preparation of further power of attorney forms for completion by the respondent, showed that all parties knew that the 1984 power of attorney did not confer on Shakeel unconditional authority to dispose of the land.

Per curiam – The conduct of Shakeel was deserving of criticism and might have resulted in a successful action against him for breach of warranty of authority had that been in contemplation by the appellants' advisers.

The judge correctly exercised his discretion to deprive the successful respondent, as defendant, of his costs.

Appeal dismissed.

Cases referred to in judgments

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Mwanasokoni v Kenya Bus Services Limited [1985] 1 KAR 870

Odd Jobs v Nubia [1970] EA 476

United Kingdom

Bevan v Webb [1901] 2 Ch 59

Brock, Re [1910] 1 Ch 130

Chatenay v Brazilian Submarine Telegraph Co [1891] 1 QB 79

Crosfield, Re [1910] Ch 118

Davis' Trade Mark, Re [1927] 137 LT 714

Donald Campbell and Company Limited v Pollak [1927] AC 732

Montgomerie v United Kingdom Mutual Steamline Assn [1891] 1 QB 370

Ritter v Godfrey [1920] 2 KB 47

Tehran-Europe Company Limited v ST Belton (Tractors) Limited [1968] 2 All ER 886

Judgment

Hancox CJ: The facts giving rise to this appeal concern an agreement for the sale of a parcel of undeveloped land in a prime position in Kisumu town, comprising 0.1862 hectares, which is said to have taken place in the offices of Mr Behan, an advocate of the High Court, in early March 1987. Because of its contiguity to the Imperial Hotel and other properties owned by Mr Gilani, the chairman of the appellant company, and because of its situation on Jomo Kenyatta Highway where development is currently taking place, it is obvious from his evidence that he was and is extremely desirous of purchasing this particular land, which is described as Kisumu Municipality/Block 8/236. The learned Judge (Omolo J) from whose decision this appeal is brought, recognised this for he referred to Mr Gilani's "passionate desire" to have it. Hence, when the advocates for the son and supposed attorney of the respondent, Mr Shakeel Ahmed, unequivocally repudiated the agreement in their letter of 19 June 1987, it is hardly surprising that Mayfair Holdings sued for specific performance of the agreement, an order for transfer of the property and damages both instead of and in addition to specific performance.

It is therefore necessary to examine in some detail the circumstances surrounding the signing of the agreement dated 3 March 1987, in Mr Behan's offices in Kenya Commercial Buildings in Kisumu. Mr Behan was the first witness to be called on behalf of the plaintiff company and from his evidence (which was not challenged on the point) it is clear that he was acting for both the parties at the material time, and it is reasonable to infer that he did not cease so to act for the son of the respondent until 19 June 1987, when his present advocates wrote to say that they were henceforth acting for Shakeel. I might mention at this stage that it frequently happens that an advocate, or a solicitor

in England, receives instructions from and acts for both parties to a sale transaction, and there is nothing unlawful in it so long as the relevant rules are not infringed. But this practice must on occasion, particularly when a dispute subsequently develops and ends up in Court, be fraught with some danger, or at least risk, to both the advocate and his client or clients.

From its inception this action has been brought against the father of Shakeel, Dr Shabbir Ahmed, a medical practitioner who left Kenya in 1982 in order to take up an appointment with the World Health Organisation in Jeddah. Since then Shakeel, who is a senior executive in Diamond Trust Limited, has generally looked after and managed his father's affairs in Britain, Kenya and Pakistan, and to this end his father executed a power of attorney in England on the 22 June 1984, which was made in the form set out in Schedule 1 to the Powers of Attorney Act of 1971, and was therefore valid under the United Kingdom Legislation but not registered in Kenya (where there is yet no corresponding Statute) until 15 June 1987, three and a half months after the date of the agreement. Leaving aside for the moment the requirements of the Registration of Documents Act (Chapter 285), it would seem that the registrar is obliged to enter a power of attorney in the register thereof if the donor or the donee make an application for that purpose, but it does not seem, on the plain wording of section 116(1) of the Registered Land Act (Chapter 300), that the donor or the donee (who is Shakeel in this particular case) is obliged to apply for it to be registered, though I respectfully agree with the learned Judge that before it can be registered it must have attached to it a certificate in the form prescribed in section 110(4) of the same Act and that it must be in the form set out at RL 17 in the third schedule to the Registered Land Act, or such other form as is approved by the registrar. By registering the power of attorney in this case on 18 June 1987, the registrar must be taken to have approved the United Kingdom form in which it was expressed. Even so, as the learned Judge held, without the certificate the registrar should not have registered the power of attorney because of the mandatory provisions of section 116(2) which say that:

> "Every such power of attorney . . . shall be executed and verified in accordance with sections 109 and 110."

As section 110 deals with verification it is perfectly plain that the document, if executed overseas, had to be verified under subsection (4) of section 110.

I turn, then, to the requirements of the Registration of Documents Act. The basis of the concluding part of the learned Judge's judgment, in which he held that because of the defect in the registration of the power of attorney, which was the foundation of the agreement of 3 March, the plaintiff/appellant, was disentitled to any relief on that agreement. But the basis, in turn, of the judge's finding on this issue was that registration of the power of attorney was compulsory and, accordingly, since it was not properly registered (because it was not verified) it could not be received as evidence without the consent of the Court under section 18 of that Act.

But was registration of the power of attorney executed by Dr Shabbir Ahmed compulsory under the Registration of Documents Act? Assuming but not deciding that this general power of attorney is a document.

> "Conferring or purporting to confer, declare, limit or extinguish any right title or interests, whether vested or contingent in or over immovable property . . . shall be registered as hereinafter prescribed."

Within the meaning of section 4, it is necessary to read on to the proviso, which states, *inter alia*, that registration of the following documents shall not be compulsory: "(vii) any document registrable under the provisions of the . . . Registered Land Act". The proviso to that subparagraph is not relevant.

Although I have not been able to find any judicial authority on the meaning of the word "registrable" (having examined the trade marks cases such as *Re Crosfield* [1910] 1 Ch 118, *Re Brock* [1910] 1 Ch 130 and *Re Davis' Trade Mark* [1927] 137 LT 714 it is stated in the *Oxford English Dictionary* to mean: "that may be registered". In the context of Chapter 285 I consider "registrable" means "capable of being registered". It may be that it could not in fact be registered without having been verified under section 110(4) but that does not in any sense mean that this particular power of attorney was not "registrable" under the Registered Land Act. It follows that since it came within the proviso to section 4, registration was not compulsory under the substantive part of that section. It follows equally, that registration was not compulsory either for the purposes of section 9, so that the two month period specified by that section is inapplicable.

It cannot therefore be gainsaid that the instant power of attorney, whether or not it complied with the verification section, was and is a "registrable" document under the Registered Land Act. It other words, I do not think it is correct to say that because of a document otherwise qualifying for registration under the Registered Land Act can become compulsorily registered under (Chapter 285) because it does not comply with one of the conditions under (Chapter 300).

Accordingly, in my judgment, the power of attorney was not inadmissible under section 18 as a document evidencing the issue of the authority of the principal, even though for the purposes of registration it did not comply with the Kenya statute.

What value then, if any, does this power of attorney have? In my opinion it has to be considered as part of the wider concept of the law relating to principal and agent. It will be a matter of fact, not of law, to determine what authority the agent in this case, that is Shakeel, had to bind the principal, that is Dr Shabbir Ahmed; who is the party sued and the respondent to this appeal.

Dr Shabbir Ahmed is of course, himself physically beyond the reach, or jurisdiction, of this Court, but he has submitted to it through his advocates whose address is his address for service. Is he therefore liable for the acts of Shakeel in entering into this agreement, which recites that he is the vendor, and the subtended signature of Shakeel is expressed to be "pp Dr Shabir Ahmed"?

There can be no doubt that, whether or not the power of attorney is in strict conformity with the Kenya law, it nevertheless constitutes Shakeel a recognised agent under Order 3, rule 2 of the Civil Procedure Rules, for the purpose of service and appearance in the suit. It was therefore advisable, though I do not need to consider if it was essential, at the inception of this suit for the heading to refer, as it did, to Shakeel as Dr Ahmed's attorney. But that kind of recognised agency for procedural purposes is distinct from the type of agent which has to be considered as part of the law of principal and agent, in order to ascertain whether a principal is bound by an agreement purportedly made by his agent. Since the defence was immediately taken over by the advocate the necessity thenceforth for a recognised agent disappeared. So the case has, so far

as the issue of liability is concerned, to be determined fairly and squarely within the law of principal and agent, and as to whether the acts of the agents are such as to bind the principal.

Turning to the pleadings, Mr *Gautama* on behalf of the appellants, has submitted that the question of whether Shakeel was acting as an agent for his father the defendant, so as to bind him by the agreement, was never an issue in the case, and he took this Court in detail through the pleadings and the record in order to demonstrate his submissions. Moreover, said Mr *Gautama*, none of the agreed issues, save number 5, challenge Shakeel's authority at all. They are all directed to the issue of whether the deposit of KShs 200 000, being 10% of the purchase price was ever paid.

Examining the pleadings for myself, this would also appear to be the tenor of the contentions advanced on behalf of the defendant. For in answer to the material paragraph, paragraph 3 of the plaint, the same paragraph in the defence makes an emphatic and elaborate denial that the deposit was ever paid to Shakeel or his advocate. It was left until paragraph 8 before an averment was made that the sale was conditional on Shakeel obtaining his father's signature, which ends as follows:

> ". . . and approval of the transaction, for which consent was not and cannot be obtained."

Pausing there for a moment, it seems to be extraordinary irresponsible for a man of the maturity and business standing of Shakeel, as he described himself under cross-examination by Mr *Gautama*, to have entered into an agreement, and to have led the other party on, and to have mislead him into thinking he was buying this desirable site, when in truth the consent of the principal "was not and could not be obtained".

At all events, the only issue, five which can possibly be said to have invoked the law of principal and agent, was answered by the learned Judge in the negative. Apart from this the real issue for him to try was one of fact: it was whether the plaintiff paid the deposit, an issue which he answered in this way: "No, the plaintiff did not fail to effect payment of the KShs 200 000".

This result, I confess, I find rather surprising in view of his earlier conclusion:

> "I reject the evidence of PW1 (Mr Behan) and PW2 (Mr Gilani) that DW1 (Shakeel) for his own convenience chose to leave the cheque with PW1. I am satisfied and I find and hold that PW1 in fact retained the cheque pending the return of the forms he issued to DW1 to be signed by the defendant."

This is despite the clear evidence of Mr Behan that "cheque for KShs 200 000 *in the name of Dr Shabir Ahmed*, which was handed to Shakeel Ahmed". (Emphasis mine).

Later, he said, "yes the cheque was handed to the vendor". At that stage there was no question but that Mr Behan was acting both for Mr Gilani and for Shakeel. So, by giving the cheque to their joint advocate, Mr Gilani was, in fact and in law, giving it to Shakeel, even if, as the learned Judge found, Mr Behan retained it, perhaps for the purposes of validating the power of attorney. Mr Gilani's evidence is identical on the point, and the cheque itself, payable to the defendant, is in evidence, dated 1 March. True Shakeel said: "The cheque for KShs 200 000 was not handed to me. The cheque was handed to Mr Behan by Mr Gilani". But in the agreement itself it is acknowledge that. The purchaser has paid on or before the signing of the agreement Kenya shillings two hundred thousand (KShs 200 000) to the vendor.

Finally, Mr Behan said that if there had been a condition that the agreement would only be valid if the father signed another power of attorney he would have included it in the agreement.

So even if Mr Behan did afterwards retain the cheque it was not in my view possible to reach a finding contrary to the evidence which is plain for all to see. Moreover, can it be said the mental reservation Mr Behan allegedly has as regards the power of attorney, which supposedly inhibited him from handing the cheque over to his other client, can be imputed to Shakeel, who himself said in evidence:

> "We wanted Mr Behan to check and see if I had the power and then prepare an agreement. When Behan was ready, he called us to sign. I signed and the other signed. Clause 5-deposit against purchase price. *It means that KShs 200 000 was already given to me*." (Emphasis mine.)

The sequence of events there demonstrated shows that the parties left it to Mr Behan to check, and then signed and that the purchasers paid the deposit, whether to Mr Behan, or directly to Shakeel, or first to Mr Behan and then to Mr Shakeel who gave it back to Mr Behan, matters not. The parties thought they had a deal and then acted accordingly. Their minds were all directed to concluding the agreement. In my judgment the question of authority did not really arise then, for Shakeel earlier had said: "I believed I had authority".

So did Mr Gilani and so did Mr Behan. In those circumstances I do not consider that the judge's finding as to the passage of the cheque made any difference to the legal consequences of handing it over. Conscious, therefore, as I am of the principles enunciated by this Court in *Mwanasokoni v Kenya Bus Services Limited and another* [1985] 1 KAR 870, as to the reversal of the finding of fact of a judge on first appeal, I would respectfully disagree with him in this case, both as regards the handing over of the cheque and the legal consequences thereof.

These findings were not, however, decisive in the result at which the learned Judge arrived, which, as I said, was because of the supposed inadmissibility of the power of attorney. Even so, it is plain that the judge regretted having to make the finding he did, for he took the drastic step of depriving the successful defendant of his costs. I say "drastic" because it is one thing to deprive a successful plaintiff, who has initiated the litigation, of this cost, on the grounds of some reprehensible conduct of which the Court desires to mark its disapproval. It is another to deny costs to a successful defendant, who has been brought to court against his will. In *Ritter v Godfrey* [1920] 2 KB 47 Lord Sterndale MR in a passage approved in *Donald Campbell v Pollak* [1927] AC 732, enunciated the principle of this form of order as follows:

> "Speaking generally, I think it may be said that in order to justify an order refusing a defendant his costs, he must be shown to have been guilty of conduct which induced the plaintiff to bring the action, and without which it would probably not have been brought. This is so stated by Vaughan Williams LJ in *Bostock v Ramsey Urban Council* [1900] 2 KB 625, and it generally may be tested by the question stated in the judgment of the two other members of the Court, AL Smith LJ and Romer LJ in the same case that is, was the defendant's conduct such as to encourage the plaintiff to believe that he had a good cause of action? I do not say that this is the only test, but I think it is the one property applied to this case."

The learned Judge, therefore, having found in favour of the appellant on all the agreed issues save number 6, (which is not relevant at this stage of the appeal) then gave judgment for the respondent because of the legal invalidity of the

power of attorney, and consequently, of the lack of any evidence of the agency between Dr Shabbir Ahmed and Shakeel, but as I have said, regarded the defendants' conduct, that is to say Shakeel's conduct, sufficiently unmeritorious so as to deprive him of the costs as a successful party.

I turn now to the law of agency. The general proposition is that "whatever a person who is *sui juris* can do personally he can also do through his agent" (per Stirling LJ in *Bevan v Webb* [1901] 2 Ch 59 at 77). The person is set out in Story on Agency (9 ed) where the author says at the beginning:

> "In the expanded intercourse of modern society it is easy to perceive that the exigencies of trade and commence, the urgent pressure of professional, official, and other pursuits, the temporary existence of personal illness or infirmity, the necessity of transacting business at the same time in various remote places, and the importance of securing accuracy, skill, ability, and speed in the accomplishment of the great concerns of human life, must require the aid and the assistance and labours of many persons, in addition to the immediate superintendence of him whose rights and interests are to be directly affected by the results."

The relationship of principal and agent can be created in many ways, for example by a verbal telephone conversation, by fax, telex or even by circumstances from which agency can be implied. The execution of power of attorney is but one of the ways in which the relationship can be so created, and if the authority of an agent is required to be conferred by deed or an instrument under seal, as where the agent is given power to execute a deed, then the necessary authority has to be conferred by a power of attorney. However, although under section 3(3) of the Contract Act (Chapter 23), a contract for the disposition of an interest in land must be evidenced by writing (as under its similar counterpart in the United Kingdom, section 40(1) of the Law of Property Act (1925)), writing is not necessary for the appointment of an agent to sell or purchase land, so that the agency in this case (if it existed) could have been created independently of a power of attorney.

Since 1971, powers of attorney are controlled in the United Kingdom by the Powers of Attorney Act, but, as I said there is no similar Act yet in Kenya. However, the wealth of the authorities that exist on this very extensive subject are in many instances concerned with examining the protection that is necessary to be given to innocent third parties contracting or otherwise dealing with an agent, whether the principal is disclosed or undisclosed.

Two further aspects of the general law relating to agency may also be stated. Firstly, that the general rule is that an agent is ordinarily neither entitled to sue nor liable to be sued on a contract made by him in a representative capacity (per Wright J in *Montgomerie v UK Mutual Steamships Association* [1891] 1 QB 370 at 371), secondly, that if an agent is acting for a foreign or overseas principal, the agent was formerly presumed to contract personally with the third party, but it is evident from the judgment of Lord Denning MR in *Teheran-Europe Limited v ST Belton Limited* [1968] 2 All ER 886 at 889 that an undisclosed foreign principal can sue and be sued on a contract, and this would be *a fortiori* the case where, as here, the foreign (and I use the word "overseas" here as synonymous with "foreign") principal is both disclosed and named.

In the instant case no question has arisen as to the personal liability of Shakeel, as agent for his father, neither did the appellants choose to sue him, either cumulatively or in the alternative for damages being such as directly flow from the breach of warranty. Whether the appellant's legal advisers should have included a claim against Shakeel personally for damages is only a matter for incidental comment here.

What is the position, then, if there is an overseas principal, an agent resident in Kenya, and the former executes a power of attorney in the English language, but under English law with no specific reference to Kenya or to a transaction intended to be conducted according to Kenya law? In the early case of *Chatenay Brazilian Submarine Telegraph Company* [1891] 1 QB 79 the Court of Appeal was called upon to consider a power of attorney executed by the plaintiff in Brazil in the Portuguese language directed to a London broker to buy and sell shares. The brokers sold shares in the defendant company and did not account for the proceeds to the plaintiff, who claimed rectification of the register, so as to restore the shares to him. It was held that, as the authority given was to buy and sell share in England, then the power of attorney was to be governed in its construction and effect by English law. Accordingly once the translation from Portuguese to English had been made, the meaning given to the power of attorney, as so translated, was to be according to English law. Lindley LJ said:

> "We have to deal with a power of attorney – a one-sided instrument, and an instrument which expresses the meaning of the person who makes it, but is not in any sense a contract. The document is in Portuguese . . . In that sense and to that extent recourse must be had to Portuguese assistance. When we have got that, and when we have got the translation, we see what this document is. It is a power of attorney executed by a person resident in Brazil, and it is a power to buy and sell shares in all countries. That being the nature of the authority how is it to be dealt with? If he buys and sells shares in England, he must buy and sell shares according to English law, and he must deal with people to whom he must produce an English translation of this document."

It will be observed that there are several distinctions between that case and the instant one. In the first place the document was in a different language and secondly the power given was specific, whereas the power here is a general one, in as much as it invokes section 10 of the United Kingdom powers of Attorney Act 1971, which provides:

> "(1) Subject to subsection (2) of this section a general power of attorney in the form set out in schedule 1 to this Act or in a form to the like effect but expressed to be made under this Act, shall operate to confer . . . authority to do on behalf of the donor anything which he can lawfully do by an attorney."

In 41 *Halsbury's Statutes of England* (3ed) there appears this interesting, and material, comment to the subsection:

> "In making the recommendation now implemented by this section and schedule 1, post, the Law Commission entered the caveat that if the attorney is likely to have to operate in foreign countries it would be preferable not to adopt the statutory form, or, it if is used, to attach to it a copy, signed by the donor, of the relevant provisions of the Act."

That is obviously of vital importance because while nationals of a particular country are presumed to know its laws, such a presumption cannot apply to persons resident elsewhere. So in the instant case Mr Gilani could not have been expected to know what was provided by section 10 of the 1971 Act. It may be advanced on his behalf, reasonably as one might think, that he as contracting in good faith with a person who was closely related to the proposed vendor whom he had no reason at that stage to doubt had authority to see the land which he was eminently desirous of acquiring. That is one potential injustice that can arise from this case. Conversely, it may be argued on behalf of Dr Shabbir Ahmed that when he gave the general power of attorney to his son in 1984, he did not have in contemplation the disposition of a valuable piece of land in Achieng Oneko Road, very close to the centre of the Municipality of Kisumu, in 1987, and it would be unjust to hold him to a bargain into which he never intended to enter.

Despite a diligent search (especially in the Digest Volume (1) and (2), I have been unable to find any authority on all fours with the present case, most of them relating to the sale of goods or movable property. After due thought, in my judgment the correct principle to be applied in the case of land is that the power of attorney has to be construed for its effect in this case according to the law of Kenya. There is of course no conflict of laws such as occurred in the Brazilian case, but in my view the learned Judge correctly addressed himself to the two Kenyan statutes, the Registration of Documents Act and the Registered Land Act, in considering the power of attorney, though, as I said earlier, I respectfully disagree with him as regards its admissibility in evidence in the instant case. In my opinion it was receivable even if not registered here, and could be taken into account with all the other evidence, including the circumstances surrounding the transaction in early February 1987, so as to determine the nature of effect of the agency and as to whether the principal (Dr Shabbir Ahmed) is liable to be sued on the agreement of 3 March 1987.

I confess I have not found this an easy question to determine, but after taking all these factors into account I have reached the conclusion (with some reluctance I again confess) that the transaction in Mr Behan's office was not final and binding on both parties. Although Mr Behan said that he had not thought that the sale was subject to the approval of Dr Shabbir Ahmed, I nevertheless conclude that the handing back of the deposit cheque to Mr Behan, coupled with the fact that he prepared a set of forms to be completed for another power of attorney to be executed by the father according to the law of Kenya, which Shakeel took to Britain in March 1987, (and which the father refused to sign), added to which was the further circumstance, as the learned Judge pointed out:

> "… PW1 (Mr Behan) remained in possession of the cheque and it was never in fact deposited in the account of the defendant."

Show that all the parties knew at that stage that the 1984 power of attorney did not give Shakeel unconditional power to dispose of the plot. I say this with much regret because I think it must have meant a lot to Mr Gilani that he had an opportunity of acquiring this piece of land so close to his existing properties, the Imperial Hotel and the Mayfair Bakery, and which he intended to develop into a multi-store shopping arcade, doubtless a great amenity to the residents of Kisumu. But, as he said, "the property is very a prime situation and location".

So, in my view, that is an additional reason for coming to the conclusion that it would be unjust to hold that Dr Shabbbir Ahmed should be held to a transaction to which his mind was clearly not directed, either when he executed the power of attorney in 1984, or when the transaction took place in 1987.

Having come to this conclusion, I do not need to decide on the sixth issue nor on the fifteenth ground of appeal, as to whether specific performance should be ordered, both counsel who appeared before us having reserved their submissions on this issue, dependent as it is on a validity of the authority of Shakeel to bind the defendant to the transaction.

Having dealt with the substantive part of the appeal, I turn again to the question of the costs. I have already referred in outline to the principles to be observed in not awarding costs against the unsuccessful party. But I desire to take this a step further. In the same case (*Ritter v Godfrey*) Lord Sterndale MR also said (at 52 and 53):

> "There is such a settled practice in the Courts that in the absence of special circumstances

> a successful litigant should receive his costs, that it is necessary to show some ground for exercising a discretion by refusing an order which would give them to him. The discretion must be judicially exercised, and therefore there must be some grounds for its exercise, for a discretion exercised on no grounds cannot be judicial."

In the later case of *Donald Campbell v Pollak* both Lord Cavel LC and Lord Atkinson (at 811 and 814) approved of this statement. Lord Atkinson said:

> ". . . I think this judgment of Lord Sterndale contains a clear condensed and accurate statement of the law and of the prevailing practice on the points with which it deals."

It also, in my opinion, accords with section 27(1) of the Civil Procedure Act and its proviso; which it is evident from the concluding part of his judgment the learned Judge in this case had very much in mind. The proviso reads:

> "Provided that the costs of any action, cause or other matter or issue shall follow the event unless the Court or judge shall for good reason otherwise order."

So the principles regarding the award of costs and the discretion to be exercised in doing so are in essence incorporated into the laws of Kenya. Applying that to the instant case, did the learned Judge give valid grounds for exercising his discretion to deprive the successful defendant of his costs, remembering that the actual party who was being deprived of his costs was Dr Shabbir Ahmed and not his son Shakeel, whose conduct substantially in my view, encouraged, and certainly precipitated, the litigation? The judge said:

> "On costs, the plaintiff has basically lost and the defendant has in fact won. Under the proviso to section 27(1) of the Civil Procedure Act, the Court should, therefore award costs to the defendant. But I do not think I am prepared to do this. The defendant donated the power of attorney to his son DW1. The son accepted that power of attorney and on the basis of the same he led PW2 into entering into the agreement, obviously holding out to PW2 that the power of attorney was valid. It was the duty of DW1 to register the power of attorney so as to make it comply with the Law of Kenya and it is principally on the basis that as the power of attorney was not registered, no valid agreement was made on 3 March 1987 that the defendant has succeeded. To put it another way, the defendant has succeeded simply because DW1 failed to register the power of attorney, and not on intrinsic merit in any case. In these circumstances, and exercising my discretion as regards costs under section 27(1) of the Civil Procedure Act, I shall not award to the defendant the costs of the suit."

In my judgment the conduct of the two Dr Shabbir, Ahmed and Shakeel, are to be considered together as regards this issue. If the respondent had not given his son an unlimited power of attorney, knowing that he had a property in Kenya, even though he may not at that time have envisaged its sale, then this situation would not have occurred. I consider therefore that the judge was right in taking the conduct of both of them into account in exercising his discretion. I entirely agree with the learned Judge when he said that there was no intrinsic merit in the defendant's case. For myself had I been trying this case, I should have invited the plaintiff's to consider amending and joining Shakeel so as to charge him with breach of warranty of authority, for he caused a lot of trouble and expense, not to mention distress, to the other party by his action. This was however, not done, and it is not open to us to consider that aspect on this appeal.

For the reasons I have endeavoured to state, therefore, I would dismiss the appeal, though not precisely for the same reasons that Omolo J dismissed the action.

Applying the principles stated in *Ritter v Godfrey* and *Donald Campbell v Pollak* (*supra*) and after careful consideration of all the matters stated above, I find myself in further agreement with the judge as regards the costs of the action. He gave reasons for the exercise of his discretion which in my judgment were perfectly correct, and for the same reasons I would not give the respondent any costs of this appeal.

I would move, accordingly, that this appeal be dismissed with no order as to costs. As Gachuhi and Gicheru JJA agree, it is so ordered. It will be apparent, then, that the remaining issue of whether the plaintiff is entitled to specific performance does not now fall to be decided.

Gachuhi JA: I have read the draft judgments prepared by Hancox CJ and Gicheru JA and I agree that this appeal should be dismissed with no order as to costs.

However, I would like to add that any dealing with the land registered under the Registered Land Act (Chapter 300) has to comply with the provisions of the Act. Section 4 of the Act provides:

> "Except as otherwise provided in this Act, no other written law and no practice or procedure relating to land shall apply to land registered under this Act so far as it is inconsistent with this Act."

The plaintiff in its suit prayed for specific performance of the agreement of sale signed by donee of a General Power of Attorney Act 1971. The said agreement of sale was not executed as provided by the Laws of Kenya (Chapter 300) and as such it was defective and could not be relied upon. PW1 realised this and prepared a fresh Power of Attorney to be executed according to Kenya Law by the respondent which he refused. Having refused to sign it, there was no way he could have been bound by a defective agreement of sale.

Gicheru JA: Section 10(1)(*a*) of the United Kingdom Powers of Attorney Act of 1971 provides:

> "10(1)(*a*) Subject to subsection (2) of this section, a general power of attorney in the form set out in Schedule 1 to this Act, or in a form to the like effect but expressed to be made under this Act, shall operate to confer on the donee of the power, authority to do on behalf of the donor anything which he can lawfully do by an attorney."

Subsection (2) referred to in paragraph (*a*) of subsection (1) of the foregoing section relates to the inapplicability of that section to functions which the donor of a general power of attorney has as a trustee or personal representative or as a tenant for life or statutory owner within the meaning of the United Kingdom Settled Land Act of 1925.

On 22 June 1984 Dr Shabbir Ahmed, the respondent, appointed his son, Shakeel Shabbir Ahmed (DW1), a resident of Kisumu in Kenya, to be his attorney in accordance with section 10 of the United Kingdom Powers of Attorney Act of 1971. This appointment was in the form set out in Schedule 1 to that Act. The general power of attorney donated by the respondent to DW1 and which is hereafter referred to as the power of attorney, was intended to take effect in accordance with the relevant provisions of section 10(1)(*a*) of the Act aforementioned as are set out above. It therefore gave DW1 authority to do on behalf of his father, the respondent, anything which he (the respondent) could lawfully do by an attorney.

Sometime in the month of February 1987, Mr Sadrudin Manji Gilani (PW2) met DW1 at a dinner and the two discussed the sale of plot number Kisumu Municipality/Block 8/236, the plot, measuring about 0.1862 hectares and registered in the name of the respondent under the Registered Land Act (Chapter 300) of the Laws of Kenya (the Act). PW2 is the chairman of Mayfair Holdings Limited, the appellant. He negotiated the sale of the plot for the appellant while DW1 was acting for the respondent in this regard. It was agreed that the appellant would purchase the plot from the respondent at a price of KShs 2 million. In connection therewith, on 3 March 1987 the parties appeared before Mr Joginder Singh Behan (PW1), an advocate of the High Court of Kenya, to whom the power of attorney together with a certificate of lease in respect of the plot were produced by DW1. On the same day, PW1 who was then acting for both parties drew up a sale agreement, the agreement, for them which they executed in his presence on that day.

Upon execution of that agreement, the appellant handed in cheque number 902875 for KShs 200 000 dated 1 March 1987. The cheque was drawn by the appellant in favour of the respondent and was payment of the 10% deposit against the purchase price. The cheque was retained by PW1 who, being uncertain of the effectiveness of the power of attorney as concerns the transaction involving the plot, prepared another power of attorney in the form prescribed under the Act. This latter power of attorney was handed over to DW1 who was soon going to the United Kingdom and was to have it executed by the respondent and then returned to PW1. Meanwhile, the cheque mentioned above was to be collected from PW1 by DW1 when the latter returned from England. On his return in May 1987 DW1, informed PW1 that the respondent was unwilling to proceed with the deal. The subsequent power of attorney prepared by PW1 was therefore not executed by the respondent. Consequently, DW1 did not collect the cheque referred to above from PW1. The deal fell through.

The appellant filed a suit in the superior Court against the respondent seeking specific performance of the agreement, an order for the transfer of the plot, and damages for breach in lieu of or in addition to specific performance together with interest thereon at court rates. The respondent's only substantive defence was that the power of attorney was not registered under section 116(1) of the Act. This defence was not pleaded. It only featured at the trial of the suit and upon it turned the decision of the superior Court. The appellant, through counsel, however, participated in the consideration of the issue of registration of the power of attorney both at the time of leading evidence and final address to the said court. Although therefore this issue was not pleaded, from the proceedings before the superior Court, it clearly was left to that court for decision – see the case of *Odd Jobs v Nubia* [1970] EA 476 at 478 (letters H and I).

In his judgment, the trial Judge, Omolo J, found that the power of attorney did not qualify for registration under section 116(1) of the Act as it lacked the certificate prescribed under section 110(4) of the same Act. He therefore held that its subsequent registration of 15 June 1987 was wrong. He then observed:

> "The plaintiff is seeking an equitable remedy from the Court and one of the vital documents upon which he relies does not comply with the requirements of the laws of Kenya. It was not registered under section 9 of the Registration of Documents Act. It was registered under the Registered Land Act, but the registration as I have

> held would appear to have been in violation of section 110(4) of the Act. One of the Maxims of equity is that "Equity follows the law". It cannot override specific provisions of a written law – see *Halsbury's Laws of England*, (4 ed) page 871 paragraph 1299. The power of attorney which is the foundation of the agreement of 3 March 1987 is so defective under the laws of Kenya that it would be wrong to hold the defendant bound by the agreement of 3 March 1987 and to order specific performance of the same. Nor can there by any question of damages to the plaintiff when it is the agreement itself which is rendered invalid by the operation of the law."

The parties had framed a total of seven issues for determination by the superior Court. After indicating his answers to these issues, the learned Judge finally concluded:

> "It was the duty of DW1 to register the power of attorney so as to make it comply with the laws of Kenya and it is principally on the basis that as the power of attorney was not registered, no valid agreement was made on 3 March 1987, that the defendant has succeeded. To put it another way, the defendant has succeeded simply because DW1 failed to register the power of attorney, and not on any intrinsic merit in his case. In these circumstances, and exercising my discretion as regards costs under section 27(1) of the Civil Procedure Act, I shall not award to the defendant the costs of the suit. My final order in the matter shall be that I order the plaintiff's suit dismissed but each party shall bear his or its costs of the suit."

Against the entire decision of the superior Court, the appellant appeals to this Court and has put forward 17 grounds of appeal. Principally, these grounds concern themselves with the legal effect of the power of attorney in view of its non-registration either under the Registration of Documents Act (Chapter 285) of the Laws of Kenya or in compliance with the requisite provisions of the Act; and the validity of the agreement and its enforceability by an order of specific performance.

The preamble to the Act reads:

> "An Act of Parliament to make further and better provision for the registration of title to land, and for the regulation of dealings in land so registered, and for purposes connected therewith."

As is mentioned above, the plot, the subject matter of the agreement, was registered under the Act. The agreement was a dealing in the plot. It was therefore regulated by the Act.

Section 38(1) of the Act provides that:

> "No land, lease or charge shall be capable of being disposed of except in accordance with this Act, and every attempt to dispose of the land, lease or charge otherwise than in accordance with this Act shall be ineffectual to create, extinguish, transfer, vary or effect any estate, right or interest in the land, leas or charge."

Thus, the disposition of the plot was governed by the relevant provisions of the Act if the same was to be effective.

Subsections (1) and (2) of section 85 of the Act are in the following terms:

> "85 (1) A proprietor may transfer his land, lease or charge to any person (including himself), with or without consideration, by an instrument in the prescribed form.
>
> (2) The transfer shall be completed by registration of the transferee as proprietor of the land, lease or charge and by filing the instrument."

In the instant appeal therefore, the respondent could have transferred the plot to the appellant by an instrument in the prescribed from and that transfer would have been completed by registration of the appellant as the proprietor of the plot and by filing the instrument.

Under the provisions of section 108(1) of the Act:

> "Every disposition of land, a lease or a charge shall be effected by an instrument in the prescribed form or in such other form as the registrar may in nay particular case approve, and every person shall use a printed form issued by the registrar unless the registrar otherwise permits."

The form prescribed for instruments effecting disposition of land, a lease or a charge are set out in the third schedule to the Registered Land Rules made under section 160 of the Act, the Rules. Sections 109 and 110 of the Act respectively provided for the execution of these instruments and verification of their execution.

The provisions of section 114(1) of the Act are as follows:

> "114(1) except as provided in subsection (3) of this section, no instrument executed by any person as agent for any other person shall be accepted by the registrar unless the person executing it was authorised in that behalf by a power of attorney executed and verified in accordance with section 109 and 110."

Subsection (3) referred to in subsection (1) of section 114 as is set out above concerns representation of persons under disability in matters connected with the Act.

As I have pointed out above, the authority given to DW1 by the power of attorney in any matter which the respondent could lawfully do by an attorney was unrestricted. That power was unlimited in its application in respect thereof. The respondent could have lawfully executed an instrument evidencing a disposition of land a lease or a charge by his attorney – DW1 if the power of attorney was executed and verified in accordance with sections 109 and 110 of the Act.

Section 109(2)(*a*) of the Act where relevant stipulates that: "an instrument shall be deemed to have been executed only – by a natural person, if signed by him".

There is no doubt that the power of attorney was signed by the respondent on 22 June 1984. It therefore complied with the relevant provisions of section 109(2)(*a*) of the Act. However, its execution required verification under section 110 of the Act. Subsections (1) and (2) of the latter section which lay down the mode of such verification provides:

> "110 (1) Subject to subsection (3), a person executing an instrument shall appear before the registrar or such public officer of other person as is prescribed and, unless he is known to the registrar or the public officer or other person, shall be accompanied by a credible witness for the purpose of establishing his identity.
>
> (2) The registrar or public officer or other person shall satisfy himself as to the identity of the person appearing before him and ascertain whether he freely and voluntarily executed the instrument, and shall complete thereon a certificate to that effect."

Subsection (3) referred to in subsection (1) of the foregoing section relates to the Registrar's power to dispense with verification under that section in certain circumstances.

Rule 7 of the Rules is in the following terms:

> "7 (1) In addition to the registrar and the persons specified in section 110 of the Act, the public officers and other persons specified in the fourth schedule may verify any instrument of the purposes of that section.

(2) A certificate for the purpose of subsections (2) and (4) of section 110 of the Act shall be in the following form, which may be printed on, or otherwise incorporated in, any instrument presented for registration:

I certify that the above named ... appeared before me on the ... day of ... 19 ... and, being identified by . . . (or being known to me), acknowledge the above signatures or marks to be his (theirs) and that he (they) had freely and voluntarily executed this instrument and understood its contents.

Signature and designation of person certifying.

And the registrar or the public officer or other person certifying (if he has a seal or stamp of office) shall affix his seal or stamp of office to the certificate."

The prescribed officers and other persons specified in the fourth schedule to the Rules are:

"(1) For instruments executed in Kenya:

(i) A judge or magistrate.

(ii) The registrar and the Deputy registrar of the High Court.

(iii) The registrar-general, the deputy registrar-general and any assistant registrar-general.

(iv) An administrative officer.

(v) A superintendent of Prisons.

(vi) An advocate.

(vii) A bank official.

(2) For instruments executed in a foreign country:

A notary public."

The power of attorney was executed in a foreign country – England. For the purposes of subsections (1) and (2) of section 110 of the Act as are set out above, it required to be verified by a notary public. It was not. For its legal effect therefore, it did not comply with one of the two essential requirements set out under section 114(1) of the Act.

By reason of this impediment, an instrument evidencing disposition of the plot executed by DW1 would have not been accepted by the Registrar. As a result, neither would the respondent have been able to transfer the plot to the appellant nor would the latter have been registered as proprietor of the same – see subsections (1) and (2) of section 85 of the Act. Accordingly, the agreement was unenforceable. The non-registration of the power of attorney either under section 116(1) of the Act or under the relevant provisions of the Registration of Documents Act was of no consequence in relation thereto. I would also hasten to add that as the transaction between the parties was regulated by the Act, the Registration of Documents Act had no application to it.

Section 116(1) of the Act provides that:

"Upon the application of the donor or the donee of a power of attorney which contains any power to dispose of any interest in land, such power of attorney shall be entered in the register of powers of attorney and the original, or with the consent of the registrar a copy thereof certified by the registrar, shall be filed in the file of powers of attorney."

As Hancox CJ, has correctly stated in his judgment which I have had the benefit of reading in draft, from the foregoing subsection, it is not obligatory for the donor or the donee of a power of attorney as is referred to therein to apply for its registration. Indeed, the effect of registration of such a power of attorney is to protect third parties as is set out under section 117 of the Act. That section is as follows:

"117 (1) A power of attorney which has been registered under section 116 and of which no notice of revocation has been registered under that section shall

be deemed to subsisting as regards any persons acquiring any interest in land affected by the exercise of the power, for valuable consideration and without notice of revocation and in good faith, or any person deriving title under such a person.

(2) Any person making any payment or doing any act in good faith in pursuance of a power of attorney registered under section 116 shall not be liable in respect of the payment or act by reason only that before the payment or act the donor of the power had died or become subject to a disability or become bankrupt, or had revoked the power, if the fact of death, disability, bankruptcy or revocation was not at the time of the payment or act known to the person making or doing the payment or act."

Clearly, under the foregoing section, the purposes of registration of power of attorney as is set out in section 116(1) of the Act are well defined. Hence, lack of registration of the power of attorney did not affect the validity of the agreement. It was therefore incorrect for the trial Judge to hold that the non-registration of the said power of attorney invalidated the agreement. Indeed, had the parties and their counsel (PW1) been a little more diligent before executing the agreement, they would have ensured that the power of attorney was verified in accordance with subsection (1) and (2) of section 110 of the Act and they may have prevented the agreement from coming to grief. This was not done, and owing to the unenforceability of the agreement as is set out above, the same was incapable of specific performance.

For its full effect, the agreement was made with reference to the Act. The parties thereto knew that it was subject to the relevant provisions of the Act. They were enjoined in ensuring compliance thereof. As concerns the verification of the power of attorney, they both overlooked it or did not appreciate its importance to the agreement. This lapse struck to the root of the agreement. Both parties were to blame for it. For this, they had to bear their own costs of the suit in the superior Court and not because DW1 had failed to register the power of attorney under section 116(1) of the Act.

From what I have tried to outline above, I agree with Hancox CJ that this appeal be dismissed with no order as to costs.

For the appellant:
S Gautama

For the respondent:
CL Kassarani

Mazambi v Republic
[1990–1994] 1 EA 356 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	23 December 1991
Case Number:	42/91
Before:	Ramadhani, Mnzavas JJA and Mapigano AJA
Sourced by:	LawAfrica

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[1] Crime – Aiding and abetting murder – Appellant argues there was compulsion – Whether

compulsion is a defence to the charge – Whether the compulsion was continuous.

[2] Criminal procedure – Repudiated confession – Need for trial within a trial – Whether failure to hold the trial within a trial renders the repudiated statement inadmissible.

[3] Evidence – Repudiated confession – Whether there was sufficient corroborating evidence – Whether conviction would be sustained after confession held inadmissible.

Editor's Summary

The appellant was convicted of aiding and abetting a murder. The evidence showed that he hit the iron sheet door of the deceased's house and barked orders to the inmates of the house to lie down. The appellant was also to prohibit neighbours from coming out of their houses, while his accomplices inflicted violence on the deceased. After conviction, the appellant appealed. He argued that his confession had been repudiated and was wrongly admitted without a trial within a trial. Further that he had acted under compulsion from his accomplices.

Held – The repudiated confession of the appellant was inadmissible for failure to hold a trial within a trial, notwithstanding that the appellant's trial advocate had withdrawn his request for the trial within a trial. Further, the repudiated confession was hearsay since the interpreter who took down the confession was not called to testify. *R v Mabara Petro* (1936) 3 EACA 119 followed.

However, after exclusion of the repudiated statement, the corroborated evidence of the prosecution's witnesses was sufficient to sustain the conviction. The defence of compulsion was not available in view of the evidence of the prosecution witnesses. Even if there was compulsion, it did not continue "during the whole of the time" the offence was committed.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

DPP v Regina Karantini and another criminal appeal number 110 of 1988 (UR)

Republic v Mabara Petro [1936] 3 EACA 119

Judgment

Ramadhani, Mnzavas JJA And Mapigano AJA: Before us came Mr *Matata* learned counsel, on behalf of the appellant, Masanja Mazambi, who was convicted of the murder of Deha d/o Malaba at Mitindo Misungwi, Kwimba District, on or about 13 May 1988. The learned advocate had four reasons for challenging the judgment of Masanche J who presided over the trial before the High Court of Tanzania at Mwanza.

Firstly, Mr *Matata* said the learned trial Judge was wrong to admit the cautioned statement of the appellant as exhibit P3. Then, he maintained that the

testimonies of PW1 and PW2 ought to have been rejected as the appellant made an involuntary confession to them. Yet, the learned advocate argued that the learned Judge erred in holding that the appellant was an aide and abbetor. Lastly, Mr *Matata* contended that the defence of compulsion was available to the appellant.

The respondent/Republic was represented by Mr *Mussa*, learned Senior State Attorney, who supported the findings of the learned Judge as being firmly grounded on the properly received evidence before him.

The learned trial Judge believed Paulo Fita Kasambale, the chairman of Misungwi village (PW1) and Paulo Ruhumbika, the secretary of the same village (PW2) who, in the main, said that the deceased was found dead at her house after having been slashed by a panga by unknown persons. Somehow the Sungusungu got wind of who the assailant was and so they netted one Jagi Magangana who disclosed the appellant as his associate. It is a pity that Jagi died before the trial. The appellant was then sent to the CCM Branch where, under the interrogation of the Sungusungu, owned the killing. The appellant told PW1 and PW2 that he was taken to the house of the deceased by Jagi without knowing the purpose. While there he was given a stick and a torch. His assignment was to hit the iron sheet door of the deceased's house and bark orders of lying down to the inmates of the house and to prohibit neighbours from coming out of their houses. The appellant did that obediently while Jagi broke into the house and, after dragging the poor lady to the door, hacked her with the panga he was carrying. Jagi and the appellant then swiftly abandoned the scene. The appellant made a cautioned statement before the police and that was admitted as exhibit P3 and now forms the first ground of this appeal.

Mr *Matata* had three reasons in attacking the admissibility of that statement. Firstly, he said that it was a hearsay piece of evidence since it was made through an interpreter who was not called to testify. He said that in *Republic v Mabara Petro* (1936) 3 EACA 119 it was held that such statement was inadmissible. Then he said that the provisions of section 57(4) of the Civil Procedure Act were not complied with. Lastly, he pointed out that there was not a trial within a trial. On the other hand, Mr *Mussa* said that the statement was admissible despite the fact that the interpreter was not called to testify. He cited *DPP v Regina Karantini and another* criminal appeal number 110 of 1988 (UR) at P5 which held such statement to be admissible but not reliable.

We agree with Mr *Matata* that the statement was inadmissible for the failure to hold a trial within a trial. When ASP Mohamed Magenda (PW3) wanted to tender the statement, Mr Magongo, the defence counsel at the trial, objected and prayed for a trial within a trial but he withdrew the prayer upon being asked a few questions from the bench. This was most unfortunate. That prayer should not have been refused or even objected to by the prosecution. A trial within a trial has to be conducted whenever an accused person objects to the tendering of any statement he has recorded. We do not find it necessary to go into the non-compliance with section 57 of the Civil Procedure Act or the two authorities that were cited to us.

Mr *Matata* submitted that once exhibit P3 is excluded then there is no evidence left on which to base a conviction because of the inconsistencies in the testimonies of PW1 and PW2. He then said that the Sungusungu are notorious for torture and that is the treatment the appellant claimed to have received

while in their custody. The learned counsel said that the learned Judge brushed off that claim on grounds that the scars which the appellant exhibited to support his claim were insignificant. Mr *Matata* submitted that the learned Judge viewed the scars in 1991 while the injuries had been inflicted in 1988 and that the scars had faded away.

We agree with Mr *Mussa* that even without exhibit P3 the evidence of PW1 and PW2 is enough to support the conviction. Mr *Matata* did not quote us any example of contradictions between PW1 and PW2. Admittedly there were minor variations in what they said which are due to the lapse of time and are a healthy sign that they had not rehearsed the evidence. Besides that, the learned Judge who tried the case heard and observed the witnesses when testifying and believed them.

The third ground of appeal is baseless. Mr *Matata* conceded that if PW1 and PW2 are believed then the appellant was an aider and abbetor.

As for the last ground, with respect to Mr *Matata*, it is hopeless. The defence of compulsion is not at all available to the appellant. Even assuming that there was compulsion, then it was not "during the whole of the time" the offence was committed.

We thus dismiss the appeal.

For the appellant:
Mr Matata

For the Republic:
Mr Mussa, Senior State Attorney

Mbithi v Municipal Council of Mombasa and another
[1990–1994] 1 EA 359 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	22 January 1993
Case Number:	3/92
Before:	Gicheru, Kwach and Muli JJA
Sourced by:	LawAfrica

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[1] Appeal – Jurisdiction – Ex parte *appeal – Appeal against refusal to grant extension of time to seek compensation for tortuous negligence – Whether Court of Appeal has jurisdiction to entertain appeal – Whether appeal should be prosecuted ex parte – Sections 27, 28 and 30 – Limitation of Actions (Chapter 22) – Rule 73 – Court of Appeal Rules.*

[2] Limitation of actions – Extension of time – Suit against public authority and third party statute-barred – Applicant ignorant of the limitation law – Whether ignorance of law is a material fact for which extension of time can be granted – Sections 27, 28 and 30 – Limitations of Actions Act (Chapter 22).

[3] Limitation of actions – Public authority – Limitation period of one year – Whether period of limitation can be extended – Section 3(1) – Public Authorities Limitation Act (Chapter 39) –

Limitations of Actions Act (Chapter 22).

Editor's Summary

The appellant's son drowned in a pit dug by the second respondent contractor at a school owned by the first respondent local authority. Following the death of his son on 14 April 1988, an inquest was ordered. The inquest ran from July 1989 to February 1991 when the ruling was delivered. He thought he could not bring the suit until the persons found responsible under the inquest had been charged in criminal court. Only in July 1991 when he consulted his advocate did he learn that he could not sue because his claim was time-barred, both against the public authority and against the contractor.

Under statute, the limitation period for a claim against a public authority was one year and for a tortuous claim against a third party was three years. The appellant therefore made an *ex parte* application for extension of time under the limitation of actions act, pleading mistake. The application was dismissed, and the applicant appealed to the Court of Appeal against the dismissal.

The Court of Appeal considered whether it was appropriate in the circumstances for the appeal to be heard *ex parte*. The court also considered whether the plea of ignorance of law made by the appellant was sufficient ground for granting extension of time.

Held – Unless any appeal from the superior Court is prohibited by law, the Rules of this Court allow for appeals from the High Court in both its original and appellate jurisdiction. It follows that this Court has jurisdiction to hear appeals from the decisions of the High Court relating to extension of the period of limitation.

The grant of an order for extension of time to file suit is made after an *ex parte* application and can only be challenged in the subsequent proceedings. This is an exception to the general rule that a party against whom an *ex parte* order has been made can apply to the Court which made the order to set it aside. Hence, the Court had taken the right decision in allowing the appellant to proceed *ex parte*. *Cozens v North Devon Hospital Management Committee* [1966] 2 All ER 799 adopted, *Oruta and another v Nyamato* [1984] LLR 2773 (CAK) follows, *Gatune v Headmaster Nairobi Technical School* civil appeal number 79 of 1982 distinguished.

An application for extension of the period of limitation under sections 27 and 28 of the Limitation of Actions Act does not apply to a local authority.

Ignorance of the statutory period of limitation of law could not constitute a material fact of a decisive nature for which extension of time would be granted. *Mweu v Kabai and another* [1972] EA 242 followed; *Drinkwater v Joseph Lucas* [1970] 3 All ER 769 adopted. Only restricted material facts relating to the nature, degree and liability for the injury which were decisive in character and which were outside the applicant's actual or constructive knowledge could constitute grounds for extension of time. *Re Pickles v National Coal Board* [1968] 1 WLR 997 distinguished.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Gatune v Headmaster Nairobi Technical High School and Attorney-General civil appeal number 79 of 1982 (UR) – **D**

Mweu v Kabai and another [1972] EA 242 – **F**

Oruta and another v Nyamato [1984] LLR 2773 (CAK) – **F**

United Kingdom

Cozens v North Devon Hospital Management Committee [1966] 2 All ER 799 – **A**

Drinkwater v Joseph Lucas [1970] 3 All ER 769 – **A**

Pickles v National Coal Board, Re [1968] 1 WLR 997 – **D**

Judgment

Kwach JA: This appeal raises a very important issue of law, namely whether on the facts contained in the affidavit of Bernard Mutonga Mbithi (the appellant sworn on 18 September 1991, he was entitled to be given leave to bring an action against Municipal Council of Mombasa and Ali Mbaraki Ali (the respondents).

The appellant deponed that on 14 April 1988, his son drowned in a pit dug by the second respondent at a school owned by the first respondent. His intention right from the beginning was to sue both respondents to recover damages for the death of his son but he did not do so. The appellant said that following the death of his son, an inquest was ordered into the death and this ran from 12 July 1989, until 19 February 1991, when the ruling was delivered. He thought that he could not bring proceedings until the persons found by the Magistrate to have been responsible for the death of his son had been charged with a criminal offence. When he consulted his advocate in July 1991, he was informed that he could not sue because the claim was time-barred. The claim against the first respondent, which is a local authority, should have been brought within one year from the date of the accident. This is provided for under section 3(1) of the Public Authorities Limitation Act (Chapter 39) which states:

> "3 (1) No proceedings founded on tort shall be brought against the Government or a local authority after the end of twelve months from the date on which the cause of action accrued."

Under section 4(2) of the Limitation of Actions Act (Chapter 22), the claim against the second respondent should have been brought within three years from the date on which the cause of action accrued.

The application by the appellant for leave to file suit out of time was made under sections 27 and 28 of the Limitation of Actions Act, which does not, of course, apply to a local authority. Mr *Juma*, for the appellant, did not seem to be aware of this. When his attention was drawn to this fact he said he was not seeking any orders against the first respondent.

Shield J heard the application on 28 October 1991, and in his characteristic brevity, dismissed it holding that he did not think the result of the inquest was a material fact within section 27 of the Limitation of Actions Act.

I must confess that initially I entertained some doubt whether the appellant should have been allowed to prosecute this appeal *ex parte*. It would appear that notwithstanding the provisions of section 27 of the Act, the question whether

or not the plaintiff was entitled to the extension can only be challenged in the proceedings. This is one of the exceptions to the general rule that a party against whom an *ex parte* order has been made, can apply to the Court which made the order to set it aside. The Court of Appeal in England in the case of *Cozens v North Devon Hospital Management Committee* [1966] 2 All ER 799, held that although it was a general principle in regard to *ex parte* orders that the party affected by the order could apply for it to be discharged, yet it would be contrary to the intention of the Limitation Act of 1963 to allow a defendant to apply, before the trial of the action, to set aside an *ex parte* order obtained under section 2(1) giving leave for the purposes of section 1(1)(*a*) of the Act. Lord Denning MR said at 801:

> "Now I quite agree that in general a party affected by an *ex parte* order can apply to discharge it. We applied this rule as of course *in Republic v Morley* (Valuation Officer) EP Peachey Property Corporation Ltd recently; but the procedure under the Limitation Act 1963 is altogether exceptional. It says in terms that an application shall be made *ex parte*. This is a strong indication that the judge is to decide the application on hearing one side only. No provision is made for the defendant being heard; and I do not think that we should allow it to be done at this stage. It must be remembered that, even when the judge grants leave, there is nothing final about it. It is merely provisional. The defendant will have every opportunity of challenging the facts and the law afterwards at the trial. The judge who tries the case is the one who must rule finally whether the plaintiff has satisfied the conditions for overcoming the time bar. He is not in the least bound by the provisional view expressed by the judge in chambers who gave leave."

And Danckwerts LJ in the same case said at 804:

> "It appears to me that it would be contrary to the clear intention of the Act of 1963 if, once an *ex parte* order has been made, an application to set that order aside could be made before the trial of the action. In the result the general principle in regard to *ex parte* orders has, in my opinion, been excluded."

Cozens' case (*supra*) was cited with approval in this Court's decision in the case of *Oruta and another v Nyamato Civil Appeal No 96* [1984] LLR 2773 (CAK). In spite of this, this Court in the case of *Gatune v Headmaster Nairobi Technical High School and Attorney-General* civil appeal number 79 of 1982 (UR), allowed the respondents to be represented in the appeal. In that case, the appellant had applied to a judge *ex parte* under section 28 of the Limitation of Actions Act (Chapter 22) to be granted leave to file a suit for damages against the respondents. The judge dismissed his application and he appealed to this Court. The record shows that the respondents were represented but the question whether or not they should have been heard at all was never raised and the Court therefore did not deal with the matter. If objection had been taken against their representation, it would almost certainly have been sustained. So in this case, I am satisfied that we took the right decision when we allowed the appellant to proceed *ex parte*.

I will now turn to the substance of the appeal. The reason given by the appellant as to why he did not file a suit was that he thought he was legally obliged to await the outcome of the inquest. He thought he could not bring proceedings before the inquest came to an end. He pleaded ignorance of the law. The issue to be determined in this appeal therefore is whether ignorance of the law can constitute a material fact of a decisive nature within the meaning of section 27 of the Act. The judge, relying on the case of *Mweu v Kabai and another* [1972] EA 242, held that ignorance of the law did not constitute a

material fact. In that case the applicant applied for leave to file an action outside the limitation period on the ground that material fact. In that case the applicant applied for leave to file an action outside the limitation period on the ground that material facts were outside his knowledge. He had been injured in a traffic accident in respect of his driving and he was subsequently imprisoned. It was contended that it was outside his knowledge that his injuries were attributable to the other driver's negligence, and that he did not know the statutory period of limitation. Trevelyan J held *inter alia* that ignorance of the statutory period of limitation could not be a material fact within the section. He relied on the dicta of Salmon LJ and Cross JJ in the case of *Drinkwater v Joseph Lucas* [1970] 3 All ER 769. With respect, that decision was correct.

The Court will grant an application for leave to bring an action after the expiry of the normal three-year limitation period if the plaintiff proves that material facts relating to his cause of action were or included facts of a decisive character which were at all times outside the knowledge of the plaintiff until a date which was either after the end of the three-year period or not ealier than twelve months before its end and was, in either case, not more than twelve months before the date on which the action was brought. Material facts are restricted to three categories of fact, namely, (*a*) the fact that personal injuries resulted from the negligence, nuisance or breach of duty constituting the cause of action; (*b*) the nature or extent of the personal injury so resulting; and (*c*) the fact that the personal injuries were attributable to the negligence, nuisance or breach of duty or the extent to which they were so attributable.

It is not sufficient that the facts unknown to the plaintiff should be material within the above definition; they must also be of a decisive character, that is to say, they must be such that a reasonable person, knowing them and having obtained appropriate advice with respect to them, would have regarded them as determining that an action would have a reasonable prospect of succeeding and resulting in the award of damages sufficient to justify the bringing of the action.

Finally, the plaintiff must prove that a material fact of a decisive character was outside his knowledge (actual or constructive).

In *Re Pickles v National Coal Board (Intended Action*) [1968] 1 WLR 997, the proposed plaintiff had been employed as a miner by the proposed defendants from 1947 to 1960, when he changed his employment to that of a lathe operator. In February, 1966 he became ill and in July 1966 he was informed by his doctor that he was suffering from silicosis contracted during his employment as a miner. He then consulted his trade union, having in mind the possibility of obtaining a National Insurance pension, but his papers were mislaid by the union and therefore not considered by the union's legal advisers until June 1967. In July 1967 the proposed plaintiff learned for the first time that he might have a claim for damages against the proposed defendants and he thereupon applied for leave under the Limitation Act of 1963. It was held by the Court of Appeal, reversing the judge, that although the proposed plaintiff knew that he was suffering from silicosis in July 1966, the fact that his silicosis was attributable to the negligence of or breach of statutory duty of the proposed defendants was a material fact of a decisive character unknown to him until July 1967. It was also held that, in putting the matter before his trade union, he had taken all such action as it was reasonable for him to take in order to satisfy the requirements of the Act. The case was, therefore, a proper one for leave to be granted and the proposed plaintiff had until July 1968 in which to bring his action.

In the present case, there can be no doubt that the appellant knew right from the start that the death of his son had been caused by negligence and/or breach of duty attributable to the respondents. He did not have to wait for the conclusion of the inquest to make that determination. The fact that he thought this was necessary did not and could not make it a material fact. The application was therefore rightly rejected by the judge. I would dismiss this appeal with no order as to costs.

Muli JA: The appellant, Bernard Mutonga Mbithi brought this application by way of Originating Summons citing the respondents, M/s Municipal Council of Mombasa and one Ali Mbaraki Ali trading as Mbaraki Contractors respectively. The application was brought under section 27 and 28 of the Limitation of Actions Act (Chapter 22) Laws of Kenya (the Act) and also under section 3A of the Civil Procedure Act. (Chapter 21) Laws of Kenya seeking leave of the Court for extension of the limitation period on the ground of ignorance of material facts relating to the cause of action.

Briefly the facts were that the appellant's son drowned in a pit together with another boy while playing on the grounds of Tom Mboya Primary School (the School) owned by the first respondent. The second respondent was alleged to have dug the pit in 1988 as the contractors acting as an agent of the first respondent and left the pit uncovered. The pit eventually collected water to form a pool. The first respondent is a Local Authority established under the Local Government Authorities Act (Chapter 265) Laws of Kenya.

It was alleged that the deceased, Mutua Bernard Mbithi aged 7, together with another boy were playing on the grounds of the School on 14 April 1988 when they slipped and fell in the abandoned pit and drowned. The appellant, being the next friend of the deceased boy should have brought action in tort within twelve months and three years respectively for negligence on the part of the owners of the school jointly for negligence on the part of the owners of the school jointly with their contractor who dug the pit. No such action was brought against the respondents within the statutory periods as provided by the law.

The appellant then took out the originating summons on 4 October 1991 seeking leave to file the suit out of time against the respondents. Section 3(1) of the Public Authorities Limitation Act (Chapter 39) Laws of Kenya provides as follows:

> "3 (1) No proceeding founded on tort shall be brought against the Government or a *local authority after the end of twelve months* from the date on which the cause of action accrued." (Emphasis mine.)

The first respondent, the Municipal Council of Mombasa is such a local authority and any action arising from this fatal incident of 14 April 1988 should have been brought against the Council (the first respondent) within twelve months from that date. It follows therefore that any action, in so far as it concerns the first respondent, is statute barred and accordingly misconceived. Mr *Juma* conceded this and in any case the appellant did not allege that the cause of non-compliance with this Act was due to any disability within the meaning of section 5 thereof.

With regard to this appeal, insofaras it concerns the second respondent, any action arising from the fatal incident should have been brought within three years from 14 April 1988. This was not done and the appellant sought leave of

the superior Court for extension of the time to enable him to file the intended suit out of time. In his affidavit in support of the Chamber summons he deponed that he believed that he could not institute a common-law claim against the respondents before the decision of the inquest which was held to establish the persons liable for the death of his son. The inquest had commenced on 12 July 1989 and ended on 6 November 1990. The ruling was delivered on 19 February 1991. The appellant therefore deponed that the delay in instituting action against the respondents was due to his mistaken belief, in relation to the proceedings and the outcome of the inquest and also due to his ignorance of the material facts relating to the common-law claims founded on tortiuous acts.

In his ruling, on the application in the superior Court, the learned trial Judge refused the application saying:

> "I do not think the result of the inquest was a material fact within the section."

He then granted leave to appeal.

The appellant appealed to this Court on two main grounds, namely:

1. The learned Judge erred in law and failed to exercise his discretion in the appellant's favour.
2. The learned Judge erred in law in failing to consider the circumstances surrounding the delay in filing suit.

Before I consider these grounds of appeal on merit I would like to consider one aspect which was brought out *per curium*: whether an appeal lies from the ruling made under sections 27, 28 and 30 of the Limitation of Actions Act and if this is in the affirmative whether the tortfeasor should be served with the Notice of Appeal, the Record of the proceedings, the judgment/ruling and the hearing notice of the appeal.

I find little difficulty in the first limb of this issue. Unless any appeal from the superior Court is prohibited by law, Part IV of the Rules of this Court provides for appeals from the superior Court acting in its original and appellate jurisdictions in civil cases and to matters relating thereto (see rule 73) and any person who desires to appeal to this Court to give notice in writing to the Registrar of the superior Court (see rule 74(1). It follows therefore that this Court has jurisdiction to hear appeals from the decision of the superior Court founded under sections 27 and 28 of the Limitation of Actions Act.

The second limb of the issue has given me some difficulty. Section 28 of the Act provides:

> "28 (1) an application for leave of the Court for the purposes of section 27 shall be made *ex parte*, except in so far as the rules of court may otherwise provide in relation to applications made after the commencement of a relevant action."

While it is clear that applications for leave of the superior Court for extension of time under section 27 and 28 of the Act should be made *ex parte*, it is not so clear as to whether an appeal from the decision of the superior Court to this Court should also be made *ex parte* or not. The order for extension of time, in essence, is a provisional order which does not deal with liability. If the *ex parte* order is granted, the intended defendant will have the opportunity to challenge the facts and the law. The intended defendant, although cited in the application, is not yet an active party until the suit is filed following the order. Technically, the aggrieved party would only be the intended applicant/plaintiff if the order is refused. If the aggrieved applicant/plaintiff is aggrieved by the decision of the superior Court on the *ex parte* application, he has a right of appeal to this Court.

The only issue is whether he should serve appeal papers to the intended defendant and whether the appeal should be heard *ex parte*. I may put the issue simply, as to whether the appeal from the decision of the superior Court in an application founded under sections 27 and 28 of the Act is to be heard *ex parte*. The only party which may be aggrieved by the decision of the superior Court is the applicant/plaintiff. The intended defendant/respondent is still not an active party. It follows, therefore, that an appeal from that decision may be heard *ex parte* without the necessity of the intended defendant being served with the appeal documents and hearing notice of the appeal. This is so because the jurisdiction of this Court is limited to the original and appellate jurisdictions of the superior Court. To bring in the intended defendant would be to extend that jurisdiction contrary to rule 73 of the Rules of this Court. Unlike the applications founded under Order 50 of the Civil Procedure Rules for prerogative orders of *mandamus* and *certiorari*, where a special procedure is provided for, no such special procedure is provided for applications founded under section 27, 28 and 30 of the Limitation of Actions Act. The result would appear to me to be that the appeal from the decision of the superior Court to this Court should also be heard *ex parte* and the intended defendant need not be served with any appeal documents.

In ground one of the memorandum of appeal, the appellant complained that the learned Judge erred in failing to exercise his discretion in the appellant's favour. While it is trite law that the superior Court has unlimited inherent jurisdiction under section 3A of the Civil Procedure Act, it is also trite law that such inherent jurisdiction should only be invoked where there exist no provisions regulating the procedure in civil cases. Section 27(2) of the Limitation of Actions Act, provides as follows:

> "(2) The requirements of this subsection are fulfilled in relation to a cause of action if it is proved that material facts relating to the cause of action were or included facts of a decisive character which were at all times outside the knowledge (actual or constructive) of the plaintiff until a date which:
>
> (*a*) either was after the three-year period of limitation prescribed for that cause of action or was not earlier than one year before the end of that period; and
>
> (*b*) in either case, was a date not earlier than on the year before the date on which the action was brought."

The appellant/plaintiff must prove material facts relating to the cause of action or included facts of a decisive character which were outside his knowledge (actual or constructive) until after the three-year limitation period or not earlier than one year before the end of that period. The appellant/plaintiff contends that he was waiting for the outcome of the inquest and that he did not know that he could institute action before the outcome of the inquest was known. I do not agree that this explanation fulfils the statutory requirements of section 27(2) of the Limitation of Actions Act. He knew all along or ought to have known that Tom Mboya Primary School was owned by the first respondent. The fatal pit or trap was on the grounds of the School. Within a few days of the tragedy he would have found or ought to have found out from the Police, who investigated the incident, as to who was responsible for the digging of the pit. The appellant did not show any reasons for his inability to find out who the *tortfeasors* were. He was in full knowledge (actual or constructive) of the *tortfeasors*. This being a statutory requirement that he so proves the material facts or

included decisive facts related to the cause of action he could not properly invoke the inherent jurisdiction of the Court. The inherent jurisdiction of the Court may only be invoked where there are no provisions exist. This is not the case in the instant case. Ground one of the memorandum of appeal fails.

In ground two of the memorandum of appeal, the appellant complains that the learned trial Judge erred in failing to consider the circumstances surrounding the delay in filing the suit fell under the interpretation provided under section 30 of the Act. Section 30 of the Limitation of Actions Act is as follows:

> "30 (1) In sections 27, 28 and 29 of the Act, any reference for the material facts relating to a cause of action is a reference to one or more of the following:
>
> (*a*) the fact that personal injuries resulting from the negligence, nuisance or breach of duty constituting that cause of action;
>
> (*b*) the nature or extent of the personal injuries resulting from that negligence, nuisance or breach of duty;
>
> (*c*) the fact that the personal injuries so resulting were attributable to that negligence, nuisance or breach of duty, or the extent to which any of those personal injuries were so attributable."

These material facts were within the actual knowledge of the appellant within the prescribed period.

The learned trial Judge held that the result of the inquest was not "a material fact within the section". The only reason given by the appellant was that he did not know that he could institute action before the outcome of the inquest. The fatal incident occurred on 14 April 1988. The ruling was delivered on 19 February 1991. During the intervening period, the appellant took no reasonable steps to obtain appropriate advice from a legal practitioner. He may be illiterate but that reason would not avail him of the interpretation of sections 27, 28 and 29 of the Act as read with section 30 of the Act and in particular subsection (2) thereof. I do not consider that the learned Judge misapprehended the law in arriving at that conclusion. I also hold that ignorance of the law was not a material fact of a decisive character relating to the cause of the intended action. The appellant knew the *tortfeasors* well within the prescribed period. As a reasonable man, he could have sought legal advice well within time to protect his right. This application was brought on 28 November 1991, ten months after the ruling of the inquest which was delivered on 19 February 1991. The appellant's conduct as regards the material facts of the decisive character as well as his failure to seek legal advice cannot be regarded as that of a reasonable and prudent person. The death of his son called for vigilant and reasonable steps to be taken to ensure that the *tortfeasors* were sued for their negligence.

In the result I would dismiss this appeal with no order as to costs.

Gicheru JA concurred in the judgments of Kwach and Muli JJA.

For the appellant:
Mr Juma

For the respondent:
Information not available

Mgamange v Republic
[1990–1994] 1 EA 368 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	21 March 1994
Case Number:	177/90
Before:	Mnzavas, Mfalila and Lubuva JJA
Sourced by:	LawAfrica

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[1] Crime – Economic crimes – Dealing in and possession of government trophies – Appropriate charge – Section 67(1) – Wildlife Conservation Act – Section 16(d) – Economic and Organised Crime Control Act.

[2] Criminal procedure – Sentence – Crime under Economic Crimes Court – Maximum sentence prescribed for court 15 years – Minimum sentence prescribed for economic crime of dealing in government trophies 20 years – Whether a sentence of 25 years' was illegal.

Editor's Summary

The appellant was convicted of the offence of possession of government trophies. The evidence against him was that he was caught when transferring ivory tusks to a godown for weighing purposes. The appellant argued that he had not been properly identified and hence his second appeal should be allowed.

The appellant argued further that his sentence was illegal as the Court which sentenced him had a maximum jurisdiction of 15 years.

Held – The identification evidence against the appellant was sound to sustain the conviction. However, the appellant should have been charged with dealing, and not possession, of government trophies, both of which charges were available under the same criminal provision. The conviction for possession would therefore be replaced by a conviction for dealing in government trophies.

The maximum penalty that could be awarded by the Economic Crimes Court in this instance was fifteen years. However, the Wildlife Conservation Act prescribed a minimum penalty of twenty years. This conflict was due to unintended statutory oversight. The appellant's sentence would therefore be replaced with a lower sentence of fifteen years.

No cases referred to in judgment

Judgment

Mnzavas, Mfalila and Lubuva JJA: This is a second appeal. Before the district court of Liwale District sitting as an Economic Crimes Court, the appellant together with three others were charged with the offence of being in unlawful possession of government trophies contrary to sections 67(1)(2) and 78 of the Wildlife Conservation Act 12 of 1974 and section 16(*d*) of the Economic and Organised Crimes Control Act 13 of 1984 as amended by Act 10 of 1989. At the trial, the appellant was referred to as the second accused and the rest as the first, third and fourth accused respectively. The first accused was convicted of the offence as charged and was sentenced to twenty years' imprisonment together with an additional order to undergo corporal punishment of

twelve (12) strokes. The appellant and the other accused persons (third and fourth) were acquitted. Dissatisfied with the acquittal of the appellant and the two others, the Director of Public Prosecutions appealed to the High Court. The appeal against the appellant was allowed whereby the appellant was convicted as charged and was sentenced to twenty five years (25) imprisonment and twelve strokes of corporal punishment. The appellant now appeals in this Court.

From the evidence, the facts upon which the case was based may briefly be summarised as follows: The appellant was the village secretary at Mkundi village in Liwale district. The appellant lived in one of the rooms within the village godown building. Hassan Mpande the third accused at the trial was a game assistant taking charge of Mkudi village whose chairman was Abdallah Saidi (first accused). For the months of May and June 1989, Hassan Mpande had shot a total of 3 elephants from which six tusks had been extracted. Of those tusks, four (4) were handed over to the village chairman, Abdallah Saidi Tela (first accused). Hassan Mpande still retained the remaining two tusks. On 13 June 1989, by letter the appellant notified the Liwale district game officer that two tusks were being transferred to the district game office Liwale and the two remaining tusks would be transferred later. In actual fact, four tusks had still remained at the village of Mkundi. On 20 June 1989, the village chairman Abdallah Said Tela (first accused) in the company of the third accused took two elephant tusks to the godown where the appellant availed the key to the godown and opened the door of the godown (PW1, PW2, PW3). Abdallah Saidi Tela (first accused) and Hassani s/o Mpande (third accused) got into the godown with two tusks. From inside the godown, sound and noises were heard indicating the possibility of a weighing scale being used. The time was about 11:30pm. As this process was going on, the accused persons were arrested at the godown including the appellant who was caught running into his room having dropped the axe at the door of the godown. Inside the godown were found one appellant tusk on the weighing scale and another on the floor. With the arrest of the appellant and the others, the case was instituted before the Liwale district court as an Economic and Organisation Crime Court.

As indicated, on appeal to the High Court by the director of public prosecutions against the acquittal of the appellant, the High Court (Kazimoto J) allowed the appeal against the appellant (second accused) and Halifa s/o Mohamed Njochora (fourth accused). The appellant was accordingly convicted and sentenced. In his memorandum of appeal, the appellant has raised a number of points assailing the decision of the learned Judge on first appeal. On the main, the control issue for determination in the question of the identification of the appellant. Mr *Tendwa*, learned Senior State Attorney who appeared for the Republic, respondent, while supporting the conviction, argued that this being a second appeal, the only issue for the Court to consider is the question of whether the appellant was sufficiently identified. He submitted that this is an issue which was adequately considered by the learned Judge on first appeal. He further argued that on the evidence, the appellant was properly identified and that the trophies having been seized at the scene of incident, the appeal against conviction has no merit at all. He asked the Court to dismiss it in its entirety.

We have carefully and closely considered the submission by the learned Senior State Attorney Mr *Tendwa* as well as the appellant’s grounds of appeal. With respect, we agree with Mr *Tendwa* that in this appeal the only issue for consideration

by this Court as regards the appeal against conviction is the question of identification. On our perusal of the record, we are of the considered opinion that on the evidence of the witnesses, PW1, PW2, PW3 and PW11, the appellant was properly identified as being present at the time when the transaction on the trophies was being carried out at the godown.

We are satisfied that the transaction was carried out at the time and under such circumstances that the learned Judge on first appeal properly directed himself as to the guilt of the appellant. In our view, there can be no doubt that on the evidence on record, the appellant was actively guarding the godown armed with an axe when the illicit transaction on the trophies was being carried out inside the godown. How else does one explain the reason for the shifting of the tusks from the house to the godown ready to be weighed at that hour of the night. We are satisfied that the appellant was part and parcel of the illegal transaction and that therefore he was properly convicted. His appeal against the conviction has no merit.

At this juncture, it is appropriate for us to consider the propriety or otherwise of the charge preferred against the appellant. It should be noted that the charge preferred was one of being in unlawful possession of government trophies contrary to section 67(1) (2) and 78 of the Wildlife Conservation Act number 12 of 1974 read together with paragraph 16(*d*) of the Economic and Organisation Crime Control Act, number 13 of 1984. Substantially, section 67(1) of the Wildlife Conservation Act of 1974 on which the charge was based provides:

> "67 (1) No person shall be in possession of, or buy, sell or otherwise deal with in any Government trophy."

From the above clear wording of this provision, it is clear to us that under this section, a charge of either unlawful prosecution of dealing in government trophies could be mentioned against the appellant. In our considered opinion, having regard to the circumstances of the case, the manner in which the appellant was found involving himself in the transaction at that time of the night, we think it was more appropriate to convict the appellant for the offence of unlawful dealing in government trophies to the same section that is 67(1) of the Wildlife Conservation Act of 1974.

We now turn to the question of sentence. Arguing before us on this point, Mr *Tendwa*, learned Senior State Attorney on behalf of the Republic, submitted that the sentence imposed was illegal because it exceeds the limit prescribed by the law on which the charge against the appellant was preferred. Mr *Tendwa* further maintained that as this was an economic offence which was prosecuted before a Court which was sitting as an Economic Crimes Court, section 59(1) of the Economic and Organised Crime Control Act of 1984, prescribes a limit of 15 years' imprisonment for a person convicted of an economic offence. In the instant case, the appellant was sentenced to imprisonment for 25 years and 12 strokes corporal punishment which was illegal Mr *Tendwa* submitted. He asked the Court to set aside the sentence and substituted thereof an appropriate sentence in accordance with the law.

With due respect we think there is merit in Mr *Tendwa*'s submission on this point. In our view, it is common knowledge that the Economic Crimes Court is a creation of statute that is the Economic and Organisation Crime Control Act number 13 of 1984. It follows therefore that the penalty jurisdiction of the

Economic Crimes Act is derived from the Act which established the Court. In the instant case, the appellant was charged before an Economic Crimes Court and not an ordinary court. The procedure and the penalties pertaining to offences tried before this Court must be those set out under that law. In regard to penalty, section 59(1) of the Economic and Organised Crime Control Act of 1984 provides:

> 59 (1) Except where a different penalty, measure or penal procedure is expressly provided in this Act or in the statement of an offence, upon the conviction of any person of any economic or other offence falling under the penal jurisdiction of the Court, the Court may impose in relation to any person, in addition to any order respecting property; any of the penal measures prescribed by this section, but not any other.
>
> (2) Subject is subsection (3), any person convicted of an economic offence shall be liable to imprisonment for a term not exceeding fifteen years, or to both that imprisonment and any other penal measure provided for in this Act."

From the unambiguous wording of this section, it is quite clear to us, that for offence tried before the Economic Crimes Court as was the case here, the jurisdiction of the Court is limited to a sentence of a term of imprisonment not exceeding fifteen years, or to both that imprisonment and any other penal measures provided for under this Act. Any penalty above this limit would be a contravention of the very law which established the Court. As rightly pointed out by Mr *Tendwa*, learned Senior State Attorney, the sentence of twenty five (25) years' imprisonment imposed in the case before us, wildly went beyond the prescribed limit under the law. We agree with Mr *Tendwa* that it was contrary to the law.

However, we feel constrained to comment that it was unfortunate that through unintended oversight on the part of the authorities concerned section 59(2) of the Economic and Organised Crime Control Act of 1984 was not amended. We think that the spirit behind the enactment of Act 10 of 1989 generally sealing up penalties for various offences of a serious nature such this one could be incorporated by suitably amending section 59(2) of the Economic and Organised Crime Act of 1984. As a result, it goes without saying that in its present form, the raised penalties under Act number 10 of 1989 cannot be invoked if the offences are prosecuted before the Economic Crimes Court as was the case here. Section 59(2) of the said Act, would not allow a sentence of imprisonment above 15 years and the imposition of corporal punishment.

Furthermore, in the instant case, we think it is very likely that both the trial Court and the first appellant court fell into the error of imposing a sentence which is above the limit provided for under section 59(2) of the Economic and Organised Crime Control Act of 1984 because Act 10 of 1989 also amends the Wildlife Conservation Act of 1974 in regard to offences of that kind. With the amendment of section 67(2), of the Wildlife Conservation Act of 1974 brought about by the enactment of Act 10 of 1989, the penalty has been raised to a term of imprisonment of not less that 20 years but not exceeding 30 years. A mandatory imposition of corporal punishment has also been provided. Acting on the basis of this provision, the sentence of 25 years' imprisonment and twelve strokes of corporal punishment was metted out.

But as we have already indicated, this could not be done without section 59(2) of the Economic and Organised Crime Control Act of 1984 being suitably amended so that it is harmonised and sycronised with the amendments

in Act number 10 of 1989. To this end, we hope that the office of the Honourable Attorney-General will take the necessary steps to amend section 59(2) of the Economic and Organised Crime Control Act of 1984, in order to harmonise it with the spirit behind the enactment of Act 10 of 1989.

In the result, for the reasons stated, we set aside the order of conviction for the offence of being in unlawful possession of government trophies and in substitution thereof enter a conviction for the offence of unlawful dealing in government trophies contrary to section 67(1) (2) (*b*) and 78 of the Wildlife Conservation Act number 12 of 1974 as read together with paragraph 16(*d*) of the Economic and Organised Crime Control Act number 13 of 1984. It is further ordered that the sentence of twenty five years (25) imprisonment and the order of twelve (12) strokes corporal punishment is set aside and in substitution thereof a sentence of fifteen (15) years' imprisonment is accordingly entered.

Apart from these variations, the appeal against conviction is otherwise dismissed and the sentence varied as indicated.

For the appellant:
Information not available

For the Republic:
Mr Tendwa, Senior State Attorney

Mjasir v Joshi
[1990–1994] 1 EA 372 (CAT)

Division:	Court of Appeal of Tanzania at Zanzibar
Date of judgment:	30 August 1993
Case Number:	36/93
Before:	Omar, Mnzavas and Mfalila JJA
Sourced by:	LawAfrica

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[1] Power of attorney – Creation of a fiduciary relationship – Consent of owner of property be obtained before transfer otherwise it is void ab initio *– Lack of consideration in transfer.*

Editor's Summary

The High Court nullified a deed of conveyance that transferred the ownership of a house to Ahmed Iddi Nasir and hence a subsequent r-transfer of the house from Mr Nasir to the appellant. The High Court further ordered that the ownership of the house be restored to its original owner.

Aggrieved by this finding, the appellant appealed.

Held – The original owner had given Ahmed Iddi the power of attorney over his property which included the power to sell the house if he thought that the price was reasonable. However, the failure by the deceased to keep accounts of the monies received as rent and used in repairs for over twenty years was a serious anomaly that led to the inference that Ahmed was not entirely honest. Consequently it is difficult to say that the owner knew or consented to the transfer of his house.

Under section 5 of the Transfer of Property Decree, if a person conveys property to himself, such conveyance, to be lawful, must include one or more other living persons. Hence, under the law, the purported transfer of the property by Ahmed to himself is invalid.

Under the power of attorney, a fiduciary relationship existed between the deceased and the property owner. The deceased was therefore estopped from obtaining advantage from the fiduciary relationship without first obtaining consent from the owner.

There is no evidence to show that the purchase price passed. This lack of consideration vitiates a contract of sale.

Appeal dismissed.

No cases referred to in judgment

Judgment

Mnzavas JA: This is an appeal against the decision of the High Court (Hamid CJ), which nullified a deed of conveyance dated 1 October 1987 which transferred ownership of house number 2328 situate at Sokomhogo Street to one, Ahmed Iddi Mjasir – deceased on the ground that the transfer was null and void *ab initio*.

Having found that the transfer of the said property to the deceased was illegal the High Court proceeded and nullified a subsequent transfer of the house by the deceased to his son Mohamed Iddi Mjasir, the present appellant, and ordered that ownership of the house be restored to its legal owner, before it was transferred to the late Ahmed Iddi Mjasir.

Aggrieved by the lower Court's finding the appellant has appealed to this Court.

The following facts which were not seriously disputed by the parties were narrated to the trial Court:

On 25 January 1956 one, Jayantilal Bhanji Joshi now deceased owned a house number 2328 along Sokomhogo Street in Zanzibar in which he lived with his family up to 1972 when he left for Canada where he lived with his son. Before he left he entrusted his house to the late Ahmed Iddi Mjasir, appellant's father, who was to collect rent from tenants, effect repairs to the house when the need arose, pay any monies on his behalf such as land rent etc, and to keep any balance of money for him. In 1987 Jayantilal Bhanji Joshi died.

According to the evidence of his wife Jayalazmi Jayantilal Joshi, the respondent in this appeal, in 1990 she came to know that their house had been sold and decided to file a suit in the High Court – civil case number 3 of 1992 seeking a declaration that her deceased husband is the lawful owner of the house and that the house be registered in her name as the legal representative of her deceased husband's property.

There was no dispute in this case that the deceased, Ahmed Iddi Mjasir, smarting under the power of attorney given to him by the owner of the house prepared a deed of conveyance dated 1 October 1987 purported to be between him and the owner of the house which showed that in consideration of the sum of TShs150 000 he paid to the owner of the house as purchase price, the

owner of the house had sold and transferred the house to him. Equally it was not in controversy that on the following day (2 October 1987) Ahmed Iddi Mjasir prepared a deed of gift between himself and his son, Mohamed Iddi Mjasir, the appellant/defendant and in consideration of natural love and affection for his son conveyed the house to him. The deed was registered in the name of the appellant, Mohamed Iddi Mjasir on the same day.

The question the High Court had to decide was whether or not the transfer of the house to the deceased, Ahmed Iddi Mjasir, and later to his son, the appellant/defendant, was in accord with the *inter alia*:

> "There is no proof to the effect that the late Joshi had any knowledge to this type of transfer since no evidence was adduced by the defendant to that effect and this Court cannot be left to assume that is the case."

Earlier the learned Chief Justice had rejected respondent's/plaintiff's argument that her deceased husband had not given Ahmed Iddi Mjasir power of attorney over the house and upheld the appellant's/defendant's evidence that Joshi had in fact given power of attorney to Ahmed Iddi Mjasir over the house.

However despite the power of attorney the Court held that by transferring the house to himself, Ahmed Iddi Mjasir contravened the provisions of section 5 of the transfer of Property Decree (Chapter 150) of the laws of Zanzibar. Equally it was the Court's view that the transfer was invalid under the doctrine of judiciary relationship.

In conclusion the learned Chief Justice said:

> "Consequently I hold that the transfer of the suit premises, vide a deed of conveyance dated 1 October 1989 conveying the suit premise to the late Ahmed Iddi Mjasir to be illegal and therefore null and void and since the conveyance of the same property to the defendant very much depends upon the conveyance that bestows the ownership of the said premises to the late Ahmed Iddi Mjasir which conveyance is *void ab initio* it follows therefore the subsequent transfer by the late Ahmed Iddi Mjasir to the defendant automatically becomes illegal and therefore null and void."

The court then proposed and declared the late Jayantilal Bhanji Joshi to be the lawful owner of house number 2328 situate at Sokomhogo Street, Zanzibar. It was also order that all the rent collected from the suit premises as from 1 October 1987 be paid by the appellant/defendant to the respondent/plaintiff. The respondent/plaintiff was ordered to refund the sum of TShs20 824-70 which the deceased Ahmed Iddi Mjasir paid to the bank to redeem the suit premises to the heirs of the late Ahmed Iddi Mjasir.

It was the trial Court's order that each party was to bear its own costs.

Before us Mr *Mbwezeleni*, learned counsel for the appellant vigorously challenged the lower Court's finding, arguing that the learned Chief Justice erred in holding that there was judiciary relationship between the late Ahmed Iddi Mjasir and the late Jayantilal Bhanji Joshi. It was the learned counsel's submission that the power of attorney empowered the deceased Ahmed Iddi *Mjasir* to transfer the house of himself as, it was submitted, paragraph 7 of the power of attorney that power to him.

Mr *Mbwezeleni* further argued that the High Court erred in not ordering that the sum of TShs20 824-70 should be refunded to the appellant/defendant with interest.

The court was asked to allow the appeal and declare the appellant the lawful owner of the house.

In rebuttal Mr *Kagambo* learned advocate for the respondent, supported the High Court decision and reiterated that the deceased, Ahmed Iddi Mjasir, acted unlawfully in transferring the house to himself.

It was also submitted that the transfer was in contravention of the provision of section 5 and 6(II) of the Law of Property Decree (Chapter 150) of the Laws of Zanzibar. The learned counsel also argued that there was no evidence that the alleged purchase price of TShs150 000 for the house said to be paid by the late Ahmed Iddi Mjasir to the late Jayantilal Bhanji Joshi passed to Joshi. And therefore, it was submitted, the sale was bad for lack of consideration. The court was invited to dismiss the appeal.

In reply Mr *Mbwezeleni* countered that there was consideration because Mr Joshi did not complain.

First and foremost we agree with the learned Chief Justice's finding that the late Jayantilal Dhanji did give power of attorney to the late Ahmed Mjasir. There was undisputed evidence that under the power of attorney the late Ahmed Mjasir had power to receive rent form tenants occupying the house and as when the need arose. He also had power under paragraph 7 to sell the house if he thought the price offered was reasonable.

However despite the fact that the late Ahmed Mjasir received rent from tenants in the house neither the record nor the appellant in his evidence in the High Court showed that the deceased, Ahmed Mjasir kept accounts of the monies he received as rent or any monies he may have used in effecting repairs of the house. When this serious anomaly was put to Mr *Mbwezeleni* learned advocate for the appellant, he merely said that a record of accounts may have been misplaced after the death of Ahmed Iddi Mjasir. With respect to the learned counsel this reply is not good enough taking into account the fact that Ahmed Mjasir was entrusted with the house over twenty years ago.

Because there was no record of accounts kept by the donee it is our considered view that the inescapable inference is that the late Ahmed Iddi Mjasir was not wholly honest. And, as rightly observed by the learned Chief Justice, there was no evidence at all that Jayantilal Joshi knew of the transfer of the house to the late Ahmed Mjasir; leave alone his consent to such transfer.

Coming to the question whether the late Ahmed Mjasir had power (under the power of attorney) to transfer the house to himself the law is clearly set out under section 5 of the Transfer of Property Decree (Chapter 150) which says:

> "Transfer of property means an act by which a living person conveys property, in present or in future, to one or more other living persons, or to himself and one or more other living persons; and to transfer property is to perform such act."

It is clear form the above language that if a person decides to convey property to himself (as it in this case) such conveyance to be lawful must include one or more other living persons. That being the law, the purported transfer of the house by the late Ahmed Iddi Mjasir to himself is invalid. Under the law there was no transfer of the property to him at all. He, in law therefore owned no property capable of being transferred to his on, Mohamed Iddi Mjasir.

In the event we agree with Mr *Kagambo*'s argument that the learned Chief Justice was, on the evidence, entitled to declare that the house number 2328 situate at Sokomhogo Street, the subject matter of the suit, belongs to the late Jayantilal Bhanji Joshi.

We would also like to add, if only in passing, that due to the power of attorney there was a judiciary relationship between the late Jayantilal Joshi and the late Ahmed Mjasir. That being so Ahmed was estopped from obtaining advantage from the judiciary relationship without first obtaining consent from the other party, the late Jayantilal Joshi. As we have shown above no such consent was sought.

We also, after considerable reflection agree with Mr *Kagambo* that even if for the sake of argument we were to accept the argument that the transfer of the property to the late Ahmed Mjasir was lawful there was no evidence whatsoever to show that the said consideration of TShs150 000 as purchase price passed to the alleged vendor, the late Jayantilal Joshi. Needless to mention that lack of consideration vitiates a contract of sale.

In conclusion we are at a loss to know why the learned Chief Justice ordered that each party should pay its own costs. The law is that the party that wins is entitled to have his costs. One of the exceptions to this rule of practice is where the parties are spouses, which is not so in this case.

In our view that the respondent is entitled to her costs in this Court and in the court below. It is so ordered.

Apart from the question of costs, this appeal is dismissed.

For the appellant:
Mr Mbwezeleni

For the respondent:
Mr Kagambo

Mohamed and others v Republic
[1990–1994] 1 EA 376 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	1994
Case Number:	141/92
Before:	Mnzavas, Mfalila and Lubuva JJA
Sourced by:	LawAfrica

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[1] Evidence – Admission of – Whether a statement that is retraced and uncorroborated is admissible in evidence admissible in evidence – The law governing the admission of a confessional statement against a co-accused – Whether conviction can be based on confession of a co-accused that was retracted and uncorroborated.

Editor's Summary

The first, second and third appellants were convicted of murder and sentenced to death in a trial sitting before the High Court in Dar-es-Salaam. Dissatisfied with the conviction and sentence of death they appealed to the Court of Appeal.

In their appeal, the appellants who were represented by counsels faulted the trial Judge for among other grounds: Admission of extra judicial statements, admission of a statement which was retracted and uncorroborated, basing conviction on the confession of a co-accused which was retraced and uncorroborated and failure to prove identity.

Held – It is a common knowledge that the admission of a confessional statements against a co-accused is governed by the provisions of section 33 of the Evidence Act of 1917. It provides that "when two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction and a confession of the offence or offences charged made by one of those persons affecting himself and some other of those persons is proved, the Court may take that confession into consideration against that other person".

Not withstanding subsection (i), a conviction of an accused person shall not be based solely on confession by a co-accused.

In the instant case as already pointed out, the learned trial Judge relied on the statement of the second appellant when dealing with the case against the third appellant believing as he did that there was stratum of other evidence implicating the third appellant. That however, was not the case as nowhere in the proceedings before the learned trial Judge could we find any evidence in which PW1, PW2 and PW3 mentioned in their evidence the third appellant. That being the position of the law and their being no other evidence against the third appellant we think as rightly submitted by Mr *Sengalawe* (counsel for third appellants). The case against third appellant had no leg to stand on.

As a result of the amendment to section 33 of the Law of Evidence Act of 1967 by Act number 19 of 1980 the scope has been made wider. It makes it possible for confessions voluntarily made to be taken into account by the Court not only against the make-up of the statement who is charged with an offence but also against a co-accused

One of the major legal propositions in those authorities is that a Court can convict the maker of uncorroborated retracted confession if it warns itself of the danger of action upon such an uncorroborated retracted confession and is fully satisfied that the retracted confession cannot but be true.

To our minds the record is loud and clear that the learned trial Judges properly and sufficiently warned himself of the danger of acting on uncorroborated and retracted confession of the second appellant. Having done that and being satisfied that the confession was true, the second appellant's statement was properly admitted.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Hatibu Gandhi at Captain Hatty Macghee and others criminal appeal number 3 of 1986

Marselina Martin v Republic criminal appeal number 114 of 1989

Tuwamoi v Uganda [1967] EA 84

Judgment

Lubuva JA: The first (PTE Rajabu Mohamed), second (Ahmed Ally) and third (Daud Maumba) appellants who, at the trial were referred to as the

second, fourth and sixth accused respectively, were convicted of murder and sentenced to death in a trial before the High Court (Mkwawa J) sitting in Dar-es-Salaam. From the evidence, the facts were that on 22 February 1982 the appellants had set about negotiating for the sale of a motor vehicle, saloon car, Peugeot 504 in make. A police trap was laid in which some police officers (PW1, PW2 and PW3) posed as prospective buyers of the car. In order to conclude the deal on the projected sale of the car, on 22 February 1982 at about 4:30pm a meeting between the prospective buyers and the appellants was held at the UFI club. The agreed price was TShs70 000. As the deal was not concluded that day, another meeting took place at Kakole Bar in Manzese for the same purpose when the delivery of the car was to be effected. Because the car was not available for delivery during the meeting at Kakole Bar, it was again agreed to hold another meeting the next day in order to finalise the deal.

The next day that is 23 March 1982, at about 6pm, the third appellant hired a taxi, saloon car, Peugeot 504 driven by the deceased Athumani Juma at Kambi from the City Centre of Dar-es-Salaam to Manzese via Sinza. On the way, the deceased was shot dead and the car was driven away by the second appellant to Manzese where, at the Tandale–Ubungo cross road, PW1, PW2 and PW3 and the second appellant were met by the first and the third appellants with a view to conclude the deal on the sale of the car. As the car was being handed over to PW1, the police who lay in waiting as part of the trap, effected the arrest of some of the participants to the sale transaction of the car. The appellants managed to escape that day but were later arrested and charged with the offence of murder contrary to section 196 of the Penal Code dissatisfied with the conviction and sentence of death, they have appealed to this Court.

At the hearing of the appeal before us, Mr T *Mihayo* learned counsel from the Tanzania Legal Corporation appeared for the first appellant. Mr Z *Maftah*, learned advocate for the second appellant and Mr C *Semgalawe* learned advocate for the third appellant. Mr G *Shaidi* learned Principal State Attorney appeared for the respondent, Republic.

Mr T *Mihayo*, learned counsel for the first appellant filed two grounds of appeal: firstly, that the learned trial Judge erred in applying double standard in admitting the extra-judicial statement of the first appellant. Secondly, that the learned trial Judge misdirected himself in law and in fact by not giving the first appellant the benefit of doubt as the evidence against him (first appellant) was not free from contradictions. He strongly criticsised the trial Judge for admitting the extra-judicial statement of the second appellant (fourth accused) which the learned counsel claimed, was not voluntary. Mr *Mihayo* went on arguing on similar grounds, that the statement of the fifth accused at the trial was rejected, the extra-judicial statement of the second appellant which implicated the first appellant should have been rejected. He further charged that otherwise to treat the statements differently as it was done at the trial, was a double standard approach on the part of the learned trial Judge.

Upon close scrutiny of the evidence on this point, the circumstances in which the two statements were made are, to our minds, clearly distinguishable. In the case of the first appellant, the evidence adduced at the trial within a trial was such that the learned Judge was satisfied that the first appellant was not tortured by the police in order to extract a confession from him and was

therefore a free agent. On the other hand, the statement of the fifth accused was rejected because the trial Judge was not satisfied that the accused (fifth accused) was a free agent when he made the statement. As there was allegation of torture, it was necessary for the prosecution to lead evidence from the officers who were involved in the interrogation and the arrest of the accused persons. This was not done and no explanation was furnished in order to refute the allegation of torture. Furthermore, the magistrate as a justice of the peace, who took the statement, testified that he had observed some scars on the body of the fifth accused. On this evidence, the learned trial Judge took the view that the accused was possibly tortured in which case it could hardly be said with certainty that the statement was made voluntarily. The learned trial Judge therefore decided not to admit the statement in evidence. In our view, we think the learned trial Judge correctly rejected the statement of the fifth accused. The circumstances in which the two statements were taken being different, we are satisfied that the allegation of double standard on the part of the learned trial Judge is unsubstantiated. In our view, the learned trial Judge quite properly dealt with the statement of the second appellant and that of the fifth accused each on its merits and decided accordingly. With respect, we reject this ground.

In ground two, Mr *Mihayo*, learned counsel for the first appellant complained against the standard of proof. He argued that the case against the first appellant had not been proved beyond reasonable doubt. He submitted that apart from the extra-judicial statement of the second appellant which he still insisted was wrongly admitted; the evidence on the identity of the appellant by PW1, PW2 and PW3 was unreliable. He claimed that the evidence of these witnesses was characterised with contradictions and inconsistencies of such a nature that it was unsafe to sustain a conviction in a criminal charge. He referred to the evidence of PW1 who in his evidence had said that he had met the first appellant at the UFI Club and that the arrest of the first appellant took place at Ubungo which Mr *Mihayo* submitted was not true. Such inconsistencies, Mr *Mihayo* argued, showed how unreliable these prosecution witnesses were.

Mr G *Shaidi*, learned Principal State Attorney, who, as already indicated appeared for the respondent, Republic supported the conviction against the first (second accused) and second (fourth accused) appellants. He argued that from the evidence, PW1 had identified the first and second appellants with whom he (PW1) had sat together at the UFI Club meeting. Furthermore, Mr *Shaidi* referred to the evidence of PW3 who testified that he had met with the first appellant during the meetings at the UFI Club and at Manzese when, the first appellant handed over the car to him (PW3). Mr *Shaidi* learned Principal State Attorney did not support the conviction against the third appellant.

With vigour and dexterity, Mr *Maftah*, learned counsel for the second appellant assailed the learned trial Judge’s admission of the statement of the second appellant (fourth accused). He submitted that as a matter of law, it was wrong to admit the statement which was retracted, and uncorroborated. He further argued that apart from the statement of the second appellant, there was no credible evidence which linked the appellant with the murder of the deceased. He also submitted that there was no evidence which connected the motor vehicle in the sale transaction and the death of the deceased. He urged the Court to allow the appeal against the second appellant.

For the third appellant Mr *Semgalawe* learned counsel raised two issues. One, that the learned trial Judge erred in basing the conviction against the third appellant on the confession of a co-accused which was retracted and uncorroborated. second, that the identification of the third appellant was not proved because the evidence of PW1 and PW2 does not involve the third appellant. He asked the Court to allow the appeal against the third appellant which was not supported by the Republic.

For the determination of this appeal, we think the identification of the appellants and the propriety of admitting the confessional statements of the appellants are important issues to be considered. In regard to the identification of the first and second appellants, it is significant to note that PW1 when cross examined by Mr Marando learned counsel for the fifth accused at the trial stated:

> "My Lord, what I have said is what I know. I had sat with second, fourth and fifth accused persons. This was at UFI Club on the mentioned day."

On this evidence, it is evident to us that PW1 not only met the first and second, appellants but also sat next to them. This witness was believed by the trial Judge as a truthful witness. We think therefore that the contention by Mr *Maftah*, learned counsel that the first and second appellants were not mentioned by either of the witnesses is, with due respect, not supported by the evidence.

After dealing with the evidence on the identity of the first and the second appellants we now turn to the third appellant. Mr *Semgalawe*, learned counsel for the third appellant submitted that the evidence of PW1 and PW2 does not implicate the third appellant and that it was wrong for the learned trial Judge to rely on the evidence which was from the previous trial. Mr *Semgalawe* further submitted that the only evidence against the third appellant was the confession of a co-accused which was not corroborated. As there was no tenable evidence against the third appellant, his appeal should be allowed, the learned advocate urged the Court. We agree with Mr *Semgalawe* that the learned trial Judge erred in relying on the evidence which had been adduced in the previous trial before the hearing was started afresh. In the proceedings before him, the evidence of PW1 or PW2 does not in any way implicate the third appellant. As a result, the only evidence available against the third appellant was the statement of the second appellant, a co-accused.

It is common knowledge that the admission of a confessional statement against a co-accused is governed by the provisions of section 33 of the Evidence Act of 1967. It provides:

> "33 (1) When two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction and a confession of the offence or offences charged made by one of those persons affecting himself and some other of those persons is proved, the Court may take that confession into consideration against that other person.
>
> (2) notwithstanding subsection (1), a conviction of an accused person *shall not be based solely on a confession by a co-accused*". (Emphasis supplied).

In the instant case, as already pointed out the learned trial Judge relied on the statement of the second appellant (fourth accused) when dealing with the case against the third appellant (sixth accused) believing as he did that there was a stratum of other evidence implicating the third appellant. That however, was not the case as nowhere in the proceedings before the learned trial Judge could we find any evidence in which PW1, PW2 and PW3 mentioned in their

evidence the third appellant. The question therefore is whether, the third appellant could properly be convicted on the basis of the confession of the second appellant, a co-accused whose confession was retracted and uncorroborated. As a matter of law, subsection (2) of section 33 of the Evidence Act of 1967 quoted above does not allow a conviction of an accused person to be based solely on a confession by a co-accused. Unlike the position in the cases cited of *Hatibu Gandhi at Captain Hatty Macghee and others* criminal appeal number 3 of 1986 and *Marselina Martin* criminal appeal number 114 of 1989 in which this Court had occasion to restate the principle regarding uncorroborated and retracted confession of accused persons, in this case, the third appellant is not the maker of the confessional statement. It concerns a statement by a different person, a co-accused whose reception in evidence is provided for under the Law of Evidence Act of 1967. That being the position of the law and there being no other evidence against the third appellant we think as rightly submitted by Mr *Semgalawe*, the case against the third appellant had no leg to stand on. Incidentally, as already indicated Mr *Shaidi*, learned Principal State Attorney on behalf of the respondent Republic, did not support the conviction against the appellant.

As indicated earlier, the learned counsel Mr *Mihayo* and Mr *Maftah* for the first and second appellants respectively had strongly argued against the admission in evidence the extra judicial statements of the appellants. In their objection, the learned counsel advanced two reasons: One that the statements were not voluntarily made because the appellants were tortured and secondly, the statement of the second appellant was not corroborated. From the record, it is clear to us that the learned trial Judge after what seems to us a lengthy and thorough enquiry in a trial within a trial had satisfied himself that the first and second appellants had not been forced or induced to make the statements. The learned Judge believed the statements as cogently truthful and having warned himself of the danger of convicting on a retracted confession, he convicted the first, second and third appellants of the offence of murder as charged. In coming to this decision, the learned trial Judge took into account the principles set out by the Court of Appeal for Eastern Africa in the case of *Tuwamoi v Uganda* [1967] EA 84. The first appellant's conviction was founded partly on his (first appellant) statement wherein the first appellant admits to have been at Uzuri in Manzese area on the day when the arrests were effected at the Tandale-Ubungo cross-road. The learned trial Judge found this aspect as fully supported, by the evidence of PW1 and PW3. The first appellant was also incriminated by the statement of the second appellant (fourth accused).

As the confessional statement of the second appellant (fourth accused) was an essential component of the evidence which was relied on by the trial Court against the first and the second appellants, we propose to deal with it now. It is common ground that in arguing the appeal before us, the learned, counsel for the first and second appellants, Mr *Mihayo* and Mr *Maftah* have strongly complained that the admission of the statement was not proper. The issue is whether the statement of the second appellant was correctly admitted as a matter of law. Dealing with this aspect, we think the learned trial Judge in a very elaborate and commendable manner grappled with the underlying principles behind uncorroborated and retracted confessions. Quite properly in our view, he took guidance from the decisions of this Court in the cases of *Hatibu Gandhi at Captain Hatty Macghee and others v Republic* criminal appeal number 3

of 1986 and *Marselina Martin v Republic* criminal appeal number 114 of 1989. However, with respect, we think the learned trial Judge fell into the error of not making a distinction between confessions by the maker who is the accused and confessions by co-accused being used as evidence against another accused who is not the maker of the statement. In the instant case, the statement of the second appellant as a co-accused apart from incriminating the maker himself also incriminated the first and third appellants. We think with respect, the learned Judge should have made the distinction clear in order to avoid the impression that he was only dealing with the confession of an accused who is also the maker of the statement. This is gleaned from the learned Judge's words when he says in the judgment:

> "One of the major propositions in these authorities is that a Court *can convict the maker of* an uncorroborated retracted confession if it warns itself of the danger of acting upon such an uncorroborated retracted confession and is fully satisfied that the retracted confession cannot but be true." (Emphasis supplied.)

As a result of the amendment to section 33 of the Law of Evidence Act of 1967 by Act 19 of 1960 the scope has been made wider. It makes it possible for confessions voluntarily made to be taken into account by the Court not only against the make-up of the statement who is charged with an offence but also against a co-accused. Otherwise, despite this mix up on the part of the learned trial Judge on this point, we are satisfied that thereafter he directed himself properly in dealing with the confessional statement of the second appellant.

Relying on the provisions of section 33(1) of the Law of Evidence Act of 1967 as amended by Act 19 of 1980, it is our view that the learned trial Judge correctly admitted in evidence the statement of the second appellant (fourth accused). It is a statement which the judge had found to be voluntary and truthful as in our view, he was entitled. The statement by the second appellant has two facts. One, it is the part which also incriminates the first appellant (a co-accused) with the prospective sale of the motor vehicle as well as availing the pistol which was used in the murder of the deceased. The learned trial Judge took this evidence into account against the first appellant together with the statement of the first appellant in which he admits being present at Uzuri area in Manzese on the day of the arrest of the bandits, the prospective buyer of the motor vehicle. In addition, there was the visual evidence of PW1 and PW3 who had seen the first appellant at the UFI Club, Kakole Bar, and Tandale-Ubungo cross-road meetings. On the basis of the totality of the evidence, we are satisfied, that the first appellant was sufficiently connected with the events which in the process, resulted in the death of the deceased. As a matter of fact, we think that the trial Court having believed the evidence of the witnesses PW1, PW2 and PW3 as truthful, that evidence was sufficiently strong to sustain the conviction against the first appellant even without the confessional statements of the first and second appellants. For instance, there was uncontroverted evidence that the first appellant did not return the pistol to the armory. We are of the view that he was properly convicted.

The other factor of the extra-judicial statement of the second appellant ((exhibit P2) implicates the second appellant himself. It is a confession which the second appellant made before the Justice of the Peace. In that statement, the second appellant gives a detailed narrative of how he was involved in the whole incident from the time when the pistol was obtained by the first appellant, the hiring of the taxi, the shooting of the deceased, the meeting at Ubungo until

the time of his arrest. The statement contains such details that could only be described by a person who knew exactly what took place during the whole episode. The learned trial Judge found the statement of the second appellant as truthful when he stated in his judgment:

> "On my own evaluation of the totality of the evidence I am satisfied that the fourth accused's (appellant) confession nothing but cogent and truthful."

After analysing the whole evidence in the case, the learned Judge found and properly so in our view, that the only evidence against the second appellant was this confessional statement which the second appellant it as indicated had retracted. The trial Court convicted the second appellant on the basis of that statement. The issue which was vehemently canvassed before us was whether it was proper for the trial Judge to base the conviction against the second appellant solely on his retracted confession. The learned counsel for the appellants have challenged the learned Judge's decision to convict both the appellants of this evidence.

> "One of the major legal proposition in these authorities is that a Court can convict the maker of an uncorroborated retracted confession if it warns itself of the danger of acting upon such an uncorroborated retracted confession and is fully satisfied that the retracted confession cannot but be true. Now, applying this principle to the instant case and on my own evaluation of the totality of the evidence, I am satisfied that the fourth accused's confession is nothing but cogent and truthful …"

To our minds, the record is loud and clear that the learned trial Judge properly and sufficiently warned himself of the danger of acting on uncorroborated and retracted confession of the second appellant. Having done that and being satisfied that the confession was true, the second appellant's statement was properly admitted.

Consequently on the basis of the confessional statements of the first and second appellants together with the evidence of PW1 and PW3 we are satisfied that the trial Court was justified in its conclusion that the charge against the first and second appellants had been proved beyond reasonable doubt, furthermore, on the totality of evidence, the learned trial Judge correctly in our view, invoked the doctrine of common intention against the first and second appellants who, on the evidence had been proved to have participated in the common venture of selling the car after snatching it from the deceased who was killed in the process. Having regard to the confessions of the first and second appellants and the evidence of PW1 and PW3 and the fact that the car was driven off by the second appellant after the death of the deceased to Ubungo at the Tandale-Ubungo cross road where the arrest was effected, we do not think that failure to adduce evidence from the White Cabs Limited, the owners of the car or the central motor vehicles registry regarding the particulars of the car prejudiced the first and second appellants. The omissions are curable under section 388 of the Criminal Procedure Act of 1985.

In the result, we allow the appeal against the third appellant Daud Maumba, quash the conviction and set aside the sentence of death. He is to be set free forthwith unless otherwise lawfully held. As for PTE Rajabu Mohamed and Ahmed Ally, the first and second appellants, their appeals are dismissed in their entirety.

For the first appellant:
Mr T Mihayo, Tanzania Legal Corporation

For the second appellant:
Mr Z Maftah

For the third appellant:
Mr C Semgalawe

For the State:
Mr G Shaidi, Principal State Attorney

Mtalemwa v Republic
[1990–1994] 1 EA 384 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	29 June 1992
Case Number:	172/90
Before:	Kisanga, Ramadhani and Mnzavas JJA
Sourced by:	LawAfrica

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[1] Crime – Robbery – Receiving stolen property – Whether doctrine of recent possession can be used to enhance conviction for receiving stolen property to conviction for robbery.

[2] Criminal procedure – Appeal – Jurisdiction – Whether Court of Appeal has revisional jurisdiction – Whether Court of Appeal can vary lower Court sentence to detriment of accused where there is no cross-appeal by the State – Section 4(2) – Appellate Jurisdiction Act of 1969.

[3] Evidence – Doctrine of recent possession – Accused gives an explanation which may be true – Whether evidence of recent possession requires corroboration to convict.

Editor's Summary

The appellant was charged in the trial Court with robbery. There was some identification evidence against him and circumstantial evidence of recent possession of the stolen vehicle. The accused was convicted of robbery and lodged a first appeal to the High Court.

The first appellate court quashed the conviction for robbery and substituted it with one for receiving stolen property. The court argued that the doctrine of recent possession would not result in a conviction if the accused gives an explanation which may reasonably be true. The court also discounted the identification evidence of the witnesses as unsafe.

On further appeal to the Court of Appeal, the appellant argued that the conviction for receiving stolen property was unsound. However, the Court invited further submissions on whether it had power to disagree with the appellant and restore the decision of the trial Court without a cross-appeal by the Republic.

Held – The Court of Appeal lacks revisional jurisdiction to interfere with the decision of a lower court in criminal proceedings. However, upon appeal, the Court of Appeal has power to vary or

reverse the decision of the High Court, which would include enhancement of punishment even without a cross-appeal. *Ihuya and others v Republic* [1980] TLR 197 followed.

The jurisdiction of the Court of Appeal arises from the appeal. Thus if a party appeals against the sentence, the Court has jurisdiction to either dismiss the appeal, or allow it, or vary the sentence by enhancement. Similarly, where a

party appeals against conviction, the Court has jurisdiction to either dismiss the appeal, or allow it, or vary the conviction by finding the accused guilty of a more serious offence which he was charged with but acquitted by a lower Court. *Merali and others v R* [1971] HCD 145, *Yusuf and Yusuf v R* criminal appeal number 59 of 1988 followed.

In this case, the doctrine of recent possession and the inexplicable criminal conduct immediately prior to the arrest of the accused corroborates the identification by the first prosecution witness. The appellant would therefore be found guilty of the more serious offence of robbery and sentenced accordingly.

Conviction for receiving stolen property quashed and substituted with conviction for robbery.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Ihuya and others v Republic [1980] TLR 197 – **F**

Ludovick s/o Kashaku v Republic [1967] HCD 194

Merali and others v Republic [1971] HCD 145 – **F**

Yusufu and Yusufu v Republic criminal appeal number 59 of 1988 (UR) – **F**

Judgment

Kisanga, Ramadhani and Mnzavas JJA: The appellant, Mussa Alobogast Mtalemwa, was charged together with two other persons. One of them was acquitted as there was no case to answer. The other was acquitted of the charge of receiving stolen property. The appellant, on the other hand, was convicted of robbery.

The district Court of Ilala was satisfied that on 3 July 1989 at about 8:15pm, PW1 was driving a saloon car, TZA 159, belonging to PW2, along Bagamoyo Road. The appellant and another person stopped him for a lift to Keko. The appellant sat on the front seat and suddenly he pointed a pistol at PW1 ordering the car to be driven to the National Stadium where PW1 was ditched out and beaten to unconsciousness. When PW1 regained his sense he reported the matter to the Kilwa Road Police Station where he was taken to the Oyster Bay Police Station. On 5 July as PW1 was in a police car going through the Morocco Road he spotted out what he was convinced to have been his stolen car but then it had AAH 5238 as its registration number. The driver of that car refused to stop. So the police van gave chase and the drive went to a halt when, according to PW4, a pistol was levelled at him. The appellant was that driver and PW1 identified him as one of the two robbers.

In his defence the appellant alleged that the vehicle was given to him by the second accused person to process pre-registration facilities of evaluation and custom fees as it had been imported from Zambia. As already said that story was rejected by the trial Court.

On appeal to the High Court of Tanzania (Mkwawa AJ, as he then was) quashed the conviction of robbery and substituted it with one of receiving

stolen property contrary to section 311(1) of the Penal Code. The learned Judge had two reasons for doing so. One, he said "when the only evidence against an accused is the finding of recently stolen property in his possession, an accused is entitled to acquittal if he gives an explanation which may reasonably be true". Two, the learned Judge reiterated that "it is unsafe to support a conviction on the bare assertion of witnesses that they had recognised the accused". He went on to cite the case of *Ludovick s/o Kashaku v Republic* [1967] HCD 194 where reasons for identification, such as the sound of voices or distinctive clothing, were requited to be given. The judge then reduced the punishment from fifteen to eighteen years' imprisonment.

The appellant had a memorandum of appeal containing four ground of appeal. However, his learned advocate, Mr *Maira*, decided to abandon the second ground, argued the first and the third grounds together, and concluded with the fourth ground. The respondent/Republic was represented by Miss *Munisi*, learned State Attorney.

For the reasons which will be obvious in a moment, we do not deem it necessary to make a resume of the submissions for and against the appeal. When we were deliberating on the appeal so as to write a judgment, we were in no doubt about the guilt of the appellant. What exercised our minds was whether the appellant was not after all guilty of robbery as the district court had found him to have been.

That thought, in its turn, brought to the surface two preliminary points. The first was that we had not been addressed on whether or not the appellant is guilty of robbery. Second, we wondered whether we could quash the decision of the High Court and restore that of the district court without there being a cross-appeal by the Republic.

To clear up those two points we decided to reopen the matter and invite both counsel to address us after we have given them a sufficient notice.

Mr *Maira* was resolute that this Court could only uphold the judgment of the High Court or quash it and acquit the appellant and that the Court does not have jurisdiction to reinstate the judgment of the district court. He had two reasons for saying so. First, he said, this Court could only act where there is before it a writ of error and that it was not for the Court to search for errors. Here, the learned counsel submitted, the writ of error before us challenged the conviction against receiving stolen property and that there was no writ of error challenging the acquittal of the appellant of the charge of robbery which is what the High Court had done. As his second reason Mr *Maira* pointed out that this Court lacks revisional jurisdiction and so it could not invoke those powers to reinstate the judgment of the district court.

As to whether or not there is sufficient evidence on record to sustain a conviction for robbery, Mr *Maira* submitted that there are grave doubts on the correctness of the identification of the appellant by PW1. The learned counsel contended that what PW1 identified was the vehicle which he came across it on Morocco Road and not that the appellant was the robber.

Miss *Munisi*, on the other hand, said that it was open to this Court to ascertain the propriety or otherwise of the quashing of the conviction of robbery by the High Court without there being a cross-appeal. She referred us to section 4(2), of the Appellate Jurisdiction Act of 1969 (hereinafter referred to as the Act) and she also cited the decision of the East African Court of Appeal in *Merali and others v Republic* [1971] HCD number 145.

As for the conviction of robbery, Miss *Munisi* submitted that the identification of the appellant by PW1 was not challenged in cross-examination. Then she added that the invocation of the doctrine of recent possession was proper as the appellant was caught driving the vehicle just three days after the robbery. Miss *Munisi* concluded that the conduct of the appellant at the time of arrest was inconsistent with the presumption of innocence.

Admittedly we lack revisional jurisdiction, so, can we act where there is no cross-appeal?

This question was considered by this Court in *Ihuya and others v Republic* [1980] TLR 197. This Court dismissed the appeals of the appellants and upheld the convictions of manslaughter against all four of them. The matter then which was debated was whether this Court could enhance the punishment given to them without there being a cross-appeal by the Republic. It was held that this Court had such powers. Reliance was put on rule 36 of the Tanzania Court of Appeal Rules of 1979, which reads:

> "The court may, in dealing with any appeal, so far as its jurisdiction permits, confirm, reverse or vary the decision of the High Court, or remit the proceedings to the High Court with such directions as may be appropriate, or to order a new trial, and to make any necessary incidental or consequential orders, including orders as to costs."

It was held that the word "vary" in this rule means that "the Court has powers to increase or decrease the sentence when either the prisoner or the Republic appeals."

The word "vary" is subjected to "so far as its (court's) jurisdiction permits". The question is whether jurisdiction permits. So here we go further to say that when a party appeals to this Court then we are not just limited either to uphold the appeal and grant the reliefs prayed for or to dismiss the appeal and leave intact the decision appealed from. The party who appeals lays himself bare and gives the Court the power it would not have had if he had not appealed. Thus there is a third alternative. This is where the Court says: "yes, the lower Court has indeed erred but not in the way the appellant contends that injustice has been done to him but rather that the appellant ought to have been found guilty of a more serious offence or that he deserved a stiffer sentence than the one that was administered to him". Thus if a party appeals against conviction then instead of dismissing the appeal or of allowing it and acquitting him, this Court could find him guilty of a more serious offence of which he was charged but acquitted by the lower Court and consequently enhance the sentence. Likewise, if the appeal is against sentence only, then, in appropriate case, this Court could enhance it instead of reducing it as was pleaded by the appellant or leaving it intact.

Mr *Maira* talked about a writ of error. First of all a writ of error was the mode of appealing used in criminal proceedings in England but that was abolished by section 20(1) of the Criminal Appeal Act of 1907. So that is not the requirement even in England now. Be it as it may, in Tanzania appeals to this Court are governed by the Act and the Tanzania Court of Appeal Rules of 1979 made under it. A party to a criminal proceedings in the High Court or in a subordinate court with extended jurisdiction who has a right of appeal under the Act has first to file a notice of appeal under rule 61. In such notice of appeal the aggrieved party indicates whether the appeal is against conviction or sentence or both. Now the notice has the effect of delimiting our powers to what

is appealed against. It would be outside our powers to look into conviction when the notice of appeal was on sentence only. The appellant then has to concisely enumerate his grievances in a memorandum of appeal (rule 65). This is what, we suppose, Mr *Maira* calls a writ of error. Without the leave of court, the appellant would not be heard on any matter not contained in the memorandum of appeal (rule 74(*a*)). It seems to us utterly inconceivable that whereas we can allow an appellant to go outside his memorandum, we cannot ourselves do so. Now once we have done that and have come to the opinion that the lower Court had erred we then can step into the shoes of the lower Court and make the necessary corrections under section 4(2) of the Act as Miss *Munisi* submitted and as was done by our predecessor in *Merali*'s case (*supra*).

In fact this Court again did that in *Yusufu and Yusufu v Republic* criminal appeal number 59 of 1988 (UR). That was an appeal of a former Member of Parliament for Songea against his conviction of unlawful possession of Government trophies. This Court found him guilty of the more serious offence of dealing in Government trophies of which he had been charged in the alternative but was acquitted by the learned trial Judge. There was no cross-appeal and infact the appellant was neither represented nor was personally present at the hearing of the appeal as he had indicated his desire not to be present.

We have found it pertinent to dwell on this point for a considerable length for the sake of dispelling any doubt as to the powers of this Court in the absence of a cross-appeal.

Now to get back to the substance of the appeal, we agree with Miss *Munisi* that there is watertight evidence with which to convict the appellant of robbery. The doctrine of recent possession coupled with the inexplicable criminal conduct immediately prior to his arrest corroborate the identification by PW1 though that was not necessary.

We therefore quash the conviction of receiving stolen property and substitute it with one of robbery contrary to section 285 and 286 of the Penal Code. The sentence of eight years passed on him is hereby enhanced to the minimum sentence of thirty years provided by the amendment of Act 10 of 1989.

For the appellant:
Maira

For the Republic:
Munisi

Mucuha v Ripples Ltd
[1990–1994] 1 EA 388 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 March 1993
Case Number:	186/92
Before:	Hancox CJ, Kwach and Cockar JJA
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[1] Mandatory injunction – Principles to be considered before granting a mandatory injunction – Meaning of status quo.

Editor's Summary

The applicant had sublet a shop to the respondent who used it for the business of a restaurant. In 1992, the applicant wrote to the tenant demanding KShs 97 970 as rent arrears and subsequently invaded the premises, levied distress for rent upon the respondent's goods, evicted the tenant and sublet the premises to a new tenant.

The trial Judge issued a prohibitory and mandatory injunction against the applicants who then appealed.

Held – The applicant was in flagrant disobedience of the superior Court's orders and should not be allowed to use the process of the Court for such a patently mischievous purpose (*Thompson v Park* [1944] 2 All ER 477 and *Canadian Pacific Railway v Gaud* [1949] 2 KB 239 applied).

The principles for granting a temporary mandatory injunction are that they will only be granted exceptionally and in the clearest cases (*Canadian Pacific Railway v Gaud* [1949] 2 KB 239 applied).

Maintenance of status quo does not include the circumstances existing after an intruder's illegal acts, but that which existed before hand (*Thompson v Park* [1944] 2 All E R 477 approved).

It is unlawful to utilize the police in a civil action for the purpose of effecting or aiding private evictions or reinstatements. The police should not be involved in such matters as there is specific provision for the enforcement of an injunction under Order XXI, rule 29 of the Civil Procedure Rules.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bishop Muge, Re [1990] 2 KAR 205

Githunguri v Jimba Credit Corporation civil application No Nai 161 of 1988

United Kingdom

Canadian Pacific Railway v Gaud [1949] 2 KB – **AP**

Hemmings v Stoke Pages Golf Club [1918-1919] All ER 798

Isenberg v East India House Estate Co Limited [1863] 33 LJ Ch 392

Localbail International Finance Limited v Agroexport [1986] 1 All ER 901

Shepherd Homes v Sandham [1970] 3 WLR 346

Thompson v Park [1944] 2 All ER 477 – **AP** and **APP**

Wrotham Park Estate Co v Parkside Homes [1974] 2 All ER 321

Ruling

Kwach JA: This is an application under rule 5(2)(*b*) of the Court of Appeal Rules seeking a stay of

execution of the order of Mwera J given on 17 September 1992 in a landlord and tenant case.

Kamau Mucuha (the applicant) had sublet a shop on plot land reference number 209/4955, Mfangano Street, Nairobi, to the ripples Limited (the tenant), for a term of 5 years and 5 months from 1 February 1988, at a monthly rent of KShs 10 000, payable each month in advance. The reserved rent was to be revised after two and a half years but the revised rent was to exceed KShs 26 000 per month. The tenant also had an option to renew the sublease for a further term of 2 years and 6 months by sending a written request to the applicant not less than 3 months before the expiration of the term at a rent of KShs 16 900 per month. The tenant used the premises for the business of a restaurant.

On 17 July 1992, the applicant wrote to the tenant claiming KShs 97 970 by way of arrears of rent and interest. The tenant denied the claim by applicant that there was any rent outstanding. On 28 July 1992, the applicant instructed a firm of auctioneers who invaded the tenant's premises and levied distress upon the goods of the tenant and carried it away. The applicant also evicted the tenant from the premises and immediately sublet them to a new tenant, Unitred Printers Limited. The said Unitrade Printers Limited provided transport used by the applicant and the auctioneers to carry away the tenant's goods. The tenant immediately filed proceedings to challenge the illegal distress and eviction and then took out a chamber Summons under Order XXXIX of the Civil Procedure Rules seeking the following, among other, reliefs:

> "(*a*) a prohibitory injunction restraining the applicant, his servants and agents form alienating or demising the suit premises; and
>
> (*b*) a mandatory injunction requiring the applicant to forthwith reinstate and restore full and unconditional possession of the suit premises to the tenant and also to return forthwith the goods attached in their original condition and default to pay the tenant compensation to the full value of the goods."

The application was supported by an affidavit sworn by Riaz Jivan, the Managing Director of the tenant. The affidavit explains in detail the circumstances leading to the attachment of the tenants goods and its eviction from the suit premises. Mr Jivan estimated the loss of profit suffered by the tenant to be KShs 7 500 per day.

There was a replying affidavit filed by the applicant in which he deponed that there had been a verbal agreement between him and the tenant to increase rent to KShs 13 000 per month with effect from 1 July 1990; that after evicting the tenant he had sublet the suit premises to Unitrade Printers Limited who had turned the premises into a printing press; that the cost of restoring the premises back to a restaurant would be prohibitive. There was annexed to that affidavit a copy of a letter dated 29 July 1992 addressed to Charles Munge of Unitrade Printers Limited between the applicant and Unitrade Printers Limited. The rent was to be KShs 17 000 payable quarterly in advance. This was to be increased automatically after 2 years by 30% to KShs 22 000 per month.

The application in due course came before Mwere J who after hearing submissions wrote a very careful and well-reasoned ruling issuing the two injunctions sought by the tenant. The 1992 ruling was delivered on 17 September 1992. On 21 September 1992 the applicant filed a notice of appeal and on 23 September 1992 filed the present application.

Mrs *Ochanda* for the applicant submitted that in granting the injunctions, the judge did not apply the proper test. She said that since the premises had been altered, they can no longer be of any use to the tenant. The premises had been sublet to another tenant who was now using them for a printing business.

She referred to a passage in the judgment of *Shepherd Homes Limited v Sandham* [1970] 3 WLR 348 at 356, dealing with the distinction between prohibitory and mandatory injunctions.

Mrs *Ochanda* also criticised the judge for not weighing detriment against benefits arguing that by the time the premises are restored to their original condition, the lease would have expired. I cannot see the basis of this submission because there is nothing in the judge's order requiring the applicant to undertake such a restoration.

Mrs *Ochanda* also submitted that the order should not have been made because the tenant had been guilty of delay in seeking redress, but this cannot be correct because the record shows that the tenant went to law almost immediately after the illegal distress and eviction by filing a suit in the Resident Magistrate's Court at Sheria House in Nairobi.

The main thrust of Mrs *Ochanda'*s argument was that the injunctions should never have been issued at all. On that basis, she went on to say that the applicant has an arguable appeal, or put another way, that the intended appeal is not frivolous. That may well be so but in this application, we do not have to decide whether the judge was right or wrong. That determination will be made at the hearing of the appeal itself. In his affidavit in support of the application, the applicant has put great emphasis on the inconvenience and cost to which his present tenant will be put if the stay is refused. To express a concluded view on the various submissions of Mrs *Ochanda* at this stage would certainly prejudice the appeal and I do not, therefore, propose to do so. It is clear, both on authority and principle, that there is jurisdiction to grant a mandatory injunction in an appropriate case.

For my part, I am content to decide this application purely on the track record of the applicant since the order complained of was made last September. He was required to do three things. Firstly, he was ordered not to alienate or demise the suit premises. Secondly, he was required to reinstate the tenant. And thirdly, he was required either to return the goods of the tenant or pay him compensation. Up to this day, he has made no attempt to comply with any of these orders. With regard to the first and the second, he could have gone back to the judge and explained his difficulties having in the meantime put a new tenant into possession. But with regard to the return of the goods wrongfully attached, what possible excuse can he have for not complying? None at all. He is in my opinion, in flagrant disobedience of the order of the judge and now comes to this Court for temporary dispensation. He should not be allowed to use the process of this Court for such a patently mischievous purpose. As Lord Goddard LJ said in the case of *Thompson v Park* [1944] 2 All ER 477 at 479E:

> "Having got back into the house with strong hand and with multitude of people, he has established himself in the house, and, he then says:
>
> I ought not to have an injunction given against me to make me go out because I got back here and got my toys back and, therefore, I want the status quo preserved."

The status quo that could be preserved was the status quo that existed before these illegal and criminal acts on the part of the defendant. It is a strange argument to address to a Court of law that we ought to help the defendant, who has trespassed and got himself into these premises in the way in which he has done and say that that would be preserving the status quo and that it would be a good reason for not granting an injunction."

In the case of *Canadian Pacific Railway v Gaud* [1949] 2 KB 239 Cohan LJ put the matter beyond doubt when he said at 249:

> "Mr Collard's fourth point raises the question whether interlocutory relief should be granted. I entirely agree with what he said at the end of his argument, that the granting of the mandatory injunction on interlocutory relief is a very exceptional form of relief to grant, but it can be granted."

The only valid criticism of the order of the judge which I can see as of now but which does not swing the scale one way or the other in this application, is the direction that the assistance of the police should be enlisted to secure compliance by the applicant. The police should never be involved in such matters as there is specific provision for the enforcement of an injunction under Order XXI, rule 28 of the Civil Procedure Rules.

For these reasons, I would decline to grant the relief sought, and dismiss the applicant with costs.

Hancox CJ: Rumwe Farmers Co-Operative Society is the registered proprietor as lessee from the Government of Kenya of the Land and building situated at land reference number 209/4985 Mfangano Street Nairobi for a term of 99 years from 1 March 1958. On the ground floor of that building there exists a shop known as shop numberone which was let to the applicant, the defendant in the High Court, Kamau Mucuha, for 5½ years commencing on 1 January 1988. A month later the applicant subleased the shop for years and 5 months less one day to the respondent the plaintiff in the High Court, the one day exception being for the purpose of ensuring that the respondent had a reversion on the sublease, and then it would have been invalid.

Thus the initial terms demised were:

Rumwe Co-operative Society (Head lease):	1 March 1958 to 28 February 2057
Kamau Mucuha:	1 January 1988 to 30 June 1993
Ripples Limited:	1 February 1988 to 29 June 1993

However, clause 4 of the sublease contained on option in favour of the respondent to renew the lease for a further 2½ years, and required the applicant to exercise his option to renew contained in the Head Lease. The only brake, or respondents are concerned, was that they should not have committed any breach of the sub-tenants covenants and conditions contained in the lease.

Thus, Mr *Regeru*, on behalf of the respondent pointed out during his submission, it was inaccurate to say as Mrs *Ochanda* did when presenting her argument on behalf of the applicant that the sublease was on the verge of expiry, and that consequently the injunction granted by Mwera J on the 17 September 1992 was purposeless, so that there could be no benefit to the respondent corresponding to the detriment occurring to the applicant Mr *Regeru* submitted that there was in fact substantial period to run because the extended term under the option would not expire until 30 December 1995, and later if the period during which his client had been unlawfully out of the premises since July 1992 was deducted from the term of the sublease.

On the 17 July 1992 the respondent were unlawfully thrust out of shop number one on the pretext (so the respondents say) that they had failed to pay the rent the arrears of which amounted to KShs 97 920 as at the time of filing suit on 21 august 1992. This fact is substantially disputed the one side producing letters of demand alleging returned cheques and the other producing the receipt for several months rent.

The despondent, for some reason, initially filed suit in the Principal Magistrate's Court at Sheria House sometime between the eviction complained of and 6 August 1992 and the instant one was filled two days later. An injunction in mandatory terms to restore possession of shop number 1 to the respondents was *inter alia* claimed and simultaneously a chamber summons claiming similar but temporary relief was filed asking that service be dispensed with.

It appears that an *ex parte prohibitory* injunction given against alienating the shop but the mandatory injunction was not. The *inter partes* application was subsequently heard before Mwera J who gave a reasoned ruling on the 17 September 1992, and who evidently had little hesitation in confirming the *ex parte* order and in adding the mandatory injunction sought. It is from his decision that the instant appeal is brought. The main thrust of Mr *Regeru's* submission was that not the slightest attempt had ever been made by the applicants to comply with Mwera J's Order, in fact they had flouted it (by failing to return any of the respondents stock in trade, goods and chattels unlawfully distrained upon) and indeed contempt proceedings in the respect were contemplated.

Moreover Mr *Regeru* complained, the party to whom the applicant had unlawfully demised the shop Unitrade Printers then sued both the parties to this appeal claiming *inter alia* that they were the lawful tenants and an order restraining the respondent from evicting them an attempt Mr *Regeru* says to pre-empt the order of Mwera J. Happily, however, Shields J refused to rise to the bait so temptingly placed before him in the second suit High Court civil case number 5028 of 1992 and in characteristically incisive ruling delivered on 2 November 1992, in effect held that so far as the immediate order for restoring possession was concerned the matter was *res judicata* before Mwere J.

I now come to the substance of Mrs *Ochanda*'s argument. It is that the learned Judge erred in granting a prohibitory injunction in the prevailing circumstances first because the premises had by then been converted from a catering establishment into a printing press and secondly because they had demised to a person who was not before the Court in the instant case. In consequence Mwera J's order was incapable of being complied with for both these reasons. The judge Mrs *Ochanda* said had never even considered the effect of the transformation in him ruling.

Mrs *Ochanda*'s first authority was *Shepherd Homes v Sandham* [1970] 3 WLR 348 in which Magarry as he then was drew the distinction between a prohibitory and a mandatory injunction. He said at 356

> "Whereas a prohibitory injunction merely requires abstention from acting a mandatory injunction requires the taking of positive steps and may (as in the present case) require the dismantling or destruction of something already erected or constructed. This will result in a consequent waste of time, money and materials if it is ultimately established that the defendant was entitled to retain the erection."

Next she submitted that Mwera J should not in any event have granted a mandatory injunction which is a remedy very sparingly granted by court as a temporary measure on a notice of motion rather than at the hearing. In support of this proposition Mrs *Ochanda* again cited *Shepherd Homes v Sandham* (*supra*) and also *Locabail International Finance Limited v Agroexport* [1986] 1 All ER 901 in which the *Shephard Homes* case was extensively cited and as I understand it approved. In the second case Mustill LJ said at 906:

> "The matter before the Court is not only application for a mandatory injunction which if granted would amount to the grant of a major part of the relief claimed in the action. Such an application should be approached with caution and the relief

> granted only in clear case. I feel bound to say that to my way of thinking this was not the approach adopted by the judge because as I directed at the hearing before him to the level of conviction which required to be conveyed to the Court before a mandatory injunction could properly be granted."

On clear authority therefore Mrs *Ochanda* said a higher standard has to be applied before a temporary mandatory injunction is granted than is the case with a temporary prohibitory injunction. What is required is a "high degree of assurance that at the trial it will appear that the injunction was rightly granted". This element Mrs *Ochanda* submitted was clearly lacking in Mwera J's ruling and the requirement was all the more important because in the instant case the premises are incapable of being restored to the condition in which they were before eviction. Finally in support of her submission that a Court should be reluctant to grant a temporary mandatory injunction a principle to which she said the judge paid lip service but did not apply Mrs *Ochanda* cited *Wrotham Park Co v Parkside Homes* [1974] 2 All ER 321, which also sets out the same principles as regards the mandatory injunction which are to be found in the other cases – see especially the quotation from *Isenberg v East India House Estate Company Limited* [1863] 33 LJ Ch 392 at 397.

Finally, Mrs *Ochanda* submitted applying the test laid down as regards rule 5(2)(*b*) applications in *Githunguri v Jumba Corporation* civil application number Nairobi 161 of 1988 her client had a good arguable appeal with a fair chance of success and that because of the event she had related that success would be nugatory if the instant application were not granted.

Speaking for myself, I entirely agree that historically the principles laid down with regard to temporary mandatory injunctions are that they will only be granted exceptionally and in the clearest cases. In *Canadian Pacific Railway v Gaud* [1949] 2 KB Cohen LJ said at 249:

> "I entirely agree … that the granting of a mandatory injunction on interlocutory relief is a very exceptional form of relief of grant but it can be granted."

The reason for the rule is plain. Megarry J put it succinctly in a subsequent passage in the *Shepherd Homes* case as follows:

> "… if a mandatory injunction is granted on motion there will normally be no question of granting a further mandatory injunction at the trial; what is done is done and the plaintiff has no motion or destruction that he seeks. Where an injunction is prohibitory however there will often still be question at the trial whether the injunction should be dissolved or continued."

In the instant case it is of course possession rather than destruction that the plaintiff was seeking.

The statements contained in these passages, however leave out of account the situation when, as here it is alleged that the defendant has taken the law into his own hands and taken direct action instead of going through the legally prescribed procedure. In other words he had, by his own act disturbed the status quo. Is it to be said that the plaintiff may not go to the Court to seek an order which is mandatory in the sense that it compels the other party to do some act which restores the status quo?

The point is neatly illustrated by the decision of Goddard LJ in *Thompson v Park* [1944] 2 All ER 477 in which the question arose as to which of two rival prep schools should occupy the premises which belonged to the defendant but which had been demised to the plaintiff. The Court of appeal held that it is

fallacious for a person who forcibly and riotously enters premises to maintain that his occupation of these premises is the status quo was not that which must be maintained and not disturbed which of course in very many cases is the object of a temporary injunction – to keep things in status quo so that the property in question is maintained as far as possible intact until the final determination of the suit. Goddard LJ held in *Thompson v Park* (*supra*) that the status quo was not that which existed after the intruder's illegal acts but that which existed beforehand.

In the United Kingdom those who forcibly enter premises especially if the term demised has not expired may expose themselves to punishment under the statutes if forcible entry the first of which was the reign of Richard II and also to an action for trespassing *quare clausum fregit* – see *Hemmings v Stoke Pages Golf Club* [1918-1919] All ER 798.

In these circumstances is it a bar to the plaintiff coming to the Court for relief merely because the order he seeks is in form of mandatory? I think not. In the *Shepard Homes* case (*supra*), Megarry J gave the illustration.

> "If, of course, the defendant has rushed on with the work in order to defeat the plaintiff's attempts to stop him then upon the plaintiff promptly restoring to the Court for assistance that assistance is likely to be available for this will in substance be restoring the status quo and the plaintiff's promptitude is a badge of the seriousness of his complaint."

Did the respondent plaintiff in this case seek the Court's assistance with reasonable promptitude? Mr *Regeru* has submitted he did. Certainly the Principle Magistrate's Court action must have been filed before the 6 August when the applicant's replying affidavit in that court was filed. So that case must have been filed almost immediately. Then it was discontinued and the instant case commenced by the filing of the plaint on 21 August, just over three weeks later. In my opinion this chain of circumstances initiated on behalf of the plaintiff does amount to reasonable promptitude. The status quo was in my judgment the state of affairs substituting before the applicant entered the premises evicted the respondent and installed another tenant. The learned Judge in my view recognised the seriousness of a temporary mandatory injunction but nevertheless decided to grant it and thereby restore the status quo. I think he was right in so doing.

Applying the test laid down by Apaloo JA in giving the judgment of this Court in *Githunguri v Jimba Credit Corporation* (*supra*) and repeated in *Re Bishop Muge* [1990] 2 KAR 205 at 208 while I do not say that the intended appeal is frivolous, I would nevertheless refuse this application for the reasons I have endeavoured to state in this ruling.

Before concluding this judgment I would refer to paragraph 4 the Formal Order extracted on 22 September 1992. It says that police assistance may be enlisted to ensure that the plaintiff (that is the respondent) is reinstated in the premises. I have not been able to find any such order in Mwera J's ruling but it would in any event be unlawful to utilise the police in a civil action for the purpose of effecting or aiding private evictions or reinstatements. In including that paragraph the Deputy Registrar was acting wholly *ultra vires*.

For the foregoing reasons however, I would dismiss the application with costs to the respondent. As Kwach and Cockar JJA agree it is so ordered.

Cockar JA: This application under rules 5(2)(*b*) and 42 of the Court of Appeal Rules, filed under a certificate of urgency seeks a stay of execution of the ruling given by Mwera J in High Court civil case 4522 of 1992 pending hearing and determination of the appeal filed by the applicant challenging the said ruling.

Briefly the facts are that the respondent (plaintiff in the suit) is a sub-tenant of the applicant (defendant in the suit) of the shop number one situated on the ground floor of Rumwe House, Mfangano Street, Nairobi on Land Registration number 209/4985 (hereinafter referred to as the suit premises) by virtue of a sublease agreement dated 1 February 1988, made between the respondent and the applicant (the head lessor) for a term of five (5) years and five (5) months from the said date at a monthly rent of KShs 10 000 payable monthly in advance. Pertinent to the matters in issue are the clauses prescribing an elaborate procedure to be followed for an increase in rent after the expiry of 2 years and 6 months from the commencement of the lease and for an extension of the period of lease at the option of the tenant that is the respondent. On 17 July 1992 the applicant sent a notice demanding payment of KShs 97 920 by way of arrears of rent and interest. The respondent claims that no rent at all was due. On 28 July 1992 the applicant caused M/s Parkview Auctioneers to levy distress against the goods and stock-in-trade of the respondent claimed that the levy of distress was unlawful because no rent at all was due and the eviction was illegal, null and void and of no effect.

The respondent immediately sought redress by filing a suit in the Principal Magistrate's court at Sheria House. This suit was, however, withdrawn and on 21 August 1992 the respondent filed a plaint in the High Court of Kenya at Nairobi and sought judgment for *inter alia* the following prayers:

> "(*a*) A declaration that the eviction was illegal, null and void and of no effect and for unconditional repossession.
>
> (*b*) An order to restrain the applicant from alienating and demising the suit premises pending the hearing and determination of the suit.
>
> (*c*) A mandatory injunction for reinstatement in and unconditional re-possession of the suit premises and for the return of the respondent's stock-in-trade, goods and effects.
>
> (*d*) Aggravated and special damages."

Simultaneously with the plaint the respondent also took out a chamber summons seeking against the applicant an injunction to restrain and also a mandatory injunction in terms of the above prayers (*b*) and (*c*) of the plaint. The managing director of the respondent company, Riaz Jivan, swore and filed an affidavit together with relevant documentary annextures in support of the chamber summons. On the same day that is on 21 August 1992, the suit premise was granted by the Court.

In his replying affidavit the applicant deponed to *inter alia* the following facts:

1. The respondent's previous director had verbally agreed with the applicant to the monthly rent being increased to KShs 13 000 with effect from 1 July 1990. But as that particular director had gone overseas the respondent's present director had adamantly refused to pay the increased rent.
2. After the respondent's eviction the suit premises were sublet to M/s Uni-Trade Printers Ltd. who converted the entire suit premises into a printing press.
3. After the withdrawal of the applicant's suit in the Principal Magistrate's Court at Sheria House, the applicant gave his consent to the new tenant to proceed with the re-construction of the suit premises and that a reconversion of it into a hotel now would involve a considerable expense and that the respondent could be adequately compensated by an award of damages.

An affidavit in reply dated 4 September 1990 by Riaz Jivan the managing director of the respondent company was filed denying any mutual agreement to increase the rent to KShs 13 000 per month as from 1 July 1990 and re-iterating the elaborate procedure that had been prescribed in the sublease which provided for an agreed increase in the monthly rent. It is to be noted that in his supporting affidavit of 21 August 1992, Riaz Jivan of the respondent company, deponed that after the attachment of goods an employee of the respondent company Sadrudin Punjani, offered to pay Mr Kamonde the then advocate for the applicant, the alleged outstanding arrears for the attached goods to be released but Mr Kamonde informed him that his instruction apart from levying distress, were to evict the respondent from the suit premises. He also deponed that the vehicle of a neighbour one Charles Munge who occupied premises next to the suit premises was used to transport the attached goods. The said Charles Munge is also the director of Uni-Trade Printers Ltd. The new tenants of the suit premises as can be seen from the annexture (KM1) to the replying affidavit of the applicant sworn on 1 September 1992. Neither of these two claims made in Riaz Jivan`s supporting affidavit was denied by the applicant in his replying affidavit.

With the above facts and the submissions from the advocates of both the parties before him during the *inter partes* hearing of the application the learned Judge, who now had also to deal with the prayer for a mandatory injunction found himself satisfied that the respondent had established a *prima facie* case against the applicant that there was a need for a status quo to be maintained through a prohibitory injunction and that the applicant's action was such as to attract a mandatory injunction in order to restore the status quo. He therefore in his ruling dated 17 September 1992, granted the orders in favour of the respondent in terms of prayers (*b*) and (*c*) summarized above.

On 23 September 1992, the applicant filed this notice of motion seeking a stay of the execution of the aforesaid ruling of Mwera J. While conceding that a levy of distress by itself did not terminate tenancy nor did it entitle an eviction. Mrs *Ochanda* for the applicant however strongly contented that she had an arguable appeal. The suit premises had after eviction been completely transformed to suit the needs of a printing press. A great amount of expense had been incurred in bringing about the alterations. Even a reinstatement of the respondent in the suit premises would not in her view prove any benefit to it because the same were no longer suitable for the respondent's purpose. Finally Mrs *Ochanda* also reminded us that as the sublease for 5 years and 5 month had commenced from 1 February 1988 a very short unexpired period of the sublease was now left. There was also a lack of promptitude on the part of the respondent in seeking its remedy. Eviction had taken place on 29 July 1992, and the suit was filed on 21 August 1992. Mrs *Ochanda* vigorously contended that the above factors had disclosed such special circumstances as to render the intended appeal against the ruling and order of the learned Judge arguable.

As regards Mrs *Ochanda*'s contentions in respect of the very short unexpired period of lease that is now left it was submitted by Mr *Regeru* that the period of the sublease ceased to run from the date of eviction. Further clause 4 of the sublease has provided for its extension for another period of 2 years and 6 months at the option of the respondent. With regard to lack of promptitude of which the respondent was accused Mrs *Ochanda* was not quite fair in her accusation because after the eviction the respondent had immediately sought

the same reliefs in a suit filed, presumably on the advice of its advocate in Principal Magistrate's Court at Sheria House. The suit was subsequently withdrawn and thereafter the present High Court suit was filed.

Mrs *Ochanda* was extremely critical of the grant of both prohibitory and mandatory injunctions and particularly of the latter, which she claimed was in the absence of special circumstances not normally granted. She cited the cases of *Localbail International Finance Limited v agro-export and others* [1986] 1 All ER *Shepherd Homes Limited v Sandham* [1970] 3 WLR and *Wrotham Park Estate Company v Parkside Homes Limited and others* [1974] 2 All ER on the issue of mandatory injunction. I entirely agree with Mrs *Ochanda* on the factors that were particularly stressed in these authorities and referred to us by her, that a Court is far more reluctant to grant mandatory injunction than it would be to grant a comparable prohibitory injunction that in a normal case the Court must *inter alia* feel a high degree of assurance that at the trial it will appear that the injunction was rightly granted and that this is a higher standard than is required for a prohibitory injunction. After referring to the prayers of aggravated and general damages that the respondent had also claimed in its plaint Mrs *Ochanda* submitted that the learned Judge had erred in not finding that damages would have been the most appropriate remedy for the respondent because he was aware that the suit premises had after the eviction been let to a third party who was not a party to the proceedings. In her view although the learned Judge had considered the principles set down in the authorities that she had cited he had not applied them stringently before granting the mandatory injunction.

As regard Mrs *Ochanda*'s submission that the learned Judge had not strictly applied the principles governing the grant of a mandatory injunction I quote below a passage from the ruling of the learned Judge on this issue:

> "In all the treatises precedents and court arguments etc, whenever an issue of a mandatory injunction arises it is clearly understood and accepted that such an injunction should only issue in the clearest and special cases only. It should issue with utmost care and even reluctance. This court appreciates this stance well. The rationale of this stance should be that the effect of an order for a mandatory injunction is that the party against whom the order is made should do or undo something. Many side effects may follow such an act. So it is well understood as to why courts issue such orders with care and even reluctance."

This is not the stage where I can deal with this issue any further and I therefore say no more.

Mr *Regeru* who was understandably indignant that no attempt had been made by the applicant to serve the order of the learned Judge on the third party submitted that the applicant instead had the temerity by this application to seek a position which would result in a continuing benefit to the third party which was obtained through such a blatantly unlawful eviction of the respondent. Not even the unlawfully attached goods of a value of over KShs 1.5 million had so far been returned to the respondent. The act of *mala fides* on the part of the respondent (and the third party) was further aggravated by the fact that the third party had filed a suit in the High Court being High Court civil case number 5028 of 1992 at Nairobi and therein he had though unsuccessfully attempted to obtain an order for a stay of execution of Mwera J's said order thereby attempting to circumvent the said order and to have it stayed through the back door.

Apart from the *mala fides* so displayed by the applicant and referred to by Mr *Regeru* the thrust of the rest of Mr *Regeru*'s submissions centered around his

contention that having obtained an advantage by such wantonly unlawful acts the applicant ought not to be allowed by court to retain or maintain that benefit and the position must revert to a status quo as it existed before the unlawful eviction took place. That is what Mwera J had in fact granted by his said order. He drew the Court's attention to the passage from 24 *Halisbury's Laws of England* (4ed) paragraphs 948 and quoted in *Localbail*'s case (*supra*) which we give below:

> "A mandatory injunction can be granted on an interlocutory application as well as at the hearing… if the defendant attempted to steal a march on the plaintiff … a mandatory injunction will be granted on an interlocutory application."

A party as far as possible ought not to be allowed to retain a position of advantage that it obtained through a planned and blatant unlawful act and without in any way attempting to predecide the intended appeal or to influence a decision thereon, I am of the view that the order of the learned Judge granting the prohibitory and mandatory injunctions ought not to be disturbed at this stage. I would, therefore, in full agreement with Hancox CJ and Kwach JA whose able drafts I have had the advantage of perusing proposed that this application be dismissed with costs.

For the applicant:
Mrs Ochanda

For the respondent:
Mr Regeru

Muge Re
[1990–1994] 1 EA 399 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	18 and 19 October 1990
Case Number:	[1990] 2 KAR; 77/90
Before:	Hancox CJ, Nyarangi and Masime JJA
Sourced by:	LawAfrica

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[1] Prohibition – Application for leave to apply for an order restraining criminal proceedings before magistrate – Refusal of leave by judge – Whether public statements by law officer ordering inquest binding on the Court – Legality of order – Section 26(2), 26(3)(a) and 69 – Constitution of Kenya – Section 388(1) – Criminal Procedure Code – Section 2 – Interpretation and General Provisions Act (Chapter 2) – Order XVIII, rule 3, Order LIII, rule 1(2) – Civil Procedure Rules.

Editor's Summary

On 14 August 1990 a prominent church leader was killed in a road accident near Eldoret. On 18 August the Attorney-General issued a press release ordering a public inquest into the death "to be presided over by a judge to be appointed by the Chief Justice of Kenya". On 15 August, one Omukoba was charged before the Principal Magistrate in Eldoret with causing the death of the church leader by dangerous driving. His hearing commenced on 3 September and on 20 September his

widow applied to the High Court for leave to issue an order of prohibition restraining the magistrate from proceeding further with the criminal charge until the determination of the inquest or inquiry directed by the Attorney-General was still pending the continuation of the former was an abuse of process.

The judge dismissed the *ex parte* application for leave, mainly on the ground that the applicant's affidavit verifying the statement in support did not comply with the Civil Procedure Rule respecting affidavits in that she had deponed to several matters of law of which she could not, in the nature of the application, have had direct knowledge, and also because she had no legal right or standing to intervene in the criminal proceedings.

The applicant appealed and at the same time applied under rule 5(2)(*b*) of the Court of Appeal Rules for an order staying the criminal proceedings in Eldoret until the determination of the main appeal. It was submitted by counsel for the applicant that on the authority of *Githunguri v Jimba Credit Corporation* civil appeal number Nai 164 of 1988, the criterion was not whether the judge, in refusing to grant leave, had misdirected himself on the issues before him. The Court of Appeal had an independent original jurisdiction to decide the application and would grant it if the applicant showed that there were serious questions to be determined in the main appeal, so that the appeal would be rendered nugatory if the Court denied the relief sought.

Held – The principles stated in *Githunguri v Jimba Credit Corporation* were the correct ones to be adopted and applied in application to the Court of Appeal under rule 5(2)(*b*).

It followed that if any of the issues argued by the applicant's counsel amounted to serious questions which required determination in the intended appeal, the Court would grant the relief sought so as to prevent the appeal being rendered nugatory.

Accordingly, as the first two matters raised related to the correctness or otherwise of the judge's findings as to the defects in the applicant's affidavit verifying the statement in the High Court, they did not amount to serious questions because they related to the judge's discretion and did not fall to be decided on an application under rule 5(2)(*b*).

The applicant, as the widow of the deceased, did not have the necessary *locus standi* to present an application for prohibition, irrespective of her chances of success thereon.

There was insufficient material on the record to say that the remaining issues raised by the appellant, as to the advancement of the hearing date in the criminal case and the appearance of the Attorney-General's representative at the *ex parte* hearing before the judge, amounted to serious questions to be tried on the main appeal.

While the Attorney-General's direction of 18 August was not illegal or contrary to any law, I had no constitutional or statutory basis and therefore there were no grounds for restraining the criminal proceedings lawful begun before the Principal Magistrate in Eldoret.

There were accordingly no grounds for issuing an order restraining the Eldoret proceedings.

Application dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Githunguri v Jimba Credit Corporation civil application Nai 164 of 1988 – **A** and **AP**

Githunguri v Republic High Court criminal application 271 of 1983

Mohammed v Kibera Wananchi Trading Company High Court civil case 1580 of 1968

Ruhi v Republic High Court criminal application 428 of 1985

Judgment

Hancox CJ: The Right Reverend Bishop Alexander Kipsang' arap Muge, aged 43, met an untimely death in a road accident near Eldoret on 14 August 1990. There was immediate press speculation on the circumstances surrounding his death and widespread coverage of the event itself. Four days later the Attorney-General issued a press release under his hand which stated as follows:

> "Press Release
>
> *Re Public Inquest*
>
> Under the powers conferred upon me by the Kenya Constitution and Criminal Procedure Code, I Mathew Guy Muli do hereby direct and order that a public inquest be held into a Court of law to determine the surrounding circumstances and the cause of death of the late Bishop Alexander Kipsang Muge who died near Eldoret on the 14 August 1990.
>
> In order to avoid witnesses travelling long distances I direct that the Public Inquest be held at the Eldoret Law Courts.
>
> The Public Inquest shall be presided over by a judge to be appointed by the Chief Justice of Kenya.
>
> Dated 18 August 1990.
>
> (Signed)
>
> Justice Mathew G Muli
>
> Attorney-General"

This statement received similar treatment from the national press of the 19 August 1990, of which a typical headline was "Muge: Inquest Order by Muli". It is accordingly this press statement which forms the fundamental basis for the application now before us under rule 5(2)(*b*) of the Court of Appeal Rules, and it is the case put by Mr *Nowrojee* on behalf of the applicant, Mrs Muge, the widow of the late bishop, that she is entitled, as a person directly affected by her husband's death, to rely on an unsolicited public statement by the most senior legal officer in Kenya, who is, by virtue of section 26(2) of the Constitution also the principal legal advisor to the government.

In support of this proposition, Mr *Nowrojee* referred us to the High Court case concerning *Githunguri* (High Court civil application 271 of 1985), in which, despite the strenuous submissions of Mr *Chunga*, (who, we are informed, appeared before Dugdale J in the High Court, from whose decision the intended appeal is being bought despite the *ex parte* nature of the application and who has also featured in the traffic case at Eldoret which is the subject of this application), that court granted prohibition restraining the prosecution of Githunguri for exchange control offences on the grounds of an antecedent decision by a previous Attorney-General not to prosecute for the same offences. In other words it would be wrong for the Court not to hold that a subject who is affected by a decision of the Attorney-General cannot rely on that decision to the point of enforcement of it in a Court of law.

That decision formed item (6) of Mr *Nowrojee*'s list of serious questions which he said are fit to be tried as substantial issues in the main appeal: for he conceded that if there were no substantial or serious questions to be tried then there would be no basis for granting the order presently sought, which of its nature is intended to preserve, and does preserve, an interim situation so as to ensure that the appeal, when argued and decided, is not rendered nugatory.

The order sought in the instant case, is that Dugdale J having dismissed an application for leave to issue an order of prohibition under Order 53, rule 1(2) of the Civil Procedure Rules restraining the Principal Magistrate, Eldoret, from proceeding further with criminal case 3886 of 1990 in which one Omukoba is charged with causing the death of the bishop by dangerous driving, this Court should now grant what is in effect the same order by way of a stay in the traffic case pending the determination of the main appeal.

According to the first authority of this Court which Mr *Nowrojee* cited to us, namely *Githunguri v Jimba Credit Corporation* (incidentally the same Githunguri who featured in the High Court appeal already referred to) civil application number Nai 164 of 1988, the criteria we have to apply are different from those which would be applicable in the main appeal. In the main appeal the discretion exercised by Dugdale J would be directly in issue. If in the main appeal we were satisfied on the submissions before us that in exercising his discretion the judge had taken into account factors which he should not have taken into account, or had failed to take into account matters which he should have taken into account, or that his decision was plainly wrong, then we should be entitled to interfere with his exercise of that discretion and reverse it if need be.

The test we should apply in that which is in effect an interlocutory application to this Court is however different, and we are satisfied that the second *Githunguri* case (*supra*) enunciates correctly the principles that we should now apply. In that case it was common ground that Githuguri and two companies in which he had a controlling interest owed sums in excess of KShs 71 million to the respondent finance institution. As security he charged a valuable leasehold plot number 209/2461 to secure the repayment. By the middle of 1986 the corporation became insistent on a substantial reduction of the indebtedness and variation and rescheduling the arrangements were made by consent. Despite these arrangements the indebtedness grew because of the interest, and in 1988 the corporation peremptorily demanded repayment and threatened to exercise its standard statutory power of sale, whereupon Githunguri filed suit to restrain the corporation from so doing. An *ex parte* interim injunction was granted but the application was dismissed on the subsequent *inter partes* hearing.

Githunguri appealed, and the corporation contended that the Court could only interfere with the judge's discretion if it could be clearly shown that he misdirected himself on the issue before him. This Court emphatically stated that that was not the correct approach on an application under rule 5(2)(*b*) pending the hearing of the main appeal. They said:

> ". . . The guiding principles which emerge and are discernible from case law on this subject, are first, the appeal should not be frivolous or as is otherwise put, the applicant must show that he has an arguable appeal and second, this Court should ensure that the appeal, if successful, should not be nugatory. Accordingly, we put to ourselves these questions namely, first, on the material made available to us, is the intended appeal frivolous or has the applicant shown, *prima facei*, that he has substantial points to present to the Court on this appeal, and second, if he has, would his appeal be nugatory if we denied him the interim relief sought?"

We are satisfied that these pronouncements correctly embody the law and the principle to be applied on an application under rule 5(2)(*b*), and we therefore accept Mr *Nowrojee*'s submissions that if he can show that there are serious questions which are to be tried in the main appeal, so that if the relief sought is not granted the appeal would be rendered nugatory, then he is entitled to the relief sought.

The serious questions which Mr *Nowrojee* advanced are, first, are there substantial errors in Mrs Muge's affidavit of the 13 September in support of the chamber summons in the High Court. The reference to the affidavit is clearly a reference to the statement in support of the application which is verified by the affidavit, but which was clearly regarded by the judge as synonymous with the affidavit, for he instanced several matters forming the subject of successive paragraphs in the statement to which he held Mrs Muge could not possibly have deponed and which thereby contravened the requirements of Order XVIII of the Civil Procedure Rules. Secondly, Mr *Nowrojee* said, if there were defects in the affidavit (or statement) as the learned Judge held, must the whole of it be rejected? During the course of the argument we indicated to Mr *Nowrojee* that we were prepared to accept for the purpose of this appeal that the judgment of Harris J in *Mohamed v Kibera Wananchi Trading Company Limited* High Court civil case number 1580 of 1968, that merely because some paragraphs were objectionable it did not follow that the whole of the affidavit should be rejected. In other words, the bad or irrelevant paragraphs were severable from the good or relevant paragraphs and the Court was entitled to act on the latter.

The third serious question was as to whether Mrs Muge had the necessary *locus standi* to apply for an order of prohibition, upon which the learned Judge had doubts, for he stated that she had no legal right to intervene in the criminal proceedings. Again, for the purposes of this application, we are prepared to accept that Mrs Muge, as the widow of the person whose death is the subject of the criminal case in Eldoret, would *prima facie* be a person who may apply for an order of prohibition. That does not in our judgment, amount to an intervention in the criminal proceedings. Whether she succeeded, or can succeed, in the application is, of course, another matter.

The next serious question advanced was as to whether the Principal Magistrate was entitled to accelerate the hearing date of the criminal case from 10 September to 3 September 1990. In this respect we found Mr *Nowrojee*'s submission rather difficult to follow. Neither do we think that the High Court decision cited *Ruhi v Republic* criminal application number 428 of 1985, is authority for the proposition that section 205(1) of the Criminal Procedure Code permits the postponement or adjournment of a hearing to a latter date but does not permit the hearing to be brought forward. If it purports to be an authority for that proposition then it is in our opinion bad law, for the essential criterion in every case must be whether the accused and his advocate had a fair opportunity of being present and of putting forward his defence to the matter with which he is charged.

Apart from this there was really no material on the record enabling us to say whether and in what circumstances the criminal case in Eldoret was brought forward. Indeed the contrary was shown by the letter at 47 of the record of this appeal which emanated from the applicant's junior counsel, which was written,

we are informed, on 1 September 1990, and which clearly stated that "the case", meaning the case which is the object of the prohibition sought, "has been listed for hearing on 3 September 1990". Since Mr *Nowrojee* freely accepted that in any event nobody had objected to the advancement of the date, if advancement there was, we cannot see what possible prejudice there can have to the applicant, who was not in any event a party to the criminal proceedings. On the contrary, it would appear to be in the applicant's, and certainly in the public interest, that if there was a *prima facei* case showing an offence committed by another person for causing the death of her husband, that that person should be tried for that offence by due process of the law.

This brings us to Mr *Nowrojee*'s fifth serious question, which may be conveniently taken with the sixth, namely would it be a fair process to hold an inquest after the criminal case is determined, and if it is not fair, can the criminal case lawfully continue? Again the High Court *Githunguri* decision was cited to us in connection with this aspect of the submissions. In our view there was all the difference between the *Githunguri* High Court case and the instant one. There, Githunguri had been positively told he would not be prosecuted and a subsequent Attorney-General had reaffirmed that undertaking in the National Assembly. No doubt Githunguri, however unmeritorious he may have been, had relied on that assurance and had acted on it, or lived that portion of his life in the belief that he would not be prosecuted. In those circumstances, irrespective of whether any members of this Court would have taken the same view, the High Court (by whose decision we are not, of course, bound) was entitled to adopt the view that it was plainly unfair for Githunguri to be prosecuted some years later. The circumstances are not at all parallel to the instant case. The press release of 18 August may have led the public, including Mrs Muge, to believe that an inquest would be held. Clearly, she has an interest to ascertain what caused the bishop's death. But how does the prosecution of a criminal charge impinge on that? If the man is found guilty by due process of law, then subject to any appeal, she at least has the satisfaction (if that is the right word) of knowing that the individual responsible for his death has been brought to justice. If he is acquitted then other avenues of inquiry may be found appropriate, possibly depending on the findings of fact made. But in either case it cannot be said that there has been any prejudice to Mrs Muge, other than the distress cause by the fact of her husband's sudden death. In the *Githunguri* case there was direct prejudice by the criminal charged being revived when he had been led to believe that he was a free man.

As to the seventh serious question, as Mr *Nowrojee* said, the argument before Dugdale J is not included in the record of the appeal. During Mr Etyang's initial observations were indicated that we would not take this omission against the applicant, nor the fact that a certified typed copy of the ruling was not available, because it was clearly necessary for his application to be argued, and was for this purpose certified as urgent by a single judge of this Court. But by the same token, we cannot import into the appeal material which is not there. If Mr *Chunga* did appear on the *ex parte* application then we cannot detect in the ruling of Dugdale J any indication that his presence or submissions (if submissions there were) in any way affected the mind of the judge in arriving at his decision.

Before coming to the eighth question, which in our judgment is the crucial issue to be decided on the application, we propose to summarise our answers to

the first seven questions. The first and second (as to the applicant's statement and affidavit) do not in our judgment amount to serious questions because from Mr *Nowrojee*'s leading authority, namely the Court of Appeal Githunguri case, the correctness or otherwise of the judge's discretion does not fall to be decided at this stage. As to *locus standi*, we think the applicant did have the necessary standing to apply for prohibition but, as we have said, the result of the application, as to whether she is successful, is another issue. In the event she was not successful in the High Court.

As to the fourth question, as we have said, we are by no means satisfied that there was an advancement of the date, but if there was, no prejudice to the accused person in those proceedings, still less to Mrs Muge, has in our view been established. Turning to the fifth and sixth questions, again, as we have said, no unfairness to Mrs Muge in the course taken has in our view been shown either in the arguments addressed to us or in the material contained in the record. And, as we have just indicated, nothing in this application tells us whether Mr *Chunga* was or was not present during the *ex parte* application for leave before Dugdale J.

This brings us to that which in our opinion is the real issue in this case, and which, although argued as the last or eighth serious questions by Mr *Nowrojee*, was acknowledged by him to be crucial to our decision, inasmuch as he conceded that if the press release dated 18 August 1990, was not a lawful or valid order, or was not made under any powers contained in the law, and if this Court should so hold, then the present application is bound to fail.

We invited both Mr *Etyang*' and Mr *Nowrojee* to indicate to us the constitutional or statutory power under which the direction was given. Neither was able to do so. Indeed Mr *Etyang*' conceded that there was no constitutional provision covering the direction of 18 August either in section 26 or elsewhere. On the contrary, paragraph (*a*) of subsection (3) of section 26 empowers the Attorney-General to do exactly that which he has done, namely to institute criminal proceedings against Mr Omukoba. The nearest Mr Etyang' was able to get to statutory sanction for the directive was section 388(1) of the Criminal Procedure Code. But that subsection does not provide in any sense for an inquest (as an inquiry into a sudden death is called) to be presided over by a judge. It says:

> "The Attorney-General may at any time direct a magistrate to hold an inquiry, in accordance with section 387, into the cause of a particular death to which the provisions of that section apply."

This subsection refers to the preceding sections, all of which relate to inquiries as to sudden deaths. In certain cases an inquiry under this part of the Criminal Procedure Code (always referred to in this country as an inquest) is mandatory as where the deceased person was in custody at the time of his death.

Throughout all these sections, however, the judicial officer specified to hold the inquiry is always a magistrate. The term "magistrate" is defined in the Interpretation and General Provisions Act (Chapter 2), as having the meaning assigned to it in the Magistrate's Courts Act (Chapter 10). In Chapter 10 it is stated as follows:

> "Magistrate" means a chief magistrate, principal magistrate, senior resident magistrate a resident magistrate or a district magistrate; and each of those terms applies to a person respectively appointed by the Judicial Service Commission under section 69 of the Constitution to, or to act in, the particular office."

Whereas “judge” means a judge of the High Court or any person acting as such.

Even if the provisions of section 69 of the Constitution are consulted, there is no reference in that context to the office of judge, and we are therefore bound to say that in our opinion it is not possible, under the existing law, to appoint a judge to conduct an inquest.

For these reasons, not without some embarrassment, we reach the conclusion that the directive of 18 August was not sanctioned by any constitutional or statutory provision in the laws of Kenya. This is not to say that the directive was illegal or contrary to law. There is a considerable difference between something which is against the law and something which has no basis in law.

After an exhaustive review of the relevant parts of the Constitution, of the Criminal Procedure Code and of the submissions made to us in this application, in our judgment the directive of 18 August has no basis in law. It is not possible, again in our judgment, to separate or sever the paragraphs from one another as Mr Etyang’s urged us to do. In our view the document is to be read as a whole, because the essence of a judicial proceeding is the nature of the officer who conducts it without him there can be no judicial proceeding. And in the instant case the presiding officer is stated to be a judge to be appointed by the Chief Justice. As both counsel conceded, the Chief Justice cannot be invested by that press release with powers which do not exist.

Accordingly, as Mr *Nowrojee* accepted throughout, if the purported order of 18 August is not a valid order, as we are compelled to hold, that is an end of the present application.

For these reasons we dismiss the application.

For the applicant:
P Nowrojee and *C Ngugi*

For the State:
Mr Chunga

Muhindi v Mugendo
[1990–1994] 1 EA 406 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	29 March 1990
Case Number:	[1989] 2 KAR; 170/89
Before:	Hancox CJ, Masime and Kwach JJA
Sourced by:	LawAfrica

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[1] Arbitration – Land matter – Whether defects in arbitration matters of procedure or substance – Failure to allow one elder to sit and another to participate in the award – Failure of elders to sign award – Award signed by District Officer only – Whether court has power to enlarge time for objection to the award – Arbitration Act (Chapter 49) – Order XLV, rules 10, 14, 15 and 16, Order XLIX, rule 5 – Civil Procedure Rules.

Editor's Summary

By a document dated 25 July 1974, the first defendant agreed to sell a piece of land at Maragoli consisting of 0.16 of a hectare to the plaintiff for KShs 1 900,

which was paid during 1974. Land control consent was not given until September 1977, and in her amended defence the first defendant pleaded, *inter alia*, that the transaction was void under the Land Control Act, and tendered the return of the KShs 1 900. There were cross-allegations of the fraudulent transfer of the land and of a mistake in its survey for demarcation purposes. As the allegations of fraudulent transfer concerned the second defendant, Schofield J gave leave to join him in the action in 1984, and refused a temporary injunction sought by the plaintiff, at the same time ordering that matters be kept in status quo until the hearing. He also refused to accede to the preliminary point raised by the defendants in relation to the delayed land control board consent, and ordered the case to proceed to hearing.

When the case came on for hearing in 1986, Omolo J made a consent order referring the dispute to arbitration by the District Officer, Vihiga, as chairman, and two elders to be nominated by each side. In 1987 the arbitration took place under the chairmanship of the District Officer, but the second defendant alleged in an application to set aside the award dated 23 June 1987 that one of his elders was not allowed to sit, and that another, whom he had also nominated, was not allowed to participate in the arbitration. Furthermore, the award, which had been filed on 26 February 1987, was only signed by the District Officer and not by any of the elders.

It was contended by the plaintiff that the objection was not made within the 30-day period of the filing of the award required by Order XLV, rule 16, but Omolo held he had power to extend the time allowed and treated the objection as having been filed within time. He subsequently dismissed the objections to the award raised by the second defendant, holding that they were procedural rather than substantive and that no failure of justice had occurred. He also said that had he heard the case he would have held that the contravention of the Land Control Act rendered the sale agreement void for all purposes, but that by their consensual reference to arbitration the parties had precluded him from deciding the issue, following the decision in *Wamukota v Donali* civil application number 6 of 1986.

The defendants appealed, and though the land control issue was raised in the memorandum of appeal, it was not substantially argued in the appeal.

Held – The judge had jurisdiction under the general provisions regarding time in Order XLIX to extend the period for objecting to an arbitration award under the concluding rules in Order XLV.

Following *Nyang'au v Nyakwara* [1985] 1 KAR 805, if it amounted to misconduct to refuse a party to call a witness, this was all the more so if the chairman refused to allow one nominated elder to sit and another to participate in the arbitration.

A strict conformity with court rules and procedure was not essential in an arbitration provided there was some observance of the normal rules of justice and fair play, and if one side's elder is excluded then justice, even if done, will not be seen to have been done.

The requirement in Order XLV, rule 10 is that all persons who made the award should sign it, and the failure to do so in the instant case was not a mere technical defect and operated to invalidate the award.

Per Hancox CJ – It might be desirable to have some amendment which would save a decision from being completely invalidated by the refusal or failure to sign it by one of the members of the panel.

Per Masime JA – The judge erred in relying on the dissenting judgment of Apaloo JA in *Ndungu Wachira v Ndanjeru* [1987] 1 KAR 1062, in holding that the elder's failure to sign the award was a mere technical or procedural irregularity.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Keny v Kiptanui Arap Chirchir civil application number 55 of 1987

Kibutha v Kibutha [1984] 1 KAR 605

Nyang'au v Nyakwari [1985] 1 KAR 805 – **F**

Rakiba v Makiba High Court civil case number 116 of 1976

Wachira v Ndanjeru [1987] 1 KAR 1062

Judgment

Hancox CJ: Although the members of the Court are no strangers to cases coming before them in which there have been lengthy delays, particularly in land and accident cases, the instant appeal must surely be a contender as one of the longest case histories on record.

The original plaint filed on 12 May 1978 merely recited the transaction between the original vendor (Agnes Muhindi) who is now the first appellant, and the original purchaser (Joash Mugendo) who is now the respondent, and that that transaction had received land control board consent on 5 September 1977. The letter of consent is, though partially illegible, included in the record of appeal at 84. That consent makes it clear that it was in respect of a portion only of the parcel of land which was then known as Maragoli/Viyazo/976, and which, as stated in the subsequent pleadings, amounts to 0.16 of a hectare.

In the original sale document dated 25 July 1974, which formed the basis of the transaction, the delineation of the portion then to be sold is stated in fair detail. It says that the length of the portion of land sold is 45 (one) yard strides up to the cypress trees, and the width is 70 (one) yard strides up to a markhamia plant. The agreed price was KShs 1 900 of which KShs 400 was paid then and there, and it does not seem to be a matter of dispute that the balance was paid before the end of 1974. It is also not a matter of dispute that the respondent began to construct business premises on that which he contended was his portion, but to which the first appellant objected – maintaining that the respondent had encroached thereby on to the portion of land which she had retained.

The opposing contentions on the pleadings as amended, were, by the plaintiff, that the original land 976 had been subsequently subdivided into Maragoli/Viyalo/1426 and 1427, that the latter was further subdivided into 1456 and 1457, of which 1427 and 1457 constituted the portion originally sold to the plaintiff, and that those two subdivided plots were fraudulently transferred by the first defendant to the second defendant. He alleged that the second defendant had unlawfully enclosed those two plots with a barbed wire

fence, thus depriving the plaintiff of access to and the benefit of the building which he had erected thereon. He accordingly sought appropriate declarations, a mandatory injunction to the first defendant to execute the sale and prohibitory injunction to the second defendant to remove the illegal fence.

The contentions of the first defendant included a denial of most of the plaintiff's allegations, an averment that the purported consent of the land control board, and consequently the sale agreement, was void, and tendered the release of the KShs 1 900 which the plaintiff had paid. She further denied that any fraudulent or wrong transfer of any of the land to the second defendant took place, stated that there was a mistake in the survey during the land adjudication process comprising 0.08 of a hectare belonging to the second defendant, and that the consent of the board on 5 September 1977 related to her own subdivision, with the result that the second defendant obtained registration of the portion of land wrongly surveyed with the original plot 976. Subsequently she became absolute owner of 1426, while she subdivided and transferred 1457 to the second defendant for a consideration of KShs 2 000 in 1984. She claimed that the plaintiff has forcibly taken possession of the portion which had been transferred to the second defendant, and in consequence the land registrar had removed the caution lodged by the plaintiff in respect of that particular piece of land.

The second defendant denied any knowledge of the original transaction between the plaintiff and his co-defendant, reinforced the first defendant's contention that a mistake had occurred on adjudication and sub-division of his previously owned land at plot 398, averred that the plaintiff had taken advantage of this mistake, and confirmed that 1457 had been transferred to him by the first defendant for valuable consideration. The landlord had subsequently consented to that transfer in December 1983.

Against that tangled background the matter came up before successive judges in the High Court, and it was on one of these appearances that Schofied J gave leave to join the second defendant, in view of the allegations which concerned him, hence the filing of the second defendant's defence on 2 May 1984, the amendment of the first defendant's defence (so as to take account of the allegations concerning the dealings between them), and the plaintiff's very lengthy rely in June of that year. A cross order was made by Schofield J on 28 May 1984 keeping matters in status quo between the parties but the matters dragged on until 10 December 1986, when Omolo J made the order of reference to arbitration, and it is from his ultimate dismissal of the second defendant's objection to the award made after that reference that the appeal is brought.

The award was directed to be delivered within 60 days of service on the District Officer (who, as is usual, was the chairman), but the matter did not come before court again until 15 July 1987, when it was postponed until 5 December 1988, and again to 19 January 1989 when the application to enlarge time for the objection to the award was finally heard. Omolo J allowed that application and treated the application to set aside the award, which was filed on 23 June 1987, as having been itself filed within time.

This is the first time in my experience that the time for an objection to an arbitration award has been enlarged, but it would seem that the judge had jurisdiction to do so under the general power contained in Order XLIX, rule 5 of the Civil Procedure Rules. He then proceeded (by this time it was 16 March 1989) to hear the objection and, as I have said, to dismiss it.

It cannot be gainsaid that there were serious defects in the arbitration proceedings and I note that there was an attempt to set them aside by consent in the letter from *Azangalala* and company on 31 May 1988. The elders were stated to be Mr Javan Opaki, Mr Reuben Kagai and Mr Ezekiel Muhindi. Four other persons were in attendance and the chair was taken by Mr Were, the District Officer. So there is the first defect, three elders instead of four as ordered by the judge. This corroborates paragraph 11 of the second defendant's affidavit dated 9 June 1987 and that of David Ng'alwa Dali of the same dated. In paragraph 12 of the same affidavit he alleges that the named elder who was present Reuben Kagai, was not allowed to participate, and this is also borne out by Reuben Kagai's affidavit of the same date.

The third difficulty which emerges is that whereas Order XLV, rule 10 of the Civil Procedure Rules requires, that the persons who make it shall sign it, in the instant case only the chairman signed the award. The learned Judge, apparently relying on the dissenting judgment of Apaloo JA in *Ndegwa Wachira v Ricarda Wanjiku Ndanjeru* [1987] 1 KAR 1062 (which was presumably a case arising under the Magistrates' Jurisdiction (Amendment) Act of 1981) thought that the failure to sign an award was a procedural defect which did not occasion any failure of justice. Apaloo JA had said in that case that nobody has a vested right in procedure and that the Court must strive to do substantial justice to the parties, undeterred by technical rules of procedure.

It might be desirable to have some amendment to the Act and to the Rules which would save a decision from being completely invalidated by the refusal or failure to sign it by one of the members of the panel, but in the instant case not one, or two, but all of the members failed to sign it. It could also be argued contra that the signature of the members of the panel gives the award the authenticity it should have, being, as it is, a statutorily delegated decision of the Court.

At all events, I am far from being satisfied that the elders' failure to sign is a mere procedural defect in this case, but even if it were, there are the other fundamental errors in principle regarding the failure to allow one elder to sit, and another to participate. As Masime JA had said in his judgment, which I have had the advantage of reading in draft, this Court has held in *Bagwasi Nyangau v Omosa Nyangwara* [1985] 1 KAR 805, that it is misconduct by the arbitrator to refuse to permit a party to call a material witness, and how much more is this so if one of the panel is not permitted to sit or to take part? As we said in *Kamau Kibuthia v Macharia Kibuthia* [1984] 1 KAR 605, a strict technical conformity with the rules and procedure followed in the Court is not essential, for if that were so the reference to arbitration would be superfluous, but there must be some observance of the normal rules of justice and fair play, and if one side's arbitrator or elder is excluded then justice, even if done, will not be seen to have been done.

In these circumstances, even though the allegations in question were made in affidavits, and therefore not cross-examined, they should not, in my view, have been rejected but at least considered and, very probably, the deponents called so that each could be cross-examined thereon. It might well be that an arbitration under an order of or reference by the Court would need stricter conformity with judicial principles and rules than would an arbitration under an agreement regulated by the Arbitration Act (Chapter 49) (*Mwambura Makiba v Ruga Makiba* High Court civil case number 116 of 1976), but at all events I am of the opinion in this case that there was insufficient conformity with the principles of justice for the award to be upheld.

Of course, everyone regrets and deprecates the necessity to reopen a matter which is thought to be settled, and to put the parties through the expense, and stress and strain, of having the matter reheard, particularly in this case where the dispute has stretched over 16 years since the original agreement was made. However, these considerations, important though they are, cannot take precedence over the principles I have earlier endeavoured to state.

For these reasons I would allow the appeal, set aside the judgment of Omolo J dated 12 April 1989, and, though there is no formal order on record entering judgment in terms of the award, I would allow the objections to the award as stated in the affidavits in support of the chamber summons dated 9 June and filed on 23 June 1987. I would, accordingly remit the matter to the High Court for hearing and determination according to law.

As Masime and Kwach JJA agree it is so ordered.

Masime JA: By an amended plaint filed in Court on 17 April 1984 Joash Mugendo (hereinafter referred to as the plaintiff/respondent) claimed some plot of land from Agnes Muhindi and Jackson Indumwa (hereinafter called the defendants/appellants. The defendants filed separate written statements of defence and the plaintiff filed replies thereto. After the close of the pleadings the High Court at Kisumu at the instance of the parties made an order as follows on 10 December 1986:

> "Order by consent: matters in dispute herein referred to the arbitration of the district officer Vihiga Division. The said elders two nominated by the plaintiff and two by the two defendants jointly the DO to be the chairman. The said arbitrators to file their award within 60 days from the date of the service of the order upon the DO. Costs to abide the award."

On 26 February 1987 the "Award" was filed in Court and the parties were notified thereof. In due course an application was filed by the defendants to set aside that "award" on various grounds including complaints that:

> "(*a*) That the arbitration panel was not constituted in accordance with the Court order;
>
> (*b*) The elders nominated by the defendants were not allowed by the chairman to sit in the arbitration;
>
> (*c*) The award was not signed by the elders;
>
> (*d*) The panel failed to have regard to the provisions of Land Control Act.

After hearing the application the learned Judge found these complaints to be well founded but relying on the dissenting judgment of Apaloo JA (as he then was) in *Wachira v Ndanjeru* civil appeal [1987] 1 KAR 1062 held that no failure of justice was occasioned thereby to the defendants. He put it as follows:

> "I am satisfied that failure to sign the award and that kind of thing is really not a failure which can be said to have occasioned to this appellant any failure of justice unless he was able to show that in fact there were no elders sitting with the district officer which would in effect make the award a forgery. I am satisfied that the elders did sit with the district officer and that they did decided the matter reasonably and there is no reason for me to either set aside the award or to remit it to them as sought in the chamber summons. That being my view in the matter, I order the applicants' application to be dismissed with costs to the respondent."

In this appeal against that ruling the following complaints have been made:

> "1. That the learned Judge erred in law in holding that a panel of arbitrators had properly been constituted when it was clear on the face of the record that the panel consisted of members to whom on referral had been made.

2. That the learned Judge erred in law in holding that the panel of elders were entitled to ignore provision of the Land Control Act in making their decision.
3. That the learned Judge erred in law in failing to hold that as no valid consent to the transfer in favour of the plaintiff/respondent had been obtained the orders proposed by the panel of elders were incapable of taking effect.
4. That the learned Judge erred in law in not holding that the award as filed was not in accordance with the provisions of Order XLV of the Civil Procedure Code.
5. That the learned Judge, erred in law in holding that the affidavit sworn by one Reuben Kagai in support of the appellants' application to set aside the award was false without taking evidence.
6. That the learned Judge erred in law in relying on a dissenting judgment and in doing so offended against the use of precedent."

Taking the first and fifth grounds of appeal first, I would say, with all due respect to the learned trial Judge, that the constitution of the arbitration panel is not a mere matter of procedural technicality but a fundamental matter going to the jurisdiction of the arbitrators. In *Samuel Kipketer Keny v Kiptanui arap Chirchir* civil appeal number 55 of 1987 this Court said this:

> "The reference was given on certain terms by the Court order under Order XLV of the Civil Procedure Rules. If major changes had to be made it would have been right to return to the Court and seek the Court's blessing. It is quite unlikely that any court would agree that the (assessors) should be reduced to two all on one side. The chairman should not have entered on this arbitration at all.
>
> This is an obvious case of irregularity in carrying out the term of the reference, which is called misconduct in rule 15, Order XLV of the Civil Procedure Rules. The learned Judge ought to have set aside the award and arbitration and suspended it."

It was the defendant's complaint that one of the elders nominated by him was prevented from sitting and the other though he sat was prevented from participating in the arbitration. As regards this complaint the learned trial Judge rejected the unchallenged and only evidence on the matter, the affidavit of Reuben Kagai. I have considered that evidence and find it was open to the learned Judge to find that the elder was prevented from participating in the arbitration.

It is well settled that it is misconduct for an arbitrator to prevent a party from calling evidence material to issues in dispute which the party wishes to call (see *Nyangau v Nyakwara* [1984] 1 KAR 805 *a fortiori* it is misconduct to prevent an elder nominated by a party from taking part in the arbitration.

As regards the fourth ground of appeal, the learned trial Judge was fully aware that Order XLV, rule 10 requires all persons who make an award to sign it but bought that failure to do so is not fatal to the award. The provisions of Order XLV, rule 10 are mandatory and failure to sign the award by all persons who make it fatal and consequently in this case no valid award was made. In view of what I have said in respect of the three grounds of appeal which I have considered above, I find it unnecessary to consider grounds two, three and six save to say that the learned trial Judge erred in relying on dissenting judgment of this Court in arriving at his decision.

For the above reasons the purported award was in my view clearly invalid and should have been declared to be so and been superseded. I would accordingly allow grounds one, four and five of the memorandum of appeal. I would concur in the orders proposed by the Chief Justice.

Kwach JA concurred in the judgments of Hancox CJ and Masime JA.

For the appellants:
F Azangalala

For the respondent:
RKG Onywera

Murungi v Attorney-General
[1990–1994] 1 EA 413 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	14 July 1993
Case Number:	293/93
Before:	Bosire and Mwera JJ
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[1] Judicial review – Certorari – *Jurisdiction – Jurisdiction of court martial in respect of a member of the '82 Air Force – Court martial ruled* in limine *to assert jurisdiction – Whether the Court had jurisdiction to make the ruling – Sections 3 and 138(2) – Armed Forced Act (Chapter 199).*

[2] Judicial review – Procedure – Form of application for certiorari – *Jurisdiction of court martial – Proper procedure to challenge the assertion of jurisdiction – Proper remedy to stop court martial proceedings.*

Editor's Summary

The applicant was a captain in the '82 Air Force challenging the jurisdiction of a court martial to try him. He argued that the power of court martial applied only to the Kenya Air Force, whose life was terminated after the 1982 coup attempt and which was replaced by the '82 Air Force. The applicant sought an order of *certiorari* to quash the decision of the court martial which considered the issue of jurisdiction *in limine* and upheld its jurisdiction.

Held – A statement giving details of the name and description of the applicant, the relief sought and the grounds on which it is sought must accompany an application for judicial review. However, the failure to file the statement herein is not per se fatal to the application.

Certiorari deals with decisions already made and prohibition with continuing proceedings. Under the Armed Forces Rules of Procedure, a court martial is obliged to deal with the issue of jurisdiction *in limine*. It has the jurisdiction to decide one way or the other. The decision was reached after hearing both sides. *Certiorari* therefore would not lie, since the decision on jurisdiction was within the Court's jurisdiction. *R v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818 considered.

Further on considering the substantive issue, the Court would conclude that the court martial has jurisdiction to try the applicant. The '82 Air Force was part of the Armed Forces of Kenya, to which

the Armed Forces Act would apply. The fact that the reorganisation of the Kenya Air Force and its change of name was not *gazetted* would not make it ineffectual. The President as Commander in Chief of the Armed Forces has power to replace or vary the name of any unit of the Armed Forces. The failure to *gazette* the name change was a

trivial failure in a legal requirement and to vitiate what had been done would be out of proportion to the lapse. *Montreal Street Rly Co v Normandin* [1971] AC 170 adopted.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Farmers Bus v Transport Licensing [1959] EA 779

Kadamas and another v Municipality of Kisumu [1984] LLR 221 (CAK)

Mohamed Ahmed v Republic [1957] EA 523

Municipality of Kisumu v Madowo [1986] LLR 3301 (CAK)

United Kingdom

Adler v George [1964] QB 7

Montreal Street Rly Company v Normandin [191] AC 170 – **A**

Nothmay v Barnet London Borough Council [1978] WLR 220

Smith and another v Hughes and Aur [1960] QBD 859

R v East Berkshire Health Authority ex parte Walsh [1984] 3 WLR 818 – **C**

Ruling

Bosire and Mwera JJ: Before us is an application for judicial review. The application was brought by Geoffrey Kujoga Murungi, a captain in the '82 Airforce. The application was provoked by a ruling by a court martial sitting at Moi Air Base, Eastleigh, and Nairobi, given on 17 March 1993. In the ruling the court martial held that it had jurisdiction to try the applicant for two offences, viz, theft of public property contrary to section 38(*a*) of the Armed Forces Act (Chapter 199) Law of Kenya, and being absent from duty without official leave contrary to section 32(*a*) of the same Act.

The application which to our mind is replete with errors, is expressed to be brought under Order LIII, rule 3 of the Civil Procedure Rules, section 3A of the Civil Procedure Act, and the Armed Forces Act (Chapter 199) Laws of Kenya.

The first error is with regard to the manner in which the application is intituled. The Court of Appeal for East Africa in the case of *Mohamed Ahmed v Republic* [1957] EA 523, set out the manner of intituling an application of this nature. The decision was adopted in the later case of *Farmers Bus v Transport Licensing* [1959] EA 779 and also in a recent decision of our Court of Appeal in the case of *Municipality of Kisumu v Madowo* Civil Appeal No 140 of 1986 (7) [1986] LLR 3301 (CAK). Legal Notice number 164 of 1992 did not purport to change the form an application for judicial review should take, consequently an application for judicial review should, to our minds, be intituled as follows:

> In the High Court of Kenya
>
> In the Matter of an application for judicial review for an order of

And

In the Matter of the Armed Forces Act

And

In the Matter of the Ruling of the Court Martial dated 17 May 1993

Applicant …

Respondent …

Notice of motion

The second defect, to our minds, is the failure by the applicant to file a statement setting out the name and description of the applicant, the relief sought, and the grounds on which it is sought. We are aware that Akiwumi J (as he then was) did rule herein that such a statement is no longer essential. However, we are not bound by his pronouncement on that score. His views were, as he put it, tentative. We are fully seized of this matter and therefore obliged to rule the issue.

In promulgating legal notice number 164 of 1992, the rules committee was exercising the powers donated to it by section 9 of the Law Reform Act (Chapter 26) Laws of Kenya. The intention of the committee as it appears from a careful reading of the legal notice, is that it intended to do away with the requirements of leave to apply for judicial review and thereby shorten the time necessary to obtain a remedy under Order LIII of the Civil Procedure Rules. The committee did not purport to do away with the requirement of filing a statement. That would perhaps explain why rule 4 of Order LIII was not amended. We note that the amended rule 3(1) does not state what should accompany or support an application under order. Consequently it is our view, and we so rule, that a statement giving details of the name and description of the applicant, the relief sought, and the grounds on which it is sought must accompany an application for judicial review. However, the failure by the applicant to file it herein, *per se*, is not fatal to the application.

The third and most fundamental of the defects or errors in the application is the fact that an order of *certiorari* and not prohibition is sought. The applicant seems to us to be seeking an order restraining the court martial concerned from continuing with his trial for the two offences we earlier alluded to. To achieve that a restraining order would be essential. That is not the order the applicant seeks in this application. Instead he has applied for an order of *certiorari*.

Certiorari, deals with decisions already made. So that when issued an order of *certiorari* brings up into this Court a decision of an inferior court, tribunal or of a public authority to be quashed. Such an order can only be issued where the Court considers that the decision under attack was reached without or in excess of jurisdiction or in breach of rules of natural justice, or contrary to the law. Thus an order of *certiorari* is not a restraining order.

To our minds, prohibition was the proper remedy the applicant should have applied for. The Court of Appeal in the case of *Kadamas and another v Municipality of Kisumu* 1982-88 KAR 838; [1984] LLR 221 (CAK), enunciated what order would be appropriate in circumstances as obtained here. In that case the applicants were employees of the respondent counsel. They were dismissed by it. They reported a dispute to the Minister for Labour under the Trade Disputes Act (Chapter 234) Laws of Kenya. After sometime the respondent council set in motion a course of action to revive the earlier dismissal which would in effect be contrary to the decision earlier on reached which led to their reinstatement.

The applicants would only be dismissed for cause shown and after a hearing. Their application to the High Court for prohibition was rejected. On appeal to the Court of Appeal, the Court, held relying on the decision in *Republic v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818, that prohibition lies against a local authority to correct an excess or absence of jurisdiction or to prevent a breach of the rules of natural justice.

In the light of the foregoing we are of the view that *certiorari* was inappropriate. The proper order which the applicant appears to have had in mind and should have but did not seek is prohibition. We say so advisedly. Even if we would be minded to quash the ruling of the court martial as prayed, that would not bar it from continuing with the trial. They would not have been prohibited from doing so. This application would fail on that ground alone.

Moreover, the ruling under attack cannot be said to be the sort of decision respecting which *certiorari* may issue. Under the Armed Forces Rules of Procedure, a court martial is obliged to deal with the issue of jurisdiction, *in limine*, before commencing the trial of any person under the Armed Forces Act. It has the jurisdiction to decide one way or the other. In our case it had the jurisdiction to try the applicant. The decision was reached after hearing both sides to the matter. There is no evidence that the decision under attack was arrived at in breach of rules of natural justice or without or in excess of jurisdiction. To our minds therefore *certiorari* does not lie.

In case we are wrong, we propose to deal with the decisive question raised in this matter, namely, whether or not the court martial concerned has jurisdiction to try the applicant for the two offences we earlier alluded to. First a resume of the essential facts.

The applicant has been described as a captain in the ‘82 Air Force. On 1 March 1993, by a convening order of the same date Major General DK Wachira, as Commander of ‘82 Air Force, constituted a court martial to sit with effect from 4 March 1993, for the purpose of trying the applicant for the two offences we mentioned earlier. The court martial convened but an objection was raised on the same grounds as those upon which this application is brought. Either because of that or some other reasons the court martial was dissolved by the convening officer, on 9 March 1993.

Upon the dissolution of the court martial, as above, the applicant was discharged. He was, however, soon thereafter rearrested for the same offences. On 15 March 1993, he appeared before another court martial comprising the same members and Judge Advocate, but which had been convened by the Chief of the General Staff, MH Mohamed, by a convening order dated 9 March 1993. It was detailed to commence its sittings with effect from 11 March 1993, but for some reason not apparent to us it delayed its sittings until the 15 March 1993.

The applicant was represented by two advocates and an officer of the rank of Major presumably from a unit of the Armed Forces of Kenya. An objection to jurisdiction was raised and so the charges were not put to the applicant. Evidence on the issue was adduced and submissions were not forwarded. The ruling under attack was then given. It is that ruling which provoked the present application.

We must now grapple with the issue we framed earlier, namely, whether the court martial concerned has jurisdiction to try the applicant. The gist of the applicant’s objection to be tried by the court martial is that the ‘82 Air Force is

not a unit which was established under the Armed Forces Act, and, therefore, the Act is irrelevant to officers enlisted into and working under its umbrella. The proceedings of the court martial clearly show that the applicant is challenging the legal existence of the '82 Air Force more particularly, whether it was established according to law.

The applicant was recruited into the '82 Air Force on 15 March 1983. He thumb printed a declaration on the Armed Forces Attestation paper and took the oath of allegiance therein reproduced. He was then given a number, viz 102748. Thereafter, according to the respondent, he was commissioned as a cadet on 10 May 1984, and was discharged from that rank, or so we think, on 30 June 1986, with a testimonial worded in the following terms:

> "Cadet Geoffrey Murungi Joined '82 Air Force from 24 April 1984 to 2 May 1985 a duration of one year and nine days; discharges from the other ranks service on being granted a commission in *The Armed Forces* [emphasis supplied]."

The applicant then thumb printed the same in the presence of an officer of the rank of Major. Meanwhile on 4 August 1988, the applicant accepted in writing the offer of commission by number 2 Board of Regular Commission "under the Terms and Conditions of Service for Officers of the Armed Forces." There is other evidence before us to show that the applicant has been serving as an officer in '82 Air Force, and that he enjoyed benefits normally given to officers in the Armed Forces of Kenya.

The applicant in response to that evidence has deponed in affidavits in support of the present application that the benefits were due to him as an officer in '82 Air Force but not as an officer of the Armed Forces of Kenya. Submissions by his advocate, Mr *Mussilli*, are, more or less to the same effect.

Mrs V *Onyango* who with Captains *Dindi* and *Owuor* appeared for the respondent submitted before us, *inter alia*, that the applicant having been enlisted and trained as an officer in, and accepted regular commission as an officer of the Armed Forces of Kenya and having held himself out as being an officer in the Armed Forces of Kenya, and been subject to the Armed Forces Act, thereto, cannot now say he is not an officer in the Armed Forces of Kenya and not subject to the Armed Forces Act. She in particular cited section 138(2) of the Armed Forces Act in support of her submission that the Court martial concerned has jurisdiction to try the applicant.

The Armed Forces Attestation Paper was executed by the applicant. To our minds, it is evidence that the applicant had been enlisted into the Armed Forces of Kenya. It matters not that it is not signed on the subhead "Final Approval." The applicant was admitted and served in the '82 Air Force on the strength of that document. It is a document which may only be issued pursuant to the provisions of the Armed Forces Act. The acceptance by the applicant of regular commission amongst other acts is clear evidence that the applicant's enlistment had been approved. Accordingly to our minds, and as was urged by Mrs *Onyango*, that document is evidence that the applicant is subject to the Provisions of the Armed Forces Act. Even assuming that the '82 Air Force is not in legal existence, on the strength of section 7 of the Armed Forces Act, the applicant can be held to be subject to the Armed Forces Act. The section reads in pertinent part, as follows:

> "7(1) The following persons are subject to this Act -
>
> (*c*) any person who is serving with the Armed Forces under an engagement whereby he agrees to be subject to this Act, and who is not otherwise subject to this Act."

In case we are wrong in the conclusion we have come to based principally on the Armed Forces Attestation paper and the conduct of the applicant, we still come to the same conclusion on a different ground.

We take judicial notice of the fact that a Kenya Air Force envisaged by section 3 of the Armed Forces Act was established in Kenya. We also take judicial notice of the fact that there is in existence in Kenya only one Air Force, which is the '82 Air Force. What we gather from submissions which counsel for the applicant made before the court martial is that the Kenya Air Force is the one which was transformed or changed to become the '82 Air Force and that that change was not effected according to law. To our minds, the change complained about is not a change of the force but a reorganisation of that unit and replacement of its name.

By reason of section 3(1) of the Armed Forces Act, Pparliament approved the creation of *inter alia*, an Air Force to be known as the Kenya Air Force. Determination of the strength of that and the other Forces established under that provision is the prerogative of the President who is the Commander-in-Chief of all the Armed Forces in Kenya. It is also his prerogative to organise the Armed Forces as he deems necessary and appropriate. He also has the power under section 3(4) of the Armed Forces Act, by notice in the *Gazette*, to assign names to units of the Armed Forces and to vary or replace any such names.

From his submission before the court martial, learned counsel for the applicant seems, to us, to be recognising the foregoing. His complaint appears to us to be that the reorganisation of the Kenya Air Force and the replacement of its name was not *gazetted* and was therefore ineffectual. Before us the learned counsel urged the view that we must look at the plain meaning of the relevant provisions and construe it on the basis of what it says without reading into it anything more.

Mrs V *Onyango* on the other hand was of the view that we should consider the intention of the legislature and give effect to it. In that regard she cited three English decisions notably *Adler v George* [1964] QB 7, *Smith and another v Hughes and Aur* [1960] QBD 859 at 861 and *Nothmay v Barnet London Borough Council* [1978] WLR 220. She also cited a passage from the *Mannual of Military Law* by the War Office [GT BR] 1929. She concluded her submission by saying that if mere change of name would change the establishment of the Force it would create an absurdity.

As we stated earlier the President as Commander-in-Chief of the Armed Forces, has the power to replace or vary the name of any unit of the Armed Forces. Any such change or variation of name is required to be published in the Kenya *Gazette*. The publication of the change appears to us to be essential merely for general information. A careful reading of section 3 of the Armed Forces Act, clearly reveals that the legislature intended the requirement of publication in the Kenya *Gazette* to be merely directly and not a mandatory requirement as would render the change ineffectual in the event of failure to publish the change. In the case of *Montreal Street Rly Company v Normandin* [191] AC 170 at 174, Sir Arthur Channel, said:

> "When the Provisions of a statute relate to the performance of a public duty and the case is such that to hold null and void acts done in respect of the duty would work serious inconvenience or injustice to persons who have no control over those entrusted with the duty, and at the same time would not promote the main object of the legislature, it has been the practice to hold such provision to be directory only, the neglect of them, though punishable, not affecting the validity of the acts done."

The learned Judge was in effect stating an important legal principle. There are certain breaches of an apparently absolute requirement which are so trivial that to hold that they vitiate what has been done would be out of proportion to the lapse. We note that there is no provision in the Armed Forces Act, stating what would happen if any change of name is not published. That being the case we are obliged to ensure that mere trivial lapses in formalities are not used to defeat what has been done with the sanction of Parliament. The question we pose is, what advantage would the applicant have enjoyed had publication of the change of name been effected, but which he stands to lose by the failure to publish? The lapse complained about is trivial and merely of a technical nature. Even if held to be mandatory, it does not materially impair a right or remedy, if any, which the applicant had or would have had if the requirement was satisfied. Moreover, the applicant has not stated in what manner he stands to be prejudiced by the lapse. It will be an affront to common sense and good conscience to construe a statutory provision as to allow any person to derive unfair advantage on the basis of technical lapses as the applicant would want us to do here.

Moreover, even if we were to hold that the change complained about was invalid it will not aid the applicant. The only significant effect it would have is to restore the old name, viz, Kenya Air Force. Whatever would have been done in the meantime would not thereby be invalidated. Consequently, we do not consider that it will serve the cause Parliament had intended when it vested in the President the power to change names of units of the Armed Forces, to hold that the change complained about is invalid. We also think that the lapse complained about can be remedied in absence of a time frame within which to publish the variation of replacement of name of any unit

For the foregoing reasons we decline to grant the order sought and dismiss the application with costs.

Order accordingly.

For the applicant:
Mr Mussilli

For the respondent:
Mrs V Onyango, Captain Dindi and *Captain Owuor*

Musoke v Departed Asian's Property Custodian Board and another
[1990–1994] 1 EA 419 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	30 June 1992
Case Number:	1/92
Before:	Manyindo DCJ, Platt and Seaton JJSC
Sourced by:	LawAfrica

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[1] Conversion – Date of measurement of damages – Special damages be specifically pleaded and proved.

[2] Costs – Award of costs to follow event.

[3] Damages – Meaning of special damages.

Editor's Summary

The appellant rented a building owned by an Asian in 1973. In 1975 the Asian left Uganda and the first respondent informed the appellant that it had taken over the responsibility for the building and that all rents would be paid to it in future.

However, in 1984, the first respondent's servants entered the premises, took away the appellant's property and locked the premises, when the appellant was away. The appellant then sued the respondent for conversion, lost and appealed.

Held – For a tort of conversion, the measure of damages is the value of the properties at the time of the conversion. *Caxton v Sunderland* [1934] AC 178; *Rosenthal v Alderton* [1946] 1 All ER 583; *Sacks v Miklos* [1948] 1 All ER 67; *Munro v Wilmott* [1948] 2 All ER 983; *Solloway v McLaulin* [1937] AC 27; *Henderson v Williams* [1894] 1 QB 521 followed.

Special damages are such a loss as the law will not presume to be the consequences of the defendant's act. It depends on the special circumstances of the case, must always be explicitly claimed in the pleadings and at the trial it must be proved by evidence both that the loss was incurred and that it was the direct result of the defendant's conduct.

The plaintiff did not explicitly claim that the value of the properties taken from his store in 1984 had increased in market value by 1991. Nor did he explicitly claim that he had lost the profits which he would reasonably have expected to gain as a consequence of the locking up of his property and the taking away of other property by the defendant's servants.

Under Order 27 of the Civil Procedure Act, costs are in the discretion of the Court. Costs should normally follow the event and, in the instant case, the second defendant was successful as he was found not to have been guilty of conversion. However, in this case, the plaintiff could not be blamed for having sued the second defendant. The plaintiff was placed in a dilemma not because of any actions of his own, rather the "confusion" was caused by the first defendant and he should therefore pay for it. (*Daniel Sempa Mbabale v WK Kiza and others* [1985] HCB 46 (UR) applied).

Appeal partly succeeds.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Daniel Semba Mbabale v WK Kiza and others [1985] HCB 46 (UR) – **AP**

United Kingdom

Caxton v Sunderland [1934] AC 178 192 – **F**

Henderson v Williams [1894] 1 QB 521 – **F**

Hillesden Securities Limited v Ryjak limited [1983] 2 All ER 184

Munro v Wilmott [1948] 2 All ER 983 – **F**

Rosenthal v Alderton [1946] 1 All ER 583 – **F**

Sacks v Miklos [1948] 1 All ER 67 – **F**

Solloway v Mclaulin [1937] AC 27 (PC) – **F**

Judgment

Seaton JSC: The appellant (original plaintiff) is a businessman. He sued the first and the second respondents in High Court civil suit number 1355 of 1984 in Kampala. (I shall hereinafter refer to the parties by their designations in the High Court suit).

In 1973 the plaintiffs rented a building on plot number 18 Egin Road in Masaka Town. It was owned by an Asian, Ratital B Sadrin, to whom the plaintiff paid UShs325 per month. Of the two rooms in the building occupied by the plaintiff, one was used as a shop. The other served as a sleeping quarter.

In 1974 or 1975 Mr Sadrin left Uganda. Thereafter the plaintiff received a letter from the first defendant. It stated that with effect from January 1975 the first defendant had taken over the responsibility of the building and all the rent should in future be paid to the first defendant.

From January 1975 onwards the plaintiff paid rent to the first defendant. In January 1984 the plaintiff went to Jinja. He left behind his shop and stock-in-trade in the care of his assistant Joseph Mukasa.

On 17 January 1984 on Isingoma, an official of the first defendant, accompanied by Police Constable Kiwanuka and some others entered the premises. They removed the plaintiff's properties from the shop and the sleeping quarters which they locked and then they departed. Some of the shop was re-allocated. Other properties were taken by officials of the first defendants.

On hearing of these events, the plaintiff returned from Jinja. He found his shop locked and was unable to gain entrance. On 7 February 1984 a letter on his behalf was written by advocates Mayanja and Matovu to the first respondent requesting enlightenment in regard to these matters. The plaintiff followed this up by visiting the first defendant's Executive, representative in Masaka and requesting explanations of the actions above described. He obtained no satisfactory reply.

On 17 July 1984, another letter was sent to the first defendant by the plaintiff's business and personal property that had been removed by the first defendant's servants/employees. It also gave notice of intention to sue for UShs 500 000 general damages and Ushs 5 876 700 special damages. Subsequently High Court civil suit number 1355 of 1984 was filed.

In the prayer of his plaint, the plaintiff asked for judgment severally or jointly against the defendants for:

> "(*a*) Ushs 11 487 000 (new currency) being the value of his properties unlawfully taken and converted;
>
> (*b*) Ushs 100 000 old currency per month from January 1984 to April 1987 and thereafter UShs 100 000 new currency per month till judgment being loss of earnings;
>
> (*c*) An order that he was the lawful tenant in the said shop;
>
> (*d*) Costs of the suit.

Prayer (*c*) of the plaint was denied. The learned Judge held that no tenancy agreement existed between the plaintiff and the first defendant; the plaintiff was occupying the premises temporarily without any certificate of allocation although he had a form indicating what rent he had to pay.

With regard to prayer (*a*), the learned Judge upheld that the plaintiff's claim as regards liability for conversion of his properties and awarded the sum of UShs56 866 (new currency) as special damages against the first defendant. Prayer (*b*) for loss of earnings was disallowed. Prayer (*d*) regarding costs was granted against the first defendant. The suit against the second defendant was dismissed with costs.

The plaintiff has not appealed against the decision regarding the absence of a tenancy agreement (prayer (*c*). His objection is with regard to the decision regarding the other prayers in the plaint. The memorandum of appeal sets out four grounds as follows:

> "1. The trial judge erred in law when he held that in assessing damages in the tort of conversion, the appellant is entitled to the value of the property as at the time of conversion rather than the current value of the property at the property at the time of judgment.
>
> 2. The damages awarded to the appellant for the value of his shop commodities were entirely inadequate being too small and the trial judge applied wrong principle.
>
> 3. The trial judge erred on facts when he held that the appellant had not proved loss of earnings.
>
> 4. The trial judge erred in holding that the second respondent was not responsible for the loss suffered by the appellant and the trial judge was wrong in awarding his costs as against the appellant".

I find it convenient in this judgment also to deal with the first two grounds together, as they were combined for argument by counsel for the appellant. Then I shall deal with ground four (ground three having been abandoned).

The ground one and two raises two questions. The major one is what date or time is to be used for the valuation of properties in order to assess the measure of damages for the sort of conversion? The minor one is what was the proved value of the properties that were converted in the instant case?

The learned trial Judge in his judgment stated that the date or time to be used for valuation of the properties is the date of conversion. He accepted as good law the case of *Caxton v Sunderland* [1934] AC 178 at 192 cited by counsel in the closing addresses. The judge's attention was not drawn to the other cases cited to us during the hearing of this appeal: *Rosenthal v Alderton* [1946] 1 All ER 583; *Sacks v Miklos* [1948] 1 All ER 67; *Munro v Wilmott* [1948] 2 All ER 983; *Solloway v Mclaulin* [1937] AC 27 (PC) and *Henderson v Williams* [1894] 1 QB 521, 532.

The learned Judge held in his judgment (at 75 of the record) that:

> "The measure of damages in conversion is the value of the subject matter at the time of conversion. In this case the damages the plaintiff is entitled to is the value of the property which were in the sleeping room and the shop…"

Counsel for the plaintiff submitted that the learned trial Judge failed to take into account the qualifications to the general principle outlined.

The authorities cited appear to agree on the general principle that the measure of damages is the value of the properties at the time of the conversion.

They do contain *provisos*, exceptions or qualifications to the general principle. In an appropriate case the plaintiff may be entitled to additional damages if the goods have risen in market value between the conversion and judgment. An example of this was *Sacks v Miklos* [1948] 1 All ER 67 (CA). The case arose out of the gratuitous storage by the defendants of house furniture belonging to the plaintiff. From 1940 to 1943 the plaintiff used to visit the first defendants' house. Thereafter he ceased visiting them and never communicated with them, or kept them informed of his address. In 1943, being in need of the room where the furniture was stored, the defendants wrote to the plaintiff twice at the address obtained from his bank manager. They also attempted more that once to telephone him. As all efforts of communication had failed, the defendants sent the furniture to firm of auctioneers, the second defendants, who sold it for £15. In 1946 the plaintiff demanded the return of the furniture and sued, claiming damages on the basis of its greatly increased value. The trial Court found that the first defendants were agents of necessity and that they were entitled to sell the goods as all attempts to trace the plaintiff had failed. On appeal it was held that those facts gave rise to no agency of necessity since they exhibited nothing in the nature of an emergency compelling the first defendant to sell the furniture; that all the defendants were guilty of conversion; that if the plaintiff received the first defendant's letters in 1943 he then knew, or ought to have known, that the furniture would be sold if he did not collect it, and was through his inaction himself the cause of the loss; that if, on the other hand, he did not receive those letters, he was entitled to damages in respect of the increase in the value of the furniture between the dates of the sale and of his discovery of it; and that the case must be remitted to the county court judge for the necessary finding and for assessment of damages accordingly.

In the instant case, learned counsel submitted that the appellant was entitled to the value of the goods at the time of judgment because as soon as he learnt of the conversion, he went to the offices of the first defendant and when he was refused satisfaction, he took court action promptly.

The learned Judge summarised the evidence regarding the goods lost or taken away by the first defendant's servants as follows (at 7, 1-2):

> "According to the evidence as given by both sides there is no doubt that when shop and the sleeping room were locked up, there were some property inside belonging to the defendant and one Namukasa. The only issue in dispute is how much of this property was in the shop or sleeping room. According to the plaintiff the property was as shown in exhibit P5 and P6 but according to the defence the property was as mentioned in exhibit D1 and exhibit D2.
>
> The difference between the plaintiff's list and the defence list is that the former shows more items while the latter shows very few items. Mr *Sekandi*, the learned counsel for defence in his forceful submission attacked the plaintiff's list as being something of an afterthought as it was complied some seven years after the incident. With due respect to the learned counsel, I do not see anything suggesting that the plaintiff's list was complied seven years late, the plaintiff filed this case in 1984 when the cause of action arose and his plaint was accompanied by the list of items which were locked up in the shop and sleeping room; the list tendered in court was substantially the same as annextures to the plaint except the prices which are different from the annextures and the reason for the difference was given by the plaintiff as being to match the items with the current prices."

So there was some evidence. It was for the learned trial Judge to believe it or not (bearing in mind that special damages must be strictly proved). The learned

Judge did accept the plaintiff's evidence as to the quantum of goods lost. He did not, however, accept the evidence as to their value, as being the measure of damages for the tort that he had been committed. The learned trial Judges' views on this aspect of the claim were set out (at 73–74 of the judgment) as follows:

> "The next issue to be considered in the value of the goods lost or taken away by first defendant's servants. The plaintiff fixed the price of the items found in the shop at UShs10 285 000 and those found in the sleeping room at UShs1 202 000…"

It appears from the record that the plaintiff said his valuation was based on inquiries he had made from several shopkeepers selling similar properties in the Masaka area. Unfortunately he did not call those shopkeepers to testify. Nor did he adduce invoices or other documentary evidence in support on this point.

In his closing address at the trial, defendants' counsel criticised this advance of the plaintiff's regarding the 1991 value of the properties. Such criticism was accepted as appropriate by the trial Judge in his judgment (at 74). He therefore took the 1984 figures as being appropriate basis for the assessment of damages.

At the hearing of this appeal, it was submitted by counsel for the defendant that the plaintiff should not have been allowed to adduce evidence as to the increase in value the goods because this was not pleaded in the plaint.

It is clear that special damage, as was claimed by the plaintiff to have been suffered, is such a loss as the law will not presume to be the consequences of the defendants' act. Such damage, as the learned editors of *Onger's Principles of Pleading and Practice* (21ed) point out; (at 164):

> "… depends in part, at least, on the special circumstances of the case. It must therefore always be explicitly claimed on the pleadings, and at the trial it must be proved by evidence both that the loss was incurred and that it was the direct result of the defendant's conduct…"

It appears from a perusal of the record that in the amended plaint, the plaintiff did not explicitly claim that the value of the properties taken from his store in 1984 had increased in market value by 1991. Nor did he explicitly claim that he had lost the profits which he would reasonably have expected to gain as a consequence of the locking up of some of his properties and the taking away of other properties by the defendant's servants/employees.

What was therefore the task of the judge in the instant case? It was to examine the evidence in order to ascertain whether or not there was anything which justified a departure from the general principle that the time of conversion was the relevant date for the evaluation of the properties converted. Did the learned Judge fulfil this task? He appears to have done so in the above passages which I have quoted from his judgment:

> "I would accordingly reject grounds one and two of the appeal. I now turn to ground 4."

In his amended plaint, the plaint, the plaintiff averred that all his household goods and shop commodities were unlawfully taken and converted by the defendants to their use. The learned Judge in his judgment accepted that the first defendant had committed the acts complained of, but he rejected the alleged guilt of the second defendant. He stated (at 73 of the record) as follows:

> "Regarding the second defendant, there is no iota of evidence establishing that he was responsible for any loss of the plaintiff's property and as such he cannot be held liable for the loss of the property."

As this is a first appeal, it is the duty of the Court to review the evidence in order to determine whether there was justification for the learned Judge's finding of liability on the part of the second defendant.

According to the evidence on record, the plaintiff on learning of the eviction on 17 November 1984, went to the first defendants' office in Masaka and asked Mutambo David, who was in charge of the first defendants' affairs, why his shop had been locked. The latter told the plaintiff that the shop had been removed from him and given to another person, whom at the time he did not know but later learnt he was the second defendant, a government servant. The plaintiff also testified that he asked David Mutambi (presumably the same Mutambo David) about his property and he was told that:

> "Since I was allocated the shop when there were properly therefore a new allocatee should take it with all the property."

Joseph Mukasa (PW2) in 1984 was working as a salesman in the plaintiff's shop. On 17 January 1984 he was present when Isingoma, the first defendant's employee came to the shop with two men and ordered him to leave the shop. Mukasa went out, leaving behind all the plaintiff's properties that were in the two rooms of the shop. At the time there was also the property of a tailoress Regina Namukasa which was kept in the shop. Isingoma locked the shop with all the things inside.

Regina Namukasa was PW3. She testified that she was permitted by the plaintiff to do tailoring in his shop since 1982. In January 1989 she had there a sewing machine, some customers' clothes, bench and a stool. After learning the shop had been reallocated, she went to Kayisi, who was then looking after the shop for the new occupant, and he allowed her to take out her property in the presence of a policeman and some other people.

The second defendant testified that the shop from which the plaintiff was evicted was handed to him by Isingoma, the second defendant's employee (who was deceased at the time of the trial) on 15 February 1984. At the time a policeman PC Kiwanuka was present, who counted out the things which were in the shop. Kiwanuka and the second defendant as well as his agent, one Kayizi, signed for these articles. The second defendant also testified that when he entered the articles signed for were there, but later on one of the former tenants of the plaintiff took some of the things and some were taken by Isingoma an official of the first defendant. The second defendant did not know what happened to those things later on. He denied having consented any of the plaintiff's property.

In cross-examination, the second defendant changed his testimony and alleged that it was Kiwanuka, not Isingoma, who counted the things in the shop. He also denied that he was present when the list of properties in the building was being complied.

Kayizi (DW2) the friend and agent of the second defendant, testified that after the shop had been allocated to the latter, both of them went with some other reasons to the shop with Isingoma and Mayambala, employees of the first defendant. Mayambala unlocked the shop. Inside were "some few things" which were recorded and signed by Kayizi, the second defendant, PC Kiwanuka, PC Nakimuli and one Kayemba John, a friend of Kayizi.

They prepared two lists, one for properties found in the shop and one for properties found in the back-room. After that, Mayambala looked for a wheel

barrow had it loaded with the properties and took them away in the company with Isingoma and the second defendant. Kayizi then locked the shop. About one and half months later the second defendant gave Kayizi some policemen who came and broke the back door in Kayizi's presence and removed from the rooms some of the properties therein. A list of those things was compiled and they also were taken away to the first defendant in a wheelbarrow. A lady (PW3) also took away a sewing machine and a box containing some things, for which she signed.

The last witness was David Mutambo (DW4), a businessman who in 1984 was employed by the first defendant. He testified that when the plaintiff was served with a notice to quit because of non-payment of rent, he locked his shop and disappeared. Later on his shop was opened by the plaintiff's agent. The goods inside were brought to Mutambo's office, who stored them. Later on the plaintiff came for his property, which included domestic things but not for selling in a shop. They were given by Isingoma to the plaintiff who took them away in a wheelbarrow. Mutambo admitted he was not present when the plaintiff's store was locked or when it was opened. Much of his evidence was therefore hearsay.

The learned Judge found that the evidence given by the defence witnesses was materially contradictory and could not be taken seriously. He accepted the evidence given by the plaintiff as truthful. He found the items listed by the plaintiff in exhibits P5 and P6 to be his property which was the shop and sleeping room respectively at the time the premises were locked by the first defendant's agents or servants.

I believe that finding of the learned Judge to be justified by the evidence. I do not find any reason to say that he erred in his finding of the fact that there was "no iota of evidence" establishing that he was responsible for any loss of the plaintiff's property and therefore he could not be held liable.

Where I am in some disagreement with the learned Judge was in his awarding costs to the second defendant as against the plaintiff.

Learned counsel for the plaintiff submitted that the costs should have been ordered to be paid by the Landlord that is the first defendant, who put the second defendant in possession; that all the confusion was caused by the first defendant, so the latter should pay the second defendant's costs as well as the plaintiff's.

In *Daniel Semba Mbabale v WK Kiza and others* [1985] HCB 46 (UR) the plaintiff's claim was that the defendants purchased part of the land which was for burial grounds and that that he was entitled to recover this from them. It was held by Odoki J (as he then was) that the plaintiff had a right to sue them severally and jointly because a common question of law would arise if separate suits were brought against defendants.

Order 1, rule 3 of the Civil Procedure Rules provide that:

> "all persons may be joined as defendants against whom any right to relief in respect of or arising out of the same act of transaction is alleged to exist, whether jointly, severally, or in the alternative, where, if separate suits were brought against such persons, any common question of law or fact would arise."

It was incumbent upon the plaintiff in the instant case to prove an act of willful interference, without lawful justification, with his property in a manner inconsistent with his right, whereby he was deprived of the use and possession of it.

It must be inferred from the plaintiff's evidence, accepted as truthful by the learned Judge, that he believed what he had been told by his salesman Mukasa (PW2), that is that there had been willful interference with his properties that had been left in his shop. When he involving the eviction, he was told by Mutambo (DW4), then the first defendant's employee, that his shop had been re-allocated and that a new allocattee should take it with all the property.

The plaintiff would not know whether the properties were taken away or detained and used by the first or second defendant or by both. In the circumstances, was it reasonable for him to sue both defendants? That was the question the learned Judge had to ask himself. With respect, I believe he either failed to direct himself to this effect or, if he did so direct himself, he misdirected himself on the answer he should give to the question.

Under Order 27 of the Civil Procedure Act, costs are in the discretion of the Court. Costs should normally follow the event and, in the instant case, the second defendant was successful as he was found not to have been guilty of conversion. However, the plaintiff could not be blamed for having sued the second defendant. The plaintiff was placed in a dilemma not because of any actions of his own. I agree with counsel for the plaintiff that the "confusion" was caused by the first defendant; he should therefore pay for it.

I would uphold ground four of the appeal. Accordingly I would allow the appeal in part. For the reasons earlier stated, I would set aside the judgment of the lower Court in so far as concerns the measure of damages. I would vary the judgment as to costs by ordering that the costs of the second defendant of this appeal and in the Court below be paid by the first defendant.

Platt JSC: I concur and have only this to add. Recent English decisions have continued to exemplify the principles stated in the judgment of Seaton JSC in relation the measure of damages in conversion see (*Hillesden Securities Limited v Ryjak limited* [1983] 2 All ER 184).

Manyindo DCJ concurred in the judgment of Seaton JSC.

For the appellant:
Mr Sekandi

For the respondents:
Information not available

Muthuku v Kenya Cargo Handling Services Ltd
[1990–1994] 1 EA 427 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	24 July 1991
Case Number:	[1991] 2 KAR; 94/90
Before:	Hancox CJ, Cockar JA and Omolo AJA
Sourced by:	LawAfrica

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[1] Damages – Employer – Employee injured in course of employment – Negligence by employer – Proof – Employee must prove some degree of negligence.

Editor's Summary

The applicant was a dock worker with the respondent. He had been so employed since 1965. On 25 November 1981 while he was off-loading heavy-duty nuts from a vessel, one of the nuts rolled, catching one of his fingers between it and the tray into which the nuts were being placed. The appellant's finger was thus broken. The appellant admitted in his evidence that the nuts did not require more than one person to lift and that he did not require a supervisor. He also admitted that he had been doing the same type of work since 1965 without any incident, that the accident in which he was injured was an isolated one and that there was nothing amiss with the manner in which the nuts had been stored in the vessel. He nevertheless contended that the respondent was negligent and among the particulars of negligence alleged were that the respondent had failed to provide any, or any effective, supervision.

The High Court dismissed the appellant's claim, holding that he had not proved any negligence on the part of the respondent, and that there was no evidence before the Court as to "which alternative safer system was available but which the defendants had neglected to adopt".

The appellant appealed.

Held – There is no obligation upon an employee injured in the course of his work to prove an alternative safer system of work before he can succeed in his claim – *General Clearing Contractors Ltd v Christmas* [1952] 2 All ER 1110 applied.

The judge had not held that the appellant was bound to prove an alternative safer system.

There is, as yet, no liability without fault in the legal system in Kenya, and a plaintiff must prove some negligence against the defendant where the claim is based on negligence.

The appellant had failed to prove any negligence against the respondent and his claim had been rightly dismissed.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Denny v Suppliers and Transport Company Limited [1950] 2 KB 374

General Clearing Contractors Limited v Christmas [1952] 2 All ER 1110 – **AP**

Judgment

Omolo AJA: The appellant, Kiema Muthuku, was an employee of the respondent Kenya Cargo Handling Services Limited. He sued the respondent as a result of an accident which occurred at his place of work and during which he sustained a fracture of the proximal phalanx of the right small finger. Fortunately for the appellant, the fracture united with minimal deformity, though it left the appellant with a weaker grip on that hand than on the left hand. The accident was on 25 November 1981, and as we understand the matter, it occurred in this way.

The appellant was a dock worker with the respondent and had been so employed since 1965. On 25 November 1981, the appellant reported for work at 7am and, thereafter, he and some 14 people were assigned to off-load heavy-duty nuts from a motor-vessel Kota Mewah. There is no evidence on record as to the weight of each nut, the only indication in the evidence of the appellant being to the effect that they were heavy-duty nuts used to join water pipes. It is also not clear from the evidence of the appellant how the nuts had been stored in the vessel, but the appellant's evidence was that each of them doing the unloading had to pick up a nut one at a time and put it in a tray. A winch would then remove the try and the appellant said in his evidence that though the nuts were of different sizes, he did not require the assistance of any other person to pick up one nut and place it in the tray. The appellant and his colleagues had started working at 8am and at about 11:30am when the appellant picked up a nut, another one which had been close to it rolled and caught the appellant's finger between it and the tray, thus causing the fracture. The appellant sued the respondent alleging negligence, the particulars of which were pleaded as:

> "(*a*) Failing to take any or any adequate precautions for the safety of the plaintiff while he was engaged in his work;
>
> (*b*) Causing or requiring the plaintiff to engage in a method of unloading which was dangerous and unsafe;
>
> (*c*) Failing to provide any or any effective supervision;
>
> (*d*) Exposing the plaintiff to a risk of damage or injury;
>
> (*e*) Failing in respect aforesaid to provide a safe system and place of work."

The respondent denied that it was negligent as alleged or at all and having heard the evidence of the appellant, which was the only evidence called, the learned trial Judge (Bosire J) dismissed the appellant's suit with costs, holding that the appellant had failed to prove any sort of negligence against the respondent. The appellant now appeals to us against that finding and the grounds of appeal listed in his memorandum are that:

> "1. The learned Judge in finding the respondent was not liable, went against the weight of the evidence adduced.
>
> 2. The learned Judge was wrong in considering that in the cases of industrial accidents there is an onus to show 'an alternative safer system'.
>
> 3. The learned Judge erred in holding that no injury or harm to the appellant could be anticipated by the respondent in this accident."

Amplifying these grounds before us, Mr *Kassim Shah* for the appellant particularly attacked that portion of the judgment in which the learned Judge said:

> "With regard to the question of liability, the main, if not the only question to grapple with, is whether the defendant owed the plaintiff a duty of care in the circumstances of this case. For many years heretofore the defendants have been and still use the same method of unloading cargo of the type the plaintiff was called upon the off-load. I have no evidence before me which alternative safer system was available but which the defendants had neglected to adopt. Nor has there been shown any act or omission on the part of the defendant of a negligent nature to have created a duty of care to the plaintiff . . ."

Mr *Shah* contended before us that the learned Judge thought the appellant was under a duty to prove "an alternative safer system" and that in this the judge was wrong because there was no such duty on the appellant. Mr *Shah* referred

us to the House of Lords' decision in *General Clearing Contractors Limited v Christmas* [1952] 2 All ER where it was held:

> "Even assuming that other systems of carrying out the work, for example by the use of safety belts or ladders, were impracticable, the appellants were still under an obligation to ensure that the system that was adopted was a reasonably safe as it could be made and that their employees were instructed as to the steps to be taken to avoid accidents; the appellants had not discharged their duty in this respect towards the respondent . . ."

If for one moment I thought, as Mr *Shah* appears to think, that the learned Judge placed a burden on the appellant to prove that there was in fact, "an alternative safer system", I would have already disagreed with him, for that may imply that even where it is known that a particular system is dangerous yet an employer can get away with it unless the employee can show a safer alternative system. That cannot be the law and in my view the *Christmas* case (*supra*) deals exactly with that sort of situation, even where a system is known to be inherently dangerous, and there are no practical alternatives to operating it, yet the employer must still "ensure that the system that was adopted was a reasonably safe as it could be made and that their employees were instructed as to the steps to be taken to avoid accidents".

I do not, however, understand the trial Judge to have held that the system in which the appellant was working was an inherently dangerous one, as was the position in the *Christmas* case. As the judge rightly pointed out for many years before the accident, apparently since 1965. The appellant had worked under the system and in safety until the isolated accident on the 25 November 1981. The appellant himself admitted:

> "True this injury was merely accidental. We were not being directed by supervisors on when and how to lift the nuts. No special implements were required . . . Had worked in other ships before doing similar work. There was nothing unusual with the ship – Kota Mewah. Working conditions were same as in other trips when performing that type of work . . ."

On the face of that evidence by the appellant himself, where was the alleged negligence by the respondent to be found? If there had been evidence that the nuts were too heavy for one person to lift or that those lifting them should have done so under some supervision, which could have been a factor from which it could be inferred that in asking the appellant to lift them alone and under no supervision, the respondent was negligent. That has not the appellant's case. Nor was it his case that the nuts had been carelessly or dangerously loaded in the vessel as was the case in *Denny v Suppliers and Transport Company Limited* [1950] 2 KB 374 upon which the learned Judge relied. Mr *Shah* told us that that case was irrelevant. There, timber had been badly loaded, despite the knowledge that in the end it would have to be off-loaded. The bad loading was held to be a negligent act and the defendants were liable. Here, there was absolutely no evidence that the nuts had been badly loaded in the vessel. Indeed in the words of the appellant:

> "There was nothing unusual with the ship Kota Mewah. Working conditions were same as in other ships when performing that type of work."

In the *Christmas* case (*supra*) the employee was injured when he fell off a window sill. He was cleaning the window and was standing on the sill which was some 29 feet above the ground. Obviously, special precautions would be required in performing that kind of work and the House of Lords held that the employers had failed to discharge their obligation to the employee.

There was no evidence in the present appeal that picking the nuts from the vessel and putting then in a tray involving risks similar to those in cleaning a window while standing on a sill nearly 30 feet above the ground. In my view, it was for the appellant to prove, of course upon a balance of probability, one of the forms of negligence as was alleged in the plaint. Our law has not yet reached the stage of liability without fault. The appellant clearly failed to prove any sort of negligence against the respondent and in my respectful view his claim was rightly dismissed. There is no merit in this appeal and I propose that it should be dismissed with costs.

Hancox CJ and Cockar JA concurred in the judgment of Omolo AJA.

For the appellant:
K Shah

For the respondent:
S Anyanzwa

Mwacha v Republic
[1990–1994] 1 EA 431 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	2 August 1990
Case Number:	73/90
Before:	Kisanga, Ramadhani and Mnzavas JJA
Sourced by:	LawAfrica

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[1] Crime – Sentence – Manslaughter caused by death during chastisement by father – Twenty years' imprisonment – Whether sentence was too severe.

Editor's Summary

The appellant was convicted of manslaughter. He was the father of the deceased, and he discovered truancy of the deceased, who had failed to attend school. The appellant chastised the deceased, a boy aged only seven years old, using sticks, fists and kicks. The deceased attempted to evade the blows and he fell sustaining serious head injury which led to his death. The appellant tried to retrieve his life by treating him and taking him to hospital but in vain. The appellant was convicted and sentenced to twenty years' imprisonment.

On appeal against severity of sentence.

Held – The appellant's act of chastising his child for playing truancy is something which the society approves of. The only valid criticism is that in so doing, the appellant overreacted. However, his fists and kicks only indirectly caused the injury that led to the child's death. The court would therefore reduce the sentence to three years' imprisonment.

No cases referred to in judgment

Judgment

Kisanga, Ramadhani and Mnzavas JJA: This appeal arises from the sentence of 20 years' imprisonment passed on the appellant following this conviction on the charge of manslaughter to which he had pleaded guilty.

The appellant who is over 50 years of age is the father of the deceased, a boy aged only about 7 years. On the day of the incident the appellant returned home and found the deceased absent. In addition he was informed that the deceased did not attend school either. When the deceased eventually came home the appellant chastised him by beating him using sticks, fists and kicks. The deceased tried to run away from the onslaught, but as he did so he fell on a stone and sustained serious head injury which led to his death.

The appellant tried to retrieve the life of the deceased by treating him and then taking him to hospital but in vain.

In meting out the sentence, the learned High Court judge observed that what the appellant did was far beyond what was expected of a father, and that the attack on a child of such tender age was most inhuman. But the appellant's act of chastising the child for playing truancy is something which the society approves of. The only valid criticism is that in so chastising the deceased, the appellant over-reacted by acting violently, as evidenced by his use of fists and kicks. We think that such criticism could not be a sufficient basis for imposing such a stiff sentence of 20 years' imprisonment, especially considering that the fists and kicks were not the direct and immediate cause of the fatal head injury.

Mr MK *Kimomogoro*, the learned advocate for the respondent Republic took the view that the sentence was manifestly excessive, and we entirely agree. On that account we feel justified to interfere. Accordingly the appellant' prison sentence of 20 years' imprisonment is reduced to one of three years' imprisonment. The appeal is therefore allowed to this limited extent.

For the appellant:
Information not available

For the respondent:
MK Kimomogoro

Mwamanda v Republic
[1990–1994] 1 EA 432 (CAT)

Division:	Court of Appeal of Tanzania at Mbeya
Date of judgment:	9 May 1991
Case Number:	175/90
Before:	Ramadhani, Mnzavas JJA and Mapigano AJA
Sourced by:	LawAfrica

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[1] Crime – Murder – Provocation – Act of alleged provocation took place one year before the killing – Alleged provocation by deceased from whom he was already divorced – Whether there was provocation – Whether conviction for murder would be reduced to manslaughter.

Editor's Summary

The appellant admitted killing the deceased, his former wife. He argued that he was provoked by the deceased, whom he saw carrying a chair for her lover at a local dance. The act of provocation happed after the appellant was already divorced from his wife, and the killing happened one year later. The appellant argued that his dowry had not been returned and that the actions of the deceased would provoke an ordinary man in that community to do what he did.

Held – For the defence of provocation to reduce a potential conviction for murder to manslaughter, it must be proved that the accused killed in the head of passion caused by the sudden provocation and before there was time for the passion to cool. *R v Sungura s/o Ngolilo* (1946) 13 EACA 110 followed.

In this case, the deceased had every right to have a boyfriend since her marriage to the appellant had been dissolved. Further, the killing done one year after the alleged provocation lacked the element of suddenness. The killing was therefore with malice aforethought and the conviction for murder would be sustained.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Republic v Sungura s/o Ngolilo [1946] 13 EACA 110 – **F**

Judgment

Ramadhani, Mnzavas JJA and Mapigano AJA: The appellant Philipo Mwamanda was charged with and convicted of murder and sentenced to death by the High Court (Mwaikasu J).

Aggrieved by the decision he has come to this Court. The appellant admitted killing the deceased one Cecilia d/o Kilambo his former wife, in his defence before the lower Court; but argued that he did so by reason of deceased's provocative acts to him.

Before this Court Mr *Mwangole,* learned defence counsel, has echoed appellant's defence of provocation in the court of first instance. It was argued that on 21 September 1984 and 22 September 1984 the appellant saw the deceased from whom he had already been divorced carrying a chair for her lover at a local dance (Ling'oma) at Ikombe village. It was also submitted that on 23 September 1984 the appellant saw deceased's lover at deceased's house.

Mr *Mwangole* argued that this behaviour by the deceased angered the appellant because although the marriage between him and the deceased had not already been dissolved by a court of law he had yet been refunded his dowry. It was Mr Mwangole's argument that to an ordinary Nyakyusa villager non-refund of bride-wealth meant that the marriage was still in existence and that deceased's behaviour would have provoked and ordinary Nyakyusa to do what the appellant did.

The court was invited to find the appellant only guilty of the lesser offence of manslaughter by reason of provocation.

In rebuttal Mr *Ndunguru,* learned State Attorney, supported the conviction. He argued that the alleged provocative acts by the deceased to the appellant were done about a year before the appellant killed the deceased. There was therefore it was submitted, no heat of passion caused by sudden provocation in support of appellant's defence of provocation. In support of this argument the Court was referred to section 201 of the Penal Code (Chapter 63).

It was also submitted that even if the appellant had been provoked by deceased's behaviour; from the time he left his house to deceased's house which is said to be three hours distance in a canoe, was sufficient time for his passions to subside and reason to interpose. The court was asked to dismiss the appeal.

For the defence of provocation to reduce to the lesser offence of manslaughter what would have been murder it must be proved that the accused killed in the heat of passion caused by sudden provocation and before there was time for the passion to cool. That this is, the law is evident from the clear provisions of section 201 of the Penal Code. Case law is also to the same effect as it is shown in the decision in *Republic v Sungura s/o Ngolilo* [1946] 13 EACA 110 where it was held *inter alia* that:

> ". . . The question of provocation depends upon the question as to whether the act was done in the heat of passion cause by sudden provocation . . . and before there was time for the passion to cool. If that question be answered in the affirmative the offence is manslaughter not murder."

Can the question of provocation in the present case be answered in the affirmative so as to find the appellant guilty, not of the offence of murder as found by the trial Court, but guilty of the lesser offence of manslaughter as argued by Mr *Mwangole* learned counsel for the appellant.

There was no dispute in this case that the alleged provocative acts by the deceased were done after the marriage between the appellant and the deceased had been dissolved by a court of law. That being the position appellant's suspicion that the deceased was having an adulterous association with a man he had suspected for a long time should not have provoked him as the deceased had every right to have a boyfriend of her choice after dissolution of her marriage to the appellant.

That she had such right is evidence from the provisions of section 112(2) of the Law of Marriage Act of 1971. Even if for the sake of argument we were to accept that deceased's behaviour provoked the appellant, the killing of the deceased which was done about one year after the "provocative acts" lacked the element of suddenness. It cannot therefore by any stretch of the imagination be said that the killing of the deceased was done in the heat of passion and before there was time for the passion to cool and reason to interpose.

On the contrary the evidence, as we have already stated above, amply showed that the killing was deliberate, calculated and in cold blood. Appellant's defence in the High Court that he had intended to kill deceased's lover and not the deceased did not help him. As it would have been unlawful if he had killed deceased's lover his killing of the deceased was, on the doctrine of transferred malice, also unlawful.

The appellant used a panga in inflicting the fatal injuries on the deceased. Doctor's post-mortem report exhibit P1 shows that the deceased sustained compound fracture on the skull on the left parietal region, fracture of the skull on the temporal region of the skull, and cut wound on the maxilla which was also fractured and a cut wound on the bridge of the nose.

In an answer to the third assessor the appellant said:

> ". . . I could not earlier arrest the lover of my wife because he was much stronger than me. I therefore decided that we should all miss the deceased."

On the totality of the evidence we agree with the learned trial Judge that the killing of the deceased by the appellant was with malice aforethought. We agree with the learned State Attorney that the appellant was rightly convicted of murder and we accordingly order that the appeal be dismissed in its entirety.

For the appellant:
Mwangole

State Attorney:
Ndunguru

Nagenda v Editor of the Monitor and another
[1990–1994] 1 EA 435 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	6 December 1994
Case Number:	5/94
Before:	Manyendo DCJ, Odoki and Tsekooko JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Proper forum for procedural objections – Effect of failure to plead defence in pleadings – Duty of court to consider all evidence and do justice.

[2] Defamation – Defence of justification – Effect of apology to the defence of justification – Mode of pleading defence of justification.

Editor's Summary

Mr Edward Kagumba leased his land to the appellant's company, Namutamba Tea Estate and Dairy Farm Lmited (NTED) and agreed that rent would be payable quarterly. The appellant defaulted in payment of rent and Kagumba therefore repossessed the land and managed it under his company, Atlantic Industries Limited (AI).

The land was again leased to the appellant/NTED but the appellant again defaulted in payment of rent after 3 years. Mr Kagumba, through his lawyers, then threatened to evict NTED. He later entered the land and picked some of the defendant's tea that was growing on the land.

The appellant heard about this action by Mr Kagumba and rushed back with a gang of people who were armed with pangas. They did not find Mr Kagumba but caught and tortured his employees who were still picking the tea.

Later, the land was transferred to another of Mr Kagumba's companies, JK Investment Limited (JKI). JKI then engaged Messrs Kayongo and Lutale Bosso to survey the land. The appellant, angry with the survey, went to Lutale's house but did not find him. He however left a message threatening to kill him if he continued with the survey work. Subsequently a suit was filed by JKI over the suit property.

The respondents heard about the incident and wrote an article about the dispute and the appellant's actions. The appellant was a member of the Human Rights Commission at the time. The appellant in turn sued the respondents for defamation. The respondents, while admitting the contents of their publication, denied that they were false or malicious or defamatory. The trial Judge found that the

defence of justification had been established.

The appellants appealed claiming that the defence of justification had not been pleaded or made an issue in the lower Court.

Held – The proper and most suitable forum to raise and objection by a party because of failure by the opposite party to comply with the rules of procedure is the trial Court. A court of appeal can only entertain such complaints if non compliance has occasioned a failure or a miscarriage of justice.

An apology in effect destroys the defence of justification. Justification is the technical word for truth. If the words complained of tell the truth, no apology can be offered or there would be no need for the apology.

Even if a defence of justification is not pleaded or made an issue a trial Judge can consider it. *Dhanji Ranji v Ramdhani and Co* [1970] EA 515 followed; *Pinson v Lloyds and National Provincial Foreign Bank Ltd* [1941] 2 All ER 636 distinguished.

Even if a defendant omits to plead a defence, he can adduce evidence during trial and can rely on such a defence. *J Leavey Co Ltd v George H Hurst and Co Ltd* [1943] 2 All ER 581; *British India Insurance Co v Parmar and Co* [1966] EA 172 followed.

Asking a Court to ignore the evidence of the defence of justification would amount to asking a Court of justice to shut its eyes to the truth. A court of justice cannot give a judgment contrary to the evidence that disproves the claim. This would amount to perverting justice which no court of justice could do. The truth of any alleged defamatory words generally affords a complete defence to an action based on libel in civil proceedings.

The law of libel is concerned with the publication of disparaging or malicious falsehoods about a complainant. It is a publication without justification or lawful excuse, which is calculated to injure the reputation of another person by exposing him to hatred contempt or ridicule. Libel is really not concerned with inadvertent omission in the report of a factual statement. The defence of justification affects the substance of the matter and not mere details. *Sunderland v Stopes* [1925] AC 47; *Hoare v Jessop* [1965] EA 318 followed.

Even if any issue is not specifically raised in the pleadings or framed for decision by the trial Court, if evidence is led in the trial of the case on the unpleaded issue and parties canvass the issue or one of the parties canvasses the issue in the trial Court, then depending on the facts of each case unless the party complaining about the irregular procedure was prejudiced by the irregularity, an appeal court will not normally interfere with the decision of the trial Court.

Thus the appellants did not suffer injustice because of the failure of the respondents to plead justification or because justification was not made an issue.

Appeal dismissed

Cases referred to in judgment:

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

British India Insurance Company v Parmar and Company [1966] EA 172 – **F**

Dhanji Kanji v Ramdhai and Company [1970] EA 515 – **F**

Hoare v Jessop [1965] EA 218 – **F**

Odd Job v Mubia [1970] EA xx

Railway Corporation v EA Road Service Limited [1975] EA 128

SN Nkalubo v Rev Daudi Kibirigo [1972] 2 ULR 49

United Kingdom

Associated Leisure Limited and others v Associated Newspaper [1970] 2 QB 450

Farrell v International Thompson Publishing Limited [1989] 1 All ER 733

J Leavey and Company Limited v George H Hurst and Company Limited [1943] 2 All ER 581 – **F**

Kaluwa v Uganda Transport Company Limited [1978] HCB 318

Pinson v Lloyds and National Provincial Foreign Bank Ltd [1941] 2 All ER 636 – **D**

Pragar v Times Newspapers Limited [1988] 1 All ER 380

Sunderland v Stopes [1925] AC 47 – **F**

Judgment

Tsekooko JSC: This appeal arises from a libel action in which the appellant sued the respondents for the alleged defamation because of an article published by the respondents.

The background to this appeal is rather involved. To understand it better, I think it is desirable to act out of that background. It is basically the summary of the evidence given by Edward Kagumba who testified for the respondents as DW4 and facts found by the trial Judge. DW4 owned measuring some 293 acres. During 1976 he leased the land to the appellant in the name of appellant's company called Namutamba Tea Estate and Dairy Farm Limited (hereinafter referred to as NTE and D Farm Limited). The agreed rent was payable quarter yearly. The appellant (or NTE and D Farm Limited), defaulted in payment of rent between 1977 and 1989. Consequently DW4 repossessed the land and managed it under his own company known as the Atlantic Industrial Limited (hereinafter to be referred to as AI Limited).

However, in 1982 the land was again leased to the appellant and/or NTE and D Farm Limited under fresh conditions. After three years (presumably by 1986) there was again default in rent payment. During 1986/88 there were unsuccessful negotiations for NTE and D Farm Limited to purchase the land. Because of rent payment default, AI Limited through Lawyers threatened to evict NTE and D Farm Limited. Meantime during September 1986, or later, DW4 and his workers entered the land and probably picked some tea. The appellant appears to have been disturbed by that. So the appellant and his brother Stephen Nagenda in the company of 15 men armed with pangas and sticks preceeded to the land in search of DW4 was not there. But the group met workers of DW4 whom they tortured. After the torture and apparently while retreating the appellant and his group met DW4 where upon the appellant informed DW4 that: "if they found me (DW4) they would have crushed my head".

Apparently DW4 lived under great fear of the appellant. The dispute was referred RC1 of the area in November 1986. The RCs made some decisions. DW4 wasn't happy with decisions of the RCs. During 1988, DW4 transferred the land from AI Limited to UK Investment Limited (hereinafter to be referred to as JKI Limited) with DW4 as its Manager. On 19 August 1988, DW4 engaged one Kayongo and Lutale Bossa (DW3) to survey the land on behalf of JKI Limited. That is how DW3 became a cog in the wheel of this defamation case. DW3 commenced the survey on 8 October 1988. It appears the appellant learnt of it and became incensed by the survey work. On 16 October 1988 the appellant, accompanied by his armed body guard, his brother, Stephen Nagenda, drove to the home of Lule (DW1) who was requested to lead and he

did lead the group to the home of DW3. They all walked to the home of DW3 whom they found absent though his wife (DW2) was present. The appellant asked DW2 to tell DW3 to check on DW1.

The appellant on reaching DW1's home instructed DW1 to tell Mr Lutale Bossa that if he wanted to stay alive and not to die he should stop trespassing in my shamba.

Or similar words. DW1 fully delivered the message when DW3 called. Upon hearing these words, DW3 got scared and stopped the survey. But he reported the threat to DW4, and to the RCs and Police. Subsequently a suit was filed about 27 December 1989 in the High Court by JKI Limited against NTE and D Farm Limited in respect of the disputed land. Obviously both DW4 and appellant are key players in that High Court suit. It appears that during 1992, the respondents learnt about that suit and the appellant's visit to the homes of DW1 and DW3 on 16 October 1988. The respondent wrote an article about the dispute and the visit and published it is the monitor newspaper issue for the week 8 October to 16 October 1992. By that time the appellant was a member of the Human Rights Commission. Judging from the contents of the article, the monitor must have written the article partly because of the appellant membership of the Commission.

Consequently the appellant sued the respondents in the High Court claiming damages because of the article published by the respondents in the monitor (in its issue of October 8 to 16 1992), the appellant alleged that the article had defamed him. The appellant particularly regarding the last portion of the article which is pleaded in paragraph 3 of the plaint to be defamatory of him. As pleaded, that part of the passage states "Commissioner in land article".

The surveyor, Mr Lutale, later claimed that Mr John Nagenda, in the company of his brother and a neighbour, and a man who was armed with a gun went to his (Lutale's) home.

According to Mr Lutale the armed man was dressed in plain clothes and Mr Nagenda uttered threats before Lutalo's wife to the effect if that he (Lutale) wanted his life, then he had to stop surveying the land on which the tea estate is located. In paragraph 4 of the plaint, it was alleged that these words were defamatory of the plaintiff in their material meaning.

In reply the respondents in paragraph 4 of their joint written statement of defence averred that:

> "The defendants admit having published and printed the alleged words but deny that the printing and publication there of were false or malicious or capable of defaming the plaintiff or having the alleged meanings attached to them (by paragraph 5 of the plaint), or of injuring the plaintiff as alleged and the plaintiff will be put to strict proof of such allegations."

For issues framed for determination by the High Court were:

1. Whether matters presented and published were false and malicious.
2. Whether the words complained of are capable of bearing the meaning attached to them by plaintiff.
3. Whether they were defamatory of plaintiff.
4. What reliefs, if any.

The appellant gave evidence on his behalf and called Professor Apelo Msitambi (PW1) as his other witness. The Professor's evidence relates to the appellant's

reputation and is of no value in regard to the events on the material day. The respondents called Lule (DW1) Justine Nabanya, wife Aflutal Bossa (DW2), Lutale Boss (DW3), Edward Kagumba (DW4) and Wafula Ogutu, (the editor in chief of the monitor) (DW5).

In his testimony and as found by the trial Judge the appellant admitted visiting the home of Lule and that of Lutalo Bossa on the material day. He admitted being accompanied by his brother Stephen and his armed body guard in plain clothes. He admitted speaking to Mrs Lutalo Bossa (DW2) "about illegal entry onto his land" by DW3. The only point of substance where the evidence of the appellant differs from that of DW1 is that the appellant in his testimony denied ever uttering the alleged threat. Otherwise, the evidence of DW1 and DW2 is supported by the appellant's evidence as to the visit, the number of people and presence of the armed guard. DW1 was emphatic in his evidence that the appellant asked him (DW1) to deliver the threat to DW3. DW1 asserted that he in fact delivered the threat to DW3. After receiving information about the threat, DW3 reported the threat to the local RCs and latter through DW4 to the police. The evidence shows that DW3 stopped the survey of the disputed land because of the threat.

At the conclusion of evidence, Mr *Nag'wala*, who appeared for the respondents addressed the learned Judge. Among the issues raised by Mr *Nag'wala* in his submissions was that:

> "Since the words printed and published were true in fact and in substance they could not be defamatory of the plaintiff."

Thus the defence counsel raised the issue of the defence of justification in the High Court.

On the other hand Dr *Byamugisha* submitted that justification had not been specifically pleaded nor made an issue for determination by the High Court. That is essentially true. He cited the case of *Pragar v Times Newspapers Limited* [1988] 1 All ER 380 and *Associated Leisure Limited and others v Associated Newspaper* [1970] 2 QB 450 in support. Learned counsel had in effect urged the trial Judge to ignore the defence evidence on the plea of justification on the ground that it had neither been pleaded nor made one of the issues.

The consequence of the submission on the matter by counsel for both sides is that they put the issue of justification to the trial Judge. The learned Judge chose to consider the issue of the defence of justification. He considered the law, evaluated evidence found that on the facts of this case the defence of justification had been established and he therefore dismissed the suit. Hence this appeal. The appellant formulated six grounds of appeal but abandoned the sixth ground during the hearing of the appeal.

Dr *Byamugisha* learned counsel for the appellant criticised certain conclusions of the learned trial Judge in his judgment. Learned counsel contended that the trial Judge did not give due weight to counsel's submissions in the High Court.

As a first appellate court, this Court has power to reappraise the evidence and draw its own inference of fact bearing in mind the fact that we have not had the benefit which the trial Judge had of seeking and hearing the witnesses and of noting their demeanour as they gave their testimony.

I shall first consider grounds one and two together because in my view they cover pretty much the same point. These grounds read as follows:

> "1. The learned Judge erred in law and in fact in observing in respect of the letter demanding for an apology that:
>
> 'This shows that whether the defendants offered an apology or not they were going to face court action. The stand taken by the plaintiff appears to me rather strange. I thought that the letter is an opportunity given to the defendants before the writ is issued to withdraw the offending article and apologise. In my view the purpose of such a letter will help to show that the plaintiff's (*sic*) real object is to vindicate (*sic*) his character and not merely to make money out of the attack.'
>
> 2. The learned Judge erred in law and in fact when he stated in respect of the apology that:
>
> 'This was considered by the plaintiff not an apology. True to learned counsel's instructions, the instant writ was filed.'"

I have studied the judgment of the learned Judge, the evidence and exhibit P3 which is the letter of appellant's counsel whereby he demanded apology from the respondents. The last paragraph of exhibit states:

> "Your apology should be prominent and should be published within seven (7) days from the date hereof after which our instructions are to file suit against you."

In view of this passage I don't accept Dr *Byamugisha*'s criticism of the trial Judge to the effect that the judge viewed the appellant only as person looking for money.

In my considered view the learned Judge did no more than make an observation about the instructions which the appellant had given his counsel. I find nothing out of the ordinary in the judge's observations and I find no fault with those observations in the light of the contents of exhibit P3 and particularly the last paragraph reproduced immediately above herein. Moreover the judge quoted what the appellant stated in evidence. Towards the end of cross-examination of the appellant, he is recorded to have answered that "so whether apology was tendered or not I was to sue". Consequently I find that there is no merit in both grounds one and two and the same must fail.

Grounds three and four which are more substantial state that:

> "3. The learned Judge erred in law and infact in holding that defendant pleaded justification as a defence, and further that the principle in *Pragar v Times Newspapers Limited* is "not applicable to the instant case, where the defendants, by paragraph 4 of the defence, have not put a meaning on the defamtory words different from the meaning pleaded by the plaintiff which they seek to justify but merely seeking to justify the actual words complained of.
>
> 4. The learned trial judge erred in law and in fact in holding that the defendants can still rely on a plea of justification even though they offered an apology when no justification was pleaded or made an issue."

On ground three, Dr *Byamugisha* reiterated his submissions at the trial and submitted that the defendant never pleaded justification at all or specifically nor was justification made an issue in the course of proceedings. That the defendant could not indeed plead justification in view of the correction made subsequently. According to the learned counsel the correction meant that no threat had been had been made by the appellant. Learned counsel contended as observed earlier that the trial Judge did not in his judgment give adequate consideration to him (Dr *Byamugisha*'s) submissions in the High Court. I am

satisfied that the learned Judge did consider the submissions before he dismissed the suit. In the opinion of Dr *Byamugisha*, the written statement of defence should have averred that the threatening words, alleged to have been uttered by the appellant, were uttered not to Lutalo's wife but to Lule (presumably because the defence witnesses stated as eventually in their testimony). I accept this argument as regards format of a written statement of defence but as I shall show later, this did not prejudice the appellant with regard to the merits of his case.

Counsel cited *Pinson v Lloyds and National Provincial Foreign Bank Ltd [1941] 2 All ER 636*, *Pragar v Times Newspapers Limited* [1988] All ER 304 and *Farrell v International Thompson Publishing Limited* [1989] 1 All ER 733 as well as Order 6, rules 2, 5, 7 and 9 of the Rules in support of his argument.

The rules refer to the need for parties to give particulars and to plead facts specifically so as to avoid surprise at the trial and to avoid evasive denial in pleadings. I think that the proper and most suitable forum to raise objection by a party because of failure by the opposite party to comply with the rules of procedure is the trial Court. As a Court of Appeal we can't entertain such complaints if non-compliance thereof has occasioned a failure or a miscarriage of Justice, which is not the case here, in my view.

On ground four Dr *Byamugisha* submitted and here I agree with him, that an apology doesn't cease to be an apology merely because a plaintiff doesn't accept the apology. I also accepted counsel's submission that an apology in effect destroys the defence of justification. Such apology would normally be pleaded in mitigation of damages. I think it is the law, and it has to be understood, that no apology can possibly be offered where the defence of justification is well founded. This is because justification is the technical word for truth. So if the words complained of tell the truth, no apology can be offered or there would be no need for the apology.

On both grounds three and four Mr *Nag'wala* counsel for the respondents contended that justification was pleaded in the defence.

He referred to Volume 24 of *Halsbury's Law of England* (3ed) at 43 paragraph 75 and submitted that in the pleadings it is not necessary to aver that publication was justified. In his view the use of expression "words used were not true or were false" would be a plea of justification. Counsel argued that since the plaint alleged that the published words were false, the denial in paragraph 4 of the written statement of defence that the words were false was enough since it put the plaintiff on notice that the published words are true or not false. Mr *Nag'wala* submitted further that *Pragar*'s case (*supra*) is distinguishable. He referred us to *Kaluwa v Uganda Transport Company Limited* [1978] HCB 318 and *Dhanji Kanji v Ramdhai and Company* [1970] EA 515 in support of the view that even if a defence of justification is not pleaded or made an issue, a trial Judge can consider it. This is a view I accept subject to certain nullifications. In view of the implication of *Dhaji Panji*'s case (*supra*) I was surprised that no serious attempt was made by learned counsel for appellant to give his views on that case. I shall revert to this point later in this judgment.

On apology, Mr *Nag'wala* made an erroneous submission, in my view, that a defendant who offers apology can rely on justification. Apology in reality means that the defendant accepts the defamation complained of and regrets publication of the words complained of. The defendant would normally withdraw those words because he knows they are false. In that respect a defendant can rarely

offer an apology and yet at the same time rely on justification because the two are mutually exclusive in effect, at any rate is as far as the law of defamation is concerned in this country; see Gatley on *Libel and Slander* (5ed) at 420, paragraph 751, *et seq*.

Counsel further submitted that the apology made by the defendants was actually a correction of an error to the effect that the words complained of were uttered not to Lutale's wife but to Lule. I think that this is one view of the so called apology. The contents of the "correction" publication are certainly equivocal and open to a number of possible interpretations. But in my considered opinion the correction article is no longer important in view of the evidence of DW1, DW2 and DW3 whose evidence the trial Judge believed. The evidence that the appellant uttered the alleged threat was given further weight by the evidence of Edward Kagumba (DW4) on whose behalf the survey was made or attempted to be made. If caution had been exercised by both counsel in the curt below, much of the evidence of DW4 might have been excluded since the evidence of DW4, which was hardly contradicted, largely proved that the appellant had uttered similar threats to DW4 and that appellant had roughed up workers of DW4 because of the same land in respect of which Lutale Bossa (DW3) was threatened. Thus in the event DW4's evidence established that the appellant had a propensity to threaten people interfering with the disputed land. This gave more weight to the case for the respondents.

Dr *Byamugisha* had criticised the respondents for printing and publishing the article in 1992 when the alleged threat was allegedly uttered far back in 1988. In view of the existence of the High Court suit between JKL and NTE and D Farm Limited.

Wherein the appellant, a public figure was a participant, there is no way the mention of the 1986 threat could possibly have been kept out of the reach of newspaper editors. The appellant had testified to the effect that he was a crusader for upholding Human Rights. He was a member of the Human Rights Commission which has been investigating past violations of Human Rights. That attracted scrutiny of his commissions or omissions by these duty it is to do the scrutiny. The respondents have that duty.

There is no doubt that the conventional form of pleading justification has been to the effect that "the words complained of are true in substance and in fact", and, where it is necessary, some particulars thereof are provided. Equally there can be no doubt that the truth of any alleged defamatory words generally affords a complete defence to an action based on libel in civil proceedings.

As I understand this case the substantial question before the trial Judge and before us is whether or not the words attributed to the appellant by the respondents were in fact uttered and if so whether the appellant uttered them. In my view the question of whether those words were uttered to Mrs Lutalo (DW2) or to Mr Lule (DW1) was of least importance and I think that was in reality the finding of the learned trial Judge.

Learned counsel for the appellant criticised the trial Judge because of certain passages in his judgment especially wherein those passages the judge referred to the "sting" of the libel as being the alleged threat attributed to the appellant. I think that there was sufficient evidence to support the conclusions of the judge on the point that the appellant uttered the threat which was in effect what the respondents published.

The authorities cited to us by counsel for the appellant are not helpful to the appellant's case and are distinguishable.

Thus the case of *United Africa Press* (*supra*) is relevant to the standard of proof of the defence of justification where it had infact been pleaded in the written statement of defence and made an issue. The defendant in *United Africa Press* case failed to prove the defence of justification and as was held liable.

The other three cases, namely *Pinson*'s *Praga*'s (*supra*) and that of *Merrell* (*supra*) were decided on interlocutory proceedings and are distinguishable. The three decisions are concerned with the formulation that is the framing of the defence of justification. These three cases are more relevant, I think, in cases where objection to the format of the written statement of defence is taken during the preliminary stages of a libel suit. *Trigell*'s case is relevant on the award of damages.

In considered view the submission of Dr *Byamugisha* that the learned trial Judge should have ignored the evidence on the defence of justification is in effect asking a Court of Justice to shut its eyes to truth. A Court of Justice cannot in my opinion give a judgment contrary to the evidence that disproves the claim. That would amount to perverting justice which no Court of Justice could do.

The law of libel is concerned with publication of disparaging or malicious falsehoods about a complainant. It is a publication without justification or lawful excuse, which is calculated to injure the reputation of another person by exposing him to hatred, contempt or ridicule. Libel is really not concerned with inadvertent omission in the report of a factual statement. This is clearly illustrated by the on Lord's decision in *Sunderland v Stopes* [1925] AC 47 at 79.

The learned trial Judge had referred to that case in his judgment. The case itself was contested on the defence of justification and fair comment. These defence were actually pleaded and made issues at the trial. The facts of the case are themselves not necessary for consideration of this appeal. But there are passages from the opinion of Lord Show of Dunfermline which illustrate, as the learned Judge in the Court below held, that justification that is proof of the truth of the allegation complained of, affects the substance of the matter and not mere minor details. Lord Show stated (see bottom of page 78 *et seq*.) that:

> "It remains to be considered what are the conditions and breadth of a plea of justification and the truth. The plea must not be considered in particular sense. It is that the words employed were true in substance and in fact. I view with great satisfaction the charge of the lord Chief Justice when he made this point perfectly clear to the jury, that all that was required to affirm that plea was that the jury should be satisfied that the sting of the libel or, if there were more than one, the stings of the libel should be made out. *to which I may add that there may be mistakes here and there in what has been said which would make no substantial difference to the quality of the alleged libel or in the justification pleaded for it*. If I write that the defendant on March 6 took a saddle from my stable and sold it the next day and pocketed the money all with out notice to me, and that in my opinion he stole the saddle and if the fact truly are found to be that the defendant did not take the saddle from the stable but from the harness, and that he did not sell it the next days but a week afterwards, but nevertheless he did, without my knowledge or consent, sell my saddle so taken and pocketed the proceeds then the whole sting of the libel may be justifiably affirmed by a jury not withstanding these errors in detail." (Emphasis added.)

He repeated the point especially at 81.

I myself find no material difference between the present case and the hypothetical illustration given by Lord Shaw in the passage I have just quoted. In East Africa, I find a crisp reference to the same effect about justification in the case of *Hoare v Jessop* [1965] EA 218 at 227 where it is stated:

> "On the plea of justification it is not necessary to prove that the statement is literary true; it is sufficient if, as in this case, it is true in substance and there is no attempt at gross exaggeration." Per Crabbe JA.

The case of *J Leavey and Company Limited v George H Hurst and Company Limited* [1943] 2 All ER 581 quoted approvingly by EA Court of Appeal in *British India Insurance Company v Parmar and Company* [1966] EA 172, (itself a case on amendment of defence) also support the view that even if a defendant omits to plead a defence, he can adduce evidence during trial and can rely on such a defence: (see the judgment of Clement Delestang AP (at 176). It is true that the defence of justification was not specifically pleaded by the defendants in the conventional style. But the statement of the trial Judge that the defendants pleaded justification in paragraph 4 of their written statement of defence appears to be supported by *Supreme Court Practice* [1988], Volume 1 at 293 where the learned editors in paragraph 18/12/18 state, *inter alia*:

> "That in any action of libel or Slander it is open to the defendant to plead that the words are true."

The defendant would normally be couched in the following words "the words complained of are true in substance and in fact" or words to that effect. Paragraph 4 of the written statement of defence in my view was perilously close to being evasive but since no objection to it was raised in the court below, I will not make any more comment on it.

Besides the judgment of the learned Judge can be supported with regard to the defence of justification on ground that the plea and the issue emerged during the hearing of the case. The testimonies of DW1, DW3 and to some extent that of DW4 amply confirm this. Both counsel for the plaintiff and for the defendant addressed the judge on it. Thus, the issue was fairly left to the learned Judge for consideration and decision. Rather than urging the trial Judge not to consider the defence of justification, counsel for appellant should have raised objection to the pleadings and thereby oblige the defendant's counsel to amend the written statement of defence so as to include the plea of justification, if defendants intended to rely on that defence. Alternatively the defence counsel could have been stopped from adducing evidence on it. The plaintiff's counsel did not do that.

In view of the defence evidence it would have been wholly wrong for the trial Judge to ignore such evidence on record in so far as justification is concerned. In any case in this case I am satisfied that no prejudice was occasioned to the plaintiff when the judge considered the evidence on the defence of justification because that evidence actually established the truth.

True the defence did not raise specifically the issue specifically the issue of justification nor was justification framed for determination. My understanding of paragraph 4 of the written statement of defence is that the defence asserts that the published words are not false and that there was no malice. Thus, the defendants by their pleading showed they would prove the claim to be unfounded. As the learned counsel stated, the defendant made a factual reporting of what happened in the material day the defendants did not express their own

opinion nor did they draw their own inferences. Since the learned Judge heard the evidence of DW1, DW2 and DW3 and DW4 and believed in preference to that of the plaintiff and the judge gave reasons for the preference which reasons are based on evidence available on record. I think that on the facts of this case no prejudice was occasioned to the appellant because of the misreporting that Mrs Lutalo heard the words. In any case I should have expected learned counsel for plaintiff to object to evidence adduce by defence in support of justification so that the defendants would have probably been forced to amend their own written statement of defence. Alternatively, in view of the evidence adduce by the defence, Dr *Byamugisha*, who appeared for the appellant at the trial, should have asked the judge under Order XIII, rule 5(1) of Civil Procedure Rule to amend issues so as to include justification as an issue before closing the hearing of the case. As observed by Law JA in *Odd Job v Mubia* [1970] EA at 479, advocates have a duty in ensuring that issues are framed, in view it was not reasonable to ask the judge merely to ignore important and relevant evidence which tended to establish the truth.

Mr *Nag'wala* for the respondents relied on the case of *Dhanji Ramji v Rambhai and Company* (*supra*) for the view that even if no issue is pleaded or framed for determination a trial Court can consider and pronounce on the unpleaded issue if the evidence adduced raises the issue and the Court addresses on it. In that case the majority of the members of the Court held this view (Law JA at 519 and Duffus at 520) because no prejudice had been caused to the appellant. As I have already stated, Dr *Byamugisha* did not comment no *Ramji*'s case yet the trend in decided cases support the submission of Mr *Nag'wala*. For instance, the same Court took the same view, in *Odd Jobs v Mubia* [1970] EA 476. At 478 Law JA clearly stated the liberal attitude of the East African Court of Appeal in cases of this type. He stated that:

> "On the point that a Court has no jurisdiction to decree on an issue which has no been pleaded, the attitude adopted by this Court is not as appears to be that of the Courts in India. In East Africa the position is that a Court may allow evidence to be called, and May base its decision, on an unpleaded issue if it appears from the course followed at the trial that the unpleaded issue has in fact been left to the Court for decision. In the case now before us, I am impressed by Mr Malik-Noor's argument that although Mr Sharma objected to evidence being led relating to the unpleaded issue, he cross-examined the other side's witness and led his own witness on this very issue; and although in his final address he objected to the new issue being considered unless made the subject of an amendment to the plaint. He nevertheless made submissions on the unpleaded issue. In these circumstances, although with some hesitation, I consider that the unpleaded issue was left to the judge for decision. I have no doubt the appellant was taken by surprise by the introduction of the unpleaded cause of action at the hearing, but although his advocate protested he did in fact, to some extent, participate in the consideration of this now cause of action, both by leading evidence and addressing the Court with reference to it, and I am not satisfied that the procedural irregularities in the Court below have in fact led to a failure of justice necessitating intervention by this Court. In other words, it has not been shown to my satisfaction that in the event the decision in the court below was wrong."

The other members of the Court agreed.

I don't find real difference between *Odd Job*'s case (*supra*) and the present case. Infact, as the above passage shows, objection was, unlike here, raised during the trial in *Odd*'s case about adducing evidence on an unpleaded issue. In fact in *Odd*'s case the plaint had pleaded that on contract had been entered

into. But during the trial evidence was adduce to support the existence of a contract between the plaintiff and the defendant and the plaintiff won the case on the basis of the unpleaded contract. The Court of Appeal upheld the decision of the High Court, no doubt no issues were apparently framed in *Odd*'s case (*supra*), but I don't think it matters much insofaras this appeal is concerned.

The flexible approach referred to approvingly by Law JA was followed by the same Court in other cases. Thus in *SN Nkalubo v Rev Daudi Kibirigo* [1972] 2 ULR 49 at 56, Duffus P, expressed himself as follows:

> "The main duty of this Court, as is indeed the case in all courts, is to see that justice is done between the parties. This Court will, if possible, not allow an appeal on procedure, defects or mistakes if in fact there has been no miscarriage of justice or failure of justice. It must however, be borne in mind that rules of court are drafted to aid the efficient administration of justice and that failure of one party to observe these rules can result in failure of justice to the other. It all depends on the particular facts and circumstances of each case."

In that case ins faras facts are relevant, the respondent sued the appellant for libel and slander. The respondent had been Dean in the Church of Uganda, posted at Bumasuta. He had refused to move from Bumasuta as requested. The appellant, a lay reader, of the Bumasuta Church wrote a defamatory letter about the respondent copying it to the DC Bishop, among other authorities. That letter was alleged to be defamatory of the respondent. The respondent successfully sued the appellant in the High Court because of the allegation of witchcraft levelled against him by the respondent.

Relevant to this appeal is the allegation of witchcraft. The appellant had spoken at a meeting alleging that the respondent indulged in witchcraft which the respondent claimed to be slander. The allegation of witchcraft were not set out in the plaint. But evidence of it was lead at the trial. The respondent was awarded UShs6 000 as damages for slander. On appeal of the East Africa Court of Appeal, Law JA stated at 55 regarding failure to plead allegations of witchcraft:

> "The allegations of witchcraft were introduced without objection and formed the principal ground of complaint against the appellant. Whether these allegations were made or not because the main issue or the main issues, at the trial, and could not have been more of an issue if it had been pleaded. The conduct of the trial shows that the parties allowed, and intended, these allegations to become an issue, although unpleaded. This is, I think, one of those cases where an unpleaded issue was, from the course followed at the trial, left to the judge for decision. The judge was left in no doubt that the words relating to witchcraft were in fact spoken by the appellant, and that they were highly defamatory of the respondent in his capacity as a Minister of the church. He showed his disapproval of the appellant's conduct by awarding the substantial sum of UShs6 000 as damages for slander. I would not interfere with this part of the judgment in the court below."

In *Railway Corporation v EA Road Service Limited* [1975] EA 128, and unpleaded issue was considered by trial Court and the irregular procedure was considered not to be fatal (see judgments of Spry AP and Law AVP).

These cases save Nkalubo are strictly not binding on this Court. But they are of great persuasive value and in practice this Court follows the decisions of East Africa Court of Appeal. In point of fact, *Nkalubo*'s case was an appeal from High Court of Uganda and is a decision on defamation and is therefore particularly relevant and (binding) authoritative.

The conclusion I draw from the three decisions of the former Court of Appeal for East Africa in *Odd Job, Nkalubo* and *Railway Corporation* is that even if any issue is not specifically raised in the pleadings or framed for decision by the trial Court, if evidence is lead during the trial of the case on the unpleaded issue and parties canvass the issue or one of the partied does canvass the issue in the trial Court, then depending on the facts of each unless the party complaining about the irregular procedure was prejudiced by the irregularity, an Appeal Court will not normally interfere with the decision of the trial Court. Even though this irregular procedure should not be allowed in every case nevertheless this is a reasonable and sensible approach on cases where the party complaining about the irregularity has not suffered any injustice. I do not think that the adoption of the practice of the former East Africa Court of Appeal in the three cases would put the rules of procedure in jeorpody so long as the unpleaded issue is material exit of the case and the issue is clearly contended during actual trial. In the present appeal I am satisfied that the appellant did not suffer injustice because of the omission by the respondents to plead justification wasn't an issue. I will with respect follow the approach adopted in the three cases.

I am satisfied that in the present case the appellant was not prejudiced by the course taken by the trial Judge. This is because Dr *Byamugisha*, a counsel for the plaintiff in the High Court cross-examined Lule (DW1) and Lutalo Bossa (DW3) and even DW4 about the alleged threat. He specifically asked Lule to repeat the words which he (Lule) heard from the appellant. Lule repeated the words (threat). DW3 in answer to Dr *Byamugisha*'s question stated that: "I feared to continue with the survey when I received plaintiff's message".

The message was the threat. The appellant himself was cross-examined by defence counsel on his threat. Clearly the issue of the plea of justification as a defence was alive in the High Court. On the evidence available, the question of credibility was important.

In my view, the learned Judge adequately dealt with the matter of credibility of witnesses for both sides and arrived at the correct decision. I find no valid reason for interfering with the conclusions of the learned Judge. In the result both grounds three and four must fail. My opinion is that grounds three and four are the substratum of this appeal.

In view of my conclusion on these two grounds, I find it unnecessary to consider grounds five in any details. I am in any case satisfied that in fact the trial Judge evaluated the (plaintiff's) appellant's evidence adequately before rejecting it.

For the reasons I have given I would dismiss this appeal with costs to the respondents.

Manyindi DCJ and Odoki JSC concurred in the judgment of Tsekooko JSC.

For the appellant:
Dr Byamugisha

For the respondents:
Mr Nag'wala

Nakana Trading Co Ltd v Coffee Marketing Board
[1990–1994] 1 EA 448 (HCU)

Division: High Court of Uganda at Kampala

Date of judgment: 12 May 1994

Case Number: 137/91

Before: Byamugisha J

Sourced by: LawAfrica

Appeal from:

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[1] Contract – Breach of contract – Evidence of breach of contract – Assessment of damages.

Editor's Summary

The plaintiff and defendant entered into a carriage contract where the plaintiff was to transport the defendant's coffee at the rate of US$ 90 for every metric tonne. However when the plaintiff provided the lorries the defendant refused to load the coffee claiming that the defendant had not provided back up services to monitor the movement of the coffee beans and that the plaintiff had not produced the log books of the trucks, hence its reputation and integrity in the carriage of coffee was in doubt. The defendant further claimed that the plaintiff had sub-contracted the lorries without its consent, contrary to the terms of the contract.

The plaintiff sued for breach of contract and the defendant counter-claimed for general damages for breach of the contract and loss of credibility.

Held – A breach occurs in contract when one or both parties fail to fulfill the obligations imposed by the terms. Since the contract was in writing the Court's duty was to look at it and determine whether it applies to the facts. No evidence can be adduced to vary terms of a contract if the language is plain and unambiguous.

The contract provided that the particulars of vehicles to be used were to be provided in a schedule to the agreement and were to be varied only with mutual consent, the vehicles were to be inspected by the defendant. Since these were not done, the plaintiff breached the contract.

Defendant was entitled to damages on the counter-claim. Assessment of damages is not an exact science and there is no mathematical formula the Court can use to determine the amount.

Plaintiff has not proved breach of the contract. Final judgment in favour of the defendant on the counter-claim.

No cases referred to in judgment

Judgment

Byamugisha J: The plaintiff a private limited liability company filed this suit against the defendant a statutory corporation as it then was claiming a liquidated sum of US$ 276 912 for breach of contract of carriage arising out of an agreement between two. The breach is alleged to have occurred between the 10 June and 30 August 1988 when the plaintiff presented lorries with a total capacity of 3076.8 metric tones to the defendant's warehouse at Mwanza for

loading coffee as per agreement but the defendant failed or refused to load the vehicles. The agreement stipulated that for every metric tonne of coffee transported the defendant would pay the plaintiff US$90. The plaintiff is also praying for costs of the suit. The defendant it its written statement of defence denied the allegations of breach contained in the plaintiffs claim instead it averred that the plaintiff breach clause 9(1) of the agreement of carriage by failing to provide back-up services to monitor the movement of coffee beans. It is also averred that the plaintiff failed to produce log books of trucks involved in the carriage of coffee hence its reputation and integrity was put in doubt. It was averred that the plaintiff in total disregard of clause 12 of the agreement sub-contracted trucks belonging to third parties without the written consent of the defendant, and the breach of this clause entitled the defendant not to perform its part of the obligation. In the counter-claim the defendant prayed for damages for loss of credibility and general damages for breach of contract on the part of the plaintiff. It prayed for the dismissal of the plaintiff's claim with costs and the entering of judgment in its favour as prayed in the counter-claim.

The facts leading to the institution of these proceedings appear not to be contested. In 1988 the Government of the Republic of Uganda took a decision to develop an alternative route to transport its exports especially coffee to the port of Dar-es-Salaam in the Republic of Tanzania. The Government team was headed by the Third Deputy Prime Minister and Coffee Marketing Board, the defendant was supposed to co-ordinate and carry out the exercise on behalf of the Uganda Government. A number of transport companies or carriers were contracted to participate in the exercise of opening up what was called the southern route. The plaintiff was recommended to the defendant by another Government parastatal body Transocean (U) Limited in a letter dated the 27 April 1988 (exhibit P5). Consequently on 18 May 1988 an agreement (exhibit D1) was signed between the plaintiff and the defendant. There was a reciprocal arrangement whereby the plaintiff would transport sugar from Dar-es-Salaam to Mwanza and in return it would be loaded with coffee beans on the return journey. After the execution of the agreement, the plaintiff went into action and on 10 June 1988 it delivered its first consignment of sugar from Dar-es-Salaam to Mwanza of 246 metric tonnes. The sugar was off-loaded in the stores and the Lorries were put at the disposal of the defendant's Manager to be loaded with coffee but he declined. The lorries returned to Dar-es-Salaam empty. This exercise was repeated eight times. The plaintiff raised an invoice (exhibit P1) showing the total unutilised capacity and the amount due, on 20 August 1988 the plaintiff provided eight vehicles with a capacity of 238.2 tons to the defendant, they were loaded, the coffee was delivered safely in Dar-es-Salaam and payment was effected. On prior to this, on 2 July 1988, the defendant's Manager in Mwanza sent a telex (exhibit D2) to the defendant's offices here in Kampala expressing misgivings about the defendant. He was also seeking advice whether to load coffee or not. It seems no reply was sent. However on the 16 September 1988, the plaintiff sent the invoice to the defendant and received no response. Instructions were given to its attorney to notify the defendant that he matters were being taken to court hence these proceedings:

The following issues fall for determination by court:

(1) Whether there was a breach of contract by the defendant.

(2) Remedies if any.

(3) Remedies on the counter-claim.

The plaintiff called three witnesses to prove the allegations in the plaint. The first witness was Wilberforce Joseph Kaweesi Nakana its managing director who narrated what took place between the time the contract was signed until its alleged breach. He testified that his company was contracted by Transocean and the defendant to carry sugar from Dar-es-Salaam to Mwanza and coffee beans from Mwanza to Dar-es-Salaam on the return journey. On 10 June 1988 the company delivered the first consignment of 246 metric tonnes and used seven lorries of different capacities. The sugar was off-loaded at Mwanza in Transocean stores and the vehicles were presented to the defendant liason office in Mwanza who declined to load them and they returned to Dar-es-Salaam empty. On 14 June 1988 seventeen vehicles with a total capacity of 529 tons were presented, no loading took place and they returned to Dar-es-Salaam empty. On the 23 June 1988 the company presented twelve trucks with a capacity of 455 metric tons and the defendant declined to load them. On 29 June 1988 twelve vehicles were presented with a capacity of 310 tons and again the defendant declined to load them. The witness further stated that the exercise was repeated on 7 July 1988, 26 July 1988 and 10 August 1988, 16 August 1988. However, on 20 August 1988 the company presented eight vehicles with a capacity of 238.2 tons and they were loaded with coffee which was safely delivered at the part of Dar-es-Salaam and the company was duly paid. The company presented an invoice for the unutilised cargo space and presented it to the defendant for payment which declined to pay. The witness denied that his company failed to provide back-up service or security for safe transport of coffee since it could not carry sugar for Transocean before security was provided. He denied that the company breached the contract or parted with its rights. He also stated that the contract did not prohibit the company from leasing or hiring vehicles for use in the exercise.

The second witness for the plaintiff was a former manager of the defendant now retrenched at Mwanza. Briefly his evidence was that in 1988 his headquarters sent him a list of companies to transport coffee beans from Mwanza to Dar-es-Salaam. The plaintiff was one of such companies. The plaintiff presented Lorries for loading but he did not load them because he was under instructions for his headquarters in Kampala not to load the plaintiff's lorries although he did not know why. Another witness for the plaintiff was Gershone Byamukama formerly a branch manager of Transocean (U) Limited at Dar-es-Salaam. His evidence was that between May 1988 his company was involved in bulk transportation of sugar using two companies. The plaintiff and Uganda Co-operatives Transport Union. As far as Transocean was concerned, the plaintiff performs its duties well and they had no problem with it. The witness also stated that he was aware of the arrangement that after the trucks had off-loaded sugar they would load coffee from Mwanza.

In giving their own version of the story the defendant called two witnesses. The first was Willu Wasswa the principal marketing officer with the defendant who was the defendant's Manager in Dar-es-Salaam at the time of this transaction. He admitted that there was an open contract between the plaintiff and the defendant to transport coffee which was not honoured because queries were raised by Luboyera (PW2) about the plaintiff's credibility as a transporter. He stated that there was reported loss of sugar from Dar-es-Salaam to Mwanza, that the trucks were unfit to carry coffee and the plaintiff had sub-contracted transporters whose credibility was not known. The witness stated that he was asked

to look into the credibility of the plaintiff as a transporter and when he did, he could not establish whether the plaintiff had an office, bank account et cin Dar-es-Salaam. He also stated that he was working hand in hand with Luboyera who was the defendant's manager at Mwanza.

The second witness for the defendant was Samuel Kigundu who is also secretary to the board. His evidence was that the defendant board contracted the plaintiff to carry coffee from Mwanza to Dar-es-Salaam. The agreement was in writing under it the obligations were the following:

> "(1) The board was to avail coffee to the plaintiff to transport to Dar-es-Salaam. But before coffee could be availed the plaintiff company had to avail details of the Lorries to be used in the transportation of coffee, particularly log books to show that the Lorries belong to the carrier.
>
> (2) The plaintiff had to ensure that the coffee would be carried safely to Dar-es-Salaam and this involved the provisions of back up services, road worthy vehicles."

He further testified that the manager in Mwanza sent information to the defendant to the effect that the plaintiff had failed to provide log books to show that the vehicles belong to the company and had no back up services. This information according to the witness was contained in a telex dated 2 July 1988 (exhibit D2).

After this telex, the then managing director of the defendant gave instructions not to load coffee. Further, the witness stated that the board received instructions from the Minister of Co-operatives and Marketing and the third deputy Prime Minister casting doubt on the integrity and capacity oft the plaintiff company. Lastly he stated that article 12 of the agreement stipulated that the coffee was to be delivered in trucks registered in the names of the plaintiff and since this was not done the coffee was withheld.

Turning to the issues as framed, the first is whether there was a breach of contract. In contract, a breach occurs when one or both parties fail to fulfil the obligations imposed by the terms, since the contract between the parties was reduced into writing, the duty of the Court is to look at the document itself and determine whether it applies to existing facts. No evidence can be adduced to vary the terms of the contract if the language is plain and unambiguious. Support for this proposition can be found in *Sarkar on Evidence* at 849 where the author said:

> "When any document comes before a Court for interpretation it will first try to ascertain its meaning by looking at the language itself. When the words used in it are plain in themselves is perfectly clear and free from ambiguity and there is no doubt or difficulty as to the proper application of the words to existing facts, parol evidence is not admissible to show that the parties intended to mean other than what they have said."

In the instant case, the evidence of the plaintiff that it presented lorries for loading coffee at the defendant's warehouse in Mwanza and the latter declined to load them is not contraverted. So it can be said that it performed its part of the bargain. But the defendant contends that the plaintiff breached two clauses or articles in the agreement and therefore the defendant board was entitled to repudiate the contract. The two articles are couched in the following words:

Article 9:

> "The carrier undertakes:
>
> (*a*) To carry the said coffee in convoys of not less than seven vehicles;
>
> (*b*) To provide proper and adequate representation both at Dar-es-Salaam and at Mwanza for the smooth and efficient administration of the carriage of coffee between Dar-es-Salaam and Mwanza;

(*c*) To carry the said coffee during day time only;

(*d*) To ensure the provision of security escorts for coffee convoys from Mwanza to Dar-es-Salaam;

(*e*) to provide back up service including but not limited to service vows break-down vehicles and/or equipment to monitor the movement of coffee and carry out salvage operations in the event of vehicle break-down, failures or accidents.

(*f*) to ensure where necessary that the said convoys are protected and provided with night camping site or sites which shall be at or near a police station or stations;

(*g*) to ensure that any vehicle or vehicles breaking down in transit shall be towed to the nearest police station or shall be replaced by an alternative fit vehicle or vehicles within a period of three days;

(*h*) to ensure that the driver responsible for every lorry signs for the exact quantity of coffee loaded on his lorry which signature shall be deemed to be conclusive evidence that the coffee has been sufficiently and properly packed;

(*i*) to make available for inspection by the board's authorised agent or representatives the vehicles listed in the schedule hereto prior to the departure of the vehicles to Tanzania;

(*j*) the carriers shall at all times to the satisfaction of the board keep all vehicles while in the use of the board in a proper state of repair free of any leakage whatsover and in such a condition as at all times to be convenient and fit for the use of carriage of coffee."

Articles 12 of the agreement stated as follows:

> "The carrier shall not assign, sub-contract or part in any way with the rights under this agreement without the consent in writing or the board and the board reserves the right in its absolute and uncontrolled discretion without giving any reason thereof, to withhold its consent."

It was submitted by counsel for the plaintiff company that the contract did not prohibit any leasing of vehicles and therefore both parties were aware that the plaintiff was entitled to get any vehicle anywhere for use in transporting coffee. On the part of the defendant board counsel maintained that the carrier had to use the vehicles registered to its names.

In order to resolve these positions, one has to look at the agreement itself. It provided that the particulars of the vehicles to be used by the plaintiff had to be given in the schedule to the agreement and were to be varied only subject to the mutual consent of the parties. Secondly it was provided in clause (i) of the agreement that the vehicles listed in the schedule had to be inspected by the defendant's representative before their departure to Tanzania. The evidence given in this case clearly show that the plaintiff did not provide particulars of the vehicles to be used in the transportation of coffee before it presented them at Mwambza. This was itself a breach committed by the plaintiff. The vehicles were not inspected by the board before their departure to Tanzania. The particulars of vehicles given by the plaintiff in its letters dated 6 June 1988 (exhibit P3) and 7 September 1988 (exhibit P2) clearly indicate that none of the vehicles were registered in the names of the plaintiff as carrier. Reference also has to be made to Luboyera's telex (exhibit D2) where he querried the plaintiff's integrity and was asking the board whether he should load the plaintiff or not. In particular Loboyera was complaining that the plaintiff had sub-contracted trucks from a public lorry pack whereby it became dangerous to judge bad and dangerous drivers. Another querry raised against the plaintiff's integrity was contained in a letter dated 8 July 1988 from the Minister of Co-operatives

and Marketing to the Chairman/Managing Director of the defendant in which he advised against loading the plaintiff until its integrity had been ascertained. Lastly the agreement provided in article 13 that it would commence on a date which was not specified. This means, as I understand it that the parties did not agree when the actual loading of coffee would commence. It also follows that the plaintiff ignored this provision when it presented its vehicles at Mwanza. The position of the defendant from the evidence available was a cautious one, and it appears it was hesistant to commit itself on such venture until and unless everything was ready. This caution is also reflected in the letter dated 12 October 1988 (exhibit D3) from the third Deputy Premier to the Managing Director of the defendant.

All in all, it cannot be said in the circumstances of this case, that the defendant breached the contract of carriage. To the contrary there is evidence which is not controverted that the plaintiff did not provide particulars of the vehicles it was supposed to use as stipulated in the agreement, the vehicles were never presented for inspection by the defendant's representation and generally there is no evidence to show that the parties agreed when the agreement was to come into force. And if that is the position, then it would be futile to talk of the breach on the part of the defendant. The plaintiff had not proved on a balance of probabilities that the defendant failed to fulfil its part of the bargain. I will therefor dismiss this suit with costs to the defendant.

As for the defendant's counter-claim, the claim was for general damages for breach of contract on the part of the plaintiff. The general rule with regard to damages in breach of contract were set out in the often quoted case of *Hadley v Baxendale* [1854] 9 Exch 341 where the Court said:

> "Where two parties have made a contract which one of them had broken, the damages which the other party ought to receive in receipt of such breach of contract should be such as may fairly and reasonably be considered either naturally that is in accordance to the usual course of things from such a breach itself or such as may reasonably be supposed to have been in the contemplation of both parties at the time they made the contract as the probable result of the breach of it."

In the instant case, the circumstances under which the contract was made clearly indicate that the parties were aware of the opening of the second route for Uganda's exports through the Dar-es-Salaam port. The plaintiff knew or ought to have known the role, which was being played by the defendant as the executing agency. There is also evidence from the various correspondent, showing that the plaintiffs conduct created some anxiety among the people who engaged in the opening of the route. Therefore the defendant is entitled to damages. The question is one of quantum. The assessment of damages is not an exact science, and there is no mathematical formula which the Court can use to determine the amount. The defendant was a big organisation engaged in the export of Uganda's Coffee to overseas markets and the breach by the plaintiff cause inconvenience. I consider a figure of five million shillings as adequate compensation for the breach.

In the event of a successful appeal I shall try to assess what the plaintiff would have received if it had succeeded. It claimed the sum of United States dollars 276 912 or its equivalent in Uganda shillings. This was a claim brought under summary procedure on plaint. On the available evidence I would have awarded the stated sum with costs as prayed in the plaint. Finally judgment will be entered in favour of the defendant on the counter-claim in the sum of shillings

five million for breach of contract. The sum will carry interest 276 as pleaded from the date of this judgment till payment in full. There will be taxed costs of the section to the defendant. The plaintiff's suit stand dismissed with costs for the reasons I have endeavoured to state.

For the plaintiff:
Information not available

For the defendant:
Information not available

Nantongo v Kayondo
[1990–1994] 1 EA 454 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	18 October 1994
Case Number:	1/94
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica
Appeal from:	

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[1] Civil procedure – Granting of temporary injunction – Conditions to grant of temporary injunction – Undertaking to damages.

[2] Land – Registered interest – Effect of leasehold interest.

Editor's Summary

The respondent had negotiated to buy Kibuga Block 7 plot number 67 at Ndeba from a Segujja who had executed a transfer. However, when the respondent sought to register it, he found a *caveat* lodged on the title of the land by the appellant, allegedly because she had a separate agreement to buy the same land from Segujja. A transfer to this effect had been executed but not yet registered.

Later, the appellant obtained a lease over the land giving her the right to enter the land and make building developments, and an extension of the *caveat.*

The respondent sued the appellant to secure the title to the land and obtained an injunction preventing the appellant from encroaching or developing the suit premises.

The appellant appealed.

Held – The appellant has a registered lease and must be allowed to continue occupying the land and developing it. She cannot be denied the right to her lease unless it is set aside. The operation of the lease sidesteps the dispute as to which of the parties purchased the land.

Since the respondent has not attempted to defeat the leasehold title, no injunction could or should have been granted.

When granting an injunction, the Court should make provision requiring the plaintiff to prosecute his case within a reasonable period, subject to the Court's further orders. It is also essential to require the plaintiff to enter into an undertaking as to damages in the event he fails to establish his claim. *Mayers v Akira Branch (number 2)* EA 347 followed.

Appeal allowed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Mayers v Akira Branch (number 2) [1972] EA 347 – **F**

Judgment

Manyindo DCJ, Odoki And Platt JJSC: At the hearing of this appeal, the conclusion reached was that the appeal should be allowed, and the interim injunction should be discharged, with costs in the Supreme Court and High Court. The Court announced that it would give its reasons later and these are the reasons for the orders given.

The plaintiff Kayondo had sued the defendant Resty Nantongo, hoping to secure the title to land, known as Kibuga block 7 plot number 67 at Ndeeba. Both the plaintiff Kayondo and the defendant Resty had negotiated for the purchase of this land. Kayondo had entered into an agreement to buy the land and the owner Segujja had executed a transfer, which Kayondo presented for registration on 26 August 1993. But registration was not possible because by this time the defendant.

Resty had lodged a caveat on the title to this land, because she had entered into an agreement on 30 July 1993 to buy the land from the owner Segujja. A transfer was executed but not registered. So the situation was that both Kayondo and Resty were hoping to buy the land, and neither had registered title.

However by what appears to have been a very astute move, Resty obtained a lease of the land registered on 10 September 1993. Hence, however finally obtained the reversion in the year 2006 was immaterial to the present dispute, because Resty had a registered interest in the land. The lease gave Resty the right to enter the land and make such building developments as the lease allowed. Moreover another judge of the High Court extended the caveat.

In these circumstances, it is surprising that the learned Judge granted the plaintiff Kayondo the injunctions he had sought; namely, that Resty should be restrained from encroaching upon the said premises (presumably) that denied her right to enter upon the land); and secondly, Resty was not permitted to carry out any developments upon the land. Resty was granted permission to build upon the land by the Kampala City Council on 1 November 1993.

The salient feature of this matter is that Resty has a registered lease and permission to build. That ensures that Resty must be allowed to continue to occupy the land and develop it. It is her risk if after the lease has come to and end, she has not acquired full title to the property. But she cannot be denied the right to her lease, unless the lease is set aside for some reason. It is a registered interest, indeed, the only registered interest held by these parties.

In his ruling, the learned Judge discussed the dispute concerning the purchase of the land. But he made no mention of the lease. That is the burden of this

appeal. Counsel for the plaintiff has not entered a reply challenging the validity of the lease. In his reply to the defendant's argument opposing the injunction application, the plaintiff's counsel noted that the lease had been registered on 10 September 1993. But for some reason which was not explained, it appears that counsel argued that the submission of the plaintiff's executed transfer must have priority over the defendant's claims. As no objection has been taken to the lease, it must be acknowledged and given its proper weight. The operation of the lease side-steps the dispute as to which of these parties purchased the land. The present position is that as stated in *Halsbury's Laws of England* (3ed) Volume 21 at 366:

> "When the application is to restrain the exercise of an alleged right, the plaintiff should show that there are substantial grounds for doubting the existence of the right. It requires a very strong case indeed to induce the Court to interfere with the admitted right upon an alleged equity."

The plaintiff was unable to show such a strong case as is referred to in the above quotation.

It is not necessary therefore, to seek the balance of convenience in this case. It is simply a case where the plaintiff has not attempted to defeat the leasehold title, and consequently, no injunction could or should have been granted. The plaintiff could not succeed in preventing the defendant entering into possession, on the evidence before the Court. In the result, the appeal had to be allowed.

We would like, however, to point out that in granting a temporary injunction, it is a wise precaution to make some provision requiring the plaintiff to prosecute his case within a reasonable period, subject to the Courts further orders. It might be suitable to limit the injunction to three or four months. Secondly, it is essential to require the plaintiff to enter into an undertaking as to damage in the event that he fails to establish his claim. See *Mayers v Akira Branch (number 2)* [1972] EA 347, 350. The wisdom of these orders is obvious. They tend to prevent abuse of the process of the Court.

For the appellant:
Information not available

For the respondent:
Information not available

Ngare v Kwale Saw Mills
[1990–1994] 1 EA 456 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	29 January 1992
Case Number:	[1991] 2 Kar; 90/91
Before:	Hancox CJ, Kwach and Cockar JJA
Sourced by:	KAR
Appeal from:	

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[1] Master and servant – Turnboy being carried in lorry – Left eye injured by branch of tree at side of track – Disobedience to instructions not to open passenger's window – Whether employer liable in negligence – Whether employee contributory negligent – Whether appellate Court should reverse

judge's findings of fact – Section 25(1)(i) – Workmen's Compensation Act (Chapter 236) – Section 4(1) – Law Reform Act (Chapter 26).

Editor's Summary

The plaintiff was being carried as a turnboy in his employer's lorry which was travelling on a forest road for the purpose of collecting logs for their saw mills. Although he maintained at one stage that he was sitting in the centre of the cab next to the driver, the judge disbelieved this and found he was sitting on the near side with the passenger's window open. The driver had previously instructed him to keep the window closed. The plaintiff alleged that the driver was swerving from side to side of the track so as to avoid the potholes when a branch from one of the overhanging trees struck him in the left eye. The medical evidence was that though the plaintiff could still distinguish objects close to the eye, he had, to all intents and purposes, lost the sight of that eye, which was equivalent to a 30% loss of total sight.

The judge held that the driver was not negligent in causing the injury to the plaintiff and dismissed the claim. The plaintiff appealed, contended that at the very least there should have been a finding of negligence against the driver (even though the plaintiff may have been contributorily negligent) on the basis that he was under a duty to take reasonable care for the safety of his passenger, especially if he knew that the window was open.

Held – The test relating to primary and contributory negligence respectively were different, the former depending on the breach of a man's duty to others, and the latter being dependent on a man's carelessness in looking after his own safety.

The judge's findings of fact were based on evidence received at the hearing and there were no grounds for reversing them (*Bunde Marube v Nyamuro* [1983] 1 KAR 108 distinguished).

The evidence showed that the driver was not negligent and as there was no finding of primary negligence then there was no negligence to which the plaintiff's own negligence (if established) could be contributory.

Appeal dismissed.

Case referred to in the judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bundi Marube v Nyamuro [1983] 1 KAR 108 – **D**

United Kingdom

Davies v Swan Motor Company (Swansea) Limited [1949] 1 All ER 620, [1949] 2 KB 291

Froom v Butcher [1976] QB 286, [1975] RTR 518

Jones v Livox Quarries Limited [1952] 2 QB 608

Overseas Tankship (UK) Limited v Morts Dock and Engineering Company Limited, The Wagon Mound [1961] 1 All ER 404

Judgment

Hancox CJ: On 8 September 1986 the appellant (and former plaintiff) sustained injury to his left eye while he was being carried as a turnboy in the respondent's lorry in the course of his employment. The journey that he, the driver and one Katana were making was for the purpose of inspecting the route through the forest near Gede in which they were intending to collect logs for the respondent's saw mills.

At about 2pm a branch from a tree struck the appellant in his left eye and caused injury as described by Dr KL Ved in his report dated 26 may 1987, which he assessed at a loss of sight of 30%, or equivalent to the total loss of one eye. The subsequent report, in November 1990, appears to show a slight improvement but the disability remains at 30%. For this the judge assessed the damages he would have awarded at KShs 443 540 had he found the respondent liable. The appellant admittedly received KShs 21 384 (not KShs 22 770) under the Workmen's Compensation Act (Chapter 236) which would have been deducted from any damages recovered by the appellant.

Unfortunately for him, the appellant did not receive any damages, for the judge held that the respondent's driver was not negligent, and he consequently dismissed the suit, humanely refraining from ordering the appellant to pay all the costs.

The judge made the following findings of fact; that the appellant was being carried in the lorry in the course of his employment; that he was sitting on the extreme left in the cab, against the passenger's door and not (as he had claimed) in the middle between the driver, Mohamed Ali Mwazaro and the loader, Katana; that Mohamed told the appellant not to open the window; that the appellant nonetheless did so; that the driver had to proceed slowly because of the bumps and potholes in the road, causing him to swerve so as to avoid damaging the lorry, (despite the fact that the loader said the driver did not swerve); and that had the window remained closed the accident probably would not have happened.

In essence Mr *Pandya*, on behalf of the appellant, did not challenge any of these findings of fact. Indeed, he said he accepted that his client was not sitting in the centre of the cab. One is tempted to observe that he could do little else than accept it because otherwise the injury would have been unexplainable except, perhaps, on the basis that the person in the nearside seat was also injured. So Mr *Pandya* was driven to relying on the authorities which he produced which related to apportionment of liability, or as it is otherwise called, contributory negligence, which has to be quantitatively assessed and the damages reduced accordingly under section 4(1) of the Law Reform Act (Chapter 26).

This is in line with the corresponding United Kingdom legislation. What, in effect, Mr *Pandya* was submitting to us was that, at very least, primary liability should have been found against the respondent and that the damages should have been reduced *pro tanto* according to the appellant's negligence. But it must be remembered, as Lord Denning said in *Froom v Butcher* [1976] QB 286; [1975] RTR 518, primary and contributory negligence are two different animals:

> "Negligence depends on a breach of duty, whereas contributory negligence does not. Negligence is a man's carelessness in breach of duty to others. Contributory negligence is a man's carelessness in looking after his own safety. He is guilty of contributory

> negligence if he ought reasonably to have foreseen that, if he did not act as a reasonable prudent man, he might be hurt himself: See *Jones v Livox Quarries Limited* [1952] 2 QB 608."

This was in amplification of that which he had earlier said in *Davies v Swan Motor Company (Swansea) Limited* [1949] 1 All ER 620 at 624 and 632. See also the extracts from Canadian Negligence Law included in the bundle of authorities. Mr *Pandya* also submitted that the judge had, in stating that driver's duty was to avoid doing damage to the lorry, lost sight of the fact that he was obliged also to take reasonable care for the safety of his passengers, especially if he knew that the appellant had opened the window.

For myself, I accept the statements of the law, of the principles and the authorities which Mr *Pandya* made and cited regarding the apportionment of liability. But I cannot, with the greatest possible respect, see that the judge erred in his findings that the driver was not guilty of negligence. It was based on his findings as to the primary facts which were not substantially, or at any rate not successfully, challenged either in the High Court or in this Court. Once the judge decided that the driver was not negligent, no question of contributory negligence arose. Obviously, the negligence of the appellant was the cause of the injury; he was the author of his own misfortune. But that negligence stood by itself. It was not contributory to any other negligence because, as the High Court held, and in my view rightly held, in an admirable judgment, there was no primary negligence.

Finally, Mr *Pandya* said that the judge erred in following the *Wagon Moud* [1961] 1 All ER 404. But I do not think that, by quoting an extract from it, he can be said to be guilty of following that authority, which was a case concerning remoteness of damage, the facts of which were entirely different. A spillage of oil, thought not to be, but which was in fact, inflammable had occurred due to the negligence of the employees of the charterers of the Wagon Mound and had spread across the water and under the respondent's wharf. While they were engaging in an oxy-acetylene process, molten metal fell from the wharf and ignited the oil. The Privy Council held that the appellants were not negligent on the reasonable foreseeability test. If the learned Judge wished to quote from that as regards liability in negligence and the burden of proof then I would be the last to say that he was wrong in that context. Indeed, I think it was a correct statement as far as primary liability for negligence is concerned. I sympathise with the plaintiff in his unfortunate injury, but that is a different thing altogether from saying that someone else is to blame for it.

I would, finally, observe that if we were to overturn the learned Judge's conclusion it would be necessary to reverse his findings of fact, which have been accepted. As we said in *Bundi Marube v Nyamuro* [1983] 1 KAR 108 a Court of Appeal should not do this lightly and we only did so in that case because there was a misdirection in law regarding the necessity for corroboration of certain eye witnesses' evidence, when they did not require such corroboration.

In the result, for myself, I accept Mrs *Adogo*'s submissions, and I think that this appeal should be dismissed with costs. As Kwach and Cockar JJA agree it is so ordered.

Kwach and Cockar JJA concurred in the judgment of Hancox CJ.

For the appellant:
KM Pandya

For the respondent:
JM Adogo

Ngei v Official Receiver
[1990–1994] 1 EA 460 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	6 July 1990
Case Number:	74/90
Before:	Nyarangi, Gicheru and Kwach JJA
Sourced by:	LawAfrica
Appeal from:	

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[1] Appeal – Stay of execution of receiving order pending appeal.

[2] Bankruptcy – Application for stay – Power of official receiver.

Editor's Summary

The applicant was adjudicated bankrupt on 14 June 1990, pursuant to section 20 of the Bankruptcy Act (Chapter 53). His property therefore became divisible among his creditors and was vested in the Public Trustee.

The applicant appealed for a stay of execution pending the determination of the intended appeal, arguing that two of his main creditors did not have any court judgment against him, and that he had paid part of the debt.

Held – In an application for a stay of bankruptcy order, the main purpose is to preserve the subject matter and safeguard the applicant's rights. (*Gheewala v Aruna Gheewala and others* civil application number 127 of 1986 (UR), *Paul Chege v Suleiman* civil application number 103 of 1988 (UR) and *Patricia Scott and Another v Gaturu Kago and others* civil application number 105 of 1987 (UR) followed).

Application allowed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Gheewala v Aruna Gheewala and others civil application number 127 of 1986 (UR) – **F**

Giella v Cassman Brown and Co Limited [1973] EA 358

Patricia Scott and another v Gaturu Kago and others civil application number 105 of 1987 (UR) – **F**

Paul Chege v Suleiman civil application number 103 of 1988 (UR) – **F**

Ruling

Nyarangi, Gicheru and Kwach JJA: This notice of motion under rule 5(2)(*b*) of the rules of this Court for an order of stay pending the hearing and

determination of the intended appeal arises from an adjudication of bankruptcy ordered in respect of Paul Joseph Ngei, the applicant on 14 June 1990 pursuant to section 20 of the Bankruptcy Act (Chapter 53). Upon such adjudication, the property of the applicant becomes divisible among his creditors and vests in the Public Trustee.

The applicant lodged a notice of appeal in accordance with rule 74 and the Official Receiver *gazetted* the adjudication on 18 June 1990.

In a supporting affidavit tile applicant clearly depones *inter alia* that of the alleged total indebtedness of KShs 37 566 388 Continental Credit Finance Co Ltd and Pan Africa Credit Finance are together claiming KShs 36 million notwithstanding that neither firm has obtained a judgment against the applicant. The point is made by the applicant that the proofs admitted by the Official Receiver are insufficient and also that prior to the adjudication, he had paid a sum of KShs 117 000 to the Official Receiver a matter that the Official Receiver did not disclose to the superior Court on the day when the adjudication was made.

The intended appeal cannot be said at this stage to be obviously without or frivolous. The points of facts and law adumbrated by counsel for the applicant suggest that the foundation of the applicant's case is the submission that the applicant was not given a fair hearing.

In our judgment in all the circumstances of this matter, there can be question of order of stay inflicting more hardship than it could avoid. There is thus no basis for treating the instant application as an exception from the usual practice of this Court. We would emphasise that the decision in *Giella v Cassman Brown and Co Limited* [1973] EA 358 has no relevance to an application such as this one.

There remains the applicant's serious suggestion that the property belonging to which the Official Receiver has impounded ought to be returned to him. Shortly, the applicant's ground for so suggesting is his fear that the property will deteriorate in the possession of the Official Receiver. There is in our judgment, no valid ground for any criticism of the Official Receiver's handling of the applicant's property now under his care. Let us therefore say at once that we resist and reject this particular plea of the applicant. We feel no doubt that the Official Receiver will take the greatest possible care of the applicant's property pending the final determination of the intended appeal. None of that property shall be distributed to the creditors. None of it shall be sold during the pendency of the appeal. As to the Parliamentary Seat, the position is clearly stated in section 3 of the National Assembly (Powers and Priviledges) Act (Chapter 6). The adjudication, subject matter of the intended appeal shall not have effect for the purposes of section 30 of the Constitution of Kenya until the final determination of the appeal.

At the end of the day, we come to the conclusion that it is right that we would allow the application and direct the Official Receiver to desist from invoking section 20 of the Bankruptcy Act against the appellant's property until the determination of the appeal.

Mr *Mwirichia,* as in duty bound, put before us the contention that having vetted the adjudication, the Official Receiver would be entitled to take possession of the applicant's property and distribute the same to the creditors and such action would render nugatory any success in the intended appeal. We are

informed that the Official Receiver has already taken possession of certain property of the applicant and pressed to order the Official Receiver to return the property to the applicant. Neither the salary nor the rental income due to the applicant is out of reach of the Official Receiver. At one stage Mr *Mwirichia* said the applicant fears that he might lose his parliamentary seat. Then Mr *Mwirichia* raised the other points which will be debated at the hearing of the appeal.

Mr *Mbago* on behalf of the respondent has advanced the argument that the applicant's anxieties were not well founded. Mr *Mbago* asserted that the Official Receiver is staying any action and is not going dispose of the applicant's property by way of sale until the determination of the appeal. Mr *Mbago* maintains that the Official Receiver will impound the applicant's property so as to be sure that the applicant will not dispose of his property before the appeal is heard. There was no denial that the Official Receiver has already seized some of the property including motor vehicles belonging to the applicant.

The undergrowth which surrounds the application is, as we have already pointed out, section 20 of the Bankruptcy Act.

Upon the views which this Court has expressed in the recent past, the purpose of an application such as the present one is to preserve the subject matter in dispute so that the rights of an appellant who is exercising his undoubted right of appeal are safeguarded and the appeal if successful is not rendered nugatory. Cases like *Gheewala v Aruna Gheewala and others* civil application number Nai 127 of 1986 (UR), *Paul Chege v Suleiman* civil application number Nai 103 of 1988 (UR) and *Patricia Scott and another v Gaturu Kago and others* civil application number Nai 105 of 1987 (UR) may be cited in this context. The general principle is thus clear.

One further comment will be made. The Official Receiver shall not impound any more of the applicant's property.

Orders accordingly.

For the applicant:
Mr Mwirichia

For the respondent:
Mr Mbago

Nyamhanga v Republic
[1990–1994] 1 EA 462 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	29 May 1992
Case Number:	55/92
Before:	Nyalali CJ, Ramadhani JA and Mapigano AJA
Sourced by:	LawAfrica
Appeal from:	

[1] Criminal law – Murder – Burden of proof – Date on the charge sheet.

Editor's Summary

The appellant inflicted a grievous wound upon the deceased by means of a panga and eleven days later he died of tetanus. Issue for consideration was whether the deceased's death was brought about by the wound or whether his death was only hastened by the wound.

Held – The court was not convinced beyond reasonable doubt that the wound by the appellant caused tetanus.

The date of the charge sheet ought to be the date of the unlawful act rather than the date of death (*R v Lujo s/o Mgomba* (1946) 13 EACA 156 followed).

Appellant's conviction of murder and sentence of death replaced with offence of causing grievous harm and imprisonment of six years respectively.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Republic v Lujo s/o Mgomba (1946) 13 EACA 156 – **F**

Judgment

Ramadhani JA: It has never been in dispute both in the High Court of Tanzania at Musoma (Masancho J) and before us that the deceased, Sekoture s/o Chacha, died because of tetanus and that the appellant, Mwita Nyamhanga, had on 14 April 1986 inflicted a grievous cut wound on the deceased by means of a panga. Equally it is settled that the deceased met his untimely death on 25 April 1986, that is, some eleven days after the wounding.

The point of serious contention, which has brought the appellant to this Court as it was eloquently canvassed for him by Mr *Rugarabamu*, learned advocate, was whether tetanus was brought about by the would inflicted by the appellant or that death was hastened by that wound.

The post-mortem report (exhibit P1) merely said that the cause of death was "respiratory failure caused by tetanus". Mr *Rugarabamu* said that the report did not give the cause of tetanus and the doctor who preformed the examination was not called to testify. The learned counsel referred us to two medical treatises: *A Text book of Bacteriology* by Fairbrother and Tylor at 367 and *Lecture Notes on Pathology* by Thomson and Cotton at 30. Both of these authorities state that the incubation period for tetanus is a minimum of eight days. Mr *Rugarabamu* pointed out that the eleven days which elapsed between the wounding by the appellant and the death of the deceased is within the span of time of incubation if tetanus had resulted from that wound. However, he argued that the two extracts he had produced do not say what is the maximum incubation period nor do they indicate after how many days from the time of injury or when symptoms have appeared is death likely to result. So, Mr *Rugarabamu* submitted that there is no evidence that the wound hastened the death of the deceased in any way.

For the respondent/Republic was Mr *Malamsha*, learned State Attorney, who conceded the omission pointed out by Mr *Rugarabamu* but made a fervent prayer that we exercise our powers under section 4(2) of the appellant Jurisdiction Act, 1979 and do what the High Court could have done, that is call the author of the post-mortem report to testify or order the High Court to hear him on that point.

Mr *Rugarabamu* objected to that prayer but conceded that this Court could do that *suo motu*. Alternatively, Mr *Rugarabamu* agreed that the appellant could be found guilty causing grievous harm clause 225 of the Penal Code.

We agree with Mr *Rugarabamu* that we cannot say beyond reasonable doubt that the wound by the appellant caused tetanus. There is evidence that the deceased had fever before the attack by the appellant. We do not know what caused that fever.

We toyed with the idea of taking additional evidence but decide against it. We are a shade unsure of its usefulness. We do not know whether the medical officer who performed the examination could, if recalled, be able to know when the deceased showed the symptoms of tetanus and give his opinion as to whether that tetanus could or could not have been caused by the wound inflicted by the appellant. This is taking into account that it is six years now since the examination was done. We are also aware of the fact that the appellant has been under the gloom of uncertain fate for the same length of time. We felt that we should not prolong his ordeal. So we quash the conviction of murder and set aside the sentence of death. We find him, instead, to be guilty of causing grievous harm clause 225 of the Penal Code and sentence him to imprisonment for a term of six years.

We have one small but vital remark to make. The information contained the following particulars of offence:

> "Mwita son of Nyamhanga on or about the 25 April 1986 at Nyarwana Village, in the District of Tarime in Mara Region, murdered one Sekoture son of Chacha."

Now, 25 April 1986 was the date the deceased died but that was not the date when the appellant inflicted the injury on the deceased. That was 14 April 1986, as already said. It has been established long time ago by *Republic v Lujo s/o Mgomba* (1946) 13 EACA 156 that the date of the charge is that of the unlawful act and not that of the death. We wish to remind these responsible for filing information about this requirement.

The appeal is allowed to the extent explained above.

For the appellant:
Mr Rugarabamu

For the respondent:
Mr Malamsha

Nyamogo and another v Kenya Posts and Telecommunication Corporation
[1990–1994] 1 EA 464 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	13 January 1994
Case Number:	264/93
Before:	Cockar, Omolo and Tunoi JJA
Sourced by:	LawAfrica
Appeal from:	

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[1] Civil procedure – Services of court order – Law regarding services of a court order – Effects of failure to indorse the penal consequences on the order served.

Editor's Summary

On 8 October 1993 the Court of Appeal made an order restraining the respondent corporation from retiring the two applicants from its services or otherwise interfering with their employment until the hearing and final determination of their intended appeal or further order.

On the strength of the order the first applicant reported on duty but was not allowed to resume his normal duties. The applicants through their advocates filed a notice of motion under a certificate of urgency seeking an order for committal to prison of the corporation officials.

The corporation opposed the motion on three grounds: that there was no service of the order; that neither the order nor the notice of motion nor any of the notice of motion nor any other notices in connection therewith that was served carried an indorsements of penal obligation or consequences and the order in question was not capable of being enforced or being complied with.

Held – The law on the question of service of order stresses the necessity of personal service in *Halsbury's Laws of England* (4ed) Volume 9 at 37 paragraph 6 it is stated:

> "61 Necessity of personal services as a general rule, no order of the Court requiring a person to do or abstain from doing the act in question may be enforced unless a copy of the order has been served personally on the person required to do or abstain from doing the act in question . . . where the order is made against a company, the order may only be enforced against an officer of the company if this particular officer has been served personally with the copy of the order . . ."

Absence of a return of service by the person who affected service, there is no evidence as to whether he is an authorised process server, is enough to render service of no effect.

Section 5 of the Judicature Act has given this course the same power to punish for contempt of court as is for the time being possed by the High Court of Justice in England. The relevant procedural obligation is succincitly stated in Order 45, rule 7/5 of the Rules of Supreme Court of 1982ed as follows:

> "It is a necessary condition for the enforcement of a judgment or order under rule 5 by way of sequestration or committal. That the copy of the judgment or order served under this rule should have the requisites penal notice indorsed thereon."

It is clear that the law in England does not render Amers knowledge of all the terms and directions of the court order and a disobedience thereof by an alleged contemner as being enough to commit him for contempt. A further essential step is needed to be taken in this shape of indorsement of the penal consequence on the order served on the alleged contemnor.

The consequences of a finding of disobedience being penal, the party who calls upon the Court to make such a finding must show that he himself complied strictly with the procedural requirements and his failure to comply cannot be answered by merely saying that the other side was aware or ought to have been aware of that the order required him to do.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Makokha and others v University of Nairobi and others [1994] LLR 339 (CAK)

Nyamogo and another v Kenya Posts Telecommunications Corporation [1993] LLR 2152 (CAK)

Refrigerator and Kitchen Utensils Ltd v Shah and others [1990] LLR 294 (CAK)

Wang'ondu v Nairobi City Commission [1988] LLR 1919 (CAK)

Ruling

Cockar, Omolo and Tunoi JJA: On 8 October 1993, this Court, comprised of a different bench, made an order (hereafter referred to as the order) restraining the respondent corporation from retiring the two applicants from its service or otherwise interfering with their employment until the hearing and final determination of their intended appeal or further order.

The second part of the order is not relevant to these contempt proceedings because this Court's order restraining the corporation from evicting the two applicants from the Post Office staff quarters occupied by either until the final determination was complied with and both the applicants are still in occupation of the said Post office staff quarters.

On 28 October 1993, Messrs Khaminwa and Khaminwa, advocates filed on behalf of the two applicants, a notice of motion under a certificate of urgency seeking an order for committal to prison of the then corporation's managing director Mr Ngeny, the corporation secretary Mr David Malakwen, and the Acting General Manager (Business studies) Mr Fredrick Odhiambo Josiah on grounds that they were refusing to obey the court order. There was only one accompanying affidavit in support and that was by Mr Nyamogo, the first applicant. The detailed acts of refusal are deponed to therein. What in effect they amount to is that the first applicant on advice of his advocates reported on duty on 12 October 1993, but was not allowed to resume his normal duties by his immediate controlling officer the said Mr Josiah and in consequence he was being kept unemployed. On 25 October 1993, at about 2:10pm the said Mr Josiah had confirmed to him that a process server had been in his office with a formal order in the morning and that he had told the process server that he did not deal with court documents.

The motion was fixed for hearing on 17 November 1993, but on account of some confusion of the hearing date on the part of the corporation's advocates the hearing could not proceed on that date. The motion was then fixed for hearing for 1 December 1993. A day before that, that is on 30 November 1993, under some procedure unknown to this Court but perhaps known only to M/s Khaminwa and Khaminwa, which was not disclosed to us, an affidavit sworn by the second applicant on the same day was filed. Perhaps it was supposed to be his affidavit in support of the motion but in a case of such an omission there is a proper procedure to bring an omitted document into the file. On 1 December 1993, when the hearing started Mr Khaminwa made an oral application for the motion to be heard by the same bench which had granted the order. Lengthy submissions by advocates on both sides were made and on 15 December 1993, we delivered out ruling rejecting the application. At the same time we ordered for the hearing to be fixed during the civil sessions in the new term. Thereafter instead of fixing the hearing date on this motion which had been filed under a certificat of urgency, Messrs Khaminwa and Khaminwa, fixed it for mention on 5 October 1994. which was almost a year after the filing of this application. At the insistence of Mr *Lakha* who was the leading advocate for the corporation the Court then fixed the hearing for 31 October 1994.

When the hearing started on 31 October 1994, Mr Khaminwa first made an application for two of the three Judges who constituted the bench to disqualify themselves on the ground that the said two judges were part of the "five judge" bench who had dealt with the University Don's appeal and in which the five

judge bench, after commenting 'that the decision in Nyamogo application (which is the basis of the instant application) was a pious farce, had found that the same was clearly wrong and should not be followed. Mr Khaminwa feared that the said two judges would not approach the contempt application with fresh or unbiased minds. Somewhat lengthy submissions from advocates for both parties followed. Thereafter this Court gave its ruling dismissing the application calling for the said two judges to disqualify themselves.

Mr *Khaminwa*'s main contention in support of his application for committal was that, despite the decision of the five judge bench in the University Don's case to the effect that the decision in Nyamogo's case was wrong and not to be followed, the injunctive order made by this Court on 8 October 1993, was vibrant and lawfully entitled to obedience by those against whom it was directed. The decision in the University Don's case had neither discharged the said order of 8 October 1993, nor affected it in any derogatory manner at all. In a partial compliance with the first part of the order the applicants had been paid salaries for 3 months of April, May, and June 1993. But the applicants had been kept out of their office rooms and were not being allowed to work at all. Mr Khaminwa very strongly urged for the said three officials of the corporation to be punished for contempt.

Mr *Lakha* addressed us on three points in response to Mr Khaminwa's submissions:

"1. There was no evidence of service of the order.

2. Neither the order nor the notice of motion nor any other notice in connection therewith that was served carried on an indorsement of Penal obligation or consequence.

3. The order in question was not capable of being enforced or being complied with."

With regard to absence of evidence of, service of the order it is not disputed that no evidence to that effect is annexed to the affidavits in support of the motion. That omission in view of the position in law to which we will revert in due course was fatal but, despite Mr *Lakha*'s objection and in the interests of justice, we received the original documents proffered by Mr *Nowrojee* during the hearing on behalf of the applicants, as evidence relating to the service of the order that was effected on the said officials.

These documents consist of the following:

"1. Two copies of the order dated 8 October 1993, and extracted on October 1993.

2. Two copies of a notice dated 27 October 1993, addressed to the respondents to the effect that it was intended to make an application to the Court of Appeal under the provisions of section 5 of the Judicature Act for them to show cause why they should not be punished for contempt of the Court of Appeal for refusing to obey the orders of' the said court. There was an indorsement on either notice that it was to be served upon M/s Wetangula and Company Advocates.

3. Two copies of the letter dated 27 October 1993, from the offices of M/s Khaminwa and Khaminwa, advocates addressed to the three respondents, and copied to M/s Wetangula and Company, forwarding the above notice."

The law on the question of service of order stresses the necessity of personal service In *Halsbury's Laws of England* (4ed) Volume 9 at 37 paragraph 61 it is stated:

"61. *Necessity of Personal Service.* As a general rule, no order of court requiring a person to do or abstain from doing any act may be enforced unless a copy of the

> order has been served personally on the person required to do or abstain from doing the act in question …Where the order is made against a company, the order may only be enforced against an officer of the company if this particular officer has been served personally with a copy of the order . . .”

Keeping the importance of personal service of the order in mind we now take a look at the aforesaid two copies of the order both of which bear the stamp of Wetangula and Co., advocates, in acknowledgement of receipt of the said orders. Service on Wetangula and Company does not constitute personal service on any of the three officers. It is a personal service on each one of them that is required to be effected by law. Service of the two orders on Wetangula and Company Advocates, on 25 November 1993, and 1 November 1993, therefore, is a wasted effort.

Of these two orders only one bears the office stamp of the office of the corporation’s secretary and the signature of Mr Malakwen, the corporation Secretary. There is no evidence of the person who served Mr Malakwen on 3 November 1993. It is to be observed that application for committal to prison was filed on 28 October 1993 – 6 days before the purported service of the order. Absence of a return of service by the person who effected service – there is no evidence as to whether he was an authorised process server, is enough to render service of the order on 3 November 1993, of no effect. However, in his replying affidavit sworn on 16 November 1993, and filed on the same day Mr Malakwen states and we quote:

> “I have now seen the notice of motion dated 28 October 1993, and an affidavit sworn by one Mr Nyamodi Ochieng Nyamogo annexed thereto.”

So even if we accept that Mr Malakwen was served with the order on 3 November 1993, is that service of any legal effect as far as those committal proceedings filed on 28 October 1993, that is 6 days prior to service of the order, are concerned? We are satisfied that for the purposes of the committal proceedings filed on 28 October 1993, praying for Mr Malakwen to be committed to prison forcontempt of the order which was served on him 6 days later was of no legal effect. How can this Court in this application filed on 28 October 1993, find Mr Malakwen guilty of contempt of an order which had not been served on him prior to the filing of the application? We are satisfied that Mr Malakwen was not served with the order in such a manner as would render him subject to committal order prayed in the committal proceedings filed on 28 October, 1993.

Coming now to the question of service of the order on Mr Fredrick Odhiambo Josiah, apart from the absence of a return of service made by the process server, there is no evidence on either of the two copies of the order that either of them was on him or received by him. Mr Josiah in his replying affidavit sworn on 16 November 1993, and filed on the same day has stated that he was never served with any court order or at all in regard to this matter. Likewise there is nothing to show on either of the 2 copies of the order that either of the two was served on Mr Ngeny, the then managing director of the corporation, nor is there any return of service to show that Mr Ngeny was served with the order. We are satisfied that neither Mr Ngeny nor Mr Josiah was served at all with order either prior to or after the filing of the application of these committal proceedings. This application as far as these two are concerned must be dismissed on the ground of lack of service. With regard to

service on Mr Malakwen, in our view, this application is incompetent and must be struck out on the ground that at the time when the application was filed Mr Malakwen had not been served with the order which it is claimed therein he had disobeyed.

Apart from this non-compliance with an elementary but mandatory procedural rule which in contempt proceedings has prescribed "personal service", Mr *Lakha* pointed out other flaws to which we will now turn our attention. He referred to the order and also to the application itself and pointed out the absence of a notice in the form of an indorsement thereon of penal consequences. It is not disputed that the copies of the order alleged to have been served on the three alleged contemnors and handed in by Mr *Nowrojee* during the hearing (instead of having been annexed to the application) do not bear any such indorsement of penal consequence. Section 5(1) of the Judicature Act has given this Court the same power to punish for contempt of court as is for the time being possessed by the High Court of Justice in England. In England rule 5 of Order 45 of the Rules of Supreme Court (1982ed), governs the method of the enforcement by the Court of its judgments or orders in circumstances amounting to contempt of court (at 766). Order 45, rule 7 deals with matters relating to "Service of copy of judgment, etc, pre-requisite to enforcement under rule 5. The underlining is ours. The relevant procedural obligation is succinctly stated in Order 45, rule 7/5 of the Rules of Supreme Court of 1982 ed as follows:

> "It is a necessary condition for the enforcement of a judgment or order under rule 5 by way of sequestration or committal, that the copy of the judgment or order served under this Rule should have the requisite penal notice indorsed thereon."

And a couple of paragraphs later is given the form that an indorsement is required to take, in the following words in the case of a judgment or order requiring a person to abstain from doing an act:

> "If you, the within named AB disobey this judgment (or order) you will be liable to process of execution for the purpose of compelling you to obey the same."

A similar form with suitable alterations is given in the case of an order against a corporation.

This court in Court of Appeal *Wang'ondu v Nairobi City Commission* [1988] LLR 1919 (CAK) confirmed the mandatory nature of the requirement of indorsement of notice of penal consequence on the order in the following words:

> "In the present case, according to the affidavit of the appellant sworn on 26 January 1988, in support of his application, the order alleged to have been disobeyed by the respondent was served on the respondent on 31 August 1987, and a copy of that order which was annexed to the affidavit did not carry a notice of the penal consequences of disobedience as required by the rules. It is clear from this that the appellant did not comply with the mandatory provisions of section 5(1) of the Judicature Act with the result that his application was incompetent. It must follow that there was no valid application for contempt of Court before the judge."

Mr *Nowrojee* for the applicants referred us to the later decision of this Court in *Refrigerator and Kitchen Utensils Ltd v Shah and others* [1990] LLR 294 (CAK). Incidentally two of the judges of appeal who were in the bench which dealt with Shah's contempt application were also in the bench which had earlier heard Wangondu's appeal. In *Shahs*' case (*supra*) the Court on 23 May 1990, granted an interim order staying execution of the order of eviction pending

hearing of the application *inter partes* on Friday 25 May 1990 at 9am. As the hearing of the application was not concluded on 25 May 1990, the interim order was extended until the final disposal of the application. The matter came up for mention on 8 June 1990, and stay order was extended "until further order of this Court." On each of the above occasions when the stay order was first made and subsequently extended from time to time the advocates for the respondents (contemnors) were present. It is, however, not clear whether the respondents (contemnors) were or any of them was present in Court on any of these occasions. But it was never suggested by their advocates that the contemnors were unaware of what they were required or expected to do under the terms of the order. When non-compliance with the mandatory requirement of indorsement of penal consequence on the order was pointed out to the Court the learned Judges of appeal after accepting the law on the question as laid down in the case of *Wangondu* (*supra*) continued:

> "That is the law but the short answer to Mr Hira's submission on this precise point is that when the application came up for the first time on 5 July 1990, and it was discovered by the Court upon inquiry that the respondents had only been served once with the original order, the Court adjourned the proceedings and made an order that a certified copy of the order be served a second time on each and every respondent. Service was effected accordingly and returns of service have been filed in Court. In view of this neither the respondents nor their advocates can be heard to say that they were unaware that an application was being made for their committal for disobedience of the Court order. This submission which was also adopted by Mr Ransley on behalf of Mrs Khanna has therefore no substance."

The circumstances in *Shah*'s case may or may not be different from those existing in *Wangondu*'s case. But with respect to the decision in *Shahs*' case we prefer to follow the decision in *Wangondu*'s case because it has followed the English law and procedure on the issue. It is clear that the law in England does not render a mere knowledge of all the terms and directions of the court order and a disobedience thereof by an alleged contemnor as being enough to commit him for contempt. A further essential step is needed to be taken in the shape of indorsement of the penal consequence on the order served on the alleged contemnor. That is what this Court held in its decision in *Wangondu*'s case and that it what we now hold.

The learned Judges in *Shahs*' case appear to have been concerned only with service of the order upon the Shahs. They did not refer at all to the issue of what type of order had been served on them ie whether the order contained the necessary indorsement of penal consequences. With respect this issue could not be overcome by simply stating that the Shahs were aware of what the order required them to do. *Wangondu*'s case decided by the same court had correctly set out the requisite procedural steps to be taken before a party could be called upon to answer a charge of disobedience of a course's order. The consequences of a finding of disobedience being penal, the party who calls upon the Court to make such a finding must show that he has himself complied strictly with the procedural requirements and his failure to so comply cannot be answered by merely saying that the other side was aware or ought to have been aware of what the order required him to do. It is for these reasons that we would prefer *Wangondu*'s case over the *Shahs*' case. As the copies of the orders produced before us are not so indorsed as required under the mandatory provisions of section 5(1) of the Judicature Act (Chapter 8) this application is incompetent and deserves to be dismissed on this account also.

On the issue of the order not being capable of enforcement it is to be noted that the order was granted on 8 October 1993. In paragraphs 2 and 3 of the replying affidavit of Mr Josiah, the acting general manager (business studies) sworn on 11 November 1993, and filed on the same day it is deponed that the 1st applicant ceased to be an employee of the corporation on 7 April 1993, and that his office was abolished when he was retired. Mr Malakwen, the corporation secretary, in his replying affidavit sworn on 16 November 1993, and filed on the same day also has deponed to the same effect adding:

1. That the first applicant's previous office was abolished by the Board of the Corporation (paragraph 9).
2. That by 13 April 1993, when the applicants filed the suit there was nothing left to injunct and that the compulsory retirements already effected by the Board were done vide regulations promulgated under Kenya Posts and Telecommunication Corporation Act (Chapter 411) of the Laws of Kenya (paragraphs 11 and 12).
3. That neither the managing director nor he had any authority to override the decision of the board (paragraph 10).

Mr *Nowrojee*'s contention was that the offices of the applicants were not abolished by then. He relied mainly on the fact that the applicants had been paid salaries for the months of April, May and June 1993. In paragraph 11 of his affidavit sworn on 28 October 1993, in support of the application filed on the same date Mr Nyamodi has deponed that he had not been paid salary for the months of August, September and October 1993. That meant that he had been paid up to the end of July 1993. We are unable to attach any value to this as evidence of the offices of the applicants not having been abolished by October 1993. In response to a clarification sought by the Court Mr *Nowrojee* informed us that Amin J had on 13 April 1993, granted an order for status quo to be maintained. It is clear that the salary was continued to be paid on account of that order because on 4 August 1993, Lady Owuor J made an order discharging the injunction that had been granted and dismissed the application that had been filed in the High Court seeking an injunction to restrain the corporation from retiring the applicants. Payment of salary being stopped from August 1993, must have followed the aforesaid decision of Lady Owuor J.

The claim in the, aforementioned two affidavits of Mr Malakwen that the office of the two applicants was abolished on 7 April 1993, is not controverted by any further affidavit evidence on behalf of the applicants. In fact in his affidavit sworn on 30 November 1993, and placed in the file without the Court's leave on the same day, the second applicant has not deponed in any way with regard to this particular deposition that their offices were abolished on 7 April 1993. That being so the order obtained six months later on 8 October 1993, seeking to restrain the corporation is clearly not capable of being enforced. It was conceded on behalf of the applicants that both the applications before the High Court which had been refused and had thereby given rise to the appeal forming the basis of an application before the three judge bench, had sought an injunction to restrain only and not a mandatory injunction for a reinstatement. It is clearly wrong to accuse or punish the officials of the corporation for failing to comply with an order to restrain from retiring six months after the offices had been officially abolished. This notice of motion seeking committal for contempt of this Court's order must fail, on this ground also. In the final analysis this application seeking the three respondents to be committed for contempt of court must fail.

Mr *Lakha* for the respondents has applied for the discharge of the order made by this Court on 8 October 1993), in *Nyamogo and another v Kenya Posts Telecommunications Corporation* [1993] LLR 2152 (CAK) which was the basis for this application. The ruling was discussed at length by the 5 judge bench in the Court of appeal *Makokha and others v University of Nairobi and others* [1994] LLR 339 (CAK). In a unanimous ruling the five judges overruled the in Nyamogo application. They found that a Court of equity would regard the order of 8 October 1993, by the three judge bench in Nyamogo application as a pious farce. Mr *Lakha* contended that the order based on a decision, which has been found to be a wrong decision ought not to be allowed to remain alive and must be discharged immediately to prevent it being put to any further misuse. There was no worthwhile response from the advocates for the applicants. This court obviously has jurisdiction to discharge its own order of injunction or stay. We feel that in order to stop a repetition of a similar application based on that order coming up in future the order must now be discharged. We dismiss the application filed on 28 October 1993, seeking for the committal of the three respondents for contempt of the Court and we also declare the order dated 8 October 1993, granted in civil application number Nai 204 of 1993 to be discharged under rule 56(2) of the Court of Appeal Rules. Costs of this application are awarded to the respondents against the applicants jointly, and severally.

A certified copy of this order shall be placed in the file of civil application number Nai 204 of 1993.

For the appellants:
Mr Nowrojee

For the respondents:
Mr Lakha

Nzaro v Republic
[1990–1994] 1 EA 472 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	22 January 1991
Case Number:	[1991] 2 Kar; 44/87
Before:	Hancox CJ, Gachuhi and Cockar JJA
Sourced by:	LawAfrica
Appeal from:	

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[1] Criminal law – Murder – Evidence of identification by recognition – Two eye witnesses to the attack – Guidelines relating to visual identification – Whether summing up and judgment contained adequate directions as to standard of proof and necessity for caution when accepting visual identification as basis for conviction – Existence of conditions favouring identification – Whether judge placed over-emphasis on relationship between eye-witness and appellant.

Editor's Summary

Early on 12 June 1984 the deceased was accompanying his mother on the way to her shamba. She had a sack of mangoes on her head. She felt the sack being pushed and she was immediately cut about the head with a panga by another of her sons. As she ran he attacked the deceased, inflicting fatal cuts. A worker in a nearby shamba saw the attack and both the mother and he, recognised the

assailant as the appellant, who was duly arrested and charged with murder. The time of the attack was 5:30am when dawn was breaking.

In his summing up to the assessors, all of whom returned opinions of guilty and in his judgment, the judge several times stressed that the relationship of the mother to the appellant rendered it unlikely that there was a mistake in recognition, and therefore in identification. The appellant was convicted and sentenced to death. It was submitted on his behalf in the appeal that because of a prior threat the mother had assumed her son was the attacker without actually seeing him; that the very early morning and the surrounding vegetation rendered conditions for identification difficult; that the ferocity and haste of the attack were such that both the identifying witnesses would only have a brief view of the attacker; and finally that the appellant's conduct afterwards was inconsistent with his guilt.

Held – Before accepting visual identification as a basis for conviction the Court had a duty to warn itself of the inherent dangers of such evidence.

A careful direction regarding the conditions prevailing at the time of the identification and the length of time for which the witness had the accused person under observation, together with the need to exclude the possibility of error, was essential.

The guidelines laid down in *Republic v Turnbull* [1976] 3 All ER 549, were appropriate to the circumstances and inhabitants of Kenya and had been correctly followed in the past by the High Court and the Court of Appeal.

In the instant case it was possible that the judge had over-stressed the relationship of mother and son as excluding the possibility of a mistaken identification, but he had combined with that an extremely careful direction as to the burden of proof and the need for caution as respects visual identification.

The summing up and the judgment, taken as a whole, were exceptional and fair and contained adequate directions as to the essential issue of identification by recognition by both witnesses, and the denial by the defence of the crime, was rightly rejected.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Republic v Turnbull [1976] 3 All ER 549

Judgment

Hancox CJ: The circumstances surrounding the death of the deceased Uhuru Nzaro in respect of which this appeal is brought are singular. The mother of the deceased and of the appellant, Mary Sidi Nzaro, was on her way to her shamba in the early morning of 12 June 1984, closely followed by her son Uhuru who was intending to board a bus in order to go to work at Shimo-la-Tewa. She had a sack of mangoes on her head.

At Mnazini Kwa Noti she felt the sack being pushed and it fell off her head. As it did so a man she recognised as her seventh child started cutting her with a panga. She began to run and the assailant then turned his attention to Uhuru

whom he cut on the head and neck. Mary Sidi cried out “my son you are killing us”. This attracted the attention of Kadzenga Mzungu (PW2), who was gathering makuti in a nearby shamba. Mary Sidi ran away to save herself. Uhuru was later seen lying in a pool of blood and surrounded by a crowd of people, by an administration policeman, Mr Patrick Kitsao (PW4) who gave first aid and caused him to be conveyed to Malindi Hospital where Uhuru later died of his stab wounds. The appellant had gone to the same hospital where he was arrested.

Both Mary Sidi and Kadzenga positively identified the appellant as the assailant. The appellant denied the killing, both in the charge and caution statement made to the police on 17 June 1984, and in his unsworn statement from the dock at his trial. He maintained that he had called at his mother’s house early the same morning but had found her out. On his way to Kilifi Hospital, he met people who said his mother and brother had been cut. He went to Malindi Hospital where his brother was undergoing surgery. Later he was told he was the one who had cut Mary Sidi and her other son, he was arrested and charged with the murder of Uhuru.

The case against the appellant therefore, rested fairly and squarely on recognition of him as the attacker by both witnesses, since Kadzenga also knew the appellant before hand. The learned trial Judge correctly appreciated that this was a case of identification by recognition and directed the assessors and himself accordingly. He relied on the leading case of *Republic v Turnbull* [1976] ER 549, an authority which has been applied in the Kenya courts. The assessors all returned opinions of guilty, a finding which the judge also made, with the result that the appellant was sentenced to death.

Two memoranda of appeal were filed on the appellant’s behalf by separate counsel.

Mr *Kabuki*, appearing on his behalf in this appeal in effect combined both memoranda in his submissions, which, again, were condensed into a single issue of identification. First Mr *Kabuki* submitted the appellant had already threatened that he would kill them and therefore, when Mary Sidi was attacked from the side and cut about the head she immediately assumed that it was the appellant who did this, and that in her frenzy, in the suddenness and ferocity of the attack, she appropriated the appellant in her mind as the author of the attack without actually seeing him perpetrate it. In other words, because of the prior threat, she assumed it was the appellant who attacked herself and the deceased. If that was so, Mr *Kabuki* submitted, then there was no case against his clients based on identification, still less on recognition. This aspect of his submission finds support in this passage from Mary Sidi’s evidence where she said:

> “The person who pushed the sack off my head came from the right side. I then said “my son, you are killing us.”

Secondly, Mr *Kabuki* submitted the conditions for identification were far from ideal. It was, on both witnesses’ evidence, about 5:30am. It can only just have been light, yet neither witness hesitated in her or his identification. Moreover the general atmosphere of haste and excitement, added to the possibility of intervening vegetation rendered conditions for identification even more difficult particularly as, at the time of the attack on him Uhuru was about four metres from Mary Sidi. Additionally, on this aspect, Mr *Kabuki* submitted that it was unlikely Kadzenga was in any better position to make a positive identification as he was 25 meters distant.

Thirdly, Mr *Kabuki* said that the speed of the attack was such that the length of time to enable recognition must have been very short and this coupled with the effect of the wounds and the blood coming from them (a fleeting glance as Lord Widgery said in *Republic v Turnbull*) meant that the appellant should have been given the benefit of the doubt.

Fourthly, Mr *Kabuki* argued that the conduct of the appellant after the attack, inamuch as he went to the hospital and made no attempt to escape, was inconsistent with the actions of a guilty man and the learned Judge had failed to put this to the assessors.

Finally, the judge again and again had stressed the relationship of the mother and son as ensuring the recognition was reliable, and demonstrated that he had approached both the summing up and the judgment with a preconceived notion on the issue.

Very probably the learned Judge was guilty of over-emphasis of the relationship between Mary Sidi and the appellant, using such phrases in his summing up as:

> "A mother bears her son after nine months and then after a lot of pain and suffering she gave birth. Is it therefore credible that a mother would not recognise her own son?"

and, in his judgment:

> "Is it likely that a mother would accuse her son of such a heinous crime as murder unless she was absolutely sure?"

Nevertheless, at the outset of the summing up the judge warned the assessors that:

> "As far as the appreciation of the evidence is concerned you must do that by weighing the evidence and deciding what conclusions you draw therefrom."

He stressed that they were not bound by his comments and gave correct directions on the burden of proof and the need for them to be satisfied of the appellant's guilt beyond reasonable doubt before conviction. After that which, in our opinion, taken as a whole, was a fair summing up, each assessors separately and individually returned an opinion of guilty.

As well in his judgment, the judge showed that he was conscious of the need to be satisfied beyond reasonable doubt on the identification issue and was aware that it was essential to exclude the possibility of a mistaken identification. He said:

> "Having warned myself of the danger of acting on visual identification alone, I am nevertheless fully satisfied that neither Mary nor Mzungu made any mistake in recognising the accused as the assailant. In those circumstances and having considered the accused's unsworn statement which consists of a simple denial without anything else, I am amply satisfied that the prosecution has proved beyond any reasonable doubt that it was the accused who killed Uhuru."

The court in *Republic v Turnbull* (*supra*) comprised a five judge bench and had been convened because of an outcry in the United Kingdom over the false identification of a public figure as having been involved in a bank robbery. The Lord Chief Justice gave the following directions:

> "First, whenever the case against an accused depends wholly or substantially on the correctness of one or more identifications of the accused which the defence alleges to be mistaken, the judge should warn the jury of the special need for caution before convicting the accused in reliance on the correctness of the identification or identifications. In addition he should instruct them as to the reason for the need for such a warning and should make reference to the possibility that a mistaken witness can be

> convincing one and that a number of such witnesses can all be mistaken. Provided this is done in clear terms the judge need not use any particular form of words.
>
> Secondly, the judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made. How long did the witness have the accused under observation? At what distance? In what light? Was the observation impeded in any way, as for example by passing traffic or a press of people? Had the witness ever seen the accused before? How often? If only occasionally, had he any special reason for remembering the accused? How long elapsed between the original observation and the subsequent identification to the police? Was there any material discrepancy between the description of the accused given to the police by the witness when first seen by them and his actual appearance?"

This case has been applied in Kenya, as the learned Judge said, by Chesoni J in *Republic v JW Tyson* High Court (Mombasa) criminal case number 20 of 1983 and in *Reuben Taabu v Republic* High Court criminal application number 208, 209 and 480 of 1978, a decision which was substantially upheld on appeal (criminal application number 63 of 1979).

It cannot in our view be seriously contended that either the summing up or the judgment did not deal properly with the burden of proof and the care needed before accepting visual identification as providing proof of guilt beyond reasonable doubt. All the issues stressed by Mr *Kabuki* regarding identification by recognition were carefully considered by the High Court. There were two positive identifying witnesses whose evidence the judge and the assessors were entitled to accept after a proper direction. We accept the submissions of Mrs *Momanyi* for the Republic that the evidence of these two witnesses was consistent and clear and that proper directions were administered.

In our view the identification of the appellant as the man who inflicted fatal cut wounds on Uhuru was free from the possibility of error or mistake. His denial in his defence was rightly rejected. We have no hesitation in dismissing the appeal on the capital charge.

Equally, in our view there was no possibility of the lesser offence of manslaughter arising on the evidence as is contended in ground six of the first memorandum, or petition, of appeal. This was a clear case of murder and once the evidence of recognition was accepted after proper directions, a conviction for murder inevitably followed.

For the appellant:
K Kabuki

For the Republic:
LM Momanyi

Obbo v Owor and another
[1990–1994] 1 EA 476 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	19 May 1994
Case Number:	21/92
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica
Appeal from:	

[1] Civil procedure – Interlocutory judgment cannot be withdrawn but must be set aside first – If not done another matter will be res judicata.

[2] Court broker – Protection from civil suits for actions – Time limit within which to sue.

Editor's Summary

The first respondent successfully sued the appellant's father in a land case in 1967. However, the appellant's father never vacated the land and later when he died, the appellant claimed that he had only inherited his father's land and not the first respondent's demarcated property.

Held – Once interlocutory judgment is given, it must be set aside, if the suit is to be proceeded with *inter partes;* it cannot simply be withdrawn. Section 35 of the Civil Procedure Act does not debar a suit against a court broker, *Hannington Waswa and another v Ochola and others* civil appeal number 22 of 1993 (UR) followed.

A court broker only has the protection of section 46 of the Judicature Act. However, this only protects the lawful actions of a court broker. On the assumption that the Court broker acted illegally, the court broker will not have protection under section 46.

A court broker is an officer carrying out a public duty within section 3 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act of 1969. He must therefore be sued within 6 months of the act complained of. Had the suit been withdrawn, Order 22, rule 5 of the Civil Procedure Rules would not have prevented time from running.

Once judgment is entered in a suit the matter is *res judicata* until the judgment is set aside. There is no provision allowing withdrawal of interlocutory judgment. The remedy is to apply for setting it aside. This seems to be a difficult course of action where the record of the Court is lost. One of the solutions is for the parties to reconstruct the record from their case files.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Hanningtown Waswa and another v Ochola and others civil appeal number 22 of 1995 (UR) – **F**

Nandra v China and Company [1973] EA 122

Judgment

Platt JSC: The most interesting point which arises on this appeal, is whether a man of advancing years can be evicted from his homestead, with the loss of property, because the Magistrate's Court had given an order for possession of his land, in execution of a decree given fifteen years earlier. One would normally protest that that could not possibly be so. But that is not how the High Court judged the matter, and indeed because of the peculiar circumstances of this case, the appellant may have challenged the execution by taking the wrong proceedings.

It appears that in 1967, the first respondent Badru Owor was successful in a land case having sued Onjala Okach, the latter being the father of the appellant Obbo. The case concerned a piece of land which the deceased Onjala Okach had held in trust for Badru Owor. When the latter reached about twenty one years of age he came back to claim his land; and at first, Okach could not give it to him, because Okach had already installed one of his sons-in-law in the land. Judgment was given for Badru Owor, and the son-in-law of Okach vacated the land. It may be that Okach himself never vacated this piece of land and he died in about 1975. It is alleged that the appellant Obbo took his father's place, and that quarrels arose between him and Badru. As one might expect, the quarrel was whether the appellant Obbo had inherited his own land from his father, or whether he still occupied Badru's land. The appellant contended that he had inherited a different piece of land altogether to that which had been demarcated in the case of 1967. The respondent Badru asserted that Obbo remained upon the same land that had been the subject of the 1967 proceedings. The respondent Badru, however, took no steps until he moved the Court in 1983, to cause the appellant Obbo to remove himself from the land.

The court was taken through a number of important issues arising out of the memorandum of appeal. The deeper the investigation went, the more difficult it became to maintain the legality of the proceedings in the High Court. The issues which arose are as follows:

"(*a*) Relating to execution procedure:

(i) Was execution issued by the right Court?

(ii) Was it issued to the right person?

(iii) Were the safeguards provided in Order 19, rule (1) of the Civil Procedure Rules adopted, and if this was a case of summary execution under rule 19(2) why was this so?

(iv) Was the procedure under Order 19 rule 51 carried out, as this was execution in the case of immovable property?

(v) Was the execution carried out with only necessary force under Order 19 rule 32 of the Civil Procedure Rules?

(*b*) Was the execution time-barred by virtue of section 36 of the Civil Procedure Act and section 4(3) of the Limitation Act (Chapter 70)?

(*c*) In the event of the execution being time-barred and carried out irregularly, was the appellant entitled to bring a fresh suit to determine his rights, having in mind section 35 of the Civil Procedure Act?

(*d*) What protection is available to a Court Broker under:

(i) Section 46 of the Judicature Act of 1967,

(ii) Section 3 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act number 20 of 1969?"

In view of the conclusions which will shortly be set out, it would be improper for this Court to answer all these issues. What must be decided first is whether the proceedings before the High Court at Kampala, are lawful.

This problem arises from Mr *Wandera*'s submissions to the High Court at Kampala, in answering a preliminary point, to the effect that the High Court, Kampala, had no jurisdiction to entertain the suit instituted there by Mr *Wandera* on behalf of the appellant Lawrence Obbo. We have called upon the parties to this appeal to declare the position of civil suit number 15 of 1983 filed in the High Court Registry of Tororo. Since at some stage the record of

this suit was declared missing, the parties have reconstructed the record, and it is now clear that on 25 August 1983 the suit was filed; a memorandum of appearance was entered on 14 January 1984, and a written statement of defence for both respondents, Badru Owor, and Simon Peter Okongo, was entered on the same date. It seems that at the time that Mr *Wandera* made his submissions in Kampala, he was unaware that an appearance and defence had been entered. Mr *Wandera* had apparently applied to the Court for *ex parte* judgment, and he was under the impression that judgment had been entered, under the usual routine of acceding to the written request. But no damages had been assessed. It seems that Mr *Wandera* was obstructed because the record could not be traced. Accordingly, he informed the Court at Kampala that he had asked to withdraw the proceedings number 15 of 1983, and he commenced fresh proceedings namely High Court civil suit number 391 of 1984 in Kampala. That occurred on 24 May 1984.

The difficulty that then arose was that once interlocutory judgment had been given in the High Court Tororo suit number 15 of 1983, that Court could not allow the suit to be withdrawn, and it should have proceeded to assess damages and finalise judgment. Once interlocutory judgment is given, it must be set aside, if the suit is to be proceeded with *inter partes*; it cannot simply be withdrawn.

In fairness to the learned Judge dealing with the preliminary point taken in the trial in Kampala, this specific aspect of the existence of the two suits concerning the same parties and same issues for trial, was not stressed before the learned Judge, and indeed, the applicant/respondent seems to have declined to press his argument fully, in view of Mr *Wandera*'s submissions. Nevertheless, as the jurisdiction of the Kampala High Court is at stake on this appeal as a vital matter, it is necessary for this Court to decide the issues arising on the unconsidered aspects of the preliminary point.

It is plain that on the face of Mr *Wandera*'s submissions that interlocutory judgment had been entered *ex parte* in Tororo, the Kampala trial was null and void, and consequently, the Kampala proceedings having been set aside, it would be necessary to direct the High Court at Tororo to complete the suit number 15 of 1983. But, of course, before this Court would take such a drastic step, it would have to be assured of the facts as submitted. Hence, this Court ordered the parties to reconstruct the record of suit number 15 of 1983, the original record still being missing.

The parties have now reconstructed the record of number 15 of l983, and what transpires is that there is no record of the application for judgment *ex parte* having been received by that Court. There is no record of interlocutory judgment having been entered and there is no record of the application for the withdrawal of the suit, having been received by the Tororo Court. Mr *Wandera*'s letters have either been lost or did not receive attention. Consequently, it cannot now be said that the Court was certainly moved to enter interlocutory judgment, nor did so, nor that the Court was moved to withdraw the suit. The parties have now reconsidered their position. They have both agreed that the suit number 15 of 1983 still remains open, and that they should return there to complete the trial in the High Court Tororo. The consequence is that the Court is asked to vacate the proceedings in Kampala.

The court has now to consider whether or not to accede to that request, and in doing so, whether or not any issues on the appeal should be answered to assist the lower Court. It seems that this Court should only clarify the issues raised which decide whether or not proceedings in the Tororo Court can usefully be taken, since it would be futile to return the parties to the Tororo Court if that Court could never entertain the proceedings in number 15 of 1983. Therefore I would answer the following issues:

> "1. Whether or not the appellant Obbo is entitled to bring a fresh suit having in mind section 35 of the Civil Procedure Act?
>
> 2. Whether or not the Court Broker has any protection against such a suit?"

Issue I

Let it be assumed, without deciding the question raised, that the execution proceedings were time-barred and that in any event, the proceedings were so irregular that the execution gave rise to a claim in damages. On the question whether the execution was time-barred, under section 36 of the Civil Procedure Act no doubt the trial Court will find the guidance of Spry JA useful in *Nandra v Chane and Company* [1973] EA 122 at 125. On the question of the alleged irregularities Order 19 of the Civil Procedure Code forms a comprehensive code of procedure. These are matters left open for the trial Court. On the basis that there was an actionable claim in trespass. Section 35 of the Civil Procedure Act, would not debar a suit against the Court Broker Simon Peter Okongo as this Court has recently held in *Hanningtown Waswa and another v Ochola and others* civil appeal number 22 of 1995 (UR).

Whether Badru Owor can be jointly sued and is liable jointly and severally with the Court Broker is a matter for the trial Court.

As far as section 35 is concerned on the facts, it is a case of executing a time-barred decree against a person who was not a party to the decree. Consequently, the appellant sued in trespass (*inter alia*). Moreover Order 19, rule 60 would allow the appellant to clear his claim to the land in Court. But as the property has been sold by the judgment creditor, care must be taken over the new owner's title.

Issue 2

The Court Broker has the protection of section 46 of the Judicature Act of 1967 but it only protects the lawful actions of a Court Broker. On the assumption that the Court Broker acted illegally, the Court Broker will have no protection under section 46.

As this Court has found that a Court Broker is an officer, carrying out a public duty within section 3 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act of 1969 so he must therefore be sued within six months of the act complained of. The execution took place on 25 July 1983, and the suit was brought on 25 August 1983. Consequently, it was within the prescribed time. Had the suit been withdrawn, Order 22, rule 5 of the Civil Procedure Rules would not have prevented time from running. Hence the proceedings in the High Court commenced in May 1984 were in fact time-barred from this point of view.

Consequently I would strike out all the proceedings in the Kampala High Court, set aside the judgment and decree of that court, and order that the proceedings in civil suit number 15 of 1983 be continued. It is to be hoped that

the parties will find no difficulty in continuing upon the reconstructed record, which has been accepted as representing the steps taken by the parties before the record was lost. It is to be hoped that the Tororo court will not have any further difficulties in controlling its records, and that the Court will at last provide the parties with an expeditious trial.

On costs the orders are not easy to make. The appeal was necessary because several orders of the High Court were erroneous. Yet the fundamental question stemmed from innocent but misleading remarks of Mr *Wandera*, and in the event suit number 15 of 1983 must continue. I would award the appellant one quarter of the costs of the appeal.

In the High Court, the preliminary issue should have been won by the defendant/respondents. As the trial was ordered to continue, then the plaintiff/appellant should have won on the basis of the case presented. The parties therefore had an equal misfortune, and I would order that each side bear their own costs.

The costs of suit number 15 of l983 will abide the event of the continued trial.

Odoki JSC: I have read in draft the judgment prepared by Platt JSC and I agree with him that this appeal must succeed in part. I shall therefore make only a few comments.

The facts of the case have been set out in the judgment of Platt JSC.

The main issue in this appeal is in my view, whether a party which has obtained an interlocutory judgment but the Court record has subsequently got lost before formal proof of the claim, is entitled to withdraw the suit and file another one in the same court between the same parties. This in effect was the preliminary point raised by the respondent in the High Court at Kampala whose decision gave rise to this appeal. The High Court does not appear to have decided the matter and proceeded with the hearing and determination of the case.

It appears to me that once judgment is entered in a suit the matter is *res judicata* until the judgment is set aside. There is no provision allowing withdrawal of interlocutory judgment. The remedy is to apply for setting it aside. This seems to be a difficult course of action to take where the record of the Court is lost. One of the solutions is for the parties to reconstruct the record from their case files as it was done in the present case with positive results.

The result of the reconstruction as contained in the supplementary record of appeal reveals that the plaint was filed on 25 August 1984, appearance was entered on 14 January 1988, and the written statement of defence filed on the same day. It is not clear why an interlocutory judgment could have been entered when appearance had been entered in time, but there is no evidence to show that such a judgment was in fact applied for and entered. That being the position, the first suit filed in Tororo must be still pending; hearing. There was no evidence of the withdrawal of the suit and even if it was there, the withdrawal would have been ineffectual.

Consequently, the second suit filed on 24 May 1984 in Kampala was incompetent and must be set aside. The appellant is free to proceed with the suit he filed in Tororo. In view of this I do not find it necessary to deal with the merits of that suit.

I would concur in the orders proposed by Platt JSC.

Manyindo DCJ concurred in the judgment of Platt JSC.

For the appellant:
Mr Wandera

For the respondents:
Information not available

Odinga and others v Nairobi City Council
[1990–1994] 1 EA 482 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	
Case Number:	899/93
Before:	Pall J
Sourced by:	LawAfrica
Appeal from:	

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[1] Judicial review – Declaration orders – Whether declaratory relief may be granted on an application for judicial review.

[2] Juducial review – Procedure – Limitation of time – Application to be brought within a maximum period of six months from the date when the ground for the application arose – Section 9 – Law Reform Act (Chapter 26) – Order LIII, rule 2 – Civil Procedure Rules.

[3] Statutory interpretation – Subsidiary legislation – Whether Rules of Court made under an Act of Parliament can defeat or override provisions of the Act – Whether an Act of Parliament can be amended by subsidiary legislation – Legal Notice number 164 of 1992 (Kenya) – Order LIII, rule 2 – Civil Procedure Rules.

Editor's Summary

The plaintiffs made an application for judicial review seeking prohibitory orders against the respondent, to prohibit the respondent from disposing some properties. An order of *certiorari* was also prayed for to remove into the High Court and quash a proposal dated 4 August 1992, authorising the respondent's chief officers to dispose of the properties.

The respondent was the Nairobi City Council and its chairman had proposed in a meeting that the respondent's assets be disposed off. His proposal was seconded, approved and confirmed by the meeting. The plaintiffs were members of Parliament in Nairobi who brought the case on behalf of their constituents, the rate payers, seeking to stop the council from disposing its assets.

A preliminary objection on a point of law was raised by the Council arguing that the plaintiffs' action was time barred as it was not brought within six months as required under section 9 of the Law

Reform Act. By Legal Notice number 164 of 1992, Order LIII, rule 2(1) of the Civil Procedure Rules had been amended in effect to give the High Court power to extend the period within which an application for judicial review may be brought. Order LIII of the Civil Procedure Rules contains the procedural rules made in pursuance of section 9(1) of the Law Reform Act. Section 9(2) of the Law Reform Act states that the rules made under subsection (1) may prescribe that an application for mandamus, prohibition or certiorari shall be made within six months or such shorter period as may be prescribed.

The plaintiffs' reply to the preliminary objection was that the Court had power pursuant to Order LIII, rule 2(1) to extend the time within which the application may be brought.

The respondent (council) also contended that the plaintiffs' application could not lie because it sought declaratory orders which were beyond the purview of judicial review and that declaratory relief can only be granted in a regular suit.

Held – An application for judicial review, may it be for an order of *mandamus*, prohibition or *certiorari* should be made promptly and in any event within a maximum period of six months from the date when the ground for the application arose. The plaintiffs' application was made after a lapse of 14 months since the ground for the application arose and was therefore time barred.

The Rules of Court made under an Act cannot defeat or override the clear provisions of the Act. An Act of Parliament cannot be amended by subsidiary legislation. Thus the part of Order LIII, rule 2 as amended by Legal Notice number 164 of 1992 which read "unless the High Court considers that there is good reason for extending the period within which the application shall be made" was *ultra vires* section 9(2) of the Law Reform Act (Chapter 26).

A declaratory relief cannot be granted on an application for judicial review unless it is itself of the nature of a prerogative order.

Editor's Note

The Civil Procedure Rules Order LIII, rule 2, were subsequently amended deleting the *ultra vires* portion. As matters stand today, only an application for *certiorari* must be made within six months, *mandamus* and prohibition being subject to the "reasonable delay" test.

No cases referred to in ruling

Ruling

Pall J: By this notice of motion the applicants have sought an order of prohibition directed to the Nairobi City Council (the respondent) prohibiting it from:

> "1. Disposing of the respondent's immovable assets in furtherance of a proposal dated 4 August 1992 allegedly authorising it to do so, transferring, or otherwise dealing with its immovable assets without a valid resolution of the respondent counsel;
>
> 2 Inducing people into believing that the respondent had the power or authority of the respondent counsel to dispose of its immovable property;
>
> 3. Acting *ultra vires* the provisions of the Local Government Act and regulations made thereunder;
>
> 4. Making any allotment of the respondent's vacant plots without a valid resolution of its counsel;
>
> 5. Backdating letters of allotment so as to render these proceedings nugatory; and
>
> 6. Acts of abuse of office of the Town Clerk and the respondents chief officers."

The applicants have also sought an order of *certiorari* to remove into the High Court and quash the said proposal of 4 August 1992 which purports to authorise the respondent's chief officers to dispose of the respondent's immovable properties in Nairobi.

They have also sought the following declarations namely that:

"(1) The respondent's disposal of immovable properties in pursuance of the said proposal 4 August 1992 is null and void;

(2) The respondents' disposal of properties in violation of injunction order issued in High Court case number 3522/93 is null and void;

(3) The respondent's disposal and or allotment of properties known as land registration 330/492, 209/2501, 37/386, 3734/411, 1/239, 1870/IV/84, 330/473, house number 8 Dagoretti; 209/5829 and 209/1801/1 is in violation of Local Government Act and consequently the properties be reconveyed to the respondent; and

(4) That the respondent's payment towards the defence of High Court civil case 3522 of 1993 is *ultra vires*."

The applicants have also prayed for staying the respondent from disposing of or transferring any of its immovable properties pending determination of this motion.

The applicants are elected members of various parliamentary constituencies in Nairobi. They say that they have brought these proceedings as rate payers and residents of the city of Nairobi. They say they have also brought these proceedings for the sake of rate payers and or residents of Nairobi. The respondent is a local authority established under the Local Government Act (Chapter 265).

On 4 August 1992 the then chairman of the respondent proposed in an ordinary meeting of the respondent that the respondent's chief officers be authorised to identify and dispose of such unprofitable and non-essential services, properties of the respondent and assets with a view to improving the respondent financial position so that the proceeds of sale thus obtained could be utilised for redevelopment and rehabilitation of some old estates in the city of Nairobi. Commissioner Nganga seconded the chairman's proposal and the same was approved and confirmed in that meeting.

The applicants have stated in support of this notice of motion that the proposal of 4 August 1992 is invalid in law as it is a mere proposal and not a resolution of the respondent and is an abuse of office and *ultra vires* the Local Government Act ("the Act").

In the statement in support of the application for leave to apply for judicial review, the applicants have stated *inter alia* that the proposal of 4 August 1992 was never made a resolution of the respondent and the said proposal is void as prior consent of the Minister had not been obtained under the Act and that the proposal was in any event in respect of only unprofitable and non-strategic assets. The applicants have further said that in pursuance of the said proposal of 4 August 1992 the respondent's intends to dispose of the properties mentioned in the notice of motion at a grass undervalue which shall be a fraud upon the rate payers. It is however conceded in the statement that the respondent could dispose of its immovable property after a full council meeting but states that no such meeting has ever taken place.

Under section 144(6) of the Act the respondent with the consent of the Minister may sell any land which it may possess and which is not required for the purpose for which it was acquired or being used.

On 5 October 1993, on *ex parte* application of the applicants, I granted leave to the applicants' to apply for judicial review of the matters stated in the applicants' said statement and at the same time restrained the respondent from disposing of several properties mentioned in the said statement and the application for leave to apply for judicial review until determination of these proceedings.

By an affidavit filed by Fredrick Mwiti Muraa chief valuer of the respondent he has stated (*inter alia*) that the respondent has acted properly under the authority of a resolution passed by the council of the respondent on 4 August 1992 and 1 September 1992. He has further stated that the respondent has acted properly after obtaining on 10 September 1992 proper written approval from the Minister for Local Government. Copies of the minutes of the said meetings of respondent held on 4 August 1992 and 1 September 1992 have been attached to his affidavit. In the meeting of 1 September 1992, the minutes of the meeting of 4 August 1992 were confirmed.

By a notice dated 16 February 1994 the respondent notified the applicants that it will raise a preliminary point of law that the application is incompetent as it was filed outside the time limited by law and it should therefore be struck out.

Whereas these proceedings directly relate to the aforesaid so called proposal of 4 August 1992 the proceedings for leave to apply for judicial review were brought to court on 5 October 1993.

At the hearing of the notice of motion Mr *Hayanga* for the respondent submitted on his preliminary objection. His argument was based on section 9 of the Law Reform Act (Chapter 26) which is a pre-independence piece of legislation dating back to 1956. He submitted that the application for leave to apply for a judicial review was time barred under section 9 of the Law Reform Act which (*pari materia*) reads as follows:

> "9 (1) Any power to make rules of the Court to provide for any matters relating to the procedure of civil courts shall include power to make rules of court:
>
> (*a*) is not relevant here;
>
> (*b*) requiring except in such cases as may be specified in the rules that leave shall be obtained before an application is made for any such order;
>
> (*c*) requiring that where leave is obtained, no relief shall be granted and no grounds relied upon except with the leave of court other than the relief and grounds specified when the application for leave was made.
>
> (2) Subject to the provisions of subsection 3 rules made under subsection 1 may prescribe that an application for *mandamus* prohibition or *certiorari* shall in specified proceedings be made within six months or such shorter period as may be prescribed after the act or omission to which the application for leave relates;
>
> (3) In the case of an application for an order of *certiorari* to remove any judgment order decree or conviction or other proceedings for the purpose of being quashed leave shall not be granted unless the application for leave is made not later than six months after the date of judgment order decree or conviction or other proceedings or such shorter period as may be prescribed under any written law or and where that judgment order decree conviction or other proceeding is subject to appeal the Court or judge may adjourn application for leave until the appeal is determined or the time for appealing has expired."

By legal notice 164 of 1992 rule 2(1) of Order LIII was amended. The amendment relevant for our purposes reads as follows:

> "2 (1) An application for judicial review shall be made promptly and in any event within six months from the date when the grounds for an application arose unless the High Court considers that there is good reason for extending the period within which the application shall be made."

The present application was made, as I have already said on 19 October 1993 after a lapse of some 14 months since the grounds for this application had arisen.

Mr *Kibara* for the applicant has submitted that under the present Order LIII, rule 2(1) which I have set out above, the Court is empowered to extend the said period of six months. Although there is no formal application for extension of time, yet I would have given leave to the applicant to apply for that extension, had I got the power to enlarge that period of six months.

Order LIII, contains the procedural rules made in pursuance of section 9(1) of the Law Reform Act. Section 9(2) of that Act states that the rules made under subsection (1) may prescribe that an application for *mandamus* prohibition or *certiorari* shall be made within six months *or such shorter period as may be prescribed* (emphasis provided).

Thus it will be seen that on one hand section 9(2) of the Act enjoins that the Court may make rules prescribing that application for *mandamus* prohibition and *certiorari* shall be made within six months or such shorter period as may be prescribed by the rules. On the other hand Order LIII, rule 2(1) which is a procedural rule made under that very section says that the Court may for good reason extend the period of six months.

The Rules of Court made under the Act cannot defeat or override the clear provisions of section 9(2) of the Act. An Act of Parliament cannot be amended by subsidiary legislation. The Parliament in its wisdom has imposed this absolute period of six months and it is the Parliament alone which can amend it.

The court's duty is to give effect to the law as it exists. Thus that part of Order LIII, rule 2 as amended by legal notice 164 of 1992 which reads "unless the High Court considers that there is good reason for extending the period within which the application shall be made" is *ultra vires* section 9(2) of the Act. Thus an application for judicial review, may it be for an order of *mandamus* prohibition or *certiorari* should be made promptly and in any event within a maximum period of six months from the date when the ground for the application arose.

As far as the notice of motion seeks to remove into the High Court and quash the minutes in question of the meeting of 4 August 1992 of the respondent or seeks an order of prohibition against the respondent it from doing any act or deed in pursuance of the said meeting of 4 August 1992 it is time barred.

Mr *Kibara* for the applicants has submitted that there cannot be any time limit so far as the threatened breach of the law continues and the respondent continues to indulge into illegal acts.

Mr *Hayanga* for the respondent has submitted on the other hand that the entire relief sought by the applicants is grounded on the minute or proposal of 4 August 1992.

Order LIII, rule 2 enjoins that the applicants' statement in support of its application for leave to apply for judicial review shall set out the relief sought and the grounds on which it is sought. Order LIII, rule 4(1) says that no grounds shall be relied upon and no relief sought at the hearing except the grounds and relief set out in the statement. By rule 4(2) however the Court may allow the said statement to be amended. Unfortunately the applicant's statement fails to set out the relief claimed at all and there has been no application for leave to amend the said statement. In any event even if the statement had contained the

relief sought by the applicant they are bound by the grounds set out in their statement upon which their relief is based. These grounds have been set out in paragraphs 25 to 30 of the statement. Paragraph 25 and 26 directly mention the minute or proposal whatever you would like to call it of 4 August 1992.

Clauses 27 and 29 (inclusive) complain that the respondent has acted without jurisdiction and in violation of the provisions of the Local Government Act and that the respondent's conduct is an abuse of its statutory powers. Paragraph 30 is a general paragraph based generally on the facts relied upon in the statement. As I have already pointed out, the applicants have admitted in paragraph 12 of the statement that the respondent could dispose of its immovable property after a resolution of the full council. The applicant's complaint however is that the minutes of 4 August 1992 was a mere proposal and not a resolution of the respondent. That is why it is alleged that the respondent lacks jurisdiction to sell its property threatens to act in violation of the Local Government Act and its conduct amounts to abuse of its statutory powers. Thus I agree with Mr *Hayanga* the applicants' entire relief is grounded on the distinction that the respondent's minutes of 4 August 1992 were a mere proposal and not a resolution which could empower it to dispose of its immovable property.

I therefore hold that the applicants' entire notice of motion is time barred.

In the notice of motion the applicants have sought certain declarations. Mr *Hayanga* has argued that this being a special procedure declaratory relief can only be granted in a regular suit. In my view this discussion whether declaratory relief can be granted or not in these proceedings is not necessary as I have already held that the entire relief claimed by the applicants is time barred. However as a matter of practice I will add that in England an application for a declaration can be made by way of an application for judicial review. But then there is a specific provisions in Order LIII, rule 2 of the Rules of Supreme Court that declaratory relief may be claimed by way of an application for judicial review. We do not have any such provision in our legislation. Applications for judicial review are means of obtaining a speedy decision. A declaration should normally be sought by a regular suit as the object of judicial review is to grant prerogative orders only. I do not think therefore that a declaratory relief unless of course it is itself of the nature of a prerogative order can be granted on an application for judicial review.

Even in England declaration is granted exceptionally on an application for judicial review. The learned authors of the *Supreme Court Practice* 1993 at 853 say:

> "If the Court should conclude that the grant of an appropriate prerogative order will effectively give the applicant the relief he seeks or shoud have, it would lean against the grant of a declaration or injunction and simply grant the prerogative order."

Moreover all the declarations sought also revolve around the said minutes of 4 August 1992. They are all therefore time barred.

In the end I dismiss the applicant's application with costs.

For the applicants:
Mr Kibara

For the respondent:
Mr Hayanga

Olwora v Uganda Central Co-Operative Union Ltd
[1990–1994] 1 EA 488 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	1993
Case Number:	25/92
Before:	Manyindo DCJ, Oder and Platt JJSC
Sourced by:	LawAfrica
Appeal from:	

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[1] Advocate – Non-renewal of practicing certificate – Effect of non renewal – Purpose and effect of grace period.

[2] Appeal – Lodging appeal without leave.

Editor's Summary

The appellant sued the respondent for wrongful dismissal and sought a declaration and damages. The appellant's advocate raised a preliminary objection at the hearing of the matter claiming that the respondent's advocate had not renewed his practicing certificate on the date when he signed the pleadings for the defence. The appellant's advocate claimed that since the respondent's advocate did not have a practicing certificate, the filing of pleadings constituted a breach of the provisions of section 14(1) of the Advocates Act and that the pleadings should therefore struck out as being illegal.

The respondent's advocate in response claimed that his account had not passed through the Uganda Revenue Authority, that the Law Council had not visited his chambers and he could not be issued with a practicing certificate, and that he still had a grace period that lasted from 31 December until 1 March of the following year.

The learned Judge held that the section does not affect the pleadings but merely penalises the individual advocate without a certificate by denying him costs.

The appellant filed an appeal without leave and the respondent's advocate raised a preliminary objection that leave is required and the appeal is therefore incompetent.

Held – The intention of the grace period was to enable advocates to renew their certificates by completing all formalities like inspection of chambers which they have to go through before their certificates are renewed. The period was also intended to enable their clients and the general public to benefit from the legal services of advocates without disruption. Advocates should however try to ensure that they renew their practicing certificates before the expiry of the year in order to comply with the law and preserve the honour and dignity of their profession.

Section 14 and 68 of the Advocates Act envisaged an advocate practicing without a certificate. As long as the advocate is duly instructed by his client according to Order 3, rule 1 of the Civil Procedure Rules, the documents he signs or files during the period of grace are valid and competent. However, the advocate cannot recover his costs through the Courts. (*Re Lukeera and Co Advocates* miscellaneous cause number 76 of 1973 (1978) HCB 198 followed; *Mayaga v Katende and another* miscellaneous application number 11 of 1979 HCB 51; M*oses Iga v Govindji Ravji* High Court civil suit number 709 of 1971 (UR) distinguished)

The dispute under section 14 of the Advocates Act is not a matter under the Civil Procedure Act, unless some provision in the latter Act brings the dispute on section 14 under the Civil Procedure Act. This appeal does not therefore lie within Order XL of the Civil Procedure Act and leave is therefore not required

The preliminary objection is dismissed; appeal is dismissed.

No cases referred to in ruling

Ruling

Platt JSC: Following a line of Uganda precedents, Byamugisha J decided a preliminary point, concerning the competence of the advocate appearing before her representing the defendant. That person admitted that when he signed the pleadings for the defence in February 1992 he had not renewed his practicing certificate. His explanation was that his account had not passed through the Uganda Revenue Authority, and that the Law Council had not visited his chambers. He relied on the so-called "grace period", which, lasted from 31 December until 1 March of the following year, during which he could lawfully practise. On the other hand, counsel for the plaintiff relied on the fact that counsel for the defendant did not have a practicing certificate, that the filing of pleadings constituted a breach of the provisions of the Advocates Act, especially section 14(1) thereof, and consequently that the documents in question should be struck out as being illegal.

The learned Judge came to the following conclusion:

> "The legal position set out in Lukeera's case, I think correctly establishes the intention of the section (that is section 14 of the Advocates Act) penalises the individual advocate who practices without a certificate by denying him costs, but this does not affect the documents filed in Court on behalf of his client."

It was this finding that formed the bone of contention in ground two of the memorandum of appeal.

In order to present this interlocutory appeal from the ruling and order of the High Court, the question arose whether the appeal could be lodged without leave. The fact is that the appeal has been lodged without leave, and the advocate respondent has in his turn, taken a preliminary objection, to this effect that leave is required. Consequently it is argued that the appeal is incompetent without the leave of the Court in the first place, or the Supreme Court thereafter in the event that the High Court refused leave.

The arguments on both sides have their attractive aspects.

For the applicant/respondent, it was urged that this comes under the Civil Procedure Act and Rules, because of the nature of the appeal from the order, given under the learned Judge's civil jurisdiction, and attracts the provisions of Order XL, rule 1. Rule 1(1) makes provision for appeals as of right from the orders specified in that sub-rule. Subrules (2) and (3) then continue:

> "(2) An appeal under these rules shall not lie from any other order save with leave of the Court making the order or of the Court to which an appeal would lie if leave were given.
>
> (3) Applications for leave to appeal shall in the first instance be made to the Court making order sought to be appealed from."

The problem which the applicant faced was the reference to an appeal under these rules. No doubt, the form of the appeal is provided by "these rules", but without more, it is not a matter of contention that some provision of the rules has been infringed or is in dispute. The source of the problem is section 14 of the Advocates Act to which reference has been made above. It was considered whether Order, rule 1 could be of any assistance. It provides:

> "1. Any application to or appearance or act in any Court required or authorised by the law to be made or done by a party in such Court may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person, or by his recognised agent, or by an advocate duly appointed to act on his behalf;
>
> Provided that any such appearance shall, if the Court so directs, be made by the party in person."

It was questioned whether an advocate could be duly appointed to act on a party's behalf if the advocate had no practicing certificate. If the Court could intervene at that stage, and could find that for lack of a practicing certificate, an advocate had not been duly appointed, then it might be arguable that an appeal against such an order would be within Order XL.

The other side of the argument is based on section 68 of the Civil Procedure Act, which provides that:

> "68. Unless otherwise expressly provided in this Act, an appeal shall lie from the decrees of or any part of the decrees and from the orders of the High Court to the Court of Appeal."

Counsel answering the application on the preliminary point submitted that this covered appeals from orders made under a statute other than the Civil Procedure Act. The Provisions of section 14 of the Advocates Act gave rise to this appeal. It was an appeal outside the Civil Procedure Act, it did not fall within Order XL, and therefore did not require leave to appeal.

There is no doubt that counsel for the appellant is right that section 68 of the Civil Procedure Act does cover appeals made on matters outside the Civil Procedure Act, and as expressly provided for appeals with the latter Act. It would appear that the dispute under section 14 of the Advocates Act is not a matter under the Civil Procedure Act unless some provision under the latter Act, brings the dispute on section 14 under the Civil Procedure Act. It may be attractive at first sight, to consider the operation of Order III, rule 1. But on closer analysis the due appointment of an advocate is a matter between advocate a client as a matter of appointing the advocate in some specific form. In Order V, rule 1(2) there is the question of a defendant entering an appearance by an advocate duly instructed to do so. It would therefore appear that the proper meaning of duly instructed or duly appointed is a question between the advocate and client.

This is also borne out by the practice in India where there are similar rules (see the *Code of Civil Procedure* by Manohar Chitaley Volume 2, Order 111 at 793 *et seq*).

The result, in my opinion, is that this appeal does not liewithin Order XL of the Civil Procedure Act and that therefor leave is not required.

I would dismiss the preliminary objection with costs and order the appeal to proceed to hearing on its merits.

Judgment

Odoki JSC: This is an appeal against the decision of Byamugisha J in the High Court overruling a preliminary objection raised by the appellant at the hearing of the suit that the advocate for the respondent who signed and filed the pleadings was incompetent to do so since he did not have a valid practicing certificate at the material time, and therefore the respondent's pleadings should be struck out.

On 31 December 1991, the appellant filed a suit against the respondent for wrongful dismissal seeking a declaration and damages among other relief. Counsel for the respondent entered appearance on 10 January 1992 and filed a written statement of defense on 3 February 1992. When the suit came up for hearing on 16 June 1992, counsel for the appellant raised a preliminary objection that the entry of appearance and the written statement of defense were signed and filed by an uncertificated advocate. He submitted that the respondent pleadings were illegal because it was an offence under section 14(1) of the Advocates Act to practice without a practicing certificate. He prayed that the respondent pleadings be struck out.

Mr *Muwaire*, counsel for the respondent, admitted not having renewed his certificate at the material time because his accounts had not gone to the Uganda Revenue Authority. Secondly the law council had not inspected his Chambers by February 1992, and therefore he could not be issued with a practicing certificate by the High Court. He contended that it was the practice to allow advocates to practice until March in accordance with the grace period given by the proviso to section 14(1) of the Advocates Act. Since he signed the documents during this period of grace, the documents during this period of grace, the documents were competent and valid.

The learned trial Judge held that section 14(1) does not affect the documents filed in Court by an advocate on behalf of his client during the period of grace but merely penalises the advocate by denying him costs. She accordingly overruled the objection and ordered the hearing of the suit to proceed.

The appellant has appealed to this Court on two grounds stated as follows:

> "1. The learned Judge misdirected herself in law and as a result her ruling and order is contrary to law.
>
> 2 The learned Judge misconstrued section 14 of the Advocates Act of 1970 (Act 22 of 1970) by ruling that the section penalises the individual advocate who practices without a practicing certificate by denying him costs but this does not affect the documents filed in court on behalf of his client."

The first ground is too general and meaningless and Mr *Kinyera P'Lodi* rightly combined it together with the second ground which had substance. In effect this ground attacks the main decision of the learned Judge where she held:

> "The legal position set out in Lukeera's case, I think correctly establishes the intention of the section. The section penalises the individual advocate who practices without a certificate by denying him costs, but this does not affect the documents filed in court on behalf of his client. It would appear the legislature envisaged a situation where the renewing of practicing certificate cannot be done immediately after the 31 December of each year to enable each advocate to have a valid practicing certificate by the beginning of January. As can be seen from the above advocate who practices within the period of grace can only be prosecuted if he has neglected to renew his practicing certificate. With respect, I do not agree with the strict interpretation which counsel for the plantiff put on the section. The period of grace was intended to give

> advocates time to renew their practicing certificates. So all documents signed and filed by such advocates will be valid but the advocates will be denied costs through the courts of Law."

Mr *Kinyera P'Lodi* learned counsel for the appellant submitted before us that practicing without a certificate was a serious offence and failure to renew a certificate should render an advocate incompetent to practice. He relied on the cases of *Re M/s Lukeera and Co Advocates* miscellaneous cause number 76 of 1973 (1978) HCB 198 and *Moses Iga v Govindji Ravji* High court civil suit number 709 of 1971 (UR). He contended that any document signed by such uncertificated advocate is null and void and cited the case of *Mayega v Katende and another* miscellaneous appeal number 11 of 1979 (1979) HCB 51 in support of his argument. Relying on the case of *Makula International v His Eminence Cardinal Nsubuga and another* civil appeal number 4 of 1981 (1982) HCB 11, counsel submitted that the Court could not condone an illegal act by accepting the respondents pleadings. He called for a strict interpretation of section 14(1), arguing that the period of grace was not intended to allow an advocate to practice without a practicing certificate.

On the other hand, Mr *Muwaire* learned counsel for the respondent did not support the strict interpretation placed on section 14(1) by counsel for the appellant. He argued that such interpretation would deprive the public of legal services during the period of grace. It was his contention that the purpose of the proviso to section 14(1) was to give advocates time in which to renew their certificates. He stated that the Law Council had to inspect and approve advocates chambers during this period of grace. He contended that although section 14(1) creates an offence, it does not declare documents signed by the offending advocate illegal. It was his submission that the respondent's pleadings were properly signed and filed as between the parties because when he signed the documents he was authorised by his client to do so in accordance with the provisions of Order 3, rule 1 of the Civil Procedure Rules. He supported the learned Judge's interpretation of sections 14 and 68 of the Advocates Act.

The main issue in this appeal is whether an advocate is entitled to practice without a valid practicing certificate during the period of grace as provided for in the proviso to section 14(1) of the Advocates Act. Secondly, what are the consequences of his practicing? Are the documents he files valid? Is he entitled to costs in view of section 68 of the Act? Section 14(1) of the Advocates Act provides:

> "Any advocate not in possession of valid practicing … certificate or whose practicing certificate has been suspended or cancelled who practices as an advocate shall be guilty of an offence:
>
> Provided that no prosecution shall be commenced under the provisions of this sub-section before the first day of March next following, the expiry of the validity of an advocate's practicing certificate if the reason such an advocate is not in possession of a valid certificate is only because he has neglected to renew the certificate which expired on the thirty first day of December Previous to such first day of March."

There appears to be few cases which considered this provision in the High Court and certainly none seems to have been decided by this Court. The case of *Mayega v Katende* (*supra*) was not directly on the point. It involved an advocate who had just been enrolled and who been issued with a practising certificate with a restricted audience to magistrate's cCourts for nine months. Objection to the papers he filed in the High Court were taken. It was held that

the advocate did not have a right of audience in the High Court until the expiration of nine months in accordance with rule 12 of the Advocates (Enrolment and Certification) Regulations of 1971 and therefore the papers he filed were incompetent.

In *Moses Iga v Govindji Ravji* (*supra*) the advocate had applied for a renewal of practicing certificate but owing to a dispute regarding his membership of the Law Society, the High Court held that it was not sufficient for a person to be admitted and enrolled as an advocate he also had to have in force a certificate issued by the Chief Registrar authorising him to practice. Therefore, he had no right of audience. It is not clear from the case whether the documents had been filed during the period of grace or afterwards.

The learned Judge relied on the case of *Lukeera* (*supra*). Mr Lukeera had not renewed his practicing certificate when he represented the successful party in the suit in the High Court. He then filed a motion for taxation of advocate/client bill of costs. It was then that a preliminary objection was raised that he had no right of audience as he did not hold a practicing certificate. It was contended that Mr Lukeera could not recover costs because when he accepted his client's brief, he was not entitled to practice which situation prevailed again at the time he applied for taxation of his costs. Section 68 of the Advocates Act was relied upon in support of this contention. For Mr Lukeera it was argued among others that the proviso section 14(1) saved the situation. The brief was accepted in February and no prosecution could commence until the first of March.

It was held that section 14 of the Advocates Act was intended to penalise all advocates who practice without a practicing certificate. It does not matter that a certificate was obtained in the first year of practice so long as at the time the instructions were obtained the certificate had not been renewed. It was held further that once a practicing certificate expires an advocate must renew it and if he does not do so by March he commits an offence. Although he may not be prosecuted until the time of grace expires, if he practices, he cannot recover costs through the Court in respect of anything done when the certificate had not been renewed.

In my judgement the decision in *Lukeera*'s case (*supra*) correctly sets out the law. Any advocate whose name has been entered on the roll is required by section 10 of Advocates Act to have in force a valid practicing certificate before he practices in the Courts. Such a certificate is only valid for one year and expires on the 31 December next after the issue, and is subject to renewal. It is clear, however, under the proviso that subsection that the advocate cannot be prosecuted before the 1 March. This means that an advocate enjoys a period of grace of two months during which period, he may practice without a certificate and cannot be prosecuted.

I agree with the learned Judge that the intention of the period of grace was to enable advocates to renew their certificates by completing all formalities like inspection of chambers which they have to go through before their certificates are renewed. The period was also intended to enable their clients and the general public to benefit from the legal services of advocates without abrupt disruption. There appears, therefore to be some public interest which is served by the period of grace. But this does not mean their practicing certificates before the expiration of the year. It is my view that they should always try to ensure that they do so in order to comply with the law and preserve the honor and dignity of their profession.

What then are the consequences which flow from practicing during the period of grace? I am of the opinion and would hold that the documents filed by an advocate during this period are valid. It seems to me that both section 14 and 68 of the Advocates Act envisaged an advocate practicing without a certificate. Section 14 is silent about the status of the document such advocate may sign and file. In my view as long as the advocate is duly instructed by his client in accordance with Order 3, rule l of the Civil Procedure Rules the documents he signs or files during the period of grace are valid and competent. However, under section 68 of the Act, the advocate is penalised in costs. The section provides:

> "No costs shall be recoverable in any suit, proceeding or matter by any person in respect of which constitutes an offence under the provisions of this Act whether or not any prosecution has been instituted in respect of such offence."

I agree with the learned trial Judge that an advocate who practices during the period of grace cannot recover his costs through the Courts. This penalty is to emphasise the need for an advocate to renew his practicing certificate before or soon after its expiration, and not wait unit the period of grace has expired. He must carry out his legal practice in strict compliance with the law and professional ethics.

In the result this appeal must fail and I would dismiss it with costs. As Oder JSC and Platt JSC agree this appeal is dismissed with costs.

Oder and Platt JJSC concurred in the judgment of Odoki JSC

For the appellant:
Mr Kinyera P'Lodi

For the respondent:
Mr Muwaire

Onenge and another v Republic
[1990–1994] 1 EA 494 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	21 May 1993
Case Number:	24/93
Before:	Kisanga, Mnzavas and Mfalila JJA
Sourced by:	LawAfrica
Appeal from:	

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[1] Criminal law – Armed robbery – Whether the offence exists in law.

[2] Criminal law – Sentencing – Effect of minimum penalties in law – Person to produce exhibits at the trial.

Editor's Summary

The complainant's house was broken into in broad daylight and property therein stolen. The accused were later arrested, charged with the offence of armed robbery and sentenced to 30 years' imprisonment. They then appealed, unsuccessfully, to the High Court arguing the charge sheet was defective as it contained a non-existent offence before this second appeal.

Held – A true construction of sections 285 and 286 of the Penal Code, together with section 5(*b*) and (*bb*) of the Minimum Sentences Act shows that the offence of armed robbery exists.

A judge can in his discretion impose a stiffer penalty than the one imposed by the law.

Breach of a mandatory statutory provision that does not affect the substance of the trial does not render the trial a nullity. However, courts should be more vigilant in application of section 225(1) and (4) of the Criminal Procedure Act in order to make provisions which seek to safeguard the rights of the accused meaningful.

The object of the rule that an exhibit should be produced by the person who had custody of it is to ascertain the identity of the exhibit as the very one which it is claimed connects the accused with the offence.

Appeal dismissed in its entirety.

No cases referred to in judgment

Judgment

Kisanga JA: Both appellants were convicted by the District Court for the offence of armed robbery contrary to sections 285 and 286 of Penal Code and were each sentenced to thirty years' imprisonment. They appealed unsuccessfully to the High Court hence this second appeal. In this Court both applicants were advocated for by Mr CJ *Maruma* an advocate, the respondent Republic was represented by Mrs M *Lyimo*, Senior State Attorney.

Both courts below found that the house of the complaint (PW2) was broken into in broad day light and a number of items of property were stolen form there. The applicants were seen and identified at the scene but they managed to run away and could not be arrested. Subsequently, however, the applicant Julius Senene was found in possession of a radio which was one of the items stolen from the broken house of PW2.

Mr *Maruma* filed and argued a total of nine grounds of appeal seeking to raise a number of points of law. He strongly criticised the High Court for not holding that the charge was defective. The charge as laid read as follows:

> "Offence section and law: armed robbery clause 285 and 286 of the Penal Code Chapter 16 volume 1 of the particulars of offence: John s/o Joseph Onenge and Julius s/o Senene Mosha are charged on 25 February 1991 at about 12:30pm hours at Ismalia road within the Municipality and District of Moshi, Kilimanjaro Region did steal one Pistol make Browning number 5201 and 14 bullets valued at TShs150 000 one Normade radio band 6 valued at TShs60 000 wrist watch oris valued at Tshs 16,000, one Golden necklace valued at TShs25 000 and cash TShs32 000, all total valued at TShs281 000 the property of Seby s/o George Anjaria and immediately before the time of such stealing did threaten one Victus s/o Joseph by firing one bullet into the air in order to obtain or retain the things stolen."

The learned counsel vigorously contended that armed robbery as an offence does not exist under the Penal Code. To use his won words "that offence is yet to be created by the Legislature." In this view the only offence which exists under the Penal Code is that robbery as created by section 285 and punishable under section 286 of Code.

Refering to a passage in the judgment of the High Court in which the learned Judge had stated that the appellants were properly sentenced under Act number 10 of 1989, Mr *Maruma* submitted that that was completely wrong

because the said Act number 10 of 1989 did not create the offence of armed robbery. In his view that Act only makes penalty provisions which prescribe *inter alia* a minimum of thirty years' imprisonment for armed robbery an offence which is non-existent. He strongly emphasised the point that the provision under Act number 10 of 1989 prescribing a minimum of thirty years' imprisonment for armed robbery is meaningless unless and until Parliament enacts a law creating the offence of armed robbery.

We have considered these arguments very carefully. Mr *Maruma* is quite right in submitting that Act 10 of 1989 does not create the offence of armed robbery. But we think that it is wrong to say that the offence of armed robbery does not exist under our law. Our view is that on a true construction of sections 285 and 286 of the Penal Code read together with section 5(*b*) and (*bb*) of the Minimum Sentences Act as amended by Act 10 of 1989, the offence of armed robbery does exist. The provisions of the sections are set out herein below:

Section 285 of the Penal Code provides that:

> "285 any person who steals anything and at or immediately before or immediately after the time of stealing it uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained is guilty of the felony termed 'robbery'."

Section 286 of the Code provides that:

> "286. Any person who commits the felony of robbery is liable to imprisonment for twenty years.
>
> If the offender is armed with any dangerous or offensive weapon or instrument or is in company with one or more other person or persons or if at or immediately before or immediately after the time of the robbery he wounds beats, strikes or uses any other personal violence to any person he is liable to imprisonment for life with or without corporal punishment."

And section 5(*b*) and (*bb*) of Minimum Sentences Act as amended by Act number 10 of 1989 provides *inter alia* that:

> "5 (*b*) where a person is convicted of robbery, the Court shall sentence him to imprisonment for a term of not less than fifteen years;
>
> (*bb*) where any person is convicted of armed robbery, the Court shall sentence him to imprisonment for a term of not less than thirty years: …"

Upon reading the three provision together, it is discernible that section 285 of the Penal Code creates the genus of the offence of robbery by defining that offence and spelling out the ingredients which constitute it. Section 286 of the Code prescribes punishment for ordinary robbery and for aggravated types or species of robbery. Thus the section prescribes the punishment of twenty year' imprisonment for ordinary robbery and life imprisonment with or without corporal punishment as a general punishment for various types or species of aggravated robbery including armed robbery. And section 5(*b*) and (*bb*) of the Minimum Sentences Act as amended by Act number 10 of 1989 prescribes a minimum of fifteen and thirty years' imprisonment for ordinary robbery and armed robbery respectively.

Upon this construction therefore the appellants who were found to have been armed with a pistol at the time of committing the offence, were properly charged with and convicted of the aggravated species of armed robbery under sections 285 and 286 of the Penal Code. Likewise they were properly sentenced to a minimum of thirty years' imprisonment under section 5(*bb*) of the Minimum Sentence Act as amended by Act number 10 of 1989.

The view was also expressed that the charge as laid ought to have cited in the statement of offence Act 10 of 1989 as the penalty provision on which the charge was based, and that failure to do so did prejudice the appellants. We think however that this was not necessary. The statement of offence did cite sections 285 and 286 of the Penal Code as the provisions on which the charge was based. Furthermore the statement of offence alleged that the appellants used a pistol in committing the offence. That in our view sufficiently informed the appellants as to what type of aggravated robbery they were being charged with so that they could prepare their defences accordingly. We, therefore, can find no justification in Mr *Maruma*'s criticism that the charge was defective.

Closely connected with this was the allegation that the district court had acted in excess of its jurisdiction when sentencing the appellants to thirty years' jail. Mr *Maruma* contended that in terms of section 170 of the Criminal Procedure Act the sentencing power of the district court is limited to maximum of only eight years' imprisonment, and therefore that court has no authority to impose thirty years on the appellants. It seems to us however that the learned counsel has misapprehended the meaning of section 170 of the Criminal Procedure Act. The relevant provisions of that section state that:

> "170(1) A subordinate Court may, in cases in which such sentences are authorised by law, pas the following sentences:
>
> (*a*) imprisonment for a term not exceeding five years; save that where a Court convicts a person for a scheduled offence it may if such sentence is authorised for such offence for a term not exceeding eight years."

This is no doubt the provision on which Mr *Maruma* relied for his submission. However the learned counsel failed to grasp the import subsection (2) which qualified the provisions of subsection (1) above. The relevant provisions of subsection (2) reads as follows:

> "(2) Notwithstanding the provisions of subsection (1):
>
> (*a*) A sentence of imprisonment:
>
> (i) For a scheduled offence which exceeds the minimum term of imprisonment prescribed in respect of it by the Minimum Sentences Act of 1972;
>
> (ii) …
>
> (*b*) …
>
> (*c*) Shall not be carried into effect executed or levied until the record of the case or a certified copy of it, has been transmitted to the High Court and the sentence or order has been confirmed by a judge."

The combined effect of these provisions as reproduced is that a subordinate court first is enjoined to impose on the offender the minimum prison term prescribed for the offence by the Minimum Sentences Act; in other words the Court has no discretion in the matter to pass any lesser sentence the offender to a prison term has to be confirmed by the judge of the High Court before it is carried into effect, executed or levied.

In the present case the prison term of thirty years imposed by the district court was as shown earlier, the barest minimum prescribed for the offence by the Minimum Sentences Act as amended by Act 10 of 1989. In terms of subsection (2) as reproduced above, that sentence was clearly within the sentencing powers of that court. Indeed not only was the Court obliged to pass that sentence but it could also in its discretion if the circumstances called for stiffer penalty, have meted out a longer prison term subject however to confirmation by the High Court.

In yet another ground Mr *Maruma* criticised the High Court for failing to hold that trial by the district court was a nullity under section 225(1) and (4) of the Criminal Procedure Act. The two subsections of section 225 above cited in effect make it unlawful for a Court in the trial of a case such as this one to adjourn the case from time to time and to remand the accused in custody for an aggregate exceeding sixty days except upon certificate by specified officers stating the need and grounds for such further orders of adjournment and of remand custody of the accused.

Admittedly there was a breach of the mandatory statutory provisions of section 225(1) and (4) of the Criminal Procedure Act. The trial Court made orders of adjournment and of remanding the appellants in custody for an aggregate of more than sixty days without any certificate of a specified officer stating the need and grounds for such further orders. Now the question is whether such breach rendered the trail nullity as urged by Mr *Maruma*. We think it did not. The mandatory provision under section 225(1) and (4) mentioned above is one of a procedural nature. It is a provision which seeks mainly safeguard the liberty of an accused person. It was not alleged nor is it apparent from the record, that the breach of that provision has affected the appellants' trial or prejudiced them in any way say by making it impossible to find or to communicate with counsel. In our view such breach of a substance of the trial does not render the trial a nullity. We accordingly reject this ground. We should add however, that the trials courts should be more vigilant in the application of section 225(1) and (4) of the Criminal Procedure Act above cited in order to make the provision which seek to safeguard the rights of the accused meaningful.

Again it was alleged that the trial Magistrate had failed to call essential evidence. This was in relation to the first appellant John Onenge who in his defence of alibi had claimed that at the time of the commission of the offence he was in police custody apparently in connection with some other offence in answer to cross-examination he is recorded as saying that he did not know the importance of calling the officer in charge of the police station in question to produce the lock up register in support of alibi. Mr *Maruma* therefore submitted that in those circumstances the trial Court erred in failing to call for the said lock up register which would have provided the necessary evidence to determine whether or not the appellant could have been at the scene of the crime on 25 February 1991 as alleged.

We can find no merit in this complaint. The appellant was seen and identified at the scene of crime by PW1 and PW3 on 25 February 1991. His co-accused Julius Senene in his cautioned statement to the police (exhibit P5) stated that the appellant called on him on 25 February 1991. And PW9 testified that he and other members of "Sungu Sungu" arrested the appellant in the dead of the night on 26,27 February 1991 on suspicion, when the appellant and another person tried to run away with some luggage in their possession upon seeing the "Sungu Sungu" following them. Thus there was abundant evidence before the trial magistrate showing that on 25 February 1991 the appellant was not at police lock up as claimed. He was free and he could have been at the scene of crime on 25 February 1991, the day of commission of the offence. Thus the lock up register was really not necessary for the purpose of determining whether or not the appellant was at the scene at the time of the commission of the offence and hence the trial Magistrate was not obliged to call for it.

Criticism was also levelled against the procedure of tendering exhibits in evidence. The radio which was stolen in the course of committing the offence charged in this case tendered in evidence as exhibit P2 by its owner (PW2). Criticising this, Mr *Maruma* submitted that the radio ought to have been tendered by the police officer who was keeping custody of it. However we can find no substance in this complaint. PW2 testified that exhibit P2 was stolen from his home during the commission of the offence charged and the appellant Julius Senene confirmed that exhibit P2 was the same radio which the police had seized from him. Thus so long as the identify of exhibit P2 was not in dispute we could see no valid reason why its owner could not properly produce it in evidence.

It should be born in mind that the object of the rule that an exhibit should be produced by the person who has custody it is to ascertain the identity of the said exhibit as the very one which it is claimed connects the accused with the offence charged. In the instant case both the prosecution and the defence are agreed that exhibit P2 the radio stolen during the commission of the offence charged is the very one found in possession of the appellant, thereby implicating him with the offence charged. In such circumstances it is pointless to insist on the production of the radio by the police who had kept custody of it.

And lastly Mr *Maruma* criticised the High Court for failing to find that the trial magistrate had written the judgment before hearing the defence case. Advancing this complaint particularly in relation to the second appellant Julius Senene, the learned counsel contended that the irregularity meant that the magistrate did not consider the defence case. This he went on necessarily prejudiced the defence thereby vitiating the whole judgment.

There is no doubt that this is a serious allegation and we must make it plain that if it were founded it would have far reaching consequences. However upon a careful scrutiny of the record we are of the opinion that the allegation is not substantiated. The judgment of the trial magistrate is about four and a half typed pages. The record shows that the magistrate delivered that judgment on the same day at the same sitting after concluding the defence case and without any adjournment during which to compose the judgment. Counsel submitted that such a long judgment must have been written before the proceedings were concluded in particular before the defence was heard. Referring to an endorsement on the record which shows that the defence case was adjourned to 4 September 1991 for continuation while the judgment is dated 3 September 1991 Mr *Maruma* stated that this confirmed his claim that the judgment must have been written before the defence was heard.

As intimated earlier however we are not satisfied that this allegation has been substantiated. The second appellant, Julius Senene, was the last to give evidence in which he mentioned one Jambii as the person who had brought a radio to him, and indeed this was the backbone of his defence. That fact is clearly reflected and duly considered in the judgment of the trial Magistrate. But as far as we could ascertain, that fact is not reflected in the evidence of any other witness. Then the question is: If the magistrate had written his judgment before hearing the defence case where did he get this fact from? We specifically put this question to Mr *Maruma* but he could give no answer to it.

Mr *Maruma* had informed us from the bar that according to his instructions, during the morning of the day the judgment was given the magistrate had

recorded the whole of the defence for the first appellant and the examination-in-chief of the second appellant Julius Senene. He then adjourned the case for cross-examination of the appellant Julius which according to the record was a brief one covering only about six lines. After that judgment was delivered very late in the afternoon at about 5pm. Therefore it may be that during the long adjournment after the morning session the magistrate started to compose his judgment basing it on the bulk of the prosecution and the defence evidence already recorded and then rounded it off in Court after the brief cross-examination of the appellant Julius during the afternoon session.

On the issue that the defence case was adjourned to 4 September 1991 for continuation while the judgment is dated 3 September 1991, we are satisfied that this was only a mix up by the magistrate in the recording of dates. The true position is that the judgment was dated and delivered on 4 September 1991 and not 3 September 1991 as the judgment purports to show. For Mr *Maruma* conceded that the defence of the second appellant Julius was recorded on 4 September 1991, the day the judgment was delivered. Yet the endorsement on the record shows that it was recorded on 3 September 1991. It was therefore a slip for the magistrate to endorse that the defence of the appellant Julius was recorded on 3 September 1991 when in fact it was recorded that the judgment was dated and delivered on 3 September 1991 when in fact it was dated and delivered on 4 September 1991.

After a careful examination of the record, we are satisfied that the criticisms leveled against the decision of the High Court are unfounded and the appeal is without merit. The High Court rightly upheld the appellants' convictions and the sentences imposed on them. The appeal, therefore fails and is accordingly dismissed in is entirely.

For the appellants:
Mr CJ Maruma

For the Respondent:
Mrs M Lyimo, Senior State Attorney

Oraro v Mbajah
[1990–1994] 1 EA 500 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	1993
Case Number:	85/92
Before:	Pall J
Sourced by:	LawAfrica

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[1] Defamation – Burden of proof of defamation – Publication to third party – Privileged communication – Defendant to prove privilege.

Editor's Summary

The plaintiff is an advocate of the High Court. He claimed that the defendant published information alleging that he was involved in the murder of the late Dr Robert Ouko, a former Minister for Foreign

Affairs and International Co-operation and that he was unscrupulous and not fit to represent the Ouko family in the judicial inquiry into his death that followed.

The defendant, in his statement of defence, claimed that his communication was contained in an affidavit intended for his advocate in the said judicial inquiry and that it was therefore privileged. The defendant also, nonetheless, pleaded truth and justification.

At the hearing, the defendant made an application for adjournment. This application was dismissed. The defendant's advocate therefore refused to participate further in the proceedings and the hearing continued without him or the defendant.

Held – The burden of proof that the words complained of were brought to the actual knowledge of a third person is on the plaintiff but it is not necessary for the plaintiff in every case to prove that directly. If he proves facts from which it can be reasonably be inferred that the words were brought to the notice of some third person, he will establish a *prima facie* case.

When publication is through letter or other document by post to a particular person, the writer is not responsible for its publication to other persons. But if the original publisher of defamatory words authorises or intends their republication, he is clearly liable. Also where having regard to the circumstances the repetition of the defamatory words might be reasonably be anticipated to follow, the original publisher is liable.

Where a defence of absolute privilege has been set up, it is for the defendant to allege and prove all such facts as are necessary to bring the words complained of within the privilege.

Absolute privilege will extend between solicitor and his client on the subject which the client has retained the solicitor for provided nothing is said which is outside what is relevant to the matter.

Since the defendant's affidavit was not admitted in the judicial inquiry the defence of privilege will not apply to it.

General damages and costs of suit awarded to the plaintiff.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Davies v Shah [1957] EA 352

United Kingdom

Minter v Priest [1930] AC 558 (HL)

Judgment

Pall J: The plaintiff who is an advocate of this Honourable Court has sued the defendant that on or about 23 September 1991 the defendant falsely and maliciously wrote and published or caused to be published of the plaintiff (*inter alia*) by way of his conduct and profession as an advocate by an affidavit (the

affidavit) written and signed by the defendant before a Notary in United States of America and therefore forwarded by facsimile to Mr Joseph Shamalla advocate of Nairobi and Mr Paul Muite the then chairman of the Law Society of Kenya, the Nation Newspapers and others in Kenya unkown to the plaintiff.

The affidavit (exhibit 2) running into 21 type written pages has been fully set out in the plaint. I will refer here and there to its pertinent parts material to this suit. The plaintiff claims that by the words in the affidavit in their material and ordinary meaning the defendant meant and was understood to mean of and concerning the plaintiff that he was a party to and was involved in the murder of late Dr Robert John Ouko (Dr Ouko) former Minister for Foreign Affairs and International Co-operation in the Government of the Republic of Kenya; that the plaintiff was an unethical and unscrupulous lawyer not a fit and proper person to represent the Ouko family; that the plaintiff in whose company with others named the late Minister was allegedly last seen alive had knowledge of the circumstances leading to his murder which he has failed to reveal to the Kenyans and the world at large; that the plaintiff who was not actually the Ouko family lawyer though he pretended to be so conspired with Mrs Christabel Ouko the widow of the late Dr Ouko to act in the proceedings well known as Ouko Murder Commission of Inquiry (The Ouko Inquiry) in a manner favourable to the Government of Kenya to conceal the truth relating to the death of Dr Ouko. The Ouko Inquiry was appointed by His Excellency the President of Kenya to inquire into the circumstances surrounding and leading to the disappearance and subsequent death of Dr Ouko by *Gazette* Notice number 4585 of 2 October 1990. By reason of these falsehoods the plaintiff claims that he has suffered loss and damage.

By his defence the defendant admitted that he swore an affidavit before a notary public in USA. He however contended that the said affidavit was made on an occasion of absolute privilege as a communication between him and Mr Shamalla his advocate. The defendant has also denied that the facts set out in that affidavit are false or malicious or that the facts in their natural or ordinary meaning could be construed as defamatory of the plaintiff. The defendant has further denied that he published the contents of the said affidavit out of malevolence or spite towards the plaintiff. There are some other allied defences of which I have taken cognisance but for the sake of brevity I do not find it necessary to set them out here in this judgment.

On 2 June 1992 with the consent of counsel of both sides this suit was set down for hearing on 27, 28 and 29 days of July 1992. On 27 July 1992 Miss Nguku holding brief for Mr *Kajwang* for the defendant applied for adjournment on the ground that Mr Kanjwang was indisposed. So the suit was deferred to 28 July 1992. On that day Mr *Kajwang* appeared and explained that 27 July 1992 he could not appear because he was delayed because of a road accident. He did not say that he had sustained any injury or that he was unwell otherwise. He applied for further adjournment because he said that on or about 24 July 1992 his client had spoken to him on telephone from USA and said he would not attend at the hearing for reasons of his personal safety in Kenya. Although I was not impressed with the reason given I adjourned the hearing to 28 September 1992 so as to give the defendant ample time to make his arrangements to travel down to Kenya, if so wished on 28 September 1992 Mr *Kajwang* appeared and once again applied for adjournment on the same ground. He confirmed that he had notified the defendant about the hearing by conveying to him the contents

of my said order of 28 July 1992 soon after the order was made. I refused to grant further adjournment of the suit and Mr *Kajwang* decided not to participate in the trial. The suit accordingly proceeded to hearing in the absence of the defendant and his counsel.

Dr Ouko was the eldest brother of the defendant. The defendant now resides at Seattle Washington in the United Sates of America. After the death of Dr Ouko in the words of the defendant he "fled" from Kenya as his life was in danger and now lives in America in exile as a refugee. Until he left Kenya, the country of his birth, the defendant was a very senior civil servant in Kenya. He had been in the civil service for 23 years and held several positions of high responsibility. For example he had been the Deputy Provincial Commissioner of the Central Province of Kenya and just before he left Kenya he was Deputy Secretary in the office of the Attorney-General of Kenya. Thus because of his position and his allegation that he fled from Kenya for his personal safety after the Dr Ouko's death, anything coming from him in connection with the mysterious death of his brother Dr Ouko is bound to be taken by an ordinary man in the street as highly credible.

It is not in dispute that Dr Ouko was a member of the Presidential Tour of America which took place in or about January 1990. On 13 February 1990 soon after his return from America, Dr Ouko mysteriously disappeared from his house at Koru and three days later that is on 16 February 1990 his dead body was found at a nearby place called Got Alila. The mystery of Dr Ouko's death caused immediate repercussions in Kenya. The Kenya Police issued a statement soon after the death of what they believed to be the circumstances leading to his death. The statement suggested that Dr Ouko had possibly committed suicide. This suicide theory did not commend itself to the University students who took to the street of Nairobi and there were riots in the City of Nairobi and elsewhere in Kenya.

A team from the New Scotland Yard under the command of Detective Superintendent Troon was invited by the Kenya Police to assist it in investigating the death of Dr Ouko. After prolonged investigations, Mr Troon prepared his report and submitted it to the Attorney-General of Kenya. Subsequently as I have already said His Excellency the President appointed the said judicial commission of inquiry which conducted its proceedings for one year and one month before it was terminated and dissolved. On 28 September 1991 the Daily Nation published a story on its front page which with its pertinent parts reads as follows:

> "Mr Eston Barrack Mbajah has sworn a 21 page affidavit in the United States relating to the February 1990 disappearance and subsequent death of his brother.
>
> He sent the affidavit to Nairobi lawyer Japheth Shamalla with a covering letter dated 26 September instructing him to send it to the Judicial Commission inquiring into the Ouko mystery. The Commission holds its proceedings in Kisumu.
>
> Mr Mbajah also instructs Mr Shamalla to appear before the Commission on his behalf. The document is copied to the chairman of the Law Society of Kenya Mr Paul Muite. Mr Mbajah who lives in Washington swore the affidavit before a notary public in the state of Washington resident at Tacoma Ms Christine Gullet on 23 September."

Full contents of that affidavit were disclosed to the plaintiff through a copy thereof shown to him by another advocate Mr Mohamed Nyoga. Later in the same week a copy of the said affidavit was anonymously sent to the plaintiff's

wife through post. The copy which the plaintiff had seen with Mr Nyoga and the copy which his wife had received in post were exactly the same the plaintiff stated. Each bore the fax date of 26 September 1991 and was signed by the defendant before Ms Christine Gullet Notary Public in and for the state of Washington on 23 September 1991.

PW5 Mr Wangethi Mwangi the Group Managing Editor of Nation Newspapers Limited produced exhibit 2 a copy of the said affidavit referred to in the Daily Nations issue of 28 September 1991. It is also identical with the copy which was shown to the plaintiff by Mr Nyoga and the one which was received in post by the plaintiff's wife. Mr Mwangi also produced a covering letter (exhibit 1) dated 26 September 1991 addressed by the defendant to Mr Shamalla Advocate which reads as follows:

> "I forward herewith affidavit under oath explaining what I know regarding my late brother's death. I herewith instruct you to transmit (it) under (an) open letter to the Commission and to appear before the Commission on my behalf if you are required to.
>
> Yours sincerely
>
> Eston Barrack Mbajah
>
> cc Mr Paul Muite
>
> Chairman Law Society of Kenya
>
> PO Box 47122
>
> Nairobi Kenya"

Mr Wangethi stated that the said documents namely exhibit 1 and exhibits 2 were received in his office by his City Editor who showed them to Mr Wangethi. He could not say from whom the said documents were received by his City Editor and exactly when they were received. He also said that another document exhibit 12 was received in the Daily Nation's office which was possibly received along with the other two documents but he could not say that for sure. Exhibit 12 is a copy of an open letter written by Mr Shamalla to the Honourable Mr Justice Gicheru who was the chairman of the Ouko Inquiry which reads as follows:

> "Re Eston Barak Mbajah
>
> In accordance with the written instructions I have received from Eston Mbarak Mbajah I forward herewith an affidavit by him duly sworn before a Notary Public.
>
> The specific instructions from Mr Mbajah are that I forward the said affidavit under cover of an open letter and accordingly I have done so. The client has further instructed me to appear for him before the commission should the commission so require.
>
> Yours faithfully
>
> J G Shamalla
>
> Shamalla Koome and Company Advocates
>
> cc P K Muite
>
> Chairman
>
> Law Society of Kenya"

PW4 Assistant Commissioner of Police Humphery Kariuki who was the exhibits Officer at the Ouko Inquiry said that he was charged with the custody of the exhibits produced at the Inquiry. He testified that the affidavit copy whereof is exhibit 2 was never produced in the Inquiry as an exhibit although he was familiar with it having read it at the Inquiry.

It may be noted that under section 10 of the Commission of Inquiries Act (Chapter 102) the Commissioners could for sufficient reasons to be recorded, receive evidence by affidavit subject to the provisions of section 3(3) of that Act which says that a person who is adversely affected by the affidavit shall be given an opportunity to cross examine the deponent. So presumably because the deponent was resident in United States of America and could not be made available for cross examination before the inquiry by the persons who were adversely mentioned in it the Commissioners of the Inquiry who received the affidavit by post decided not to admit it in evidence. I am not concerned with the reasons however. For my purpose it is suffice to know that the document was not admitted in evidence by the Ouko Inquiry.

The burden of proof that the words complained of were brought to the actual knowledge of some third person is on the plaintiff but it is not necessary for the plaintiff in every case to prove that directly. If he proves facts from which it can be reasonably inferred that the words were brought to the notice of some third person, he will establish a *prima facie* case (see *Gatley on Libel and Slander* (8ed) paragraph 227). Ordinarily when publication is through a letter or other document by post to a particular person, the writer is not responsible for its publication to other persons. But if the original publisher of defamatory words authorises or intends their republication, he is clearly liable. (Per *Gatley* (*supra*) paragraph 268). Also where having regard to the circumstances the repetition of the defamatory words might reasonably be anticipated to follow the original publisher, is liable.

In this case the defendant forwarded the affidavit which contains the words complained of to Mr Shamalla under cover of a letter (exhibit 1) requesting him to forward the said affidavit to the Ouko Inquiry under an open letter (exhibit 12) because Mr Kariuki (PW4) saw it there. National Newspapers Limited received a copy of Mr Shamalla's said letter (exhibit 12). There is evidence of Mr Kariuki Assistant Commissioner of Police (PW4) that when he was attached to the Ouko Inquiry as its exhibits officer, he had an opportunity to go through the contents of the defendants said affidavit. There is further evidence that Mr Nyoga got a copy of the said affidavit when he was in Nairobi. There is again the evidence of the plaintiff that his wife received a copy of the affidavit through post. Exhibit 1 shows that a copy of the affidavit was intended to be forwarded to Mr Muite who was then the chairman of the Law Society of Kenya. There is evidence that the Nation Newspapers Limited received the affidavit with its covering letter in its office and that it published the said story in its daily issue of 28 September 1991 after one of its reporters had spoken to the defendant in United States of America on telephone. Instead of taking necessary steps to restrict further publication of the affidavit, the defendant instructed his advocate to forward it under cover of an open letter which his advocate did. Exhibit 12 a copy of his advocate's covering letter which was also received in the Newspapers office shows it. I am satisfied therefore that the defendant intended the contents of his affidavit to be further published.

The defendant has implicitly admitted the publication as in paragraph 1 of his defence he has said "the defendant denies that he published the words contained in the affidavit out of malevolence or spite towards the plaintiff as alleged in paragraph 8 of the plaint".

There is no direct evidence that the contents of exhibit 2 were published to Mr PK Muite who was then the chairman of the Law Society of Kenya although according to exhibit 1 the covering letter a copy of the said affidavit was intended by the defendant to be forwarded to Mr Muite. However following the Court of Appeal in *Davies v Shah* [1957] EA 352, as some publication has been proved sufficiently, there is a reasonable presumption that the carbon copy intended to be sent to Mr Muite was sent by the defendant and duly received by Mr Muite. Otherwise the defendant would have specifically denied in his defence, which he did not do, that a copy of the said affidavit was ever sent to Mr Muite.

It could be argued that the defendant did not specifically direct Mr Shamalla to publish the contents of that affidavit. Yet, if it is proved that the defendant was the one who wrote the affidavit and that the affidavit was published, there is a presumption that the defendant was the one who caused it to be published because in law the defendant ought to do all he can to prevent it from being published (*Halsbury's Laws of England* (3ed) Volume 24 at 36–37).

On balance of probabilities, I hold that exhibit 2 produced before me is a true copy of the affidavit which the defendant has conceded in his defence to have signed on 23 September 1991 before a Notary Public. No other affidavit has been identified by the defendant.

The defendant has claimed in his defence that the said affidavit was published by him to his advocate Mr Shamalla on an occasion of absolute privilege as a communication between counsel and client. But where a defence of absolute privilege has been set up, it is for the defendant to allege and prove all such facts as are necessary to bring the words complained of within the privilege (*Gatley* (*supra*) paragraph 382). Again absolute privilege will extend to the communication passing between solicitor and his client on the subject which the client has retained the solicitor for provided nothing is said which is outside what is relevant to the matter. In the instant case the defendant gave gratuitous instructions to forward the affidavit to the Ouko Inquiry under the cover of an open letter. Moreover, the defendant having held very responsible administrative positions for 23 years in the Government of Kenya ought to have known that his affidavit was not likely to be admitted in evidence at the Ouko Inquiry because of his non-availability for cross examination by those who had been adversely mentioned by him in his affidavit. Moreover as we said *Minter v Priest* [1930] AC 558 (HL) what the client has is only a qualified privilege and that the absolute privilege will ensure mainly to the benefit of the solicitor. Absolute privilege would have attached to the affidavit had it been admitted in the Ouko Inquiry. But I do not have evidence that it ever became a part of the record of that Inquiry.

At 10 of the affidavit, the defendant has said as follows:

> "The house girl who is related to me known as Selina had given me a small note written by my late brother which he left for her to give to me personally. In this note my brother informed me that he had been called by Mr Oyugi and told that Oyugi would help him escape from Kenya because the president was not ready to forgive him. My late brother told me that he was suspicious in the manner that these people wanted him to leave the house. The people who went to collect him were Johana Anguka, District Commissioner of Nakuru, George Oraro, Advocate and Paul Gondi a banker assisted by Eric Onyango. They collected my brother in the morning of 13 February 1990 with instructions that they were going to hand him over to Oyugi

> who was waiting for him and Minister Biwott. That was the last time my brother was seen alive until the president announced that his body was discovered a few kilometres from his home shot and burnt beyond recognition.
>
> It is therefore the duty of Hezekia Oyugi, Minister Biwott, Johana Anguka, George Oraro and Paul Gondi to tell Kenyans and the world where my brother went that morning."

At 18 of that affidavit the defendant said:

> "My late brother's wife Christabel who decided to go along with the government in regard to her husband's murder decided to have her own lawyer, a lawyer referred to as Ouko family lawyer. Ouko had brothers and sisters. Ouko had a clan. The clan wanted one lawyer to represent them in this commissioner but Mrs Ouko said that she would not go along with that, she would have her own lawyer who would agree with the government in all issues before the commission because as she puts it the government would have to educate her children and look after them. Therefore she was not in any way willing to be at odds with the government by raising questions on the murder of her husband."

The plaintiff has claimed that the defendant meant and was understood to mean that the plaintiff with three other persons named was involved in the disappearance and murder of Dr Ouko, that the plaintiff was an unethical and unscrupulous lawyer and therefore not fit to represent the Ouko family that the plaintiff in whose company (with others) Dr Ouko was seen alive had the knowledge of the circumstances leading to the death of Dr Ouko which he had failed to reveal to Kenyans and the world at large, and that the plaintiff had been engaged by the widow of the deceased Dr Ouko as part of the conspiracy to side with the government in all issues before the Ouko Inquiry and act in the proceedings of the Ouko Inquiry in a manner favourable to the government and or conceal the truth about the death of Dr Ouko. The defendant has pleaded justification in his defence saying that the matters complained of are true in substance and in fact.

PW1 Mrs Selina Were has stated in her evidence that Dr Ouko gave her no note at all before his disappearance and that she gave no note to the defendant. I have seen her demeanor in the witness box. She impressed me as a witness of truth. I therefore hold that it is not true that the defendant had been given a note by this witness which Dr Ouko had left with her for the defendant. It is a complete fabrication on the part of the defendant.

The defendant has said that he had hidden that note in his office under a carpet. He has further said that when he was arrested and tortured and taken to his office by the Criminal Investigation Department officers, they found the note and took it away. He has not identified the officers. He has said further that the said note should be with the Criminal Investigation Department officers. However the credibility of his statement is almost nil when you believe Selina that she never gave him any such note.

The defendant came up with this story about the note about one and a half years after the event. In the meantime he had given two statements to Mr Troon (exhibits 10 and 11). Exhibit 10 was made on 31 March 1990 and exhibit 11 on 20 May 1990. There is no mention about the note in either of the two statements.

He has tried to explain that he did not mention about the note because earlier on Mr Kariuki (PW4) had warned him of serious consequences if he mentioned to Mr Troon about the note. He has said that Mr Kariuki who was

initially investigating this matter took down a statement from him. However Mr Kariuki has said in this Court that he did not take any statement from the defendant. His duties he said were to visit the scenes of crime, examine the scene and collect any material evidence if found at the scene. He does not examine witnesses at all, he said. In the same affidavit (page 13) he has stated that as Dr Ouko had lost favour with the President, his passport had been taken away. However the plaintiff has stated that according to the evidence given at the Ouko Inquiry in his presence Dr Ouko's passport was never seized. It was in fact with his personal assistant who had taken it in order to obtain foreign exchange for Dr Ouko as he was scheduled to travel to Gambia on 14 February 1990. He said that in his presence the said passport was produced at the Inquiry to show the foreign exchange endorsement thereon.

The defendant also stated that Dr Ouko had been suspended from his position as a Cabinet Minister. But there is no evidence to support it. On the other hand the plaintiff has produced exhibit 9 Kenya Times of 6 February 1990 which shows that Dr Ouko as the Foreign Affairs Minister had announced on 5 February 1990 that Canada had resumed full diplomatic relations with Kenya. Also there is evidence that Dr Ouko had taken the Canadian High Commissioner to the State House on 5 February 1990.

The defendant has further stated that as Dr Ouko was no longer a Cabinet Minister his burial was not accorded the same importance as of a senior Cabinet Minister. The plaintiff has however produced exhibits 5 and 7 namely the Taifa and the Sunday Times respectively both dated 25 February 1990 which show that Dr Ouko's burial was attended by the President and almost his entire cabinet.

The plaintiff has stated that Dr Ouko was his client since 1980 and by the time of his death the plaintiff was his only advocate. He was his friend as well. The plaintiff was not retained by Mrs Ouko alone to represent the family at the Inquiry but his appointment was after a meeting attended by all the other members of the family, Dr Ouko's widow, his mother and two brothers but not the defendant and the other brother Collins. Mrs Ouko also engaged him to deal generally with the matters concerning the estate of Dr Ouko. The plaintiff also advised the clan about the burial arrangements. On behalf of the family he made several representations to the government. It was at least to some extent as a result of his representations that private doctors were permitted to be present at the post mortem of Dr Ouko, the involvement of Scotland Yard in the investigation of Dr Ouko's death came about, the publicity on Kenya Broadcasting Corporation in respect of his death improved, the Troon report was unconditionally accepted and received by the Attorney-General and ultimately the Ouko Inquiry was set up.

The plaintiff represented the Ouko family at the Inquiry for one year and one month. He successfully proved through cross examination of Dr Kaviti, the chief government pathologist and other witnesses at the Inquiry that it was absurd to suggest that Dr Ouko committed suicide, the theory which Dr Kaviti had propounded. After cross examination Dr Kaviti agreed that all the circumstances of the case pointed to a case of homicide and not suicide. Dr Kaviti also agreed that he had no basis to entertain the theory of suicide. Another witness Mr Douglas of Scotland Yard had expressed an opinion that it was possible for Dr Ouko to have started the fire and set fire to himself thus lending support to

the theory of suicide. After cross examination by the plaintiff he too conceded that his opinion was erroneous. The plaintiff also cross examined senior superintendent Emanuel Mwichiti whose evidence was that Dr Ouko had in fact taken items which were found near his body at the scene from the house girl Selina and that it was not possible for Selina to have seen the white car from where she was standing. As a result of the cross examination Mr Mwichiti's evidence was discredited. The plaintiff has further stated that as a result of his cross examination AP Ogola Obongo was committed for perjury and imprisoned for 6 months.

I agree with the plaintiff that it would be absurd for him to involve himself in the death of Dr Ouko in the first place and then spend one year trying vigorously to prove that theory of suicide had no basis and that Dr Ouko was in fact murdered. There is no evidence that he went along with the government which supported the theory of suicide.

There is no evidence at all of the plaintiff's involvement in the disappearance and subsequent death of Dr Ouko. There is no evidence that the plaintiff had any knowledge or information about the circumstances leading to the death of Dr Ouko which he had withheld from the Kenyan public. There is no evidence that the plaintiff accepted his appointment as counsel for the Ouko family at the Inquiry in order to cover up the true facts relating to the death of Dr Ouko. The plea of justification therefore fails.

Still the words complained of do show in their natural and ordinary meaning that the plaintiff was involved in the murder of Dr Ouko, he knew of the circumstances leading to his death which he had not revealed to the Kenyans; that the plaintiff was an unethical and unscrupulous lawyer who was not fit to represent the Ouko family at the Inquiry and that he had conspired with Mrs Ouko to act in the Commission proceedings in a manner favourable to the government. The plaintiff was enrolled as an advocate of this Court in 1976. He is a Commissioner of Assizes and has been a member of the Business Premises Tribunal. He is a prominent member of the bar who has represented the Law Society of Kenya in various capacities. He has been a director of the Public Law Institute. He is a partner in the firm of Oraro and Rachier which employs six advocates and a non professional staff of 22. He is also a director of Capital Market Authority and a member of Insurance Advisory Board. He has been involved in various important commercial litigation. He is still young and would otherwise but for this adverse publication have a prospect of a bright future. His professional reputation is his main asset.

He has stated that the publication by the defendant has had a very adverse effect on his life both socially as well as professionally. He is being shunned in the social circles as he is regarded as a participant in the murder of Dr Ouko who knows all the circumstances leading to his death but is trying to conceal them using his position as a counsel. He avoids going to public gatherings because in his community his name is associated with the death of Dr Ouko. He has also stated that his practice had been badly affected. He can hardly remember more than two clients who have entrusted him with new work since this publication. He also recalled an incident where he requested a colleague in Kisumu to take an affidavit from Selina Were in relation to the note which was alleged to have been given by Dr Ouko. The following day the advocate told him that having considered the matter he would not like to be involved in it. It

was the same advocate he said whom he had represented in a case. There is no doubt that the plaintiff's professional integrity has been seriously compromised by the adverse publicity caused by the defendant.

The plaintiff has demonstrated that all the allegations concerning him in the affidavit although highly prejudicial are palpably false. The defendant did not avail of the opportunity to appear at the trial to establish the plea of justification. Nor did he abandon it. The defendant could not have honestly believed in the truth of these allegations. At the cost of others, including the plaintiff the defendant masqueraded as a champion of anti corruption, transparency and pluralism in Kenya. He tried to portray himself as an oppressed person who had to run for his life and flee from the country of his birth.

Here the plaintiff was alleged to have been involved in the murder of Dr Ouko an offence punishable by death. Under section 16(A) of the Defamation Act (Chapter 36) it is a mandatory provision of law that any damages awarded by the Court in such a case as this should not be less than KShs 1 million which is a starting point. Considering all the circumstances of the case I awarded a sum of KShs 1 500 000 to the plaintiff as general damages and enter judgment for the said sum of KShs 1 500 000 with interest thereon at 15% per annum from the date of judgment until payment in full. I also hereby restrain the defendant by himself or his servants and agents from publishing the said words hereinabove complained of or any similar words. I also award costs of the suit to the plaintiff.

For the plaintiff:
Information not available

For the defendant:
Mr Kajwang

Otieno and another v Republic
[1990–1994] 1 EA 510 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	7 October 1991
Case Number:	55/89
Before:	Gachuhi, Cockar JJA and Omolo AJA
Sourced by:	LawAfrica

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[1] Appeal – Appeal to High Court – Record of magistrate – Record utterly incomprehensible.

[2] Retrial – When ordered – Whether conviction should be quashed when ordering retrial.

[3] Theft by agents – Section 286(b) – Penal Code (Chapter 63).

Editor's Summary

The two appellants were each convicted on a total of six counts charging theft of money by agent contrary to section 286(*b*) of the Penal Code. They appealed to the High Court against their

convictions and sentences. The High Court was totally unable to make any sense out of the record of the trial magistrate as the record was said to be gibberish and utterly incomprehensible and so

is judgment. The High Court then sought the views of counsel appearing as to what they would say to a trial. Counsel for the appellants opposed that course, arguing that it would be unfair to order a retrial in the circumstances. Counsel for the Republic submitted that a retrial was the only course open to the Court. The High Court then quashed the convictions, set aside the sentences and ordered a retrial holding that the appellants "would refer a clean verdict rather than a reputation that they got away with it on a technicality". The Republic did not appeal against the order quashing the convictions of the appellants.

Held – A retrial will only be ordered where the original trial was either illegal or defective. *Manyala v Republic* criminal appeal number 57 of 1980 applied.

The fact that the record of the trial magistrate was gibberish and utterly incomprehensible did not by itself make the original trial illegal or defective and was not a ground for ordering a retrial. *R v Abdi Moge* (1948) 15 EACA 86 applied.

The proper order to make as regards the conviction when ordering a retrial is to set aside the conviction. The conviction can only be quashed when the merits of the same have been gone into which is not normally the case where the original trial is found to have been illegal or defective.

As there was no appeal against the quashing of the convictions the Court had no jurisdiction to make any order on the same.

Appeals allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Manyala v Republic criminal appeal number 57 of 1980 (UR) – **AP**

Rex v Abdi Moge and others (1948) 15 EACE 86 – **AP**

Judgment

Gachuhi, Cockar JJA and Omolo AJA: The two appellants Wilson Washington Otieno and Samuel Onyango were tried and convicted on a total of six counts each of which charged them with the offence of stealing money by agents contrary to section 286(*b*) of the Penal Code. The total sum allegedly stolen by them amounted to nearly KShs 4 million. Upon their conviction by the then Resident Magistrate of Nairobi (Miss Mary Angawa), the appellants were each sentenced to four years' imprisonment on each count the sentences being ordered to run concurrently. Each of them subsequently appealed to the High Court challenging his conviction.

It is clear from the record that the High Court was totally unable to make any sense out of the trial magistrate's record. In the words of Mr AR *Kapila* who appeared for the appellants in the High Court and Mr *Murgor* who represented the State:

> "Record is gibberish and utterly incomprehensible and so is judgment. We have been trying since 1986 to have this rectified but without success - vide letter dated 30 June 1988 from assistant DPP to M/s AR *Kapila*."

It appears from the magistrate's record that the appellants were convicted and sentenced on the 18 December 1985. Their appeals to the High Court were entered on the 7 February 1986, but they were not heard until the 7 April 1989, some four years later. It is on this latter day that the remarks we have quoted herein were made by counsel. It is very clear from the record that efforts were made to rectify the magistrate's records but such efforts were in the end futile.

Faced with a "gibberish and utterly incomprehensible record", the High Court raised with counsel the question of a retrial. Not unnaturally, Mr *Kapila* opposed a retrial citing to the Court the ancient case of *Rex v Abdi Moge and others* (1948) 15 EACA 86. We will deal with this case at a later stage. Mr *Murgor*, however, took the position that the only course open to the High Court was to order a retrial, as the appellants had not served any part of their sentence. After their sentence on 18 December 1985, the appellants served one month of the four-year-sentence before each of them was released on bail pending the hearing of their appeals. Having listened to both Mr *Kapila* and Mr *Murgor*, the High Court (Aragon and Tank JJ) made the following order:

> "We do not think that the grounds urged by Mr *Kapila* are really strong enough to induce us not to order a retrial. In contradistinction to *Abdi Moge* case appellants have not served their sentences but for about 1 month. In every retrial accused would have to incur expenses which might even be heavy. We feel sure that appellants would prefer a clean verdict rather than a reputation that they got away with it on a technicality. We therefore quash the convictions and set aside the sentences and order that appellants be retried on the self-same charges and on no others. The charges shall not be amended or substituted in any way."

From that order, the appellants now appeal to this Court, the first ground of appeal being that:

> "The order of retrial is based on erroneous principles of law and assumptions of fact and unjust in all the circumstances of this case."

We think this appeal must be determined on that issue. We have already referred to the case of *Rex v Abdi Moge and others* (*supra*) where some two pages were found to be missing from record of the magistrate. The appeal was allowed on the basis that:

> "It is impossible for an appellate court in such a case as this to be certain that an appellant has not been prejudiced in the prosecution of his appeal."

Referring to the case of *Simpson v Nakuru District Council (1940)* XIX KLR 27 which was a decision of the then Supreme Court of Kenya, the Court in the *Moge* case stated at 87.

> ". . . in the case of *Simpson v Nakuru District Council* . . . The Supreme Court of Kenya quashed a conviction on the ground that as the record was indecipherable it was impossible for the Court to judge the merits of the appeal. In that case as well as in the recent case referred to, *supra*, the Appeal Court left it open to the prosecution to institute fresh proceedings *de novo*. We think a better order for an Appeal Court to make in such case would be to order a new trial since the quashing of the conviction without such order might well lead to a successful plea of *autre fois acquit*."

This case would appear to be an authority for the proposition that where the record of the trial Court is indecipherable, which is the exact position in the appeal before us, a retrial ought to be ordered, of course bearing in mind the other factors such as whether the appellant has served a substantial portion of the sentence and whether in all the circumstances of the case, a retrial would be

fair. In the case of *Manyala v Republic* criminal appeal number 57 of 1980 (UR) this Court held that a retrial will only be ordered when the original trial was illegal or defective. The appeal was allowed on the ground that the trial was not illegal or defective, and it was the charge that was defective. We think this is the correct test and in the circumstances of this case no one alleged that the original trial of the appellants was illegal or defective. It is the record of the magistrate which turned out to be defective in the sense that it is "gibberish and utterly incomprehensible".

Again the appellants do not appeal to us against the quashing of their conviction and despite our having extended to the Republic time to reconsider its position no application to appeal out of time was made to us. We would accordingly have no jurisdiction to make any order in connection with the quashing of the convictions as no complaint is made against that part of the High Court order. We are ourselves of the view that when ordering a retrial, the proper order to make is not to quash but set aside the conviction since the merits of the conviction have not been gone into. Mr *Okumu* for the Republic in the end conceded the appeal. We allow the appeal and set aside the order of retrial made by the High Court. That shall be the order of the Court.

For the appellants:
Mr AR Kapila

For the State
Mr Murgor and *Mr Okumu*

Paul v Republic
[1990–1994] 1 EA 513 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	13 May 1992
Case Number:	49/92
Before:	Omar, Ramadhani and Mnzavas JJA
Sourced by:	LawAfrica

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[1] Criminal law – Effect of plea of guilty to the sentence – Factors to consider before interfering with sentence passed.

Editor's Summary

The appellant, Bernadeta Paul, had an affair with Godfrey August and later conceived and delivered a baby boy. Her parents however persistently inquired about the identity of the father of the child.

Eight days after delivering, the appellant administered coffee pesticide to the child thereby killing it and unsuccessfully tried to take away her own life with the same pesticide. She was arrested and charged with the offence of infanticide.

On her own plea of guilty, she was convicted and sentenced to 4 years' imprisonment. She appealed against the sentence.

Held – The trial Judge erred in failing to consider the appellant's own plea of guilt when sentencing her. (*Francis Chilema v R* applied).

A Court of Appeal will only interfere with the judge's discretion when sentencing if it appears that the judge acted upon some wrong principle or imposed a patently inadequate or manifestly excessive sentence (*R v Mohammed Ali Jamal* (1948) 15 EACA 126 and *James s/o Yaram v R* (1951) 18 EACA 147 followed).

Appeal succeeds.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Francis Chilema v R [1968] HCD 510 – **AP**

James s/o Yaram v Republic (1951) 18 EACA 147 – **F**

Republic v Mohamed Ali Jamal (1948) 15 EACA 126 – **F**

Judgment

Omar, Ramadhani and Mnzavas JJA: The appellant, Benedeta Paul, had an affair with one Godfrey August on 20 November 1984. The embrace culminated to pregnancy and on 20 August 1985 she delivered a full-term baby boy in hospital where she had been sent by her parents. Apparently the parents did not suspect her to be in the family way, neither did she tell them of her condition.

She remained in hospital for only one night and was discharged. On arriving home the parents who had, as already mentioned, been taken completely unaware started asking her as to who was the father of her child. The appellant replied that she did not know the whereabouts of the putative father. It would appear from the facts narrated to the trial Court that parental pressure reached to such an extent eight days after delivery of the infant that the appellant decided to kill the baby and did so by administering a coffee pesticide to it.

From the facts in support of the charge after the baby had died the appellant tried to take her own life by drinking the same pesticide. Immediately after the killing of the baby the appellant was arrested and charge with infanticide clause 199 of the Penal Code.

She pleaded guilty to the charge and, on her own plea of guilty, she was convicted as charged. In sentencing the appellant the High Court, (Munuo J) remarked:

> "The accused is a first offender. She has been in custody since September 1985, almost five years now. I sentence the accused to four years' imprisonment."

Mr *Maruma* learned defence counsel, who also defended the appellant in the High Court has no quarrel with the conviction, based as it was, on appellant's unequivocal plea of guilty. He has however appealed to this Court on behalf of the appellant against the sentence imposed.

Arguing against the sentence of four years' imprisonment the learned defence counsel submitted that in imposing the sentence the learned Judge only took into account (as mitigating factors) that the appellant was a first offender and that she had been in remand for almost five years. It was submitted that the fact

that the appellant readily pleaded guilty to the offence was not considered as a mitigating factor nor was it argued, the possibility that at the time she committed the offence she was mentally confused due to constant harassment by her parents who wanted to know the paternity of the child.

It was the learned defence counsel's submission that had the learned Judge taken into account these other mitigating factors she would have found that custodial sentence was not the proper punishment. The court was invited to allow the appeal, set aside the sentence of imprisonment and order the release of the appellant from custody.

In rebuttal Mr *Lundu* learned State Attorney, supported the sentence on the ground that "the nature of the offence called for a severe punishment". The learned counsel was of the view that the sentence of four years was "rather lenient". It was submitted that there was nothing wrong for parents to question their daughter as who was the father of the child; and that such inquiries by parents could not be said to amount to harassment of the daughter to the extent of making her mentally confused and driving her to commit infanticide. The court was asked to dismiss the appeal.

Dealing with the question of reduction of sentence imposed by a trial Judge the Court of Appeal for Eastern Africa had this to say in *Republic v Mohamed Ali Jamal* (1948) 15 EACA 126:

> "An appellate court should not interfere with the discretion exercised by a trial judge as to sentence except in such cases where it appears that in assessing sentence the judge has acted upon some wrong principle or has imposed a sentence which is either patently inadequate or manifestly excessive."

In a later case – *James s/o Yaram v Republic* (1951) 18 EACA 147 the same court also said:

> "A court of appeal will not ordinarily interfere with the discretion exercised by a trial judge in a matter of sentence unless it is evident that he has acted upon some wrong principal or over-looked some material factor."

Coming to the present case it is clear from the record that in imposing the sentence of four years' imprisonment the learned trial Judge overlooked the fact that the appellant pleaded guilty to the offence charged.

In the case of *Francis Chilema v Republic* [1968] HCD 510 where the accused has pleaded guilty the Court said *inter alia*:

> "It is generally, if not universally, recognised that an accused pleading guilty to an offence with which he is charged qualifies him for the exercise of mercy from the Court. The reason is, I think obvious, in that one of the main objects of punishment is the reformation of the offender. Contrition is the first step toward reformation, and a confession of a crime, as opposed to brazening it out, is an indication of contrition. Therefore in such a case a Court can, and does impose, a milder sentence than it would otherwise have done."

It is our considered view that had the learned Judge taken into account appellant's plea of guilty to the offence with which she was charged she would no doubt have found that the appellant was entitled to much more lenient sentence than the sentence of four year she imposed. This is especially so taking into account that the appellant had but for this conviction an unblemished record and, if we may also mention, she had been in remand for about five years with the serious charge of infanticide hanging on her.

Taking all these factors into account we agree with Mr *Maruma* learned defence counsel, that this was a case that loudly cried for leniency.

As the appellant was sentenced to four years; imprisonment on 16 February 1990 she has now already served more than two years of the sentence.

We think that is more than sufficient punishment. The sentence of four years' imprisonment is accordingly hereby set aside and in substitution therefor the appellant is sentenced to such term of imprisonment as would result in her immediate release from custody; unless she is otherwise lawfully held in connection with another matter.

For the appellant:
Mr Maruma

For the Republic:
Mr Lundu, State Attorney

Rawal v Rawal
[1990–1994] 1 EA 516 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	2 February 1990
Case Number:	1/90
Before:	Hancox CJ, Gachuhi and Kwach JJA
Sourced by:	LawAfrica

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[1] Succession – Practice and procedure – Death of plaintiff – Widow appointed as his executrix and legal representative – Death of widow 12 years later – Their son as executor of widow appointed her legal representative by consent order – Validity of order – Whether made after abatement of suit – Whether estoppel can arise on a consent order – Application claiming that the suit had abated because appointment of son made outside limitation period – Whether preliminary objection to application correctly made in limine *– Order XXIII, rules 3(2) and 5 – Civil Procedure Rules – Order XXII, rule 4 – Indian Code of Civil Procedure – Sections 4(1)(e) and 39 – Limitation of Actions Act (Chapter 22) – Indian Limitation Act of 1877 – Indian Succession Act of 1925.*

Editor's Summary

In 1963 the deceased commenced an action against the appellant, who was his brother, claiming a declaration that the appellant, owner of 30 shares in a private company in Mombasa and also of the plot on which the premises stood, held the shares and the property in trust for both of them in equal shares by virtue of being members of a joint Hindu family. He also claimed an account of the trust monies, a share of the income from the property and the transfer of one half thereof to him. The appellant admitted the ownership, the ownership of the property, but said that any joint family rights were confined to ancestral homes in India and that though they had jointly carried on a trading partnership with a third brother in the 1930's that had been dissolved and that the shares and property

had been purchased solely by him.

The deceased died in 1963, before the action could come on for hearing and his widow Bai Mena became both his executrix and, by a consent order, his legal representative. Bai Mena died on 25 July 1975, and 14 months later her

son, Haribwallah, who was her sole executor, was, by consent, appointed as legal representative of the deceased and made a party to the suit. It was not, however, fixed for hearing until 21 November 1989, and, on 20 November 1989, the appellant filed a chamber summons, claiming that the suit had abated as the application for the substitution of Haribwallah was not made until after the period of one year laid down by Order XXIII, rule 3 of the Civil Procedure Rules, and that Haribwallah was not the correct legal representative either of the deceased or of Bai Mena, and was not therefore entitled to continue the proceedings.

When the case came on for hearing the advocate for the respondent raised a preliminary objection *in limine* that the appellant was estopped from disputing the validity of the consent order of September 1976 appointing Haribwalla as the legal representative. The judge held that the point was correctly raised in limine, upheld the preliminary objection and ordered that the suit should proceed to hearing. The appellant appealed on the ground, *inter alia*, that there had never been a valid determination of the question as to whether Haribwallah was or was not the legal representative of the deceased, as required by Order XXIII, rule 5.

Held – The chamber summons raised an issue which itself required determination before the evidence began and the preliminary objection to it should not therefore have been heard in limine.

By permitting the respondent to raise a preliminary objection to the chamber summons, the judge had curtailed the appellant's right to be heard, and that he should have permitted the appellant to address him first, followed by the respondent and the appellant in reply.

Nevertheless, the consent order recorded in September 1976 was, in the circumstances, a valid determination of the question as to who was the legal representative of the deceased, which had arisen as a result of the application then filed under Order XXIII, rule 3(1).

There having been no objection at that time to the appointment, and no suggestion until the November 1989 application that the appointment of Haribwallah was in any sense improper, the Court would not be prepared to reverse an order which had been acted upon by all the parties for a substantial period of time, whether the consent order was regarded as rising an estoppel or not.

Accordingly, if the judge had heard the submissions in the correct order he would inevitably have reached the same conclusion.

Per Gachuhi JA – It was not proper to disturb what the parties had accepted to be the true position in the matter for all those years and the equitable doctrine of estoppel would apply.

The period of limitation at the relevant time was six years since the Limitation of Actions Act had, from 1 September 1967 repealed the Indian Limitation Act of 1877 (which prescribed six months) and this period remained as the Limitation period until legal notice number 88 of 1978 came into force on 1 July 1978, when the period for such application became one year.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Brooke Bond Liebig (T) Limited v Mallya [1975] EA 266

Kothari v Quereshi [1967] EA 564

Mukisa Biscuit Company v Westend Distributors Limited [1969] EA 696

Pim v Morton [1978] KLR 196

Wangeci Kimita v Mutahi Wakibiru [1986] 1 KAR 977

Judgment

Hancox CJ: This appeal raises difficult questions both of procedure and substantive law and is not made easier by the time which has elapsed since the filing of the action between the two brothers Rawal as civil suit 128 of 1962 in the High Court at Mombasa on 10 April 1962. The substance of the dispute between the surviving members of the family concerns property and commercial undertakings both in Kenya and in India, and a large part of the record filed for the purpose of the appeal consists of documents filed in India and made Indian Law.

At the time the suit was filed, the plaintiff, Manilal, was living in India and he claimed that he was entitled to a declaration of trust in respect of 30 shares in Mombasa Hardware Limited and in plot number 198, section XX, Mombasa, by virtue of their being members of a joint Hindu family, plus an account of trust monies and KShs 74 932 as his share of the income from the plot, presumably meaning the building thereon.

The defendant admitted that he was the registered owner of the shares and of the plot but said that any joint family rights (which were not admitted) were confined to ancestral lands in India and that while the brothers had carried on a trading partnership know as Gujarat Stores with a third brother in the 1930's, the partnership had been dissolved long before and the shares in Mombasa Hardware Stores had been acquired solely by the defendant Maneklal out of his own monies. Thenceforth, Manilal had no legitimate interest therein.

Before the action could come on for hearing, on 14 April 1963 Manilal died and his widow, Bai Mena, became his executrix, and administratix so far as the East African property was concerned. Although Mr *Nagpal*, appearing for the appellant (and original defendant Maneklal) stated before us that he was not aware of probate having been granted of Manilal's will, this was so as regards the East African property (assuming he had any) according to paragraph 6 of the will of Bai Mena.

Manilal had bequeathed all his property to Bai Mena by his will of 23 June 1961. The property in India was quite considerable and listed in sub-paragraphs (*a*) to (*j*) of paragraph 4 of her will. It includes the two items disputed in the Kenya civil action, namely the alleged half share in Mombasa Hardware Limited and in Rawal building in Mombasa, which is presumably erected on plot number 198, section XX referred to in the plaint.

In consequence of Manilal's death an application was made to bring Bai Mena on to the record as a party to the suit on 17 September 1983, and an

order to the effect was made by Pelly Murphy J on 26 September 1963. At that time the advocate acting for Manilal was Mr *DD Doshi*, (not to be confused with Mr NM *Doshi*, now junior counsel for Maneklal, having been brought on the record in or about 1988), and the advocate for Maneklal was Mr Inamdar of Messrs Inamdar and Inamdar, subsequently incorporated into the firm of Bryson Inamdar and Bowyer. So, thenceforth and until September 1976 at least, the title of the action was, as regards the plaintiff Bai Mena (or Menaben) d/o Umedrau Bhagwan *Pandya*, the duly appointed executrix of the will of Manilal Maganlal Rawal . . . No challenge to or complaint regarding that situation was made until Bai Mena's death in India on 25 July 1975. The purported consent order (I say "purported" advisedly) made before the late Sheridan J one year and almost exactly two months later, on 24 September 1976, provides both the cause of all the trouble as regards the title of the action henceforth, and the consequential reason for the so-called preliminary point before Bosire J on 21 November 1989, and hence this appeal.

Obviously the ill feeling in the family was not confined to Manilal and Maneklal, or to East Africa, but extended to another brother Kantilal, and the surviving brothers claimed a share in the properties in India said to have belonged to Manilal. Thus, a certain amount of material in the record of the appeal, including a copy of the petition for probate before the Bombay High Court in the Gujarat language, concerned proceedings before the Indian courts. After Manilal's death, Bai Mena, their son Haribwallah and their daughter Ansuya were joined as defendants in the Indian action. Haribwallah, in turn, petitioned for probate of Bai Mena's will after her death in 1975, but this only gave rise to another bitter dispute, between brother and sister this time, for Ansuya in her affidavit sworn on 7 August 1985, alleged that the will of Bai Mena was a forgery, alternatively brought about by influence, pressure and fraud upon her by the Petitioner, that is to say Haribwallah. In an earlier document, namely Ansuya's affidavit of 15 March 1985 she, for good measure, alleges that the thumb impression on Bai Mena's supposed will had in fact been affixed by one of the wives of Haribwalla, whom he had persistently ill-treated.

To compound yet further the bitterness between the members of this unfortunate family, Haribwallah had preferred a criminal charge against Ansuya and her husband for alleged defalcation in the collection of the rents from various properties in India. I have set all this out in order to show the background against which the stage was set for the Kenya action which was due to begin before Bosire J on 21 November 1989, after several abortive attempts to set it down for this purpose.

This first of those hearing dates was taken by consent early in 1987 and was for 21 to 24 September 1987. It had to be taken out at the instance of the Court and was again fixed by consent between the advocates early in 1989 for the dates already stated before Bosire J. And yet, on the day before the agreed date, a chamber summons was filed "for orders" that the suit had abated because the consent order of 24 September 1976, occurred after more than the period allowed by Order 23, rule 3 (2), after the death of Bai Mena. The second substantive part of the application was presumably for a declaratory order that Haribwallah was not the proper legal representative of either Manilal or Bai Mena.

Mr *Gautama* for the respondent (and original defendant Maneklal) called this "a clumsy crude device" intended to frustrate the hearing of a case which was already 26 years old, and 13 years after the order to which both the then experienced advocates had consented, and which was recorded by an even more experienced judge.

Mr *Nagpal* complained that his chamber summons was never properly dealt with by the learned Judge that he was shut out from being heard and, therefore, never received justice. He referred us to the terms Order 23, rule 5, which require that when a question arises as to whether any person is or is not the legal representative of the deceased plaintiff, that question shall be determined by the Court. He also referred us to the identical rule in the Indian Rules of Civil Procedure (Order 22, rule 5) and to the commentary thereon in *Mulla's Code of Civil Procedure* (18ed) at 1258 and 1259, in which it is specifically stated that under the present rule the Court is obliged to determine the question of personal representation itself and not leave it for determination at the execution stage. Once it is so determined the question cannot be reopened and is, apparently not the subject of appeal. The case of *Kali Pacho v Rama Leksimu* [1953] AIR 158 was cited in support of this proposition, and the decision seems to lie down positively that the question of whether the additional plaintiffs were correctly impleaded could not be reopened as the Court's earlier decision was held to be conclusive. Mr *Nagpal* of course submits that that rule could not have been satisfied by the consent order of 24 September 1976, because what is required is a conscious decision of the Court, hence the word "determined" in rule 5, and that no amount of consent could bestow jurisdiction on the Court, so as to bring on to the record by consent a person who was the wrong legal representative. Mr *Gautama*'s reply to this portion of the appellant's submissions was that the class of persons who could properly be considered as the legal representatives, namely Haribwallah and his sister Ansuya, was so limited that the Court would be bound to nominate one or other of them as legal representative, and since Haribwallah was the only son of the deceased, a full determination of the question under rule 5 would have inevitably produced the same result as the consent order.

It transpired during the first afternoon session during our consideration of *Pim v Morton* [1978] KLR 196, which was not originally on Mr *Nagpal*'s list of authorities, that the limiting period (I avoid calling it the period of limitation) was not in fact one year either at the time Bai Mena died or when Sheridan J recorded the consent order. Prior to 1 December 1967, the Indian Limitation Act prescribed six months as the period within which the application to implead a person as legal representative had to be made. That, in its application to Kenya, was repealed by the Limitation of Actions Act (Chapter 22) which by section 4(1) made the period six years. That period was not displaced so far as this particular rule was concerned until legal notice 88 of 25 April 1978, specifically prescribing one year.

With some reluctance, Mr *Nagpal* then abandoned paragraph 1 of his chamber summons before the High Court, with the result that a great deal of the argument we had heard regarding the supposed abatement of the suit turned out to have been unnecessary. It is unfortunate we were not told this earlier, for even without the decision in *Pim v Morton*, a careful check on the part of either counsel appearing for the appellant would have revealed that the one year period was not operative in 1976, and therefore the waste of this Court's time caused by taking that invalid point would have been avoided.

However, the difficult point regarding the correctness or otherwise of the legal representative in the action of the two deceased persons remains. Mr *Nagpal* was at pains to persuade us that no estoppel arose by the order of 24 September 1976, and it is true in general terms that issue estoppel cannot arise upon a consent order for the very reason that there has been no decision on a question on which submissions have been made, so I do not think section 39(1)(*b*) of the Limitation of Actions Act, much relied on by Mr *Gautama* before Bosire J, has any application.

Unfortunately, so great was Mr *Gautama*'s sense of outrage at the "device" employed by his opponent in filing the chamber summons only the previous day, when his client had come all the way from India for the hearing, that he may have led the judge into error in treating the appellant's chamber summons as a preliminary objection taken *in limine*, for I think there is perhaps some substance in Mr *Nagpal*'s argument that the point taken by him was transposed so as to treat it as a preliminary objection taken by Mr *Gautama*. This is, I consider, fairly obvious from the phrase used by the learned Judge:

> "In his (that is Mr *Gautama*'s) view estoppel can be raised in limine, and urged me to hold that the defendant is estoppel from relying on limitation under Order XXIII, Civil Procedure Rules, a defence he had waived."

The judge then continued by saying that it was trite law that a point *in limine* must be one which, when accepted, avoids the necessity of the hearing of the matter pending for determination. The judge then concluded by upholding the preliminary objection.

It is manifest from a reading of his ruling that the judge was permitted to be under the same misapprehension as was this Court at the inception of this appeal, inasmuch as the period applicable which was taken as "common ground" between the parties as one year was, in law, six years. This assumption was, of course, made in favour of the defendant, the present appellant.

The judge then proceeded to hear Mr *Gautama* in reply, whereas in my view the order of submissions (since it was the appellant's application filed for hearing at 8:30 am and the full hearing would have been at 9:30 am and would thus have pre-empted the full hearing) should have been the other way round.

The Latin phrase "*in limine*" does not import any magical qualities into an issue raised otherwise than at the determination of the suit. Translated, it means: "at the outset, preliminary", so that if the point is in truth a preliminary objection then it will be taken *in limine*. The question arises then, when is a point taken, a preliminary objection and when is it not a preliminary objection? For the answer to this Mr *Nagpal* took us in some detail through the East African Court of Appeal case of *Mukisa Biscuit Company Limited v West End Distributors* [1969] EA 896, in which Law JA stated that which he considered would be preliminary objection.

He said:

> "So far as I am aware, a preliminary objection consists of a point of law which has been pleaded, or which arises by clear implication out of pleadings, and which if argued as a preliminary point may dispose of the suit. Examples are an objection to the jurisdiction of the Court, or a plea limitation, or a submission that the parties are bound by the contract giving rise to the suit to refer the dispute to arbitration."

As I understand it the criminal law equivalent would be a demurrer or a plea in bar.

For myself I would not wish to categorise or confine the issues which may be raised as preliminary objections, that is objections preliminary to the hearing, and those which cannot be so raised. In this instance Mr *Nagpal*'s chamber summons, fell in my judgment, into that category of issues which required determination before the evidence began, and I think the judge was led into error in treating Mr *Gautama*'s submissions as a preliminary objection to that issue. No doubt Mr *Gautama*, infuriated at this eleventh hour frustration of the hearing, was in part responsible for the course taken. But did this error in order of submissions, and the mistake in treating the objection raised as one preliminary to the hearing of the suit, have the effect of excluding the real point, which was whether the defendant, having consented thirteen years earlier to Haribwallah being brought on to the record as legal, as well as personal representative, of the plaintiff, could be permitted to resile from that position on the basis of some kind of estoppel?

We were also taken in some detail through the East African cases which decide that a consent order can only be set aside on grounds which would justify the setting aside of a contract. There range from the leading case of *Brooke Bond Liebig v Mallya* [1975] EA 266 down to *Wangechi Kimuta v Mutahi Wakibiru* [1986] 1 KAR 977.

For my part I accept that proposition, and I think the question for determination by us on this appeal really centres on whether the issue of representation had been "determined" before Sheridan J in 1976. In nine cases out of ten, no doubt, there is unlikely to be a dispute regarding legal representation, which arises due to the unfortunate death of one of the parties. Mr *Nagpal* cited to us a passage in 17 *Halsbury's Laws* (4ed) at 396 relating to the transmission of an executorship, that is to say between co-executors, or where on the death of a sole of surviving executor his or her executor thereupon becomes the executor of the original testator, and he emphasised that representation could not be transmitted unless the first executor had proved the will of the original testator.

Now it is stated in Bai Mena's will, dated 25 June 1964, that although Manilal's will had not been proved as regards the property in India, it had been so in East African and that she was the administratrix thereof and the duly appointed executrix of Manilal as regards the property in India. She was therefore, until her death in 1975, both the legal and personal representative of Manilal in East Africa. On her death, Haribwalla became the duly appointed executor of the will of Bai Mena. Although the petition for probate of that will appears in the record, there is nothing which specifically states that probate has actually been granted.

As regards transmission of an executorship by operation of law the statute applicable at the relevant time, that is to say the death of Manilal in April 1963 was the Indian Succession Act of 1925 for the Kenya Law of Succession Act (Chapter 160), did not come into effect until 1 July 1981 by legal notice 93 of 1981, so that it was not in force at the time of Bai Mena's death either. Section 226 of the Indian Act provides:

> "226. Accrual of representation to serving executor. When probate has been granted to several executors, and one of them dies, the entire representation of the testator accrues to the surviving executor or executors."

The commentary to that section in *Sanjiva Row* (4ed) shows that English and Indian Laws are the same as regards the transmission of executorship between

co-executors, but not as regards the transmission thereof to the executor of the interest of the sole or surviving executor. In India, unlike England, the executor of the executor does not represent the original testator. It follows, both on the appellant's side, that the passage in *Halsbury* is and was not applicable to this case, and, on the respondent's side that Haribwallah's executorship of Bai Mena's will does not, by operation of law make him the representative of the original testator, that is Manilal. We are, therefore, left in this case with the question of whether or not the consent order recorded by Sheridan J on 24 September 1976, was a valid determination of the question of whether Haribwallah is the legal representative of Bai Mena and therefore of Manilal.

The only authority relevant to the point appears to be the High Court Appeal decision in *Kothari v Quereshi* [1967] EA 564, by which, this Court is not bound. In that case also there was a consent order that the executor of the deceased landlord, the second respondent, should be the legal representative in the suit, and the High Court on a preliminary objection raised at the hearing of the appeal held that it had no jurisdiction to upset its earlier order.

In developing his submissions in reply to Mr *Gautama*, Mr *Nagpal* was able to distinguish the case of *Kothari v Quereshi* because, as is stated at the top of page 566 of that report, no one had objected or was likely to object to the will or to the grant of probate to the executor: in the instant case both the grant and representation are now challenged although this cannot have been so when the consent order was recorded before Sheridan J in 1976. So, Mr *Nagpal* argues, without the necessary substratum of a dispute, there can be no determination of a question as required by rule 5. He continued by reading the last paragraph of Mosdell J's judgment at 567, in which it is said that the preliminary objection (which was raised by Mr Khanna on behalf of one of the respondents) could only have been raised by the appellant or by the executor of the second respondent. I confess I find this reasoning hard to understand, because there can be no bar on either party to the action seeking I would expect it to be raised on behalf of the survivors of the party who has died. The other possible difficulty connect with that aspect of the case is whether the order of 24 September 1976, being by consent, it could be said that a question "had arisen" for determination under that rule.

In my view the answer to that point is simple. Clearly, by the filing of the notice of motion seeking the Court's approval of Haribwallah as the legal representative, a question "had arisen" for determination. Neither is that situation detracted from because the parties subsequently decided, very sensibly, to record a consent order on a matter upon which, as I said earlier, in nine out of ten cases there is unlikely to be a dispute. What, then, is the difference between a situation where the question arises as to whether a person is or is not correctly the legal representative of the deceased which is resolved by a consent order, and one which is resolved by a ruling of the Court? In my view, a determination has occurred in both instances and the confusion has arisen because, in the Indian Rule (Order 22, rule 4) the word "dispute" has apparently been replaced by the word "question". Thus in my judgment it is not essential for a dispute to pre-exist before there can be a valid determination. Viewed in this light it seems to me that the consent order of 24 September 1976, did amount to a valid determination of the question that had arisen by virtue of the notice of motion filed on 15 September 1986.

The second substantive matter mentioned by Mr *Nagpal* in his final address was the criticism by Mr *Gautama* of the delay between the date of the consent order and the day when the action came for trial before Bosire J. For my part, I accept that some part of this was due to a judge not being available to try the case (both in 1986 and 1987) and also due to sporadic and somewhat feeble attempts by the parties to settle the matter by arbitration, as is revealed by an inspection of the High Court file, to which Mr *Gautama* initially drew our attention.

Following the decision in *Kothari v Quereshi*, which was not cited to him, it is very probable that Bosire J would have been unable to upset the earlier consent order even had he wanted to or had felt it was legally right to do so. This Court is, of course, not so fettered or restricted, but having considered Bosire J's reasoning with some care I have reached the conclusion that he was right as regards the substantive part of his decision (in so far as it did not rest on abatement) even though, as I said, I agree with Mr *Nagpal* that he went about it in the wrong way, and that he should at least have heard Mr *Nagpal* on the issue in the proper order of submissions.

In my judgment, therefore, the decision of the High Court in September 1976, albeit by consent, was a valid determination of the issue of legal representation. The appellant, who was properly represented, could easily have objected then, but he did not do so. It would be quite wrong, and contrary to principle, in my view, 13 years later, to cast doubt on the situation upon which everybody concerned in the case had quite obviously acted for all that time. I would prefer not to rest my decision upon the doctrine of estoppel so much as upon the undoubted fact that there was a valid determination of the question of legal representation at that stage, and that cannot be altered merely by flourishing a chamber summons in the face of the Court years later supported by an affidavit, some paragraphs of which, notably paragraphs 10 and 11, are plainly wrong. In my judgment, therefore, even if Bosire J had determined the chamber summons of 20 November in the proper way, he would inevitably have reached the same conclusion.

For these reasons, I would dismiss the appeal with costs. As Gachuhi and Kwach JJA agree it is so ordered.

Gachuhi JA: I have read the advantage of reading the judgment prepared by Hancox CJ in draft form. I agree with him that this appeal should be dismissed.

I would add that the appellant in his chamber summons filed in the High Court on 20 November 1989 had two prayers which he complains that he was shut out from being heard. These are:

> "1. This suit has abated as no application to substitute the present plaintiff was made within the prescribed period and therefore the order dated 24 September 1976 substituting him as the plaintiff is a nullity and of no effect.
>
> 2. That alternative the present plaintiff Haribwallah Manilal Rawal is not proper legal representative of either Manilal Maganlal Rawal, original plaintiff, or substituted plaintiff Bai Mena d/o Umedram Bhagwan *Pandya* and is not entitled to continue with proceedings in the name of the plaintiff."

The application as it stands in the pleading bears the name of the wrong plaintiff. Haribwallah Manilal Rawal was substituted as the legal representative of the deceased plaintiff, Manilal Maganlal Rawal. This first prayer was abandoned towards the close of the submissions on the authority produced by Mr *Nagpal*

the counsel for the appellant in *Pim v Morton* [1978] KLR 196. The abandonment came after a lot of time having been spent on submissions and a number of authorities cited to us which in the end became an unproductive exercise.

Mr *Gautama* for the respondent objected in bitter terms the filing of the application on the eve of the scheduled hearing after a lapse of 13 years and two months and at the time when Haribwallah had come all the way from India to give evidence. The complaint directed at the judge, in the event becomes unjustified.

I say so because the counsel had the authority with him all the time he was addressing the Court and only referred to it in conclusion of his admission. After that he conceded that the suit had not abated.

On the second ground, the original plaintiff, Manilal Maganlal Rawal died on 14 April 1983. His wife Bai Mena was substituted on 26 September 1983. She died in 1975. On her death, an application to substitute the plaintiff by her son Haribwallah Manilal Rawal, was made on 15 September 1976 to substitute his deceased mother Bai Mena who was appointed executrix of the will of Manilal Magnalal Rawal.

In his affidavit in support of the application *Dhajilal Devchand Doshi*, advocate, who made the application on behalf of Haribwallah, swore that he was informed by the applicant Haribwallah that he was only son and the sole beneficiary under the will of Bai Mena. The defendant knows that Haribwallah is the son of the deceased because he had taken proceedings in India against him, his mother and sister. The application was served on the defendant, but there is no replying affidavit on record refuting Mr *Doshi*'s affidavit. All that appears on record is the appearances of the advocates before Sheridan J when a consent order was recorded on 24 September 1976, substituting the present respondent as the plaintiff. The defendant willingly accepted the position as it is and consented to setting the suit down for hearing twice previously when the suit could not proceed. We have also been informed that there have been attempts to settle the dispute by arbitration since Haribwallah was substituted. It is only when new counsel came on record after 13 years and two months that an attempt to set aside the consent order was made. The application was objected to at the outset. Bosire J upheld the objection which gave rise to this appeal.

The consent order granted by Sheridan J, without any opposition, in my view was conclusive. It was a determination of the application before Sheridan J. The parties having accepted Haribwallah as the legal representative of his deceased mother for over 13 years. Mr *Gautama* when confronted with an application challenging such appointment, which he considered as designed to delay the finalisation of the action by counsel became infuriated. No doubt the action is one of the oldest pending suits filed in Mombasa.

There is no suggestion that at the time of recording the consent order, the then counsel for the appellant had no instructions. For that matter he is bound by the consent. In 18 *Halsbury's Law of England* (4ed) paragraph 1184 provides:

> "The statement of counsel, if made on the trial of an action or in the course of any interlocutory proceedings in the presence of the client or his solicitor or someone authorised to represent the solicitor, and not repudiated at the time, bind the client and may be used as evidence against him."

And at paragraph 1183:

> "But a person who has consented to a compromise will not be allowed to withdraw his consent because he subsequently discovers that he has a good ground of defence."

The nature of the application is to demand the proof of probate a fact which was not demanded at the time when the consent order was entered. For the applicant to bring an application after period 13 years would definitely be met by a defence of laches to the application. In 16 *Halsbury's Laws England* (4ed) paragraph 1476 provides:

> "A plaintiff in equity is bound to prosecute his claim without undue delay. This is in pursuance of the principle which has underlain the Statute of Limitation "*vigilantious et non dormientibus lex seccurrit*". A court of law refuses its aid to stale demands, where the plaintiff has slept upon his rights and acquiesced for a great of time. He is then said to be barred by his laches."

The trial Judge if he had heard the application in the normal manner could have come to the same conclusion he reached due to the lapse of time. On my part, I do not consider that there was inordinate delay in filing the application. It is not proper to disturb what the parties had accepted as to be the correct position in the matter for all those years. It is due to this reason that the equitable doctrine of estoppel would apply.

I also agree with the orders that Hancox CJ proposes that this Court should make.

Kwach JA concurred in the judgment of Hancox CJ.

For the appellant:
OP Nagpal and *NM Doshi*

For the respondent:
S Gautama, KM Pandya and B Patel

Rift Valley Textiles Ltd v Oganda
[1990–1994] 1 EA 526 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	19 May 1994
Case Number:	27/92
Before:	Cockar, Omolo and Tunoi JJA
Sourced by:	LawAfrica

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[1] Employment – Application of rules of natural justice in employment contract – Notice of intention to terminate employment contract.

Editor's Summary

The respondent worked as the appellant's purchasing officer. However, be June 1988, the respondent was summarily dismissed from the appellant's employment and he sued thereafter for general and special damages.

The trial Judge found the summary dismissal to be unlawful and awarded the respondent 12 months' gross salary as general damages and 3 months' salary in lieu of notice. Thus this appeal.

Held – Even though the respondent's summary dismissal was unlawful, he had been paid all that he was entitled to be paid under and in accordance with the terms of his contract with the appellant. (*Nyaga Kabute v Kirinyaga County Council* civil appeal number 29 of 1985 (UR) applied).

The rules of natural justice have no application to a simple contract of employment, unless the parties themselves have specifically provided in their contract that such rules shall apply. Where a notice period is provided in the contract, an employer need not assign a reason for giving the notice to terminate the contract, and if the employer is not obliged to assign a reason, the question of offering to the employee a chance to be heard before giving the notice does not and cannot arise.

If the employee were to be minded to leave his employment and he gives notice of his intention to leave, the employee is not obliged to assign a reason for his intention to terminate the contract and it would be ridiculous for the employer to insist that he be given a hearing before the employee leaves.

Unless there be a specific provision for the application of the rules of natural justice to a simple contract of employment, those rules are irrelevant and cannot found a cause of action.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kabute v Kirinyaga County Council [1985] LLR 1414 (CAK)

Judgment

Cockar, Omolo and Tunoi JJA: Until the 7 or 9 June 1988, Rift Valley Textiles Limited, the appellant, was the employer of Edward Onyango Oganda, the respondent. It appears from the recorded evidence that on the 7 June 1988, the appellant verbally informed the respondent that the respondent had, as at that date been summarily dismissed from the appellant's employment. The appellant followed this up on the 9 June 1988 by a letter formally informing the respondent of his summary dismissal. The respondent was first employed by the appellant on the 24 July 1978 as an assistant shipping officer; his then salary was KShs 1 000 per month with a further KShs 150 per annum as leave allowance. On the 5 May 1986, the respondent was promoted to the position of a stores controller with an annual salary of K£ 2 862, an accommodation allowance of K£ 360, and a leave allowance of K£ 25. He was also entitled to, upon termination of his employment a gratuity payment of one-twelfth of his basic annual salary for each year served over and above five years from the date of his employment. The gratuity would not be payable if he was dismissed on the ground of gross misconduct. The agreement also provided in clause 14 that it could be terminated by either party giving a notice of three months to the other or paying to the other for the notice period.

On the 7 April 1987, the appellant changed the respondent's designation to that of a purchasing officer but the other terms remained the same. The respondent's gross pay at the time of his purported summary dismissal was

KShs 6 410 which included KShs 1 000 as housing allowance. He was also entitled to Ksh600 annually as leave pay.

The appellant challenged his purported summary dismissal by a suit in the High Court at Eldoret. The suit which was filed on the 1 October 1988 claimed special damages amounting to KShs 54 575 which was broken down as follows:

1.	Salary not paid for period of 7 days worked	KShs 1 495
2.	Leave pay for 3 years worked	KShs 19 230
3.	Leave Travelling Allowance for 3 years	KShs 1 800
4.	Gratuity earned for a period of 5 years after working for ten years	KShs 32 050
	Total	KShs 54 575

We have no doubt at all that item number two claimed as "leave pay for 3 years worked" and amounting to KShs 19 230 was wrongly claimed under that title. There was no provision in the contract of employment for leave pay and we are satisfied that sum in fact represented three months pay *in lieu* of notice at KShs 6 410 per month.

On the 19 October, 1989, the parties reached some settlement and the appellant agreed to pay and did pay to the respondent the KShs 54 575 claimed as special damages. They, however, left for the determination of the Court the question of general damages and wrongful dismissal over which they were apparently unable to agree upto the end.

On the 18 April 1991, the respondent gave evidence and in cross-examination admitted that he had been paid for three months in lieu of notice. One Michael Kosgei Kiniga (DW1) gave evidence on behalf of the appellant and in his evidence he was apparently contending that the appellant was entitled to summarily dismiss the respondent. In our view, that contention was untenable. By agreeing to pay to the appellant the special damages of KShs 54 574 which in fact included KShs 19 230 as pay *in lieu* of the notice period, the appellant was clearly admitting that their purported summary dismissal of the respondent was unlawful and that they were prepared to pay him for the three month notice period. The learned trial Judge found that the purported summary dismissal was unlawful and on the recorded evidence before him, he was perfectly entitled to find so. Indeed as we have pointed out the appellant itself admitted as much.

But the appellant appeals to this Court because having found and held that the summary dismissal was unlawful, the learned Judge proceeded to award the respondent twelve months gross salary as general damages, and despite the respondent's repeated admission that he had been paid for the three months notice period, the judge again awarded him a further three months salary *in lieu* of notice. Was the judge entitled in law to do this?

We have no doubt whatsoever that the law did not entitle the judge to do any of these things. The contract of employment between the appellant and the respondent specifically provided for a notice period and it also provided for what was to be done if either party was unable to comply with the said notice period, namely, to pay the other party for the notice period. In *Cyrus Nyaga Kabute v Kirinyaga County Council*, civil appeal number 29 of 1985 (UR), the appellant had made prayers for, among others:

(iii) General damages for loss of employment and retirement benefits from the date of judgment to the attainment of the appellant's 60th birthday;

(iv)Aggravated damages and general damages for breach of contract.

In rejecting these claims, this Court said:

> "Apart from that, even if the appellant were able to re-open that matter, and supposing that he had shown that his dismissal had not been justified, he would not have been able to get any of the prayers for which he prayed in the plaint. Even though the dismissal maybe wrongful, it stands, and what flows from the breach of the conditions of service, is damages according to the terms of contract. Those damages would not have been aggravated damages and would not have given him benefits upto his 60th birthday, nor arrears of salary from July 1980. In fact appellant was given on normal retirement – arrears of salary upto June 1980, gratuity and payment in lieu of leave …"

The position in the present appeal is exactly the same with that dealt with in the *Kabute* case (*supra*). The respondent had been paid damages according to the terms of his contract. He had worked for seven days in the month before he was wrongfully dismissed he was paid KShs 1 495 for that period. He had a notice period of three months and he was paid KShs 19 230 for that. Again, he was entitled to leave for three years. He was paid KShs 1 800 for that. Finally, he was entitled to a gratuity payment upon the termination of his contract and on that head he was paid a total of KShs 32 050. In our view, even though the respondent's summary dismissal was unlawful, he had been paid all that he was entitled to be paid under and in accordance with the terms of his contract with the appellant. The learned Judge says in his judgment, and we quote him:

> "Since the plaintiff was not given notice of three months as agreed in the letter of appointment, his summary dismissal to me was against the rules of Natural Justice and that the defendant should be ordered to pay aggravated damages for the wrongful dismissal."

With respect to the learned Judge, the rules of natural justice have no application to a simple contract of employment, unless the parties themselves have specifically provided in their contract that such rules shall apply. Where a notice period is provided in the contract of employment, as was the case here, then an employer needs not assign any reason for giving the notice to terminate the contract and if the employer is not obliged to assign a reason, the question of offering to the employee a chance to be heard before giving the notice does not and cannot arise. Again if the employee were to be minded to leave his employment, say for a better-paid job, and he gives notice of his intention to leave, the employee is not obliged to assign any reason for his intention to terminate the contract and it would be ridiculous for the employer to insist that he be given a hearing before the employee leaves. As we have said, unless there be a specific provision for the application of the rules of natural justice to a simple contract of employment, those rules are irrelevant and cannot found a cause of action.

We have already held that the respondent had been paid all that he was entitled to be paid for the wrongful termination of his employment. The learned Judge was accordingly wrong in awarding him his gross salary for twelve months plus an additional three months salary *in lieu* of notice. In the event, we allow this appeal, set aside these orders of the judge and substitute them with an order that apart from the KShs 54 575 already paid to the respondent by the appellant, the respondent was not entitled to any further payment.

On costs we award to the appellant the costs of the appeal, but the costs in the High court must be given to the respondent because the appellant paid the KShs 54 575 only after the suit had been filed and was in fact ready to proceed to hearing.

These, then shall be our orders in the appeal

For the appellant:
Information not available

For the respondent:
Information not available

Rubinga v Kato and another
[1990–1994] 1 EA 530 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	2 July 1993
Case Number:	35/92
Before:	Wambuzi CJ, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Appeals – Leave – Application for leave to appeal out of time – Factors court bears in mind when hearing such application.

[2] Appeals – Second appeals – Appeal to the High Court from an appellate judgment of the Chief Magistrate's Court – Law applicable.

Editor's Summary

This protracted litigation began with a civil suit filed against the appellant filed by the respondent in a Magistrate Grade II Court. On the 10 September 1987 this Court gave judgment in the appellant's favour. The respondents subsequently appealed successfully to the Chief Magistrate's Court, which overturned the decision of the Magistrate Grade II. Then the appellant sought a review of the Chief Magistrate's decision but on the 27 July 1989 the succeeding Chief Magistrate declined to reverse his predecessor's decision.

The appellant resorted to the remedial process of appeal. He applied for leave to appeal and lodged this application with the Chief Magistrate's Court on 25 August 1989. This Court refused to grant this leave on 18 December 1989.

The appellant made a further application to the High Court under section 234(4) of the Magistrate's Court Act of 1970, on 29 December 1989. The High Court granted him leave to appeal on 20 February 1990.

Having duly lodged his appeal, the appellant did not extract a decree out of the decision from which he sought to appeal. Thus on 31 March 1991, a preliminary point was taken that the appeal was incompetent for want of an accompanying decree and court struck it out on 18 April 1991.

The appellant applied for leave to appeal out of time on the 26 April 1991. The learned Judge of the High Court dismissed the application as premature. The appellant appealed to the Supreme Court against this decision. This appeal raised two significant points, *viz* whether time can be extended for

leave to appeal from the Chief Magistrate's Court to the High Court and whether, once leave has been granted, it remains in place even though the ensuing appeal is struck out.

Held – When a judge is considering an application for leave to appeal out of time, he may take into account all the circumstances involved in the procedures

up to the time when the application is made, for example the delays encountered so far, the likelihood for success of the appeal and the general situation of the legality of the appeal.

Nothing in the Magistrate's Court Act of 1970, lays down the time limit within which an appeal may be instituted from the decisions, judgments or orders of a Magistrate Grade II or III to the Chief Magistrate, or from the Chief Magistrate to the High Court. However, the combined effect of sections 1(2) and 99 of the Civil Procedure Act (Chapter 71) and section 231(1) and 242(3) of the Magistrate's Court Act shows that the limitation applicable to these appeals is the 30 days provided under section 80 of the Civil Procedure Act. *Wassa and Semukutu v Ochola* civil appeal number 3 of 1992 (UR) followed.

There is no general power to enlarge time to appeal in the Magistrate's Court Act such as that provided under section 99 of the Civil Procedure Act. Nonetheless, since section 99 is a provision relating to appeals, it, *inter alia*, may be read as providing for appeals in the Chief Magistrate's Court and second appeals to the High Court. Section 99 would apply to the Magistrate's Courts by virtue of the enabling provisions of section 1(2) of the Civil Procedure Act.

It was open for the learned Judge to extend time in the cases of the application for leave to appeals, and, consequently, he would have had to consider his position on the facts of the cases before him.

There can be no automatic extension of time because the wrong procedure for review was taken in place of an appeal. The appellant had preferred review proceedings to an appeal and, having failed in the review, the appellant could not allege that the period of limitation for instituting an appeal was still running.

The learned Judge should not have granted leave to appeal after refusal of the Chief Magistrate to grant this leave because this decision was *ultra vires* section 232(4) of the Magistrate's Court Act. Hence the judge's refusal to grant an extension of time was not unreasonable and would not be disturbed.

Appeal dismissed with costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Mukasa v Ochol 1968 EA 89

Wassa and Ssemukutu v Ochola civil appeal number 3 of 1992 (UR) – **F**

Judgment

Platt JSC: This appeal raises short but difficult points of procedure, whether time can be extended for leave to appeal from the Chief Magistrate's Court to the High Court, and whether, once leave has been granted, it remains in place even though the ensuing appeal is struck out.

The proceedings were as follows.

The trial between the present parties, ended with judgment for the defendant Dr Rubinga (the present appellant before us) given by the Magistrate Grade II on 10 September 1987.

The plaintiffs (the present respondents) appealed to the Chief Magistrate, and were successful. The judgment appears to be undated. Later on counsel submitted that the judgment had been delivered on 8 December 1988, and that date appears on the memorandum of appeal against the Chief Magistrate's judgment (see at 51 and 56 of the proceedings). The appeal was not immediately taken. Review proceedings were lodged on 6 January 1989. The Chief Magistrate Mr Byaruhanga was succeeded by Chief Magistrate Mr Maniraguha, who refused to reverse his predecessor's judgment, on 27 July 1989.

Dr Rubinga then sought to appeal. His first step was to seek leave to appeal from the Chief Magistrate, and that application was lodged on 25 August 1989. It was explained that the application was made within 30 days from 27 July and therefore was in time. This accepted, but leave was refused on 18 December 1989.

As permitted by section 232(4) of the Magistrates' Courts Act of 1970 and application was made from the refusal of leave to the High Court on 29 December 1989.

These two applications for leave explain very clearly that there were substantial points of law upon which to base the appeal against the judgment on first appeal. There was no appeal against the order for revision.

The High Court allowed Dr Rubinga to appeal, granting leave on 20 February 1990. The appeal was lodged in time, but on 21 March 1991, a preliminary point was taken, namely, that no decree had been extracted and so the appeal was incompetent. The learned Judge agreed and struck out the appeal, on 18 April 1991.

The final proceeding, and the one that gives rise to this appeal was an application by Dr Rubinga for leave to appeal out of time lodged on 26 April 1991. The learned Judge dismissed this application as premature.

It is now complained of that the judge did not consider the merits of the application (ground two); that he misunderstood the nature of the application (ground 1); and finally it is said that he equated the striking out of an appeal with dismissing it (ground three)

The main point behind these grounds is that the learned Judge ought to have granted leave to appeal out of time, and I suppose it was implied, that the underlying problem of obtaining leave to appeal, was not involved in the actual application before the learned Judge for extension of time. At any rate, there appears to have been some difference of opinion what the exact position was with regard to having obtained leave to appeal, or having to obtain leave afresh. It seems that the present appellants' advocates thought that they could rely upon the leave to appeal granted by the learned Judge; but the judge seems to have thought that leave to appeal had to be applied for again in the Court of the Chief Magistrate. Whatever the exact terms of the argument were, as I shall endeavour to show presently, the earlier proceedings were all *ultra vires*.

When a judge sets out to consider an application for leave to appeal out of time, he may take into account all the circumstances involved in the procedures up to that point. For instance, he may take into account the delays which have occurred; the probable likelihood of success of the appeal or otherwise, and he may take into account the general situation as to whether the appeal could in law be instituted.

The learned Judge appears to have thought that there was a difficulty facing the applicant, in that section 232(4) of the Magistrates' Courts Act provides that an application for leave to appeal, shall in the first instance be made to the chief magistrate, within a period of 30 days beginning with the date of the decision sought to be appealed from, and an application for such leave shall be made to the High Court within the period of 14 days, beginning on the date on which the application to the chief magistrate is refused. The learned Judge seems to have thought that there was no way of extending those periods of limitation, and if that were true in law, his orders could not be assailed. It was for this reason that he offered advice, unfortunately not the right advice, that counsel for the applicant had an option under Order 40 of the Civil Procedure Rules to apply to the High Court for leave to appeal, or in the alternative he could still seek leave from the Supreme Court. He noted that section 80 of the Civil Procedure Act dealt with the periods within which appeals from decree or orders must be instituted, which periods could be enlarged for good cause. I would agree that the provision for an appeal, and provision for an application for leave to appeal, are different matters. Consequently the power to extend time in section 80 would not help to extend time in an application for leave to appeal. Of course section 101 of the Civil Procedure Act preserving the inherent power of the Court, was not of any help in enlarging the period of time within which an application for leave to appeal could be made. It seems that he held that as the time within which to apply to leave had passed, there was no way of enlarging it.

While it is not the clearest legislation, I am of the opinion that section 99 of the Civil Procedure Act would be the foundation upon which an application for leave to enlarge time could be made, so long as one reads that provision together with section 1(2) of the Civil Procedure Act and sections 231 and 242 of the Magistrates' Court Act. Section 99 of the Civil Procedure Act provides:

> "Where any period is fixed or granted by the Court for the doing of any prescribed or allowed by this Act, the Court may, in its discretion, from time to time, enlarge such period, even though the period originally fixed or granted may have expired."

Section 231(1) of the Magistrates' Courts Act provides:

> "Every suit or appeal in the Court of a chief magistrate or magistrate grade I shall be instituted and proceeded with in such manner as may be prescribed by rules applicable to suits and appeals instituted in the High Court."

That provision may have been in the mind of the learned Judge, when he referred to rule 40 of the Civil Procedure Rules. That section does not exactly touch the problem in this appeal, but illustrates the reliance which may be placed on the Rules of Civil Procedure. (See Order 47 of the Civil Procedure Rules).

Passing on then to section 1(2) of the Civil Procedure Act, that provision states:

> "(2) This Act shall extend to proceedings in the High Court and in all subordinate courts and magistrates' courts."

Against that there is section 242 of the Magistrates' Courts Act:

> "242(3) where this Act makes provision for any matter so much of the Criminal Procedure Code and of the Civil Procedure Act as relates to the same matters shall cease to have effect in respect of Magistrates' Courts."

It is interesting to observe that nothing is laid down in the Magistrates' Court Act as to the time in which an appeal may be instituted from the decision, judgments and orders of a magistrate grade II or Grade III to the chief magistrate. Nor is there any period laid down relating to the time in which an appeal must be instituted in the High Court, from the decree or order of the Chief Magistrate. It may then be asked what procedure does exist if any?

I would appear to me that the legislation set out above must authorise the adoption of section 80 to limit the period to 30 days within which an appeal may be entered in the Court of the chief magistrate from the decisions of the Grade II magistrates, and in the High Court from the decisions of the Chief Magistrate. This Court relied upon section 80 in *Wassa and Ssemukutu v Ochola* civil appeal number 3 of 1992 (UR). Continuing on, there is no general power to enlarge time in the Magistrates' Courts Act such as section 99 of the Civil Procedure Act. But as section 99 is a provision relating to appeals (*inter alia*) it may be read as providing for appeals in the Court of the Chief Magistrate and from there to the High Court. It would seem to me that section 1(2) of the Civil Procedure Act would authorise the application of section 99 to the Magistrates' Court Act. Therefore it would have been open to the learned Judge to extend time in the case of the application for leave to appeal, and consequently he would have had to consider his position on the facts of the case before him.

Two main problems would seem to arise.

The first is that the original leave to appeal was *ultra vires* section 232(4) of the Magistrates' Court Act. The second is whether leave to appeal once given continues to operate even though the appeal taken on the strength of such leave was struck out. On the first of these points, it is clear that the decision of the chief magistrate from which an appeal was intended to the High Court, was given on the 8 December 1988. Hence under section 232(4) of the application for leave to appeal had to be instituted by the 8 January 1989. Instead of applying for such leave, application was made on the 6 January 1989 for review.

On 27 July 1989 review was refused and on 25 August 1989 an application for leave to appeal was made. The consequence is that the chief magistrate who heard the application for leave to appeal, was mislead by the parties who claimed that they were in time, because they acted within 30 days of the refusal to review the judgment of the Cchief Magistrate. There cannot be any automatic extension of time because the wrong procedure for review was taken in place of an appeal. As the rules with regard to a review point out (in section 83 of the Civil Procedure Act), review lies when an appeal is allowed against a decree or order, but no appeal has been preferred; or in the case of no appeal being allowed from a decree or order. It follows that by taking the revision proceedings on 6 January 1989, the applicant had to state that no appeal had been preferred, even though one was allowed. It is clear therefore that revision proceedings had been preferred to an appeal. It further follows that an unsuccessful applicant for revision cannot then allege that the period of limitation for instituting an appeal is still running.

The learned Chief Magistrate should then have refused leave to appeal, as he did, for the reason that the application was out of time, but not for the reason that leave should be refused on the merits. It also follows that the learned Judge should not have granted leave to appeal after the refusal of the chief magistrate

because the proceedings before the Chief Magistrate were *ultra vires* section 232(4) of the Magistrates' Court Act.

I should clarify certain points. The first is that it will be observed that an appeal has to be instituted within 30 days, the same period within which leave to appeal against the decree, has to be sought. It should be understood that the institution of the appeal should proceed awaiting the grant of leave. If leave to appeal only is sought first, then an application for extension of time to lodge the appeal will be necessary, if the period has elapsed by the time that the order granting leave has been given.

In the circumstances of this case, neither an application for leave to appeal, nor the institution of the appeal was proceeded with by 8 January 1989. In lieu thereof revision proceedings were taken. Had there been an appeal from the grant or refusal of revision, the same procedure for leave to appeal against the order would need to have been lodged within 30 days that is by 27 August 1989. As there was no appeal against the revision order, the procedure concerning an appeal had to be commenced out of time, both the notice of appeal and the application for leave, being late by 27 July 1989.

Finally, in view of what has happened or omitted, it is not necessary in this appeal to decide, whether leave to appeal having been granted, is spent or may continue in force, after the appeal has been struck out, which was instituted on the strength of the leave granted. I leave that question open.

In all these circumstances, the appeal taken to the High Court was *ultra vires*, and fortunately it was struck out as incompetent for lack of a decree. When the learned Judge came to decide whether an extension of time could be granted for another appeal, he was bound to notice that leave to appeal had not yet been granted in compliance with section 232(4) of the Magistrates' Courts Act. It was possible for an extension of time to be granted for leave to be sought, but in the circumstances it was hardly likely that leave would be granted. In any event, as leave had not yet been granted, even by the Chief Magistrate within time, the judge's refusal to grant an extension of time was not unreasonable. There are no sufficient grounds for disturbing the exercise of the discretion vested in the learned Judge.

In the result therefore the appeal must fail and I would dismiss it with costs.

Wambuzi CJ: I have had the benefit of reading in draft the judgment delivered by Platt JSC and I agree that the appeal should fail but I wish to make a few observations.

The original appeal was incompetent because the decree of the Chief Magistrates' Court against which the appeal was preferred had not been extracted and lodged. Striking out the appeal on a preliminary objection, the learned Judge said that it was up to the appellant to find ways of "resurrecting" the appeal. The learned Judge must have had in mind the words of Sheridan J, as he then was, in *Mukasa v Ochol* 1968 EA 89 at 90. The learned Judge in that case had considered the same authorities as were considered by the judge in the Court below and said:

> "An appeal is of course a creature of statute. Although in the two above cases the East African Court of Appeal dismissed the appeals, I think that the more appropriate order in this case would be to strike out the appeal as incompetent, as the merits have not been gone into, and to leave it to the appellant to try and resurrect his appeal, if he can, by extracting a decree and then, if necessary applying to appeal out of time

> under section 80 of the Civil Procedure Ordinance. Alternatively, he may seek to set aside the judgments of the two lower Courts on the same ground that the decree was extracted. Accordingly the appeal is struck out as premature."

I think this is sound law and the appellant in the case before us apparently adopted the first alternative when he applied to the High Court for extension of time to file that appeal, this time including the decree which has been included in the original appeal.

In his ruling on the application for extension of time, the learned Judge in the Court below set out the provisions of section 80 of the Civil Procedure Act and said:

> "In the instant case the decree being appealed against is that of the chief magistrate. An application for leave to appeal shall in the first instance be made to the chief magistrate within the period of thirty days beginning with the date of the decision sought to be appealed from and an application for such leave be made to the High Court within the period of fourteen days beginning with the date on which the application is refused. As could be deduced from the above law there is no provision for extending this period and section 80 of the Civil Procedure Act deals with appeals and therefore was completely irrelevant in the instant application."

With respect to the learned Judge the application before him was not for leave to appeal but for extension of time for lodging the appeal. In this particular case the appellant had applied to the Chief Magistrates' Court for leave to appeal which was refused and he subsequently applied to the High Court for leave to appeal which was granted. This was in conformity with the provisions of section 232(1)(*c*) and (4) of the Magistrate Courts Acts of 1970. Incidentally it appears that the leave to appeal was given by the same judge and this notwithstanding, the learned Judge did not say that leave to appeal had to be obtained a fresh or that the leave he himself had granted expired when the appeal was struck out.

In my view Sheridan J carefully chose his words in this ruling by striking out the appeal rather than dismissing it as the Court had not considered the merits of the appeal. There are authorities that an appeal which has been struck out may be reinstated if the defect which led to the appeal being struck out is cured. In the case before us the defect was lack of an extracted decree and not leave to appeal.

I would think with respect that in these circumstances the Court below failed to consider the application before it which was to extend time for lodging the appeal and not for leave to appeal.

Be that as it may I agree that the leave to appeal granted by the High Court in the original appeal was *ultra vires* section 232(4) of the Magistrates Courts Act of 1970. On that basis alone the learned Judge in the Court below could have dismissed the application for extension of time as there was no valid leave to appeal which had to be obtained first.

As to the law applicable I would think that under section 1(2) of the Civil Procedure Act the provisions of that Act extend not only the High Court but also to all courts subordinate to the High Court including magistrates courts unless different provisions regarding the same matters have been made in the Magistrates Courts Act itself (see section 242(3) of the Magistrates Court Act). In my view it follows that the provisions in the Civil Procedure Act relating to periods within which to appeal and extension of time for taking certain steps are applicable to the magistrate's courts unless other provisions regulating these matters are made in the Magistrates Courts Act.

In respect of section 232(4) of the Magistrates Courts Act I think it would be prudent to give notice of appeal at the same time as leave to appeal is sought.

Lastly, I also agree that in this case the appellant had a right of appeal but quite clearly preferred revision proceedings from which he did not appeal. In these circumstances it would be very unlikely that a Court would extend time to institute an appeal the right to which the party had by conduct abandoned.

As Order JSC also agrees that this appeal should fail the order of this Court is in the terms proposed by Platt JSC.

Oder JSC: I have had the benefit of reading in draft the judgments of Wambuzi CJ and Platt JSC. I think that the appeal should fail. The reasons have more to do with the leave to appeal which was granted by the High Court on 20 February 1990 than with the judgment which gave rise to this appeal. In my opinion the leave to appeal was granted on a wrong premise.

The Chief Magistrate's judgment against which the appellant sought to appeal was given on 8 December 1988. Thereafter, the appellant did not immediately take the necessary steps to appeal, he instead sought to have the judgment reviewed by the chief magistrate under Order 42, rules 1 and 2 of the Civil procedure Rules. The application for review was, however, rejected on 27 July 1989. Thereafter, the appellant made his application to the chief magistrate for leave to appeal against the judgment of 8 December 1988 under section 232(4) of the Magistrates' Courts Act of 1970. The application was apparently made under a mistaken belief that the period of 30 days prescribed under section 232(4) began to run from the date of rejection of the application for a review. The application also failed, when it was rejected on 18 December 1989. It was rejected on the ground of lack of merit; not on the ground that it had been made out of the prescribed period, which was the proper ground on which it ought to have been rejected. Consequently, the appellant applied to the High Court for leave to appeal against the judgment of 8 December 1989, on 29 December 1989. Leave was granted; but the appeal based on that leave was struck out as incompetent for want of a decree.

The leave to appeal which the High Court granted on 20 February 1990, in my view, ought not to have been given, because the proceedings in which the application for leave to appeal was rejected by the chief magistrate was *ultra vires* section 232(4). The section provides that an application for leave to appeal to the High Court against a judgment of a chief magistrate passed in appeal should be made in the first place to the chief magistrate within 30 days beginning with the date of the judgment sought to be appealed from. This means, therefore, that the appellant's application in the instant case ought to have been made on or before 18 January 1989, but it was not. It was made on 25 August 1989, over seven months outside the prescribed period. Consequently, I think that the leave to appeal on the basis of which the appeal which was struck out had been made was irregular. The irregularity was fatal.

The appellant having failed to apply to the chief magistrate for leave within the prescribed period. I think that it was open to him to seek extension of time within which to do so. The Magistrates' Courts Act does not provide for extension of time within which to make such an application, but I think that as the provisions of the Civil Procedure Act are extended to proceedings in Magistrates' Courts by virtue of the provisions of section 1(2) of the Civil Procedure Act, section 99 of the Act, read together with section 231(1) of the

Magistrates' Courts Act would form the basis for extension if time for the purpose of an application for leave before a chief magistrate under section 232(4) of the Magistrates' Courts Act.

Section 1(2) of the Civil Procedure Act, provides that:

> "This Act shall extend to proceedings in the High Court and in all subordinate courts and magistrates' courts."

Section 99 of the Civil Procedure Act states:

> "Where any period is fixed or granted by the Court for the doing of any act prescribed or allowed by this Act, the Court may, in its discretion, from time to time, enlarge such period, even though the period originally fixed or granted have expired."

The prescribed period for an application for leave under section 232(4) of the Magistrates' Courts Act is fixed by statute, but I would think that section 99 of the Civil Procedure Act would still apply for enlargement of time.

Further, in view of the preliminary provision of the Civil Procedure Rules to the effect that the Rules shall apply as far as practicable, unless otherwise expressly provided, to all matters arising and to all proceedings taken on any matter under the Civil Procedure Act, I would think that Order 47, rule 6 of the Rules would also possibly apply for the purposes of enlargement of time for an application for leave under section 232(4) of the Magistrates' Courts Act.

In the result, I would dismiss the appeal with costs.

For the appellant:
Information not available

For the respondent:
Information not available

Sanitary Equipment and Builders v Nairobi City Commission
[1990–1994] 1 EA 538 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	12 March 1991
Case Number:	24/91
Before:	Hancox CJ, Masime JA and Omolo AJA
Sourced by:	LawAfrica

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[1] Practice and procedure – Building contract giving rise to arbitration – Gross delay in arbitration – Refusal by High Court to set aside award – Appeal erroneously naming arbitrator's advocates as party to be served – Necessity to serve the applicants as directly affected by the appeal – Competency of appeal – Whether bank issuing guarantee can be impleaded in the appeal – Rules 76(1), 80 and 81 – Court of Appeal Rules.

Editor's Summary

The respondent Commission, who were the appellant in the main appeal, made an agreement with the applicants in 1981 whereby the applicants were to construct extension to 12 schools within the Nairobi area. The applicants alleged that the Commission wrongfully terminated the contracts in 1983 after

the building contract had been substantially performed. The dispute was referred to an agreed arbitrator who, due to the respondents' fault, did not embark on the arbitration until nearly five years later when he ordered the Commission to pay to the applicants KShs 3.648 million and costs. In February 1988 Akiwumi J gave leave to enforce the award as a decree of the Court. Successive applications for a stay by the High Court failed and the Court of Appeal, in the course of an appeal to that court, granted a stay of execution on condition that the Commission deposited a banker's bond, realisable if the Commission lost the appeal.

In the notice of appeal the respondents named the arbitrator's advocates, and not the applicants' who moved to strike out the notice of appeal and, *inter alia*, for an order to the guaranteeing bank to pay KShs 4 million to the applicants, which was the value of the bond.

Held – Rule 76(1) of the Court of Appeal Rules required that all persons directly affected by the appeal should be served with the notice of appeal, a requirement which was not satisfied by the service on the advocates for the arbitrator, who was not the opposing party.

It was a fundamental error to attempt to implead the bank in the appeal as it was not a party thereto. In the unlikely event of the bank not honouring the bond on the dismissal of the appeal, then the applicant's remedy was to sue the bank, not to attempt to implead it in an appeal to which it was not and could not be a party.

Ordinarily, the Court would not hesitate to strike out the appeal in view of the gross error, but in the circumstances, particularly in view of the applicant's equally gross error in attempting to implead the bank, further time would be given to allow the respondents to out a fresh notice of appeal, naming the correct party as directly affected thereby.

Application to strike out this appeal not granted on condition that the respondent filed a correct notice of appeal within seven days and the appeal within 60 days thereafter.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Abdul Waheed Sheikh v Abdul Shakoor Sheikh [1985] 1 KAR 661

Cassam v Sachania [1981] 1 KAR 24

Judgment

Hancox CJ, Masime JA and Omolo AJA: The instant application before this Court seeks the striking out of the notice of appeal filed on 22 January 1990, by the respondent city Commission against the ruling of Porter J, whereby he refused a stay of execution of the decree which had been filed for the purpose of enforcing an arbitration award.

The dispute which gave rise to the arbitration related to the performance contract of work by the applicant with the Nairobi City Commission for

extensions to 12 primary schools. These contracts were awarded to the applicants in 1981, and it was alleged that the Commission wrongly terminated them on 8 March 1983, after the extensions in question had been completed or substantially performed.

On 16 September of that year, Mr Nathaniel Kihiu was appointed as sole arbitrator and he embarked on the preliminary hearing on 16 November. However, as he details in his affidavits of 15 March 1988 and 16 September 1988, this proved to be a frustrating experience. He attempted to resume the proceedings on numerous occasions and finally did so *ex parte* on 21 December 1987, after notifying the city engineer of his intention by a letter dated the tenth of that month. His award was made on 31 December 1987 and, the Commission were ordered to pay KShs 3 648 275-65 to the applicants, plus half the arbitrator's costs of KShs 216 526-40.

The Commission protested through its then secretary and various allegations were made against the arbitrator and the matter even reached the portals of the CID. Eventually the applicants applied, on 17 February 1988, under section 27 of the Arbitration Act (Chapter 49), for leave to enforce the award of the arbitrator as a decree of the High Court and this was granted by Akiwumi J *ex parte*, on 23 February 1988. It was not, however, issued until 24 January 1990 and appeared at 32 of the record, five days after the application to Porter J, a result of which, in a reasoned ruling, he refused the stay of execution sought and declined to set the award itself on the ground of misconduct alleged against the arbitrator. In April Porter J, in a second ruling, refused a stay of execution pending the appeal (for which, as we said, notice had been filed on 22 January) and, *inter alia*, expressed doubts as to the competency of the appeal. Nevertheless, this Court granted a stay of execution under rule 5(2)(*b*) on 20 April 1990 (also, as is this application, under a certificate of urgency) but as a condition required the deposit of a banker's bond in the sum of KShs 4 million, to be realised if the Commission lost the appeal. This bond was deposited on 18 May 1990, within the period ordered, so that the stay of execution them became operative.

Apart from the alleged incompetency of the appeal itself, a point which Mr Wambaa also took at the first hearing before this Court, Mr *Kiome*, on behalf of the applicant, submitted that the notice of appeal is invalid and should be struck out because the only persons on whom it was expressed to be served were Rimui and Mubia, who were the advocates for the arbitrator, who was not, and could not be a party to the appeal. Rule 76(1) of this Court's rules states that copies of the notice of appeal shall be served on: "all persons directly affected by the appeal".

Who could be more affected by the appeal, Mr *Kiome* asked, than the other party to the dispute, namely the claimant before the arbitrator and the present applicant? We note that the former advocates for the Commission, Messrs Khaminwa and Khaminwa, made the same error in the High Court when seeking leave to appeal and a stay of execution upon which Porter J gave his second decision in this case on 5 April 1990.

We agree with Mr *Kiome* that the firm of Rimui and Mubia have never been properly on the record, and this was such an elementary and obvious mistake on the part of the Commission's advocates that we wonder why the point was not taken before Porter J, on the second hearing before him, and indeed as Mr *Ojwang* pointed out, before this Court on the previous hearing, when Mr Khaminwa appeared for the Commission.

The prayers now before this Court are: firstly, to strike out the notice of appeal on the ground we have stated; secondly to vacate the April 1990 order of this Court granting the stay; and thirdly to compel the Kenya Commercial Bank to pay to the applicant the KShs 4 million represented by the banker's bond. The grounds are that no right of appeal exists, that no – or no proper – notice of appeal has been filed and that no appeal has been filed (by which is meant "instituted") within the prescribed time.

Mr *Ojwang*, in reply, concentrated only on the third of those grounds, and relied on the affidavit of the acting chief counsel, filed only the day prior to the hearing, to which is exhibited the various requests to the deputy Registrar for certified copies of the High Court proceedings. Those requests are dated 29 June and 19 July 1990 not, we observe, within the 30-day period laid down by the proviso to rule 81 so as to exclude the time taken for preparation of the record.

It would be difficult, in outlining the sorry history of events leading up to the present application to envisage greater incompetence on the part of the Commission and its advisers in dealing with the whole affair. But the incompetence is not all one-sided. In the applicants' notice of motion there is a prayer in effect impleading the Kenya Commercial Bank by asking that it pay KShs 4 million to the applicant. How can this be? It is not a party to the main appeal or this application and could not be heard thereon. Are we supposed to accede to this prayer and make an order against the bank without even hearing it? This motion offends against even the most elementary principles of justice and we express surprise that a supposedly competent firm of advocates should have drawn the application to include this prayer, which we unhesitatingly reject. In the unlikely event of the bank not honouring the bond on the dismissal of the appeal, then the applicants' remedy is to sue the Bank, not to attempt to implead it in an appeal to which it is not, and cannot be, a party.

As we read rule 80 we have a discretion as to whether or not to strike out the notice of appeal on the ground of the omission of some essential step in the proceedings. It cannot be denied that service on the opponent of the notice of appeal is an essential step. In *Abdul Waheed Sheikh v Abdul Shakoor Sheikh* [1985] 1 KAR 661 the full court struck out an appeal for failure to serve all the persons held to be directly affected by the appeal. In the earlier case of *Cassam v Sachania* [1981] 1 KAR 24 a single judge, Madan JA, did not take that drastic step but granted additional time.

After much hesitation. Particularly in view of the impossible order which the applicant sought, we have decided to grant limited further indulgence. The respondent Commission is to have leave to file a fresh notice of appeal containing the correct names and address of the party to be served within seven days from today, and shall serve that party within a further seven days. They shall then institute the appeal within 60 days thereafter. On failure to comply with any part of the order the notice of appeal shall be struck out.

In giving this decision we are not to be taken as agreeing with the submission in the affidavit of Mr Othoro that the giving of leave to appeal (which Porter J did after much hesitation) does imply or carry with it a proposition that the appeal itself is competent. That will be a matter for decision in the main appeal.

Orders accordingly.

For the applicants:
M Kiome

For the respondent:
ON Ojwang

Seni and another v Republic
[1990–1994] 1 EA 542 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	22 October 1992
Case Number:	96/92
Before:	Omar, Ramadhani and Mnzavas JJA
Sourced by:	LawAfrica

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[1] Criminal law – Charge of murder – Discrepancy in dates among illiterate witnesses.

Editor's Summary

Appellants were charged with offence of murder and convicted. Aggrieved by the decision of the trial Judge, they appealed.

Held – It is not fair for a Court to take illiterate people literally on the precision of their dates. Any discrepancies on dates on their part are apparent rather than real. (*Mohammed Shah s/o Lal Shah v R* (1939) 6 EACA 97 applied).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Masasila Mtoba v Republic [1982] TLR 131

Mayaya Ngelela v Republic criminal appeal number 130 of 1990 (CAT) (UR)

Mohamed Shah s/o Lal Shah v Republic (1939) 6 EACA 97 – **AP**

Tuwamoi v Uganda [1967] EA 84

Judgment

Ramadhani JA: The appellants, Shihobe Seni and Jisinza Samwel, were convicted of the murder of Kasanga Kabadi at Nsana village in Kahama District, Shinyanga Region. The killings was on 19 April

1987. They have been aggrieved by that decision of Korosso J, and the punishment of death passed on them and so have come with this appeal before us.

The deceased disappeared as from 19 April 1987 and on 23 April 1987 his wife reported it to appellant two, their ten cell leader, who, in the company of the deceased's son, contacted the village chairman, Mabala Dali (PW1). A search was mounted involving village mates among who were the appellants; PW1; the commander of Sungusungu, Robert Nonga (PW2) and one Lusuka Salama (PW4). After three days the putrid corpse was located some two miles away at Mulidobe village in Urambo District, Tabora Region.

PW1, 2 and 4 ascribed the discovery to the confessions of the appellants who then led the villagers to that location. Indeed the appellants are also said to have confessed to Deputy Sergeant David (PW3) to the fact of killing and that of being ushers to the search party. These statements were produced as Exhibit. P1 and P2.

The appellants, however, at the trial repudiated the statements as well as the confessions to PW1 and 2. they denied having taken the searchers to the dead body. Infact they claimed that there were two search parties and that the one which stumbled on the corpse did so because of birds which flocked over the spot and a dog of the deceased's son which was attracted by the foul smell.

Mr *Matata*, learned counsel, represented both appellants while Mr *Boaz*, learned State Attorney appeared for the respondent/Republic. Mr *Matata* had four grounds of appeal which were: first, that the verbal confessions to PWs 1 and 2 were involuntary and should not have been relied on; second, that the discovery of the dead body was a result of the combing of the area by the villagers and not because of the action of the appellants; third, that the confessions to PW3 were also not voluntary, and lastly, that the repudiated confessions required corroboration which was wanting.

As for the first ground Mr *Matata* said that the confessions to PWs 1 and 2 were extracted by torture. He lamented that though the learned trial Judge acknowledged the notoriety of the Sungusungu on the question of torture, yet accepted them hook, line and sinker. The learned advocate pointed out that PW1 testified that the confessions were given at 2am he submitted that this fact was pregnant with significance. However, Mr *Boaz* countered that by saying that it did not mean that the interrogation was conducted throughout the night.

All we can say is that the evidence of PW1 is not clear on whether the interrogation was continuous or not. In any case PW2 said that it was adjourned to the next morning when the appellant let the cat out of the bag. Be it as it may, PWs 1 and 2 were resolute that torture was not administered and they were not contraverted. Torture was only alleged by the appellants in their defence.

Then Mr *Matata* argued that these confessions were not admissible for another reason. He pointed out that PW2 was the member of the Sungusungu and such under the provisions of section 3(1) of People's Militia Laws (Miscellaneous Amendments) Act of 1989 (number 9 of 1989) he was equated to a Police Constable. Then, Mr *Matata* added, under section 27(1) of the Evidence Act of 1967 a confession voluntarily made to a police officer is admissible. However, he cautioned, a police officer is defined in section 3 of the Evidence Act to be a member of the Police force of or above the rank of corporal. The learned counsel then submitted that PW2 was not a Police officer under the Evidence Act and hence a confession made to him, even if voluntarily, could not be proved against the appellants under section 27. We agree with Mr *Matata* in this contention. However, Mr *Boaz* replied that the confession was made to the village assembly and not to PW2.

That is not clear from the record. PW2 kept referring to "we" throughout and also admitted that the members of Sungusungu were around in their attire. There is no evidence that there was a village assembly. There were just villagers who had responded to the alarm and were participating in the search of their colleague. In any case if there is reasonable doubt then it is resolved in favour of the appellants.

Mr *Matata* also argued that PW1 as the village chairman was a person in authority and so under section 27(3) of the Evidence Act a confession made to him is involuntary if the Court believes that it was induced by any threat, promise or other prejudice. In this case, he argued, they were induced by threats and tortures. Mr *Boaz* submitted that a village chairman is not a person in authority under section 27. He referred us to *Masasila Mtoba v Republic* [1982] TLR 131.

Again we agree with Mr *Matata* that PW2, as the village chairman, was a person in authority. In *Mtoba*'s case the High Court of Tanzania (Katiti J) held that a Ward Secretary was not such a person in authority. But as properly pointed out by Mr *Matata* in the case of *Mayaya Ngelela v Republic* criminal appeal number 130 of 1990 (CAT) (UR) we held that a village secretary was such a person in authority. So PW1, the village chairman, was even more so. However, there is not a shred of doubt that the confessions were not induced by threat, promise or other prejudice. Therefore we cannot fault the learned trial Judge for not holding them involuntary.

In the second ground Mr *Matata* contended that the corpse was found because of the perseverance of the searchers and not the work of the appellants. He said that PW1 had deposed that the dead body was found on 25 April 1987 whereas PW2 said that the confession were obtained on 28 April 1987. He submitted then that the body could not have been found because of the confession. He beefed up this submission by pointing out that appellant two in his defence was very emphatic that the interrogations were after the discovery. In any case, Mr *Matata* argued, if the appellants had volunteered to take the villagers to the corpse then there was no need for there to be two search parties.

Mr *Boaz*, on the other hand remarked that PWs 1, 2 and 4 were more peasants who would ordinarily not be in a position to refer to dates with precision and so the discrepancy was to be expected.

It is true that there is discrepancy with respect to dates. We, however, agree with Mr *Boaz* that the witnesses should not be taken literally on their dates. Indeed PW2 himself proved this. He said:

> "I got the report of his death on 24 April 1987… We set about looking for the deceased, but in vain. On the following day we again went about searching for the body of the deceased. That was on 27 April 1987."

If PW2 got the information on 24 April 1987 then the next day must have been 25 April 1987 and never 27 April 1987. it is unfair to take such a person literally on his dates. The case of *Mohamed Shah s/o Lal Shah v Republic* (1939) 6 EACA 97 has relevance here. The Court held that:

> "In case of African and Asiatic witness it is not fair or desirable to tie them down too closely to estimates of time … on a careful review of the whole of the evidence the discrepancies relied upon by the defence were apparent rather the real."

We do not subscribe to the blanket and racist generalisation of "African and Asiatic". We agreed with the proposition but would correct it and refer to illiterate people of whatever race. Thus PWs 1 and 2 being illiterate peasants the discrepancies relied upon by Mr *Matata* were apparent rather than real.

We again agree with Mr *Boaz* that what was vital was the information by all the three witnesses that the search took three days and that it was after the confessions that the appellants took the villagers to their discovery. This was not controverted.

Admittedly, the question of Mr *Matata* that if the appellants had volunteered to act as guides, then there was no need to have two search parties, is very valid. However, the existence of two groups was the story of the appellants only. It must be pointed out, though, that they were not contradicted on that just as they had not also cross-examined PWs 1, 2 and 4 on that point. However, there are their confessions to PW1 and PW3. We shall discuss their reliability later on.

Mr *Matata* then attacked the confessions to PW3 to have been involuntary. He contended that the record does not show that the defence was given an opportunity to object to the production of Exhibits P1 and P2. Here again Mr *Boaz* is right. PW3 gave his evidence, offered to tender the statements as exhibits and the learned trial Judge recorded "Admitted and marked Exhibit P…" That was the time for objection and from the record it is abundantly clear that the defence did not raise a finger.

However, the observation of Mr *Matata* that once the statements were repudiated, *albeit* during the defence stage, the learned trial Judge should have *suo moto* checked on the voluntariness, is valid and we shall deal it in due course.

The last ground was that as the confession were repudiated then there was a need for ascertaining their reliability and/or seek corroboration but the learned trial Judge did not even warn himself of that requirement Mr Boad conceded that thi is a first appeal then we could step into the shoes of the learned trial Judge. That is so.

Could the confession have been false? We fail to answer that in the affirmative. The details are such that they could not have been connected. Mr *Matata* cautioned that the sort of details were obtainable even from the villagers and that they were not privy to the appellants alone. Let us have a look at them.

Appellant 1 stated that the deceased was a local medicine man to whom he had sent his wife to be treated for her infertility but then the deceased befriended the wife. One day, appellant 1 continued, he found them in *flagranto delicto*. That was the genesis of appellant 1's hatred against the deceased. So on 18 April 1987 appellant one disclosed the plot to kill the deceased to appellant two and his father. Appellant two gave a very similar account. That information cannot be the property of every Tom, Dick and Harry. Then both appellant talked of the use of "goboro". That was supported by PW4 who heard an explosion that very day from the direction of the paddy plot of the deceased.

We are of the firm opinion and we entertain no flicker of doubt in our minds that the confessions cannot be anything but true and under the authority of *Tuwamoi v Uganda* [1967] EA 84 a conviction can be grounded on them. We so find.

For the avoidance of doubt we must say that their reliability is in addition to our conviction that the confessions were voluntarily given. Appellant two had this to say in cross examination; "the members of the 'Wasalama' assaulted us by means of sticks. I was injured all over the body. I cannot show the injuries on my body because it was 1987… I didn't complain to PW3 because I was confused and also because I knew I would be acquitted in the long run (*sic*)…" This explanation is unintelligible and it only confirms that the confessions were voluntarily but as an afterthought they sought to repudiate them.

In fact to be fair to the learned trial Judge, he had this to say “I don’t believe, however, that the accuseds’ were subjected to physical torture or else one of the accused or all of them would have told the Court how each of them was hurt, injured or in any way harmed”. That in our opinion was an appropriate observation.

We have one comment before we finish. The defence counsel at the trial, one Mr Ruta, did not impress us to have been diligent enough in the execution of his duties. He very superficially cross-examined PW1, one of the crucial witnesses. But worse still, he let other key witness like PWs 2 and 3 go unscathed. For those two and also for PW4 the record shows simply “XXD” Mr Ruta: Nil”. We feel duty bound to remark that advocates on dock briefs would see the importance to the Courts of the benefit of their full assistance.

We therefore dismiss the appeals in their entirety.

For the appellants:
Mr Matata

For the respondent:
Mr Boaz

Somji v Salum
[1990–1994] 1 EA 546 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	30 August 1993
Case Number:	45/92
Before:	Kisanga, Mnsavas and Mfalila JJA
Sourced by:	LawAfrica

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[1] Civil procedure – Unpleaded issue being raised in the judgment – Effect of not giving the one side the chance to be heard on an issue.

Editor’s Summary

The appellant and the respondent had an oral agreement for an exchange of residential premises. The appellant also gave the respondent TShs200 000 as disturbance allowance for her movement out of her flat.

The Registrar of Buildings subsequently allocated the respondent’s former flat to the appellant and the appellant proceeded to renovate it. However, the respondent later on changed her mind about the agreement and the Registrar of Buildings reallocated the flat to her.

The appellant thus sued for specific performance and general damages. However, the High court found that there was undue influence upon the respondent by the appellant and hence she was entitled to rescind the agreement.

The appellant appealed arguing that the defence of undue influence was never raised by the

respondent in her pleadings.

Held – If the judge was of the view that the ground of undue influence was, on the evidence, disclosed but was not set forth in the memorandum of appeal, rule 2 of Order 39 empowers him to raise it *suo moto.* However, the judge was enjoined to also give the appellant the opportunity to contest the issue before

resting his decision on it as he did. Thus, to the extent that the learned Judge failed to afford the appellant the opportunity to be heard on the issue, he was clearly in error.

The provisions of Order 39, rule 2 are mandatory and infringement thereof is fatal. Hence, the finding on the issue of undue influence is invalid and ought to be set aside.

Appeal is allowed.

No cases referred to in judgment

Judgment

Kisanga JA: The appellant and the respondent entered, into an oral agreement for an exchange of residential premises. The appellant offered the respondent a house in Nyakato area in exchange for a flat occupied by the respondent in the centre of the Municipality of Mwanza. The appellant, in addition gave TShs200 000 to the respondent as disturbance allowance upon her vacating the flat.

Pursuant to the agreement the respondent's landlord, the Registrar of Buildings, upon the respondent's request, acceded to the parties' wishes and duly allocated the flat to the appellant, following which the appellant went into occupation and made substantial renovations to the premises amounting to about TShs2 million. Subsequently, however, the respondent changed her mind and sought to dishonour or rescind the agreement. The landlord, the Registrar of Buildings acting under orders of the Housing Allocation Committee, reinstated the tenancy to the respondent. Whereupon the appellant filed a claim in the District Court for specific performance of the agreement and general damages for breach of contract. The court allowed the claim for specific performance and further directed the return of the TShs200 000 to the appellant, as it appeared that the respondent was denying ownership thereof.

The respondent appealed to the High Court which set aside the order for specific performance. In so doing the High Court found that the respondent was justified to rescind the contract because she was made to conclude that contract by undue influence exercised on her by the appellant and possibly by her own husband. It is from that decision that this appeal now arises.

Before us the appellant was represented by Mr *Magongo*, learned advocate, while the respondent conducted the appeal in person.

Mr *Magongo* filed four grounds of appeal which essentially raised two issues, namely:

> "(*a*) Whether on the evidence there was any undue influence, and
>
> (*b*) Whether it was open to the learned Judge to make a finding on that issue which was not raised on the pleadings".

We propose to consider ground (*b*) first, Mr *Magongo* rightly observed that the issue of undue influence was never raised on the pleadings. The crux of the respondent's defence was couched in paragraphs 4 and 5 of her Written Statement of Defence in the following terms:

> "4. That it is not true that both the defendant/plaintiff are tenants of the Registrar of Buildings at plot number 10 block 'R'. Defendants aver (sic) that she does not know the plaintiff in anyway.

5. That contents of paragraph 4 and 5 are a total lie as defendant has never seen the plaintiff before and hence no agreement could have been entered between them. The alleged contract is purely a fraud and defendant would prove it".

The respondent was clearly asserting that the appellant was a stranger and that she could not have entered into an agreement with such stranger. She does not allege undue influence. Nor was undue influence one of the issue framed. The issues as framed at the trial were:

"Issues agreed upon as follows:

1. Whether or not there was an oral agreement between the parties for exchange of services.

2. Reliefs, if any, to which the parties are entitled."

The learned Judge, however, found that the respondent in the course of her evidence at the trial did raise the issue of undue influence, and he criticised the trial magistrate for failing to consider it. This is what he said:

"As already said, the trial Court did not touch on this issue that is, undue influence. It concerned itself only with the issue of offer and acceptance. But the appellant otherwise in my view clearly raised this issue in her testimony in defence."

In order to remedy the omission, therefore the learned Judge proceeded to consider the issue and accordingly made a finding on it as shown above.

Mr *Magongo* submitted that in considering and making a finding on that issue the learned Judge erred for two reasons: First, he relied for his decision of the appeal on a ground which was not raised in the memorandum of appeal or which was not raised with the leave of the Court during the hearing of the appeal. Secondly he did not afford the appellant the opportunity to be heard on the issue. He relied for this submission on the provisions of Order 39, rule 2 which provides that:

"2. The appellant shall not, except by leave of the Court, urge or be heard in support of any ground of objection not set forth in the memorandum of appeal; but the Court, in deciding the appeal, shall not be confined to the grounds of objection set forth in the memorandum of appeal or taken by leave of the Court under this rule.

Provided that the Court shall not rest its decision on any other ground unless the party who may be affected thereby has had a sufficient opportunity of contesting the case on that ground."

The first leg of Mr *Magongo*'s complaint is wholly justified. The respondent's memorandum of appeal to the High Court makes no reference whatsoever to the issue of undue influence, and there is no indication in the record that the respondent obtained or sought leave to take that ground at the hearing. The second leg of Mr *Magongo*'s complaint is equally justified. If the learned Judge was of the view that the ground of undue influence was, on the evidence, disclosed but was not set forth in the memorandum of appeal, we think that rule 2 of Order 39 empowered him to raise it *suo motu*. However, under the proviso to that rule he was enjoined to give the appellant the opportunity to contest the issue before resting his decision on it as he did. Mr *Magongo* who had also represented the present appellant in the High Court says that no such opportunity was afforded to his client. Indeed according to him, he was taken by surprise when he read the High Court judgment and for the first time noticed that the judge had raised and dealt with that issue there. In all this the learned counsel is supported by the record. Thus to the extent that the learned Judge failed to afford the appellant the opportunity to be heard on the issue, he was, with the due respect, clearly in error.

Our understanding of rule 2 of Order 39 is that its provisions are mandatory and the infringement thereof is fatal. In the context of the present case this means that the finding on the issue of undue influence is invalid and ought to be set aside.

On the remaining ground Mr *Magongo* submitted in effect that on the evidence no undue influence was disclosed. However, having held that the finding on that issue was invalid, it would serve no practical purpose now to go further into the matter. And since the decision of the learned Judge in this appeal was rested solely on the issue of undue influence, the view we have taken on that issue also disposes of the appeal itself.

In the result the appeal is allowed. The decision of the High Court is set aside and that of the District Court is restored.

As stated before, the trial magistrate ordered the return of the TShs200 000 to the appellant because the respondent appeared to deny ownership of it. This was somewhat strange because the money which was put in a fixed deposit at the bank was in her own name and she was keeping the fixed deposit certificate. However at the hearing of this appeal she assured us that she has been renewing the deposit every year, which clearly shows that she acknowledges the money to be hers. On that account we reverse the order of the District Court in this regard and order that the sum of TShs200 000 be restored to the respondent.

The appellant is to have his costs of this appeal.

For the appellant:
Mr Magongo

For the respondent:
Information not available

Speaker of the National Assembly v Karume
[1990–1994] 1 EA 549 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	29 May 1992
Case Number:	92/92
Before:	Kwach, Cockar and Muli JJA
Sourced by:	LawAfrica

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[1] Judicial review – Existence of alternative remedy – Non disclosure of material facts to judge.

Editor's Summary

This was an application for a stay of the orders of the High Court granting the respondent leave to apply for an order of certiorari in order to quash a declaration by the Speaker to the effect that the Kiambaa parliamentary seat vacant.

Held – Where there is a clear procedure for the redress of any particular grievance prescribed by the Constitution or an Act of Parliament, that procedure should be strictly followed. Order LIII cannot oust clear constitutional and statutory provisions.

Practical difficulties in getting a particular remedy should not be used as a justification for circumventing the statutory procedure.

Non-disclosure of material facts, during the application for leave, is capable of affecting the manner in which the judge exercises his discretion. *Rex v Kensington Income Tax Commissioners ex parte Princess Edmond de Polignac* [1917] 1 KB 486; *Lilian S v Caltex Oil (Kenya) Limited* civil appeal number 50 of 1989 (UR) applied.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Lilian S v Caltex Oil (Kenya) Ltd civil appeal number 50 of 1989 (UR) – **AP**

Rex v Kensington Income Tax Commissioners ex parte Prices Edmond de Polignac [1917] 1 KB 486 – **AP**

Ruling

Kwach, Cockar and Muli JJA: This is an application under rule 5(2)(*b*) of the Court of Appeal Rules brought by the Speaker of the National Assembly (the Speaker), seeking a stay of the orders of the Honourable Mr Justice Shields made under Order LIII of the Civil Procedure Rules, on 20 May 1992, whereby he granted Honourable James Njenga Karume (the respondent) leave to apply for an order of certiorari to remove into the High Court and quash the declaration dated 9 March 1992, by the Speaker published in the Kenya *Gazette* Notice number 977 of 1992, declaring the Kiambaa Parliamentary seat held by the respondent vacant. In granting leave to apply, the judge also made a discretion under Order LIII, rule 1(4) that the grant of leave to apply was to operate as a stay of the declaration made by the Speaker. The application is supported by the affidavit of Mr Maijo Ole Keiwa sworn on 22 May 1992. There is replying affidavit sworn by the respondent and filed in Court on 27 May 1992, in opposition to the application.

At the 1988 general elections, the respondent was returned as the Member of Parliament for Kiambu constituency in Kiambu District. At that time Kenya was still a one-party state and one had to be a member of the Kenya African National Union (KANU) before one could be elected as a Member of Parliament. Section 2A of the Constitution of Kenya was still in place. It provided as follows:

> "2A. There shall be in Kenya only one political party, the Kenya African National Union."

Following the repeal of section 2A of the Constitution last December, Kenya became a multi-party state and a number of opposition parties have since been formed including the Democratic Party (DP). The respondent resigned from his ministerial position and joined the Democratic Party of which he says he is a founder member.

The Speaker, pursuant to the provisions of section 40 of the Constitution as amended by the Constitution of Kenya (Amendment) (number 2) Act of 1991 (Act number 12 of 1991) and section 18 of the National Assembly and Presidential Elections Act (Chapter 7) (Elections Act) declared the Kiambaa parliamentary seat vacant.

The respondent being dissatisfied with the Speaker's declaration filed a petition on 30 March 1992, being Election Petition number 2 of 1992, under section 20(1)(*b*) of the Elections Act, challenging the declaration of the Speaker. That petition is still pending before the High Court.

Thereafter on 30 April 1992, the respondent filed miscellaneous civil cause number 388 of 1992 under Order LIII, rule 1 of the Civil Procedure Rules, seeking leave to apply for an order of certiorari to remove into the High Court and quash the Speaker's said declaration and a direction that the grant of such leave do operate as a stay of the said declaration. It was that application which came before Shields J, *ex parte* on 5 May 1992 for hearing and 20 May 1992 when he granted the orders sought by the respondent.

The Speaker has filed a notice of appeal under rule 74 of the Rules of this Court and has taken out a notice of motion seeking to stay, suspend, vary or discharge the orders made by the judge pending the hearing and determination of the appeal.

The thrust of Mr Satish *Gautama*'s submissions, on behalf of the Speaker, was that Parliament in its own wisdom having prescribed the procedure to be followed by anyone seeking to challenge a declaration made by the Speaker under section 18 of the Elections Act, it was not open to the respondent to bypass this procedure by invoking the prerogative orders under Order LIII of the Civil Procedure Rules. In his view, where there is an effective remedy available it is not open to a party to invoke Order LIII of the Civil Procedure Rules. The other point which Mr *Gautama* stressed was that the respondent failed to disclose in his statement of facts the fact that he had already filed an election petition which was still pending before the Court. In his submission this amounted to a concealment of a material fact which could have affected the judge's exercise of his discretion and he may well have declined to grant the leave and/or the order of stay.

In reply to these submissions, Mr *Mukuria*, for the respondent, related the special circumstances which made it necessary for an application to be made under Order LIII of the Civil Procedure Rules. These were that it was difficult to constitute an election court expeditiously and further that experience had shown that it took 4 to 5 years before an election petition was heard. He also contended that the provisions of the Elections Act did not exclude the remedy available under Order LIII of the Civil Procedure Rules.

Irrespective of the practical difficulties enumerated by Mr *Mukuria*, these should not in our view be used as a justification for circumventing the statutory procedure.

Section 23(2) of the Elections Act has provided for all interlocutory matters in connection with a petition to be dealt with and decided by any judge.

Section 40 of the Constitutions of Kenya (Amendment) (Number 2) Act, which came into force on 20 December 1991 reads:

> "40. A member of the National Assembly who, having stood at his election as an elected member with the support of or as a supporter of a political party, or having accepted appointment as a nominated member as a supporter of a political party, either:
>
> (*a*) Resigns from that party at a time when that party is a parliamentary party; or

(*b*) Having, after the dissolution of that party, been a member of another parliamentary party at a time when that other party, resigns, from that other party is a parliamentary party,

shall vacate his seat forthwith unless in the meantime that party of which he was last a member has ceased to exist as a parliamentary party or he has resigned his seat:

Provided that this subsection shall not apply to any member who is elected as Speaker."

The next relevant provision is section 44 of the Constitution of Kenya, the material parts of which state:

"44 (1) The High Court shall have jurisdiction to hear and determine any question whether:

(*a*) …

(*b*) the seat in the National Assembly of a member thereof has become vacant.

(3) An application to the High Court for the determination of a question under subsection (1)(*b*) may be made:

(*a*) where the Speaker has declared that the seat in the National Assembly of a member has by reason of a provision of this Constitution become vacant; by that member."

The other provisions are section 19 and 20 of the Elections Act, the material parts of which read:

"19. An application to the High Court under the Constitution to hear and determine a question whether:

(*a*) …

(*b*) …

(*c*) the seat in the National Assembly of a member thereof has become vacant,

shall be made by way of petition, and shall be tried by an election court consisting of three judges.

20. (1) A petition:

(*a*) …

(*b*) To seek a declaration that a seat in the National Assembly has not become vacant, shall be presented within twenty-eight days after the date of publication of the notice published under section 18."

In our view, there is considerable merit in the submission that where there is a clear procedure for the redress of any particular grievance prescribed by the Constitution or an Act of Parliament, that procedure should be strictly followed. We observed without expressing a concluded view that Order LIII of the Civil Procedure Rules cannot oust clear constitution and statutory provisions.

As for Mr *Gautama*'s second point, Mr *Mukuria* conceded that the filing and pendency of the election petition had not been disclosed in the respondent's statement of facts. In our view this was a material fact which was capable of affecting the manner in which the judge exercised his discretion. (See *Rex v Kensington Income Tax Commissioners ex parte Prices Edmond de Polignac* [1917] 1 KB 486 and *The Owners of Lilian S v Caltex Oil (Kenya) Ltd* (civil appeal number 50 of 1989) (UR).

We are satisfied that there are substantial points to be raised in the appeal and that this is a proper case in which a stay ought to be granted. No prejudice will

result to the respondent as the Speaker is in any event obliged to issue the necessary writ under section 13(2)(*c*) of the Elections Act within 4 months from 9 March 1992, being the date of publication of the declaration.

The application is allowed and we stay all the orders made by the High Court on 20 May 1992, pending the hearing and determination of the intended appeal as prayed for in the notice of motion dated 22 May, 1992. Costs of the application to be in the appeal.

For the applicant:
Mr Satish Gautama

For the respondent:
Mr Mukuria

Stanslaus v Republic
[1990–1994] 1 EA 553 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	1993
Case Number:	187/91
Before:	Nyalali CJ, Omar and Ramadhani JJA
Sourced by:	LawAfrica

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[1] Criminal law – Murder charge – Defence of provocation – Essentials of – Illegal transactions.

Editor's Summary

The appellant was convicted of a murder charge and given the mandatory sentence of death by hanging. He appealed, arguing that he was provoked to kill the deceased.

Held – Illegal transactions take place outside the protection of the law and those who participate in such activities do not acquire any rights in respect of which a privation injury, violation or infringement is capable of being committed.

The essentials of provocation are as follows:

(i) A wrongful act or insult which cannot be a lawful act;

(ii) It must be such an act or insult as to deprive an ordinary person of his self control and such as to induce him to commit an assault of the kind which he did upon the person offering the insult;

(iii) The assault must be committed on or at least aimed at the person offering the provocation.

(*Yovan v Uganda* (1970) EA 405 followed).

Appeal dismissed.

Cases referred to in judgment

(“**A**” means adopted; “**AL**” means allowed; “**AP**” means applied; “**APP**” means approved; “**C**” means considered; “**D**” means distinguished; “**DA**” means disapproved; “**DT**” means doubted; “**E**” means explained; “**F**” means followed; “**O**” means overruled)

Kateri son of Ndaki in criminal appeal number 65 of 1992

Yovan v Uganda [1970] EA – **F**

Judgment

Nyalali CJ: The appellant, Isidori Stanslaus was convicted as charged for the offence of murder clause 196 of the Penal Code and was given the mandatory sentence of death by hanging by the High Court at Tabora (Kajeri, PRM with extended jurisdiction). He was aggrieved by the conviction and sentence, hence this appeal to this Court. In this appeal Mr *Jasimire*, learned advocate, represented the appellant on a dock brief, whereas Mr *Mapunda*, learned State Attorney, represented the respondent/Republic. Two memoranda of appeal were filed, the first one by the appellant himself and the second one, subsequently by Mr Nasimiro. All the grounds of appeal boil down to the complaint that the trial Principal Resident Magistrate with extended jurisdiction) erred in holding that the appellant acted without legal provocation in killing the deceased in this case, Mr *Mapunda*, on behalf of the Republic, supports the decision of the trial Court.

From the proceedings both in this Court and the trial Court it is apparent that there is common ground on most of the matters relevant to this case. It is common ground that on the 14 April 1987, the appellant killed one Nathan, son of Itiel by practically decapitating him with a panga in appellant's shamba, at Kibanga Village, Kasulu District. Prior to the incident, the deceased and his brother, namely Zakaria son of Itiel – the first prosecution witness (PW1) – had been staying as guests at the homestead of appellant's father. The appellant lived with his father. Shortly before the incident, the appellant invited the deceased to accompany him to appellant's shamba to help the appellant carry some luggage. Deceased obliged and took his bicycle with him for that purpose. Sometime after they arrived in the shamba, the appellant struck deceased with a panga at the back of the neck.

It is common ground also that after thus attacking the deceased with the panga, the appellant returned home where he asked PW1 also to accompany him with his own bicycle to the shamba purportedly to assist in carrying a luggage which had proved to be too heavy to be carried by appellant and PW1's brother. PW1 obliged. Shortly after they arrived in the shamba, the appellant slashed PW1 in the back but PW1 managed to escape serious injury and ran away. Thereafter, the appellant made a shallow grave in his shamba where he buried the deceased Nathan son of Itiel and camouflaged it by planting some banana shoots on top of it. Having accomplished that, the appellant returned home. appellant, however, did not stay long at home. PW1 turned up at night and narrated to appellant's father and relatives what had transpired in appellant's shamba. Anticipating trouble for himself, the appellant disappeared from home and ran away with the bicycle of the deceased.

It is undisputed between the parties to this case that the shallow grave where the deceased was buried by the appellant was discovered by the villagers after a search was mounted the following morning. The police were informed, and they came to the scene, accompanied by a doctor, several days later. A postmortem examination was conducted on the dead body of the deceased. The appellant was subsequently arrested on the 20 April 1987. He was taken before a Justice of the Peace before whom he recorded a confession to killing the deceased.

At his trial he raised the defence of provocation claiming in effect that the deceased and the appellant had been partners in an illicit business of smuggling elephant tusks from Tanzania to Burundi. He further asserted that for sometime prior to the fatal incident, the deceased had behaved as if he wanted to cheat on appellant's share of the transaction. appellant's suspicions were confirmed when the appellant demanded his share when the appellant and deceased were in appellant's shamba on the material day. Deceased flatly refused, saying what amounted to in Kiswahili as:

> *"Biashara gani biashara yenyewe ya wizi tena ya magendo na pia fedha zenyewe nimekwisha tumia na kunywa."*

This roughly translates into English as saying "what kind of business is this! It amounts to stealing and involves smuggling. Any how, I have spent all the money on drinking".

It is these remarks which the appellant claims provoked him into killing the deceased. The trial Court did not accept the story given by the appellant to explain his killing of the deceased and therefore held that the defence of provocation was not proved. The thrust of the appeal is directed at faulting this finding of the trial Court. In the course of hearing this appeal, the Court asked the parties to address it on an important point of law, upon which the decision of this appeal turns. This is whether the story of the appellant, if accepted as true, discloses conduct which amounts to legal provocation. Both sides are in agreement that the answer lies in the provisions of section 202 of the Penal Code, which states:

> "The term 'provocation' means and includes, except as hereinafter stated, any wrongful act or insult of such a nature as to be likely, when done to any ordinary person, or in the presence of any ordinary person to another person who is under his immediate care, or to whom he stands in a conjugal, parental, filial or fraternal relation, or in the relation of master and servant, to deprive him of the power of self-control and to induce him to commit an assault of the kind which the person charged committed upon the person by whom the act or insult is done or offered.
>
> When such act or insult is done or offered by one person to another, or in the presence of another to a person who is under the immediate care of that other, or to whom the latter stands in any such relation as aforesaid, the former is said to give the latter provocation for an assault.
>
> A lawful act is not provocation to any person for an assault.
>
> An act which a person does in consequence of incitement given by another person in order to induce him to do the act and thereby, to furnish an excuse for committing an assault is not provocation to that other person for an assault.
>
> An arrest which is unlawful is not necessarily provocative for an assault, but it may be evidence of provocation to a person who knows of the illegality."

The important issue that arises in this case is whether the alleged refusal by the deceased to pay the proceeds of smuggling, coupled with the words allegedly spoken by him amount to wrongful act or insult. In the case of *Yovan v Uganda* [1970] EA at 405, the Court of Appeal for East Africa while dealing with similar legal provisions, stated:

> "With this in mind we would again shortly summarise the provisions of clause 187 and 188. The essentials as set out in section 188 are that there must be:
>
> (i) A wrongful act or insult, and as stated in sub-section (3) it cannot be a lawful act;
>
> (ii) It must be such an act or insult as to deprive an ordinary person of his self-control;

(iii) And such as to induce him to commit an assault of the kind which he did upon the person offering the insult;

(iv) The assault must be committed on or at least aimed at the person offering the provocation."

The expression "wrong" or "wrongful" is not specifically defined under the Penal Code or the Interpretation of Law and General Clauses Act of 1972, Chapter 1 of the Revised Laws. To our knowledge, these expressions do not appear to have been previously defined judicially within our jurisdiction or elsewhere in our neighbourhood. However, according to *Jokitt's Dictionary of English Law* a "wrong" means "the privation of right, an injury; that which takes place when a right is violated or infringed". Similarly *Whinton's Law Lekicon* (14ed) defines a wrong as, "the privation of right, an injury, a designed or known detriment". The shorter *Oxford English Dictionary* defines a wrong as it relates to law as, "violation, transgression, or infringement of law; invasion of right to the damages or prejudice of another or others".

We think that the meaning of a "wrong" as articulated above is the correct meaning in the law applicable in this country. It follows that the conduct of the deceased could amount to provocation in law only if it deprived or violated a right acquired by the appellant under the illicit transaction between them. It is however, an elementary principle that illegal transactions do not give rise to rights recognised by the law of the land. In other words, illegal activities take place outside the protection of the law, and those who participate in such activities do not acquire any rights in respect of which a privation injury, violation or infringement is capable of being committed. The case of *Kateri s/o Ndaki* in criminal appeal number 65 of 1992 decided by this Court but not yet reported, did not deal with the provisions of section 202 of the Penal Code in respect of the claim made by the appellant in that case that he had been provoked by being served with a Court summons in a matter already settled out of court.

In the final analysis therefore, it is clear that the conduct of the deceased as disclosed by the story of the appellant, does not amount to legal provocation. appellant was thus liable to be convicted as charged. As the sentence imposed is mandatory under the law, this appeal must fail and we dismiss it in its entirety.

We order accordingly.

For the appellant:
Mr Jasimire

For the Republic
Mr Mapunda, State Attorney

Tanna v Munyinza and another
[1990–1994] 1 EA 556 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	12 January 1993
Case Number:	12/902
Before:	Wambuzi CJ, Oder and Platt JJSC
Sourced by:	LawAfrica

[1] Civil procedure – Attempt to oust or limit the function of the Courts.

[2] Land – Effect of the Expropriated Properties Act of 1982 to sale by mortgagee.

Editor's Summary

The suit property was originally owned by one Vipinchanra Dharatal Desai who executed a legal mortgage in favour of Uganda Commercial Bank to secure repayment of UShs43 000 lent to him. In 1972, Desai left the country and his property was expropriated by the Uganda government and, under the provisions of the Assets of Departed Asians Decree of 1773 (Decree number 27 of 1973), vested in the second respondent.

However, the bank, acting under its powers in the mortgage, subsequently sold the property to the appellant in a public auction. Attempts to register the transfer of the suit property however failed and the appellant, in a separate suit, sued the Registrar of Titles and obtained orders for his registration as the proprietor.

The first respondent was at the time a tenant of the second respondent and she refused to recognise the appellant's claim of ownership or enter into a tenancy agreement with it. The appellant sued for vacant possession, arrears of rent, *mesne* profits and a declaration that the second respondent had no interest in the property.

The suit was dismissed hence this appeal.

Held – The parties, by their agreed issue, tried to oust the function of courts to arbitrate fairly the dispute between the parties and to come out with decisions that appeared just in the opinion of the Court. This, the parties cannot and should not do.

The purchase and transfer of the suit premises to the appellant were nullified by section 1(2)(*a*) of the Expropiated Properties Act, notwithstanding any written law under which the bank was entitled to sell and transfer the suit property as the mortgagee to the appellant

Appeal dismissed.

No cases referred to in judgment

Judgment

Oder JSC: This is an appeal against the judgment of the High Court of Uganda at Kampala, dated 28 March 1991 in civil suit number 707 of 1987. The appellant was the unsuccessful plaintiff in the suit and the respondents the successful defendants. Originally only the first respondent was sued. The second respondent was joined subsequently.

The appellant's claim against the respondents were for vacant possession of a house on plot number 12 Hannington Road, Kampala (hereinafter "the suit property"), arrears of rent, *mesne* profits, damages and declaration that the second respondent had no interest, legal or equitable in the suit property. The claims were countered by the respondent in their respective written statements of defence, the combined effect of which was that the suit property was subject to the Expropriated Act of 1982 which had vested it in the second respondent. It was also averred that by reason of the provisions of that Act, the appellant's registration as the proprietor of the suit property had been illegal and of no effect.

Most of the facts in the case were agreed at the trial, although certain contentious matters were also listed as agreed facts. Briefly, the facts were that the suit property was originally owned by one Vipinchandra Dharatal Desai. On 21 December 1965, Desai executed a legal mortgage in favour of Uganda Commercial Bank to secure repayment of UShs43 000 lent to him by the Bank. The mortgage was duly registered as an incumbrance on the suit property. In 1972 Desai left the country as a "Departed Asian". Consequently the property was expropriated by the Uganda Government and, from August 1972, was vested in the second respondent as the legal owner by virtue of the provisions of the Assets of Departed Asians Decree of 1973 (Decree number 27 of 1973). Due to default in repayment the suit property was sold by public auction on 22 February 1982 on instructions of the bank as the mortgagee to recover the loan. The bank had express powers of sale in case of default under the mortgage. It was the appellant who bought the suit property at the auction. Attempts were subsequently made to register the transfer of the suit property to the appellant but the Registrar of Titles rejected the transfer.

Contrary to what is alleged in the agreed facts, it appears that attempts to register the transfer were not successful. What appears to have happened is that the transfer was entered by the typist on the Certificate of Title before it was checked by the Registrar of Titles to see whether it was registerable or not. Upon doing so the Registrar discovered alteration which had not been initialed by the parties who had executed the transfer. Following such a discovery the Registrar of Titles rejected registration of the transfer. This evidence was set out in the ruling of Kantinti J dated 27 March 1986. As a result of the rejection, the appellant sued the Registrar of Titles under section 185 of the Registration of Titles Act in OS number 28 of 1983 at the High Court for a direction to substitute the appellant's names as the registered proprietor of the suit property. Both the respondents were not joined as parties in the suit. Pursuant to the Court order of 27 March 1986 the appellant was registered as the proprietor on 16 June 1986. By that time the suit property was occupied by the first respondent as the tenant of the second respondent, but the former refused to recognise the appellant's claim of ownership or to enter into a tenancy agreement with him. Consequently, he brought the action in this case.

At the trial of the suit only one issue was framed by agreement of both the parties. It was:

> "Whether or not given the agreed facts that the suit property could lawfully be sold to the plaintiff by the Uganda Commercial Bank the mortgagee and the plaintiff obtained good title or nothing passed and property still belongs to the second defendant and the first defendant a mere tenant of the second defendant."

In his considered judgment the learned trial Judge found for the respondents and answered the issue in the negative, dismissing the suit. Hence this appeal. The judgment of the learned trial Judge has been attacked in three grounds of appeal, stated in the memorandum as follows:

> "1. The learned trial judge failed to adequately interpret the various legislation governing assets of Departed Asians and hence erred in law in holding that Uganda Commercial Bank, a mortgagee of the suit property could not realise its security by sale and in holding that its only remedy was to sue the second respondent.
>
> 2. The learned trial judge erred in law in holding that the Mortgage Decree was inapplicable to the suit property.

3. The learned trial judge erred in law in holding that the required procedure was not followed in exercising the power of sale by the mortgagee and in not holding that as a purchaser of property in a public auction, the appellant could not be affected by any irregularity followed prior to the sale and, therefore, the appellant obtained good title."

Before considering the grounds of appeal, I wish to say something about what I consider to have been errors in the manner in which this case was handled at the trial and on the ground of appeal. As I understand it, the main, and perhaps the only point for decision in this case was whether the sale and transfer of the suit property to the appellant was nullified by the provisions of section 1 of the Expropriated Properties Act of 1982. Both the respondents in their written statements of defence relied on the effect of that Act as the ground for resisting the appellant's claims. In the agreed facts the second respondent reiterated its contention that the transaction between the Uganda Commercial Bank and the appellant was nullified by the provisions of the Act. In view of all this, find it amazing, to say the least, that the only issue which was framed at the trial did not mention the effects of the Act on the transaction.

In their submissions before the learned trial Judge, counsel for the appellant and the respondents also referred to the Expropriated Properties Act of 1982. The appellant's counsel contended that the mortgage in question having been executed in 1966 and the subsequent sale of the same property having been the result of an enforcement of the mortgagee's rights that mortgage, the sale, in his view, was nullified by the Act. The respondent's counsel, on the other hand, reiterated the respondents' reliance on the Act for contending that the transaction was nullified. In these circumstances it is also surprising that the learned trial Judge omitted to consider the effect of the Act at all on the transaction in question which, with respect, I think it was his duty to do. As it happened, the learned trial Judge found that the sale of the suit property to the appellant was nullified, apparently not because of the application of section 1 of the Act to the situation before him, but because the mortgagee was prohibited by section 28 of the Assets of Departed Asians Decree of 1973 the only remedy available to the mortgagee being to recover the debt by court action.

The grounds of appeal as set out in the memorandum are also vague on what I have referred to as the main issue in this case. One would have expected the grounds of appeal to have stated in what way (if any) the decision being appealed against was wrong (if that was the contention) regarding the effect of section 1 of the 1982 Act. In addition, I also think that the respondents should have given a notice for confirming the decision of the trial Court under rule 91 of the Rules of the Court, given that the suit could have failed for reasons other than those on which it was dismissed by the learned trial Judge. Another irregularity worthy of note is that at the commencement of the trial the parties purported to agree in the following terms.

"We therefore severally bind ourselves that upon finding the issue in the positive (*i*) judgment should be entered in favour of the plaintiff. And upon finding the issue in the negative (*ii*) judgment should be entered in favour of the defendants."

We found such agreement objectionable on at least two grounds.

The first is that by doing so the parties sought to tie in advance the hands of the learned trial Judge in his judgment. The parties also appeared to have attempted to oust the function of the Court to arbitrate fairly the dispute between the parties and to come out with decisions that appeared just in the opinion of the Court. This, in my opinion, parties cannot and should not do.

The second objection is that the agreement would have the effect of asking for a judgment in favour of one or other of the parties whether or not such a judgment was contrary to any legal provisions.

In the circumstances, this Court thought that there were grounds on which we could have refused the parties to argue the appeal and to have ordered a retrial of the suit. We, however, did not do so. We instead gave leave to the appellant and the respondents under rule 101 of the Rules of this Court to argue the effect of section 1 of the Expropriated Properties Act of 1982 on the sale of the suit property, though the same had not been made a ground of appeal, a cross appeal or for a notice of the judgment of the trial Court, under rules 90 and 91 respectively of the Rules of this Court.

With regard to the possibility of a retrial, we thought that if the Court of retrial might reach the same conclusion regarding the application to this case of the provisions of section 1 of the Expropriated Properties Act as this Court would do, then a retrial would serve no useful purpose. In the event we declined to order a retrial.

Mr *Nangwala*, learned counsel for the appellant in his submissions appears to have made the following points: First, that since the mortgage agreement gave UCB as the mortgagee the right to sell the suit property in case of default by the mortgagor, the bank had properly exercised that right under section 9 of the Mortgage Decree of 1974 by selling it to the appellant; second, that the learned trial Judge came to the wrong conclusion by holding that under section 28 of Decree number 27 of 1973, the bank as the mortgagee of a Departed Asian was prohibited from selling the suit property; third, that the appellant having bought the suit property as the highest bidder at a public auction, his title was not vitiated by any irregularity concerning notice to UCB as the mortgagee, to the second respondent as the mortgagor prior to the sale; fourth, that neither the mortgage in question which was exercised in 1965, nor the sale of the suit property which was carried out on 22 January 1982 were nullified by the Expropriated Properties Act which came into force on 21 February 1983; and fifth, that by virtue of the provisions of section 56 of the Registration Titles Act, the appellant's registered title to the suit property cannot be defeated as no fraud was alleged and provided against him.

Mr *Sekandi*, counsel for the respondents submitted that as the suit property was an expropriated property, it was vested in the government. This meant, therefore, that it was affected by the provisions of section 1 of the Expropriated Properties Act. Consequently, the registration of the transfer of the suit property to the appellant having been carried out after the Act had come into force, it meant that the sale and transfer was nullified by the Act. Regarding section 56 of the Registration Titles Act, Mr *Sekandi* submitted that that section did not apply due to the operation of the 1982 Act.

As I have said elsewhere in this judgment the main point for decision in this appeal, in my view, is the effect of section 1 of the Expropriated Properties Act of 1982. What is the validity of the sale of the suit property to the appellant in relation to the provisions of the Act? The relevant provisions of section 1 of the Act state as follows:

> "1. Any property or business which was:
>
> (*a*) Vested in the government and transferred to the Departed Asians Property Custodian Board under the Assets of Departed Asians Decree, 1973

(*b*) …

(*c*) …

shall from the commencement of this Act, remain vested in the government and be managed by the Ministry of Finance.

2. For the avoidance of doubt, and notwithstanding the provisions of any written law governing the conferring of title to land, property or business and the passing or transfer of such title it is hereby declared that,

(*a*) any purchases, transfers and grants of, or any dealings of whatever kind in, such property or business are hereby nullified; and

(*b*) Where any property affected by this section was at the time of its expropriation held under a lease or an agreement for a lease, or any other specified tenancy of whatever description, and where such lease, agreement for a lease, or tenancy had expired or was terminated, the same shall be deemed to have continued, and to continue in force until such property has been dealt with in accordance with this Act; and for such further period as the Minister may by regulations made under this Act prescribe."

This Act, in my view, was the culmination of various statutes which had previously applied to what is commonly known as the property or business of "Departed Asians". Its purpose, as stated in the preamble, was:

> "to provide for the transfer of the properties and businesses acquired or otherwise expropriated during the. Military regime to the Ministry of Finance, to provide for the return to the former owners or disposal of the same by government and to provide for other matters connected with or incidental thereto."

Section 1(1)(*a*) provides that any property or business which was vested in the government and transferred to the Departed Asians Property Custodian Board under the Assets of Departed Asians Decree of 1973 shall, from commencement of the Act, remain vested in the government and managed by the Ministry of Finance. The properties or businesses which section 1 of the Act declared as remaining vested in the government had been earlier vested in the government by section 4, and transferred to the Departed Property Custodian Board by section 13, of the Assets of Departed Asians Decree of 1973. In the circumstances all that section 1(1) of the Act seems to have done is to have vested such properties or businesses back in the government. In addition, section l(2)(*a*) of the Act also nullified certain transactions with regard to such properties or businesses. As I understand it, the meaning of section 1(2)(*a*) of the Act appears to be this:

"(i) It nullied any:

(*a*) Purchases,

(*b*) Transfers and grants of or,

(*c*) Dealings of whatever kind in,

(ii) Properties now vested in the government.

(iii) Such transactions were nullified notwithstanding the provisions of any written law governing the conferring of title and the passing or transfer of such title to:

(*a*) Land,

(*b*) Property or

(*c*) Business."

The suit property in the instant case had been owned by a departed Asian prior to 1972. As the agreed facts at the trial indicate, the suit property was expropriated by the government and put under the control of the Departed Asians Property Custodian Board since that time. In the circumstances there would be

no doubt that the suit property was one of those to which the Expropriated Properties Act of 1982 applied. Section l(*a*) of the Act vested it back in the government and brought it under the management of the Ministry of Finance. Consequently in my view, if any of the transactions listed in section l(2)(*a*) above was carried out in respect of the suit property, such transaction was nullified by that section, if the transaction was effected between the time when the suit property was first vested in Government by the Assets of Departed Asians Decree of 1973 and the time when the Act of 1983 came into force, namely on 21 February 1983.

Further, according to the agreed facts the suit property was sold to and purchased by the appellant on 22 February 1982 in the process of enforcement by UCB of its rights of sale as a mortgagee. Consequent to the sale and purchase UCB transferred the title of the suit property to the appellant. The purchase and transfer in question were, in my view, nullified by section 1(2)(*a*) of the Act notwithstanding any written law under which UCB was entitled to sell and transfer the suit property as the mortgagee to the appellant.

The sale to and purchase by the appellant having been nullified by the Act of 1982, I do not think that it is necessary to consider in this appeal whether or not the procedure of sale was carried out in accordance with the provisions of the Mortgage Decree of 1974, or whether or not notice was given to the mortgagor before the sale. For the same reasons, I also think that it is not necessary to consider the effect on the transactions in question of the provisions of section 56 of the Registration of Titles Act (Chapter 205).

In the result I would dismiss this appeal with costs.

Wambuzi CJ: I have had the opportunity reading in draft the judgment prepared by Oder JSC which sets out the facts. The three grounds of appeal argued before us were:

> "1. The learned trial Judge failed to adequately interprete the various legislations governing assets of Departed Asians and hence erred in law in holding that Uganda Commercial Bank, a mortgagee of the suit property could not realise its security by sale and in holding that its only remedy was to sue the second respondent.
>
> 2. The learned trial Judge erred in law in holding the Mortgage Decree, 1974 was inapplicable to the suit property.
>
> 3. The learned trial Judge erred in law in holding that the required procedures were not followed in exercising the power of sale by the mortgagee and in not holding that as a purchaser of property in a public auction, the appellant could not be affected by any irregularity followed prior to the sale and therefore the appellant obtained good title."

Before dealing with the arguments relating to these three grounds, I must observe that Mr *Sekandi*, learned counsel for the two respondents, relied on section 1 of the Expropriated Properties Act of 1982. I observe also that as far as is relevant to this appeal, the agreed facts between the parties in the lower Court were stated as follows:

> "1. Before 16 June 1986 the suit property was registered in the names of Vipinchandra Dhavantal Desai 'departed Asian' and thus the property has since August 1972 been expropriated by Government and under the control of the second defendant.
>
> 4. The second defendant became legal owner of the suit property all circumstances.

6. On the 22 February 1982 the suit property was advertised for sale in Uganda Times newspaper and was sold the same day to the plaintiff. UCB executed a transfer for the property into the names of the plaintiff and released the mortgage. On 6 May 1982 the plaintiff was registered as proprietor of the land.

7. The plaintiff's registration as proprietor was subsequently cancelled upon which he sued the Chief Registrar of Titles by High Court originating summons number 28 of 1983. The plaintiff was then registered as proprietor pursuant to an order by the Court in that cause Instrument number 226117 upon which the plaintiff was registered as a court order.

8. At the time the plaintiff was registered, the suit property was being occupied by the first defendant as a tenant of the second defendant who had been the legal owner of the property by virtue of Decree number 27 of 1973 which vested all the expropriated properties of the departed Asians under the second defendant.

9. The first defendant refused to recognise the plaintiff's claim for ownership and thus refused to enter into a tenancy agreement with the plaintiff.

11. The second defendant further claims that the transaction between the Uganda Commercial Bank and the plaintiff in respect of the suit property was nullified by the Expropriated Properties Act of 1982 and the property continues to be vested in government and under the management of the second defendant …"

I observe lastly that in paragraph 3 of the respondent's written statement of defence, it is pleaded that:

> "The second defendant avers that the suit property was affected by the Expropriated Properties Act which vested the legal ownership to the second defendant."

It is fairly clear that the second respondent by its pleadings and also by the agreed facts, its claim of ownership was based on the Expropriated Properties Act of 1982. Both parties agreed that the suit property was originally registered in the names of a "departed Asian", under agreed fact 1. Both parties agreed the second respondent became legal owner of the suit property under agreed fact 4. The appellant recognises the claim by the second respondent that the transaction between the Uganda Commercial Bank and the appellant in respect of the suit property was nullified by the Expropriated Properties Act of 1982 under agreed fact 11.

It follows in my view that as the sale of the property was admitted by both parties under agreed fact 6, one of the issues in the lower Court should have been whether or not the sale was nullified by the Expropriated Properties Act of 1982.

This position notwithstanding the parties agreed as follows in the lower Court,

> "We therefore severally bind ourselves that upon finding the issue in the positive (i) judgment should be entered in favour of the plaintiff. And upon finding the issue in the negative (ii) judgment should be entered in favour of the defendants."

As I see it judgment thus given is not correct in law unless the issue relating to the effect of section 1 of the Expropriated Properties Act of 1982 is answered one way or the other. I do not think that parties can agree to oust the jurisdiction of the Court to return the proper verdict on the pleadings and facts of the case.

Further I must observe that even if all the grounds of appeal were to succeed, that is, if this Court found:

> "1. That Uganda Commercial Bank as mortgagee had power to sell and realise its security, and

2. That the Mortgage Decree of 1974 was applicable the suit property, and

3. That a purchaser of property at a public auction is not affected by any irregularity following prior to the sale and that the appellant obtained a good title,"

The conclusion to be reached is that there was a valid sale. This would leave the question whether such a sale was nullified by the Expropriated Properties Act of 1982, as the second respondent's claims unanswered.

It would have been preferable for counsel for respondents to have given notice under rule 91 of the Rules of this Court of grounds for affirming the decision of the superior Court on grounds other than or additional to those relied by that court. However, in the circumstances of this appeal we allowed the learned counsel for the respondents to put forward arguments relating to section 1 of the Expropriated Properties Act of 1982 to enable the Court to re-appraise the issues and decide the real issue between the parties.

As far as I can gather from the judgment of the lower Court, the trial Judge does not appear to have considered provisions of section 1 of the Expropriated Properties Act. He did however, set out the provisions of section 5(2) and concluded as fol1ows:

> "I would find it hard to think of any reason, legal otherwise, justifying the Act protecting a mortgage subsisting at the commencement of the Act, that is to say, when the Act came into force on 21 February 1983, and throw overboard or nullify a mortgage which was in force at the expropriation of such property even if the mortgage was discharged or released as was the case in this present case."

With respect, I am unable to say that the decision of the Court was in respect of section 1 of the Expropriated Properties Act.

In so far as is relevant, section 1 of the Expropriated Properties Act provides as follows:

"1. (1) Any property or business which was,

(*a*) Vested in the government and transferred to the Departed Asians Property Custodian Board under the Assets of Departed Asians Decree 1973,

(*b*) …

(*c*) …

shall, from the commencement of this Act, remain vested in the government and be managed by the Ministry of Finance.

(2) For the avoidance of doubt, and notwithstanding the provisions of any written law governing the conferring the title to land, property or business and the passing or transfer of such title it is hereby declared that,

(*a*) any purchases, transfers and grants of, or any dealings of whatever kind in, such property or business are hereby nullified; and

(*b*) where any property affected by this section was at the time of its expropriation held under a lease or an agreement for a lease, or any other specified tenancy of whatever description, and where such lease, agreement for a lease or tenancy had expired or was terminated, the same shall be deemed to have continued, and to continue in force until such property has been dealt within accordance with this Act; and for such further period as the Minister may by regulations made under this Act prescribe.

(3) The Minister may, by statutory order appoint, any person or body to manage a property or business vested in the government under subsection (1) of the section."

Having regard to these provisions I have no doubt in my mind that the sale and transfer of the property in this appeal was nullified and accordingly I would agree that this appeal should fail.

As Platt JSC agrees with judgment and orders proposed by Oder JSC this Court orders as proposed by the learned justices of the Supreme Court.

Platt JSC concurred in the judgments of Wambuzi CJ and Oder JSC.

For the appellant:
Mr Nangwala

For the respondents:
Mr Sekandi

Tiwi Beach Hotel Ltd v Stamm
[1990–1994] 1 EA 565 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	23 July 1990
Case Number:	[1990] 2 Kar; 63/90
Before:	Hancox CJ, Kwach JA and Cockar AJA
Sourced by:	LawAfrica

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[1] Duty of disclosure – Application of ex parte *injunction – Necessity for good faith and full disclosure of facts in supporting affidavit – Application to restrain purchasers of land and holiday cottages from collecting increased rent and from evicting the tenant under prior tenancy agreement – Whether failure to refer to antecedent sale agreement to which purchaser were party amounts to material non-disclosure so as to disentitle applicant to relief – Vendor's obligations between agreement for sale and actual conveyance of property – Sections 55(1)(ϵ) – Indian Transfer of Property Act of 1882 – Section 163 and 164 – Registered Land Act (Chapter 300) – Section 4 – Landlord and Tenant (Shops, Hotels and Catering Establishment) Act (Chapter 301).*

Editor's Summary

By an agreement for sale dated 3 July 1981, the vendor sold the remainder of her lease over land at Tiwi to the appellant company, together with the holiday cottages thereon. The completion date was stated to be 31 August 1981, and the lease was sold with vacant possession subject, *inter alia*, to the vendors obtaining the appropriate consents to the transfer.

The transfer did not, however, take place, and 16 months later, on 1 January 1983, the vendor purportedly let the premises to the respondent at KShs 4 000 per month by a lease agreement dated 15 March 1983. The respondent thereafter expended substantial amounts on the suit property and carried on the business of receiving rent from the holiday cottages. Meanwhile the purchaser (the appellant) sued the original vendor for specific performance of the sale agreement and damages and in April 1989, judgment on the suit was by consent entered in favour of the purchaser for specific performance

and vacant possession of the suit property. The decree was not, however, issued until September 1989. In July and August of 1989 the purchaser wrote to the respondent claiming KShs 100 000 per month rent “until we negotiate a suitable lease”. On 15 August 1989 the respondent filed suit against the purchaser

asserting that the 1983 tenancy was still subsisting, that the purported transfer to it was invalid, and that, consequently, the original vendor, and not the purchaser, remained the registered owner of the suit premises. She also claimed to be a protected tenant under section 4 of the Shops, Hotel and Catering Establishments Act.

In her simultaneous application for a temporary, *ex parte*, injunction, *inter alia*, to restrain the purchaser from collecting the increased rents or from evicting her, the tenant recited the lease agreement and a further alleged sale agreement between her and the vendor, also during 1983, but failed to refer expressly to the July 1981 sale agreement between the vendor and the purchaser.

The judge granted the temporary injunction, and at the subsequent *inter partes* hearing rejected the purchaser's contention that the tenant had failed to make disclosure of all the facts material to the application, and, applying the principles relating to temporary injunction in *Giella v Cassman Brown and Company* [1973] EA 358, confirmed his previous decision. The purchaser appealed on this issue and on the ground that the vendor's obligations to a purchaser before the actual conveyance – namely not to diminish the value of the property sold by leasing it to a third party vitiated the 1983 lease agreement between the vendor and the respondent.

Held – It is the clear duty of an applicant seeking relief from the Court, particularly on an *ex parte* application, to make full disclosure of all the facts material to the application which are known to him or her.

In the instant case the circumstances were such that the tenant had not been guilty of deliberate concealment of the sale agreement, particularly as this as well within the knowledge of the purchaser, who was a part to it.

Moreover, the judge, after an *inter partes* hearing, and when fully aware of the sale agreement, arrived at the same conclusion as on the *ex parte* application.

The vendor's obligations to a purchaser between sale and completion not to diminish the value of the property sold, in particular by letting or re-letting it, had to be considered in the light of the general law, which envisaged that property would ordinarily be occupied and kept in good order, including letting it for this purpose. Where, therefore, there had been substantial delay in transferring his property so that those affected might well have thought that the sale had fallen through the property would otherwise have lain empty, it was not necessarily unreasonable to let a tenant in.

However, for the purposes of the action between the purchaser and the respondent, the obligation resting on the vendor towards the purchaser were *res inter alios acta* and could not operate to the prejudice of the tenant in another action.

Per Hancox CJ – The duties of a vendor in relation to property to be conveyed are not confined to physical preservation of it, but include a duty not to cause it to diminish in value such as, in ordinary circumstances, a letting or re-letting of all or part of it might do.

Per Kwach JA – The respondent made averments both in her plaint and supporting affidavits which she was obliged to make in support of her cause of action. She could have been expected to do any more. It had not been shown that the respondent gained some advantage over the appellant by failing to disclose the agreement's existence.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Lilian 'S' v Clatex Oil (Kenya) Limited civil application number 50 of 1989

Mariga v Musila [1984] 1 KAR 507, [1985] 2 KCA 204

United Kingdom

Brinksmat Limited v Elcombe [1988] 3 All ER 188

Egmont v Smith [1877] 6 Ch D 469

Mohamed H Abdullah v Ghela M Shah [1959] AC 124

Republic v Kensington Income Tax Commissioner, ex parte Princess de Plignac [1917] 1 KB 486

Judgment

Hancox CJ: By an agreement for sale dated 3 July 1981, Mrs Gabriella Kathleen Brown, who has only featured indirectly in the present proceedings, sold the remainder of her 99-year lease (which at that time had just over 90 years to run) on the property at Mombasa/MS/Tiwi Beach Block/46 to Wahu Chemicals Limited. They were the predecessors of, and for the purpose of this appeal have been treated in all respects as the same as, the appellants. They bring this appeal from the ruling of Githinji J, who had granted to the respondent an *ex parte* temporary injunction on 15 August 1989, subsequently confirmed by the same judge after an *inter partes* hearing until the hearing and determination of the main suit. The suit itself is for a declaration that the purchasers are not entitled to the increased rent they purported to demand by their letters of 20 July and 1 August 1989, and an injunction restraining them from collecting any rent from the respondent, and from evicting her from the suit premises.

The sale was subject to the Law Society's conditions of sale and to the special conditions contained in clause 9. The completion date was stated as 31 August 1981, with vacant possession on that date, subject to a leaseback to Mrs Brown of one cottage, which is not material to the appeal.

The special conditions included a stipulation that the vendor, (that is Mrs Brown) should obtain from his Excellency the President and/or the Commissioner of Lands consent to transfer the property to the purchasers, and another provision, which does not appear to have been noticed by counsel arguing this appeal, namely that the vendor was obliged to obtain similar consent for the change of user envisaged. That sub-clause further provided:

> "If such consents shall not have been obtained within the said period of three (3) months then this agreement shall automatically terminated and be of no effect and the deposit shall be returned to the purchaser . . ."

There is no evidence that the waiver provision which followed was ever invoked, but no point was taken before us that the July 1981 agreement had been terminated.

There is, of course, no material on record as to whether any of these consents were obtained, and I have only referred to them because it became evident during the submissions that there was a large area encompassed by the period which elapsed between the commencement of the other action in 1982, and the ruling of the learned Judge in August 1989, in which we are only to speculate as to what occurred. Neither counsel wished, nor was able, to give any information to the Court as to why the sale agreement, having been made on 3 July 1981, the parties to the other action (namely High Court civil suit number 136 of 1982) took no steps to consummate the agreement until 12 April 1989, when it was heard by the late Rauf J, who made the consent order granting specific performance of the agreements (that is the sale of the property and the sale of the business being carried on namely the letting of holiday cottages) to the purchasers. When we are considering, as we are in this appeal, an averment of material non-disclosure, it is important, I think, that the Court is not left with *lacunae* in the narrative of events which might be relevant to that averment: in other words it is important that the Court is not left with that which I may call a grey area in which it is left to speculate on what has happened. I say this because, towards the end of the argument, when Kwach JA put certain questions directed to ascertaining the stage at which the purchasers knew that the tenant (the respondent) was in occupation, leading counsel took refuge in the fact that he had no instructions on that particular issue. In other words, it does not look very good if one party is making an allegation akin to bad faith if that party leaves the Court in doubt as to its own complete good faith.

The memorandum of appeal contains 17 grounds, which Mr *Nowrojee*, appearing for the respondent, answered seriatim but which Mr *Lakha*, leading the case for the appellant, argued under two main headings, namely:

> "1. What was the effect of the applicants for the ex parte injunction before Githinji J not having disclosed the 1981 agreement of sale between Mrs Brown and Wahu Chemicals?
>
> 2. The extent of the duty owned by a vendor in Kenya to a purchaser in relation to the property conveyed after the agreement for sale but before completion."

The two issues are to some extent interlinked because the second would also have been a relevant consideration when Githinji J was deciding whether to grant *ex parte* injunction.

As regards question 2, Mr *Lakha* stated frankly that as it was common ground that the suit property was at the material time registered land, the operation of section 164 of the Registered Land Act (Chapter 300), rendered inapplicable the provisions of section 55(1)(*e*) of the Indian Transfer of Property Act 1882, which deals with the vendor's obligations to a purchaser between the two dates. The interpretation of the phrase "take care of the property" in paragraph (*e*) formed the legal basis for the decision of the privy council in *Mohamed H Abdulla v Ghela M Shah*, cited by both parties (though curiously, in different reports, namely 1959 AC 124 and 1958 EA 754). Nevertheless, Mr *Lakha* submitted, that decision was of great value because the preceding section of the Registered Land Act namely section 163, enjoins that the common law of England, as modified by the doctrines of equity, shall apply *inter alia*, to land

and leases registered under the Act, and because their lordships in the judicial committee held that the obligations under section 55(1)(*e*) are substantially those imposed on a vendor under English Law. If followed that as the Transfer of Property Act does not apply to this case, the obligation imposed on the vendor was the same as would apply to him under English Law.

Speaking for myself, in passing, I can only say it is a pity that we are constantly having to decide issues with reference to outside cases and statutory provisions (however meritorious those cases and provisions may be), as indeed happened in another case cited to us, namely *Lilian S* civil appeal number 50 of 1989, where the Admiralty jurisdiction of England is expressly invoked by section 4 of the Judicature Act (Chapter 8), when for the past quarter of a century the Kenya Courts, both original and appellate, have been evolving a body of case law of their own which, in effect, constitutes the common law of Kenya (see especially *Mariga v Musila* [1984] 1 KAR 507), and which commands respect not only within Kenya, but in many other countries, particularly on the African continent.

At all events, I am, for myself, content to accept Mr *Lakha*'s proposition in this respect, on question (2) (namely that the obligations on a vendor remain substantially the same in a case to which the Indian Transfer of Property Act does not apply). I am satisfied that the duties of a vendor in relation to the remainder of a lease to be conveyed are not confined to physical preservation of it, but include a duty not to cause it to deteriorate to diminish in value such as, in ordinary circumstances, a letting or a re-letting of all or part of it would do.

I stress the words "in ordinary circumstances" because, as I said, we do not know why no action was taken to enforce the agreement for sale for over eight years after the date stated for completion. As Kwach JA remarked during the course of the argument, "what was the landlord (the vendor) expected to do with the property between 1982 and 1989". It may be that the necessary presidential or other consents were not forthcoming, but if it be the case that the property would otherwise have been empty and the vendor could not see any reasonable prospect of the sale going through within a reasonably foreseeable period of time, then I do not think a Court would hold that it was necessarily unreasonable to let a tenant in. In other words the rule under the general law referred to by Jessel MR in *Egmont v Smith* [1877] 6 Ch 469, cited in *Abdullah v Shah* that it is the duty of a trustee to let farms from year to year, would in such circumstances, prevail over the vendors' ordinary obligations between the sale agreement and the actual conveyance.

I return, therefore, to Mr *Lakha*'s first submission, which relates to the non-disclosure by the applicant for the *ex parte* injunction (that is to say the respondent) of the agreement for sale of 3 July 1981.

The authority which was cited to us on this question, (which in turn cited other authorities) was the *Lilian "S"* (*Owners of the Motor Vessel Lilian "S" v Caltex Oil (Kenya) Limited*) in which the non-disclosure was, to my mind at any rate, of a very different nature from that which is alleged in the present case. In the *Lilian S* (*supra*) there had been a motion before the Resident Judge (Githinji J) to arrest the ship in pursuance of the admiralty jurisdiction of the High Court *in rem*. In order to found the jurisdiction in rem the applicants had to show to the Court that they had, *prima facie* at least, a valid action in personam against the owners of the ship. The action in question was for the recovery of some

KShs 6.110 million as the price of over 6 000 tonnes of gas oil and fuel supplied to the ship for her operation and maintenance within the meaning of section 20(1)2(*m*) of the (UK) Supreme Court Act of 1981, for which the owner would be liable by virtual of section 21(4)(*b*) of the same Act (as I said earlier, applied to Kenya by section 4(2) of the Judicature Act (Chapter 8)). As Kwach JA said in that case, without the necessary link being established between the action *in rem* and the action *in personam*, the Court would have lacked jurisdiction to arrest the ship.

But arrest it they did, and the application to do so was founded on the affidavit of Mr Johnson Robert Kariuki, an employee of Clatex at the material time, which alleged that the quantity of oil and fuel had been supplied by his company to the *Lilian S* in September of (presumably) 1988 and which failed to refer to the highly material telex messages which, had they been shown to the Court, would have almost certainly resulted in the motion for arrest being denied, for they showed that the fuel and oil in question had been supplied to a wholly different company, namely SOSCO so that the appellants could not have been liable for it *in personam*, or, consequently, in rem.

It followed in the *Lilian S* that the applicants for the warrant of the arrest of the ship had failed in their duty of candour to the Court. But it must have been plain to Caltex and particularly to their employee Mr Kariuki, that if they had revealed the true facts to the judge, the Court would never have given them the relief sought. So there is an obvious motive to deceive, by mispresenting the true facts Caltex could obtain the arrest of the ship, which would be of immense advantage to them in pursuit of their claim.

In the judgments delivered in the *Lilian S* the much earlier case of *Republic v Kensington Income Tax Commissioners, ex parte Princess Edmond De Polignac* [1917] 1 KB 486 was extensively cited. In that case also there was a motive to conceal. The princess, an American lady, was assessed for income tax on her overseas income, but the basis of the assessment was that she was resident in the United Kingdom because she had a house at 213, King's Road, Chelsea. In her affidavit in support of the application for prohibition, she stated that she had never resided there for six months or more in any one year and that the property belonged to her brother. Unfortunately for her, a disgruntled clerk who had been sacked from the office of her solicitors leaked certain information from which the respondents were able to conclude that she had not only provided the purchase money for the house, but had provided the furniture and had paid every expense thereon. The *mala fides* of the applicant in the *Kensington* case (*supra*) was all the more evident because her liability to tax turned on whether she was resident in the United Kingdom, a circumstance which she well knew, because she had sought and received the prior advice of counsel to the effect that if she was merely a guest in her brother's house she would not be held to be resident in the United Kingdom and therefore not liable for its income tax on her world income. As the judge of first instance Lord Reading LCJ, remarked:

> "Upon that advice was built up this arrangement with her brother by which he was to become the nominal purchaser and the rated occupier of the house, but she was to pay to him and did pay to him all the moneys he paid for furniture, servants and general expenses of the house. He was merely her nominee."

I am in agreement with Mr *Lakha* that it matters not upon a point of this nature being taken, whether the applicant was entitled to, or that the Court would

have granted, the relief sought in any event, that is to say leaving aside the non-disclosure, for it is the affront to the dignity and credulity of the Court that is in point. That is where, he says, Githinji J went wrong in the instant case, because, having set out the law correctly in one passage, he went on in another to consider what effect the sale agreement of 3 July 1981, would have had on the Court as to the relationships between the parties. The second passage reads:

> "The *ex parte* injunction was obtained on the basis of those facts. The facts of the previous agreement of sale between the defendant and the plaintiff and resultant consent judgment could have perhaps been material to the determination of the plaintiff's rights to injunction if either the plaintiff had laid claim of right to the ownership of the property or had the defendant been registered as owner of the property pursuant to the consent judgment. For those reasons, I overrule the objection and refuse to discharge the *ex parte* order."

I do not read those words falling from the judge in that way. It is perfectly true that in the *Kensington* case (*supra*) having been found out, the princess then, as it were, "came clean" and, in the graphic words of Scrutton LJ (at 515):

> "We [now] know the facts because, when the Income Tax Commissioners put forward the information that they had obtained from this discharged clerk, the Princess and her legal advisers then overflowed with candour to the Court, and told them a large number of things which they might very well have told them in the first instance."

Nevertheless, in deciding the all important question of whether the applicant has satisfied the test stated by Kwach JA in the *Lilian S* (*supra*) (at 19), when he set out the passage from Warrington LJ's judgment in the *Kensington* case (at 509), namely whether he or she has intentionally misled the Court, it is a relevant circumstance to consider the materiality of the non-disclosure, for in the same judgment Kwach JA (at 17–18) set out a passage from Ralph Gibson LJ in *Brinksmat Limited v Elcombe* [1988] 3 All ER 188 (at 192) which reads:

> "Whether the fact not disclosed is of sufficient materiality to justify or require immediate discharge of the order without examination of the merits depend on the importance of the fact to issues which were to be decided by the judge on the application. The answer to the question whether the non-disclosure was innocent, in the sense that the fact was not known to the applicant or that its relevance was not perceived, is an important consideration but not decisive by reason of the duty on the applicant to make all proper inquiries and to give careful consideration to the case being presented."

In the Kensington case Lord Reading had said:

> "The power [to refuse to proceed] should only be used in cases which bring conviction to the mind of the Court that it has been deceived."

What, therefore, happened in this instant case? The respondent, having received the two letters of demand 20 July and 1 August, understandably became alarmed at the increased rent she might have to pay, filed suit against the appellant company on 15 August, claiming that she was a protected tenant under the Landlord and Tenant (Shops, Hotels and Catering Establishment) Act (Chapter 301), and the relief recited at the beginning of this judgment. As is so often the case, she accompanied it with a chamber summons and a supporting affidavit which, Mr *Lakha* says, contains – if that is the right word – the material non-disclosure, on the strength, (at least partly) of which he also says that Githinji J granted the temporary injunction, in effect freezing the property.

But is that a correct understanding of the affidavit? It was filed in conjunction with the plaint and affirmed its contents, including the allegation that Mrs Brown had "purported" to transfer the property, (this was in relation to the passage in the first letter, "the property is now ours") and her contention that Mrs Brown was still the registered proprietor and, moreover, that the appellant was not the registered proprietor. Mrs Stamm – if that is her right name still – had been in possession, under the lease agreement of 15 March 1983, since 1 January of that year and was clearly intending to remain if she could. True she did not state the fact of the July 1981 agreement in so many words, but it was in my view against the background of the transfer, (the validity of which she disputed) that she filed the suit and claimed the injunction. Furthermore, after the objection of 23 December 1989, had been filed and after several further adjournments, the judge after an *inter partes* hearing, and when fully aware of the sale agreement, arrived at the same conclusion that which he had reached on the *ex parte* application.

I do not wish to be understood as in any way detracting from the rule, which, incidentally primarily applied in cases of *ex parte* injunctions and was extended to the application for the order of prohibition in the *Kensington* case (*supra*) that in *ex parte* proceedings – especially in *ex parte* proceedings as Nyarangi JA said in the *Lilian S* – there must be full and frank disclosure to the Court of all material known to the applicant, but in the instant case, after examination the sequence of events, including the fact that the decree in the other case between the appellants and Mrs Brown was not drawn up until after the *ex parte* injunction was issued in the case, I am unable to find that there was any deliberate concealment on the part of the respondent. Apart from anything else, in view of the time she had been there and, presumably, for most of that time, had been letting holiday cottages, it is plain that the judge was correct in ordering, by way of an injunction, that the matters in dispute between the parties should remain in status quo until the determination of the main suit. How else could justice be done to Mrs Stamm's contentions at the hearing, even if they are there rejected?

I may well be that there was initially an obligation on the original vendor, Mrs Brown, not to diminish the value of the property by letting it, but by the time the tenancy agreement with Mrs Stamm had been made, over eighteen months had elapsed since the sale agreement, and it might well have been though by that time the sale had fallen through.

Whether this is so or not, I do not propose to decide this issue in this instant case, for those matter are, to may mind, *res inter alios acta*, and cannot, I think, be prayed in aid as against Mrs Stamm so as to affect her tenancy with Mrs Brown, which there is no evidence to show (as was alleged in Mr Wanjui's first affidavit) was a collusive agreement between the two of them as part of a conspiracy to defeat the just rights of the appellant. Most of the letters exhibited to that affidavit and to Mr Wanjui's second affidavit of 21 December 1989, were written very much later, save for that of Mr Havelock's letter of 28 October 1981, which, *inter alia*, stated that he had had his instructions withdrawn by Mrs Brown, barely fours months after the sale agreement. I do not, therefore, take any of these as evidence of *mala fides* on the part of Mrs Stamm at the time the tenancy was created in early 1983.

In the result, I would hold that Mrs Stamm was not guilty of a material non-disclosure of the purposes of *ex parte* injunction, and I propose that this appeal should be dismissed with costs. As Kwach JA and Cockar Ag JA agree, it is so ordered.

Kwach JA: This case is not half as complex as it has been made out to be. It is an interlocutory appeal against an order of injunction made by the High Court against Tiwi Beach Hotel Limited (the appellant) restraining the appellant from, collecting rent from or levying distress therefor against, Mrs Julian Ulrike Stamm (the respondent) in respect of the premises occupied by the respondent known as Mombasa/MS/ Tiwi/Beach Block/46. The respondent's occupation goes back to 1 January 1983.

The plaint, dated 15 August 1989, contains the following material averments:

> "(3) The plaintiff is the tenant of the premises known as Mombasa/Ms/Tiwi Beach Block/46 together with all the buildings and erections thereon pursuant to an agreement drawn the year 1983 between the plaintiff as lessee and tenant, and the landlord thereof who is the registered proprietor, one Mr Gabrielle Kathleen Brown.
>
> (4) The said tenancy is still subsisting and by virtue of being a month to month tenancy of a type of business covered by the said Act is a protected tenancy under and by virtue of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 301). The said tenancy cannot be determined save in accordance with the Act.And the rent cannot be altered save in accordance with the Act.
>
> (5) In July 1989, the registered proprietor has purported to transfer the title in the said premises to the defendant as proprietor, the validity of which transfer the plaintiff expressly denies.
>
> (6) The defendant has now served demand upon the plaintiff to increase the rent to KShs 100 000 per month or vacate the suit premises.
>
> (7) The defendant is not the registered proprietor of the suit premises and is neither the landlord nor entitled to either rent of the suit premises or to increase the said rent or to demand vacant possession from the plaintiff or evict the plaintiff.
>
> (8) In the alternative, if the defendant has become and is the landlord of the suit premises, each of which is expressly denied by the plaintiff, then and only in that event the plaintiff states that the defendant has not complied with the provisions of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 301) and is not entitled to alter the rent or to demand vacant possession from the plaintiff or to evict the plaintiff from the suit premises."

And among the reliefs sought by the respondent on the strength of those averments were a declaration that the defendant is not entitled to the rent of KShs 100 000 per month from the respondent or to evict her from the suit premises and an injunction the appellant from collecting any rent from the respondent in respect of the suit premises or from distraining for any such rent or from evicting the respondent from the said premises.

A lengthy defence and counter-claim was delivered on behalf of the appellant containing the following averments, among others:

> (*a*) That the appellant had filed a suit (High Court civil appeal number 136 of 1982) against Gabriella [sic] Kathleen Brown (registered proprietor) seeking specific performance of an agreement for sale dated 3 July 1981, whereby the registered proprietor had agreed to sell to the appellant the suit premises at a consideration of KShs 2 400 000 which had been paid.
>
> (*b*) That the decree obtained by the appellant could not be executed because the respondent had lodged a caution against the suit property claiming a purchaser's interest.
>
> (*c*) That the appellant had purchased from the registered proprietor the business of managing and letting out holiday cottages on the suit property at a consideration of KShs 800 000 which had been paid.

(*d*) That the agreement between the respondent and the registered proprietor was subsequent to the agreement between the appellant and registered proprietor and therefore ineffectual and a mere sham and was being pleaded by the respondent to cover up for an agency between the registered proprietor and the respondent.

(*e*) That the registered proprietor being a bare trustee was incapable of creating a tenancy in favour of the respondent without the consent of the appellant.

(*f*) That the respondent is a trespasser in the suit premises.

(*g*) That the appellant had a better title than the respondent.

(*h*) That the averments in paragraphs 3, 4, 5, 6, 7 and 8 of the plaint were misconceived.

(*i*) That the respondent as a trespasser on the premises could suffer no loss or injury if her business was disrupted.

In the counter-claim, the appellant sought a multiplicity of reliefs including an order for possession, a declaration that the appellant's sale agreement fortified by specific performance decree was paramount to any rights claimed by the respondent and damages for trespass from 1 January 1983 to the date of delivery up of possession.

The respondent then applied for and obtained an *ex parte* order of injunction and in her supporting affidavit sworn on 15 August 1989, she deponed *inter alia*:

"(2) I have read the plaint herein, repeat the contents thereof here and verify the same.

(3) In and during the year 1983 the registered proprietor of the suit premises, Mrs Gabrielle Kathleen Brown, entered into a lease agreement with me by which she let to me and I took the tenancy upon the agreed rent of the said premises including all the erections thereon.

(4) I have since then and up to date carried on the said business and the said tenancy are still subsisting and on going [copy of the agreement annexed].

(6) I have confirmed by inquiring at the relevant Land Registry that the said Mrs Gabrielle Kathleen Brown is still the registered proprietor, and that the defendant is not the registered proprietor of the suit premises.

(11) The defendant through a connected company has written to me indicating the old lease is over, demanding rent, and raising the same to the figure of
KShs 100 000 per month. I annex hereto three photocopies of the said letters dated 20 July 1989 and 1 August 1989, and my reply. No other demand has been served on me."

On the basis of the averments contained in that affidavit, the respondent obtained an *ex parte* temporary injunction on 15 August 1989 pending a hearing *inter partes*.

The affidavit in reply was sworn by Joseph Barrage Wanjui, who is a director of the appellant company. It is dated 20 October 1989 and contains some 25 paragraphs. I will only refer to the material parts. He deponed *inter alia* that:

(4) By an agreement in writing dated 3 July 1981 and made between Gabrielle Kathleen Brown (the registered proprietor . . . and the defendant under its former name of Wahu Chemicals Limited . . . It was agreed that the registered proprietor would sell and the defendant would buy for the sum of KShs 2 400 000 leasehold property comprised in title Mombasa/Ms/Tiwi Beach Block/46.

(5) By a contemporaneous agreement in writing of the same date between the same parties, the registered proprietor agreed to sell and the defendant agreed to buy the business of managing and letting out holiday cottages on the aforesaid property together with the fixtures, stock-in-trade and effect relating thereto for the sum certain of KShs 800 000.

(6) *The defendant paid to the registered proprietor the purchase price payable to her under both* agreements, *and the property in all the contents of the cottages duly passed to the defendant*.

(7) It was a condition of sale of the leasehold property aforesaid that completion should take place and possession be given to the defendant on 31 August 1981.

(8) *In High* Court *civil case number 136 of 1982, at Nairobi, a decree was passed on 12 April 1989, wherein the defendant herein was the plaintiff, and the registered proprietor, the defendant therein, by consent, ordering specific performance of the sale agreements, with vacant possession, against the registered proprietor in favour of the defendant and a transfer of the property to be executed within 14 days.*

(9) The transfer has been executed, but the registration thereof has been prevented by a caution lodged by the plaintiff against the property claiming to be a purchaser from the registered proprietor of the same, by an agreement subsequent to that in favour of the defendant as aforesaid.

(10) *The said purported letting agreement in paragraph 3 of the plaint came to the knowledge of the defendant after the filing of the earlier action and not until 1987*." (Emphasis mine.)

Mr Wanjui's affidavit contains other averments including one that he had been advised that having concluded those two agreements with the appellant the registered proprietor had no power to let the property or create a protected tenancy without the consent of the appellant.

Although the memorandum of appeal contains some 17 grounds of appeal, the gist of the appellant's complaint is that the learned Judge erred in disallowing the preliminary objection raised by Mr *Lakha* that the *ex parte* injunction be discharged on the ground that the respondent had failed to disclose a material fact, namely the existence of the two agreements entered into between the respondent and the registered proprietor. The other substantial ground of complaint was that the learned Judge overlooked the incapacitating effect of section 55(1)(*e*) of the Transfer of Property Act (Group 8, Laws of Kenya) on the vendor passing and the respondent acquiring without the appellant's consent any rights of tenancy to the suit property created after the agreement for sale. The third ground of complaint is that, on the merit, the learned Judge exercised his discretion wrongly in allowing the respondent's application for a temporary injunction.

With regard to the allegation that the respondent deliberately concealed, or failed to disclose a material fact, I am unable to accede to Mr *Lakha*'s submission on the this point for two reasons. Firstly, the respondent made averments both in the plaint and her supporting affidavit which she was obliged to make in support of her cause of action and I really do not think she could have been expected to do any more. She placed specifically that the appellant was not the registered proprietor, a discovery she came upon by inspecting the title. Secondly, even assuming for the purposes of argument only, that the existence of the agreements was a material fact, a matter over which I entertain a considerable degree of doubt, it has not been shown on the evidence that the respondent gained some advantage over the appellant by failing to disclose their existence. So, on this part of the case I am in no doubt at all that the learned Judge's conclusion was right and would dismiss this ground of appeal.

So far as the submissions made by Mr *Lakha* on the effect of section 55(1)(*e*) of the Transfer of Properties Act are concerned, I have had the advantage of reading the judgment of my brother Hancox CJ, in draft, and I agree with his conclusions completely.

That brings me to the third and last ground of appeal namely that on the merits the learned Judge should not have allowed the injunction to go.

The respondent's case as pleaded was quite straight forward. She said she was a protected tenant under a controlled tenancy and that her tenancy could not be terminated or terms thereof altered otherwise than in a accordance with the provisions of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 301) and more specifically section 4 of the Act, the material parts of which state:

> "4 (1) Notwithstanding the provisions of any other written law or anything contained in the terms and conditions of a controlled tenancy, no such tenancy shall terminate or be terminated, and no term or condition in, or right or service enjoyed by the tenant of, any such tenancy shall be altered, otherwise than in accordance with the following provisions of this Act.
>
> (2) A landlord who wishes to terminate a controlled tenancy, or to alter, to the detriment of the tenant, any term or condition in, or right or service enjoyed by the tenant under, such a tenancy, *shall give notice in that behalf to the tenant in the prescribed form*.
>
> (4) No tenancy notice shall take effect until such date, not being less than two months after the receipt thereof by the receiving party, as shall be specified therein." (Emphasis mine)

This Act was passed specifically for the protection of tenants of business premises from eviction or exploitation by landlords.

On 20 July 1989, a company called Bawan Limited of which Mr Wanjui and his wife are the directors, sent a handwritten letter to the respondent in the following terms:

> "Dear Sir,
>
> *Mombasa/Ms/Tiwi Beach/Block 46*
>
> This is to advise you that the above property is now ours with immediate effect.
>
> The rent for the premises if you wish to lease them is KShs 100 000 per month from today until we negotiate a suitable lease.
>
> Yours faithfully,
>
> (Signed)"

The letter was signed by someone whose name was not given. Copies were sent to the appellant's advocates. It was not indicated whether it was written on behalf of Bawan Limited or the appellant. Mr *Lakha* told us that it was written on behalf of the appellant. My understanding of that letter is that the writer was informing the respondent that they had just acquired the premises. It is also apparent that the writer knew that the respondent was in occupation as a tenant and all that he was doing was to demand rent at a given rate. There is no suggestion in that letter that if the respondent did not pay rent at the new rate, she would be required to vacate the premises and given vacant possession. This letter was followed by a second letter, again on the letter-head of Bawan Limited, dated 1 August 1989, but signed this time by JB Wanjui which was in the following terms:

> "Mr and Mrs Ralph Stevens,
>
> Mawemi Cottages,
>
> Tiwi Beach,
>
> PO Box 96024,
>
> Mombasa
>
> Dear Sir,

Re: Tiwi Beach Hotel

Your rent for July 1989 as indicated in our letters dated 20 July 1989 is long overdue. As rent is paid monthly in advance your rent for August 1989 is also now due. Please let us have your cheque for:

July	KShs 33 330-00
August	KShs 100 000-00
Total	KShs 133 330-00

Kind regards

Yours sincerely,

JW Wanjui"

A copy of that letter was sent to the appellant's advocate. Although Mr *Lakha* stressed that both these letters constituted an offer for a lease, in my judgment it is plain beyond argument that they were a demand by a landlord for rent from a tenant in possession. The tenant claimed, quite properly in my view, statutory protection under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act and the appellant, as landlord of the premises was therefore obliged to comply with the statutory procedure under the Act if it was its intention either to terminate the tenancy or alter its terms to the detriment of the respondent. If the appellant though that those letters were notices, I must disabuse it of that notion by stating at once that they were not in the prescribed form and consequently had no effect on the respondent's tenancy. For this reason alone the respondent was entitled to an order restraining the appellant and the judge was therefore perfectly justified in making the order.

The appellant has consistently maintained that it has had a proprietary interest in the suit since July 1981, but I have found it difficult to square this with the fact the appellant did not seek to assert its right against the respondent until July 1989, and has also demanded a refund of the purchase price which was paid to its advocates on 18 July 1989.

I would dismiss this appeal with costs.

Cockar AJA: I have had the advantage of perusing the draft judgment of Hancox CJ with which I fully agree. This is an appeal from a ruling given by the superior Court after an *inter partes* hearing confirming an *ex parte* injunction it had granted on a chamber summons application taken out by the respondent (who is the plaintiff in the suit). The injunction order has restrained the appellant (who is the defendant in the suit) from collecting or distraining for any rent or increasing the same in respect of the suit premises or evicting the respondent therefrom pending hearing of the main suit.

It is common ground that under a written agreement dated 3 July 1981 (hereinafter called the "sale agreement") one Mrs GK Brown, the registered proprietor of the suit premises, agreed to sell and the appellant, under its former name of Wahu Chemicals Limited, agreed to purchase the suit premises together with the holiday cottages for the sum of KShs 2 400 000. By a contemporaneous agreement in writing the same date between the same parties the appellant also agreed to buy from the said Mrs Brown the business of managing and letting out holiday cottages on the suit premises from a sum of KShs 800 000. The sale agreement has provided, *inter alia*, the completion dated as 31 August 1981, and that the suit premises were sold with vacant possession – the latter condition is material to this appeal. Also clause 9 of the sale agreement has provided for automatic cancellation if certain consent are not obtained

with a specific period. For some reason, not disclosed in these proceedings, the sale agreement was not completed by the prescribed date. In 1982 the appellant filed a suit High Court civil case 136 of 1982 for specific performance and/or other reliefs against Mrs Brown. Seven years later, on 11 April 1989, under a consent judgment order for specific performance of the sale agreement and vacant possession were granted. A transfer was duly executed but it could not be registered because the respondent had already registered a caution against the title at the Lands Department. In consequence the balance of purchase price paid by the appellant to Mrs Brown's advocates was refunded; but there is no doubt that it will be available for payment once the impediment imposed by the caveat, registered by the respondent, is removed.

In the meantime, under a lease agreement dated 15 March 1983, which was made after the suit had been filed by the appellant against Mrs Brown, the suit premises were let for one year and thereafter terminable by three months' notice, at a rent of KShs 4 000 per month. The respondent made no secret of the fact that at the time she rented the premises she was aware of the existence of the sale agreement between the registered proprietor and the appellant. The respondent was still in possession, under the said lease agreement, of the said buildings which mainly comprised of holiday cottages on the suit premises.

After the consent judgment in High Court civil case 136 of 1982 was entered the appellant through Bawan Limited, a connected company, sent a letter dated 20 July 1989, to the respondent advising that the appellant was now the proprietor of the suit premises and that the rent of the premises, if the respondent wished to lease the same, was KShs 100 000 per month from that day until they negotiated a suitable lease. The respondent replied on 24 July 1989, that the respondent's letter had been forwarded to its advocate who would contact the appellant in due course. On 1 August 1989, the appellant wrote to the respondent reminding the respondent that rent for July 1989 as indicated in its letter of 20 July 1989, was long overdue and as the rent was paid monthly in advance a request for payment of KShs 133 330 was made – rent for July being KShs 33 330. On 15 August 1989, the respondent filed a suit against the appellant in the superior Court pleading:

1. Her tenancy from Mrs Brown who was referred to as the registered proprietor.
2. Denial of validity of the purported transfer of title in the suit premises by the registered proprietor to the appellant.
3. Protection in respect of altering the rent, demand for vacant possession and against eviction under the Landlord and Tenant (Shops, et cetera) Act (Chapter 301) against both the registered proprietor and the appellant;
4. Irreparable loss unless the defendant (appellant) was restrained.

Prayers for judgment contained a declaration in respect of rent, eviction and injunction to restrain the appellant from increasing collection or distraining for rent or from evicting. Together with the plaint was filed the chamber summons *ex parte* application dated 15 August 1989, seeking orders to restrain the appellant from doing any of the aforesaid acts. The superior Court granted an interim injunction which was subsequently confirmed after an *inter partes* hearing.

The memorandum of appeal from the decision of the superior Court in the *inter partes* hearing contains 17 grounds. The grounds of appeal and the submissions made by Mr *Lakha* for the appellant more or less fall into two main divisions. The first one is related to the preliminary point taken up in the

superior Court and the second one is based on merits. The basis for the preliminary point, as I understood Mr *Lakha*, was non-disclosure of the existence of the sale agreement dated 3 July 1981, in the supporting affidavit annexed to the application. Mr *Lakha* submitted that the trial Judge had correctly stated the law in respect of a non-disclosure of a material fact in the supporting affidavit as propounded in *Republic v Kensington Income Tax Commissioner, ex parte Princess Edmuind De Poligna* [1917] 1 KB 486 and recently followed in Kenya in Court of Appeal Mombasa civil appeal number 50 of 1989, *Lilian S v Caltex Oil (Kenya) Limited,* (*the Lilian 'S'*). But, added Mr *Lakha*, the judge had fallen into error in holding that non-disclosure of the sale agreement would have been material to the issue of ownership of the suit premises if the respondent had made that claim against the appellant, and not to the claim of tenancy that had been put forward by the respondent.

Mr *Lakha* elaborated at length on the question of restrictions and obligations placed on Mrs Brown, the registered proprietor, as a vendor after the execution of the sale agreement up to the time of the delivery of the property to the appellant as a purchaser particularly in relation to clause 8 of the sale agreement. Section 55(1)(e) of the Transfer of Property Act (group 8, Laws of Kenya) formed the basis of these grounds.

However, it transpired that neither of the two advocates for the appellant had been aware at the time the application was argued before the superior Court and further when the memorandum of appeal was filed, that the Registered Land Act (Chapter 300) applied to the suit premises. Mr *Lakha* conceded that on account of the provisions of section 164 of the Act the suit premises were no longer subject to the Transfer of Property Act. However, he drew attention to section 163 of the Registered Land Act which, he said, provided for the application of the common law of England as modified by the doctrines of equity to lands held under the said Act. He sought support from the House of Lords decision in an appeal from the Court of Appeal for Eastern Africa in *Mohamed Haji Abdulla v Ghela Shah* [1959] AC 124, a case which depended on the duty owed by a vendor to a purchaser after contract but before completion. I accept Mr *Lakha*'s proposition that after the sale agreement had been executed Mrs Brown's registered ownership of suit premises became subject to restrictions and obligations found in common law of England as modified by other doctrines of equity to such an extent as to have rendered her a mere trustee in respect of the suit premises.

It would be appropriate at this stage to consider what facts have been disclosed by the respondent in her initial supporting affidavit sworn on 15 August 1989. The affidavit has also adopted what is pleaded in the plaint. The respondent has deponed therein and in the plaint to the following facts:

> "1. Her tenancy of suit premises from 1 January 1983, which still subsists as a month to month tenancy.
>
> 2. Her denial of the validity of the purported transfer by the registered proprietor in favour of the appellant in July 1989.
>
> 3. The appellant's demand for a rent of KShs 100 00 per month which was against the provisions of the Landlord and Tenant (Shops, et cetera) Act (Chapter 301) under which she was a protected tenant.
>
> 4. Caution lodged by her against the title of suit premises claiming an interest under a sale agreement, as purchaser at the agreed price of DM 350 000 already paid to the registered proprietor.
>
> 5. An offer of lease by the appellant by its letter of 20 July 1989."

Admittedly, the respondent has not mentioned the existence of the sale agreement made on 3 July 1981, between the registered proprietor and the appellant or clause 8 thereof. But, to start with in view of the unchallenged occupation of the suit premises by the respondent for over six years after the commencement of litigation between the appellant (as purchaser) and Mrs Brown (as the vendor) it is perplexing to note that the appellant has not disclosed the reason why the sale agreement could not be performed within the prescribed period and what the defence of Mrs Brown was. The sale agreement had not been performed. After the filing of the suit for specific performance Mrs Brown, as the registered proprietor (and the defendant in the High Court suit) had let out the cottages on the suit premises on rent to the respondent. To my mind in order to be able to gauge judiciously the degree of importance or materiality of the sale agreement, together with clause 8 thereof, the same needed to be viewed against the causes which had led to the non-performance of the sale agreement within the prescribed period. It would appear that it is the appellant who is trying to hide some very relevant information in order to obtain an undue advantage from the mere fact that the sale agreement had not been disclosed by the respondent in her first affidavit.

It is not disputed that the respondent's occupation of the suit premises from 1 January 1983, has been undisturbed and unchallenged up to 20 July 1989. The court certainly would have wanted to know reasons for such lack of interest on the part of the appellant, as the purchaser, in the occupation of the suit premises by a third party for such a long period in order to be able to truly evaluate the importance or materiality of the non-disclosure of the sale agreement by the respondent in her affidavit.

In any case in the peculiar circumstances, as they existed at the time when application was made by the respondent, in my view the "non-disclosure" has not caused any undue advantage to the respondent nor detriment to the appellant, unless the appellant had in mind an act resulting in a breach of peace such as forcible physical eviction or for levy of distress for unpaid rent the figure of which had not been agreed. Enough facts had been disclosed to bring it to the notice of the judge that the appellant was claiming to be the owner through a transfer. To my mind there was no ill motive nor a deliberate attempt to mislead the Court by the non-disclosure complained of. This ground of appeal must fail.

The basis of Mr *Lakha*'s submissions on merits was that after the execution of the sale agreement the rights and control of Mrs Brown, the registered proprietor, over the suit promises were reduced to that of a mere trustee holding the suit premises in trust for the purchaser until the completion of the sale. As such she could not let the suit premises to the respondent on rent as she could not give the respondent what she did not have. The appellant had a valid sale agreement, and a decree for specific performance of the said agreement with an order for vacant possession. The respondent had acquired nothing in law from Mrs Brown. How could the respondent resist the appellant's decree for specific performance and vacant possession? As far as the appellant was concerned the respondent was never its tenant. The respondent had no legal basis to be on the suit premises.

In my view the severe restrictions and obligations imposed by the sale agreement and of the subsequent decree for its specific performance and an

order for vacant possession – both involving Mrs Brown, as the vendor, and the appellant, as the purchaser, only cannot be considered separately from the presence of the respondent on the suit premises and the circumstances which had led to her presence. The premises had not been let on rent to the respondent by the registered proprietor. For six years, she has been conducting a business of letting out the cottages on the suit premises without any molestation from any quarters. There is no evidence that her occupation had at any time been challenged or disturbed by the appellant during this long period. No attempt appears to have been made even to make her a party as an unlawful occupier in the High Court suit that had been filed by the appellant against Mrs Brown for specific performance of the sale agreement and vacant possession. To what extent, if at all, is the order for vacant possession effective against an occupier who was not a party to the High Court suit – particularly when that occupier has been in an unchallenged and unmolested occupation for six years and claims to be a tenant protected under the Landlord and Tenant (Shops, etc Act (Chapter 301). These are weighty matters which need to be gone into fully at a trial together with evidence relating to clause 9 of the sale agreement which had provided for it to become automatically null and void on failure to obtain certain consents within a period of three months and the effect thereof on the legality or otherwise of the subsequent letting to the respondent. In my view the learned trial Judge was quite right to grant an injunction in order to main a status quo until final disposal of the main suit. I concur with the order for dismissal of this appeal with costs as proposed by the Chief Justice.

For the appellant:
AA Lakha

For the respondent:
P Nowrojee

Uganda Electricity Board v Musoke
[1990–1994] 1 EA 581 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	7 September 1994
Case Number:	30/93
Before:	Manyindo DCJ, Odoki and Oder JJSC
Sourced by:	LawAfrica

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[1] General damages – Loss of expectation of life – Proof of pecuniary loss necessary – Factors to consider in computing damages.

[2] Judicial notice of custom – Factors to consider before a fact is deemed to be common.

[3] Law Reform Act – Meaning of "dependants" under the act – Purpose of the Act.

Editor's Summary

The respondent's son was electrocuted when he stepped on the appellant's live wire cables left lying on the ground. The respondent then filed an action for negligence on behalf of himself and his family

and got interlocutory judgment and damages for UShs12 million.

The company appealed, arguing that the judge was wrong to award general damages to persons who were not the deceased's dependants and that the award and the assessment of damages for loss of expectation of life and loss of services were wrong in law.

Held – The purpose of the Law Reform (Miscellaneous Provisions) Act was to provide a new cause of action which would enable dependants of the deceased to claim compensation for the loss suffered as a result of his death.

Even though section 8 of the Act does not use the word "dependants" but "members of the family", the intention was to provide for members of the family who were dependants of the deceased and therefore who had suffered pecuniary loss as a result of his death.

General damages should not have been awarded to the deceased's brothers and sisters since they had not suffered any pecuniary or dependency loss. Damages for loss of services or for loss of expectation of life should have been specifically claimed in the plaint.

It cannot be said that any service carried out by a child for the benefit of his family has a pecuniary value capable of being compensated as pecuniary loss. Hence, the respondent has failed to establish that he lost any service of a pecuniary value (*Wilson Kabega v Uganda Transport Company Ltd* civil suit number 434 of 1970 (UR) followed).

There has to be evidence to establish the existence or otherwise of a certain custom and it was wrong to presume the existence of any custom. (*Ernest Kinyanjiri Kimani v Muiru Gikenya and another* [1965] EA 735 and *Wilson Kabega v Uganda Transport Company Ltd* Civil suit No. 434 of 1970 (UR) followed).

Section 55 of the Evidence Act was silent on the power of the Court to take judicial notice of notorious facts. However the Court should have power to take judicial notice of notorious facts. In the present case, it was not established that the practice where children provide financial support to their parents was notorious, prevalent or common to all children. It may be common in some communities and less common in others. It may be well established at the material time than it was in the past. In these circumstances, the judge was not justified in taking judicial notice of that custom or practice.

The respondent should have established by evidence that there was a reasonable prospect of pecuniary benefit, not merely a fanciful probability. (*Barnett v Cohen* [1921] 2 KB 461 followed.

The respondent failed to adduce such evidence as would have afforded the judge a reasonable basis on which to infer that pecuniary loss had been inflicted on him and members of his family and the judge was therefore not justified in awarding them damages for loss of services.

Damages for loss of expectation of life are made on the basis of loss of prospective happiness by the deceased and must always be moderate. *Benham v Gambling* [1941] 1 All ER 7 followed.

The judge took into account wrong factors and applied wrong principles thereby arriving at a wholly erroneous estimate of the damages. (*Channan Singh and another v Channan Singh and another* (1955) 22 EACA 125 and *Kimothia v Bhamra Tyre Retreaders and another* [1971] EA 81 applied.

Appeal allowed

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Channan Singh and another v Channan Singh and another (1955) 22 EACA 125 – **F**

Ernest Kinyanjiri Kimani v Muiru Gikenya and another [1965] EA 735 – **F**

Kassam v Kampala Aerated Water Company Limited [1961] EA 291

Kimothia v Bhamra Tyre Retreaders and another [1971] EA 81 – **AP**

Nasari Kasunsula v Rai Rai Singh and another civil case number 274 of 1960

Suleimani Muwanga v Walji Bhemji Jiwani and another [1964] EA 177

Wilson Kabega v Uganda Transport Company Limited civil suit number 434 of 1970 (UR) – **F**

United Kingdom

Admirality Commissioners v SS America [1917] AC 38

Baker v Bolton [1808] 1 Camp 493

Barnett v Cohen [1921] 2 KB 461 – **F**

Benham v Gambling [1941] All ER 7 – **F**

Sabani Kibenga v Crispus Juko civil suit number 35 of 1966 reported in [1972] HCB 65

Judgment

Odoki JSC: This is an appeal against the decision of the High Court whereby it awarded to the respondent general damages under the Law Reform (Miscellaneous Provisions) Act.

The brief facts of the case were that on 30 August 1988, the respondent's son called Bosco Mwanje, aged fourteen years, was electrocuted when he stepped on the appellant's live electric cables left lying on the ground in Lugazi Township. The respondent filed an action in negligence on behalf of himself and his family claiming special and general damages for loss suffered as a result of the death of his son. The action was brought under the Law Reform (Miscellaneous Provisions) Act. As the appellant failed to enter an appearance or file a defence, an interlocutory judgment was entered and the case proceeded to formal proof for assessment of damages.

The learned Judge awarded the respondent a total of UShs12 690 000 out of which UShs190 000 was special damages for funeral expenses, UShs5.5 million general damages for loss of expectation of life and UShs7.0 million for loss of services to the family.

The learned Judge apportioned the damages amongst the members of the family as follows:

"GW Musoke (father, thirty six years)	UShs6 million
Rose M Nakyanzi (Mother, thirty years)	UShs4 million
G Senabulya (brother, eighteen years)	UShs345 000

Z Kavuma (brother, sixteen years)	UShs345 000
Namuju (sister, ten years)	USHS400 000
J Nalubowa (sister, eighty years)	UShs400 000
S Baseke (brother, seven years)	UShs600 000
E Kalyango (brother, seven years)	UShs600 000".

It is against that decision that the appellant has appealed to this Court on two grounds namely:

"1. The learned Judge erred in awarding general damages to persons who were not dependants on the deceased.

2. The award and assessment of damages for loss of expectation of life and loss of services were wrong in law".

On the first ground, Mr *Kanyemibwa*, learned counsel for the appellant, criticised the learned Judge for holding that the deceased's brother and sisters were dependants when he said in his judgment:

> "In Annexture A attached to the plaint are the names of the parents, brothers and sisters. Since the brothers and sisters are still living with their parents, they qualify as Dependents".

Counsel for the appellant submitted that the children were not dependants of the deceased but of his father, and as it had not been proved that they were depending on the deceased, the awards to them were injustified.

It was his contention that if any damages were to be awarded, they would be given to the parents. He relied on the case of *Kassam v Kampala Aerated Water Company Limited* [1961] EA 291.

Mr *Serwanga*, learned counsel for the respondent, did not agree with the contention of Mr *Kanyemibwa*. He submitted that this action was brought under section 7 of the Law Reform (Miscellaneous Provision) Act (Chapter 74), which provides:

> "If the death of any person is caused by any wrongful act neglect or default of any person, is such as would if death had not ensued have entitled the person injured thereby to maintain an action and recover damages in respect thereof, the person who would have been liable if death had not ensued shall be liable to an action for damages, notwithstanding the death of the person injured and although the death was caused under circumstances as amount in law to a felon".

Counsel further submitted that section 8 of the Act allows members of the family of deceased to sue and recover damages whether they are dependants or not. Section 8 of the Act provides:

"(1) Every action brought under the provisions of section 7 of this Act shall be for the benefit of the members of the family of the person whose death has been so caused, and shall be brought either by and in the name of the executor or administrator of the person deceased or by and in the name or names of any of the members (if more than one) of the family of the deceased.

(2) In every such action the Court may give such damages as it may think proportioned to the injury resulting from such death to the parties respectively for whom and for whose benefit such action is brought, and the amount so recovered, after deducting the costs not recovered from the defendant, shall be divided amongst the aforesaid parties in such shares as the Court shall find and direct."

Counsel contended that according to section 2 of the Act, the definition of "members of the family" was the same as contained under the first schedule to the Workman's Compensation Act (Chapter 107), and that it included not only father and mother but also brothers and sisters, among others.

It is necessary to give a brief historical background to the Law Reform (Miscellaneous Provisions) Act, in order to understand the intention and purpose of the Act. According to the common-law death could not give rise to a cause of action on other persons even if they were defendants on the deceased. This rule was derived from the ruling of Lord Ellenborough in *Baker v Bolton* [1808] 1 Camp 493, that in a civil court, death of a human being could not be complained of as an injury.

In *Baker v Bolton* (*supra*) the plaintiff and his wife were passengers on top of the defendant's stage-coach which overturned through the negligence of the defendants causing bruises to the plaintiff and death to his wife, a month later. The plaintiff recovered £100 for his own bruises and for the loss of his wife's society up to the moment of her death but nothing for such loss after that event. This decision was later approved by the House of Lords in *Admirality Commissioners v SS America* [1917] AC 38.

The development of railways in England led to an increase in the number of accidents which were both fatal and non-fatal. This made a change in the law imperative because while those who survived in an accident could recover substantial damages, the dependants of those who were killed could recover nothing.

Therefore in 1846, the Fatal Accidents Act (popularly known as Lord Campbell's Act) was passed which virtually overturned the harsh common law insofaras those dependants who were specified in the Act were concerned.

The Fatal Accidents Act gave a new right of action for the benefit of the members of the family of the deceased which had to be brought by and in the name of the executor or administrator of the deceased or by and in the names of all or any of the members of the family. This cause of action was entirely different and separate from the cause of action which survived for the benefit of the deceased's estate and these two causes of action were usually joined in the same action.

The provisions of the Fatal Accidents Act were incorporated in the Law of Uganda in 1953 by the Law Reform (Miscellaneous Provisions) Act. In *Sabani Kibenga v Crispus Juko* civil suit number 35 of 1966 reported in [1972] HCB 65 the High Court held that the common law principles still hold good in Uganda whilst the Act provides exceptions to the common law.

It seems to me that the purpose of the Act was to provide a new cause of action which would enable dependant of the deceased to claim compensation for the loss suffered as a result of his death. It is true that section 8 of the Act does not use the word ‘‘dependants", but "Members of the Family". In my view, however, the intention was to provide for members of the family who were dependants of the deceased and therefore who had suffered pecuniary loss as a result of his death. In each case the question to ask is what pecuniary loss the member of the family has suffered. He would claim to have suffered pecuniary loss if he had lost dependency on the deceased. Damages were not generally awarded as solatium for the bereavement of the family.

In the present case general damages should not have been awarded to the deceased's brothers and sisters because they were not his dependants. The learned Judge misdirected himself when held that the brother and sisters qualified as dependants because they were still living with the deceased's father, the respondent. It was not shown what pecuniary loss or dependancy they had lost. Therefore, the award of damages to them was erroneous in law. The first ground of appeal must succeed.

On the second ground of appeal, learned counsel for the appellant submitted that the learned Judge was not justified in awarding damages for loss of service when they were neither pleaded nor proved. He contended that there was no evidence to support the learned Judge's finding that the service rendered by the deceased to his father were of pecuniary value.

Counsel criticised the learned Judge for taking judicial notice of the fact that parents in African societies expect their children to look after them in old age. He argued that under section 55 of the Evidence Act there was no provision authorising the Court to take judicial notice of a custom which had to be proved, as was held in *Ernest Kinyanjiri Kimani v Muiru Gikanya and another* [1965] EA 735.

As regards the award of damages for loss of expectation of life, learned counsel for the appellant submitted that such damages were awarded for loss of prospective happiness of the person who has lost his life and go to either his parents of his estate. He relied on the decision in *Beham v Gambling* [1941] 1 All ER 7.

Counsel submitted that damages for loss of expectation of life had to be moderate and therefore the sum of UShs5.5 million awarded by the learned Judge was excessive. He suggested that the respondent should have been awarded UShs300 000.

It is clear that the respondent did not specifically claim damages for loss of services or for loss of expectation of life. I think that these damages should have been specifically claimed in the plaint.

In assessing damages for loss of services and loss of expectation of life, the learned Judge said:

> "The deceased at the time of his death was aged fourteen years. As the learned counsel rightly pointed out, his age and loss of services which he rendered to his parents as is customary in African Society, complied with their expectations – that the would sustain them in their declining years should be considered by the Court. I accept this submission. Judicial notice could be taken of the fact that Ugandan children like other African ones who are educated at considerable sacrifice by their parents are expected to make some return vide *Nasari Kasunsula v Rai Rai Singh and another* civil case number 274 of 1960. *Digest of Civil Cases in the High Court of Uganda* [1907-1967]. What the Court has to decide is whether there was evidence which justifies the conclusion that the services of the deceased were of pecuniary value. The evidence of PW1 was that on the day in question he had sent him to buy bread, an indication of one of the services which a Ugandan child undertakes, and which I consider amounting to pecuniary value. Further on in his evidence he said that he would have expected him when he became a man to help him and the family. The deceased Bosco was in primary 4 and did very well at school. However, in considering the amount of damages one has to take into account consequences and uncertainties of the deceased life and for the plaintiff expectation of life."

It will be seen from the above quotation that the learned Judge awarded the respondent damages for loss of services for two reasons. The first is that the deceased was rendering service which were of pecuniary value, and the second is that the deceased was expected in future to give financial support to his parents when they grew old.

As regards the first reason, the only evidence to support it was that the deceased had been sent to buy bread.

There was no evidence that the deceased rendered other services whether customary or social. It cannot be seen how sending a child to buy bread can be a service of pecuniary benefit unless there was evidence that had he not done so a servant or someone else would have been paid to undertake the service. It cannot be said that any service carried out by a child for the benefit of his family has a pecuniary value capable of being compensated as pecuniary loss.

In *Wilson Kabega v Uganda Transport Company Limited* civil suit number 434 of 1970 (UR) the plaintiff brought an action on his own behalf and on behalf of the deceased's mother, stepmother and two brothers and seven sisters, to recover damages for the death of his son aged thirteen years who was killed in a traffic accident. He claimed damages for loss of prospective financial benefits and services as a result of the deceased's untimely death. The evidence relating to loss of services was that the deceased used to prepare tea for his young brothers; he fetched water, made blocks and swept the house and courtyard. During holidays along with his brothers, he would pick coffee and cultivate potatoes. He also used to teach his brothers at home. The plaintiff admitted in his evidence that all the work done by the deceased was now done by his other children and there had been no need to employ a servant.

In disallowing the claim for loss of services, Phadke J said:

> "The small household work which the deceased did in company with his brothers and sisters was such as all children in all families willingly and helpfully do as a discipline of family life in its numerous activities. I consider that to take a materialistic view of such work and place a monetary value upon it as a domestics service akin to that of an employee would be to forsake a proper sense of proportion in judging of the normal pattern of daily life in a family which pivots around the voluntary and combined efforts of all family members. The evidence is that there has been no direct pecuniary loss."

I respectfully agree with those observations. I find that in the present case, the respondent failed to establish that he lost any service of a pecuniary value.

As to loss of prospective financial assistance the respondent stated that he expected the deceased when he became a man to look after him in old age. The learned Judge then took judicial notice of the fact that African children who were educated at considerable sacrifice were expected to make a contribution to their families when they completed school.

In doing so he relied on the case of *Nasari Kasansula v Rai Singh Jiwani and another (supra) and Suleimani Muwanga v Walji Bhemji Jiwani and another* [1964] EA 177.

In *Muwanga v Jiwani* the deceased, a girl aged thirteen years old, was killed through the negligence of the respondent. The paternal uncle brought an action as a personal representative claiming damages for loss of services and expectation of life. The High Court awarded the plaintiff UShs5 000 for loss off expectation of life, UShs5 400 to the deceased's mother for loss of service, and UShs2 700 to the grand parents for loss of services.

In assessing damages Udo Udoma CJ said at 177:

> "I think it is right also that the Court should take judicial notice of the fact that African children are usually educated by their parents and guardians at considerable expense involving more often than not great personal sacrifice. Such children are naturally in turn expected to assist in domestic work while at school, and after school on gaining employment, to make contribution towards the maintenance of the family, the term family being used here, not in the European sense, but in the African sense, which anthropologists usually refer to as the kindred or extended family."

Mr *Kanyemibwa* submitted that the learned Judge was wrong in following the above observations of Udo Udoma CJ because they did not fall within the provisions of section 55 of the Evidence Act. He relied on the decisions of the High Court in *Kabega v Uganda Transport Company Limited* (*supra*) where Phadke J declined to follow the observations of Udo Udoma CJ and said:

> "It was submitted that I should accept these observations and follow them, but with the greatest respect to the learned Chief Justice I feel unable to do so. The subject matter of these observations does not fall under the provisions in section 55(1) of the Evidence Act (Chapter 43). The learned Chief Justice did not state his reasons and did not refer to any well established practice in Uganda or to any precedent or to appropriate books or documents of reference. If the learned Chief Justice intended to take judicial notice of what he considered to be a custom or customary law in Uganda, he did so without there being any evidence in proof of it: In *Ernest Kinyanjiri Kimani v Muiru Gikenya and another* [1965] EA 735, it was held by the Court of Appea1 that where African custom or customary law is neither notorious nor documented it must be established for the Court's guidance by the party intending to reply upon it I am mindful that apart from statutory provisions and well established practice and precedent judges have a wide discreation to take judicial notice does not fall in such a category."

I agree with the above observations. There was no proof that there existed a custom that children who were educated by their parents were required to support their parents and families on completion of school. There has to be evidence to establish the existence or otherwise of a certain custom and it was wrong to presume the existence of any custom. Section 55 of the Evidence Act was silent on power of the Court to take judicial notice of notorious facts. In my view, however, the Court should have power to take judicial notice of notorious facts. The problem is how to establish that a particular fact is notorious or common knowledge as not to require specific proof. In the present case it was not established that the practice where children provide financial support to their parents was notorious, prevalent, or common, to all children. It may be common in some communities and less common in others. It may well be less common at the material time than it was in the past. In these circumstances, I do not find that the learned Judge was justified in taking judicial notice of that so called custom or practice.

What was needed was to establish by evidence that there was a reasonable prospect of pecuniary benefit, not merely a fanciful probability as was held in *Barnett v Cohen* [1921] 2 KB 461. In that case a father claimed damages for the loss suffered by him as a result of the death of his son aged four years. The father intended to give the child whom he considered an intelligent boy a good education and his claim for damages rested on his anticipation of the services and pecuniary aid of the son in future. It was held that it is not sufficient for the plaintiff to prove that he has lost by the death of the deceased a mere speculative possibility of pecuniary benefits; in order to succeed it is necessary for him to show that he has lost a reasonable probability of pecuniary advantage. In dismissing the claim, McCardie J made the following observations:

> "The boy was subject to all the risks of illness, disease, accident and death. His education and upkeep would have been a substantial burden to the plaintiff for many years if he had lived. He might or might not have turned out a useful youngman. He would have earned nothing till about sixteen years of age. He might never have aided his father at all. He might have proved a mere expense. I cannot adequately speculate one way or the other. The whole matter is beset with doubts, contingencies and uncertainties."

In the present case the only evidence adduced was that the deceased was in primary four and did well at school. The deceased's health and habits were not known. It is not possible to speculate whether he would have successfully completed his studies and been in a position to assist his parents. He may or may not have been useful to them. He may have turned to be a burden to them. I agreed with MacCardie J that "the whole matter is beset with doubts contingencies and uncertainties". Accordingly I hold that the respondent failed to adduce such evidence as would have afforded the learned Judge a reasonable basis on which to infer that pecuniary loss had been inflicted on him and members of his family. The learned Judge was therefore not justified in awarding them damages for loss of services.

On the second head of damages for loss of expectation of life, both counsel agreed that the award is made on the basis of loss of prospective happiness by the deceased. The leading authority on this matter is the House of Lords decision in *Benham v Gambling* [1941] All ER 7. In that case a boy aged two and half years was killed in a road accident. His father claimed damages arising out of the diminution of the child's expectation of life. The child was a normal healthy child, living in a country village off the main road where the risk of being exposed to road dangers and to certain diseases would be less than in a crowded center. His father was in a steady employment and had reasonable prospects of continuing in it. The trial Judge awarded damages at the sum of £1 200. This award was affirmed by the Court of Appeal. On appeal to the House of Lords it was held that the proper assessment of such damages in this case where the prospects of the boy were particularly favourable was £200. It was held further that the assessment of such damages is not compensation for loss of years or for loss of future pecuniary prospects, but it is for fixing, upon common sense principles, of a reasonable figure for the loss of prospective happiness.

Viscount Simon LC enunciated the following considerations which should guide the Court in assessing damages for loss of expectation of life especially in case of a child:

> "1. Before damages are awarded in respect of the shortened life of a given individual, it is necessary for the Court to be satisfied that the circumstances of the individual life were calculated to lead on balance, to a positive measure of happiness of which the victim has been deprived by the defendant's negligence. If the character or habits of the individual were calculated to lead him a future of unhappiness or despondency that would be a circumstance justifying a small award.
>
> 2. In assessing damages for this purpose the question is not whether the deceased had the capacity or ability to appreciate that his future life on earth would bring happiness. The test is not subjective, and the right sum to award depends on an objective estimate of the kind of future on earth the victim might have enjoyed, whether he had justly estimated that future or not. No regard must be to financial losses or gains during the period of which the victim has been deprived. The damages are in respect of loss of life, not of loss of future pecuniary prospects.
>
> 3. The main reason why the appropriate figure of damages should be reduced in the case of a very young child is that there is necessarily so much uncertainty about the child's future that no confident estimate of prospective happiness can be made. When an individual has reached an age to have settled prospects, having passed the risks and uncertainties of childhood and having in some degree attained an established character and firmer hopes, his or her future becomes more definite and the extend to which good fortune may probably attend him at any rate becomes less incalculable.

4. Stripped of technicalities, the compensation is not being given to the person who was injured at all, for the person who was injured is dead. The truth is that in putting a money value on the prospective balance of happiness in years that the deceased might have lived the judge is attempting to equate incommensurables. Damages which would be proper for a disabling injury may be much greater than for deprivation of life. These considerations lead to the conclusion that in assessing damages under this head, whether in the case of a child or an adult, a very moderate figure should be chosen."

In the present case it is necessary to consider what kind of life the deceased would have enjoyed had he not been killed. There is no evidence that the deceased would have had an unhappy life. According to his father he was doing well in school and was assisting in domestic work. On the other hand his father was a farmer aged thirty–seven years with ten children. He had divorced two wives and was living with one. It is not known what his income was or what type of farmer he was. The deceased was aged fourteen but was still in primary 4. This shows that his education progress was rather slow. It is not known how far he would have reached in his education. It is not known whether his brothers and sisters were at school. The conclusion which can be reached here is that the deceased could have enjoyed average happiness, subject to the normal risks and uncertainties. I agree that damages for loss of expectation of life should be moderate.

The learned Judge awarded UShs5.5 million for loss of expectation of life. Mr *Serwanga* learned counsel for the respondent supported this amount, submitting that it was modest, and that the respondent and his family were entitled to damages for bereavement. I have sympathy with the view of council for the respondent. As it is acknowledged in *Winfield on Tort* (12ed) at 625, the principal function of awarding damages for loss of expectation of life was to provide in an indirect way for damages for bereavement in certain cases, because under the common law and the Fatal Accidents Acts, no claim for solution or bereavement could be entertained. In England today, the claim for damages for bereavement has replaced a claim for loss of expectation of life, a reform introduced by amendments made to the Fatal Accident Act of 1976 by the Administration of Justice Act of 1982. A sum of £3 500 has been fixed by statute as damages for bereavement (see *Winfield on Tort*) (*supra*) at 625.

In Uganda, however, the law is still that damages are not awarded for bereavement. They are awarded for loss of expectation of life. I would for myself think that time has come to recognise that parents are bereaved by the loss of children whom they naturally love and value and for whom they sacrifice so much. I would think that damages for bereavement should now be recognised or at least taken into consideration when assessing damages for loss of expectation of life. A modest figure should be fixed for this head preferably not more than UShs1 million.

In the present case I am of the opinion that the learned Judge took into account wrong factors and applied wrong principles and thereby arrived at a wholly erroneous estimate of the damages suffered. (See *Channan Singh and another v Channan Singh and another* [1955] 22 EACA 125 and *Kimothia v Bhamra Tyre Retreaders and another* [1971] EA 81). The amount of UShs5.5 million awarded to the respondent for loss of expectation of life was so inordinately high as to call for interference. I consider the sum of UShs1 million to be an adequate award under this head. The amount would be apportioned as follows: UShs600 000 to the respondent GM Musoke, UShs400 000 to the deceased's mother Rosemary Nakyanzi.

In the result, I would allow this appeal, set aside the award of general damages made by the High Court and substitute and award of UShs1 million as general damages for loss of expectation of life. I would award the costs of this appeal to the appellant.

Manyindo DCJ and Oder JSC concurred in the judgment of Odoki JSC.

For the appellant:
Mr Kanyemibwa

For the respondent:
Mr Serwanga

Uganda Petroleum Company Ltd v Shell (Uganda) Ltd
[1990–1994] 1 EA 591 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	12 December 1994
Case Number:	3/94
Before:	Manyindo DCJ, Oder and Tsekooko JJSC
Sourced by:	LawAfrica

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[1] Appeal – Separate claim by one plaintiff – Question of priority between registered and prior unregistered lease – Whether trial Court had considered and made a decision on the matter – Proper decision on appeal.

Editor's Summary

The appellant entered into a lease agreement with a purchaser of land. The land had previously been leased by the seller to the respondent, but the registered lease had expired two years before the transfer of the land to the purchaser. The appellant investigated the title and entered into a lease agreement convinced that the respondent had no legal title to his continued occupation of the land. Subsequently, the purchaser filed an eviction action against the respondent, to which the appellant later joined as the legal lessee.

The respondent replied that there was a renewal of the lease by sublease between him and the seller for a further twenty years. Further it was argued that the purchaser was not a *bona fide* purchaser of the suit land for value. The sublease was unregistered. After hearing the suit, the trial Judge found that the purchaser had been aware of the unregistered sublease, and hence was not a *bona fide* purchaser without notice. The appellant appealed, arguing that he was a *bona fide* and registered lessee, and that his registered lease had greater priority than the unregistered lease of the respondent.

Held – The trial Court had failed to consider the appellant's separate claim to possession of the suit land. The appeal would succeed and the case remitted back to the trial Judge for consideration and decision on the appellant's separate case.

Appeal allowed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Shell (U) Limited v John K Sentongo civil suit number GK 14 of 1993

Judgment

Manyindo DCJ, Oder And Tsekooko JJSC: This is an appeal against the dismissal by the High Court of a suit instituted by the appellant and another person, John Henry Kafero Sentongo, against the respondent. In the suit the appellant and Sentongo separately claimed against the respondent for eviction, damages, profit, *mesne* damages and costs, on grounds of alleged trespass. Only the appellant has appealed against the dismissal of the suit. Sentongo has not.

We heard and allowed the appeal with costs, but reserved our reasons for doing so, which we now proceed to give.

It appears that as far back as 1963, one EDM Kisekka, now deceased, granted a lease to the respondent of his mailo piece of land comprised in Kibuga block 14, plot 276, at Kibuye (the suit premises). Thereafter the respondent built and operated a petrol station thereon. The terms of that lease are not relevant to this case.

Then, on 17 March 1980, the administrators of the estates of the deceased, Isaya Kalanga Kisekka and Tito Bakambaga, entered into a new lease agreement with the respondent, granting it a lease of the suit premises for a period of ten years commencing on 29 December 1980. The lease was duly registered on 28 November 1983 and a certificate of title in respect thereof (IP3) issued to the respondent on 30 November 1983, who continued in possession of the suit premises, operating its petrol station as before. The lease was also entered on 28 November 1983 as an incumbrance on the mailo owner's certificate of title. The lease expired on 31 December 1990.

In the meantime Sentongo bought and acquired the mailo interest in the suit premises from Tito Bakambaga Kisekka in May 1992. The other administrator of the deceased's estate, Isaya Kalanga Kisekka, had allegedly predeceased Tito. The transfer of the suit premises to Sentongo was registered on 20 August 1992. The sale and transfer to him was carried out on the basis of a special certificate of title (IP9) which had been applied for by, and was issued to Tito, because the mailo certificate of title had allegedly got lost. The transfer having been registered, Sentongo received the special certificate of title (IP9). The transfer was also registered on the certificate of title retained by the land office (exhibit IP2).

By a lease agreement dated 15 October 1992 made with the appellant. Sentongo granted the former a lease of the suit premises with the petrol station thereon for a period of 20 years beginning 1 August 1992. The same was registered and a certificate of title in respect thereof (exhibit IP4) was issued to the appellant. The appellant also entered into another agreement with Sentongo for the latter to operate a petrol station as a dealer in the appellant's petroleum products on the suit premises.

Thereafter Sentongo's lawyers issued notices of eviction from the suit premises to the respondent on 15 December 1992 and 4 January 1993. The respondent resisted the eviction by filing an action against Sentongo in the Chief Magistrate's Court of Mengo in *Shell (U) Limited v John K Sentongo* civil suit number GK 14 of 1993.

Sentongo reacted by filing his suit for trespass in the instant case in the High Court against the respondent on 15 January 1993, claiming the remedies to which we have already referred.

By its written statement of defence, filed on 9 February 1993, the respondent defended the suit and made a counter-claim against Sentongo. In its pleadings, the respondent admitted being in possession of the suit premises. The gist of its defence was that the lease which had been granted to the respondent commencing on 29 December 1988, had been renewed by a sub-lease agreement made between the respondent and Tito Bakambaga Kisekka on 9 December 1988. The renewal was for a period of 20 years commencing on 29 December 1990. It was also pleaded in the written statement of defence that Sentongo was not a *bona fide* purchaser of the suit premises; and that as the respondent's suit in the Chief Magistrate's Court was still pending, Sentongo's suit in the instant case should be stayed until the earlier suit was disposed of.

In its counter-claim against Sentongo, the respondent alleged that the registration of Sentongo as the proprietor of the suit premises was fraudulent, *mala fides*, and executed with the full knowledge by Sentongo of the respondent's interest in the suit premises and with the intention to deprive the respondent of its interest therein. The registration of Sentongo as the proprietor was, therefore, null and void. There then followed a list of particulars of Sentogo's alleged fraud. The counter-claim prayed for a declaration that the respondent was entitled to occupy the suit premises as a lawful sublessee till the expiration of its sublease; for an order restraining Sentongo from evicting the respondent from the suit premises, and for costs.

In Sentongo's reply to the respondent's defence and counter-claims, filed on or about 5 March 1993, he stated that the issues and prayers in the respondent's suit in the Chief Magistrate's Court of Mengo were entirely different from those in Sentongo's suit in the instant case, the general damages and mesne profit evisaged in which were far beyond the jurisdiction of the Chief Magistrate's Court. Regarding the respondent' counter-claim Sentongo averred that he was a *bona fide* purchaser for value, having searched, as he had done, the respondent's title in the land office and found that the respondent's lease of ten years had expired and had been cancelled without being renewed. The respondent, therefore, had no further interest in the suit premises.

Before the suit was heard, the appellant applied by notice of motion, filed on 26 April 1993, to be joined as a party to the suit on grounds of being a lessee of the suit premises. The application was granted by the learned trial Judge's order of 28 April 1993, joining the appellant as a plaintiff to the suit. Thus, Sentongo became the first and the appellant the second plaintiff in the suit.

In its plaint subsequently filed, the appellant sought for eviction of the respondent from the suit premises as a trespasser, and claimed for special and general damages, costs and interests. It averred that it was *bona fide* purchaser for value without notice. The plaint then stated how the appellant had allegedly obtained a lease of the suit premises from Sentonge as a registered proprietor

thereof, and that the appellant's own lease so obtained had been registered. In effect the pleadings in the appellant's plaint supported what Sentongo had stated in his own plaint.

The respondent resisted the appellant's claim by filing a written statement defence to it. Briefly, the respondent denied the allegations in the plaint, and contended that the respondent had for a very long time operated a petrol station on the suit premises, its lease of the same having been renewed with effect from 9 December 1988 by the administrators of the estates of the deceased proprietors. The respondent also made a counter-claim against the appellant, in which it was alleged that the appellant's registration as the proprietor of the suit premises was fraudulent, *mala fide*, and executed with full knowledge by the appellant of the respondent's interest in the suit premises, and with the intention to deprive the respondent of its interest therein. The appellant's registration was, therefore, null and void. Particulars of alleged fraud on the part of the appellant were then set out as follows:

> "(*a*) By buying the said property and registering the said purchase in the second plaintiff's name well knowing of the existing interest thereon of the defendant.
>
> (*b*) Executing and/or registering the second plaintiffs as the proprietor of the said lands with the intention of depriving the defendant of its interest in the property."

The counter-claim then prayed for a declaration that the respondent was entitled to occupy the suit premises as a lawful lessee thereof till the expiration of its renewed lease, and for an order restraining the appellant from evicting the respondent from the suit premises; and costs.

The appellant filed a reply to the respondent's counter-claim. It reiterated that the appellant purchased its lease of the suit premises, the respondent's lease had expired, had not been renewed; nor had a renewal (if any) been registered; that the appellant executed the sublease with Sentongo as the registered proprietor of the suit premises after investigation and satisfying itself of the validity of Sentongo's title to the suit premises; that the appellant purchased the suit premised for valuable consideration without notice of an adverse claim of title by the respondent or any other party; that at the time of registration the appellant as proprietor of the suit premises, the suit premises was not encumbered by way of lease, caveat, or instrument whatsoever in favour of the respondent or any other party; that there was no way the appellant would have known of the respondent's unregistered prior interest therein, if any existed at all; and that the appellant's lease was registered on 8 December 1992 under instruction number KLA 156245 and a leasehold certificate of title land reference number 2093, folio 17 (exhibit IP4) was issued free from incumbrances.

When the suit came for trial on 23 September 1993, Mr *Kateeba* as counsel for the respondent on that occasion informed the Court and counsel for the appellant on that occasion that the respondent's suit at Mengo Chief Magistrate's Court had been withdrawn, whereupon the learned trial Judge ordered for the trial of the suit in the present case to proceed. He also framed issues in the suit as agreed to by all the parties. They were:

1. Was the defendant's lease validly renewed?
2. Was the first plaintiff aware of the lease in favour of the defendant?
3. If issues one and two are answered in the affirmative is the purported lease to the second plaintiff null and void?

4. If issue one is answered in the negative what remedies if any are the plaintiffs entitled to?"

Thereafter, four witnesses testified for the appellant and Sentongo at the trial of the suit. They were Opio Robert, a registrar of titles (PW1), Sentongo himself (PW2), Iqbal Ismael, the appellant's managing director, (PW3), and Nelson Nalukoola Senoga, the appellant's marketing manager, (PW4). For the respondent, two witnesses gave evidence, namely Wilbert Kaahwa, the respondent's company secretary, (DW1) and William Bekiza, the respondent's former sales manager, (DW2).

In addition to the facts already referred to in this judgment, the essence of the evidence adduced for the appellant and Sentongo was that when the latter was negotiating with Tito to purchase the mailo interest in the suit premises, he learned of the respondent's ten years lease agreement. Tito showed him a copy of the document. He also carried out a search in the land office and verified that the respondent's ownership of a lease interest as an incumbrance on the title which he (Sentongo) was in the process of buying from Tito had expired, but that he did not ascertain why it had not been deleted off the records.

Consequently Tito's title was transferred to him. Thereafter, he (Sentongo) did not approach the respondent to take a lease of the suit premises from him. This was because the rent which the respondent had been paying its lessor was too low, nor did he (Sentongo) ask the respondent why it was still in occupation after its ten year lease had apparently expired. According to Opio Robert (PW1) it had expired on 31 December 1990 and was not apparently renewed, because no renewal was registered on the records. Further, according to Opio, the appellant's lease of twenty years was registered as leasehold register volume 2093 folio 17 about two years after the respondent's ten years lease had expired. (Exhibit 1P5) which Tito used to transfer the suit premises to Sentongo was obtained by Tito on 20 May 1992, having applied for it on 12 May 1992.

Iqbal Ismael (PW3) testified that in the course of the discussion to purchase the leasehold interest of the suit premises from Sentongo, the appellant found that although the respondent was in occupation, there was no legal basis for such occupation. This paved the way for the appellant to seriously consider acquiring the sublease of the property. Sentongo showed his certificate of title to the appellant, which indicated that Sentongo was the registered owner and that there were no incumbrances against such a sublease. The appellant also consulted legal opinion and was advised that the suit premises was clear of any adverse claims or incumbrances. In doing so, the appellant wanted to make sure that it was buying a good title. As a result of all the promises that were undertaken, the appellant signed the 20 year agreement with Sentongo on 15 October 1992. The consent of the minister was also obtained and the respondent was registered as the lease of the suit premises and issued a certificate of title to the lease (exhibit 1P4). In turn the appellant entered into an agreement with Sentongo to deal in the appellant's petroleum products on the suit premises. The appellant did not subsequently take possession of the suit premises due to the respondent's occupation thereof.

Nelson Nalukoola Senoga (PW4) gave evidence on what business and profit the appellant would generated from possession of the suit premises had the respondent not continued in occupation.

Given in contravention of the appellant's evidence, the gist of the evidence of the respondent's witnesses was that the ten year lease agreement which it entered into with EDM Kisekka had provided in clause 3(*d*) for an option for renewal at the instance of the respondent. In accordance with the provisions of that clause and before the lease expired in December 1990, the respondent and Tito Bakambaga Kisekka, the surviving administrator of the estates of EDM Kisekka, entered into a new lease agreement (exhibit D2) on 9 December 1998, renewing the expired lease for a period of 20 years from 29 December 1990. The renewed lease agreement was never registered. Wilbert Kaahwa (DW1) tested that non-registration of the lease could have been due to oversight. In addition, the respondent was unable to trace Tito Bakamaga Kisekka between September 1990 and December 1992 to have him sign lease forms for registration of the new lease. Tito disappeared after having received rent up to 1992 in advance. DW1 also said that neither the appellant nor Sentongo ever went to the respondent to enquire about the respondent's presence on the suit premises.

On the basis of the pleadings and evidence referred to above, the learned trial Judge found that Sentongo was aware of the existence of the unregistered lease in favour of the respondent, and that he (Sentongo) colluded with Tito Bakamaga Kisekka in setting out to defeat the respondent's interest in the suit premises. Consequently the learned trial Judge dismissed Sentongo's action with costs.

Throughout his judgment the learned trial Judge did not consider the appellant's case, and neither made findings in respect of matters, nor answered issues, which concerned the appellant in the suit. Hence this appeal.

Eight grounds were set out in the memorandum of appeal.

They were:

1. The learned trial Judge completely misdirected himself in failing to consider the second appellant's case in his judgment.
2. The learned trial Judge misdirected himself in evaluting the evidence by imputing constructive notice of the respondent's unregistered lease on the first appellant and finding that the first appellant was aware of the respondent's unregistered lease with Tito Bakambaga and further erred in failing to make any pronouncement on the effect of imputed notice on the registered interest of the second appellant.
3. The learned trial Judge misdirected himself and erred in law in imputing fraud on the first appellant when fraud was not specifically proved.
4. The learned trial Judge completely misdirected himself in arriving at a decision that the respondent's unregistered lease could create an interest in the suit premises over and above the registered interests such as the second appellant's registered lease.
5. The learned trial Judge having rightly found that an equitable interest creates no estate or interest in land, erred in law and contradicted himself when he went ahead to enhance the purported unregistered lease by ordering the first appellant to respect it and abide by its terms while completely ignoring the second appellant's registered lease.
6. The learned trial Judge misdirected himself in admitting the unregistered lease as evidence when no stamp duty had been paid on it contrary to the Stamp Act.
7. The learned trial Judge erred in law in imputing constructive notice of the respondent's unregistered lease on the first appellant, while completely ignoring the case for the second appellant.

8. The learned trial Judge erred in law in suggesting that the first appellant should have given hearsay evidence to prove his *bona fide*s and he failed to properly evaluate the evidence to find that the first and second appellants had discharged their burden of proof.

Although the memorandum of appeal cited John Kafero Sentongo and Uganda Petroleum Company Limited as the first and second respondents respectively, Mr Mubiru *Kalenge*, learned counsel for the latter, informed us that only his client was appealing against the judgment and orders of the learned trial Judge. Sentongo was not.

In the course of his submission to us, Mr Mubiru *Kalenge* abandoned all the grounds of the appeal except grounds one and four. Submitting on ground one, the learned counsel said that the learned trial Judge completely failed to consider the appellant's case, which included a defence to the respondent's attempted counter-claim against the respondent. Evidence in support of the appellant's case was given by Sentongo and the appellant's managing director and marketing manager but the learned trial Judge apparently ignored that evidence in so far as the appellant's case was concerned.

Mr Tirya *Kirya*, the learned counsel for the respondent, conceded ground one of the appeal and counsel's arguments in that connection.

We decided that this ground of appeal was well founded that it should succeed. The ground was also rightly, in our view, conceded by the learned counsel for the respondent. With respect, it is clear from his judgment that the learned trial Judge failed to consider the appellant's case, the essence of which was that the appellant was a *bona fide* purchaser of the suit premises from Sentongo without notice of the respondent's interest in the same; the appellant's lease was registered as against the respondent's unregistered purported lease, of which the appellant was unaware, the respondent was a trespasser on the suit premises, causing the appellant loss of business and profit; and the appellant was entitled to claim for eviction, special and general damages against the respondent on grounds of the trespass.

The learned trial Judge neither addressed the appellant's case nor made findings thereon and the evidence adduced for the appellant. With respect, this was a fatal misdirection. The concluding paragraph of the judgment indicates that only *Sentongo*'s case (*supra*) was decided upon by the learned trial Judge. It stated:

> "The plaintiff's action is dismissed with costs. The continued occupation of the premises by the defendant is conditional on its compliance with the terms and conditions set out in the lease agreement – D2. The defendant's prayer for a restraining order is therefore, dismissed. Any arrears of rent and/or premium shall be paid forthwith to the plaintiff, notwithstanding any appeal, and, if declined by the plaintiff shall be deposited in Court."

The reference to the "plaintiff" in the singular in the passage of the judgment referred to above appears clearly to refer only to Sentongo as the plaintiff.

Further, of the four issues which were framed at the trial, the third and fourth issues concerned the appellant's case, and yet they were not answered by the learned trial Judge in that connection.

Ground one of the appeal having succeeded we decided that it was unnecessary to consider ground four, which goes to the merit of the appellant's case. As we have already said the merit of the appellant's case was not decided upon by the learned trial Judge.

For the reason given, we decided that the appeal should succeed. We allowed it with costs and ordered that the judgment and orders of the learned trial Judge, in so far as they affect the appellant, should be set aside. We also ordered that the case should be remitted to the learned trial Judge for him to consider and decided upon the appellant's case.

For the appellant:
Mr Mubiru Kalenge

For the respondent:
Mr Tirya Kirya

Uniliver PLC v Hangaya
[1990–1994] 1 EA 598 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	1993
Case Number:	28/91
Before:	Makame, Kisanga and Mfalila JJA
Sourced by:	LawAfrica

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[1] Civil procedure – Security of costs – Foreign company – Reciprocal enforcement of judgments – Amount of security.

Editor's Summary

The appellant sued the respondent for infringement of its copyright. The respondent applied for security of costs, arguing that the appellant was a non-resident company. The judge granted the application and ordered the appellant to deposit £10 000 before the suit can proceed. The appellant appealed against the Order.

Held – Consideration of the merits of the defence's case in an application for security of costs, is neither desirable nor practical.

Where there are reciprocal enforcement arrangements and the plaintiff has enough property in country where resident or within court's jurisdiction, no need to order security of costs. (*Vallabhdas Hirji Kapadia v Thakersey Laxmidas* [1960] EA 441 followed; *Farrab Incorporated v Brian John Robson and others* [1957] EA 441 explained.

Appellant did not show that it has enough assets in its resident company in order to enable it to proceed without giving security for costs. judge should not arbitrarily impose the amount of security of costs.

Appeal dismissed.

Cases referred to in judgment

(“**A**” means adopted; “**AL**” means allowed; “**AP**” means applied; “**APP**” means approved; “**C**” means considered; “**D**” means distinguished; “**DA**” means disapproved; “**DT**” means doubted; “**E**” means explained; “**F**” means followed; “**O**” means overruled)

East Africa

Farrab Incorporated v Brian John Robson and others [1957] EA 441 – **E**

Vallabhdas Hirji Kapadia v Thakersey Laxmidas [1960] EA 853 – **F**

United Kingdom

Raeburn v Andrews [1974] LR 9 QB 118

Re Apollinaris Company's Trade Marks [1891] Ch 1

Judgment

Mfalila JA: This appeal is against the order made by the High Court Msumi J against the appellant company Uniliver PLC to deposit £10 000 as security for costs in civil case number 139 of 1986. In this case the appellant company sued to stop the respondent from infringing its registered trademark. According to the plaint, the appellant company described itself as a body corporate organised and existing under the laws of the United Kingdom. That made the appellant company a non-resident in Tanzania. For this reason, the respondent filed an application in the High Court for an order "that the plaintiff herein doth give security in the sum of £10 000 for payment of costs of the defendant in this suit such security to be given by the 31 December 1987". After hearing arguments on both sides the learned Judge allowed the application and ordered the appellant company to furnish security for costs in the sum as prayed that is £10 000 because he was "of the considered view that the amount of £10 000 as anticipated costs is quite reasonable".

Before us, Mr *Uzanda* argued three main grounds in support of the appeal against the learned Judge's order of security for costs. In the first ground, he argued that in determining the question whether or not to order security for costs, the judge should have taken into account or considered the merits of the defence case and that since in the present case the defendant had no credible defence, the judge ought to have dismissed the application. On our part, we agree with the view taken by the learned Judge that consideration of the merits of the defence case at that stage is neither desirable nor practical. We think Mr *Uzanda* was on firmer ground in his second and third grounds on the need or necessity of ordering security for costs in a situation where there are reciprocal arrangements for enforcement of judgments and on the actual amount ordered to be paid.

On the necessity of providing security for costs where there are reciprocal arrangements for enforcement of judgments, Mr *Uzanda* submitted that there is no such necessity as the old inflexible rule of practice that a plaintiff resident abroad must pay security for costs no longer holds true with the advent of legislations such as our Foreign judgments (Reciprocal Enforcement) Ordinance (Chapter 8) under which the respondent can easily enforce this judgment in the United Kingdom where the appellant is resident. In support of this submission he cited the decision of the Supreme Court of Kenya in *Vallabhdas Hirji Kapadia v Thakersey Laxmidas* [1960] EA 853. In the past, the inflexible rule or practice was that a plaintiff resident abroad without property within the jurisdiction of the Court had to furnish security for costs. In an earlier case in the same court *Farrab Incorporated v Brian John Robson and others* Supreme Court of Kenya [1957] EA 441, the same point arose. In that case there was an application for security for costs by the defendants to a suit filed in Kenya on the

ground that the plaintiff was resident abroad. The plaintiff was a corporation registered in Tangier but having a place of business at Moshi, Tanganyika. The plaintiffs opposed the application on the ground that it owned substantial property in Tanganyika and that in view of the judgments Extension Ordinances of Kenya and Tanganyika, the defendants would be able to proceed against the plaintiff's property in Tanganyika should this be necessary. In deciding this case, the learned Judge Connell J, had recourse to a similar English provision and the commentaries on it, namely White Book Commentary at 150, where it is stated:

> "The ordinary ground on which security is ordered is residence abroad, and subject to the exceptions hereinafter mentioned the rule is inflexible."

Under the English Rules, one of the exceptions quoted is where the plaintiff resides in Scotland and Northern Ireland, for by a combined effect of the judgments Extension Act and Judicature Act, a judgment in any Division of the High Court was enforceable in Scotland or Ireland. On the reciprocal enforcement of judgments, the commentary proceeds to state:

> "But the procedure of enforcing judgments under Part II of the Administration of Justice Act of 1920 and the Foreign judgments (Reciprocal Enforcements) Act of 1933, is different, and plaintiffs residing in countries to which these Acts apply must give security."

There are also other cases where security is not required as a matter of practice though a plaintiff is resident or registered abroad, that security will not be required from a person permanently residing out of the jurisdiction if he has substantial property, real or personal within it. In this case the leading case is *Re Apollinaris Company's Trade Marks* [1891] Ch 1 wherein it was stated by Lord Halsbury:

> "His (that is the plaintiff) being so resident (that is abroad) makes a *prima facie* case for requiring him to give security; but it is subject to a well known ordinary exception that if there are goods and chattels of his in this country, which are sufficient to answer the possible claim of the other litigant, and which would be available to execution the Court will not order him to give security for costs."

In that case that is *Farrab Incorporated v Brian John Robson and others* Supreme Court of Kenya [1957] EA 441 case, the Court granted the application and ordered the non-resident plaintiff to furnish security in the sum of £500. But three years later, the same Court (the Kenya Supreme Court) decided a similar case the other way. This was the *Vallabhdas Hirji Kapadia v Thakersey Laxmidas* [1960] EA 853 case, quoted earlier and heavily relied upon by the present plaintiff. In that case, the defendant applied for security for costs on the ground that the plaintiff was ordinarily resident in Zanzibar and outside the jurisdiction of the Court. The plaintiff submitted that no order should be made as by section 3 of the judgments E & D (Chapter 23) of the laws of Zanzibar, a decree obtained in any court in Kenya could be transferred to Zanzibar for execution as if the decree had obtained in Zanzibar. The learned Judge, Edmonds J held:

> "In view of the provisions of Judgments E & D of Zanzibar the evil against which the rule for security sought to guard largely disappears. The defendant would be at no material disadvantage, if successful, in taking steps to recover his costs either in Zanzibar or in Tanganyika where the plaintiff also had property. The *Farrab Incorporated v Brian John Robson and others* Supreme Court of Kenya [1957] EA 441 case did not decide that in all such cases and no matter what the circumstances, security should be given."

The learned Judge was fortified in this position by the decision of Blackburn J given a century earlier in *Raeburn v Andrews* [1974] LR 9 QB 118 at 120. In this case Blackburn J had the following to say:

> "I think that there ought to be no rule. When we look at the origin of the practice of calling on a plaintiff resident abroad to give security for costs, as established in *Pray v Edie*, the point becomes quite clear. In that case the plaintiff being a foreigner residing abroad, the Court stayed proceedings till he gave security for costs, and Buller J said "for this reason, that if a verdict be given against the plaintiff he is not within the reach of our law so as to have process served upon him for the costs". The same point was afterwards, for the same reasons, decided in *Fitzgerald v Whitmore*, in the case of a plaintiff residing in Ireland, and the rule was afterwards extended to a plaintiff resident in Scotland. But since the passing of the judgments Extension Act 1868, that reason has completely ceased. The effect of that enactment is that when a judgment has been obtained in England, a certificate of such judgment can be registered in the proper office in Scotland, and the Court in Scotland can issue process on such judgment. It is true that the process in Scotland may perhaps be not like the process of our Courts, but we must take it that it is as effective as our own. In Ireland if the writ of ca. sa. be not taken away in execution under this Act would be more effective than in England. The reason, therefore, for compelling a plaintiff resident in Scotland to give security for costs having ceased, this rule must be refused."

Edmunds J, then concluded his judgment with the following words:

> "My attention has been drawn to the case of *Farrab Incorporated v Brian John Robson and others* Supreme Court of Kenya [1957] EA 441. In that case the defendants applied for security for costs on the ground that the plaintiff was resident abroad namely in Tanganyika. The application was resisted on the ground that the plaintiff owned substantial property in Tanganyika and that in view of the judgments Extension Ordinances of Kenya and Tanganyika, the defendants if successful, could proceed against the plaintiff's property in Tanganyika. My learned brother Connell J decided for reasons, which he gave, to exercise his discretion in favour of the defendant and ordered provision by the plaintiff of security for costs. The learned Judge did not however decide that in all such cases and no matter what the circumstances, security should be given. In the instant case, the plaintiff has his principal place of business in Zanzibar with a branch in Dar es Salaam. The defendant will be at no material disadvantage, if successful in this suit in taking proceedings for the recovery of his costs in Zanzibar and Tanganyika. I will therefore exercise my discretion in favour of the plaintiff and decline the application."

Since the two cases are on all fours, we think it is important to re-examine the reasons which made Connell J, in the *Farrab Incorporated v Brian John Robson and others* Supreme Court of Kenya [1957] EA 441 case to order the plaintiff to furnish security for costs despite the existence of the judgments Extension Ordinance in both Kenya and Tanganyika. The learned Judge distinguished the position in the *Re Apollinaris Company's Trade Marks* [1891] Ch 1 case and proceeded to reason as follows:–

> "In the *Re Apollinaris Company's Trade Marks* [1891] Ch 1 case, the French Company had £24 000 worth of stock and plant and book debts valued at £8 000 all in the United Kingdom. Mr Khanna stated that there were 10 000 acres of cattle ranch at Oldeani in Tanganyika, and 45 000 acres under a government lease and containing coffee, crops *et cetera*, these were allegations from the bar and not stated in any affidavit, the plaint merely states "plaintiff has a place of business in Moshi." There may be all sorts of difficulties in obtaining execution in Tanganyika. One has no knowledge of what sort of transactions are being carried out in Tanganyika, who are the employees, what are the terms of the leases whether a business or firm is registered in Moshi and if so under what name. Moreover, even if there was all that confirmation, there is

> certainly no precedent under which the courts of this colony have followed court decisions under the Judicature Act of 1873 and judgments Extension Act 1868. Furthermore, in so far as the matter may be one of discretion, I think this is a fit and proper case to order security for costs".

From this reasoning it is clear to us that Connell J, was not satisfied with the state and existence of the plaintiff's property in Tanganyika, hence what he referred to as "difficulties that may arise in executing the decree there." It seems to us therefore that Connell J would have arrived at the same conclusion as his brother in *Vallabhdas Hirji Kapadia v Thakersey Laxmidas* [1960] EA 853 case if there had been adduced before him concrete evidence on the plaintiff's property in Tanganyika instead of mere statement from the bar. We are thus in a position to say that where there are in existence reciprocal arrangements for enforcement of judgments, and it is shown that the plaintiff has enough property in the country where he is resident, or within the jurisdiction of the Court there is no need to order such plaintiff to furnish security for costs.

What is the position in the present case? In the affidavit in support of the application for an order to furnish security, it was stated that the plaintiff has no registered office in Tanzania nor has it got any known assets therein. This statement was not refuted by the plaintiffs. Indeed throughout the proceedings, the plaintiffs did not state anywhere that they have assets in what place. All that is known about the plaintiff is that it is a British registered Company. The learned Judge wrongly referred to the plaintiff as a corporation registered in Kenya. The plaintiff made no attempt to show what assets if any it owns in Tanzania or Kenya in which case the judgments Extension Ordinance (Chapter 7) would be brought into play or in the United Kingdom in which case the Foreign judgments (Reciprocal Enforcement) Ordinance (Chapter 8) would be applicable. There is only a statement from the bar by Mr *Uzanda* during the hearing to the effect that there was no necessity to order the plaintiff to furnish security because there is an arrangement between the United Kingdom and Tanzania for the reciprocal enforcement of each other's judgments. As we have already observed, the existence of reciprocal arrangements is not enough, the plaintiff must show that he has enough assets in the other country against which the defendant can proceed under the reciprocal arrangements. Since none was shown in this case, the learned Judge was right in ordering the plaintiff to furnish security for costs despite the existence of reciprocal arrangements for enforcing judgments.

With regard to the actual amount, which was ordered to be furnished as security for costs, the appellant complained that the learned Judge did not indicate any yardstick which he used to determine the amount of £10 000. This, he added, shows that the learned Judge did not exercise any judicial discretion, that he simply accepted the arbitrary figure put forward by the defendant.

We think with respect that this complaint is justified. The defendant to all appearances seems to have plucked this figure out of the sky. The learned Judge in what he describes as his considered view, thought this amount to be quite reasonable. We do not know the basis on which the learned Judge considered this large amount to be quite reasonable and why it was expressed in foreign currency rather than the currency of the Court. The learned Judge should not have accepted the arbitrary figure put forward by the defendant without subjecting it to judicial scrutiny. In all the circumstances of this case we think a sum of TShs200 000 would meet the requirements of the occasion.

Accordingly we dismiss the appeal but reduce the amount to be deposited as security to TShs200 000. We also order that the costs of this application be in the cause.

For the appellant:
Mr Uzanda

For the respondent:
Information not available

Waimo v Attorney-General
[1990–1994] 1 EA 603 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	27 February 1991
Case Number:	6/90
Before:	Manyindo DCJ, Oder and Platt JJSC
Sourced by:	LawAfrica

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[1] Civil procedure – Plea of limitation – Whether exception to defence of limitation must be pleaded in the plaint – Section 2 – Civil Procedure and Limitation (Miscellaneous Provisions) Act of 1969 – Order 7, rule 11 – Civil Procedure Rules.

[2] Limitation – Continuing tort – When period of limitation commences – Continuing tort commenced beyond the period of limitation – Period of continuing tort for which plaintiff confronted by limitation can recover.

[3] Tort – Wrongful imprisonment – False arrest – Whether wrongful imprisonment is a continuing tort *– When period of limitation begins to run.*

Editor's Summary

The appellant was arrested and detained by soldiers of the National Resistance Army for 11 months then he was released without having been charged in any court of law or served with any detention order. He brought a claim for false arrest and wrongful imprisonment four months later. The respondent argued that the cause of action arose on the date of arrest, and that the one-year period of limitation had expired. The trial Court agreed and rejected the plaint *in limine*.

On appeal, the appellant argued that he was under a period of disability during his detention and hence the limitation period for the arrest was on the date of his release. He further argued that wrongful imprisonment was a continuing tort and hence the action was properly within the limitation period.

Held – The appellant's case is founded on tort and is a suit against the government. Hence the period of limitation was one year from the date the cause of action arose. Time begins to run from the date the tort was committed, and in the case of several acts, in respect of each act from the date of its commission.

In respect of unlawful detention, it was a continuing tort, and the cause of action would accrue continuously throughout its duration. The effect of the limitation statute would therefore be to wipe out only that portion of the continuing tort that took place outside the prescribed period of limitation. Damages for the portion of the tort that takes place within the limitation period may be recovered. *Siya v Attorney-General* [1972] ULR part 1 at 71, *Difasi v Attorney-General* [1972] EA 335 followed.

In respect of the claim for unlawful detention and false arrest occurring outside the limitation period, the appellant was obliged to plead disability in order to oust the defence of limitation. It is a mandatory requirement that the plaint pleads the grounds upon which exemption from the law of limitation is claimed. As this was not done, the appellant was not entitled to pursue any claim outside the limitation period. *Iga v Makerere University* [1972] EA 65 followed.

Appeal allowed in part.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Difasi v The Attorney [1972] EA 335 – **F**

Iga v Makerere University [1972] EA 65 – **F**

Kidumu v Attorney-General [1976] HCB 87

Musambu v West Mengo District Administration [1971] EA 379

Siya v Attorney-General [1972] ULR – **F**

United Kingdom

O'Connor v Issacs [1956] 2 KB 288

Judgment

Manyindo DCJ, Oder and Platt JJSC: On 18 January 1988, the appellant sued the respondent Attorney-General in his representative capacity under the Government Proceedings Act (Chapter 69) for special, general and exemplary damages for wrongful and unlawful arrest and detention.

The facts stated in the plaint as constituting the cause of action are that the appellant was arrested on 24 September 1986 by soldiers of the National Resistance Army and detained first at Busia Police Station and then at Mbuya Military Barracks, from where he was transferred to and further detained at Kampala Central Police Station for three months. Then on 3 December 1986, he was transferred to and detained at Jinja Road Police Station until 12 August 1987 when he was released, without having been charged in any court of law or served with any detention order. According to these facts, the appellant was in continuous detention from the date of his arrest, 24 September 1986, the date when, according to the plaint, the cause of action arose, up to the date of his release.

At the hearing of the suit, the learned counsel for the respondent took a preliminary objection on the ground that the action had been brought out of time, it having been filed more than twelve (12) months from the date when the cause of action arose. It was, therefore, time barred by virtue of the provision of the Civil Procedure and Limitation (Miscellaneous Provisions) Act of 1969 (Act 20 of 1969) and should, therefore, be rejected under Order VII, rule 11(*d*) of

the Civil Procedure Rules, which provides that a plaint should be rejected where the suit appears from the statement in the plaint to be barred by any law. The learned trial Judge upheld the objection. Hence this appeal.

Five grounds were set out in the memorandum, but ground five, which stated that the learned trial Judge erred in holding that the action for unlawful arrest was barred by limitation was abandoned at the hearing.

The remaining four grounds are:

1. That the learned trial Judge erred when he failed to find that unlawful detention is a continuing tort.
2. That the learned trial Judge erred when he failed to find that the period of unlawful detention is severable for the purpose of limitation.
3. That the learned trial Judge erred in holding that the appellant's detention was barred by limitation.
4. That the learned trial Judge erred in holding that the plaint failed to specifically plead arrest as a disability for the purpose of limitation.

The appellant's action in this case is founded on tort and, as it is a suit against the government, it is subject to the period limitation laid down in Act 20 of 1969, the relevant sections of which:

> "2 (1) No action founded on tort shall be brought against,
>
> (*a*) The Government, . . . after the expiration of twelve months from the date on which the cause of action arose . . .
>
> 4. If on the date when any right of action occurred for which a period of limitation is prescribed by this Act the person to whom it occurred was under a disability, the action may be brought at any time before the expiration of twelve months from the date when the person ceased to be under a disability or died, whichever event first occurred not-with-standing that the period of limitation has expired . . ."

I will deal with grounds one, two and three together since they all criticise the learned trial Judge's finding to the effect that the cause of action of unlawful detention was time barred. This is what he said in this regard in his brief order:

> "It is not in dispute that the tort of arrest and that of the detention took place on 24 September 1986 and as pleaded in paragraph 4 of the plaint that is the date on which the cause of action arose therefore time started running against the plaintiff from that date in respect of both torts of unlawful detention and arrest from that date to the date when the suit was filed on 18 January 1988, the statutory period of 12 months within which the suit ought to have been brought had expired. Time did not begin to run against the plaintiff on his release from prison as submitted by the learned counsel for the plaintiff; *Siwali Kidumu v Attorney-General* [1976] HCB 87 *and Musambu v West Mengo District Administration* [1971] EA 379.
>
> Although the plaintiff might have been under disability by possibly being detained in prison still he had to comply with the provisions of Order VII, rule 6 of the Civil Procedure Rules by specifically pleadings where the plaintiff has pleaded that he was under inability until 12 August 1987. It was stressed in the case of *Iga v Makerere University* [1972] EA 65 and *Siwali Kiduma v Attorney-General* (*supra*) that where the plaintiff wishes to rely on any exception when caught up by the provisions of Orders VII, rule 6 of the Civil Procedure Rules his failure to do so is fatal as provisions of that order is mandatory. In the instant case the plaintiff did not comply with this mandatory requirements to his own detriment."

Where a period of limitation is imposed it begins to run from the date on which the cause of action accrues. When, therefore, there is for instance a trespass, libel unlawful arrest, a false imprisonment or other act which of itself

constitutes a wrong, time begins to run from the act itself, or, if there be several acts, in respect of each act from the date of its commission. From the passage of the judgment of the learned trial Judge referred to above, it appears that he treated the two causes of action in the instance case,unlawful arrest and unlawful detention, together and equally without distinguishing one as distinct from the other. This led him to the conclusion that both causes of action having arisen on the same date were equally time barred when the suit was brought. I think that as the two causes of action were different in duration and nature, the learned trial Judge ought to have considered the effect of limitation on them separately.

Regarding the effect of limitation on unlawful detention or false imprisonment authoritative court decisions in this jurisdiction appear to be lacking, but the sum total of text book statements and superior Court decisions is quite clear. It is that such a wrong is necessarily a continuing tort so that the cause of action accrues continuously through-out its duration. In "*Clerk and Lindasell on Torts*" (13ed), paragraph 612, the position is stated thus:

> "Where there is a continuing nuisance or a continuing trespass, every fresh continuance is a fresh cause of action and therefore an injured party who sues after the cessation of the wrong may recover for such portions of it as lie within the period limited."

Another text book – "*Franks on Limitation of Actions*" at 197 also states the same view.

Only two superior Court decisions of this country appear to have dealt directly and clearly with limitation on false imprisonment as a cause of action.

In *Siya v The Attorney-General* [1972] ULR part 1 at 71, the plaintiff sued the Attorney-General, *inter alia*, for damages for wrongful arrest and false imprisonment. The plaint was filed on 5 May 1971. Counsel for the defendant raised a preliminary issue that the action was time barred. The plaintiff had been arrested on 1 January 1970, and was detained in custody until 11 August 1970. Counsel for the plaintiff conceded that the action for wrongful arrest was time barred according to section 2(1) of Act 20 of 1969. With regard to the action for false imprisonment counsel for the plaintiff contended that such was a continuing offence and that a cause of action arose as long as the imprisonment continued. Wambuzi J (as he then was) held that false imprisonment was a continuing injury and the effect of section 2 of Act 20 of 1969 was to wipe out so much of the injury as fell outside the 12 month period of limitation.

In *Difasi v The Attorney* [1972] EA 335 the plaintiff claimed damages for wrongful arrest and false imprisonment. The plaintiff had been arrested and imprisonment on a charge of murder. The Director of Public Prosecutions had directed the charge to be withdrawn and the accused released on 25 December 1969. He was not released, however until 19 July 1971. The defendant raised a preliminary point that the action was statute barred under Act 20 of 1969. It was argued for the plaintiff that false imprisonment was continuing injury, a fresh cause of action arising each day that he was detained. Faud J (as he then was) held that false imprisonment is a continuing tort with a case of action accruing continuously during the imprisonment, and that a claimant can recover in respect of imprisonment during the limitation period.

I am of the view that the law as set out in the text books I have referred to and as expressed in the cases of *Siya* (*supra*) and *Difasi* (*supra*) the continuing

nature of the tort of false imprisonment or unlawful detention and the effect of this attribute upon the law of limitation as provided in Act 20 of 1969 is correct. This means, therefore, that if the imprisonment began more than 12 months before court action but continued to a time within that period damages for so much of the imprisonment or detention as took place within the 12 months before the action may be recovered, although a plea of that statute prevents the recovery of damages for so much of the imprisonment or detention as took place outside that period.

Applying the law to the facts of the instant case, it is evident that the appellant is not statute-barred from attempting to establish his claim for unlawful detention from 18 January 1987. He does not have to plead disability for his claim in respect of that period since it would be within the limitation. In the circumstances, grounds one, two and three of the appeal should succeed.

Ground four of the appeal, in my view, is devoid of merit. I will therefore deal with it briefly. The appellant's cause of action for unlawful arrest accrued on 24 September 1986. He should therefore, have filed his suit in respect of that injury on or before 24 September 1987, but he did not do so until 18 January 1988, above four months outside the period of limitation. As I have discussed above, so much of his cause of action for unlawful detention for the period before 18 November 1987 was also statute – barred. In the circumstances he could claim exemption from limitation in respect of his injury for unlawful arrest and unlawful detention outside the period of limitation only by taking advantage of the provisions of Order VII, rule 6 of the Civil Procedure Rules. This rule reads that:

> "Where the suit is instituted after the expiration of the period prescribed by the law of limitation, the plaint shall show the grounds upon which exemption from such law is claimed."

This rule, in my view, is mandatory. A plaint which does not show such ground must be rejected under Order VII, rule 11, which is also couched in mandatory terms. It says:

> "The plaint shall be rejected in the following cases:
>
> (*a*) where the suit appears from the statement in the plaint to be barred by any law."

I find support for this view in *Iga v Makerere University* [1972] EA 65 a Court of Appeal for East Africa decision.

The plaint in the instant case shows no grounds upon which exemption from limitation is claimed. Such exemption could be on grounds of disability under section 4 of Act 20 of 1969 stated above.

"Disability" is not defined by the Act, but it must depend on the circumstances of each case. It may be wondered whether one whose cause of action is unlawful detention coupled with an unlawful arrest preceding it is not under a disability as long as the detention lasts. One thing however, appears to be certain. It is that if one wishes to rely on arrest and detention as a desability upon which exemption may be based one has to plead it specifically as required by Order VII, rule 6.

As the plaint in the instant case did not plead any such a disability as an exemption from limitation, the learned trial Judge was correct in holding that the failure to do so was fatal to the claim outside the limitation. Ground four of the appeal must, therefore, fail.

As the plaintiff in the instant case did not plead any such a disability as an exemption from limitation, the learned trial Judge was correct in holding that the failure to do so was fatal to the claim outside the limitation. Ground four of the appeal must, therefore, fail.

In the result, I would allow this appeal to the extent indicated above, and order that the suit should be referred back to the High Court for trial of so much of the cause of action for unlawful detention that is within the period of limitation. With regard to costs, as the appellant abandoned one of his grounds at the outset, lost one of the grounds and succeeded on three, I would award him three-fifths of the costs of the appeal.

The costs in the court below would abide the results of the suit.

Platt JSC: I have had the advantage of reading the judgment of Order JSC in draft and I agree with his conclusions and the proposed order as to costs. I have only a few further observations to add.

In this case the appellant's detention lasted from 24 September 1986 to 12 August 1987. Assuming that the period of limitation was one year, the appellant's release on 12 August 1987 still left him with a period of time between 13 August 1987 until 24 September 1987 in which to act before the period of limitation began to operate. Hence he could have sued for all the damages he claimed both for unlawful arrest as well as detention. No case of disability could arise in the period from 13 August 1987 to 24 September 1987.

It may be pertinent that section 4 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 20 of 1969 appears to provide for disability ceasing on a date "notwithstanding that the period of limitation has expired". That was not the case here since it may be pertinent that section 4 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 20 of 1969 appears to provide for disability ceasing on a date "notwithstanding that the period of limitation has expired". That was not the case here since the period of limitation had not expired. I understand that the view has been expressed that the phrase "notwithstanding that the period of limitation has expired" may be surplusage, and that the date on which disability ceases, may occur before or after the period of limitation has expired and still lie within section 4. If that were so, the final words of the section would have been, "whether or not the period of limitation has expired". The matter has not been fully argued, but the phrase "notwithstanding that the period of limitation has expired," in principle refers only the case when disability ceases after the period has expired. If a wider interpretation is wanted the Act ought to be amended by substituting the words, "whether or not the period has expired".

Manyindo DCJ: I have read the judgment of Order JSC, and I agree that this appeal must succeed but only in part.

The problem in this case stems from the trial Judge's finding that:

> ". . . the tort of arrest and that of the detention took place on 24 September 1986 and . . . that is the date on which the cause of action arose therefore from that date in respect of both torts of unlawful detention and arrest. From that date to the date when the suit was filed on 18 January 1988 the statutory period of 12 months within which the suit ought to have been brought had expired. Time did not start to run against the plaintiff on his release from prison as submitted by the learned counsel for the plaintiff."

As I understand it, the law on limitation of suits under Order VII of the Civil Procedure Rules is this; a suit filed out of time is time barred and it must be rejected unless grounds for exemption from the limitation are shown down in the plaint: See *Iga v Makerere University* [1971] EA 65.

If the plaintiff's suit is time barred it should not be dismissed; only the plaint should be rejected under Order VII, rule 11 of the Civil Procedure Rules, with the result that he or she can present a fresh plaint containing, *inter alia*, the exemption relied on under Order VII, rule 13.

In case of wrongful arrest, unlawful detention, false imprisonment and malicious prosecution, the plaintiff's time within which to sue the defendant begins to run after his or her release or acquittal. See *Musambu v West Mengo District Administration* [1971] EA 379 and *O'Connor v Issacs* [1956] 2 KB 288 at 328.

The appellant's plaint was clearly bad in respect of the unlawful arrest as it was time barred. But as false imprisonment is a continuing tort the appellant's claim for damages for the imprisonment outside the period of limitation was valid. In order to recover damages for the period covered by limitation the disability would have to be pleaded. As it was not pleaded in this case the appellant's claim for damages for the period from 24 September 1986 to 18 January 1987 could not be entertained by the High Court. The trial Judge should have rejected the plaint to that extent only. The suit should then have gone on in respect of the period which was not affected by the limitation. As Platt JSC also agrees with the judgment of Order JSC, the appeal is allowed to the extent that suit is reinstated for hearing only the respect of the appellant's claim of damages for unwrongful detention from 18 January 1987 (when the plaint was filed) to 12 August 1987 (when he was released from custody). The Order for costs shall be in the terms proposed by Order JSC.

For the appellant:
Information not available

For the respondent:
Information not available

Wambura v Republic
[1990–1994] 1 EA 609 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	29 May 1992
Case Number:	56/92
Before:	Nyalali CJ, Ramadhani JA and Mapigano AJA
Sourced by:	LawAfrica

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[1] Criminal law – Charge of murder – Two separate counts in charge sheet – Possession of fruits of a crime being inference of guilt.

Editor's Summary

Patrick Tyenyi and his wife, Jenerever, were brutally murdered and the appellant found guilty of two counts of murder and sentenced to death in respect of the second count.

He appealed against the judgment on the grounds that if the conviction on count number 1 was sound, then there was no plausible reason why the learned Judge chose to sentence the appellant to suffer death on count number two.

Held – The unexplained possession by an accused person of the fruits of a crime recently after it has been committed is presumptive evidence against the accused not only on the charge of theft or receiving with guilty knowledge, but of any aggravated crime like murder as well, when there is reason for concluding that such aggravated and minor crimes were committed in the same transaction.

Where more than one count of murder have been charged and convictions entered on two or more counts, the practice is to impose death sentence in respect of the first of such convictions. However, this is simply a matter of form and is not obligatory as the choice of which count to pass the sentence on a matter better left to the judge's discretion.

Appeal dismissed.

No cases referred to in judgment

Judgment

Mapigano AJA: This is a case of double murder. A man called Patrick Tyenyi and his wife Jenerover were brutally done to death in the night of 14/15 September 1985, in the Musoma Township. Jenerover was found dead in a pool of blood inside the couple's house at Nyakato, while the dead body of Patrick was discovered a kilometre away. It is evident that the couple killed by bandits who raided their house on that night and that Patrick was killed by the bandits after being taken forcibly from the house or when he was giving chase. It is also evident that the injuries the couple sustained on the heads were inflicted by a sharp weapon.

The bandits made away with clothes, a blanket, a mosquito net and a gun which belonged to Patrick's employer and which was in his possession on account of his employment.

The appellant Mwita Wambura was charged with the murders of the couple on two counts and tried by the High Court sitting to Musoma. Although the persecution produced no eye witness to the incident the learned trial Judge, Sekule J, in a careful judgment, was of the opinion that there were three principal pieces of credible evidence that established the following facts:

> "(*a*) that the raiders were prosecuting a common design ie robbery;
>
> (*b*) that their common design extended to everything which in fact occurred in the course of the raid;
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> (*c*) that the murders were committed in the course of the raid; and
>
> (*d*) that the appellant was a party to the raid and the murders."

The first piece of evidence pertained to the appellant's possession of the articles that were stolen from the couple's house a few hours after the raid. There was credible evidence that the appellant accompanied by two other men who evaded arrest brought the stolen articles to the house of PW2 Nyamtondo in the night of the raid. Some of the articles were blood-stained. There was also credible evidence that the trio came to that place carrying two pangas, also blood-stained, and a knife.

In effect the appellant failed to explain to the Court how he acquiredpossession of the stolen goods. Under our criminal law the explained possession by an accused person of the fruits of a crime recently after it has been committed is presumptive evidence against the accused not only on the charge of theft or receiving with guilty knowledge, but of any aggravated crime like murder as well, when there is reason for concluding that such aggravated and minor crimes were committed in the same transaction. And the force of this presumption is greatly strengthened if the property consists of a number of miscellaneous articles.

The second piece of evidence was the appellant's possession of the blood-stained weapons, weapons which were eminently capable of inflicting wounds of the kind that the deceased couple sustained.

The third piece of evidence was the conduct of the appellant when he was confronted by the neighbours of PW2 in the following morning. It was in evidence that upon realising that he was about house of PW2, gathered the other stolen articles and then took to his heels, threatening to sheet his pursuers with the gun.

Accordingly, the learned Judge convicted the appellant on both counts. The judge was fully aware that our law obliged him to pass a sentence of death, which is mandatory, on only one count. So he pronounced the sentence in the flowing terms:

> "Mwita Wambura, I have found you guilty and convicted you of the counts of murder … I hereby sentence you to suffer death by hanging until you die in respect of the murder of Jenerover w/o Patrick Tyenyi. You are so sentenced."

It is to be observed that the murder of Jenerover was the subject matter of the second count.

The appellant has appealed to us against the decision of the trial Judge. On his behalf Mr *Rugarabamu*, learned advocate filed two grounds. However at the start of hearing Mr *Rugarabamu* announced that he was dropping one of the grounds, and this did not come to us as a surprise, given the abundance and quality of the materials on record.

The ground that remains to be considered is that "if the conviction on count number one was sound there was no plausible reason why the learned Judge chose to sentence the appellant to suffer death on count number two". In his short address Mr *Rugarabamu* has made points in that regard. The first point is that the trial Judge erred when he passed sentence on the second count. In his submission the judge should have passed the sentence on the first count instead. In answer to a question from the bench Mr *Rugarabamu* has readily conceded that there is no benefit that will ensure to the appellant if we sustain this point.

The second point is a sequel to the first and it is that the judge's choice to hand down the sentence on the second count in indicative of a state of misgiving in the judge's mind about the guilt of the appellant on the first count.

We agree with Mr *Mussa*, learned senior State Attorney who resisted the appeal, and hold that there is no substance in the two points raised by Mr *Rugarabamu*. We knew that in most cases where more than one count of murder have been charged, and conviction entered on two or more counts, the practice has been to impose the death sentence in respect of the first of such convictions. It seems to us, however, that that is simply a matter of form or want.

There is no rule which makes it obligatory on the Court to hand out the sentence in respect of the first conviction, and it is not our desire to create one. In our view the choice of which count to pass the sentence on is a matter which is better left to the discretion of the trial Judge.

Reading the trial judgment it is clear to us that the judge was left in no reasonable doubt as to the guild of appellant on both counts. This is how he concluded the judgment:

> "The accused and the other persons, each one of them therefore is responsible for deaths of common intention… Like the gentleman assessors, I am satisfied that the case against the accused person has been proved beyond reasonable doubt. I would and do hereby find the accused guilty of murder on both counts and I convict him accordingly."

That was an explicit finding and we have been unable to accept the proposition that the terms of the sentenced derogated from it and implied that the judge was somewhat uncertain about the validity of conviction on the first count. In any event in our assessment we entertain no doubt whatever that the judge reached the right decision. Certainly the proven incriminating facts excluded all reasonable likelihood of the appellant's innocence on both counts.

This appeal therefore is dismissed.

For the appellant:
Mr Rugarabamu

For the respondent:
Mr Mussa, Senior State Attorney